

CASES DECIDED

IN THE

COURT OF APPEALS

OF THE

STATE OF NEW YORK

[213 NE3d 103, 192 NYS3d 43]

GEORGE HOEHMANN et al., Respondents, v TOWN OF CLARKSTOWN et al., Respondents, and FRANK BORELLI et al., Intervenor-Appellants.

In the Matter of FRANK BORELLI et al., Appellants, v TOWN OF CLARKSTOWN et al., Respondents.

In the Matter of ROSALIND JACOBSON et al., Appellants, v GEORGE A. HOEHMANN, Respondent, et al., Respondent.

Argued May 16, 2023; decided May 19, 2023

SUMMARY

APPEAL, in the first above-entitled action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 15, 2023. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Rockland County (Amy S. Puerto, J.; op 2023 NY Slip Op 31751[U] [2023]), which had denied plaintiffs' motion for summary judgment on the complaint and granted intervenors' cross-motion, in effect, for summary judgment dismissing the complaint; (2) granted the branch of plaintiffs' motion which was for summary judgment declaring that Code of Town of Clarkstown chapter 263 is invalid because it was not subject to a public referendum; (3) denied as academic the branch of plaintiffs' motion which was for summary judgment declaring that Code of Town of Clarkstown chapter 263 is invalid for its inconsistency with Town Law § 63 and Municipal Home Rule Law § 20; (4) denied

intervenors' cross-motion, in effect, for summary judgment dismissing the complaint; and (5) remitted the matter to Supreme Court for entry of a judgment declaring Code of Town of Clarkstown chapter 263 invalid.

APPEAL, in the second above-entitled proceeding and action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 15, 2023. The Appellate Division (1) reversed, on the law, an order and judgment (one paper) of the Supreme Court, Rockland County (Amy S. Puerto, J.; op 2023 NY Slip Op 31750[U] [2023]), entered in a hybrid proceeding pursuant to CPLR article 78 and action for declaratory judgment, which had (a) denied respondents/defendants' motion, in effect, for summary judgment declaring that Town of Clarkstown Local Law No. 1-2023 is invalid; (b) granted the petition; and (c) declared Local Law No. 1-2023 invalid; (2) denied as academic respondents/defendants' motion, in effect, for summary judgment declaring that Town of Clarkstown Local Law No. 1-2023 is invalid; and (3) dismissed the proceeding/action as academic.

APPEAL, in the third above-entitled proceeding, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 15, 2023. The Appellate Division (1) reversed, on the law, a final order of the Supreme Court, Rockland County (Amy S. Puerto, J.; op 2023 NY Slip Op 50414[U] [2023]), entered in a proceeding pursuant to Election Law article 16, which had, after a hearing, (a) denied respondent George A. Hoehmann's motion to dismiss the petition to invalidate the petition designating him as a candidate in a primary election for the nomination of the Republican Party as its candidate for the public office of Supervisor of the Town of Clarkstown, (b) granted the petition to invalidate the designating petition, and (c) directed respondent Rockland County Board of Elections to refrain from printing George A. Hoehmann's name on the ballot for the primary election; (2) granted the motion of respondent George A. Hoehmann to dismiss the petition to invalidate the designating petition; and (3) dismissed the proceeding.

Hoehmann v Town of Clarkstown, 216 AD3d 865, affirmed.

Matter of Borelli v Town of Clarkstown, 216 AD3d 878, affirmed.

Matter of Jacobson v Hoehmann, 216 AD3d 879, affirmed.

HEADNOTE**Local Laws — Validity — No Referendum Held**

Town of Clarkstown Local Law No. 9-2014, which purports to set an eight-year term limit for all Clarkstown elected officials and requires a supermajority vote of the Town Board to repeal, is invalid because it was never subject to a referendum of the Town's voters as required under the Municipal Home Rule Law. "[A] local law shall be subject to mandatory referendum if it . . . [a]bolishes, transfers or curtails any power of an elective officer" (Municipal Home Rule Law § 23 [2] [f]). Through the referendum process, such local laws must be "submitted for the approval of the electors" at a general or special election and "shall become operative as prescribed therein only if approved at such election by the affirmative vote of a majority of the qualified electors of such local government voting upon the proposition" (Municipal Home Rule Law § 23 [1]). The referendum requirement protects the right to vote by ensuring that lawmakers cannot bind future elected officials, thereby diminishing the power of the voters who select those officials, without direct authorization from the electorate. It was not disputed below that the Town Board was required to submit Local Law No. 9-2014 to a mandatory referendum. No such referendum was held. Therefore, the law lacked operative effect until presented to and approved by the voters, and could not become operative through the mere passage of time. Under these unique circumstances, petitioners' actions challenging Local Law No. 9-2014 were not time-barred.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Initiative and Referendum §§ 1–2, 4, 6–7, 10.
McKINNEY'S, Municipal Home Rule Law § 23 (1); (2) (f).
NY JUR 2d Elections §§ 684, 686, 689–690, 693, 695.

ANNOTATION REFERENCE

Character or subject matter of ordinance within operation of initiative and referendum provisions. 122 ALR 769.

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("not held" OR "failed to hold")))

POINTS OF COUNSEL

Daniel Szalkiewicz & Associates, P.C., New York City (*Daniel S. Szalkiewicz* and *Cali P. Madaia* of counsel), for appellants in the first above-entitled action, the second above-entitled proceeding and action, and the third above-entitled proceeding.
I. The Second Department's decision is against the weight of

clear precedent. (*Matter of Save the Pine Bush v City of Albany*, 70 NY2d 193; *Matter of Eadie v Town Bd. of Town of N. Greenbush*, 7 NY3d 306; *Matter of Council of City of N.Y. v Bloomberg*, 6 NY3d 380; *P & N Tiffany Props., Inc. v Village of Tuckahoe*, 33 AD3d 61; *Village of Islandia v County of Suffolk*, 162 AD3d 715; *Baker v Town of Wallkill*, 84 AD3d 1134; *Atkins v Town of Rotterdam*, 266 AD2d 631; *Rural Community Coalition, Inc. v Village of Bloomingburg*, 118 AD3d 1092; *Matter of Krug v County of Lewis*, 296 AD2d 834; *Matter of McCarthy v Zoning Bd. of Appeals of Town of Niskayuna*, 283 AD2d 857.) II. Respondents failed to establish a referendum was required to enact term limits legislation. (*Matter of Benzow v Cooley*, 12 AD2d 162, 9 NY2d 888; *Matter of Golden v New York City Council*, 305 AD2d 598.) III. Respondents face no continuing harm warranting reversal. IV. Respondents never established any harm by failure to hold a referendum to enact the term limits legislation. V. Other cases would fail as a result of the Second Department's policy determination. VI. The elected officials who followed chapter 263 of the Code of the Town of Clarkstown are harmed and without a remedy. (*Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal*, 35 NY3d 332.) VII. The companion cases should be overturned.

Kevin T. Conway, Deputy Town Attorney, New City, for Town of Clarkstown and another, respondents in the first above-entitled action and second above-entitled proceeding and action. This Court should uphold the decision of the Appellate Division, Second Department. (*Amerada Hess Corp. v Acampora*, 109 AD2d 719; *Morin v Foster*, 45 NY2d 287; *Illinois Bd. of Elections v Socialist Workers Party*, 440 US 173; *Matter of Walsh v Katz*, 17 NY3d 336.)

Abrams Fensterman, LLP, White Plains (*Robert A. Spolzino* of counsel), for George Hoehmann and others, respondents in the first above-entitled action. I. The Appellate Division correctly held that the statute of limitations is not a bar to a cause of action for a declaration that chapter 263 of the Code of the Town of Clarkstown is invalid and unenforceable because it was not approved by the voters at the required referendum. (*Flanagan v Mount Eden Gen. Hosp.*, 24 NY2d 427; *Hughes v Cuming*, 165 NY 91; *Artibee v Home Place Corp.*, 28 NY3d 739; *Lacks v Lacks*, 41 NY2d 71; *Capruso v Village of Kings Point*, 23 NY3d 631; *Amerada Hess Corp. v Acampora*, 109 AD2d 719; *Matter of Save the Pine Bush v City of Albany*, 70 NY2d 193;

Baker v Town of Wallkill, 84 AD3d 1134; *P & N Tiffany Props., Inc. v Village of Tuckahoe*, 33 AD3d 61; *Village of Islandia v County of Suffolk*, 162 AD3d 715.) II. The super-majority requirement in chapter 263 of the Code of the Town of Clarkstown is invalid because it conflicts with the State's general law. (*People v Diack*, 24 NY3d 674; *Kamhi v Town of Yorktown*, 74 NY2d 423; *Turnpike Woods v Town of Stony Point*, 70 NY2d 735.)

Lawrence A. Garvey & Associates, P.C., New City (Lawrence A. Garvey of counsel), for George Hoehmann, respondent in the third above-entitled proceeding. I. The Appellate Division, Second Department was correct in finding that George Hoehmann should not have been found ineligible to run for the office of Supervisor of the Town of Clarkstown as chapter 263 of the Code of the Town of Clarkstown should have been declared invalid because it was not subject to a public referendum. (*Parker v Town of Alexandria*, 163 AD3d 55; *Mayor of City of Mount Vernon v City Council of City of Mount Vernon*, 87 AD3d 567; *Matter of Gizzo v Town of Mamaroneck*, 36 AD3d 162.) II. The Appellate Division, Second Department was correct in finding that George Hoehmann should not have been found ineligible to run for the office of Supervisor of the Town of Clarkstown as the invalidity of chapter 263 of the Code of the Town of Clarkstown is a "continuing harm" and thus not subject to a limitations period. (*Amerada Hess Corp. v Acampora*, 109 AD2d 719; *Mary K. v Levy*, 109 AD3d 587; *Davis v Rosenblatt*, 159 AD2d 163; *Hampton Hgts. Dev. Corp. v Board of Water Supply of City of Utica*, 136 Misc 2d 906; *Matter of Save the Pine Bush v City of Albany*, 70 NY2d 193; *Village of Islandia v County of Suffolk*, 162 AD3d 715; *Atkins v Town of Rotterdam*, 266 AD2d 631; *Coutant v Town of Poughkeepsie*, 69 AD2d 506.)

OPINION OF THE COURT

Per Curiam.

These three appeals involve challenges to Local Law No. 9-2014, adopted by the Town Board of the Town of Clarkstown in 2014, which purports to set an eight-year term limit for all Clarkstown elected officials and requires a supermajority vote of the Town Board to repeal. These actions were brought seeking a determination that the law is invalid because it was never subject to a referendum of the Town's voters. Appellants contend that the challenge to Local Law No. 9-2014 is time-barred by a four-month or six-year statute of limitations. We disagree.

“[A] local law shall be subject to mandatory referendum if it . . . [a]bolishes, transfers or curtails any power of an elective officer” (Municipal Home Rule Law § 23 [2] [f]). Through the referendum process, such local laws must be “submitted for the approval of the electors” at a general or special election and “shall become operative as prescribed therein only if approved at such election by the affirmative vote of a majority of the qualified electors of such local government voting upon the proposition” (*id.* § 23 [1]). The referendum requirement protects the right to vote by ensuring that lawmakers cannot bind future elected officials—thereby diminishing the power of the voters who select those officials—without direct authorization from the electorate (*see Morin v Foster*, 45 NY2d 287, 294-295 [1978]). The right to vote, of course, “‘is of the most fundamental significance under our constitutional structure’” (*Matter of Walsh v Katz*, 17 NY3d 336, 343 [2011], quoting *Illinois Bd. of Elections v Socialist Workers Party*, 440 US 173, 184 [1979]).

Here, it was not disputed below that the Town Board was required to submit Local Law No. 9-2014 to a mandatory referendum. No such referendum was held. Therefore, the law lacks operative effect until presented to and approved by the voters (*see Matter of McCabe v Voorhis*, 243 NY 401, 410 [1926]; *see also Morin*, 45 NY2d at 293). Contrary to appellants’ suggestion, the law cannot become operative through the mere passage of time. We thus conclude that, under these unique circumstances, these actions are not time-barred. Resolution of that issue is dispositive of these appeals because Local Law No. 9-2014 has no legal force or effect.*

Accordingly, in each appeal, the order of the Appellate Division should be affirmed, without costs.

In each case: Order affirmed, without costs.

Opinion Per Curiam. Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

* Our decision renders academic the parties’ remaining contentions, including the argument that Local Law No. 9-2014 conflicts with Town Law § 63 and Municipal Home Rule Law § 20.

[213 NE3d 110, 192 NYS3d 50]

In the Matter of PATRICK J. LYNCH, as President of the Patrolmen’s Benevolent Association of the City of New York, Inc., on Behalf of the TIERS 3 AND 3 REVISED MEMBER POLICE OFFICERS EMPLOYED BY THE POLICE DEPARTMENT OF THE CITY OF NEW YORK, et al., Respondents-Appellants, v CITY OF NEW YORK et al., Appellants-Respondents.

Argued April 19, 2023; decided May 23, 2023

SUMMARY

CROSS-APPEALS, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 4, 2021. The Appellate Division order modified, on the law, an order of the Supreme Court, New York County (Margaret A. Chan, J.; op 2019 NY Slip Op 32092[U] [2019]), which had (1) granted, in part, defendants’ motion to convert this action originally brought as a declaratory judgment action into a CPLR article 78 proceeding and to dismiss the pleading as time-barred only to the extent of converting the action to an article 78 proceeding “which is subject to the four-month statute of limitations pursuant to CPLR 217”; (2) granted that “branch of plaintiffs’ cross-motion for summary judgment, which seeks a declaration that defendants have violated [Retirement and Social Security Law] § 513(c)(2) and 1976 [Administrative Code of City of NY] §§ B3-30.1 and B18-15.0”; (3) denied all other branches of plaintiffs’ cross-motion for summary judgment; (4) denied that branch of defendants’ motion “seeking summary judgment on [Retirement and Social Security Law] § 513(c)(2) and 1976 [Administrative Code of City of NY] §§ B3-30.1 and B18-15.0”; (5) granted “all other branches of defendants’ motion for summary judgment”; and (6) adjudged and declared that defendants the City of New York, the New York City Police Pension Fund, and the Board of Trustees of the New York City Police Pension Fund “have violated and continue to violate RSSL § 513(c)(2) and 1976 Administrative Code §§ B3-30.1 and B18-15.0 by refusing to permit all police officers, including those hired on or after July 1, 2009, in Tier 3 from availing themselves of the benefits afforded by that statute.” The modification consisted of (1) granting the part of plaintiffs’ motion seeking summary judgment on their first, second, third, and fourth causes of action and declaring that defendants had wrongfully denied transfers, purchase and

buy-back of credit pursuant to Retirement and Social Security Law §§ 43, 513 (b) and 645 (2) and Administrative Code of the City of New York §§ 13-143 and 13-218; and (2) so declaring. The Appellate Division affirmed the order as modified.

Lynch v City of New York, 194 AD3d 416, affirmed in part, reversed in part.

HEADNOTES

Civil Service — Retirement and Pension Benefits — New York City Police Pension Fund — Transfer, Purchase and Buy-Back of Prior Service Credit — Non-Police Service

1. Tier 3 police officers in the New York City Police Pension Fund (PPF) were not entitled to obtain credit toward retirement eligibility for prior non-police service as such service does not qualify to be counted as credited service pursuant to Retirement and Social Security Law § 513. Police officers who joined the PPF after July 1, 2009, are members of tier 3, and their rights and benefits are governed by Retirement and Social Security Law article 14. Tier 3 members may enjoy benefits established in title 13 of the Administrative Code of the City of New York or elsewhere that are consistent with the provisions of article 14, but in the event that there is a conflict, the provisions of article 14 govern (Retirement and Social Security Law §§ 500 [a]; 519 [1]). Article 14 provides that tier 3 officers, who are eligible for retirement after 22 years of service without regard to their age, shall be eligible to obtain retirement credit for previous service with a public employer if retirement credit had previously been granted for such service (Retirement and Social Security Law § 513 [b]). However, section 513 (c) (2) narrows the scope of prior service for police and fire members by limiting the service that tier 3 police officers may count in determining their retirement eligibility to that which tier 2 officers were entitled before July 1, 1976. The language of the Administrative Code prior to July 1, 1976, which provided that a tier 2 officer would not be eligible for retirement until they “served in the police force for” the then-minimum period of 20 or 25 years, plainly demonstrated that they could count only prior police service toward their retirement eligibility. Thus, current tier 3 officers may receive retirement credit only for prior police service.

Civil Service — Retirement and Pension Benefits — New York City Police Pension Fund — Transfer, Purchase and Buy-Back of Prior Service Credit — Non-Police Service

2. A 2002 settlement agreement between the Patrolmen’s Benevolent Association of the City of New York, Inc. (PBA) and the City of New York that resolved litigation regarding what prior service counted toward New York City Police Department officers’ retirement eligibility did not support the PBA’s claim that tier 3 officers are entitled to the benefits provided in Retirement and Social Security Law §§ 513 (b) and 645. The agreement did not encompass tier 3 officers. Although the tier 3 framework existed when the agreement was signed, tier 3 officers did not. Moreover, when they entered into the agreement, the parties were aware of Retirement and Social Security Law § 513 (c) (2)’s time restriction limiting the service that tier 3 police officers may count in determining their retirement eligibility to that which tier 2 officers were entitled before July 1, 1976, as well as the fact that the provisions at issue in the agreement were enacted after July 1, 1976, and thus could not be applied to tier 3 officers.

Proceeding against Body or Officer — Conversion of Declaratory Judgment Action to Article 78 Proceeding — Performance of Legislatively Imposed Duty

3. Supreme Court properly converted to a CPLR article 78 proceeding an action seeking a declaration that the City of New York, the New York City Police Pension Fund, and other related parties violated certain sections of the Retirement and Social Security Law and the New York City Administrative Code by refusing to permit tier 3 officers to obtain credit toward retirement eligibility for prior non-police service inasmuch as the plaintiffs sought judicial scrutiny of the performance by administrative agencies of legislatively imposed duties.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Mandamus § 77; AM JUR 2d Pensions and Retirement Funds § 1098.
CARMODY-WAIT 2d Proceeding Against a Body or Officer §§ 145:64, 145:974, 145:1078.
McKINNEY'S, CPLR art 78; Retirement and Social Security Law §§ 500 (a); 513 (b); (c) (2); 519 (1); 645.
NY JUR 2d Article 78 and Related Proceedings §§ 48, 118–119, 168; NY JUR 2d Pensions and Retirement Systems §§ 365, 369.
SIEGEL, NY PRAC (6th ed) §§ 557–558.

ANNOTATION REFERENCE

Judicial review of decision, on merits, of claim upon public pension fund. 117 ALR 1408.

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POINTS OF COUNSEL

Sylvia O. Hinds-Radix, Corporation Counsel, New York City (MacKenzie Fillow, Richard Dearing and Devin Slack of counsel), for appellants-respondents. The Appellate Division erred in granting benefits to tier 3 police officers that directly conflict with Retirement and Social Security Law article 14. (*Matter of DaimlerChrysler Corp. v Spitzer*, 7 NY3d 653; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *Nadkos, Inc. v Preferred Contrs. Ins. Co. Risk Retention Group LLC*, 34 NY3d 1; *Matter of New York County Lawyers' Assn. v*

Bloomberg, 19 NY3d 712; *Matter of Perlbinder Holdings, LLC v Srinivasan*, 27 NY3d 1.)

Friedman Kaplan Seiler & Adelman LLP, New York City (Robert S. Smith and Jessica Nagle Martin of counsel), and Michael T. Murray, Office of the General Counsel, Police Benevolent Association of the City of New York, Inc., New York City (Gaurav I. Shah and David W. Morris of counsel), for respondents-appellants. I. The Court of Appeals should affirm the Appellate Division's decision with respect to the statutory claims. (*Matter of Dutchess County Dept. of Social Servs. v Day*, 96 NY2d 149; *Matter of Karedes v Colella*, 100 NY2d 45; *Brearley School, Ltd. v Ward*, 201 NY 358.) II. The Court of Appeals should reverse the Appellate Division's decision with respect to the 2002 settlement and the conversion of plaintiffs' action to a CPLR article 78 proceeding. (*Greenfield v Philles Records*, 98 NY2d 562; *Tomhannock, LLC v Roustabout Resources, LLC*, 33 NY3d 1080; *Banco Espírito Santo, S.A. v Concessionária Do Rodoanel Oeste S.A.*, 100 AD3d 100; *327 Realty, LLC v Nextel of N.Y., Inc.*, 150 AD3d 581; *Matter of Zuckerman v Board of Educ. of City School Dist. of City of N.Y.*, 44 NY2d 336; *Allen v Blum*, 58 NY2d 954; *Matter of Dorst v Pataki*, 167 Misc 2d 329, 228 AD2d 4, 90 NY2d 696; *McKechnie v Ortiz*, 132 AD2d 472; *Civil Serv. Empls. Assn., Local 1000, AFSCME, AFL-CIO v Regan*, 71 NY2d 653.)

OPINION OF THE COURT

SINGAS, J.

At issue here is whether tier 3 police officers in the New York City Police Pension Fund (PPF) who otherwise might be eligible for retirement credit under the statutory provisions discussed herein may use those provisions to apply prior non-police service toward their retirement eligibility. We hold that they may not. The plain language of Retirement and Social Security Law § 513 (c) (2) limits eligible prior service for those officers to police service.¹ Therefore, the proceeding should be dismissed.

I.

In 2016, the Patrolmen's Benevolent Association of the City of New York, Inc., and its president Patrick J. Lynch on behalf of its members (collectively, the PBA), commenced an action

1. For purposes of this appeal, it is undisputed that "police service" includes service as a firefighter.

seeking a declaration that the City of New York, the PPF, and other related parties (collectively, the City) violated certain sections of the Retirement and Social Security Law and the Administrative Code of the City of New York by refusing to permit tier 3 officers to obtain credit toward retirement eligibility for prior non-police service. The PBA also sought a declaration that the City's denials of credit for prior service breached a 2002 agreement between the parties that resolved litigation regarding what prior service counted toward New York City Police Department (NYPD) officers' retirement eligibility.

Supreme Court granted the City's motion to convert the declaratory judgment action to a CPLR article 78 proceeding and further granted in part and denied in part the parties' motion and cross-motion for summary judgment. The court held that the effect of Retirement and Social Security Law § 513 (c) (2) was "to create equivalence between [t]ier 2 and [t]ier 3" for the purpose of obtaining credit for prior service, "but frozen in time so that [t]ier 3 members receive the same creditable service benefits as [t]ier 2 members in 1976" (2019 NY Slip Op 32092[U], *7 [Sup Ct, NY County 2019]). Thus, the court held that the post-1976 provisions on which the PBA relied did not apply to tier 3 officers. But the court also ruled that the City was required to permit tier 3 officers to transfer non-police service toward their retirement eligibility under a pre-1976 provision of the Administrative Code (*see id.* at *8-9). Finally, the court held that the 2002 settlement agreement did not extend any benefits to tier 3 officers because there were no such officers at the time of the agreement (*see id.* at *13).

The Appellate Division modified, holding that Retirement and Social Security Law § 513 (c) (1) set forth, for tier 3 members, the same eligibility requirements "for prior service in defined public employment" as provided in Retirement and Social Security Law article 11 for tier 2 members, and that the effect of section 513 (c) (2) is to exclude tier 3 police members "from those broader eligibility requirements" (194 AD3d 416, 417 [1st Dept 2021]). The Court concluded that the language of section 513 (c) (2) "does not conflict" with the statutes on which the PBA relied, and the City therefore was required by those statutes to allow tier 3 officers to credit non-police service toward their retirement eligibility (*id.* at 417-418). The Court agreed with Supreme Court that the 2002 agreement did not extend benefits to tier 3 members (*see id.* at 418).

We granted the parties' motions for leave to appeal (*see* 37 NY3d 918 [2022]).

II.

The PPF is the retirement program for police officers employed by the NYPD (*see* Administrative Code of City of NY § 13-214 *et seq.*). PPF membership and the corresponding benefits are divided into tiers. Police officers who became members between July 1, 1973, and July 1, 2009, are in tier 2. Their benefits are governed by title 13 of the Administrative Code and article 11 of the Retirement and Social Security Law.

To address steeply mounting pension costs and budget constraints, the legislature created tier 3, “a comprehensive retirement program designed to provide uniform benefits for all public employees and eliminate the costly special treatment of selected groups inherent in the previous program” (*Lynch v City of New York*, 23 NY3d 757, 765 [2014] [*Lynch I*] [alterations and internal quotation marks omitted]). Although established in 1976, the legislature passed a series of two-year extensions that afforded tier 2 rights and benefits to police officers joining the PPF until June 2009, when Governor Paterson vetoed the bill that would have again extended tier 2 coverage (*see id.* at 766-767). Police officers who joined the PPF after July 1, 2009, are thus members of tier 3, and their rights and benefits are governed by Retirement and Social Security Law article 14 (*see Lynch v City of New York*, 35 NY3d 517, 527 [2020] [*Lynch II*]).

Although article 14 “provide[s] uniform benefits for all public employees” in tier 3 (*Lynch I*, 23 NY3d at 765), it is not “a stand-alone retirement structure of benefits and contributions” (*Lynch II*, 35 NY3d at 527 [internal quotation marks omitted]). Under Retirement and Social Security Law § 519 (1), tier 3 members may enjoy benefits established in title 13 of the Administrative Code or elsewhere so long as those benefits are consistent with the provisions of article 14. However, “[i]n the event that there is a conflict between the provisions of [article 14] and the provisions of any other law or code, the provisions of [article 14] shall govern” (Retirement and Social Security Law § 500 [a]).

As relevant to this appeal, article 14 provides that tier 3 officers are eligible for retirement after 22 years of service without regard to their age (*see generally* Retirement and Social Security Law §§ 503 [d]; 505). The issue before us is whether a tier 3 police officer’s prior non-police service “qualifies to be counted as credited service pursuant to [Retirement and Social Secu-

ity Law § 513]” (Retirement and Social Security Law § 501 [4]).

III.

“When presented with a question of statutory interpretation, our primary consideration is to ascertain and give effect to the intention of the [l]egislature” (*Matter of DaimlerChrysler Corp. v Spitzer*, 7 NY3d 653, 660 [2006] [internal quotation marks omitted]). “The starting point for discerning legislative intent is the language of the statute itself” (*Yatauro v Mangano*, 17 NY3d 420, 426 [2011]). That is, “the literal language of a statute controls ‘unless the plain intent and purpose of [the] statute would otherwise be defeated’ ” (*Lynch II*, 35 NY3d at 523, quoting *Matter of Anonymous v Molik*, 32 NY3d 30, 37 [2018]). We must also consider the statute as a whole, “ ‘and effect and meaning must, if possible, be given to the entire statute and every part and word thereof’ ” (*People v Pabon*, 28 NY3d 147, 152 [2016], quoting McKinney’s Cons Laws of NY, Book 1, Statutes § 98 [a]).

Under article 14, all tier 3 members “shall be eligible to obtain retirement credit hereunder for previous service with a public employer if retirement credit had previously been granted for such service” (Retirement and Social Security Law § 513 [b]). Section 513 (c) (1) qualifies the creditable service grant in section 513 (b) by stating that “[a] member shall not be eligible to obtain credit for service with a public employer other than the state of New York, a political subdivision thereof, a public benefit corporation, or a participating employer.” Section 513 (c) (2) narrows the scope further for police and fire members, directing that those members are “eligible to obtain credit for service with a public employer described in [Retirement and Social Security Law § 513 (c) (1)] only if such service, if rendered prior to [July 1, 1976] by a police/fire member who was subject to [Retirement and Social Security Law article 11], would have been eligible for credit in the police/fire retirement system or plan involved.”

[1] By its plain language, then, Retirement and Social Security Law § 513 (c) (2) limits the service that tier 3 police officers may count in determining their retirement eligibility (see Retirement and Social Security Law §§ 501 [4]; 503 [d]) to that which tier 2 officers were entitled before July 1, 1976. Indeed, the statute explicitly states that a tier 3 officer may obtain credit for prior service “only if” a tier 2 officer could have done

so at that time, rendering the time restriction central to determining tier 3 officers' retirement eligibility. Indeed, the sole purpose of section 513 (c) (2) is to narrow, for police officers, the eligibility for creditable service set forth in section 513 (c) (1). Therefore, we conclude that the legislature intended tier 3 officers to receive the same service credit as their tier 2 counterparts, but restricted to the credit available prior to July 1, 1976.

Before July 1, 1976, the Administrative Code provided that a tier 2 officer would not be eligible for retirement until he or she "served *in the police force* for" the then-minimum period of 20 or 25 years (former Administrative Code § B18-15.0 [d] [emphasis added]; *see* former Administrative Code § B3-30.1). This language plainly demonstrates that, prior to July 1, 1976, tier 2 officers could count only prior police service toward their retirement eligibility. Accordingly, tier 3 officers may receive retirement credit only for prior police service.

Our reasoning in *Lynch II* supports this conclusion. There, we held that tier 3 members could, pursuant to the Administrative Code, purchase service credit for time spent on temporary childcare leave (35 NY3d at 525-526). "[T]he childcare leave service credit benefit conferred upon such members" did not conflict with Retirement and Social Security Law § 513, as that section's definition of creditable service "[wa]s silent with respect to" childcare credit (*id.* at 525, 531). But here, section 513 (c) (2) is not silent as to the creditable service available to tier 3 officers; instead, it specifically provides that tier 3 officers are entitled to credit for prior service "only if" tier 2 officers were eligible for such credit before July 1, 1976. Therefore, there is a direct conflict between the provisions of section 513 and the PBA's suggested interpretation of the relevant Administrative Code provisions.

The Administrative Code and additional Retirement and Social Security Law sections on which the PBA rely do not require the City to credit tier 3 officers' non-police service toward the number of years they must serve before retirement. To begin, the Administrative Code includes as police service "for purposes of eligibility for benefits" various types of prior similar public service, such as membership in the uniformed sanitation force or uniformed correction force, and service as a peace officer, sheriff, or EMT (*see* Administrative Code §§ 13-143 [b] [1]; 13-218 [d] [2] [a]). But these provisions do not apply to tier 3 officers, as they were enacted and amended after July 1, 1976 (*see*

L 1980, ch 640; L 1985, ch 907; L 2004, ch 647; L 2004, ch 728). It also bears noting that there were no tier 3 officers when the expansive language was added to the Code. If the legislature had wanted to apply the language to future tier 3 officers, “it easily could have said as much” by eliminating or amending the time restriction in Retirement and Social Security Law § 513 (c) (2) (*Lynch II*, 35 NY3d at 525).²

Former Administrative Code §§ B3-30.1 and B18-15.0, which were enacted prior to July 1, 1976, permitted officers who were previously in the New York City Employees’ Retirement System (NYCERS) to transfer credit to the PPF for the purpose of calculating their benefits. Former section B3-30.1 did not, however, allow officers to apply NYCERS credit to their retirement eligibility. Rather, the text makes clear that officers could transfer NYCERS credit only to increase the amount of the officer’s retirement allowance. The same is true of former section B18-15.0, which contained the same transfer language as section B3-30.1, and confirmed that “the period of . . . prior creditable city service” could be “counted as service as a police [officer] for the purpose only of determining the amount of [their] pension or retirement allowance.” Each of these sections reiterated that “[n]o member of [the PPF] shall be eligible for retirement for service until [they have] served *in the police force* for” the minimum period (former Administrative Code §§ B3-30.1, B18-15.0 [emphasis added]).

Nor do the Retirement and Social Security Law provisions cited by the PBA—sections 513 (b), 645, and 43—support its position. Retirement and Social Security Law § 513 (b) ensures that tier members receive retirement credit for previous service with public employers. But this section simply sets forth the general circumstances under which tier 3 members may receive service credit, and thus is not a standalone mechanism by which tier 3 members, including officers, may buy back prior service to count toward retirement eligibility. Otherwise, there would be no need for section 513 (c) (2) to single out police officers.

Retirement and Social Security Law § 645, originally enacted in 1998, addresses issues that arise when a tier member leaves

2. Indeed, following oral argument in this case, the legislature amended Retirement and Social Security Law § 513 by adding subdivision (c) (2) (ii), which authorizes tier 3 police and fire members of the New York City fire department pension fund to obtain credit toward their years of retirement eligibility for prior EMT service, provided that service immediately precedes service in the fire department (*see* L 2023, ch 55, § 1, part HH, § 1).

and then rejoins the pension system. Because it was enacted after July 1, 1976, it has no application to tier 3 officers. In any event, section 645 is not a buyback provision for credit toward retirement eligibility. Instead, the statute—enacted in recognition that many public employees “temporarily left service . . . to raise children” and would otherwise incur “severe financial loss” upon their return—“enable[s] these former members to be reinstated into their original tier” (Assembly Introductor’s Mem, Bill Jacket, L 1999, ch 646 at 3).

Retirement and Social Security Law § 43, while in effect prior to July 1, 1976, merely contemplates the transfer of New York State and Local Employees’ Retirement System (NYSLERS) membership to other retirement systems, including the PPF. As a result of that transfer, the member “shall on retirement be entitled to a pension based on salary earned during member service in both retirement systems together” (Retirement and Social Security Law § 43 [d]). Therefore, much like former Administrative Code §§ B3-30.1 and B18-15.0, credit transferred under section 43 impacts the amount of the retirement allowance, rather than the years needed for retirement eligibility. Any indication that the City, in practice, may have permitted tier 2 police officers to apply NYSLERS credit toward retirement eligibility cannot overcome the plain language of the statute. Moreover, if section 43 provided a standalone right to apply prior NYSLERS service to an officers’ retirement eligibility under the PPF, the legislature need not have amended the current Administrative Code to broaden the types of creditable service available to tier 2 members, including for service as corrections officers and sheriffs, who are part of NYSLERS.

[2] The PBA separately relies on the 2002 settlement agreement to support its claim that tier 3 officers are entitled to the benefits provided in Retirement and Social Security Law §§ 513 (b) and 645. We conclude that the agreement did not encompass tier 3 officers and therefore does not entitle them to those benefits. Although the tier 3 framework existed when the agreement was signed, tier 3 officers did not. Moreover, when they entered into the agreement, the parties surely were aware of Retirement and Social Security Law § 513 (c) (2)’s time restriction, as well as the fact that the provisions at issue in the agreement were enacted after July 1, 1976, and thus could not be applied to tier 3 officers.

[3] Finally, because the PBA seeks “judicial scrutiny . . . of the performance by administrative agencies of legislatively

imposed duties” (*Matter of Town of Arietta v State Bd. of Equalization & Assessment*, 56 NY2d 356, 362 [1982]), we conclude that Supreme Court properly converted the action to this article 78 proceeding (*see e.g. Lynch I*, 23 NY3d at 768).

Accordingly, the order of the Appellate Division, insofar as appealed from, should be affirmed, with costs, and the same order, insofar as cross-appealed from, should be reversed, with costs, and the proceeding dismissed in its entirety.

Chief Judge WILSON and Judges GARCIA, CANNATARO and TROUTMAN concur. Judges RIVERA and HALLIGAN took no part.

Order insofar as appealed from affirmed, with costs, order insofar as cross-appealed from reversed, with costs, and proceeding dismissed in its entirety.

[213 NE3d 105, 192 NYS3d 45]

**In the Matter of TEAMSTERS LOCAL 445, Respondent, v TOWN
OF MONROE, Appellant.**

Argued April 20, 2023; decided May 23, 2023

SUMMARY

APPEAL, by permission of the Court of Appeals, from a judgment (denominated decision, order and judgment) of the Supreme Court, Dutchess County (Maria G. Rosa, J.), entered January 21, 2022, in a proceeding pursuant to CPLR article 75. The judgment granted the petition to compel arbitration. The appeal brings up for review a prior nonfinal order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered November 12, 2020. The Appellate Division had affirmed an order of that Supreme Court (op 2017 NY Slip Op 33539[U] [2017]), which had denied respondent's motion to dismiss the petition.

Teamsters Local 445 v Town of Monroe, 2022 NY Slip Op 34555(U), reversed.

Matter of Teamsters Local 445 v Town of Monroe, 188 AD3d 896, reversed.

HEADNOTE**Arbitration — Collective Bargaining Agreement — Exempt Class
Civil Service Employees — Provision of For-Cause Termination
Protection Unenforceable**

Respondent Town was not required to arbitrate a grievance dispute with petitioner union arising from respondent's termination of an employee from an exempt class civil service position inasmuch as the provision of the parties' collective bargaining agreement (CBA) purporting to afford for-cause termination protection to certain exempt class employees was unenforceable. A dispute between public employers and employees is not arbitrable if, as here, granting the relief sought would violate a statute, decisional law, or public policy, and the relief sought here would violate all three. The Civil Service Law, in implementing the constitutional mandate that civil service appointments and promotions be made pursuant to merit and fitness ascertained, to the extent practicable, by competitive examination, divides state employees between the unclassified and classified services, and further divides the classified service into the exempt class, the labor class, the competitive class, and the noncompetitive class (Civil Service Law § 40). In contrast to competitive class and certain noncompetitive and labor class employees, exempt class employees are generally not subject to examination requirements and tenure protections because exempt positions are of a confidential nature and require exercise of authority or discretion at a high level or expertise or personal qualities which cannot be measured by a competitive examination. At-will employment status allows elected officials and

political appointees to hire their preferred officers, deputies, and secretaries in place of incumbent exempt class employees, consistent with public policy. Further, the legislature's strict regulation of the exempt class and its exclusion from the removal and disciplinary protection scheme demonstrates that exempt employees have no expectation or right to such protection and that positions classified as exempt are intended to remain so unless reclassified pursuant to statutory procedure. Here, the CBA contravened that intent by altering the essential at-will terminability attribute of an exempt class position.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Civil Service §§ 13, 15, 18, 43, 67; AM JUR 2d Public Officers and Employees §§ 151, 168–170, 172.
 CARMODY-WAIT 2d Arbitration § 141:34; CARMODY-WAIT 2d Proceeding Against a Body or Officer § 145:993.
 MCKINNEY'S, Civil Service Law § 40.
 NY JUR 2d Civil Servants and Other Public Officers and Employees §§ 309, 312, 319–320, 324, 441, 453, 492, 494–495.
 WILLISTON ON CONTRACTS (4th ed) §§ 55:37, 56:147.

ANNOTATION REFERENCES

Claims based on provisions of statutes relating specifically to rights, duties, and obligations between employer and employee as subject to arbitration provisions of contracts or statutes. 149 ALR 276.

Matters arbitrable under arbitration provisions of collective labor contract. 24 ALR2d 752.

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Query: "collective bargaining agreement" & (exempt /p civil /s service) & unenforceable

POINTS OF COUNSEL

Feerick Nugent MacCartney PLLC, Nyack (Brian D. Nugent and Matthew W. Lizotte of counsel), for appellant. I. New York's public policy in relation to the secretary of the planning board is set forth in Civil Service Law §§ 41 (1) (c); 75, and 76; it forecloses an arbitration claim related to termination of the statutorily exempt secretary of the planning board. (*People ex rel. Garvey v Prendergast*, 148 App Div 129; *Matter of Voorhis v Warwick Val. Cent. School Dist.*, 92 AD2d 571; *Matter of de*

Zarate v Thompson, 213 AD2d 713; *Matter of Meenagh v Dewey*, 286 NY 292; *Matter of Ruiz v County of Rockland*, 138 AD3d 999; *Matter of State Unified Ct. Sys. v Association of Surrogate's & Supreme Ct. Reporters within the City of N.Y.*, 104 AD3d 621; *Matter of Incorporated Vil. of Lake Grove v Civil Serv. Empls. Assn.*, 118 AD2d 781; *Matter of City of Long Beach v Civil Serv. Empls. Assn., Inc.—Long Beach Unit*, 29 AD3d 789; *Matter of O'Day v Yeager*, 308 NY 580; *Matter of Kilcoyne v Lohr*, 226 App Div 218.) II. The de facto reclassification of an exempt position under Civil Service Law § 41 necessarily violates the merit and fitness clause of the New York Constitution. (*Matter of Montero v Lum*, 68 NY2d 253; *Matter of Wood v Irving*, 85 NY2d 238; *Matter of Board of Educ. of City of N.Y. v Nyquist*, 31 NY2d 468; *Palmer v Board of Educ.*, 276 NY 222; *Matter of Spence v New York State Dept. of Civ. Serv.*, 197 AD3d 1396; *Koso v Greene*, 260 NY 491; *People ex rel. Campbell v Partridge*, 89 App Div 497, 179 NY 530; *Matter of Kearns v Board of Educ.*, 279 NY 61.) III. Delegating the power to remove an appointed officer violates the appointing power set forth in the New York Constitution. (*Matter of Waters v City of Glen Cove*, 181 AD2d 783; *People ex rel. Corrigan v Mayor of City of Brooklyn*, 149 NY 215; *Palmer v Board of Educ.*, 276 NY 222; *People ex rel. Cline v Robb*, 126 NY 180.)

Lewis, Clifton & Nikolaidis, P.C., New York City (Louie D. Nikolaidis of counsel), for respondent. I. The collective bargaining agreement provides that the underlying grievance is arbitrable. II. Arbitration of the grievance would not violate any statute, decisional law, public policy, or the New York Constitution. (*Matter of City of Long Beach v Civil Serv. Empls. Assn., Inc.—Long Beach Unit*, 8 NY3d 465; *Matter of Professional, Clerical, Tech. Empls. Assn. [Buffalo Bd. of Educ.]*, 90 NY2d 364; *Matter of United Fedn. of Teachers, Local 2, AFT, AFL-CIO v Board of Educ. of City School Dist. of City of N.Y.*, 1 NY3d 72; *Matter of New York City Tr. Auth. v Transport Workers Union of Am., Local 100, AFL-CIO*, 99 NY2d 1; *Matter of City of New Rochelle v Uniformed Fire Fighters Assn., Inc., Local 273, I.A.F.F.*, 206 AD3d 727; *Matter of Montero v Lum*, 68 NY2d 253; *Matter of Byrnes v Windels*, 265 NY 403; *Dye v New York City Tr. Auth.*, 88 AD2d 899, 57 NY2d 917; *Matter of Ruiz v County of Rockland*, 138 AD3d 999.)

OPINION OF THE COURT

GARCIA, J.

Certain civil service positions are classified as “exempt” when the position is of a confidential nature and requires personal qualities that cannot practicably be tested by an examination. Exempt class employees are therefore terminable at will. In this case, the parties entered into a collective bargaining agreement that purports to provide for-cause termination protection to certain exempt class employees. We hold the agreement unenforceable to the extent it grants such protections, and therefore this dispute over an exempt class employee’s termination is not arbitrable.

I.

In 2012, respondent Town of Monroe (the Town) appointed a new secretary to the Town Planning Board (the employee), an exempt class civil service position (*see* Civil Service Law § 41 [1] [c]). Three years later, the Town entered a collective bargaining agreement (the CBA) with petitioner Teamsters Local 445 (the Union). Among other things, the CBA defined the bargaining unit to include the secretary to the Town Planning Board, permitted the Town to “terminate employees for just cause,” prescribed the discipline and termination procedures set forth in Civil Service Law §§ 75 and 76 for most employees, including the secretary, and supplied grievance procedures that culminated in binding arbitration.

In 2017, the Town terminated the employee. The Union filed a grievance with the Town alleging violations of the CBA’s just cause termination provision and the requirements of Civil Service Law § 75 made applicable to the employee by the CBA. The Town refused to address the Union’s grievance, and the Union commenced this proceeding to compel the Town to arbitrate the dispute. Supreme Court denied the Town’s motion to dismiss, concluding that neither law nor public policy prohibited the parties from bargaining tenure protections for an exempt employee, or precluded the employee from grieving or arbitrating the termination (2017 NY Slip Op 33539[U] [Sup Ct, Dutchess County 2017]). The Appellate Division affirmed on the same basis (188 AD3d 896 [2d Dept 2020]). The Court held that “there is no statutory, constitutional, or public policy prohibition against arbitrating this dispute regarding the termination of an employee in an ‘exempt class’ under the Civil Service Law” (*id.* at 897). Judgment was subsequently entered in Supreme Court granting the Union’s petition to compel arbitration (2022 NY Slip Op 34555[U] [Sup Ct, Dutchess

County 2022]). We granted the Town leave to appeal (38 NY3d 1179 [2022]), and now reverse.

II.

“As a general rule, public policy in this State favors arbitral resolution of public sector labor disputes” (*Matter of City of Long Beach v Civil Serv. Empls. Assn., Inc.—Long Beach Unit*, 8 NY3d 465, 470 [2007] [internal quotation marks omitted]). A policy favoring arbitration does not mean that every dispute is arbitrable. With respect to disputes between public employers and employees, we have established a two-step framework for determining arbitrability (see *Matter of Acting Supt. of Schools of Liverpool Cent. School Dist. [United Liverpool Faculty Assn.]*, 42 NY2d 509, 513 [1977]). “[T]he test centers on two distinct inquiries as to the public parties’ purported entry into the arbitral forum: may they do so and, if yes, did they do so” (*Matter of Board of Educ. of Watertown City School Dist. [Watertown Educ. Assn.]*, 93 NY2d 132, 138 [1999]). “The first (‘may-they-do-so’) step calls for an examination, by the court, of the subject matter of the dispute” (*id.*). We have repeatedly held that a dispute is not arbitrable if granting the relief sought would violate a statute, decisional law, or public policy (see *Long Beach*, 8 NY3d at 470). We hold that affording for-cause termination protection to an exempt class employee would do so, and that this dispute arising from the CBA’s for-cause termination provision is therefore not arbitrable.

A.

The New York Constitution mandates that civil service appointments and promotions “shall be made according to merit and fitness to be ascertained, as far as practicable, by examination which, as far as practicable, shall be competitive” (NY Const, art V, § 6). The legislature implemented this constitutional mandate through the Civil Service Law, the present version of which the legislature enacted in 1909 and recodified in 1958 (see L 1909, ch 15; L 1958, ch 790). The statute divides state employees between the unclassified and classified services, and further divides the classified service into four classes: the exempt class, the labor class, the competitive class, and the noncompetitive class (Civil Service Law § 40).

Nonexempt positions are subject to various merit and fitness requirements and are afforded statutory protections against removal and disciplinary action. For example, under Civil Ser-

vice Law § 75, competitive class employees and certain noncompetitive and labor class employees cannot be removed or subjected to any disciplinary penalty except for incompetency or misconduct shown after a hearing upon stated charges. In contrast, exempt class employees are generally not subject to—in other words, are exempt from—the examination requirements and tenure protections that attach to employment in the other classes. Exempt positions are authorized based on “the confidential nature of the position, the performance of duties which require the exercise of authority or discretion at a high level . . . or the need for the appointee to have some expertise or personal qualities which cannot be measured by a competitive examination” (*Matter of Spence v New York State Dept. of Civ. Serv.*, 189 AD3d 1785, 1786 [3d Dept 2020]; *see also Matter of Grossman v Rankin*, 43 NY2d 493, 504, 508 [1977]).

It is not surprising then, given the criteria required to classify a position as exempt, that those employees have been understood to be terminable at will (*see Matter of Meenagh v Dewey*, 286 NY 292, 301 [1941] [observing that, like a private employer, state officers authorized to fill exempt class positions are “free to choose their employees as they please”]). The nature of the positions—mostly deputies and secretaries to political officers (*see Civil Service Law* § 41)—requires that the officer exercising the appointment and removal power possess largely “unrestricted authority and . . . unlimited responsibility for appointments to positions in that class” (*People ex rel. Garvey v Prendergast*, 148 App Div 129, 134 [1st Dept 1911]; *see also Problems Relating to Executive Administration and Powers*, 1938 Rep of NY Constitutional Convention Comm, vol 8 at 185 [defining the exempt class as “positions of a confidential or policy-forming nature, which are filled without examination and carry no security of tenure”]). At-will employment status allows elected officials and political appointees to hire their preferred officers, deputies, and secretaries in place of incumbent exempt class employees.

B.

Our cases demonstrate that some attributes of a statutorily-defined employment class may be immutable and non-bargainable. For example, in *Long Beach*, we held void a provision of a collective bargaining agreement that purported to confer tenure protection upon provisional employees (*see* 8 NY3d at 470). We reasoned that such employees have “no expectation nor

right of tenure,” held that a city “cannot agree to provide superior rights to provisional employees holding positions beyond th[e] statutory time period,” and accordingly denied the employees’ motion to compel arbitration (*id.* at 471). Similarly, in *Matter of Cohoes City School Dist. v Cohoes Teachers Assn.* (40 NY2d 774 [1976]), we held void a provision of a collective bargaining agreement that granted for-cause termination protection to a teacher upon completion of the required probationary period (*see id.* at 776). The Education Law unequivocally permitted the school board to deny tenure without cause, and accordingly the school board could not relinquish its authority and responsibility to make tenure decisions (*id.* at 777-778).

Applying those principles to this case, we hold that for-cause termination protections cannot be made applicable to an exempt class employee through a collective bargaining agreement. The statutory framework, the criteria for exempting positions, and the policy concerns underlying the exempt class’s historical terminable-at-will status together compel this conclusion.

First, our result is consistent with the legislature’s omission of exempt employees from the tenure protections set forth in Civil Service Law §§ 75 and 76. With the exception of certain veterans and volunteer firefighters, the legislature extended statutory safeguards against removal and disciplinary action only to employees in the competitive, noncompetitive, and labor classes. The clear exclusion of the exempt class from the removal and disciplinary protection scheme indicates that exempt employees have “no expectation nor right” to such protection (*Long Beach*, 8 NY3d at 470-471).

Second, the Civil Service Law evinces the legislature’s intent to closely guard exempt class positions. The statute designates only a handful of such positions, permits civil service commissions to classify positions as exempt only where examination is impractical, and requires a civil service commission to review each exempt position upon vacancy to determine “whether such position, as then constituted, is properly classified in the exempt class” (Civil Service Law § 41 [2]; *see also id.* § 20). The legislature’s strict regulation of the exempt class suggests more than an intent to ensure that no position be misclassified as exempt—it demonstrates an intent that positions properly classified as exempt remain so unless the applicable statutory procedure for reclassification is followed. The CBA contravenes

that intent by altering an essential attribute of an exempt class position: at-will terminability. Without it, an employee is not “exempt” as contemplated by the statute.

Finally, public policy weighs against enforcement of the CBA’s termination protections. Considering the nature of positions classified as exempt, appointing officers must be free to “choose their employees as they please” (*Meenagh*, 286 NY at 301). A contrary result would require officers to continue to employ in the most sensitive positions employees who do not meet the officers’ preferred qualifications (*id.*). Public policy generally prohibits an incumbent from binding successors in that manner (*cf. Matter of Karedes v Colella*, 100 NY2d 45, 50 [2003] [“Elected officials must be free to exercise legislative and governmental powers in accordance with their own discretion and ordinarily may not do so in a manner that limits the same discretionary right of their successors to exercise those powers”]; *see also Matter of Martin v Hennessy*, 147 AD2d 800, 802 [3d Dept 1989]).

A dispute under a collective bargaining agreement is not arbitrable if granting the relief sought would violate a statute, decisional law, or public policy. The relief sought in this case would violate all three. The Town was therefore free to terminate the employee without cause, and the Union’s challenge to the employee’s termination is not arbitrable.*

Accordingly, the judgment appealed from and the order of the Appellate Division brought up for review should be reversed, with costs, and the petition to compel arbitration denied.

Chief Judge WILSON and Judges RIVERA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Judgment appealed from and order of the Appellate Division brought up for review reversed, with costs, and petition to compel arbitration denied.

* We reject the Union’s argument that the Town’s sole remedy was to file a unit clarification petition with the New York State Public Employment Relations Board (*see* 4 NYCRR 201.2 [b]). No authority supports the contention that the Town was required to seek the employee’s removal from the bargaining unit before refusing to arbitrate the grievance.

[213 NE3d 624, 192 NYS3d 482]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HANZA
MUHAMMAD, Appellant.

Argued April 20, 2023; decided May 23, 2023

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 3, 2022. The Appellate Division affirmed a judgment of the Onondaga County Court (Thomas J. Miller, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree and criminal possession of a weapon in the second degree.

People v Muhammad, 206 AD3d 1580, reversed.

HEADNOTE

Crimes — Right to Public Trial — Exclusion of Public during Witness Testimony — Court Officers' Misapplication of Trial Judge's Policy

Defendant's Sixth Amendment right to a public trial was violated when, as a direct result of court officers' misapplication of the trial judge's general policy of prohibiting the public from entering or exiting the courtroom while a witness testified, several members of the public who appeared at the courtroom doors before a witness's testimony started were excluded until after the prosecutor's direct examination and the first minutes of the cross-examination. The exclusion resulted from at least two affirmative acts by the trial judge—the adoption of the policy and its delegation to his staff—and thus the judge caused the unjustified exclusion. Once members of the public turned in their phones or adjusted their attire as directed by the court officer standing in front of the courtroom doors, they would have rightly expected, and waited, until further instruction as to whether and when they could enter. The officers failed to notify those waiting in the hallway that they could enter—for example, by verbal communication or placing a sign indicating the courtroom was open. The Sixth Amendment requires trial courts to take every reasonable measure to accommodate public attendance at criminal trials, and the court was required to do more than the record revealed here such that its policy was properly implemented.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Criminal Law § 944; AM JUR 2d Trial §§ 136–139, 144.

CARMODY-WAIT 2d Conduct of Trial, in General §§ 190:67, 190:68, 190:78, 190:81–190:85, 190:89.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) § 24.1.
NY JUR 2d Criminal Law: Procedure §§ 2524, 2530, 2532.
US Const 6th Amend.

ANNOTATION REFERENCE

See ALR Index under Exclusion from Courtroom; Trials.

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POINTS OF COUNSEL

Paul J. Connolly, Delmar, and *Hiscock Legal Aid Society*, Syracuse (*Philip Rothschild* of counsel), for appellant. I. County Court violated appellant’s constitutional and statutory right to a public trial in that, as court staff tried to implement the court’s standing order precluding spectator entry during witness testimony, they excluded timely-arriving spectators from all of the direct examination and part of the cross-examination of a critical prosecution witness. (*People v Martin*, 16 NY3d 607; *Waller v Georgia*, 467 US 39; *People v Torres*, 97 AD3d 1125, 20 NY3d 890; *People v Bonaparte*, 78 NY2d 26; *People v Khalek*, 91 NY2d 838; *People v Peterson*, 81 NY2d 824, 186 AD2d 231; *People v Moise*, 110 AD3d 49; *Peterson v Williams*, 85 F3d 39; *People v Colon*, 71 NY2d 410; *People v Ruffin*, 178 AD3d 455.) II. Defense counsel’s failure to object to County Court’s unconstitutional standing order forbidding spectator entry during witness testimony, which led to exclusion of multiple spectators for much of the testimony of a critical witness, violated appellant’s right to the effective assistance of counsel. (*People v Alvarez*, 20 NY3d 75; *Presley v Georgia*, 558 US 209; *People v Glover*, 60 NY2d 783; *People v Colon*, 71 NY2d 410; *People v Clark*, 28 NY3d 556; *Williams v Artuz*, 237 F3d 147; *People v Echevarria*, 21 NY3d 1; *People v Baldi*, 54 NY2d 137; *Strickland v Washington*, 466 US 668.) III. Defense counsel was constitutionally ineffective as to the prosecutor’s and his own examination of a critical prosecution witness. (*People v Massie*, 2 NY3d 179; *People v Duncan*, 46 NY2d 74; *People v Melendez*, 55 NY2d 445; *People v Pryor*, 204 AD3d 1507; *People v Watts*, 176 AD3d 981; *People v Ramos*, 70 NY2d 639; *People v Benevento*, 91 NY2d 708; *People v Steadman*, 82 NY2d 1; *People v Savvides*, 1 NY2d 554; *People v McDuffie*, 77

AD3d 1360, 16 NY3d 833.) IV. County Court committed reversible error in allowing the People to impeach their own witness beyond that limited impeachment appropriate to contradict trial testimony of the witness that affirmatively damaged their case. (*People v Fitzpatrick*, 40 NY2d 44; *People v Saez*, 69 NY2d 802; *People v Rodriguez*, 24 AD3d 1321, 6 NY3d 817; *People v Crimmins*, 36 NY2d 230; *People v Sanders*, 2 AD3d 1420.) V. County Court erred in imposing consecutive sentences, for the weapon offense was not shown to be committed by an act separate and distinct from the homicide offense. (*People v Brown*, 21 NY3d 739; *People v Laureano*, 87 NY2d 640; *People v Brahney*, 29 NY3d 10; *People v Rodriguez*, 25 NY3d 238; *People v Taveras*, 12 NY3d 21; *People v Parks*, 95 NY2d 811; *People v Tripp*, 177 AD3d 1409, 34 NY3d 1133; *People v Alford*, 14 NY3d 846; *People v St. Andrews*, 82 AD3d 1356; *People v Salcedo*, 92 NY2d 1019.)

William J. Fitzpatrick, District Attorney, Syracuse (*Bradley W. Oastler* of counsel), for respondent. I. Defendant's constitutional right to a public trial was not violated due to the apparent confusion by spectators about their ability to enter the courtroom. (*People v Martin*, 16 NY3d 607; *Presley v Georgia*, 558 US 209; *People v Roberts*, 31 NY3d 406; *People v Nelson*, 27 NY3d 361; *People v Peterson*, 81 NY2d 824; *Gibbons v Savage*, 555 F3d 112; *People v Colon*, 71 NY2d 410; *People v Ruffin*, 178 AD3d 455.) II. Trial counsel was not ineffective for failing to lodge an objection to the court's rule restricting spectator entry during witness testimony. (*People v Stultz*, 2 NY3d 277; *People v Baldi*, 54 NY2d 137; *People v Rivera*, 71 NY2d 705; *People v Droz*, 39 NY2d 457; *People v Bennett*, 29 NY2d 462; *People v Wragg*, 26 NY3d 403; *People v Borrell*, 12 NY3d 365; *People v Satterfield*, 66 NY2d 796; *People v Maffei*, 35 NY3d 264; *People v Barboni*, 21 NY3d 393.) III. Defense counsel rendered meaningful assistance during cross-examination, and the prosecutor did not elicit uncorrected false testimony before the jury. (*People v Gross*, 26 NY3d 689; *People v Ramos*, 70 NY2d 639; *People v Alicea*, 37 NY2d 601; *People v Halm*, 81 NY2d 819; *People v Ashwal*, 39 NY2d 105; *People v Galloway*, 54 NY2d 396; *People v Steadman*, 82 NY2d 1; *People v Randolph*, 18 AD3d 1013; *People v Banks*, 181 AD3d 973, 35 NY3d 1025.) IV. The trial court properly permitted the People to impeach their own witness when he directly exculpated defendant in contradiction to earlier testimony. (*People v Berry*, 27 NY3d 10; *People v Saez*, 69 NY2d 802; *People v Fitzpatrick*, 40 NY2d 44.) V. County Court properly imposed consecutive

sentences because defendant killed the victim after a period of time in which he possessed the firearm without an apparent intent to discharge it. (*People v Malloy*, 33 NY3d 1078; *People v Brown*, 21 NY3d 739; *People v Salcedo*, 92 NY2d 1019.)

OPINION OF THE COURT

RIVERA, J.

The trial judge is in charge of the courtroom and is ultimately responsible for ensuring that any limitation on a defendant's right to a public trial conforms with constitutional dictates. At defendant's trial, the judge delegated to court officers the implementation of the judge's general policy of prohibiting the public from entering or exiting the courtroom while a witness testifies. We agree with the Appellate Division that members of the public were excluded from the courtroom at a time when they should have had access under the terms of the extant policy. But, contrary to the Appellate Division's conclusion, that error directly resulted from the acts of court officials enforcing the trial judge's order. Therefore, the court violated defendant's right to a public trial.

I.

A.

During defendant Hanza Muhammad's trial for second-degree murder and second-degree criminal possession of a weapon, the judge continued his policy that no person would be permitted to enter or exit the courtroom while a witness testifies. The judge consistently applied this policy in each trial he conducted "because [he] believe[d] that spectator traffic during the course of testimony is distracting to the witnesses, the attorneys, certainly the jurors, and [the] court reporter." Defendant did not object to the policy.

On the morning of the third day of trial and second day of testimony, several members of the victim's family and defendant's supporters began arriving at the courtroom doors around 8:50 a.m. In accordance with the court's rule, they turned in their cellular phones to the court officer standing outside the courtroom doors in anticipation of being allowed entry when the court opened. They then waited in the hallway directly across from the officer.

At approximately 9:40 a.m. the prosecution's witness was escorted by investigators through the doors and into the

courtroom. By this time, several individuals had arrived and were standing or sitting across from the courtroom doors. Before the witness entered, individuals from the prosecutor's office, as well as defense counsel and several court officers, periodically entered and exited the courtroom.

After the prosecution completed the direct examination of the witness, and a few minutes into defense counsel's cross-examination, the prosecutor learned and immediately informed the court that several members of the public were waiting in the hallway. The trial judge interrupted the proceedings and ordered the jury out of the courtroom to allow the public waiting outside to enter. Once the public was seated inside, the trial judge recalled the jury and defense counsel continued with the cross-examination.

B.

The following day, after several off-the-record discussions with counsel, the trial judge held a full-day fact-finding hearing on the prior morning's implementation of the judge's general policy. The judge called three witnesses. First, the court officer assigned to collect mobile phones from observers wishing to enter the courtroom testified that she knew the trial judge's policy was that no one could enter or exit while a witness was on the stand. However, she did not hear the jury enter the courtroom and did not know when the witness started to testify, although she observed the witness as he was escorted into the courtroom. Her only conversations with the public were to instruct a couple of persons to turn their shirts inside out and another to put a lanyard hanging around their neck inside their shirt. She did not observe any individual being prevented from entering the courtroom but acknowledged that she did not communicate to anybody that the courtroom was open. She further testified that nobody in the hallway asked to enter the courtroom. The court officer explained that "[i]t was like they were just standing there waiting, and this was before I took their phones, and then I announced—I said, 'it should be soon, let me take your phones so there's not a big rush.'" The court officer acknowledged that when people are waiting to enter the courtroom they usually sit on the bench across the hallway and, thus, the persons in the hallway that morning may also have been waiting for permission to enter:

"Q: So would it be fair to say that they assumed

that until you give them affirmative permission to come in the courtroom that they have to stay out?

“A: I assume, but I can’t be sure.

“Q: Okay. And maybe not you giving them permission but some court officer giving them permission to enter?

“A: I—I would assume.”

Two other court officers who were stationed inside the courtroom that morning also testified. One officer stated that the courtroom was open by 8:50 a.m. and that he brought in the jury at approximately 9:00 a.m. Although he testified that he did not prevent anyone from entering the courtroom or observe another officer do so, he acknowledged that he “ha[d] no idea what happened at the front door.” The other officer testified that, upon instruction from the judge, he opened the doors between 8:45 and 8:50 a.m. and informed the court officer stationed in the hallway that the courtroom was open and the public could enter. At that moment, he noticed two people sitting on the bench outside the courtroom door and told them they could enter, but they responded that they were attending a different trial next door. The court officer then resumed his position inside, next to the bench and witness stand. He did not lock the door or have knowledge of anyone else doing so and did not himself observe another court officer prevent anyone from entering. He acknowledged that he could not see the hallway from his position but could see shadows or some people standing outside through the door window. After the court stopped the testimony and ordered the public to be admitted, the officer observed approximately 20 to 25 people enter the courtroom.

The prosecutor called three witnesses associated with the District Attorney’s Office who attended the trial that morning strictly as observers. Another prosecutor who was not assigned to defendant’s case testified that he arrived around 10:00 a.m. and noticed a group of people waiting outside the courtroom in the hallway. Upon his request, court staff permitted him to enter an anteroom immediately past the front doors but outside the courtroom to observe the trial through a crack in the inner doorway. He saw a witness on the stand and, after about five minutes, sent the following text to the prosecutor inside: “Is it a problem that the defendant’s family was kept out of the courtroom for the nonmaterial witness? Court staff is buzzing

out here about it.” After the doors were opened, people began entering the courtroom and the prosecutor followed them in. Next, a summer intern in the District Attorney’s Office testified that she freely entered and exited the courtroom that morning. Specifically, when she first arrived just before 9:00 a.m. she entered the courtroom and observed someone being arraigned. She then exited and returned a few minutes later—walking straight by the officer at the door—and sat inside before the witness took the stand. She acknowledged that others had to line up and surrender their phones at the desk outside the courtroom doors before entering. Lastly, a Syracuse police officer testified that he arrived just before 9:00 a.m., before the trial commenced, and observed the victim’s stepmother and other family members sitting on the bench outside the courtroom. Because he knew the stepmother, he approached and spoke with her briefly, telling her he was going to observe the trial. He then walked into the courtroom and saw the witness take the stand.

Defendant called four witnesses who had been waiting outside the courtroom the prior morning. Defendant’s witnesses generally testified that they were aware of the court’s policy against entering and exiting the courtroom during witness testimony because they were in court on the prior days when the court announced the policy. Two of the victim’s family members testified that a court officer told them they could not enter the courtroom. Those witnesses also testified that, while they were waiting in the hallway, the only people they saw enter the courtroom were well-dressed White individuals who looked like interns. One of the victim’s family members testified that she waited in the hallway to be “respectful.” She further testified she believed the court staff knew she would want to come into the courtroom as soon as it was open and waited for their permission to enter. Defendant’s friend testified it was her understanding that the court officer collecting phones would tell her whether she could enter the courtroom at the time she handed in her phone. Defendant also called a police sergeant who arrived in the hallway after the witness testimony began. She testified that she peeked in the courtroom, saw that a witness was testifying, and kept people in the hallway because she did not receive “any indication from the courtroom that the doors [we]re open to the public.”

The court, defendant and the attorneys then viewed the hallway surveillance video. Although it has no audio, the video

clearly depicts, among other things, that beginning at 8:58 a.m. a person arrived and sat on the bench directly across from the courtroom doors and the court officer assigned to collect phones. At approximately 9:06 a.m., several mostly African American individuals began arriving and approaching the court officer standing at a table directly outside the courtroom doors. After turning in their phones to the officer, they sat and stood in the hallway directly across from the courtroom. Eventually at around 10:20 a.m., court officers waived in the crowd that was waiting. The White individuals, along with two or three African American individuals dressed in business attire, walked around the court officers standing in front of the doors and entered without further detainment while the court officers screened the African American individuals who were waiting near the bench with handheld metal detectors and checked their bags before permitting them entry to the courtroom.*

Following the hearing, the trial judge denied defendant's motion for a mistrial, holding that the court neither explicitly nor implicitly excluded members of the public during the testimony of a witness and that court officers did not exclude anyone from the courtroom when a witness was not testifying. The trial judge determined that defendant's witnesses at the hearing did not try to gain access to the courtroom and instead waited outside, apparently assuming that access was not permitted. Thus, defendant was not deprived of his constitutional right to a public trial.

C.

The jury convicted defendant on both counts. The Appellate Division affirmed (206 AD3d 1580 [4th Dept 2022]). As relevant here, unlike the trial judge, the Appellate Division determined that "people were excluded from the courtroom" (*id.* at 1582). However, because the exclusion was caused "not by any affirmative act of the court, but instead by a confluence of factors outside the court's knowledge and control," the trial court did not violate defendant's right to a public trial (*id.*). Although the Appellate Division "d[id] not approve of the [trial] court's standing policy of essentially locking the courtroom doors while witnesses are on the stand," it did not address the issue because defendant failed to object at trial or challenge

* There is no indication in the record that the trial judge was aware anyone was waiting in the hallway until he was so informed by the prosecutor.

the policy before the Appellate Division (*id.* at 1581). A Judge of this Court granted leave to appeal (39 NY3d 941 [2022]). We now reverse.

II.

Defendant claims that his Sixth Amendment right to a public trial was violated by exclusion of members of the public because the trial judge failed to put in place procedures to ensure that those who timely arrived in compliance with the judge's policy were permitted entry. We conclude that the exclusion of members of the public found by the Appellate Division was a direct result of the trial judge's affirmative acts and his staff's implementation of the general policy which, in turn, violated defendant's right to a public trial.

A.

The Sixth Amendment right to a public trial is a "fundamental privilege of the defendant in a criminal prosecution" (*People v Martin*, 16 NY3d 607, 611 [2011]).

" ' "The requirement of a public trial is for the benefit of the accused; that the public may see [that the accused] is fairly dealt with and not unjustly condemned, and that the presence of interested spectators may keep [the accused's] triers keenly alive to a sense of their responsibility and to the importance of their functions' " ' " (*Waller v Georgia*, 467 US 39, 46 [1984], quoting *Gannett Co. v DePasquale*, 443 US 368, 380 [1979], in turn quoting *In re Oliver*, 333 US 257, 270 n 25 [1948], in turn quoting 1 T. Cooley, *Constitutional Limitations* at 647 [8th ed 1927]).

"In addition to ensuring that judge and prosecutor carry out their duties responsibly, a public trial encourages witnesses to come forward and discourages perjury" (*id.*). Under rare circumstances, this fundamental right may give way to "other rights or interests" (*Waller*, 467 US at 45). However, "the presumption of openness is not easily overcome" (*People v Colon*, 71 NY2d 410, 415 [1988]). In sum, "an affirmative act by the trial court excluding persons from the courtroom" without lawful justification constitutes a violation of the defendant's right to a public trial (*People v Peterson*, 81 NY2d 824, 825 [1993]). And in such case, reversal of the defendant's conviction is mandated because it "is the only realistic means

to implement this important constitutional guarantee” (*see Martin*, 16 NY3d at 613; *see also People v Jones*, 47 NY2d 409, 417 [1979]; *People v Jelke*, 308 NY 56, 67-68 [1954]).

B.

It is undisputed that the trial judge applied his general courtroom closure policy at defendant’s trial that no one could enter or exit during testimony and that the judge delegated the policy’s implementation to the court officers. Unquestionably, the officers did not properly execute that policy here, as several members of the public who appeared at the courtroom doors before the witness’s testimony started were excluded until after the prosecutor’s direct examination and the first minutes of the cross-examination. Thus, the Appellate Division properly concluded that members of the public “were excluded from the courtroom” (206 AD3d at 1582). However, contrary to the Appellate Division’s further conclusion, the exclusion resulted from at least two affirmative acts by the trial judge—the adoption of the policy and its delegation to his staff—and thus the judge caused the unjustified exclusion.

As with all matters concerning the administration of the courtroom, the trial judge was responsible for properly implementing the policy under its “inherent authority and the affirmative obligation to control conduct and decorum in the courtroom, in order to promote the fair administration of justice for all” (*People v Nelson*, 27 NY3d 361, 367 [2016]; *see Jelke*, 308 NY at 63). The trial judge here recognized the same and relied on this power over courtroom administration as the source of his authority for adopting his general policy. When the judge delegated implementation of the policy to the court officers they, in turn, acted at his direction as his agents. The Sixth Amendment requires trial courts “to take every reasonable measure to accommodate public attendance at criminal trials” (*Presley v Georgia*, 558 US 209, 215 [2010]), and the court was required to do more than the record reveals here such that its policy was properly implemented. The judge’s failure to do so caused an exclusion of members of the public without justification and, therefore, violated defendant’s right to a public trial (*see e.g. People v Moise*, 110 AD3d 49, 52 [1st Dept 2013]).

That no officer physically prevented anyone from entering at a time when a witness was not testifying misses the point that members of the public were excluded as a direct consequence

of the implementation of the judge's policy. Contrary to the judge's suggestion, it was not the responsibility of the members of the public to ask the officers if the courtroom was open. Indeed, under the circumstances why would they? Logically, once they turned in their phones or adjusted their attire as directed by the court officer standing in front of the courtroom doors, they would have rightly expected, and waited, until further instruction as to whether and when they could enter.

This did not escape the only court officer stationed outside the courtroom, who testified that she assumed persons waiting in the hallway would have understood that they could not enter without affirmative permission. Her fellow officer apparently labored under the same assumption because upon opening the courtroom that morning, he immediately informed two people waiting directly across the hallway that they could enter. Furthermore, as the surveillance video clearly depicts, the individuals waiting across the hallway were ultimately allowed entry only after undergoing a security check, which suggests a shared understanding that they could not simply walk through the doors into the courtroom after turning in their phones. Given these facts and the officers' failure to notify those waiting in the hallway that they could enter—for example, by verbal communication or placing a sign indicating the courtroom was open—those individuals were unjustifiably excluded from the courtroom at a time when the courtroom should have been open.

The prosecution's reliance on *Peterson* is misplaced. In *Peterson*—and *Colon* (71 NY2d 410) and *People v Glover* (60 NY2d 783 [1983]) cited therein—no person was excluded pursuant to the court's rule (see *Peterson*, 81 NY2d at 825 [holding that “(a) denial of the public trial right requires an affirmative act by the trial court excluding persons from the courtroom,” and a “brief and inadvertent continuation of a proper courtroom closing, which was not noticed by any of the participants, did not violate defendant's right to a public trial”]; *Colon*, 71 NY2d at 416 [holding that locking the courtroom doors during the jury charge does not constitute a “closure” because “the trial court's action . . . does not explicitly exclude anybody”]; *Glover*, 60 NY2d at 785 [holding that closure of the courtroom did not deny defendant's right to a public trial where “(t)here (wa)s no indication that the court excluded or intended to exclude any member of the public who sought to attend the trial”]). Here, members of the public were in fact excluded, and as we have

explained above, that exclusion tracks back to the trial judge's policy.

Our decision on this issue renders it unnecessary for us to address defendant's remaining claims. And although we have considered defendant's challenge to the public exclusion based on the policy as implemented, our holding should not be interpreted as an endorsement of the trial judge's general policy prohibiting ingress and egress during witness testimony. As in *Colon*, we have no occasion, at this time, to consider "the propriety of routinely locking the doors during other portions of the trial" (71 NY2d at 417).

III.

We conclude that, because the trial judge adopted the policy of routinely prohibiting entry to the courtroom, he ultimately bore responsibility for its proper implementation. The misapplication of the judge's policy led to an unjustified exclusion of the public and therefore violated defendant's right to a public trial.

Accordingly, the order of the Appellate Division should be reversed and a new trial ordered.

GARCIA, J. (concurring). I agree that, under the unique facts of this case, defendant's right to a public trial was violated, and that defendant is therefore entitled to a new trial. Defendant did not preserve an objection to the propriety of the trial court's general policy prohibiting spectator traffic during witness testimony, and therefore the issue of whether that policy is a "reasonable restriction upon the time and manner of public access to the trial" is not before us (*see People v Colon*, 71 NY2d 410, 416-417 [1988]). I would hold, however, that the court's implementation of that policy here resulted in an unconstitutional closure.

"Trial courts have the discretion to exclude the public, although they must exercise that discretion 'sparingly . . . and then, only when unusual circumstances necessitate it' " (*People v Jones*, 96 NY2d 213, 216 [2001], quoting *People v Martinez*, 82 NY2d 436, 441 [1993]). The court must be "careful enough" to ensure "that the defendant's right to a public trial is not being sacrificed for less than compelling reasons" (*People v Peterson*, 186 AD2d 231, 232 [2d Dept 1992], *affd* 81 NY2d 824 [1993], quoting *People v Jones*, 47 NY2d 409, 414-415 [1979]). The record from the hearing below establishes

that, due to a miscommunication in the court officers' enforcement of the court's policy, officers prevented the public from entering the courtroom during a period that the courtroom should have been open pursuant to the court's policy. That exclusion was more than an "inadvertent lapse" resulting in a "continuation of a proper courtroom closing" (see *People v Peterson*, 81 NY2d 824, 825 [1993]). Rather, court personnel affirmatively kept out members of the public before the proceedings began and that closure continued for a significant period. The closure, though mistaken, cannot be deemed inadvertent.

Chief Judge WILSON and Judges CANNATARO, TROUTMAN and HALLIGAN concur; Judge GARCIA concurs in result in an opinion, in which Judge SINGAS concurs.

Order reversed and a new trial ordered.

[214 NE3d 472, 193 NYS3d 704]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARK
A. HARTLE, Appellant.

Argued February 9, 2023; decided April 20, 2023

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered March 4, 2021. The Appellate Division affirmed an order of St. Lawrence County Court (Jerome J. Richards, J.; op 64 Misc 3d 1233[A], 2019 NY Slip Op 51395[U] [2019]), which had denied, without a hearing, defendant's motion pursuant to CPL 440.10 to vacate a judgment of that court (Derek Champagne, J.) convicting him of rape in the first degree (four counts), criminal sexual act in the first degree (four counts), sexual abuse in the first degree (four counts), rape in the third degree (four counts), criminal sexual act in the third degree (five counts) and sexual abuse in the third degree (three counts).

People v Hartle, 192 AD3d 1199, affirmed.

HEADNOTE

Crimes — Vacatur of Judgment of Conviction — Newly Discovered Evidence — Denial of Motion without Hearing

County Court did not abuse its discretion in summarily denying defendant's CPL 440.10 motion to vacate a judgment convicting him of multiple counts of rape and sexual abuse of a 15-year-old victim where the evidence proffered as "newly discovered" consisted of incriminating text messages and explicit photographs exchanged with the victim that defendant deleted before his arrest and never sought to retrieve before trial. CPL 440.10 (1) (g) authorizes vacatur of a conviction on the basis of newly discovered evidence which could not have been produced by the defendant at the trial even with due diligence on their part and which would create a probability that had it been received at trial the verdict would have been more favorable to the defendant. Here, the evidence proffered was far from newly discovered—it was evidence defendant knew about, was involved in the creation of, and believed he destroyed before trial in an effort to conceal criminal activity. Defendant could not now claim that because certain technology was not available before trial to recover the incriminating texts and photographs that he attempted to destroy, that material, now recovered, somehow qualified as newly discovered evidence. Nor did defendant show that the evidence could not have been produced at the trial even with due diligence on his part. Nowhere in defendant's conclusory submissions was there any showing that the evidence was inaccessible before trial, or any indication that defendant tried to obtain it. Defendant knew before trial that the messages were not recovered from the victim's cell phone but took no action in response, such as seeking to obtain the materials from his cell phone service provider or a forensic examination of his phone or the victim's phone.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Trial §§ 1563, 1572.
CARMODY-WAIT 2d Postjudgment Motions §§ 205:17,
205:19, 205:31.
LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) § 24.11.
MCKINNEY'S, CPL 440.10.
NY JUR 2d Criminal Law: Procedure §§ 3475–3477.

ANNOTATION REFERENCE

See ALR Index under Newly Discovered Evidence; Vacation and Modification of Judgment or Verdict.

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POINTS OF COUNSEL

D.J. & J.A. Cirando, PLLC, Syracuse (*John A. Cirando, Brandon R. White* and *Rebecca L. Konst* of counsel), for appellant. I. Defendant was denied effective assistance of counsel. (*Matter of Rain*, 162 AD3d 1458; *People v Abar*, 99 NY2d 406; *People v Harris*, 99 NY2d 202; *People v Longtin*, 92 NY2d 640; *People v Ortiz*, 76 NY2d 652; *People v Watson*, 26 NY3d 620; *People v Alicea*, 61 NY2d 23; *People v Gomberg*, 38 NY2d 307; *People v Mattison*, 67 NY2d 462; *People v Solomon*, 20 NY3d 91.) II. The text messages and photographs are newly discovered evidence, warranting a new trial. (*People v Salemi*, 309 NY 208; *People v Hargrove*, 162 AD3d 25; *People v Williams*, 81 NY2d 303; *People v Jackson*, 29 AD3d 328; *People v Wood*, 94 AD2d 849; *People v Reynoso*, 73 NY2d 816; *People v Jones*, 24 NY3d 623; *People v Bailey*, 144 AD3d 1562; *People v Callace*, 151 Misc 2d 464; *People v Craft*, 123 AD2d 481.)

Gary M. Pasqua, District Attorney, Canton (*Matthew L. Peabody* and *Sasha Mascarenhas* of counsel), for respondent. I. Defendant has failed to establish that potential conflict operated on or affected defense. (*People v Wright*, 27 NY3d 516; *People v Jones*, 24 NY3d 623; *People v Ortiz*, 76 NY2d 652; *People v Sanchez*, 21 NY3d 216; *People v Gomberg*, 38 NY2d 307; *People v Mattison*, 67 NY2d 462; *People v Solomon*, 20

NY3d 91.) II. As a factual matter, the text messages do not constitute newly discovered evidence as they were in existence and in the possession of defendant prior to trial. (*People v Priori*, 164 NY 459; *People v Salemi*, 309 NY 208; *People v Hults*, 76 NY2d 190; *People v Hicks*, 6 NY3d 737; *People v Thibodeau*, 31 NY3d 1155.)

OPINION OF THE COURT

GARCIA, J.

Defendant, convicted by a jury of multiple counts of rape and sexual abuse of a 15-year-old victim and sentenced to 54 years in prison, asks this Court to deem the summary denial of his motion to vacate his conviction an abuse of discretion. Because the evidence proffered by defendant as “newly discovered” consists of incriminating text messages and explicit photographs exchanged with the victim that defendant deleted before his arrest and never sought to retrieve before trial, we decline to do so and affirm the summary denial of defendant’s CPL 440.10 motion.

Defendant, 49 years old at the time, was charged in a 31-count indictment with rape and other sex crimes after the 15-year-old daughter of defendant’s close friend accused him of raping her repeatedly over several months in 2014. When defendant was arrested, the police secured his cell phone and kept the phone through the end of trial. The police also performed a forensic examination of the victim’s cell phone and provided the results, including more than 1,200 text messages, to defendant. No exchanges with defendant were recovered. Although defendant and his counsel engaged in extensive pre-trial litigation, they never sought to inspect either the victim’s cell phone or defendant’s cell phone, never informed the People of any relevant evidence on either phone, never filed a motion to compel the production of cell phone evidence, and never issued a subpoena to defendant’s cell phone service provider.

The People and defendant’s counsel engaged in plea negotiations, and the People ultimately offered defendant a plea bargain pursuant to which he would receive a five-year sentence in exchange for a guilty plea to one count of first-degree sexual abuse. Defendant rejected this offer and proceeded to trial, where the defense theory was that no sexual contact occurred. The victim testified and defense counsel conducted a thorough cross-examination. Defense counsel made ample use of the evidence obtained from the victim’s cell phone

during this examination, referring to text messages she exchanged with her brother and a close friend and using these messages to question the victim about why she did not inform anyone of defendant's alleged conduct at the time the incidents occurred. Defense counsel did not ask the victim whether she and defendant exchanged any text messages or photographs or whether she had deleted any such communications. Defendant called no witnesses.

At the close of the People's case, the trial court dismissed two counts of criminal sexual act in the first degree in response to defendant's motion arguing that the People had failed to prove forcible compulsion. During summation, defense counsel argued that "there was no corroboration" for the victim's allegations and that her testimony was "the story of an unsophisticated person trying to deceive." The jury convicted defendant on all remaining counts. Defendant was sentenced to 54 years of imprisonment to be followed by 10 years of post-release supervision, which was later reduced to 42 years and 10 months to 50 years pursuant to statute. Defendant appealed, and the Appellate Division affirmed his conviction (*People v Hartle*, 159 AD3d 1149 [3d Dept 2018]). A Judge of this Court denied leave to appeal (31 NY3d 1082 [2018]).

Several years later, defendant moved to vacate his conviction pursuant to CPL 440.10 on two grounds, alleging ineffective assistance of counsel and the discovery of new evidence. Defendant's new evidence claim was based on the recovery of previously deleted text messages and photographs obtained through a forensic retrieval process, called "rooting," that he asserted was not available at the time of trial. Defendant submitted a letter from appellate counsel, affirmed by trial counsel, stating that at the time of trial, no photographs or messages between defendant and the victim were found on the victim's phone, and so trial counsel's "belief was that if any photographs or messages [had] been on the cellphone they had to have been deleted" and that "neither [attorney] knew of any type of technology that would be able to retrieve such deleted information." Defendant also submitted affidavits and reports from a specialist in "the forensic examination of digital services," describing his unsuccessful attempts in 2017 to perform the rooting procedure of defendant's cell phone to recover the deleted evidence and his ultimate successful completion of the rooting procedure following an update to the software in 2018. Defendant included an affidavit from his mother describing

conversations she had with Verizon, defendant's cell phone service provider, attempting to obtain the deleted messages.

During a conference before County Court regarding defendant's motion, after the People asked defendant for additional materials in advance of their responsive papers, defense counsel suggested that he was entitled to examine the victim's phone. County Court echoed counsel's interest in understanding the scope of evidence on the victim's phone and suggested that the People contact the victim to ask her about the recovered messages and why they did not appear on her phone. The People declined to do so, later explaining that they bear no burden on a CPL 440.10 motion and "it's not our practice on a 440 collateral attack to contact a child victim and cross-examine them."*

County Court subsequently denied defendant's motion without a hearing (*People v Hartle*, 64 Misc 3d 1233[A], 2019 NY Slip Op 51395[U] [St. Lawrence County Ct 2019]). The court rejected defendant's claim of newly discovered evidence, explaining that the letter "affirmed by trial counsel is conclusory in nature and fails to demonstrate due diligence on trial counsel's part to confirm that retrieval of the deleted media was truly not possible . . . in 2015," that the expert affidavit and report "are similarly flawed, as they fail to address efforts made at retrieval during the time of trial," and that "there is no indication that trial counsel made effort[s] to obtain the material from defendant's cell phone service provider" (2019 NY Slip Op 51395[U], *3). Moreover, County Court rejected the "portrayal of the recovered photographs and text messages as newly discovered evidence" because defendant "knew that the media existed prior to trial," "he actively endeavored to delete the evidence from his cell phone," and "was part and parcel to the exchange, and, as such, he knew full well of the communications and the factual information contained therein" (*id.*). County Court faulted defendant for seeking to use material "initially lost as a result of defendant's spoliation of evidence

* The dissent's assertion that defendant was entitled to a hearing merely because "the victim's cell phone . . . was never produced for further forensic examination by the defense" is incorrect (dissenting op at 52 n 4). Before trial, defendant was provided with a copy of the entire contents of defendant's phone. Defendant never requested to inspect the phone before trial. Defendant's filing of a CPL 440.10 motion did not entitle him to access the victim's phone years after his conviction. The dissent's suggestion that it does is indeed a "burden of production contrary to the statutory language" (dissenting op at 46).

. . . to his benefit” and held that, “[h]aving been found guilty after trial, defendant should not now be permitted to rely upon material he previously deleted in an effort to cover up his criminal conduct” (2019 NY Slip Op 51395[U], *4).

The Appellate Division affirmed, explaining that “[t]o hold otherwise would create the rule that a defendant can destroy evidence he or she deemed inculpatory and then subsequently benefit from advances in technology to resurrect that evidence if it later appears beneficial” (192 AD3d 1199, 1203 [3d Dept 2021]). A Judge of this Court granted leave to appeal, and we now affirm (37 NY3d 1027 [2021]).

CPL 440.10 (1) (g) empowers a trial court to vacate a conviction on the basis of newly discovered evidence

“which could not have been produced by the defendant at the trial even with due diligence on his part and which is of such character as to create a probability that had such evidence been received at the trial the verdict would have been more favorable to the defendant; provided that a motion based upon such ground must be made with due diligence after the discovery of such alleged new evidence.”

The burden is on the defendant on a CPL 440.10 motion; as we have explained previously, “the statute is plain that the initial failure by a defendant to carry his or her burden of coming forward with sworn allegations substantiating the essential facts in the 440 motion does not shift the burden to the People in their responsive pleadings” (*People v Wright*, 27 NY3d 516, 522 [2016]). We review a trial court’s summary denial of such a motion for abuse of discretion (*see People v Jones*, 24 NY3d 623, 630 [2014]). County Court did not abuse its discretion in denying defendant’s motion without a hearing.

As County Court determined, the evidence proffered is far from newly discovered—it is evidence the defendant knew about, was involved in the creation of, and believed he destroyed well before trial in an effort to conceal criminal activity. As defendant affirmed, he “deleted the photographs and/or text messages because [he] did not want anyone to see them.” This is unsurprising given that the material, including nude photographs he took of the victim, was compelling evidence of his sexual contact with a minor. Defendant cannot now claim that because certain “technology” was not available to recover the incriminating texts and photographs that he attempted to destroy, that material, now recovered, somehow qualifies as “newly discovered evidence.”

Nor has defendant met CPL 440.10 (1) (g)'s due diligence prong, which requires that defendant show that the evidence could not have been produced at the trial even with due diligence on the part of defendant. Nowhere in defendant's conclusory submissions is there any showing that the evidence was inaccessible before trial, or any indication that defendant tried to obtain it. Defendant received the State Police report of the evidence extracted from the victim's cell phone well before trial, at which point defendant was aware that the messages were not recovered from her device. Defendant took no action in response; for example, he did not seek to obtain the materials from his cell phone service provider or a forensic examination of his phone or the victim's phone. Rather, he used the absence of evidence corroborating the victim's testimony to his advantage, pursuing a trial strategy of actual innocence instead of alerting the People to potential evidence that would have essentially proved his guilt of certain crimes, both charged and uncharged.

The assertions in defendant's papers—from his attorneys, who state they did not believe the text messages were recoverable; from his mother, who claims she tried to call Verizon and ask for the deleted messages; and from defendant himself, who now represents that it was “everyone's belief that such deleted material could not be recovered”—are all inadequate, conclusory, and self-serving. Because the statute's focus is on “the evidence's *availability* at the time of trial” (dissenting op at 50-51), it is incumbent upon defendant to show an effort to obtain that evidence before trial. The existence of rooting technology that enabled the recovery of deleted messages on defendant's phone in 2018 is not evidence that no method existed to recover these messages in 2015. Nor has defendant made any representation as to the ability, at that time, of defendant's cell phone service provider to retrieve messages that had been so recently deleted. Defendant's affidavit states that “[t]he photographs and text messages demonstrate that [the victim] did not testify truthfully”—an argument his counsel advanced at trial. With the knowledge that he had, defendant could, of course, have cross-examined the victim at trial regarding whether she had exchanged text messages or photographs with defendant—he simply chose not to. Failure of his trial strategy does not permit defendant to resurrect his communications with the victim as newly discovered evidence.

This is not hypothetical case A (dissenting op at 49, 50 [defendant convicted of murder where decedent left a suicide note

later hidden by a third party]) or B (*id.* at 49, 50 [defendant sees the suicide note but could not find it after he was charged with decedent's murder]). There are no “novel questions” here, nor are we concerned with the “outer limits of a proposed legal rule” (dissenting op at 47, 49 n 2). Rather, we apply our established approach to collateral attacks on a verdict brought pursuant to CPL 440.10 to a record demonstrating that before his arrest for sexually assaulting the 15-year-old victim, defendant deleted incriminating evidence of sexual contact with her and never sought to retrieve that deleted information before trial. As a result, he failed to meet his burden under CPL 440.10 and the trial court did not abuse its discretion in denying the motion without a hearing.

We have considered defendant's claim of ineffective assistance of counsel and hold that it is meritless (*see Wright*, 27 NY3d at 522). County Court did not abuse its discretion in denying defendant's motion pursuant to CPL 440.10 (1) (h) without a hearing.

Accordingly, the order of the Appellate Division should be affirmed.

RIVERA, J. (dissenting). Defendant Mark Hartle moved pursuant to CPL 440.10 (1) (g) for a post-conviction hearing to consider whether he was entitled to a new trial based on newly discovered evidence consisting of previously deleted text messages and photographs that he alleged were recoverable only with the use of technology developed after judgment. Defendant relied, in part, on a digital forensic expert's report which explained that, after an initial postjudgment attempt to recover the material failed, the expert eventually succeeded in recovering the material only after the software that he used was updated. That report, along with the other documents proffered with defendant's motion, entitled defendant to a hearing on whether the evidence was newly discovered and, if so, whether he acted with due diligence in moving for relief and established a probability that admission of the evidence would have resulted in a more favorable verdict.

The majority creates a due diligence discovery standard and burden of production contrary to the statutory language in order to deprive defendant of this opportunity, which undermines the purpose of CPL 440.10 (1) (g) and the truth-seeking function of our legal system. Therefore, I dissent.

I.

After his conviction of several counts of rape, criminal sexual act, and sexual abuse involving a minor, defendant moved, pursuant to CPL 440.10 (1) (g) and (h), for a post-conviction hearing based on newly discovered evidence and ineffective assistance of counsel. Although I agree with the majority that County Court properly denied defendant's motion to vacate the judgment on the latter ground, the court should have granted a hearing on defendant's claim of newly discovered evidence that he alleged showed the victim's consent and negated the forcible compulsion element of several of the counts. The Appellate Division affirmed the denial of the motion without a hearing, agreeing with County Court that the evidence proffered was not newly discovered because defendant knew it existed before trial (*see* 192 AD3d 1199, 1202-1203 [3d Dept 2021]). The Court reasoned that holding otherwise would permit a defendant to destroy inculpatory evidence and use technological advances to "resurrect" that same evidence if they later determined that the evidence would be "beneficial" (*id.* at 1203). Neither ground justifies denying defendant a hearing.

II.

This appeal presents two novel questions concerning the definition of "new evidence" under CPL 440.10 (1) (g): first, whether evidence that is inaccessible at the time of trial, but later recovered postjudgment through the use of new technology, is "[n]ew evidence [that] has been discovered"; and, second, whether defendant's own destruction of that same evidence before trial forecloses post-conviction relief. A related subsidiary question is how a defendant's knowledge of the existence of the evidence prior to the verdict informs resolution of these two core questions.

Beginning with the statutory language (*see Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 583 [1998]), CPL 440.10 (1) (g) provides that a defendant may seek to vacate a judgment of conviction where

"[n]ew evidence has been discovered since the entry of a judgment based upon a verdict of guilty after trial, which could not have been produced by the defendant at the trial even with due diligence on

[their] part and which is of such character as to create a probability that had such evidence been received at the trial the verdict would have been more favorable to the defendant; provided that a motion based upon such ground must be made with due diligence after the discovery of such alleged new evidence.”

As is clear from the language, evidence falls within the scope of this provision if three elements are satisfied: (1) the evidence is discovered after trial and entry of judgment; (2) the defendant could not have produced the evidence at trial “even with due diligence” in trying to obtain it; and (3) there is “a probability” that the evidence would have led to a “more favorable” verdict for the defendant.¹

Turning to the first question, CPL 440.10 (1) (g), by its plain terms, applies regardless of whether the evidence existed at the time of trial because the statute requires only that the evidence could not have been “produced . . . at trial,” meaning that the defendant could not have proffered that evidence. Put a different way, if a change in circumstances enables a defendant to produce material evidence that the defendant could not access at trial, the defendant may argue postjudgment that the evidence has been newly discovered, even if the defendant knew that the evidence existed before or during trial. Contrary to the majority’s view, there is no justifiable distinction between evidence that did not exist before trial and evidence a defendant knew existed at one time but had no way to access for use at trial. In both scenarios, the defendant could not put the evidence before the trier of fact for it to weigh in assessing whether the prosecution has proved the defendant’s guilt beyond a reasonable doubt.

This interpretation is further supported by the statute’s lack of a due diligence requirement for actually producing the evidence at trial, although requiring that a defendant act diligently to file the motion once the evidence is discovered. Rather, the statute requires only that a defendant prove, counterfactually, “that . . . [the evidence] *could not have been produced* by the defendant at the trial *even with due diligence*” (CPL 440.10 [1] [g] [emphasis added]). The statute thus focuses on the availability of the evidence for use at the time of trial,

1. The statutory standard is derived from our common-law rule (see *People v Salemi*, 309 NY 208, 215-216 [1955]; *People v Priori*, 164 NY 459, 472 [1900]).

rather than what would necessarily constitute a defendant's futile attempts at securing it. A few hypotheticals illustrate the proper application of the statute.²

Hypothetical A: A jury convicts a defendant for murdering their employer. Defendant maintains their innocence. After trial, the defendant learns that the decedent left a suicide note which the decedent's spouse hid in order to collect on their life insurance policy. The note existed at the time of trial, but defendant did not know of it or even have reason to consider that this was a death by suicide. Thus, the defendant could not have produced the evidence at trial and, because this creates "a probability" that the jury would have acquitted the defendant of murder, the note is "[n]ew evidence" under CPL 440.10 (1) (g).

Hypothetical B: Assume that the defendant actually saw the note before the death of the employer, but could not produce evidence of the note's existence and nothing else suggests that the death was a suicide. If the note is then found after entry of judgment, the note is evidence within the scope of CPL 440.10 (1) (g), even though it existed at the time of trial and defendant knew of its existence but could not produce it.

Before addressing the second question presented on this appeal regarding defendant's destruction of the evidence, it is necessary to consider how the statute applies to destroyed evidence generally. Obviously, it takes no huge leap of logic to realize that evidence cannot be produced if it is not accessible, regardless of whether it was destroyed. While in the past, destroyed evidence was likely lost for all time, the proliferation of digital communication and technological advancements that permit recovery of deleted digital materials increases the possibility that more evidence will fall within the scope of CPL 440.10 (1) (g). There is much benefit from this new accessibility. Indeed, consideration of such evidence through new technology furthers the fact-finding process and society's interest in avoiding wrongful convictions and putting to rest unsubstanti-

2. The majority makes the irrelevant point that my hypotheticals are factually distinguishable from this appeal (*see* majority *op* at 45-46). Hypotheticals are effective thought exercises to test the premise and outer limits of a proposed legal rule and when deployed in a judicial opinion they have the added benefit of illustrating the rule in application. Indeed, judges, including United States Supreme Court Justices and members of this Court, lawyers, and educators regularly deploy hypotheticals orally and in writing to illustrate legal doctrine and praxis. We expect litigators to address hypotheticals from the bench during oral arguments for this very reason.

ated claims of innocence (see e.g. *People v Jones*, 24 NY3d 623, 635-636 [2014] [ordering hearing on new forensic DNA method]; *People v Bailey*, 47 Misc 3d 355 [Monroe County Ct 2014] [holding hearing where prosecution contested defendant's claim that change in scientific and medical understanding of so-called shaken baby syndrome was new evidence], *aff'd* 144 AD3d 1562 [4th Dept 2016]; *People v Chase*, 8 Misc 3d 1016[A], 2005 NY Slip Op 51125[U] [Washington County Ct 2005] [holding hearing where prosecution contested defendant's claim that change in scientific understanding of physics of propane dispersal was new evidence]; Innocence Project, *DNA Exonerations in the United States [1989-2020]*, <https://innocenceproject.org/dna-exonerations-in-the-united-states/> [last accessed Feb. 23, 2023]; Kashmir Hill, *The Exoneration Machine*, NY Times, Nov. 24, 2019, § BU at 1, col 1, available at <https://www.nytimes.com/2019/11/22/business/law-enforcement-public-defender-technology-gap.html> [last accessed Feb. 23, 2022]). The narrow view advocated by the prosecution—that CPL 440.10 (1) (g) should be limited to evidence not in existence at the time of trial—is contrary to the broad language adopted by the legislature and would dramatically limit the bases for overturning wrongful convictions.

Returning to hypotheticals A and B, consider what would happen if the decedent's spouse destroyed the note upon finding it, but unbeknownst to them, the decedent saved the text of the note on their computer and—after printing and signing the note—deleted the electronic version. Assume further that the defendant had no knowledge that the note was computer generated or deleted until after the spouse's death, at which point the decedent's children successfully retrieved the computer files, including the note, which they sent to the defendant's lawyer. The defendant may submit this evidence in support of a motion under CPL 440.10 (1) (g), even though the note was destroyed prior to trial. Indeed, regardless of whether the note was recovered by application of software available at the time of trial or with technology developed after the judgment, the result is the same: retrieved data of the note's content is “[n]ew evidence” that the defendant could not have produced at trial (CPL 440.10 [1] [g]).

As this discussion illustrates, the statute does not treat as dispositive the pretrial existence of the evidence, whether or not the defendant knew about it. Instead, what matters is the evidence's *availability* at the time of trial (i.e., whether the de-

fendant could have produced the evidence in time to influence the outcome). For the same reasons that favorable evidence unknown to the defendant and later brought to their attention may be submitted in support of a CPL 440.10 (1) (g) motion, so may evidence known but inaccessible to a defendant be the legal basis for such motion (*see* CPL 440.30 [4] [a]).

III.

Turning to the second question, regarding whether evidence destroyed by a defendant falls within the scope of CPL 440.10 (1) (g), we can first recognize that the evidence may still constitute “[n]ew evidence” if later recovered where the destruction was innocent or mistaken (i.e., without knowledge of its potential exculpatory nature), and not carried out to avoid prosecution. Suppose, for example, a defendant had an extramarital affair during which the couple shared compromising text messages and photographs before deleting them from their respective cell phones. Later, the defendant realized that the data provides the only evidence of an alibi relating to various criminal charges. The lover denied the affair at trial and has since destroyed their cell phone, and no other evidence of the affair existed. If the defendant is able to recover the text messages and photographs with technology developed after their judgment of conviction, the statute permits its consideration as part of a motion to vacate that judgment.

A different case is presented where a defendant deletes digital materials in anticipation of prosecution, such as after questioning during an investigation, or pending trial. The Appellate Division concluded, and the majority also suggests (*see* majority op at 44), that CPL 440.10 (1) (g) should not apply where a defendant destroys inculpatory evidence and subsequently attempts to use it to upset the verdict. I agree that the law should not tolerate such gaming of our criminal legal system and that such conduct is not what the legislature intended when it enacted CPL 440.10 (1) (g). However, I disagree that this conclusion can be made on defendant’s motion without a hearing.³ The proper course in this case would be to hold a hearing so that the court may fully consider, based on the testimony and documentary evidence presented, whether

3. The legislature is of course free to consider whether that policy consideration should not matter in the text of CPL 440.10 (1) (g), which, as written, requires only that a defendant could not have produced the evidence at trial and makes no mention of the reason for the unavailability.

defendant pursued a defense that he had no sexual contact with the victim as his best defense in light of the available evidence, and whether his argument that the evidence is only now recoverable is a contrivance to avoid the consequences of a failed trial strategy in hopes of pursuing a different defense based on lack of forcible compulsion at a new trial (*see Salemi*, 309 NY at 221-222).⁴

IV.

The remaining question presented concerns the minimal showing required for a court to grant a hearing on the motion, a standard which the majority misapprehends. The answer is found in the Criminal Procedure Law and our case law. Under CPL 440.30 (4) (b), a court “may deny” a CPL 440.10 motion “without conducting a hearing if,” *inter alia*, “[t]he motion is based upon the existence or occurrence of facts and the moving papers do not contain sworn allegations substantiating or tending to substantiate all the essential facts.” If that is not the case (and the court does not summarily grant the motion), the court “*must* conduct a hearing” (CPL 440.30 [5] [emphasis added]). In other words, the statute creates a presumption that a hearing will be granted; only in the limited circumstances set out therein may a court avoid that obligation.

Here, the motion court abused its discretion in denying defendant’s motion without a hearing (*see People v Dogan*, 37 NY3d 1007, 1007 [2021]; *People v Wright*, 27 NY3d 516, 520 [2016]; *People v Jones*, 24 NY3d 623, 630 [2014]). Initially, I disagree with the majority’s characterization of defendant’s motion papers as “inadequate, conclusory, and self-serving” (majority op at 45). The papers contained sworn allegations from: (1) trial counsel, both of whom asserted that they did not believe that the deleted materials were recoverable from defendant’s cell phone; (2) defendant’s mother, who stated that on several occasions she requested that the State Police turn over defendant’s cell phone and that defendant’s cell phone provider deliver copies of defendant’s text messages; and, critically, (3) a forensic expert, who stated in two reports and an af-

4. Even if evidence destroyed by a defendant cannot be the basis for a CPL 440.10 (1) (g) motion, the motion should not have been denied here without a hearing since the text messages and photographs were digital correspondence between defendant and the victim and defendant did not destroy the evidence from the victim’s cell phone, which was never produced for further forensic examination by the defense.

fidavit that he was only able to recover the materials from defendant's cell phone after the software that he used to "root" defendant's cell phone had been updated.⁵ The expert's second report, the findings of which he affirmed in his affidavit, stated that, in April 2017 (almost one full year after trial), the rooting software that he used "was designed to be compatible with the make and model of the phone, but was incapable of successfully breaking the security of the device." He explained, however, that although that initial attempt had failed, generally, "[a]s rooting software is continually updated and enhanced, it will . . . be able to break the security of a larger number of older devices that were previously inaccessible." Thus, after the software had been updated, the expert attempted to root the cell phone again in October 2018. This time, he "successfully completed the rooting procedure" in "approximately five minutes" and extracted the deleted text messages and photographs.

The majority's contention that those statements were insufficient to warrant a hearing ignores CPL 440.30 (4) (b)'s allowance for denial of the motion without a hearing only if the moving papers lack "sworn allegations substantiating or tending to substantiate all the essential facts." It is undisputed that the text messages and photographs were deleted; at a minimum, defendant's papers tend to substantiate his claim that they were not recoverable at the time of trial. That was enough to entitle him to a hearing under the statute, which does not require certain proof of the facts on submission.

V.

We are all benefited by getting to the truth. The legislature recognized that core objective of our judicial system with its enactment of CPL 440.10 (1) (g) which allows for consideration of evidence discovered after judgment where such evidence carries a probability of a more favorable outcome for a defendant. The legislature has also limited the circumstances in which a court may deny the motion without a hearing, setting forth specific requirements in CPL 440.30 (4) (b) for a judicial dispo-

5. "Rooting enables users to perform higher privileged functions on a device than are ordinarily possible under regular user mode. . . . The process typically exploits a security flaw in a specific device or operating system and may lead to further security vulnerabilities" (Justin Grover, *Android forensics: Automated data collection and reporting from a mobile device*, 10 Digit Investigation S12, S13-S14 [2013]).

sition on the motion papers. The majority applied a standard that requires more than the legislature has deemed necessary. This of course we cannot do.

Defendant submitted sworn statements and an expert report describing their pre- and posttrial efforts to secure his cellular phone and the materials deleted therefrom and asserting that access to this evidence was possible only by application of post-judgment newly updated technology. Therefore, I would reverse and remit to County Court for a hearing on defendant's motion that the text messages and photographs are new evidence discovered after the judgment of conviction and that the evidence creates a probability of a more favorable outcome for defendant on the counts that require the prosecutor to prove beyond a reasonable doubt defendant's forcible compulsion of the victim.

Judges SINGAS, CANNATARO and TROUTMAN concur; Judge RIVERA dissents in an opinion, in which Chief Judge WILSON concurs; Judge HALLIGAN took no part.

Order affirmed.

[214 NE3d 482, 193 NYS3d 714]

In the Matter of OWNER OPERATOR INDEPENDENT DRIVERS ASSOCIATION, INC., et al., Appellants, v NEW YORK STATE DEPARTMENT OF TRANSPORTATION et al., Respondents.

Argued May 17, 2023; decided June 13, 2023

SUMMARY

APPEAL, on constitutional grounds, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered March 31, 2022. The Appellate Division affirmed a judgment (denominated decision and order) of the Supreme Court, Albany County (Catherine Cholakakis, J.; op 2020 NY Slip Op 34831[U] [2020]), entered in a combined proceeding pursuant to CPLR article 78 and action for declaratory judgment, which had granted defendants'/respondents' motion to dismiss the petition/complaint.

Matter of Owner Operator Ind. Drivers Assn., Inc. v New York State Dept. of Transp., 205 AD3d 53, modified.

HEADNOTE

Carriers — Motor Carriers — Electronic Logging Devices — Inspections of Hours of Service Records — Administrative Search Exception to Warrant Requirement

Warrantless inspections authorized by New York regulations adopting the Federal Motor Carrier Safety Administration rule requiring installation of electronic logging devices (ELDs) in commercial motor vehicles (CMVs) fall within the administrative search exception to the warrant requirement and do not constitute unreasonable searches and seizures under NY Constitution, article I, § 12. Warrantless administrative searches may be upheld where the activity or premises sought to be inspected is subject to a long tradition of pervasive government regulation and the regulatory scheme authorizing the search delineates rules to guarantee the certainty and regularity of application necessary to provide a constitutionally adequate substitute for a warrant. There is a long tradition of commercial trucking being subject to comprehensive regulations. CMV operators therefore have a diminished expectation of privacy in the conduct of that business because of the degree of governmental regulation, and may reasonably be deemed to have relinquished a privacy-based objection to an intrusion that will foreseeably occur incident to applicable regulations. The ELD rule is designed to respond to widespread and long-standing falsification of records and errors under the old system of using paper records to document hours of service. Consequently, the ELD rule is encompassed within the long tradition of pervasive governmental regulation of the commercial trucking industry whose purpose is to ensure the safety of motorists traveling on public highways. Moreover, the scope of the warrantless inspections authorized by the ELD rule is limited to that necessary to further the regulatory scheme governing drivers' hours of service. In addition, the limitations on the data recorded by ELDs and the

scope of the search authorized by the rule meaningfully limit the discretion of the officials performing the search.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Inspection Laws § 15; AM JUR 2d Searches and Seizures §§ 49, 52–53.

CARMODY-WAIT 2d Searches and Seizures § 173:384.

NY Const, art I, § 12.

NY JUR 2d Administrative Law § 128; NY JUR 2d Carriers §§ 28, 39; NY JUR 2d Criminal Law: Procedure §§ 539–540; NY JUR 2d Inspection Laws § 10.

ANNOTATION REFERENCE

Constitutionality, construction, and application of statutes relating specifically to hours of service or other conditions affecting drivers of motor trucks. 120 ALR 295.

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POINTS OF COUNSEL

The Cullen Law Firm, PLLC, Washington, D.C. (*Charles R. Stinson*, admitted pro hac vice, and *Paul D. Cullen, Jr.*, admitted pro hac vice, of counsel), and *Tabner, Ryan & Keniry, LLP*, Albany (*William J. Keniry* of counsel), for appellants. I. New York's administrative search exception does not extend to searches—like those authorized by the electronic logging device rule—designed to uncover evidence of crimes. (*Olmstead v United States*, 277 US 438; *Matter of Doe v Coughlin*, 71 NY2d 48; *People v Onofre*, 51 NY2d 476; *People v Weaver*, 12 NY3d 433; *New York v Burger*, 482 US 691; *People v Burger*, 67 NY2d 338; *People v LaValle*, 3 NY3d 88; *People v Quackenbush*, 88 NY2d 534.) II. Petitioners allege that the electronic logging device rule does not provide the procedural protections demanded by the administrative search exception that would serve as a substitute for a warrant. (*People v Davis*, 156 Misc 2d 926; *People v Reyes*, 154 Misc 2d 476; *Whren v United States*, 517 US 806; *Matter of Carniol v New York City Taxi & Limousine Commn.*, 42 Misc 3d 199; *Los Angeles v Patel*, 576 US 409; *Colateral Loanbrokers Assn. of N.Y., Inc. v City of New York*, 178

AD3d 598; *Matter of Karakus v New York City Dept. of Consumer Affairs*, 114 AD3d 422; *Matter of Patchogue-Medford Congress of Teachers v Board of Educ. of Patchogue-Medford Union Free School Dist.*, 70 NY2d 57; *People v Ingle*, 36 NY2d 413; *Matter of Casalino Interior Demolition Corp. v Martinez*, 29 AD3d 691.) III. Petitioners alleged that the electronic logging device rule authorizes searches that violate article I, § 12 of the New York Constitution, which satisfies the burden required to state a facial challenge to a New York search law. (*Amazon.com, LLC v New York State Dept. of Taxation & Fin.*, 81 AD3d 183; *People v Stuart*, 100 NY2d 412; *People v Viviani*, 36 NY3d 564; *Owner Operator Ind. Drivers Assn. v New York State Dept. of Taxation & Fin.*, 52 Misc 3d 855; *United States v Salerno*, 481 US 739; *Hoffman Estates v Flipside, Hoffman Estates, Inc.*, 455 US 489; *Los Angeles v Patel*, 576 US 409.)

Letitia James, Attorney General, Albany (Kevin C. Hu, Barbara D. Underwood and Jeffrey W. Lang of counsel), for respondents. The electronic logging device rule survives facial constitutional challenge because it allows a reasonable and limited warrantless administrative search. (*Matter of Independent Ins. Agents & Brokers of N.Y., Inc. v New York State Dept. of Fin. Servs.*, 39 NY3d 56; *People v Stuart*, 100 NY2d 412; *Brightonian Nursing Home v Daines*, 21 NY3d 570; *People v Quackenbush*, 88 NY2d 534; *People v Weaver*, 12 NY3d 433; *Terry v Ohio*, 392 US 1; *United States v Maldonado*, 356 F3d 130; *United States v Castelo*, 415 F3d 407; *United States v Dominguez-Prieto*, 923 F2d 464; *United States v Mendoza-Gonzalez*, 363 F3d 788.)

OPINION OF THE COURT

TROUTMAN, J.

Before us is a facial challenge to the constitutionality of New York regulations adopting a rule promulgated by the Federal Motor Carrier Safety Administration requiring the installation of electronic logging devices in commercial motor vehicles. We hold that the warrantless inspections authorized by the regulations fall within the administrative search exception to the warrant requirement and do not constitute unreasonable searches and seizures under article I, § 12 of the State Constitution.

I.

For over 80 years, New York has enforced hours-of-service limitations and record-keeping requirements for commercial

vehicle drivers (*see e.g. People v Yarbrough*, 168 Misc 769, 769-770 [NY City Magistrate's Ct 1938]). The aim of New York's 1937 hours-of-service statute was essentially the same as the aim of our current federal and state regulations: "protect[ing] operators of motor trucks and buses as well as the public generally from the dangers incident to fatigue of drivers" (*Yarbrough*, 168 Misc at 770). Those hours-of-service requirements were "the outgrowth of long and tragic experience with accidents on the highways of this and of other States," since "[t]he fatalities resulting from overwork of motor truck drivers is common knowledge and needs no elaboration" (*id.*).

In 1938, a federal law took effect empowering a predecessor agency of the Federal Motor Carrier Safety Administration (FMCSA) to establish and enforce federal safety standards for commercial motor vehicles (CMVs) and their drivers (*see id.* at 771, citing 49 USC § 301 *et seq.*; *see also* 49 CFR subtitle B, ch III, subch B). To encourage states' cooperation in enforcing these federal safety standards, FMCSA provides grants to states such as New York that incorporate the federal rules into state law and assist in enforcing those rules pursuant to the Motor Carrier Safety Assistance Program (*see* 49 USC § 31102).

The New York Department of Transportation (DOT) is the agency primarily responsible for New York's enforcement of the FMCSA regulations. Its responsibilities include enforcing regulations limiting a CMV operator's maximum number of hours of service (*see* 49 CFR part 395; 17 NYCRR 820.6).

Under the FMCSA regulations adopted by this State, CMV operators must record their hours of service and duty status, in addition to other relevant data, and produce those records for inspection when requested by the police or other authorized official (*see* Transportation Law § 212; 17 NYCRR 820.6, 820.12 [a]). Historically, CMV operators documented this information using paper records or automatic onboard recording devices. However, in 2012, Congress passed legislation requiring the Federal DOT to prescribe regulations requiring CMVs, involved in interstate commerce and operated by drivers subject to the hours-of-service and record-of-duty-status requirements, to be equipped with electronic logging devices (ELDs) (*see* 49 USC § 31137 [a]). An ELD integrates with the vehicle's engine and uses global positioning system (GPS) technology to record, among other things, geographic location, engine hours, and mileage of CMVs, along with the date and time (*see* 49 CFR 395.26). The driver must manually input certain other infor-

mation, including changes in their duty status (e.g., “Off duty,” “Sleeper berth,” “Driving,” and “On-duty not driving”) (*see* 49 CFR 395.8, 395.15). When a driver is on duty, an ELD automatically records a CMV’s geographic location to within a half-mile radius (*see* 49 CFR part 395, subpart B, Appendix A, 4.3.1.6 [c]). When the CMV is operated for personal use, the device must be programmed to leave blank the engine hours and vehicle miles and to degrade the geographic location information captured by the device to within approximately a 10-mile radius (*see* 49 CFR 395.26 [d] [2]).

Upon request by law enforcement personnel during roadside safety inspections, the driver is required to produce and transfer to the officer the ELD hours-of-service records data (*see* 49 CFR 395.24 [d]). This transfer occurs digitally (via web services, email, USB, or Bluetooth) and neither requires the driver to exit the vehicle nor the officer to enter the vehicle (*see* 49 CFR part 395, subpart B, Appendix A, 4.10.1).

The FMCSA promulgated the final ELD rules in 2015, requiring ELDs to be installed and in use by December 18, 2017, with some exceptions (*see* 49 CFR 395.8; *see also* 80 Fed Reg 78292 [2015]). New York adopted the ELD rule as an emergency measure under the State Administrative Procedure Act. The emergency rules were permanently incorporated into New York law on April 9, 2019, and made effective April 24, 2019 (*see* NY St Reg, Apr. 24, 2019 at 39). This made New York the 48th state to adopt the rule (*see id.*).

II.

Prior to commencing this proceeding, petitioner Owner Operator Independent Drivers Association, Inc. (Association), a not-for-profit corporation whose members own and operate CMVs, challenged the federal ELD rule in federal court on various grounds, including that the warrantless inspection of ELD data constituted an unreasonable search and seizure under the Fourth Amendment of the US Constitution. The United States Court of Appeals for the Seventh Circuit rejected the Association’s challenge, holding that the commercial trucking industry was a pervasively regulated industry and therefore, even if the ELD rule constituted a search or seizure, it would be reasonable under the Fourth Amendment’s exception for such industries (*Owner-Operator Ind. Drivers Assn., Inc. v United States Dept. of Transp.*, 840 F3d 879, 892-893 [7th Cir 2016], *cert denied* 582 US 904 [2017]).

The Association then commenced a class action in New York State court, asserting that the federal ELD rule was being improperly enforced prior to its incorporation into state law and that its enforcement violated CMV drivers' rights to due process and to be free from unreasonable searches and seizures under New York's Constitution. Supreme Court granted summary judgment dismissing the complaint (*Owner Operator Ind. Drivers Assn., Inc. v Calhoun*, 62 Misc 3d 909, 924 [Sup Ct, Albany County 2018, Platkin, J.], *appeal dismissed sub nom. Owner Operator Ind. Drivers Assn., Inc. v Karas*, 188 AD3d 1313 [3d Dept 2020]). The court found no evidence that the State was enforcing the ELD rule at that time (*see id.* at 918-921). Instead, the State was conducting roadside inspections under its extant authority to enforce the existing hours-of-service requirements (*see id.*). The court further held that the State's limited roadside inspections of ELDs, for the sole purpose of ensuring compliance with pre-existing hours-of-service requirements, did not constitute unreasonable searches and seizures under New York's Constitution (*see id.* at 922-923).

The Association appealed. Because New York adopted the ELD rule during the pendency of the appeal, the Appellate Division dismissed the appeal as moot (*Karas*, 188 AD3d at 1316).

The Association and three current or former CMV operators (petitioners) then commenced this combined CPLR article 78 proceeding and declaratory judgment action (proceeding) against defendants-respondents DOT and other agencies (respondents) challenging New York's adoption of the ELD rule. Supreme Court granted respondents' motion to dismiss the suit, holding in relevant part that searches authorized by the ELD rule are valid under the exception to the warrant requirement for administrative searches (2020 NY Slip Op 34831[U] [Sup Ct, Albany County 2020, Cholakakis, A.J.]).

The Appellate Division affirmed. The Court held that "commercial trucking is a pervasively regulated industry pursuant to which an administrative search may be justified" and that the ELD rule furthers "a vital and compelling interest" in highway safety (205 AD3d 53, 60 [3d Dept 2022, McShan, J.] [internal quotation marks omitted]).

In reaching that conclusion, the Appellate Division relied on the FMCSA's estimation "that 755 fatalities and 19,705 injuries

occur each year because of ‘drowsy, tired, or fatigued CMV drivers’ ” (*id.* at 60-61, quoting 65 Fed Reg 25540 [May 2, 2000]). The Court further relied on “[t]he factual findings made by the FMCSA in connection with its rulemaking,” which “revealed that the prior system of documenting hours of service through paper records was inadequate due to the widespread and longstanding problem of falsification of such records” (*id.* at 61, citing 65 Fed Reg at 25540, 25558). The Appellate Division emphasized that, “[d]uring the public listening sessions held prior to enactment of the final rule, drivers stated that motor carriers sometimes pressured them to alter their paper records” (*id.* quoting 80 Fed Reg 78292, 78320, 78323, 78325 [Dec. 16, 2015]). The Court further noted the obvious fact that “paper records are also vulnerable to human error” (*id.* citing 80 Fed Reg at 78303).

Petitioners appealed to this Court as of right (*see* CPLR 5601 [b] [1]). We agree with the lower courts that the ELD rule satisfies the administrative search exception to the warrant requirement. And so we modify the order of the Appellate Division solely to declare the ELD rule facially constitutional inasmuch as it does not violate article I, § 12 of the State Constitution.¹

III.

Generally, a party making a facial challenge to a regulation has the “extraordinary burden . . . of proving beyond a reasonable doubt that the challenged provision ‘suffers wholesale constitutional impairment’ ” (*Brightonian Nursing Home v Daines*, 21 NY3d 570, 577 [2013]; *see Matter of Independent Ins. Agents & Brokers of N.Y., Inc. v New York State Dept. of Fin. Servs.*, 39 NY3d 56, 64-65 [2022]). Thus, a facial challenge must fail so long as there are circumstances under which the challenged provision “could be constitutionally applied” (*Matter of Moran Towing Corp. v Urbach*, 99 NY2d 443, 445 [2003]). “In other words, ‘the challenger must establish that no set of circumstances exists under which the Act would be valid’ ” (*id.* at 448).

However, because here respondents moved to dismiss the proceeding, they bore the burden of demonstrating that, “[e]ven

1. The Appellate Division affirmed Supreme Court’s dismissal of the petition. However, “[b]ecause petitioners sought a declaration of the parties’ rights, a declaration in respondents’ favor rather than a dismissal of the petition is appropriate” (*Garcia v New York City Dept. of Health & Mental Hygiene*, 31 NY3d 601, 621 n 4 [2018]).

treating all allegations in the [petition] as true and affording [petitioners] every possible favorable inference, . . . the [ELD rule] is [facially] constitutional” (*American Economy Ins. Co. v State of New York*, 30 NY3d 136, 149 [2017]). We conclude that respondents met their burden.

Both “[t]he 4th Amendment of the United States Constitution and article I, § 12 of our State Constitution protect individuals from unreasonable government intrusions into their legitimate expectations of privacy” (*People v Quackenbush*, 88 NY2d 534, 541 [1996] [internal quotation marks omitted]). Under both federal and New York law, “‘searches conducted outside the judicial process, without prior approval by [a] judge or [a] magistrate [judge], are *per se* unreasonable . . . subject only to a few specifically established and well-delineated exceptions’” (*Los Angeles v Patel*, 576 US 409, 419 [2015], quoting *Arizona v Gant*, 556 US 332, 338 [2009]; see *People v Weaver*, 12 NY3d 433, 444 [2009]). This warrant requirement applies to commercial premises and encompasses administrative inspections designed to enforce a regulatory scheme because such searches are “significant intrusions upon the interests protected” by the State and Federal Constitutions (*Camara v Municipal Court of City and County of San Francisco*, 387 US 523, 534 [1967]; see *Quackenbush*, 88 NY2d at 541-542; *People v Keta*, 79 NY2d 474, 498 [1992]).

Here petitioners’ claim is based solely on New York’s Constitution, which “we have on many occasions interpreted . . . to provide greater protections when circumstances warrant and have developed an independent body of state law in the area of search and seizure” (*Weaver*, 12 NY3d at 445). Our reasons for affording our State’s citizens greater protections are just as valid now as ever before:

“Although the language of the State and Federal constitutional proscriptions against unreasonable searches and seizures generally tends to support a policy of uniformity, we have not hesitated in the past to interpret article I, § 12 of the State Constitution independently of its Federal counterpart when necessary to assure that our State’s citizens are adequately protected from unreasonable governmental intrusions. An independent construction of our own State Constitution is particularly appropriate where a sharp or sudden change in direction by the United States Supreme Court dramati-

cally narrows fundamental constitutional rights that our citizens have long assumed to be part of their birthright” (*Keta*, 79 NY2d at 496-497 [citations omitted]).

One established exception to the warrant requirement under New York’s constitutional jurisprudence provides that “[w]arrantless administrative searches may be upheld in the limited category of cases where” two requirements are met (*Quackenbush*, 88 NY2d at 541).² The first requirement is that “the activity or premises sought to be inspected is subject to a long tradition of pervasive government regulation” (*Quackenbush*, 88 NY2d at 541). The second requirement is that the regulatory scheme authorizing the search must “delineate rules to guarantee the ‘certainty and regularity of . . . application’ necessary to provide a ‘constitutionally adequate substitute for a warrant’ ” (*Keta*, 79 NY2d at 499; see *Quackenbush*, 88 NY2d at 542).

New York’s heightened protection against unreasonable searches and seizures under article I, § 12, however, requires that we take our analysis of these two requirements a step further. Regarding the first requirement for the administrative search exception, we must examine the regulatory scheme authorizing the search to ascertain if the scheme is truly geared towards administrating a pervasively regulated industry rather than being a mere pretext that is, “‘in reality, designed simply to give the police an expedient means of enforcing penal sanctions’ ” (see *Keta*, 79 NY2d at 498-499). Even if the regulatory scheme as a whole is not a pretext for expedient enforcement of penal sanctions, when analyzing the second requirement courts must determine whether the search authorized under the regulatory scheme is similarly pretextual inasmuch as the purpose of the search is “solely to uncover evidence of criminality,” not to detect “real *administrative* violations” for the purpose of furthering the goals of the regulatory scheme (*id.* at 498, 500). We hold that the ELD rule meets both of the requirements for an administrative search, and it is not a pretext for uncovering criminality.

2. These two requirements parallel in many respects the U.S. Supreme Court’s test for determining whether the administrative search exception to the Fourth Amendment’s warrant requirement is applicable (compare *Quackenbush*, 88 NY2d at 541, with *New York v Burger*, 482 US 691, 699 [1987]).

A.

Starting with the first requirement, petitioners correctly concede that there is a long tradition of commercial trucking being subject to comprehensive regulations. Regulation of commercial trucking, including regulation of “the maximum hours of service for commercial drivers,” extends back more than 80 years both in New York and on the federal level (*Owner-Operator*, 840 F3d at 885-887; see e.g. *Yarbrough*, 168 Misc at 769-772). Those regulations are in keeping with this State’s “vital and compelling interest in safety on the public highways” (*People v Ingle*, 36 NY2d 413, 419 [1975], citing Executive Law § 330).

CMV operators therefore have “a diminished expectation of privacy in the conduct of that business because of the degree of governmental regulation” (*Quackenbush*, 88 NY2d at 541), and “may reasonably be deemed to have relinquished a privacy-based objection” to an “intrusion that will foreseeably occur incident” to applicable regulations (*Matter of Ford v New York State Racing & Wagering Bd.*, 24 NY3d 488, 498 [2014]). More particularly, as is relevant here, commercial truck drivers have a diminished expectation of privacy in the location of their vehicles because of their participation in a pervasively regulated industry.

However, as this Court explained in *People v Keta*, the heightened level of protection against unreasonable searches contained in New York’s Constitution requires courts to examine whether the regulatory scheme authorizing the search is merely a pretext “‘to give the police an expedient means of enforcing penal sanctions’” (79 NY2d at 498). *Keta* involved the constitutionality of Vehicle and Traffic Law § 415-a (5) (a), which “authorize[d] the police to conduct random warrantless searches of vehicle dismantling businesses to determine whether such businesses [were] trafficking in stolen automobile parts” (*id.* at 492). Although the U.S. Supreme Court had held previously in *New York v Burger* (482 US 691 [1987]) that the statute did not violate the Fourth Amendment’s prohibition against unreasonable searches and seizures, we concluded that the statute failed to meet the “exception to the warrant and probable cause requirements embodied in article I, § 12” of our State’s Constitution (*Keta*, 79 NY2d at 499).

We reasoned as follows:

“While a precise and all-encompassing definition of

what constitutes a ‘pervasive’ regulatory scheme is not possible, such minimal regulatory requirements as the obligations to register with the government, to pay a fee and to maintain certain prescribed books and records are not, in themselves, sufficient. Indeed, in modern society, many trades and businesses are subject to licensing, bookkeeping and other similar regulatory measures. If the existence of such relatively nonintrusive obligations were sufficient, few businesses would escape being labeled ‘closely regulated,’ and warrantless, suspicionless general inspections of commercial premises would become the rule rather than the exception” (*id.* at 499).

Unlike the regulatory scheme at issue in *Keta*, which instituted bookkeeping obligations for the pretextual purpose of uncovering “automobile theft” (79 NY2d at 500), the ELD rule is a refinement of this State’s decades-long regulation of commercial vehicle drivers’ hours of service. It is designed to respond to widespread and long-standing falsification of records and errors under the old system of using paper records to document hours of service. Consequently, the ELD rule is encompassed within the long tradition of pervasive governmental regulation of the commercial trucking industry whose purpose is to ensure the safety of motorists traveling on our public highways.

B.

Petitioners’ counter that, even if CMV operators subject to the ELD rule are considered participants in a pervasively regulated industry, not every invasion of their diminished expectation of privacy is permissible. They are correct. The test for the constitutionality of a regulation does not end with a determination that participants in an industry have a lessened expectation of privacy because of that industry’s history of pervasive regulation. We must also determine whether the ELD rule “guarantee[s] the ‘certainty and regularity of . . . application’ necessary to provide a ‘constitutionally adequate substitute for a warrant’ ” (*Keta*, 79 NY2d at 499). Under this second requirement for an administrative search, the regulatory scheme governing the search must “‘provide either a meaningful limitation on the otherwise unlimited discretion the [regulation] affords or a satisfactory means to minimize the

risk of arbitrary and/or abusive enforcement’ ” by “ensur[ing] . . . that the search is limited in scope to that necessary to meet the interest that legitimized the search in the first place” (*Quackenbush*, 88 NY2d at 542).

The ELD rule meets this second requirement because the scope of the warrantless inspections authorized by the rule is limited to that necessary to further the regulatory scheme governing drivers’ hours of service. Contrary to petitioners’ contention, it is neither dispositive that (1) drivers can still falsify their records, because changes in duty status must be manually entered into the ELD, nor that (2) the location data recorded by the ELD is not directly used to calculate a driver’s compliance with hours-of-service regulations.

Respondents readily admit that ELDs do not prevent all attempts to evade hours-of-service regulations. That is hardly surprising. Many, if not all, regulatory schemes are capable of manipulation by bad actors.

However, compared to paper records, ELDs are intended to significantly reduce drivers’ opportunities to falsify their duty-status records and evade hours-of-service limitations, because ELDs automatically record the truck’s location and engine hours (*see* NY St Reg, Jan. 16, 2019 at 10). This feature of ELDs impedes cheating. For example, if a driver attempted to drive when the vehicle is not supposed to be in motion, the ELD would record the vehicle’s movement (*see* 49 CFR 395.26 [d] [1]; *see* 80 Fed Reg 78292, 78367). Plus, if a driver claimed to be using the vehicle for authorized personal use while actually on duty, the location data collected by the ELD might reveal a pattern more akin to a trucking route (49 CFR 395.26 [d] [2]; *see* 80 Fed Reg 78292, 78367). Consequently, although the ELD’s GPS function is not used to calculate a driver’s hours of service directly, it serves “as a cross check to verify that [the ELD] data has not been manipulated” (80 Fed Reg at 78328).

In addition, the limitations on the data recorded by ELDs and the scope of the search authorized by the rule meaningfully limit the discretion of the officials performing the search. ELDs record only limited data relating to the location and movement of the vehicle and the identity and duty status of the driver (*see* 49 CFR 395.24, 395.26). Inspecting officers can retrieve that data electronically without entering the vehicle (*see* 49 CFR part 395, subpart B, Appendix A, 4.10.1), and the ELD rule does not authorize them to search either the cab of

the truck or the driver for contraband (*cf.* 49 CFR 395.24 [d]). Furthermore, “ELDs record only at specified times, such as when the vehicle is turned on, when the duty status changes, and once per hour while driving” (*Owner-Operator*, 840 F3d at 887; *see* 49 CFR 395.26).³

There is also no merit to petitioners’ contention that the ELD rule is unconstitutional because it fails to limit the frequency of the authorized searches. In *Keta*, although we struck down searches of vehicle dismantling businesses, we observed that clear standards for what constitutes a violation and when searches are permissible could adequately substitute for a search warrant (*see* 79 NY2d at 499-500). Unlike the businesses in *Keta*, mobile commercial vehicles are operable at all hours of the day and hours-of-service violations can occur anywhere at any given time. Those factors are relevant to the appropriate time and frequency limitations of an administrative search (*cf. United States v Vasquez-Castillo*, 258 F3d 1207, 1212 [10th Cir 2001]).

Here, constraints on the frequency of roadside searches of ELD data are inherent in the broader scheme of CMV regulation. The ELD rule “makes no changes to the longstanding and current system of commercial motor vehicle enforcement,” under which “[m]ost truck and/or driver inspections are performed roadside under the ‘pervasively regulated industry’ exception to the Fourth Amendment of the U.S. Constitution” (NY St Reg, Jan. 16, 2019 at 10). In other words, there is a reasonable limitation on the frequency of searches under the ELD rule because a proper roadside inspection (i.e., search) of ELD data requires, like other CMV enforcement, that the vehicle is stopped (i.e., seized) constitutionally (*see People v Singleton*, 41 NY2d 402, 404 [1977] [(“A) motor vehicle on a public highway may be stopped only where the officer has specific cause or reasonable suspicion of a violation of law or in accordance with nonarbitrary, nondiscriminatory, uniform procedures, such as at roadblocks, checkpoints and weighing stations”], citing *Ingle*, 36 NY2d at 420).

C.

The ELD rule does not authorize unconstitutional GPS tracking. Although this Court found certain warrantless GPS track-

3. Contrary to petitioners’ contention, ELDs do not engage in continuous tracking “24 hours a day, 365 days a year.”

ing to be unconstitutional in *People v Weaver* and *Matter of Cunningham v New York State Dept. of Labor* (21 NY3d 515 [2013]), those cases involved the surreptitious use of GPS devices. In *Weaver* the GPS device was attached to the automobile of a criminal suspect and was used to track the suspect's movements (see 12 NY3d at 436-437). *Cunningham* involved the use of a GPS tracker installed covertly on a state employee's vehicle as part of an investigation by the Office of the State Inspector General into the employee's falsification of time records (see 21 NY3d at 518-519). In both cases we held that the GPS searches at issue were unconstitutional under article I, § 12 of the New York Constitution because they were unreasonably intrusive (see *id.* at 522-523; *Weaver*, 12 NY3d at 446-447).

This case is easily distinguishable from both *Weaver* and *Cunningham*. First, under the ELD rule, drivers and motor carriers are aware that the location of the vehicle is being intermittently recorded and of their duty to provide ELD data “[o]n request by an authorized safety official” as a condition of participation in the industry (49 CFR 395.24 [d]). That is materially different from the secret, surreptitious tracking in *Weaver* and *Cunningham*, where vehicle owners were not aware of the GPS device on their vehicles, they had no opportunity to adjust their expectations of privacy accordingly, and the GPS data was intended to ferret out crime rather than enforce a regulatory scheme aimed at public safety.

Additionally, although location data is recorded on an ELD whenever the vehicle is activated, it is not nearly as precise or frequent as the tracking in *Weaver* and *Cunningham*. In *Weaver*, the GPS tracking pinpointed a private vehicle's location to within 30 feet at all times, which potentially permitted inferences disclosing off duty activities that a person may want to keep private (see 12 NY3d at 436, 441-442). By contrast, the ELD rule limits the specificity necessary in the recording of the truck's location to within—at its most precise—a half-mile radius when the driver is on duty (see 49 CFR part 395, subpart B, Appendix A, 4.3.1.6 [c]). It also only records the vehicle's location once per hour and when the driver is on duty (see 49 CFR 395.26; 49 CFR part 395, subpart B, Appendix A, 4.6.1.7. [c]). And unlike the continuous and precise off duty tracking in *Cunningham*, when a “driver indicates authorized personal use” of their vehicle, engine hours and vehicle miles are not recorded by the ELD (49 CFR 395.26 [d] [2]) and the specificity of the GPS data is reduced to indicating the location of the

truck to within an approximately 10-mile radius (49 CFR 395.26 [d], [i]). This is a relatively limited intrusion upon those receiving governmental approval to operate large, potentially dangerous, commercial vehicles on public roads for economic benefit.

D.

Notably, although the U.S. Supreme Court's Fourth Amendment jurisprudence places "great weight on the fact that [a provision] is supported by a 'substantial' governmental interest and that warrantless inspections are 'necessary to further [the] regulatory scheme,'" our Court has held "[those] factors in themselves to be insufficient justification for departing from article I, § 12's general prohibition against warrantless, suspicionless searches" (*Keta*, 79 NY2d at 500). As we explained in *Keta*, "[s]uch arguments are always available when the regulatory activity in question has a law enforcement-related goal" (*id.*). For that reason, we require that there must be "real *administrative* violations that could be uncovered in a search" (*id.* at 500) and that the asserted regulatory scheme doesn't merely "'authorize[] searches undertaken solely to uncover evidence of criminality'" (*id.* at 495).

Unlike the penalties at issue in *Keta*, the penalties here are tied to noncompliance with the regulatory scheme itself, the goal of which is highway safety and not merely the enforcement of criminal laws. Indeed, DOT's regulations provide that an administrative inspection of a commercial vehicle is limited "to ascertain[ing] whether the rules and regulations of the commissioner [e.g., the hours-of-service rules] are being obeyed," meaning that the search authorized by the ELD rule does not operate as a mere pretext for warrantless discovery of criminal activity (17 NYCRR 820.12 [a]).

Indeed, there are numerous administrative sanctions for a driver's violation of hours-of-service requirements discovered by a search of their ELD (*see* 17 NYCRR 820.6 [adopting federal ELD rule's administrative requirements]). For example, authorized officials are empowered to place drivers out of service if they violate the hours-of-service requirements (*see* 49 CFR 395.13), and such violations can be discovered using ELD data. Violations are also punishable by civil sanctions, not just criminal ones, including traffic infractions and civil penalties up to \$10,000 (*see* Transportation Law § 145 [3]; 17 NYCRR 820.10 [a]). Contrary to petitioners' contention, the fact that an inspec-

tion of ELD data may also reveal violations of the regulatory scheme that carry criminal penalties is insufficient, standing alone, to render the search unlawful (*see Quackenbush*, 88 NY2d at 538-545).

IV.

We therefore conclude that the courts below properly determined that the ELD rule is constitutional. However, Supreme Court should have declared the rights of the parties rather than dismissing the complaint (*see Garcia*, 31 NY3d at 621 n 4). Accordingly, the order of the Appellate Division should be modified, with costs to respondents, by granting judgment to respondents in accordance with this opinion and, as so modified, affirmed.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO and HALLIGAN concur.

Order modified, with costs to respondents, by granting judgment to respondents in accordance with the opinion herein and, as so modified, affirmed.

[214 NE3d 1137, 194 NYS3d 191]

In the Matter of TCR SPORTS BROADCASTING HOLDING, LLP,
Appellant, v WN PARTNER, LLC, et al., Respondents, WASH-
INGTON NATIONALS BASEBALL CLUB, LLC, Respondent, and
BALTIMORE ORIOLES BASEBALL CLUB et al., Appellants.

Argued March 14, 2023; decided April 25, 2023

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 22, 2020, bringing up for review a portion of a prior nonfinal order of that Appellate Division, entered July 13, 2017, and, by permission of the Court of Appeals, from the October 22, 2020 order of that Appellate Division. The October 22, 2020 Appellate Division order (1) affirmed a judgment of the Supreme Court, New York County (Joel M. Cohen, J.; op 67 Misc 3d 1242[A], 2019 NY Slip Op 52186[U] [2019]), in favor of respondent Washington Nationals Baseball Club, LLC; and (2) dismissed, as subsumed in the appeal from the judgment, appeals from an August 2019 order of that Supreme Court which had granted respondent Nationals' motion to confirm an arbitration award, and from a November 2019 order of that Supreme Court which had denied petitioner's motion to resettle or reargue the August 2019 order. The July 13, 2017 Appellate Division order, insofar as brought up for review, (1) affirmed an order of the Supreme Court, New York County (Lawrence K. Marks, J.; op 2015 NY Slip Op 33004[U] [2015]), entered November 4, 2015, which had, insofar as appealed from as limited by the briefs, denied so much of petitioner's motion seeking, upon vacatur of a 2014 arbitration award of the Revenue Sharing Definitions Committee (RSDC) of Major League Baseball (MLB), to have a second arbitration proceed before an impartial panel unaffiliated with MLB; and (2) modified, on the law, an order of that Supreme Court entered July 11, 2016, which had (a) denied respondent Nationals' motion to compel the parties to re-arbitrate the claim before the RSDC; and (b) granted petitioner's cross-motion insofar as it sought to stay the parties from compelling or conducting another arbitration of the dispute until the final determination of the appeals from the November 4, 2015 Supreme Court order.

Matter of TCR Sports Broadcasting Holding, LLP v WN Partner, LLC, 187 AD3d 623, modified.

Matter of TCR Sports Broadcasting Holding, LLP v WN Partner, LLC, 153 AD3d 140, modified.

HEADNOTES**Arbitration — Award — Vacatur Based on Evident Partiality — Remittal to Same Arbitral Forum**

1. In a contract dispute between two Major League Baseball (MLB) teams and their co-owned regional sports network regarding the fair market value of certain telecast rights in which the first arbitration award issued by MLB's Revenue Sharing Definitions Committee (the RSDC) was vacated based on "evident partiality" (9 USC § 10 [a] [2]), Supreme Court did not err by remitting the matter to the RSDC for a second arbitration hearing. The conflict was cabined in the first proceeding and did not irredeemably infect the RSDC as a forum. The discrete defect was remedied prior to the second arbitration once the parties, including the RSDC, retained new counsel. Further, the RSDC panel members presiding over the first arbitration were replaced by new members and, thus, the arbitrators hearing the second proceedings were not tainted by the prior concurrent representation. Remittal to a new arbitral forum was therefore unnecessary to remediate the cause of the evident partiality. The remand to the RSDC for the second proceeding also furthered the Federal Arbitration Act's primary purpose, ensuring that arbitration contracts are enforced according to their terms. The parties specifically agreed to arbitrate telecast rights fees disputes before the RSDC, carving out an exception to the settlement agreement's general dispute resolution provisions that would otherwise govern. The parties also specifically agreed to arbitrate before the RSDC because it possessed specialized knowledge concerning the complex telecast rights valuations at issue and an understanding of the ramifications of its decision. The parties agreed to an industry insider controlled process with a full understanding of the commissioner's involvement. Remittal to the RSDC afforded respondents the amount of impartiality that inhered in the method they chose.

Arbitration — Award — Vacatur Based on Evident Partiality

2. In a contract dispute between two Major League Baseball (MLB) teams and their co-owned regional sports network regarding the fair market value of certain telecast rights which was remitted to MLB's Revenue Sharing Definitions Committee (the RSDC) for a second arbitration hearing after the first arbitration award issued by the RSDC was vacated based on "evident partiality" (9 USC § 10 [a] [2]), the courts below correctly concluded that the network and one of the teams failed to show, by clear and convincing evidence, that a reasonable person would have concluded that the reconstituted RSDC was evidently partial. 9 USC § 10 (a) (2) permits vacatur "where there was evident partiality . . . in the arbitrators." "Evident partiality" within the meaning of section 10 will be found where a reasonable person would have to conclude that an arbitrator was partial to one party to the arbitration. There was no evidence that MLB engaged in undisclosed activity to influence the RSDC panel members. Vacatur was thus unwarranted under that rationale or based on the RSDC's denial of respondents' discovery demands, which were premised on that theory. Moreover, a reasonable person could have concluded that public statements made by MLB's commissioner that "the RSDC was empowered to set rights fees" and that the network was "going to be required to pay those rights fees" did not establish evident partiality because the RSDC, not the commissioner, made the final determination, and the statements could not realistically be construed as a directive to the RSDC panel members.

Compromise and Settlement — Settlement Agreement — Award of Prejudgment Interest Not in Accordance with Agreement

3. In a contract dispute between two Major League Baseball (MLB) teams and their co-owned regional sports network regarding the fair market value

of certain telecast rights, the order confirming the second arbitration award issued by MLB's Revenue Sharing Definitions Committee (the RSDC) was modified because Supreme Court erred by awarding one of the teams prejudgment interest and rendering a money judgment in the team's favor. The settlement agreement granted the RSDC the power only to determine the fair market value of the telecast rights fees. The parties did not agree that the RSDC could resolve disputes over nonpayment of such fees. Instead, remedies for the network's nonpayment of those fees were governed by a different provision of the settlement agreement, which set forth certain requirements, including a cure period. Only after that cure period expired did the team have a right to seek money damages. Further, disputes over nonpayment of the fees appeared to be governed by the settlement agreement's more general dispute resolution provisions. As the courts had confirmed the RSDC's determination of the fair market value of the telecast rights, the parties were required to resolve any disputes over nonpayment of those fees in accordance with their agreement.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Alternative Dispute Resolution §§ 197, 198, 202, 208–211, 221, 230; AM JUR 2d Compromise and Settlement § 27.
CARMODY-WAIT 2d Arbitration §§ 141:258, 141:260, 141:278, 141:289.
NY JUR 2d Arbitration and Award §§ 209, 219, 223, 242.
SIEGEL, NY PRAC (6th ed) § 602.
9 USCA § 10 (2).

ANNOTATION REFERENCE

See ALR Index under Arbitration; Compromise and Settlement; Vacating or Setting Aside.

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POINTS OF COUNSEL

Sidley Austin LLP, Washington, D.C. (*Carter G. Phillips*, admitted pro hac vice, *Kwaku A. Akowuah* and *Tobias S. Loss-Eaton* of counsel), *Bois Schiller Flexner LLP*, New York City (*Jonathan D. Schiller*, *Joshua I. Schiller* and *Thomas H. Sosnowski* of counsel), and *Pollack, Pollack, Isaac & DeCicco LLP*, New York City (*Brian J. Isaac* and *Jillian Rosen* of counsel), for appellants. I. After vacating Major League Baseball's (MLB)

first Revenue Sharing Definitions Committee (RSDC) decision for evident partiality, the courts below should have disqualified MLB's RSDC from the rehearing. (*Commonwealth Coatings Corp. v Continental Casualty Co.*, 393 US 145; *Matter of Goldfinger v Lisker*, 68 NY2d 225; *Bell Aerospace Co. Div. of Textron, Inc. v Local 516, Intl. Union, United Auto., Aerospace & Agr. Implement Workers of Am. [UAW]*, 500 F2d 921; *U.S. Elecs., Inc. v Sirius Satellite Radio, Inc.*, 17 NY3d 912; *Hoelt v MVL Group, Inc.*, 343 F3d 57; *Hall Street Associates, L. L. C. v Mattel, Inc.*, 552 US 576; *Matter of Wal-Mart Wage & Hour Empl. Practices Litig.*, 737 F3d 1262; *Sawtelle v Waddell & Reed*, 304 AD2d 103; *Matter of Excelsior 57th Corp. [Kern]*, 218 AD2d 528; *Kashner Davidson Sec. Corp. v Mscisz*, 601 F3d 19.) II. Even if the remand to MLB's RSDC were proper, MLB's second RSDC decision should be vacated for evident partiality. (*United States v Lovaglia*, 954 F2d 811; *United States v Yousef*, 750 F3d 254; *Florasynt, Inc. v Pickholz*, 750 F2d 171; *Coty Inc. v Anchor Constr.*, 7 AD3d 438; *Matter of J. P. Stevens & Co. [Rytex Corp.]*, 34 NY2d 123; *Sanko S.S. Co., Ltd. v Cook Indus., Inc.*, 495 F2d 1260.) III. The courts below independently erred by entering a money judgment based on the second RSDC decision. (*Zeiler v Deitsch*, 500 F3d 157; *Walter A. Stanley & Son v Trustees of Hackley School*, 42 NY2d 436; *Morgan Guar. Trust Co. of N.Y. v Solow*, 114 AD2d 818, 68 NY2d 779; *ACE Sec. Corp., Home Equity Loan Trust, Series 2006-SL2 v DB Structured Prods., Inc.*, 25 NY3d 581.)

Quinn Emanuel Urquhart & Sullivan, LLP, New York City (*Derek L. Shafer, Stephen R. Newwirth, Patrick D. Curran and Kathryn D. Bonacorsi* of counsel), and *Morrison Cohen LLP*, New York City (*David B. Saxe and Gayle Pollack* of counsel), for Washington Nationals Baseball Club, LLC, respondent. I. The First Department's majority determination not to remand the dispute to a different arbitral forum should be affirmed. (*American Intl. Specialty Lines Ins. Co. v Allied Capital Corp.*, 35 NY3d 64; *Matter of Smith Barney Shearson v Sacharow*, 91 NY2d 39; *Matter of 166 Mamaroneck Ave. Corp. v 151 E. Post Rd. Corp.*, 78 NY2d 88; *Matter of Lipschutz [Gutwirth]*, 304 NY 58; *Westinghouse Elec. Corp. v New York City Tr. Auth.*, 82 NY2d 47; *Matter of Nationwide Gen. Ins. Co. v Investors Ins. Co. of Am.*, 37 NY2d 91; *New England Mut. Life Ins. Co. v Caruso*, 73 NY2d 74; *159 MP Corp. v Redbridge Bedford, LLC*, 33 NY3d 353; *Matter of Nomura Sec. Intl. v Citibank*, 81 NY2d 614; *Garfield & Co. v Wiest*, 432 F2d 849.) II. The First Department properly held that no basis exists to vacate the 2019 Rev-

enue Sharing Definitions Committee award. (*Wien & Malkin LLP v Helmsley-Spear, Inc.*, 6 NY3d 471; *Applied Indus. Materials Corp. v Ovalar Makine Ticaret Ve Sanayi, A.S.*, 492 F3d 132; *Areca, Inc. v Oppenheimer & Co., Inc.*, 960 F Supp 52; *Yonkers Contr. Co. v Port Auth. Trans-Hudson Corp.*, 87 NY2d 927; *Scott v Prudential Sec., Inc.*, 141 F3d 1007; *Woods v Saturn Distrib. Corp.*, 78 F3d 424; *Florasynt, Inc. v Pickholz*, 750 F2d 171; *Coty Inc. v Anchor Constr.*, 7 AD3d 438; *Hunt v Mobil Oil Corp.*, 654 F Supp 1487; *Cook Indus., Inc. v C. Itoh & Co. [Am.] Inc.*, 449 F2d 106.) III. Supreme Court properly entered a monetary judgment. (*Matter of States Mar. Lines [Crooks]*, 13 NY2d 206; *Matter of Civil Serv. Empls. Assn. v County of Nassau*, 305 AD2d 498; *Matter of Civil Serv. Empls. Assn., Local 1000, AFSCME, AFL-CIO [State of New York]*, 223 AD2d 890; *Matter of Snyder-Plax v American Arbitration Assn.*, 196 AD2d 872; *Matter of Vermilya [Distin]*, 157 AD2d 1030; *Matter of Trudeauau [South Colonie Cent. School Dist.] v O'Rourke*, 135 AD2d 150, 73 NY2d 736; *Matter of Hunter [Proser]*, 298 NY 828; *Zeiler v Deitsch*, 500 F3d 157; *Matter of Feuer Transp. [Local Union No. 445]*, 295 NY 87.)

The Law Offices of Kenneth R. Feinberg, P.C., Washington, D.C. (Kenneth R. Feinberg of counsel), for Kenneth R. Feinberg, amicus curiae. I. A rehearing of the arbitration before a Major League Baseball (MLB) panel appointed by Robert Manfred is not a fair and impartial arbitration. (*Pitta v Hotel Assn. of N.Y. City, Inc.*, 806 F2d 419; *Morelite Constr. Corp. [Div. of Morelite Elec. Serv., Inc.] v New York City Dist. Council Carpenters Benefit Funds*, 748 F2d 79; *Matter of Excelsior 57th Corp. [Kern]*, 218 AD2d 528; *Hyman v Pottberg's Ex'rs*, 101 F2d 262; *Sawtelle v Waddell & Reed*, 304 AD2d 103; *Erving v Virginia Squires Basketball Club*, 349 F Supp 716; *Morris v New York Football Giants*, 150 Misc 2d 271; *Rabinowitz v Olewski*, 100 AD2d 539; *Monster Energy Co. v City Beverages, LLC*, 940 F3d 1130; *Commonwealth Coatings Corp. v Continental Casualty Co.*, 393 US 145.) II. The rehearing did not cure MLB's and Manfred's evident partiality.

Venable LLP, New York City (*Matthew T. McLaughlin* and *Benjamin P. Argyle* of counsel), and *Baltimore City Department of Law*, Baltimore, Maryland (*Thomas P.G. Webb* of counsel), for the Mayor of Baltimore and another, amici curiae. The City of Baltimore implores this Court to ensure that the Orioles are guaranteed a fair arbitration process in the adjudication of the core agreements upon which the Orioles' long-term viability in the City ultimately depends.

OPINION OF THE COURT

SINGAS, J.

New York's well-established rules of contract law, which apply to arbitration agreements, provide that courts will enforce a commercial contract between sophisticated and counseled parties according to the contract's terms. In this case, two Major League Baseball (MLB) teams and their co-owned regional sports network are in a dispute regarding the fair market value of certain telecast rights. By affirming the confirmation of the second arbitration award and directing that the money judgment be vacated, we hold the highly sophisticated parties to the terms of their agreement.

I.

A. The Settlement Agreement

Beginning in 1972, the Baltimore Orioles Baseball Club (the Orioles) was the only MLB team located in the United States' mid-Atlantic region, which encompasses Washington, D.C. and Baltimore, Maryland. Washington, D.C. accounted for a significant portion of the Orioles' fan base and revenue streams while the Orioles were the only team in that region. In 2001, the Orioles and petitioner TCR Sports Broadcasting Holding, LLP (TCR) established the Orioles' Television Network. The network had the exclusive right to telecast Orioles games in a seven-state television territory that included Washington, D.C. (the television territory). The next year, MLB purchased the Montreal Expos and in 2004 announced that it planned to relocate the Expos to Washington, D.C. and rebrand the team as the Washington Nationals. The Orioles objected to this plan, contending that the Nationals' presence in the market would harm them financially.

In 2005, MLB, TCR, the Orioles, and the Nationals executed an agreement (the settlement agreement) to resolve several issues associated with the Expos' relocation to Washington, D.C. Under the settlement agreement, TCR was converted into the Mid-Atlantic Sports Network (MASN), a two-team regional sports network. MASN would have the exclusive right to televise the games of both the Orioles and the Nationals in the television territory, except for games that were retained by MLB's national rights agreements. The Orioles would be MASN's managing partner and initially own 90% of MASN, while the Nationals' initial ownership stake was set at 10%.

Beginning in 2010, the Nationals' stake would increase by 1% per year until it reached 33% in 2032 and, correspondingly, the Orioles' stake would decrease by 1% per year until it reached 67%. This was intended to allow the Orioles to receive reparative compensation through the distribution of profits in accordance with its supermajority. Indeed, MLB said that the settlement agreement would "protect the Orioles from any adverse effects caused by the relocation."

The settlement agreement provided that MASN must pay the Orioles and the Nationals an annual fee for the right to telecast their games and established those fees for the years 2005 through 2011. Beginning in 2007, both teams were to be paid the same amount for their telecast rights; they were paid \$29 million each in 2011 for that year's telecast rights. For the years following 2011, the settlement agreement required MASN, the Orioles, and the Nationals to negotiate in good faith to set the fair market value of the telecast rights fees in five-year increments.

The telecast rights fees are MASN's largest expense and, thus, the amount of those fees affects MASN's profitability. As noted, MASN must pay the Orioles and the Nationals the same amount for their annual telecast rights. The teams therefore share equally MASN's payment of telecast rights fees. However, MASN's profits are split in proportion to the teams' ownership shares, with the Orioles retaining its supermajority share. MASN's ownership arrangement therefore incentivizes the Orioles to favor lower telecast rights fees to maximize MASN's profits, while encouraging the Nationals to advocate for higher fees.

The settlement agreement set forth a three-step procedure for resolving telecast rights fees disputes: (1) a 30-day mandatory negotiation period; (2) if negotiation failed, non-binding mediation before one of two designated forums; and (3) if mediation failed, MLB's Revenue Sharing Definitions Committee (the RSDC) would determine the fair market value of the telecast rights fees.¹ The RSDC is an MLB standing committee composed of three representatives from MLB teams, with rotating membership. It is typically tasked with analyzing transactions, including telecast agreements, for purposes of determin-

1. This provision could be read to establish an appraisal procedure, as opposed to an arbitration clause, given the settlement agreement's other terms and the RSDC's history. However, we accept the parties' unified understanding that the proceedings before the RSDC were arbitrations.

ing compliance with MLB's revenue-sharing plan. In the settlement agreement, the parties agreed that the RSDC would use its established methodology to value the telecast rights. The agreement also provided that the RSDC's determination would be final and binding and that the parties could seek to vacate an award only on certain grounds, including corruption or fraud.

When it came time to set the telecast rights fees for 2012-2016—the first five-year period contemplated by the settlement agreement—the parties failed to reach agreement.² MASN, using an accounting based profit margin analysis known as the “Bortz methodology,” proposed a telecast rights fee schedule starting at around \$34 million for 2012 and rising to about \$45.6 million in 2016. The Nationals, acting through their counsel, Proskauer Rose LLP, rejected that proposal. The Nationals valued their rights at more than \$110 million per year on average, using a comparable markets approach.

B. The First Arbitration

After negotiations failed, the parties waived the mediation process provided for in the settlement agreement and proceeded to the third step, arbitration before the RSDC. The RSDC panel consisted of representatives from the Tampa Bay Rays, Pittsburgh Pirates, and New York Mets, who were appointed by MLB's then Commissioner of Baseball, Allan H. (Bud) Selig. MLB staff—including Robert D. Manfred, Jr., then an MLB executive vice president—administered the arbitration and provided legal and analytical assistance to the RSDC.

Proskauer represented the Nationals during the arbitration proceedings. Because Proskauer also represented MLB—as well as the Rays, Pirates, and Mets—in unrelated matters both at that time and in the past, MASN and the Orioles requested that the RSDC preclude Proskauer from participating in the proceeding. Manfred concluded that the RSDC lacked the legal authority to disqualify Proskauer, and simply granted MASN and the Orioles a continuing objection to Proskauer's involvement in the matter.

In April 2012, the RSDC held a one-day hearing at which the Nationals argued that the average fair market value for their telecast rights for 2012-2016 was about \$118 million per year. MASN and the Orioles argued that the Nationals should be

2. The Nationals' current owners purchased the team from MLB in 2006.

paid an average of about \$39.5 million per year for that period. That summer, the RSDC informed the parties that it had determined that the Nationals' telecast rights would be approximately \$53 million for 2012 and would rise by about \$3 million per year through 2016. However, the RSDC did not issue its decision because Selig was attempting to negotiate a broader settlement between the parties.

A year later, in August 2013, with negotiations ongoing, MLB advanced the Nationals nearly \$25 million to encourage the team's continued participation in those settlement negotiations. That amount represented the difference between what the RSDC's pending award required MASN to pay the Nationals from 2012-2013 and what MASN actually paid them for those years.³ If the parties did not settle, MLB would be repaid with proceeds from the arbitration award. Under this arrangement, "if the RSDC issue[d] a decision that cover[ed] 2012 and/or 2013, any payments from MASN otherwise due to the Nationals [would] be made first to the Commissioner's Office to cover any amounts paid." Alternatively, if MASN was sold to a third party, the \$25 million would be paid to MLB as part of that transaction. Manfred signed this agreement on behalf of MLB.

The settlement negotiations ultimately failed, and the RSDC issued its decision in June 2014. As expected, the RSDC concluded that the Nationals' telecast rights fees would be approximately \$53 million in 2012, rising from there to nearly \$67 million in 2016.

After the RSDC issued its determination, Selig reiterated to both teams that the settlement agreement did not authorize them "to file any lawsuit" and that the MLB constitution "expressly prohibited" litigation in court. Selig cautioned both teams that "if any party initiate[d] any lawsuit," he would "not hesitate to impose the strongest sanctions available" under MLB's constitution.

MASN and the Orioles nevertheless commenced this CPLR article 75 proceeding against the Nationals and MLB.⁴ MASN and the Orioles sought to vacate the RSDC award under the

3. MASN paid the Nationals the amounts it had proposed to the RSDC as the fair market value of the Nationals' telecast rights.

4. The respondents are WN Partner, LLC; Nine Sports Holding, LLC; Washington Nationals Baseball Club, LLC; the Office of Commissioner of Baseball; and the Commissioner of Major League Baseball. MASN also named the Orioles and Baltimore Orioles Limited Partnership, in its

(n. cont'd)

Federal Arbitration Act (FAA) on multiple grounds, including that the process was affected by evident partiality. MASN argued, among other things, that (1) the RSDC failed to fully disclose and remedy the conflict presented by Proskauer's concurrent representation of the Nationals, MLB, and each of the RSDC panel's members or their team; (2) the \$25 million advance gave MLB an impermissible stake in the outcome of the arbitration process; and (3) MLB controlled the arbitration process. MASN and the Orioles also sought to have the matter remanded for a second arbitration before a different forum unaffiliated with MLB. The Nationals cross-moved to confirm the award.

During the pendency of the litigation, Manfred was named MLB's commissioner. In media reports, Manfred was quoted as saying that he thought that the settlement agreement made clear that "the RSDC was empowered to set rights fees. That's what they did, and I think sooner or later MASN is going to be required to pay those rights fees."

In November 2015, Supreme Court (Marks, J.) (1) granted the amended petition to the extent of vacating the arbitration award, (2) otherwise denied the amended petition, and (3) denied the Nationals' cross-motion to confirm the award (*see* 2015 NY Slip Op 33004[U] [Sup Ct, NY County 2015]). With respect to MASN's and the Orioles' evident partiality claim, the court rejected their assertion that the \$25 million advance gave the RSDC or MLB "an impermissible interest in the award" (*id.* at *18). The court concluded that MASN and the Orioles established evident partiality, however, because Proskauer was concurrently representing the Nationals in the arbitration, MLB in several matters, and interests associated with all three members of the RSDC panel. The RSDC's failure to address these conflicts demonstrated evident partiality and justified vacating the award. The court refused to refer the matter to a different arbitral forum, noting that re-writing the settlement agreement was "outside of its authority" under the agreement's terms (*id.* at *28 n 21). MASN and the Orioles appealed so much of the order as denied the request to conduct the second arbitration before a different forum. The Nationals cross-appealed the order insofar as it vacated the RSDC award.

capacity as managing partner of TCR (BOLP), as nominal respondents. MASN has represented the interests of the Orioles and BOLP throughout this proceeding, and the parties filed joint briefs on this appeal.

The Appellate Division affirmed the November 2015 order in a per curiam memorandum, accompanied by two concurring opinions and an opinion dissenting in part (*see* 153 AD3d 140 [1st Dept 2017]). The Justices unanimously agreed that Supreme Court properly vacated the award based on evident partiality resulting from Proskauer’s concurrent representation. They disagreed about whether the RSDC should preside over the second arbitration.

Justice Andrias, in a concurrence joined by Justice Richter, determined that the RSDC’s award “was correctly vacated based on ‘evident partiality’” under the FAA given Proskauer’s “unrelated representations at various times of virtually every participant in the arbitration except for MASN and the Orioles” (*id.* at 143 [Andrias, J., concurring]). He explained that MLB and the RSDC failed “to provide MASN and the Orioles with full disclosure or to remedy the conflict before the arbitration hearing was held” (*id.*).

This concurrence concluded, however, that there was no basis “to direct that the second arbitration be heard in a forum other than” the RSDC (*id.*). After declining to address “whether, in an exceptional case,” the Court had the power under the FAA “to disqualify an arbitral forum” (*id.* at 154 n 3), the concurrence pointed out that “the sophisticated parties, represented by experienced counsel, knew full well how the RSDC operated, including that MLB would have significant influence over the arbitration process” (*id.* at 156). Further, the discrete cause of the RSDC’s evident partiality, Proskauer’s concurrent representation, had been remedied and MLB had appointed new members to the RSDC panel. Moreover, concerning the \$25 million advance, the Nationals had “offered to post a bond to guarantee repayment . . . to MLB regardless of the outcome of the arbitration” (*id.* at 158). In these circumstances, therefore, MASN and the Orioles failed to make “the extraordinary showing of grounds needed to reform the agreement or disqualify the RSDC” (*id.* at 160).

Justice Kahn concurred separately, agreeing that “the arbitration may not be referred to another forum” but on the ground that the Court lacked power to “order that the arbitration take place in a forum other than the one selected by the parties” (*id.* at 161 [Kahn, J., concurring]). Presiding Justice Acosta and Justice Gesmer dissented in part, concluding that the Court could “and should refer the matter to an alternative

forum in the rare circumstances presented” (*id.* at 163 [Acosta, P.J., dissenting in part]).⁵

C. The Second Arbitration

As discussed in the Appellate Division order, prior to the second arbitration, Proskauer discontinued its participation and Manfred appointed a new RSDC panel made up of executives from different teams, the Milwaukee Brewers, Seattle Mariners, and Toronto Blue Jays. The RSDC retained its own counsel.

In addition, MLB and the Nationals agreed that the Nationals would repay the \$25 million advance, plus interest, at least 10 days before the second arbitration started (the prepayment agreement). If the hearing did not “commence within 14 days of its scheduled commencement,” payment was to “be returned in full to the Nationals.” The prepayment agreement did not relieve the Nationals of their obligation to repay the advance under the original terms if the hearing did not occur.

MASN and the Orioles continued to object to the RSDC as the arbitral forum. They requested that the RSDC recuse itself and sought copies of all communications between the RSDC and MLB concerning the dispute. The RSDC issued a procedural order denying those requests, explaining that no member was “aware of any fact or circumstance . . . that would call into question [their] independence or give rise to reasonable doubts about [their] impartiality.” The RSDC concluded that the discovery requests were inappropriate because they did not focus on the merits of the dispute and because MASN and the Orioles failed to make “a threshold showing of a lack of independence or impartiality on the part of any member of the RSDC.” Prior to the hearing, the Nationals repaid the \$25 million advance in accordance with the prepayment agreement.

At the second arbitration hearing, the parties again proffered evidence regarding the value of the Nationals’ telecast rights. In addition to the testimony presented at the two-day hearing, the parties submitted expert reports, witness statements, voluminous documentary evidence, and prehearing and post-hearing briefs. Relying again on the Bortz methodology, MASN and the Orioles asserted that the Nationals’ license fees

5. We dismissed MASN’s and the Orioles’ appeal as of right from the July 2017 Appellate Division order on nonfinality grounds (*see* 30 NY3d 1005 [2017]).

should average about \$40.4 million per year, with fees set at \$34.5 million in 2012 and rising to \$44.3 million in 2016. The Nationals again used a comparable-teams valuation methodology and argued that their license fees should average around \$95 million per year, with the fees set at \$87.7 million in 2012 and rising to \$102.6 million in 2016.

The RSDC concluded, in a 48-page decision, that the Nationals' rights should be set at approximately \$55 million in 2012, rising to about \$62.4 million in 2016. The average annual value was around \$59.3 million. The award stated the amounts that MASN had distributed to the Nationals to date in telecast rights fees and profit distributions, but the RSDC concluded that it lacked authority to enter a judgment or award the Nationals prejudgment interest.⁶

The Nationals moved in Supreme Court to confirm the RSDC's second award and sought prejudgment interest. MASN and the Orioles opposed the Nationals' motion, arguing that the second award, like the first, should be vacated based on the RSDC's evident partiality. MASN and the Orioles contended that (1) the prepayment agreement provided the RSDC an incentive not to recuse itself; (2) the RSDC failed to disclose its communications with MLB; and (3) Manfred's public statements evinced bias. MASN and the Orioles maintained that Supreme Court should remand the matter for a third arbitration in a forum unaffiliated with MLB. They also asserted that Supreme Court lacked authority to grant the Nationals a money judgment or prejudgment interest.

Supreme Court (Cohen, J.), among other things, (1) confirmed the RSDC's second award and (2) directed the parties to an inquest to determine the amount of prejudgment interest to which the Nationals were entitled (*see* 67 Misc 3d 1242[A], 2019 NY Slip Op 52186[U], *10 [Sup Ct, NY County 2019]). After considering MASN's and the Orioles' arguments, the court held that they failed to establish evident partiality. The court later entered judgment in the Nationals' favor for more than \$105 million, which included nearly \$6 million in prejudgment interest.

The Appellate Division, among other things, affirmed the judgment, holding that MASN and the Orioles failed to demon-

6. MASN and the Orioles directly appealed as of right to this Court from the RSDC's second arbitration award. We granted the Nationals' motion to dismiss that appeal on nonfinality grounds (*see* 34 NY3d 1011 [2019]).

strate evident partiality in the second arbitration proceeding (*see* 187 AD3d 623, 623 [1st Dept 2020]). The Court also rejected their argument that Supreme Court “unlawfully modified the award in its confirmation order by performing a calculation of the Nationals’ damages” (*id.* at 624).

MASN and the Orioles appealed as of right on dissent grounds from the 2020 Appellate Division order, seeking review of the 2017 Appellate Division order (*see* CPLR 5601 [d]).⁷ We granted MASN and the Orioles leave to appeal from the 2020 order to review that order (*see* 37 NY3d 905 [2021]). Both Appellate Division orders are thus before us on this appeal.

II.

The parties agree that the FAA governs this dispute. That statute’s “primary purpose” is to “ensur[e] that private agreements to arbitrate,” like other contracts, “are enforced according to their terms” (*Volt Information Sciences, Inc. v Board of Trustees of Leland Stanford Junior Univ.*, 489 US 468, 479 [1989]; *see Matter of Salvano v Merrill Lynch, Pierce, Fenner & Smith*, 85 NY2d 173, 181 [1995]). The FAA was thus designed to place arbitration agreements “upon the same footing as other contracts” (*Volt Information Sciences, Inc.*, 489 US at 478 [internal quotation marks omitted]). The parties control the scope and parameters of their arbitration agreement. They generally may agree to arbitrate any issue they choose, and they can set the ground rules for the arbitration proceedings (*see id.*). A court interprets and enforces the parties’ arbitration agreement; it will not rewrite the contract or impose additional terms (*see Matter of Salvano*, 85 NY2d at 182).

Parties to an arbitration agreement typically have the right to “name those who are to be the arbitrators” or “to choose the way in which they are to be selected” (*Matter of Siegel [Lewis]*, 40 NY2d 687, 689 [1976]; *see also Sphere Drake Ins. Ltd. v All Am. Life Ins. Co.*, 307 F3d 617, 620 [7th Cir 2002], *cert denied* 538 US 961 [2003]). In other words, “the method for selecting arbitrators and the composition of the arbitral tribunal have been left to the contract of the parties” (*Matter of Siegel*, 40 NY2d at 689 [internal quotation marks omitted]). The parties may select industry insiders who have “a particular expertise” in the arbitration’s subject matter and existing relationships

7. We denied the Nationals’ motion to dismiss the appeal (*see* 37 NY3d 986 [2021]).

with the parties (*id.*; see also *National Football League Mgt. Council v National Football League Players Assn.*, 820 F3d 527, 548 [2d Cir 2016]; *Sphere Drake Ins. Ltd.*, 307 F3d at 620). Given these considerations, a party’s “choice of an arbitrator” is “a valuable contractual right not lightly to be disregarded” (*Matter of Astoria Med. Group [Health Ins. Plan of Greater N.Y.]*, 11 NY2d 128, 134 [1962] [internal quotation marks omitted]).

The FAA authorizes a court to vacate an arbitral award in defined instances. As relevant here, 9 USC § 10 (a) (2) permits vacatur “where there was evident partiality . . . in the arbitrators.” The Second Circuit has held that “‘evident partiality’ within the meaning of” section 10 “will be found where a reasonable person would have to conclude that an arbitrator was partial to one party to the arbitration” (*Morelite Constr. Corp. [Div. of Morelite Elec. Serv., Inc.] v New York City Dist. Council Carpenters Benefit Funds*, 748 F2d 79, 84 [2d Cir 1984]). The standard makes clear that arbitrators are not held to judicial standards, and prevents vacatur of awards based on “tenuous relationships between the arbitrator and the successful party” (*id.* at 85). This Court has “adopt[ed] the Second Circuit’s reasonable person standard,” applying it when we are asked “to consider the federal evident partiality standard of 9 USC § 10” (*U.S. Elecs., Inc. v Sirius Satellite Radio, Inc.*, 17 NY3d 912, 914 [2011]). Under that standard, “[t]he party seeking vacatur must prove evident partiality by clear and convincing evidence” (*National Football League Mgt. Council*, 820 F3d at 548 [internal quotations marks omitted]; see *U.S. Elecs., Inc.*, 17 NY3d at 915).

[1] We need not address whether a court has the power to direct that a subsequent arbitration occur before an arbitral forum not designated by the parties in their arbitration agreement after the court has vacated an arbitration award on evident partiality grounds. Here, the conflict was cabined in the first proceeding and did not irredeemably infect the RSDC as a forum. Thus, Judge Marks did not err by remitting the matter to the RSDC for the second arbitration hearing. Supreme Court vacated the RSDC’s first award on evident partiality grounds because of the fact-specific conflict caused by Proskauer’s concurrent representation of all the parties involved in the arbitration except MASN and the Orioles. The Nationals no longer challenge this determination. This discrete defect was remedied prior to the second arbitration once the

parties, including the RSDC, retained new counsel. Further, the RSDC panel members presiding over the first arbitration were replaced by new members and, thus, the arbitrators hearing the second proceedings were not tainted by the prior concurrent representation. Remittal to a new arbitral forum was therefore unnecessary to remediate the cause of the evident partiality.

While no court has concluded that MLB's \$25 million advance to the Nationals or Manfred's comments established evident partiality, MASN and the Orioles argue that those facts demonstrate that the RSDC was an improper forum to conduct the second arbitration. We disagree. The advance, made after the parties knew the RSDC's informal determination, maintained the status quo and permitted settlement negotiations to continue in hopes of ending this complex dispute. In these circumstances, MLB did not take a financial stake in the outcome of this matter. In any event, the Nationals agreed to post a bond covering the advance and, later, agreed to repay—and did repay—the \$25 million advance before the second arbitration started. Further, there is no evidence that MLB or Manfred had any undisclosed influence on the panel members beyond that which the parties bargained for in the settlement agreement.

Indeed, the remand to the RSDC for the second proceeding furthered the FAA's primary purpose, ensuring that arbitration contracts are enforced according to their terms. The parties specifically agreed to arbitrate telecast rights fees disputes before the RSDC, carving out an exception to the settlement agreement's general dispute resolution provisions that would otherwise govern. MASN and the Orioles knew that MLB determined the makeup of the RSDC's panel and also knew that the RSDC was composed of MLB insiders. The parties also specifically agreed to arbitrate before the RSDC because it possessed specialized knowledge concerning the complex telecast rights valuations at issue here and an understanding of the ramifications of its decision. The parties agreed to an industry insider controlled process with a full understanding of the commissioner's involvement. MASN and the Orioles cannot now complain that they received something different than what they bargained for through the insider process they selected. We therefore decline to reform the settlement agreement on the facts presented and, instead, agree with the courts below that the remittal to the RSDC afforded MASN and the Orioles

the amount of impartiality that “inhere[d] in the method they” chose (*National Football League Mgt. Council*, 820 F3d at 548).

[2] Concerning the second arbitration award, the courts below correctly concluded that MASN and the Orioles failed to show, by clear and convincing evidence, that a reasonable person would have to conclude that the reconstituted RSDC was evidently partial. For the same reasons that the \$25 million advance did not necessitate a new arbitral forum or establish evident partiality in the first arbitration, the prepayment agreement did not establish evident partiality in the second arbitration. There was also no evidence that MLB engaged in undisclosed activity to influence the RSDC panel members. Vacatur was thus unwarranted under that rationale or based on the RSDC’s denial of MASN’s and the Orioles’ discovery demands, which were premised on that theory. Moreover, a reasonable person could conclude that Manfred’s public statements did not establish evident partiality because the RSDC, not Manfred, made the final determination, and the statements could not realistically be construed as a directive to the RSDC panel members.

[3] Although the courts below correctly confirmed the second arbitration award, the order appealed from must be modified because Supreme Court erred by awarding the Nationals prejudgment interest and rendering a money judgment in the Nationals’ favor. The settlement agreement grants the RSDC the power only to determine “the fair market value” of the telecast rights fees. The parties did not agree that the RSDC could resolve disputes over nonpayment of such fees. Instead, remedies for MASN’s nonpayment of those fees are governed by a different provision of the settlement agreement, which sets forth certain requirements, including a cure period. Only after that cure period expires do the Nationals “have a right to seek money damages.” Further, disputes over nonpayment of the fees appear to be governed by the settlement agreement’s more general dispute resolution provisions. Now that our courts have confirmed the RSDC’s determination of the fair market value of the telecast rights, the parties must resolve any disputes over nonpayment of those fees in accordance with their agreement. While it is unfortunate that our decision may send this protracted litigation into extra innings, that result is necessitated by the settlement agreement’s terms.

In the end, these sophisticated and counseled parties agreed to arbitrate their telecast rights fees dispute before the RSDC

and to follow a stated procedure concerning nonpayment of those fees. The parties have failed to establish any basis to deviate from that contract. Accordingly, the order appealed from and so much of the 2017 Appellate Division order brought up for review should be modified, without costs, in accordance with this opinion and, as so modified, affirmed.

Chief Judge WILSON and Judges RIVERA, GARCIA, CANNATARO and TROUTMAN concur. Judge HALLIGAN took no part.

Order appealed from and so much of the 2017 Appellate Division order brought up for review modified, without costs, in accordance with the opinion herein and, as so modified, affirmed.

[215 NE3d 1157, 194 NYS3d 716]

KEVIN GRADY, Appellant, v CHENANGO VALLEY CENTRAL SCHOOL DISTRICT et al., Respondents.

JOANNE SECKY, Individually and as Mother and Natural Guardian of J.K.S., an Infant, Appellant, v NEW PALTZ CENTRAL SCHOOL DISTRICT et al., Respondents.

Argued March 15, 2023; decided April 27, 2023

SUMMARY

APPEAL, in the first above-entitled action, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered January 28, 2021. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, Broome County (Ferris D. Lebous, J.; op 2019 NY Slip Op 34958[U] [2019]), which had (1) granted defendants' motion for summary judgment dismissing the complaint; and (2) dismissed the complaint.

APPEAL, in the second above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered June 24, 2021. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Ulster County (Christopher E. Cahill, J.; op 2020 NY Slip Op 35424[U] [2020]), which had denied defendants' motion for summary judgment dismissing the complaint; (2) granted the motion; and (3) dismissed the complaint.

Grady v Chenango Val. Cent. Sch. Dist., 190 AD3d 1218, reversed.

Secky v New Paltz Cent. Sch. Dist., 195 AD3d 1347, affirmed.

HEADNOTES

Negligence — Assumption of Risk — Collision with Bleachers during Basketball Drill

1. Plaintiff's action to recover for injuries he sustained when he collided with retracted bleachers near the basketball court on which he was participating in a team rebounding drill with no boundary lines was properly dismissed, where plaintiff's injury was one inherent in the sport of basketball and so he assumed the risk of the injury he sustained. The risk of collision with an open and obvious item near a basketball court is inherent in playing on the court. Although the assumption of risk to be implied from participation in a sport with awareness of the risk is generally a question of fact for a jury, dismissal of a complaint as a matter of law is warranted when on the evidentiary materials before the court no fact issue remains for decision by

the trier of fact. The drill assigned to plaintiff and his teammates did not unreasonably increase the risk of injury beyond that inherent in the sport of basketball.

Negligence — Assumption of Risk — Injury during Complex Baseball Drill

2. In plaintiff's action to recover for injuries he sustained during an intricate team baseball drill when an errant ball bypassed a protective screen and hit him on the side of his face, material issues of fact existed as to whether plaintiff's injury was sustained as a result of the inherent risk of baseball. Plaintiff raised triable questions of fact regarding whether the drill, as conducted here and with the use of the seven-by-seven-foot screen, was unique and created a dangerous condition over and above the usual dangers that are inherent in baseball, and whether plaintiff's awareness of the risks inherent in both the game of baseball and the practices that are a necessary part of participation in organized sports encompassed the risks arising from involvement in the drill performed here. Under the unique circumstances, because of the way this drill, with multiple balls in play directed to the same part of the field and with only a relatively small protective screen positioned in front of the first baseman, was conducted, it could not be said that, as a matter of law, the conditions of play were as safe as they appeared to be. Errant balls may be an inherent risk of playing baseball, but a jury should be permitted to determine whether plaintiff's injury was the result of such an inherent risk, or whether the risks were concealed or unreasonably enhanced by the complexity of the drill performed with use of a small protective screen.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Entertainment and Sports Law §§ 91, 92; AM
JUR 2d Negligence §§ 744, 745, 752, 754, 756, 762, 765.
DOBBS LAW OF TORTS (2d ed) §§ 238, 240.
NY JUR 2d Negligence §§ 171, 173, 176, 179–183, 187.
NEW YORK LAW OF TORTS §§ 11:5, 11:22, 21:130.

ANNOTATION REFERENCE

See ALR Index under Contributory Negligence or Assumption of Risk; Negligence; Sports.

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POINTS OF COUNSEL

O'Hare Parnagian LLP, New York City (*Robert A. O'Hare Jr.* and *Andrew C. Levitt* of counsel), and *Kahn Gordon Timko &*

Rodriques, P.C., New York City (*Nicholas I. Timko* of counsel), for appellant in the first above-entitled action. I. This appeal is proper under CPLR 5601 (a) because there were dissents by two Appellate Division Justices on questions of law. (*Custodi v Town of Amherst*, 20 NY3d 83; *Espinal v Melville Snow Contrs.*, 98 NY2d 136; *Anand v Kapoor*, 61 AD3d 787, 15 NY3d 946; *Owen v R.J.S. Safety Equip.*, 79 NY2d 967; *Bukowski v Clarkson Univ.*, 19 NY3d 353; *Hewitt v Palmer Veterinary Clinic, PC*, 35 NY3d 541; *Xiang Fu He v Troon Mgt., Inc.*, 34 NY3d 167; *Morgan v State of New York*, 90 NY2d 471; *Benitez v New York City Bd. of Educ.*, 73 NY2d 650; *Turcotte v Fell*, 68 NY2d 432.) II. The judicial doctrine of primary assumption of risk should be abolished as fundamentally incompatible with the will of the New York State Legislature. (*Trupia v Lake George Cent. School Dist.*, 14 NY3d 392; *Matter of Tucker v Board of Educ., Community School Dist. No. 10*, 82 NY2d 274; *People v Iverson*, 37 NY3d 98; *Motorola Credit Corp. v Standard Chartered Bank*, 24 NY3d 149; *Raffellini v State Farm Mut. Auto. Ins. Co.*, 9 NY3d 196; *Murtagh v Nyquist*, 78 Misc 2d 876.) III. Even under the primary assumption of risk doctrine as it currently exists, summary judgment was inappropriate. (*Owen v R.J.S. Safety Equip.*, 169 AD2d 150, 79 NY2d 967; *Brown v Roosevelt Union Free Sch. Dist.*, 130 AD3d 852; *Weinberger v Solomon Schechter Sch. of Westchester*, 102 AD3d 675; *Gilbert v Lyndonville Cent. School Dist.*, 286 AD2d 896; *DeGala v Xavier High School*, 203 AD2d 187; *Parisi v Harpursville Cent. School Dist.*, 160 AD2d 1079; *Kane v North Colonie Cent. School Dist.*, 273 AD2d 526; *Simmons v Saugerties Cent. School Dist.*, 82 AD3d 1407; *Weller v Colleges of the Senecas*, 217 AD2d 280; *Baker v Briarcliff School Dist.*, 205 AD2d 652.) IV. Both the Appellate Division and the Supreme Court erroneously failed to recognize the independent, nondelegable duty to conduct athletic activities safely imposed on defendants by the Commissioner of Education's regulations. (*D'Angelo v Cole*, 67 NY2d 65.)

The Law Firm of Frank W. Miller, East Syracuse (*Giancarlo Facciponte* and *Frank W. Miller* of counsel), for respondents in the first above-entitled action. I. The defense of primary assumption of risk must stand, and under its accurate interpretation, no conflict of law exists between that defense and CPLR 1411. (*Turcotte v Fell*, 68 NY2d 432; *Cotty v Town of Southampton*, 64 AD3d 251; *Ashbourne v City of New York*, 82 AD3d 461; *Custodi v Town of Amherst*, 20 NY3d 83; *Dowd v New York, Ontario & W. Ry. Co.*, 170 NY 459; *Murphy v Steeplechase*

Amusement Co., 250 NY 479; *Eastland v Delaware, Lackawanna & W. R.R. Co.*, 118 Misc 199; *Eastland v Delaware, Lackawanna & W. R.R. Co.*, 204 App Div 859; *Westerville v Cornell Univ.*, 291 AD2d 447; *De Angelis v Lutheran Med. Ctr.*, 58 NY2d 1053.) II. The primary assumption of risk doctrine was properly applied in these circumstances. (*DeMarco v DeMarco*, 154 AD3d 1226; *Custodi v Town of Amherst*, 20 NY3d 83; *Bukowski v Clarkson Univ.*, 19 NY3d 353; *Legac v South Glens Falls Cent. Sch. Dist.*, 150 AD3d 1582; *O'Connor v Hewlett-Woodmere Union Free Sch. Dist.*, 103 AD3d 862; *Benitez v New York City Bd. of Educ.*, 73 NY2d 650; *Kane v North Colonie Cent. School Dist.*, 273 AD2d 526; *Morgan v State of New York*, 90 NY2d 471; *Rawson v Massapequa Union Free School Dist.*, 251 AD2d 311; *Falcaro v American Skating Ctrs., LLC*, 167 AD3d 721.) III. Summary judgment was appropriate, and appellant's argument that defenses of assumption of risk must always go to trial has no merit.

New York State Trial Lawyers Association, New York City (Edward A. Steinberg, Souren A. Israelyan and Annette G. Hasapidis of counsel), for New York State Trial Lawyers Association, amicus curiae in the first above-entitled action. The primary assumption of risk doctrine, a remnant of the bygone era of contributory negligence, is an obstacle to the dispensing of substantial justice. (*Fitzpatrick v International Ry. Co.*, 252 NY 127; *Tiller v Atlantic Coast Line R. Co.*, 318 US 54; *Rodriguez v City of New York*, 31 NY3d 312; *Tuttle v Detroit G.H. & M. Ry. Co.* 122 US 189; *McEvoy v City of New York*, 266 App Div 445, 292 NY 654; *Matter of Walsh v New York State Comptroller*, 34 NY3d 520; *Turcotte v Fell*, 68 NY2d 432; *Akins v Glens Falls City School Dist.*, 53 NY2d 325; *Davidoff v Metropolitan Baseball Club*, 61 NY2d 996; *Clapman v City of New York*, 63 NY2d 669.)

Steven A. Kimmel, Washingtonville, for appellant in the second above-entitled action. I. The Appellate Division failed to properly evaluate the basis for the opinions and conclusions offered by defendants' expert before accepting them. (*Maldonado v Su Jong Lee*, 278 AD2d 206; *Avella v Jack LaLanne Fitness Ctrs.*, 272 AD2d 423; *Cassano v Hagstrom*, 5 NY2d 643; *Hambusch v New York City Tr. Auth.*, 63 NY2d 723; *Tirado v Koritz*, 156 AD3d 1342; *Matter of Freitag v New York Times*, 260 AD2d 748; *Accardo v Metro-North R.R.*, 103 AD3d 589; *La-Marque v North Shore Univ. Hosp.*, 227 AD2d 594.) II. The Appellate Division, Third Department failed to properly consider

the infant plaintiff's age and experience in finding that he had knowingly and voluntarily assumed the increased risk of injury created by the elimination of the basketball court boundaries. (*Hanson v Sewanhaka Cent. High Sch. Dist.*, 155 AD3d 702; *Deserto v Goshen Cent. Sch. Dist.*, 153 AD3d 595; *Brown v Roosevelt Union Free Sch. Dist.*, 130 AD3d 852; *DiBenedetto v Town Sports Intl., LLC*, 118 AD3d 663; *Braile v Patchogue Medford Sch. Dist. of Town of Brookhaven, Suffolk County, N.Y.*, 123 AD3d 960; *Owen v R.J.S. Safety Equip.*, 79 NY2d 967; *Morgan v State of New York*, 90 NY2d 471; *Zhou v Tuxedo Ridge, LLC*, 180 AD3d 960; *Lee v Brooklyn Boulders, LLC*, 156 AD3d 689; *Mussara v Mega Funworks, Inc.*, 100 AD3d 185.)

The Mills Law Firm, LLP, Clifton Park (Christopher K. Mills of counsel), for respondents in the second above-entitled action. I. Plaintiff student assumed the inherent risk of injury by voluntarily participating in the basketball drill. (*Morgan v State of New York*, 90 NY2d 471; *Turcotte v Fell*, 68 NY2d 432; *Bukowski v Clarkson Univ.*, 19 NY3d 353; *Trevett v City of Little Falls*, 6 NY3d 884; *Maddox v City of New York*, 66 NY2d 270; *Altagracia v Harrison Cent. Sch. Dist.*, 136 AD3d 848; *Perez v New York City Dept. of Educ.*, 115 AD3d 921; *Ribaudo v La Salle Inst.*, 45 AD3d 556, 10 NY3d 717; *Joseph v New York Racing Assn.*, 28 AD3d 105; *Legac v South Glens Falls Cent. Sch. Dist.*, 150 AD3d 1582.) II. While expert opinions are not necessary to determine the applicability of the assumption of risk doctrine, the opinions of defendants' expert are admissible while the opinions of plaintiffs' "expert" are not. (*Superhost Hotels Inc. v Selective Ins. Co. of Am.*, 160 AD3d 1162; *Caprara v Chrysler Corp.*, 52 NY2d 114; *Dalder v Incorporated Vil. of Rockville Ctr.*, 116 AD3d 908, 23 NY3d 908; *Hinlicky v Dreyfuss*, 6 NY3d 636; *People v Wlasiuk*, 32 AD3d 674; *Borden v Brady*, 92 AD2d 983.)

OPINION OF THE COURT

GARCIA, J.

Since the enactment of the comparative fault regime of CPLR article 14-A in 1975, this Court has retained a form of the primary assumption of risk doctrine, applicable only in a narrow set of circumstances, in recognition of the fact that "athletic and recreative activities possess enormous social value, even while they involve significantly heightened risks" (*Trupia v Lake George Cent. School Dist.*, 14 NY3d 392, 395 [2010]). Both plaintiffs here seek to recover for injuries sustained during

organized sports practices for high school athletic teams, and appeal from orders granting defendants' motions for summary judgment. Application of this well-established assumption of risk doctrine to these two cases produces different outcomes: in *Secky*, we affirm the order of the Appellate Division granting summary judgment, and in *Grady*, we reverse because material questions of fact remain.

I.

The primary assumption of risk doctrine,¹ as articulated by Chief Judge Cardozo, is based on the premise that “[o]ne who takes part in . . . a sport accepts the dangers that inhere in it so far as they are obvious and necessary” (*Morgan v State of New York*, 90 NY2d 471, 482-483 [1997], quoting *Murphy v Steeplechase Amusement Co.*, 250 NY 479, 482-483 [1929]). Enactment of a comparative negligence standard in 1975, however, required this Court to reexamine the “fit,” or “continued viability,” of this long-standing common-law assumption of risk doctrine (*see Morgan*, 90 NY2d at 483). The relevant statute provides that

“[i]n any action to recover damages for personal injury, injury to property, or wrongful death, the culpable conduct attributable to the claimant or to the decedent, including contributory negligence or assumption of risk, shall not bar recovery, but the amount of damages otherwise recoverable shall be diminished in the proportion which the culpable conduct attributable to the claimant or decedent bears to the culpable conduct which caused the damages” (CPLR 1411).

Though we have acknowledged that the assumption of risk doctrine may not “sit comfortably” within the landscape of comparative fault, it remains in full force in the limited context of athletic and recreative activities (*Trupia*, 14 NY3d at 395).

Our justification for retaining the doctrine in these circumstances is clear: because “athletic and recreative activities possess enormous social value, even while they involve significantly heightened risks,” we have “employed the notion that these risks may be voluntarily assumed to preserve these beneficial pursuits as against the prohibitive liability to which

1. “[A]s the term [assumption of risk] applies to sporting events it involves what commentators call ‘primary’ assumption of risk” (*Turcotte v Fell*, 68 NY2d 432, 438 [1986]).

they would otherwise give rise” (*id.* at 395; see *Custodi v Town of Amherst*, 20 NY3d 83, 87-88 [2012] [continued application of the assumption of risk doctrine “fosters these socially beneficial activities by shielding coparticipants, activity sponsors or venue owners from ‘potentially crushing liability’ ”], quoting *Bukowski v Clarkson Univ.*, 19 NY3d 353, 358 [2012]). At the same time, we are mindful that “application [of the assumption of risk doctrine] must be closely circumscribed if it is not seriously to undermine and displace the principles of comparative causation that the Legislature has deemed applicable to ‘any action to recover damages for personal injury, injury to property, or wrongful death’ ” (*Trupia*, 14 NY3d at 395-396 [citation omitted], quoting CPLR 1411). Accordingly, assumption of risk in this context “is no longer treated as a defense to the abandoned contributory negligence equation” (*Morgan*, 90 NY2d at 485). Rather, the doctrine defines “the standard of care under which a defendant’s duty is defined and circumscribed ‘because assumption of risk in this form is really a principle of no duty, or no negligence and so denies the existence of any underlying cause of action’ ” (*id.*, quoting Prosser & Keeton, Torts § 68 at 496-497 [5th ed 1984]; see *Trupia*, 14 NY3d at 395 [doctrine “limit(s) duty through consent—indeed, it has been described as a ‘principle of no duty’ rather than an absolute defense based upon a plaintiff’s culpable conduct”])).

In these limited circumstances, “primary assumption of the risk applies when a consenting participant in a qualified activity ‘is aware of the risks; has an appreciation of the nature of the risks; and voluntarily assumes the risks’ ” (*Custodi*, 20 NY3d at 88, quoting *Bukowski*, 19 NY3d at 356; see *Turcotte v Fell*, 68 NY2d 432, 439 [1986] [where “the risks of the activity are fully comprehended or perfectly obvious, plaintiff has consented to them and defendant has performed its duty”])). Moreover, “[i]t is not necessary to the application of assumption of risk that the injured plaintiff have foreseen the exact manner in which his or her injury occurred, so long as he or she is aware of the potential for injury of the mechanism from which the injury results” (*Maddox v City of New York*, 66 NY2d 270, 278 [1985]). A participant is not, however, deemed to have assumed “risks that are concealed or unreasonably enhanced” (*Custodi*, 20 NY3d at 88; see *Bukowski*, 19 NY3d at 356). The two cases we consider here provide an opportunity to apply these principles in the context of two quite different organized practice drills for high school athletic teams.

We reject Judge Rivera’s entreaty to abandon decades of applicable precedent that has been so frequently, and so recently, reaffirmed (*see Turcotte*, 68 NY2d 432 [reaffirming approach in 1986]; *Benitez v New York City Bd. of Educ.*, 73 NY2d 650, 657 [1989] [same in 1989]; *Morgan*, 90 NY2d 471 [same in 1997]; *Trevett v City of Little Falls*, 6 NY3d 884, 885 [2006] [same in 2006]; *Trupia*, 14 NY3d 392 [same in 2010]; *Bukowski*, 19 NY3d 353 [same in 2012]). “Even under the most flexible version of the doctrine [of *stare decisis*] . . . , prior decisions should not be overruled unless a ‘compelling justification’ exists for such a drastic step” (*Matter of State Farm Mut. Auto. Ins. Co. v Fitzgerald*, 25 NY3d 799, 819 [2015]; *see also Palladino v CNY Centro, Inc.*, 23 NY3d 140, 151 [2014] [considering “the Legislature’s competency to correct (judicial) misinterpretation” as a factor in favor of adhering to precedent (internal quotation marks omitted)]). Our *stare decisis* doctrine does not permit overturning precedent merely because “[i]t’s time” (Rivera, J., concurring & dissenting op at 100).² Nothing more than Judge Rivera’s unsupported assertion that “the policy concerns that animated the Court’s jurisprudence have proved unfounded” and references to “experience [that] teaches us that a policy driving our case law is unjustified”—without explanation of what that experience is—are provided to meet this significant burden (Rivera, J., concurring & dissenting op at 103-104, 116 n 12).³ Instead of providing a “compelling justification,” Judge Rivera summarily characterizes nearly 50 years of precedent as a misinterpretation of CPLR 1411 (Rivera, J., concurring &

2. Judge Rivera’s opinion’s reliance on the experience of other jurisdictions is less than compelling, since only two of eight cited cases involve circumstances in which this Court would apply the assumption of risk doctrine to bar recovery. Moreover, Judge Rivera’s opinion provides no support for its claim that the experience of other jurisdictions allowing for liability under these circumstances has shown that “the fear of ‘potentially crushing liability’ on school athletics has no basis in reality” (Rivera, J., concurring & dissenting op at 115-116). The record before us is bereft of evidence that states opting to allow for liability in similar circumstances have not seen any cuts to scholastic sports budgets or even a chilling effect on employment in athletics in decades (Rivera, J., concurring & dissenting op at 116 n 11), nor do we know what sorts of other limitations on liability and damages those states may impose.

3. By comparison, the cases cited in Judge Rivera’s opinion as instances where the Court has “correct[ed] our mistaken interpretations of statutes” provide useful examples of the detailed analysis and compelling justification that must drive a decision to abandon decades of precedent (Rivera, J., concurring & dissenting op at 116 n 12).

dissenting op at 100)—albeit one that the legislature has never sought to “correct.”

II.

[1] In *Secky*, the primary assumption of risk doctrine applies, and we affirm the Appellate Division order granting defendants’ motion for summary judgment. Plaintiff, who had played basketball at the highest amateur student level, was injured during a drill in which the players competed to retrieve a rebound. Plaintiff’s coach had explained that the boundary lines of the court would not apply during the drill and that only major fouls would be called. At the time of the drill, bleachers stationed near the court were retracted. Plaintiff was injured when, pursuing a loose ball from the top of the key towards the bleachers, another player collided with him, causing plaintiff to fall into the bleachers and sustain an injury to his right shoulder. Plaintiff, through his mother, sued the coach and the school district, and defendants moved for summary judgment.

Supreme Court denied defendant’s motion because of conflicting expert testimony (2020 NY Slip Op 35424[U] [Sup Ct, Ulster County 2020]), and the Appellate Division reversed (195 AD3d 1347 [3d Dept 2021]). The Appellate Division majority held that elimination of the boundary lines during the drill “did not unreasonably increase the inherent risks of the drill or playing basketball,” and so plaintiff did not satisfy his burden on summary judgment (*id.* at 1348-1349). One Justice dissented, asserting that “whether the elimination of boundaries and the relaxation of foul calls unreasonably enhanced the risk of the drill in this situation is . . . a question of fact to be determined by a jury” (*id.* at 1350).

We now affirm because plaintiff’s injury is one inherent in the sport of basketball and so he assumed the risk of the injury he sustained. We have, in fact, previously held that “the risk of collision with [an open and obvious item near a basketball court] was inherent in playing on that court” and so plaintiff had assumed the risk of that injury (*Trevett*, 6 NY3d at 885).

“[A]lthough the assumption of risk to be implied from participation in a sport with awareness of the risk is generally a question of fact for a jury, dismissal of a complaint as a matter of law is warranted when on the evidentiary materials before

the court no fact issue remains for decision by the trier of fact” (*Maddox*, 66 NY2d at 279 [citation omitted]).

Here, no such fact issue remains. The drill assigned to plaintiff and his teammates did not unreasonably increase the risk of injury beyond that inherent in the sport of basketball, and the Appellate Division properly granted defendants’ motion for summary judgment.

III.

In *Grady*, by contrast, material issues of fact remain to be resolved by a jury. Plaintiff, a senior on the Chenango Valley High School varsity baseball team, was injured during his participation in a fast-moving, intricate drill. The drill involved two coaches hitting balls to players stationed in the infield, with one coach hitting to the third baseman, who would then throw to first base, while another coach hit to the shortstop, who would throw to the second baseman who would, in turn, throw to a player at “short first base,” positioned a few feet from regulation first base. Because the drill required baseballs from two parts of the infield to be thrown to two players in the same area by first base, the coaches had positioned a protective screen, measuring seven feet by seven feet, between the regulation first baseman and the short first baseman. Plaintiff, in the group of players assigned to first base, was injured when an errant ball, intended for the short first baseman, bypassed the short first baseman and the protective screen and hit him on the right side of his face, causing serious injury to his eye including significant vision loss. Plaintiffs sued his coaches and the school district, and defendants moved for summary judgment.

Supreme Court granted defendants’ motion for summary judgment, finding that plaintiff was aware of the drill’s risks and his “awareness here was specifically related to this activity, the multiple ball drill which he had played on previous occasions and his specific awareness of errant throws immediately prior to this accident” (2019 NY Slip Op 34958[U], *7 [Sup Ct, Broome County 2019]). Accordingly, the court concluded that “plaintiff has failed to prove that he was faced with a risk that was unassumed, concealed or unreasonably increased and has failed to raise a triable issue of fact” (*id.* at *8).

The Appellate Division affirmed, holding that “the evidence showed that plaintiff was an experienced baseball player who

knew of the risks, appreciated their nature and voluntarily assumed them, defendants demonstrated their prima facie entitlement to summary judgment under the primary assumption of risk doctrine,” and “plaintiff failed to raise a triable question of fact” in response (190 AD3d 1218, 1220-1221 [3d Dept 2021]). The majority concluded that “[h]aving more than one ball in play may not be an inherent risk in a traditional baseball game, but the record indicates that it is a risk inherent in baseball team practices” and that the small screen did not make the drill unreasonably dangerous because of plaintiff’s “testimony unequivocally establishing that he did not rely upon the screen for safety but, rather, thought that the drill was unsafe even in the presence of the screen” (*id.* at 1220). One Justice dissented on the basis that a question of fact existed regarding the adequacy of the protective screen, while another Justice dissented because “a jury should be permitted to make the determination as to whether the drill was sufficiently related to the sport of baseball and whether it posed an unreasonable risk of harm” (*id.* at 1221-1228). We now reverse.

[2] Defendants have not shown that, as a matter of law, plaintiff’s injury was sustained as a result of the inherent risk of baseball, or even due to “suboptimal playing conditions” (*Bukowski*, 19 NY3d at 357). Instead, plaintiff has raised triable questions of fact regarding whether the drill, as conducted here and with the use of the seven-by-seven-foot screen, “was unique and created a dangerous condition over and above the usual dangers that are inherent” in baseball (*Owen v R.J.S. Safety Equip.*, 79 NY2d 967, 970 [1992]), and whether plaintiff’s awareness of the risks inherent in both the game of baseball and the practices that are a necessary part of participation in organized sports encompassed the risks arising from involvement in the drill performed here. Under these unique circumstances, because of the way this drill, with multiple balls in play directed to the same part of the field and with only a relatively small protective screen positioned in front of the first baseman, was conducted, we cannot say that, as a matter of law, the conditions of play were “as safe as they appear[ed] to be” (*Turcotte*, 68 NY2d at 439). While “[t]he line to be drawn and applied in this case is close, . . . plaintiffs have the better of it” (*Morgan*, 90 NY2d at 488). Errant balls may be an inherent risk of playing baseball, but a jury should be permitted to determine whether plaintiff’s injury was the result of such an

inherent risk, or whether the “risks [were] concealed or unreasonably enhanced” by the complexity of the drill performed with use of a small protective screen (*Custodi*, 20 NY3d at 88; see *Bukowski*, 19 NY3d at 356).

Accordingly, in *Secky*, the order of the Appellate Division should be affirmed, with costs. In *Grady*, the order of the Appellate Division should be reversed, with costs, and defendants’ motion for summary judgment denied.

RIVERA, J. (concurring in *Grady* and dissenting in *Secky*). It’s time we correct the errors of the past and abandon the implied assumption of risk doctrine that the Court has retained despite the Legislature’s unequivocal abolition of contributory negligence and assumption of risk as complete defenses. New York is a comparative fault jurisdiction. Under that tort rule, the question of a defendant’s liability should be submitted to the trier of fact with an appropriate charge on comparative culpability so that any damage award may be assigned based on each party’s fault, in accordance with CPLR article 14-A. Therefore, the Appellate Division orders in the respective appeals before us should be reversed and the cases decided at trial because the defendants’ liability cannot be resolved on summary judgment. Although the majority reaches the correct outcome in *Grady*, it does so by applying several of the Court’s prior holdings that misinterpreted CPLR 1411’s plain text and thereby diminished the statute’s intended purpose. Under CPLR 1411, assumption of risk is a basis to reduce the plaintiff’s damage award, not to bar relief from injuries caused by a defendant’s tortious conduct.

I.

In 1975, the Legislature adopted a comparative fault regime, expressly abolishing “contributory negligence and assumption of risk as absolute defenses” (*Trupia v Lake George Cent. School Dist.*, 14 NY3d 392, 394 [2010]). Specifically, CPLR 1411 provides that

“[i]n any action to recover damages for personal injury, injury to property, or wrongful death, *the culpable conduct attributable to the claimant or to the decedent, including contributory negligence or assumption of risk, shall not bar recovery*, but the amount of damages otherwise recoverable shall be diminished in the proportion which the culpable

conduct attributable to the claimant or decedent bears to the culpable conduct which caused the damages” (emphasis added).

In accordance with our established rules of interpretation, we are bound to “ascertain and give effect to the intention of the Legislature” (McKinney’s Cons Laws of NY, Book 1, Statutes § 92 [a] at 177 [1971 ed]), and the best evidence of that intent is the text as written, giving it its plain meaning (*People v Cahill*, 2 NY3d 14, 117 [2003], citing *Riley v County of Broome*, 95 NY2d 455, 463 [2000]; see also *People v Galindo*, 38 NY3d 199, 203 [2022]). On its face, the text sounds the death knell of contributory negligence and assumption of risk’s per se rule disallowing recovery by a plaintiff who shared some percentage of negligence in causing the underlying harm (see *Arbegas v Board of Educ. of S. New Berlin Cent. School*, 65 NY2d 161, 165 [1985]; *Fitzpatrick v International Ry. Co.*, 252 NY 127, 134 [1929] [(T)he slightest contributory negligence upon the part of the plaintiff, no matter how or by whom it may be proven, bars recovery; establishes that there is and was no cause of action, no right to damages”).

Indeed, legislative history reveals a shared intent among all three branches of the government to abolish assumption of risk as an absolute bar to recovery—whether conceived as a measure of the defendant’s duty or as a defense to a breach of that duty. In the mid-1970s, members of the judiciary familiar with the assumption of risk doctrine first proposed in a Judicial Conference report the enactment of CPLR 1411 as part of a broader legislative package and commented on the tendency of the doctrine’s emerging “no-duty” rationale to devolve into a de facto bar to recovery. The report observed that “[o]n occasion, a New York court has taken the position that assumption of risk is not a mere defense to an action for negligence, but actually negates any duty owed by the defendant to the plaintiff,” and cautioned that endorsement of “[s]uch an analysis would bar plaintiff’s recovery as a matter of law, thereby undermining the purpose of this article—to permit partial recovery in cases in which the conduct of each party is culpable” (13th Ann Rep of Jud Conf on CPLR, reprinted in 1975 McKinney’s Session Laws of NY at 1477, 1485). Thus, the Conference “expected that the courts will treat assumption of risk as a form of culpable conduct under this article” when applying the comparative

negligence regime it proposed (*id.*).¹ As the report further noted, the Legislature employed the term “culpable conduct” rather than “negligent conduct,” thus indicating its intent to have juries consider the conduct even of defendants who had acted reasonably (*id.* at 1484).

The legislative branch agreed and abolished assumption of risk as a bar to recovery. The Assembly Sponsor of the legislation that included CPLR 1411 explained:

“[T]he bill would equate the defenses of contributory negligence and assumption of risk under the rubric of ‘culpable conduct.’ This is consistent with the position taken by the New York courts (*McFarlane v. City of Niagara Falls*, 247 N.Y. 340, 349 (1928). Unless assumption of risk is so treated, it would negate any duty owed by defendant to plaintiff (see *McEvoy v. City of New York*, 266 App. Div. 445, 447 (Second Dept. 1943), *affd.* 292 N.Y. 654 (1944)), thus undermining the purpose of the proposed bill, which is to permit partial recovery in cases in which the conduct of each party is culpable” (Mem of Stanley Fink, Member of Assembly, Bill Jacket, L 1975, ch 69; *accord* Mem of St of NY Off of Ct Admin, Bill Jacket, L 1975, ch 69; *see also* 13th Ann Rep of Jud Conf on CPLR, reprinted in 1975 McKinney’s Session Laws of NY at 1477, 1484 [noting that this interpretation of the provision “is consistent with the result reached in the vast majority of states that have adopted some form of comparative negligence”]).

Finally, in a memorandum to the Governor regarding the legislation, the Attorney General expressed in plainest terms that “[t]he bill abrogates the common law rules of contributory negligence and assumption of risk and establishes a rule of so-called ‘pure’ comparative negligence” (Mem of Atty Gen, Bill Jacket, L 1975, ch 69).

II.

A.

Shortly after the Legislature passed CPLR 1411, the Court, despite the statute’s plain text and legislative history, breathed

1. At the time, commentators had a similar expectation (*see* 1B Warren’s NY Negligence § 2.03 at 1028 [rev 2d ed 1980]).

life into the old contributory negligence tort regime by resurrecting a vestigial form of implied assumption of risk labeled “primary” assumption of risk, resulting in a retention of the common-law distinction between implied and express assumption of risk. Under that framework, a plaintiff who is aware of and assumes the risks of an activity through their voluntary participation implicitly relieves a defendant of any duty of care to the plaintiff, while a plaintiff who expressly assumes a known risk—by, for example, contractually waiving liability—renders the defendant not liable for a breach of the duty of care (see *Arbegast*, 65 NY2d at 165-166). Put another way, a defendant owes no duty to a plaintiff who, through their participation, has implicitly assumed the risk of the activity whereas a defendant is absolved of liability for a breach of their duty of care when a plaintiff expressly assumes the risks.²

For policy reasons, the Court has limited the doctrine to participants in professional and recreational sports (see *Trupia*, 14 NY3d at 395). “[T]he assumption of risk to be implied from participation in a sport with awareness of the risk is generally a question of fact for a jury” and “dismissal of a complaint as a matter of law is warranted when on the evidentiary materials before the court no fact issue remains for decision by the trier of fact” (*Maddox*, 66 NY2d at 279). And while the Court has acknowledged the “no-duty” conceptualization of “primary” assumption of risk, the Court has nonetheless imposed on defendants a modified, albeit narrow, duty of care. Specifically, a defendant has “a duty to exercise care to make the conditions as safe as they appear to be” (*Custodi v Town of Amherst*, 20 NY3d 83, 88 [2012]). The Court has also cabined the scope of potential risks assumed by plaintiffs such that “participants are not deemed to have assumed risks resulting from the reckless or intentional conduct of others, or risks that are concealed or unreasonably enhanced” (*id.*).

As I discuss, and as plaintiff Grady contends, CPLR 1411 does not lend itself to this interpretation and we should no longer continue to hold that it does.³ Moreover, because the doctrine leads to results at times difficult to harmonize, and the

2. A defendant moving for summary judgment on this basis need not first “establish[] their own exercise of reasonable care” (*Maddox v City of New York*, 66 NY2d 270, 276 [1985]).

3. Contrary to the view of my dissenting colleague, Judge Singas (see Singas, J., dissenting & concurring op at 119), Grady’s challenge to the Court’s prior interpretation of CPLR 1411 is properly before us. Lower courts are

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policy concerns that animated the Court’s jurisprudence have proved unfounded, it is time to abolish the last remnant of the contributory fault era embodied in this vestigial “primary” assumption of risk doctrine.

B.

The Court has elected to overrule prior precedent “only when there is a compelling justification for doing so” (*People v Lopez*, 16 NY3d 375, 384 n 5 [2011]), including when departure from stare decisis yields sounder jurisprudence (*People v Peque*, 22 NY3d 168, 194 [2013]; see also *People v Hogan*, 26 NY3d 779, 791 [2016, Rivera, J., dissenting] [“Stare decisis is not meant to fit the Court like a straightjacket and to prevent mistakes from being rectified”]). Adherence to precedent is unjustified when: (1) the prior holding “leads to an unworkable rule, or . . . creates more questions than it resolves” (*People v Taylor*, 9 NY3d 129, 149 [2007]); (2) it “‘colli[des] with a prior doctrine more embracing in its scope, intrinsically sounder, and verified by experience’” (*Hobson*, 39 NY2d at 487, quoting *Helvering v Hallock*, 309 US 106, 119 [1940]); (3) subsequent controlling pronouncements have thrown the precedent into doubt so that it “no longer serves the ends of justice or withstands the cold light of logic and experience” (*Policano v Herbert*, 7 NY3d 588, 604 [2006] [internal quotation marks omitted]; see also *People v Reome*, 15 NY3d 188, 194 [2010]), or, more generally, (4) the precedent has simply been undermined by “the ‘lessons of experience and the force of better reasoning’” (*Bing*, 76 NY2d at 338, quoting *Burnet v Coronado Oil & Gas Co.*, 285 US 393, 407-408 [1932, Brandeis, J., dissenting]) such that the prevailing rule has ossified into an “archaic and obsolete doctrine which has lost its touch with reality” (*Hobson*, 39 NY2d at 487).

Critically, where “[l]egislative correction is confined[,] . . . [t]ort cases, but especially personal injury cases, offer another example where courts will, if necessary, more readily re-examine established precedent to achieve the ends of justice in

bound to follow our rulings since, as the High Court of New York State, we are the only tribunal empowered to overrule our precedents (see *Matter of New York Civ. Liberties Union v New York City Police Dept.*, 148 AD3d 642, 644 [1st Dept 2017] [“(W)e cannot overrule . . . Court of Appeals’ decisions . . . and are obligated to reverse based on this controlling precedent], *affd* 32 NY3d 556 [2018]). Such a claim is therefore the ne plus ultra of “contentions which could not have been so obviated or cured below” and may be raised before us for the first time (*Telaro v Telaro*, 25 NY2d 433, 439 [1969]).

a more modern context” (*id.* at 488-489). Such follows from the broader principle that “*stare decisis* does not compel us to follow blindly a court-created rule . . . once we are persuaded that reason and a right sense of justice recommend its change” (*Silver v Great Am. Ins. Co.*, 29 NY2d 356, 363 [1972]). Such change is plainly called for here.

C.

A review of the Court’s seminal decisions on assumption of risk confirms that the Court has misapplied CPLR 1411 by retaining a bar to recovery in contravention of the text and the Legislature’s intent that factfinders apportion liability commensurate with the culpability of each party’s conduct. In *Arbegast*, the Court read CPLR 1411 as “requir[ing] diminishment of damages in the case of an implied assumption of risk” (65 NY2d at 170). *Arbegast* involved a student teacher who was injured during a donkey basketball game when she fell off the animal at a fund-raising event for the high school’s senior class (*id.* at 162-163).⁴ The Court reasoned that CPLR 1411 compares “blameworthy” conduct rather than negligence and thus focuses on “[c]omparative causation” (*id.* at 168). The Court further noted that CPLR 1411 did not define “assumption of risk” and read the term as “requir[ing] diminishment of damages in the case of an implied assumption of risk but, except as public policy proscribes an agreement limiting liability, does not foreclose a complete defense that by express consent of the injured party no duty exists and, therefore, no recovery may be had” (*id.* at 170). Because the plaintiff conceded she was informed before the games began that “participants are at their own risk,” she was not entitled to a jury instruction on comparative negligence based on implied assumption of the risk (*id.* at 171). Thus, *Arbegast* dealt only with an “express consent [by the plaintiff that] no duty exists” which is “a complete defense” (*id.* at 170).

A few months later, the Court applied these principles in *Maddox v City of New York*, which, unlike the plaintiff’s

4. The game is as a basketball game with two teams of four players who “must be astride” atop donkeys “in order to shoot, pass, or play defense” (see Katie Thomas, *Donkey Basketball Holds on Despite Criticism*, NY Times, Apr. 17, 2009, available at <https://www.nytimes.com/2009/04/18/sports/othersports/18donkey.html> [accessed Apr. 3, 2023]). Although the game resulted in injury to the plaintiff, it was no fun for the donkey who had to bear her weight as she commanded it around the “court.”

express assumption of risk in *Arbegast*, involved an implied assumption of risk based on a plaintiff's knowledge of the inherent risks associated with their conduct (66 NY2d 270 [1985]). There, Elliot Maddox, a professional baseball player for the New York Yankees, sued several defendants—including the City (which owned Shea Stadium), the lessee Metropolitan Baseball Club, Inc., and the stadium's general contractor, architect, and consulting engineer—alleging that the stadium's negligently-designed drainage system caused his left foot to slip as his right foot became stuck in a mud puddle, resulting in a career-ending knee injury (*id.* at 275). The Court concluded that the defendants were entitled to summary judgment because Maddox had conceded that he continued playing in the game “with the knowledge and appreciation of the risk” that caused his injury (*id.* at 276). In reaching this determination, the Court explained that the assumption of the risk doctrine “requires not only knowledge of the injury-causing defect but also appreciation of the resultant risk,” which “is not to be determined in a vacuum” (*id.* at 278). “[R]ather,” the Court continued, that risk must be “assessed against the background of the skill and experience of the particular plaintiff, and in that assessment a higher degree of awareness will be imputed to a professional than to one with less than professional experience in the particular sport” (*id.* [citation omitted]).⁵ In adopting this approach, the Court joined several other state courts which had “redefined” the doctrine “to allow the notion of assumption of risk to remain a viable defense even with the advent of modern comparative fault concepts” (Alexander J. Drago, *Assumption of Risk: An Age-Old Defense Still Viable in Sports and Recreation Cases*, 12 Fordham Intell Prop Media & Ent LJ 583, 583 [2002]).⁶

5. The Court acknowledged that the injuries giving rise to *Maddox* occurred before CPLR 1411's passage and that it was thus “at liberty to modify the common-law rules of assumption of the risk” but “decline[d] to take that step” (66 NY2d at 277).

6. The Legislature adopted comparative fault at a time when detractors opposed this legislative tort reform. As one commentator observed in 1963, certain “lobby and pressure groups” with economic interests in maintaining contributory negligence regimes “[we]re active and successful in preventing bills incorporating comparative negligence principles from obtaining full legislative consideration” (Cornelius J. Peck, *The Role of the Courts and Legislature in the Reform of Tort Law*, 48 Minn L Rev 265, 305 [1963]; see also *id.* at n 180 [collecting examples of failed comparative-negligence legislation]). Even some jurists offered reasons for opposing comparative fault (see

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The following year in *Turcotte v Fell*, the Court definitively adopted the “no duty” rationale in another implied consent case (68 NY2d 432, 438 [1986]). Unlike Christy Arbegast, but like Elliot Maddox, the plaintiff in *Turcotte* was a successful professional athlete. Ronald Turcotte had a 17-year career as a jockey, best known for riding Secretariat to the Triple Crown victory in 1973 (see 68 NY2d at 435). Five years later during a race at New York’s Belmont Park, he suffered a devastating injury when, after being clipped by another jockey he was thrown from his horse. The injury rendered him a paraplegic and ended his racing career (*id.* at 435-436). The Court explained that, because CPLR 1411 abolished assumption of risk as an absolute defense, “it ha[d] become necessary, and quite proper, when measuring a defendant’s duty to a plaintiff to consider the risks assumed by the plaintiff” because assumption of risk “is simply a confusing way of stating certain no-duty rules” (*id.* at 438 [internal quotation marks omitted]). As applied to sporting events, the defendant thus has “a duty to exercise care to make the conditions as safe as they appear to be. If the risks of the activity are fully comprehended or perfectly obvious, plaintiff has consented to them and defendant has performed its duty” (*id.* at 439). In analyzing “the nature and scope of [the] plaintiff’s consent,” the Court noted that “[i]t would be a rare thing, indeed, if the election of a professional athlete to participate in a sport at which he makes his living could be said to be involuntary” (*id.*). The Court noted that “while the courts ha[d] traditionally exercised great restraint in the belief that ‘the law should not place unreasonable burdens on the free and vigorous participation in sports’, they ha[d] recognized that organized, athletic competition does not exist in a vacuum” and that “[s]ome ‘of the restraints of civilization must accompany every athlete onto the playing field’ ” (*id.*, citing *Nabozny v Barnhill*, 31 Ill App 3d 212, 214-215, 334 NE2d 258, 260 [1975]). “Manifestly,” the Court went on to say, “a professional athlete is more aware of the dangers

e.g. Vincent v Pabst Brewing Co., 47 Wis 2d 120, 129, 177 NW2d 513, 517 [1970] [expressing concern that “pure comparative negligence would render defendants the insurers of any who chose to commence an action”]; see also *Alvis v Ribar*, 85 Ill 2d 1, 41, 421 NE2d 886, 904 [1981, Ryan, J., dissenting] [“Under pure comparative negligence, as adopted by the majority, the injured plaintiff will have the best of both worlds. (They) will be able to recover for (their) injuries without fault and at the same time not be limited in the amount (they) may recover”)]. CPLR 1411 reflects our State’s rejection of these alarmist views.

of the activity, and presumably more willing to accept them in exchange for a salary, than is an amateur” (*id.* at 440).

Applying these principles, the Court explained that Turcotte was a professional jockey who knew horse racing was a dangerous activity, involving thoroughbreds that “weigh[] about one-half ton and . . . [can] reach speeds of 40 miles per hour or more” and that “[j]ockeys weighing between 100 and 120 pounds . . . attempt to control” the horse while maximizing speed to win (*id.*). Indeed, the plaintiff testified that during a race a horse could lawfully run outside their lane and may come within inches of other speeding horses, bumping one another (*id.*). “Such dangers,” the Court concluded, “[we]re inherent in the sport” and since the plaintiff “recognized as such[,] . . . he consented to relieve defendant” of liability (*id.* at 441).

However, the Court drastically expanded this limited carve-out for professional athletes to bar recovery for a 19-year-old student football player only three years later in *Benitez v New York City Bd. of Educ.* (73 NY2d 650 [1989]). Plaintiff Sixto Benitez broke his neck during a varsity game. The record established that the plaintiff was playing a “Division A” team even though the coach felt this was unsafe because his “players were fatigued” and he “did not have the personnel to rest [plaintiff] Benitez[,] and he was aware that injuries are most likely to occur when players are tired” (*id.* at 654-655). Nevertheless, the coach “did not unilaterally cancel the game because he feared it might cost him his job” (*id.*). The plaintiff testified that he was fatigued when he was injured but did not tell the coach (*id.*). He also had motives to play, namely several pending football scholarship offers (*see id.*). To justify applying the rule to this student player, the Court adopted a type of sliding-scale assessment of physical skill and sports knowledge: “a high school athlete, even an outstanding one, does not assume all the risks of a professional sports person, but neither does a 19-year-old senior star football player and college scholarship prospect fall within the extra protected class of those warranting strict parental duties of supervision” (*id.* at 657-658).⁷

Notably, the Court stated that “[p]layers who voluntarily join in extracurricular interscholastic sports assume the risks to

7. While the Court appears to have responded in part to the trial court’s jury instruction that the defendants were required to exercise “the same level of care ‘as a parent of ordinary prudence would exercise under the same circumstances,’” the Court set a line to be followed in subsequent cases by subjecting students to the same standard as adult professional athletes (*id.*

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which their roles expose them but not risks which are unreasonably increased or concealed” (*id.* at 658 [internal quotation marks omitted]). In other words, the Court subjected the plaintiff student to the same standard it had applied to professional athletes. Under that standard, the Court concluded that the defendant had not increased or concealed the risk, which instead was “[w]ithin the breadth and scope of [the plaintiff’s] consent and participation” (*id.* at 659). Thus, the “plaintiff put himself at risk in the circumstances of this case for the injuries he ultimately suffered” (*id.*). Eliding the context in which the plaintiff’s action arose, the Court opined that the injury, “in sum, was a luckless accident arising from the vigorous voluntary participation in competitive interscholastic athletics” (*id.*). But plainly nothing about the plaintiff’s presence and play on

at 655). In comparison, the Appellate Division had affirmed the jury’s finding that the plaintiff had only been 30% at fault based on its conclusion that the plaintiff’s evidence made a *prima facie* showing that the defendants were negligent in their “duty to supervise the activities of the students in [their] charge” (*Benitez v New York City Bd. of Educ.*, 141 AD2d 457, 459 [1st Dept 1988]). Specifically, the Appellate Division reasoned:

“The evidence here indicates that defendants unreasonably enhanced or increased the risk of plaintiff being injured by playing him in a game between mismatched teams and by playing him for virtually the entire game, while he was tired, because there was no adequate substitute for him. While plaintiff was a voluntary participant in the game, never having complained of being tired, the law does recognize, especially in student-teacher relationships, that a degree of indirect compulsion exists, nonetheless. The rationale is that the student is understandably reluctant to refuse to participate for fear of the negative impact such refusal might have on his or her grade or standing. Such reasoning applies here. Plaintiff was ‘one of the best football players to come out of GW’; he had a ‘drawer full’ of letters from colleges. In such circumstances, it is not at all surprising nor legally fatal to his cause that plaintiff had not asked to be taken out of the game.

“Our analysis of the record reveals sufficient competent evidence which, if accepted, makes out a *prima facie* case that defendants were negligent in permitting plaintiff to play in a game in which his team was greatly outmatched and in circumstances in which the likelihood of his being injured was significantly enhanced. The question of plaintiff’s own negligence was, of course, submitted to the jury, which assessed it at 30%.

“Defendant’s dire forecast that a finding of liability here will open the floodgates and lead inevitably to the total collapse of the Board of Education’s interscholastic sports program is somewhat overstated, to say the least. This is an unusual case, one in which the very incident which occurred was predicted” (*id.* at 459-460 [citation omitted]).

the field that day was “luckless” or an “accident” (*id.*). Rather, school officials made a choice to pit these students in a close-contact game, against better-prepared, physically-dominant players, despite knowing the high risk of serious injury to plaintiff and his teammates.

In *Morgan v State of New York*, the Court decided four appeals—*Morgan*, *Beck*, *Chimerine*, and *Siegel*—and again drew no legally significant distinction among professional, amateur and recreational sports participants (90 NY2d 471 [1997]). *Morgan* involved “an experienced amateur bobsledder who had competed in the Olympic Games and had been bobsledding at [the site of the injury] for over 20 years prior to the accident” (*id.* at 480). *Beck* involved a 30-year-old orange belt who had been training for over a year at the karate school where the injury occurred (*id.* at 481). *Chimerine* was a relative novice to martial arts, having been injured during her fourth class at the defendants’ school (*id.* at 481). In all three cases, the Court concluded that the plaintiffs assumed the risk of the respective sports in which they participated (*see id.* at 486-489). In contrast, the Court determined that the plaintiff in *Siegel*—a 60-year-old tennis player who tripped over a torn net bisecting the court—had not assumed the risk even though he was aware of the problem for over two years (*id.* at 482). As the Court explained, “[r]elieving an owner or operator of a sporting venue from liability for inherent risk of engaging in a sport is justified when a consenting participant is aware of the risks; has an appreciation of the nature of the risks; and voluntarily assumes the risks” (*id.* at 484). Even though plaintiff Siegel was well aware of the torn net, the Court concluded that “a torn or allegedly damaged or dangerous net . . . is by its nature not automatically an inherent risk of a sport as a matter of law for summary judgment purposes” but “may qualify as and constitute an allegedly negligent condition occurring in the ordinary course of any property’s maintenance and may implicate typical comparative negligence principles” (*id.* at 488). But the very fact of the net’s placement as a divider of indoor courts illustrates the inherent risk of the indoor version of tennis.

Despite its earlier no-duty assumption of risk rhetoric, the Court repeated the established standard that “for purposes of determining the extent of the threshold duty of care, knowledge plays a role but inherency is the sine qua non” (*id.*, citing *Maddox*, 66 NY2d at 270; *Turcotte*, 68 NY2d at 443; *Scaduto v State of New York*, 56 NY2d 762 [1982], *affg* 86 AD2d 682 [3d Dept 1982]). The Court reaffirmed that defendants carry a

duty because “participants will not be deemed to have assumed the risks of reckless or intentional conduct or concealed or unreasonably increased risks” (*id.* at 485 [citations omitted]).

In *Bukowski v Clarkson Univ.*, the Court acknowledged “the injury risks attendant to participation in organized sports” (19 NY3d 353, 355 [2012]), and concluded that a college student baseball player assumed the risk of being hit by a line drive inherent in an indoor practice without the use of a protective L-screen (*see id.* at 356-358).⁸ Rather than treating the lack of a protective net as an “unreasonably increased risk” of the practice, the Court concluded that the “experienced and knowledgeable baseball player” assumed the inherent risk of playing without the protective screen, as well as the “less than optimal” indoor lighting (*id.* at 357). This conclusion is difficult to reconcile with the Court’s analysis of the torn net in *Siegel* when, in both cases, the plaintiff was aware of the enhanced risks that the relevant playing conditions presented.

Any semblance of a unifying principle disappeared in *Custodi*, which involved a plaintiff rollerblading in her neighborhood who fell when her skate struck the elevated edge between the defendant’s property and the drainage culvert on the street (20 NY3d at 86). The Court acknowledged that “[a] person who chooses to engage in [a sports] activity consents to those commonly appreciated risks which are inherent in and arise out of the nature of the sport generally and flow from such participation” and that “[t]he duty owed in these situations is a duty to exercise care to make the conditions as safe as they appear to be” (*id.* at 88 [internal quotation marks omitted]). Nevertheless, the Court concluded that assumption of the risk is “limited to . . . sporting events, sponsored athletic and recreative activities, or athletic and recreational pursuits that take place at designated venues” (*id.* at 89). The plaintiff was not skating in such a venue or a sponsored competition and therefore the doctrine did not bar her potential recovery for damages. The Court explained that extending the doctrine to cases involving streets and sidewalks “would create an unwarranted diminution of the general duty of landowners—both public and private—to maintain their premises in a reasonably safe condition” (*id.*). Again, the Court made a policy choice which cannot

8. As the Court noted in *Bukowski*, “[a]n L-screen is a net strung on a thin, metal frame shaped like a block L that protects pitchers from balls that are batted back at them” (19 NY3d at 355 n).

be squared with the express language of CPLR 1411 or the legislative intent to apply comparative negligence to all personal injury actions. Moreover, there is no compelling basis for excluding sports venue owners from the general rule that property owners are liable for their negligence. Certainly the owners of Madison Square Garden or the Barclays Center, or for that matter University at Buffalo, can more easily afford insurance than Town of Amherst residential home owners defendants Peter and Susan Muffoletto (*see id.* at 86).⁹

D.

As this discussion reveals, the Court has constructed a strange judicial artifice that assumption of risk limits the defendant's duty to a plaintiff based on the plaintiff's consent to participate in inherently-risky conduct. Practically, however, the Court has treated assumption of risk as a "principle of no duty" (*Trupia*, 14 NY3d at 395), making passing reference to the event sponsor or venue owner's minimal duty of care to the participants. The Court's approach is irreconcilable with the statutory language and the intended goal of providing a path to recovery for plaintiffs partially responsible for their injury (*see Hobson*, 39 NY2d at 487, 489). As this Court candidly acknowledged in *Trupia*:

"The reality . . . is that the effect of the doctrine's application is often not different from that which would have obtained by resort to the complete defenses purportedly abandoned with the advent of comparative causation—culpable conduct on the part of a defendant causally related to a plaintiff's harm is rendered nonactionable by reason of culpable conduct on the plaintiff's part that does not entirely account for the complained-of harm. While it may be theoretically satisfying to view such conduct by a plaintiff as signifying consent, in most

9. Judge Singas quotes this language out of context to support a completely different point that, unlike the owners of these professional sports facilities, "many youth programs, especially those serving disadvantaged children, may not be so fortunate" as to be in a position to purchase insurance (Singas, J., dissenting & concurring op at 120). Even if that were true, the Court's retention of this doctrine ensures that such children—already burdened with the economically and socially destructive consequences of poverty—who suffer debilitating injuries while engaged in organized sports will remain barred from recovering and be left to fend for themselves (*see e.g. Benitez*, 73 NY2d at 654-655, 659).

contexts this is a highly artificial construct and all that is actually involved is a result-oriented application of a complete bar to recovery. Such a renaissance of contributory negligence replete with all its common-law potency is precisely what the comparative negligence statute was enacted to avoid” (*Trupia*, 14 NY3d at 395).

Aside from the ends justifying the rule, members of the Court have acknowledged that the carve-out for sports activities poses its own challenges. As observed by Judge Smith in his *Trupia* concurrence, the majority’s commentary on the implied assumption of risk doctrine “invite[d] a number of questions,” including “What exactly is ‘athletic or recreative’ activity?” (*id.* at 397 [Smith, J., concurring]). *Trupia*, Judge Smith noted, involved a child who was injured after sliding down the banister of a school staircase and though he agreed that “[a]ssumption of risk [could not] possibly be a defense because it is absurd to say that a 12-year-old boy ‘assumed the risk’ that his teachers would fail to supervise him,” he also pointedly asked: (1) why the plaintiff’s “chosen activity” was not “recreative” when “[h]e was obviously doing it for fun”; (2) why “sliding down a banister (supposing it to be done by an adult with a taste for such amusement) [is] of less ‘social value’ than sliding down a ski slope or bobsled run”; and (3) why, if the athletic and recreative activities recognized in prior cases were “more socially valuable than the former, . . . the banister slider, who chose the less desirable form of amusement, [is] in a *better* position to recover damages than the skier or bobsledder” (*id.*).

Notwithstanding these flaws in reasoning and application, the Court has justified its retention of the doctrine based on its “utility in ‘facilitat[ing] free and vigorous participation in athletic activities’ ” which, the Court determined, “possess enormous social value” (*id.* at 395, quoting *Benitez v New York City Bd. of Educ.*, 73 NY2d 650, 657 [1989]). The Court has further specified that the doctrine “shields college athletics from potentially crushing liability” (*Bukowski*, 19 NY3d at 358).

Given CPLR 1411’s enactment, such value-laden concerns are “‘matters for the judgment of the legislature, and the earnest conflict of serious opinion does not suffice to bring them within the range of judicial cognizance’ ” (*Montgomery v Daniels*, 38 NY2d 41, 53 [1975], quoting *Chicago, B. & Q. R. Co. v McGuire*, 219 US 549, 569 [1911]). In other words, “the province of the courts does not extend to the wisdom, necessity or

motivation of legislation” (*Ball v State of New York*, 41 NY2d 617, 625 [1977]). The Court’s task then—as it is now—was to apply CPLR 1411 “as it is written by the Legislature, not as the [C]ourt may think it should or would have been written if the Legislature had envisaged all the problems and complications which might arise” (*Parochial Bus Sys. v Board of Educ. of City of N.Y.*, 60 NY2d 539, 548-549 [1983]).

Indeed, for just this reason legal commentators have been sharply critical of the Court’s policy-driven retention of the doctrine in the face of CPLR 1411 (*e.g.* Danielle Clout, Note, *Assumption of Risk in New York: The Time Has Come to Pull the Plug on This Vexatious Doctrine*, 86 St John’s L Rev 1051, 1063-1071 [2012] [criticizing the Court’s shifting justifications for retaining assumption of risk and undermining CPLR 1411]; Drago, 12 Fordham Intell Prop Media & Ent LJ at 583 [observing that “(t)he distinction between” assumption of risk and contributory negligence, “once largely irrelevant because both completely barred recovery, has been redefined to allow the notion of assumption of risk to remain a viable defense even with the advent of modern comparative fault concepts”]; Gary T. Schwartz, *The Beginning and the Possible End of the Rise of Modern American Tort Law*, 26 Ga L Rev 601, 671-672 [1992] [noting that, “(b)y 1980,” assumption of risk “seemed just about extinct: courts disapproved of explicit contractual disclaimers of liability, and courts were inclined to ‘merge’ implied assumption of risk into comparative negligence” and bemoaning this Court’s continued invocation of “the concept of assumption of risk to completely deny the defendant’s liability”]).

In addition to the Court’s interpretive rules meant to restrain the Court from acting in contravention of the legislative will, the Court’s “enormous social value” standard for application of the doctrine is difficult to justify on its own terms, and therefore no longer “withstands the cold light of logic and experience”—assuming it ever did (*Policano*, 7 NY3d at 604 [internal quotation marks omitted]). Many socially beneficial nonathletic activities carry inherent risks of injury—for example, operating a motor vehicle—and lawsuits for injuries arising from these activities are evaluated under our comparative fault regime. Further, even if it is logical to hold that a commercially-paid professional athlete has the insight and knowledge born from experience to fully appreciate and voluntarily assume the inherent risks in a sport, it is quite another matter to bar student and amateur athletes, and people enjoy-

ing recreational activity from all tort recovery. The Court's policy concern that sporting opportunities will evaporate does not explain the bar to recovery against a for-profit martial arts school in *Morgan* (90 NY2d at 487). Nor, on the flip side, does it explain exempting the residential property owner from injuries incurred by a rollerblader in *Custodi* (20 NY3d at 83). Yet, under those, and the other precedents summarized above, a race car driver headed to the Riverhead Raceway on Long Island to compete in a race may sue for injuries suffered on the road during the drive to the track, but would be barred from recovering against the track owner for negligently maintaining the venue as soon as their wheels touch the racetrack. Surely, the Legislature did not intend such absurd outcomes when it passed CPLR 1411 (see *Lubonty v U.S. Bank N.A.*, 34 NY3d 250, 255 [2019] ["We must . . . interpret a statute so as to avoid an unreasonable or absurd application of the law" (internal quotation marks omitted)]).

While opportunities for children and adults to engage in physical activities and team athletics is beneficial for participants and has tremendous social value, other jurisdictions with comparative negligence laws have abolished assumption of risk as a complete defense without seeing an end to youth sports or youth leagues (see e.g. *World Fresh Markets, LLC v Palermo*, 74 VI 455, 469 [2021]; *Rountree v Boise Baseball, LLC*, 154 Idaho 167, 174, 296 P3d 373, 380 [2013]; *Ouachita Wilderness Inst., Inc. v Mergen*, 329 Ark 405, 417, 947 SW2d 780, 786 [1997]; *Auckenthaler v Grundmeyer*, 110 Nev 682, 686, 877 P2d 1039, 1041-1042 [1994]; *Blair v Mount Hood Meadows Dev. Corp.*, 291 Or 293, 297-298, 630 P2d 827, 829-830 [1981]; *Parker v Highland Park, Inc.*, 565 SW2d 512, 517 [Tex 1978]; *Lyons v Redding Const. Co.*, 83 Wash 2d 86, 95, 515 P2d 821, 826 [1973]; *Leavitt v Gillaspie*, 443 P2d 61, 68 [Alaska 1968]; see also *Horton v American Tobacco Co.*, 667 So 2d 1289, 1293 [Miss 1995] [noting that assumption of risk was "subsumed in (Mississippi's) comparative fault doctrine"]¹⁰ As this

10. Equal access to these opportunities has historically been denied to girls and women but, with the passage of title IX, they now participate in these rewarding activities once reserved only for boys and men (see *McCormick ex rel. McCormick v School Dist. of Mamaroneck*, 370 F3d 275, 286-288 [2d Cir 2004]). No doubt, we all benefit from this sea change in the law and athletics (see Alexa Phillippou, *LSU's Morris, SC's Beal, Amihere Declare for 2023 WNBA Draft*, ESPN, Apr. 4, 2023, available at https://www.espn.com/wnba/story/_/id/36069258/lsu-morris-sc-beal-amihere-declare-2023-wnba-draft [accessed Apr. 4, 2023]; Remy Tumin, *N.C.A.A. Women's Tournament*

(n. cont'd)

list shows, the fear of “potentially crushing liability” on school athletics has no basis in reality (*Bukowski*, 19 NY3d at 358).¹¹ Moreover, under CPLR 1411’s pure comparative fault regime, the trier of fact remains free to consider the risks inherent in the sport when assigning damages based on each party’s culpable conduct (see CPLR 1411). Thus, liable defendants are not automatically subject to 100% of the damages suffered.¹²

Here, plaintiff Grady lost eyesight as a result of an errant baseball thrown toward him during a complex, multi-ball drill that included less-experienced junior varsity players. Plaintiff

Shatters Ratings Record in Final, NY Times, Apr. 3, 2023, available at <https://www.nytimes.com/2023/04/03/sports/ncaabasketball/lsu-iowa-womens-tournament-ratings-record.html> [accessed Apr. 4, 2023].

11. The majority posits a lack of data showing “that states opting to allow for liability in similar circumstances have not seen any cuts to scholastic sports budgets or even a chilling effect on employment in athletics in decades” as a basis for defending our continued upkeep of the implied assumption of risk doctrine (majority op at 96 n 2). This is no response to the fact that robust opportunities for professional and recreational sports exist in our sister jurisdictions that have adopted comparative fault. Tellingly, the majority points to no data *confirming* the policy concerns repeated throughout our case law. Most importantly, the legislative history surrounding CPLR 1411 contains no such data. Indeed, one would think that if there were some evidence that pure comparative fault would reduce athletic opportunities in New York the Legislature or, at the very least, the authors of the Judicial Conference report would have referenced it if they intended to retain assumption of risk in this arena. Instead, the legislative history is silent on the matter. In light of this, I see no basis to reaffirm in these appeals what the Court has recently acknowledged is a “result-oriented application of a complete bar to recovery” (*Trupia*, 14 NY3d at 395).

12. The majority’s observations that “decades of applicable precedent” has reaffirmed the doctrine and that the Legislature “has never sought to ‘correct’” the Court’s purported misreading of CPLR 1411 is no basis for the Court to ignore its obligation to interpret the law in accordance with applicable rules and principles (majority op at 96, 96-97). In the past, we have not hesitated to correct our mistaken interpretations of statutes when we have found “the reasons for adopting what we think the correct interpretation of the statute to be more compelling than the reasons for adhering to a mistaken one” (*People v Rudolph*, 21 NY3d 497, 502 [2013], *overruling People v McGowen*, 42 NY2d 905 [1977]; see also *id.* at n, citing *Reome*, 15 NY3d at 188, *overruling People v Hudson*, 51 NY2d 233 [1980]; *Matter of Hyde*, 15 NY3d 179 [2010], *overruling Matter of Dillon*, 28 NY2d 597 [1971]; *People v Feingold*, 7 NY3d 288 [2006], *overruling People v Register*, 60 NY2d 270 [1983]; *Lusenskas v Axelrod*, 81 NY2d 300 [1993], *overruling Brown v Poritzky*, 30 NY2d 289 [1972]; *People v Levy*, 15 NY2d 159 [1965], *overruling People v Florio*, 301 NY 46 [1950]).

Moreover, when, as here, experience teaches us that a policy driving our case law is unjustified and the corresponding doctrine we have adopted has proved itself unworkable, we have a responsibility to change course, regardless of how much time has passed or whether the Legislature has acted.

Secky was driven into unpadded bleachers, causing an injury to his shoulder that required surgery during his participation in a rebounding basketball drill that the coach testified featured elimination of some boundary lines and the athletic director described as “wall to wall” and “bleacher to bleacher” (i.e., containing *no* boundary lines).¹³ In each case, I would reverse the Appellate Division’s orders, deny the respective defendants’ motions for summary judgment, and remit for trials before factfinders properly instructed on comparative fault.¹⁴

III.

New York courts need not continue applying this “limited vestige of the assumption of the risk doctrine” (*Custodi*, 20 NY3d at 87). Even if the doctrine was somewhat defensible as applied to professional athletes who earn a living assuming risks inherent in a for-profit sporting event, the Court has unwisely expanded the reach of the doctrine to student athletes and recreational sports participants. In so doing, the Court strayed from the foundation of the “primary assumption of risk” rhetoric and tolerated what is, in practice, a complete defense to tortious harm. The way out of this unworkable, results-driven morass is to completely abolish the doctrine and restore the pure comparative fault regime the Legislature intended to establish in 1975 (*Taylor*, 9 NY3d at 149; *Hobson*, 39 NY2d at 489).

13. Both cases also involve, to differing degrees, classic battles of the experts which, as I have previously cautioned, are particularly unfit for summary judgment given that questions about each expert’s methods and conclusions go to their weight, a determination reserved for the finder of fact (*see Nemeth v Brenntag N. Am.*, 38 NY3d 336, 364-365 [2022, Rivera, J., dissenting]).

14. The typical content of such instruction is familiar to both the bench and bar. Indeed, the New York pattern jury instruction on comparative fault states, in relevant part:

“If . . . you find that the plaintiff . . . was negligent and that [their] negligence was a substantial factor in bringing about (the accident, injury, [or other appropriate characterization of the event]), you must then apportion the fault between the plaintiff (decedent) and the defendant [and, where appropriate, AB, a third person].

“Weighing all the facts and circumstances, you must consider the total fault, that is, the fault of both the plaintiff . . . and the defendant . . . and determine what percentage of fault is chargeable to each. In your verdict, you will state the percentages you find. The total of those percentages must equal one hundred percent” (PJI 2:36).

The same tools the Court used to create this policy-based judicial protectionism for athletics (*see Turcotte*, 68 NY2d at 437-439) supply us with the means to finally effectuate the Legislature's intent to end contributory negligence and assumption of risk (*see* CPLR 1411). The Court has long emphasized that the common law "must be held no further abrogated than the clear import of the language used in the statutes absolutely requires" (*Bertles v Nunan*, 92 NY 152 [1883]; McKinney's Cons Laws of NY, Book 1, Statutes § 153 ["A change in long established rules of law is not deemed to have been intended by the Legislature in the absence of a clear manifestation of such intent"]).¹⁵ Section 1411 easily meets this threshold, as its text and history evince a clear, definite legislative intent to dispense entirely with the assumption of risk doctrine in favor of pure comparative fault (*cf. Xiang Fu He*, 34 NY3d at 171-172 [statute assigning responsibility of clearing icy sidewalks to property owners displaced common-law rule assigning it to the City because the statute's text "could not be clearer"]).

Justice Frankfurter cautioned that "[t]he phrase 'assumption of risk' is an excellent illustration of the extent to which uncritical use of words bedevils the law" (*Tiller v Atlantic Coast Line R. Co.*, 318 US 54, 68 [1943]). We need not continue engaging in "deft legal maneuvering" (*Matter of Brooke S.B. v Elizabeth A.C.C.*, 28 NY3d 1, 26 [2016] [internal quotation marks omitted]) to artificially preserve this doctrine. Rather than continue rendering outcome-driven decisions based on the remnants of a doctrine the Legislature discarded decades ago, we should, as the Legislature intended, abandon the implied assumption of risk doctrine altogether and finally allow the trier of fact to apportion liability amongst culpable parties.

SINGAS, J. (dissenting in *Grady* and concurring in *Secky*). The majority accurately articulates the well-settled principles

15. The Court in *Arbegast* purported to heed this maxim, observing that the common law "distinguished between express and implied assumption of risk" and reasoning that, since "[t]he Legislature is . . . presumed to be aware of the decisional and statut[ory] law in existence at the time of an enactment" and "[n]either article 14-A nor its legislative history defines 'assumption of risk,'" the Legislature did not abrogate this distinction when it passed CPLR 1411 (65 NY2d at 169-170). That conclusion was wrong. Given the Legislature's cognizance of the existing law, had the Legislature intended to retain the distinction between express and implied assumption of risk, it would have said so explicitly. Instead, the Legislature referred to "assumption of risk" without any qualifiers (CPLR 1411).

governing these cases in section I of its opinion. I note that no party preserved an argument that this Court should disregard this jurisprudence, including proffering any explanation for why stare decisis should not apply here (see *Bingham v New York City Tr. Auth.*, 99 NY2d 355, 359 [2003] [“in making and shaping the common law—having in mind the doctrine of stare decisis and the value of stability in the law—this Court best serves the litigants and the law by limiting its review to issues that have first been presented to and carefully considered by” the courts below]). The majority also correctly applies our sound law to the facts of *Secky* in section II. I join those sections of the opinion. I dissent in part, however, because the majority misapplies our precedent to the circumstances presented in *Grady* in section III.

The plaintiff in *Grady* was injured when he was hit in the face with a baseball during a high school baseball practice. The majority mistakenly concludes that a jury should determine whether this harm resulted from “an inherent risk” of baseball (majority op at 99-100). A trial is unnecessary, however, because we have repeatedly made clear that being hit with a misthrown ball while playing baseball is a textbook example of a risk “commonly encountered or ‘inherent’ ” in the sport (*Bukowski v Clarkson Univ.*, 19 NY3d 353, 356 [2012]; see *Morgan v State of New York*, 90 NY2d 471, 484 [1997]; see also majority op at 99 [“Errant balls may be an inherent risk of playing baseball”]). Indeed, as Chief Judge Cardozo explained, even baseball spectators assume the risk of being hit by waywardly thrown balls (see *Murphy v Steeplechase Amusement Co.*, 250 NY 479, 482 [1929]).

Defendants’ evidence demonstrated that plaintiff “accepted personal responsibility” for his injury because it stemmed from an inherent risk of playing baseball—being hit by a misthrown ball (*Morgan*, 90 NY2d at 484; see *Bukowski*, 19 NY3d at 356). Further, contrary to the majority’s conclusion, the practice drill was as safe as it appeared. No concealed risks existed inasmuch as plaintiff admitted that he thought the drill was unsafe but participated anyway. Also, the drill did not “unreasonably enhance[]” the risks to plaintiff beyond those players typically encounter (*Custodi v Town of Amherst*, 20 NY3d 83, 88 [2012]). The use of multiple balls at a baseball practice is prevalent and inherent to such training sessions. Similarly, use of a protective screen is commonplace at baseball practices. The protective screen here, measuring seven feet high by seven feet

wide, certainly was tall and wide enough to provide protection for plaintiff even though it failed to stop the ball that caused his injury. As the Appellate Division stated, “plaintiff was an experienced baseball player who knew of the risks, appreciated their nature[,] and voluntarily assumed them” (190 AD3d 1218, 1220 [3d Dept 2021] [internal quotation marks omitted]). Plaintiff failed to raise a triable issue of fact in response to defendants’ showing and, thus, the courts below correctly granted defendants summary judgment.

Plaintiff’s injury resulted from “a luckless accident arising from [his] vigorous voluntary participation in competitive interscholastic athletics” (*Benitez v New York City Bd. of Educ.*, 73 NY2d 650, 659 [1989]; see *Bukowski*, 19 NY3d at 358). Despite the unfortunate facts of this case, our precedent requires that we affirm the Appellate Division order.

My colleagues’ contrary conclusion misapplies (or advocates abandoning) our precedent, potentially opening the door to liability for, among others, child athlete co-participants, along with community centers and religious institutions that host athletic programs, volunteer coaches, and other people that spend their time creating opportunities for children to participate in athletic and other recreative activities. While owners of professional sports facilities like Citi Field, UBS Arena, and Highmark Stadium “can . . . easily afford insurance” (Rivera, J., concurring & dissenting op at 112), many youth programs, especially those serving disadvantaged children, may not be so fortunate.

In *Grady v Chenango Val. Cent. Sch. Dist.*: Order reversed, with costs, and defendants’ motion for summary judgment denied.

Opinion by Judge GARCIA. Chief Judge WILSON and Judges CANNATARO and TROUTMAN concur. Judge RIVERA concurs in result in an opinion. Judge SINGAS dissents in an opinion. Judge HALLIGAN took no part.

In *Secky v New Paltz Cent. Sch. Dist.*: Order affirmed, with costs.

Opinion by Judge GARCIA. Chief Judge WILSON and Judges CANNATARO and TROUTMAN concur, Judge SINGAS in a concurring opinion. Judge RIVERA dissents in an opinion. Judge HALLIGAN took no part.

[215 NE3d 1179, 194 NYS3d 738]

In the Matter of ST. LAWRENCE COUNTY et al., Appellants, v
CITY OF OGDENSBURG et al., Respondents, et al., Respondent.

Argued April 18, 2023; decided May 23, 2023

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered August 11, 2022. The Appellate Division order, insofar as appealed from, with two Justices dissenting, affirmed so much of an order and judgment of the Supreme Court, St. Lawrence County (Mary M. Farley, J.; op 2021 NY Slip Op 33907[U] [2021]), entered in a combined proceeding pursuant to CPLR article 78 and declaratory judgment action, as had declared Local Law No. 2 (2021) of City of Ogdensburg §§ 2, 3, 4 and 6 to be valid and enforceable and denied the article 78 petition relating to those claims.

Matter of St. Lawrence County v City of Ogdensburg, 208 AD3d 929, affirmed.

HEADNOTE

Taxation — Real Property Tax — Municipality's Relinquishment of Tax Foreclosure Responsibility to County

In a combined CPLR article 78 proceeding and action for declaratory judgment challenging Local Law No. 2 (2021) of City of Ogdensburg, which repealed a prior local law validly opting out of the application of RPTL article 11's process for the enforcement and collection of delinquent real property taxes at the local level and thereby relinquished respondent City of Ogdensburg's tax foreclosure responsibility to petitioner St. Lawrence County, petitioners failed to demonstrate that Local Law No. 2 was either inconsistent with RPTL 1150 or unconstitutional. RPTL 1106 (1) allows a city which opts out of the article 11 procedure to opt back in by repealing the local law without referendum. By repealing Local Law No. 2 and providing for petitioner County to enforce respondent City's delinquent taxes in its charter, the City ceased to be a tax district with respect to future liens, absolving itself of the ability and responsibility to appoint an enforcing officer and enforce the tax law. Instead, under RPTL 1102 (6) (b), petitioner County was responsible, going forward, for tax enforcement and the benefits or burdens attendant thereto. Inasmuch as RPTL 1150 (1) merely permits agreements with other tax districts regarding tax enforcement processes and does not require them, section 1150 did not prevent respondent City from seeking to employ the RPTL article 11 procedures, without the benefit of an agreement. Moreover, the legislature expressly permitted the City to repeal its local law, resulting in the County becoming responsible for the enforcement of taxes that become liens after the repeal is effective.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Municipal Corporations, Counties, and Other Political Subdivisions § 115; AM JUR 2d State and Local Taxation §§ 696, 698, 744.

CARMODY-WAIT 2d Foreclosure of Tax Lien on Real Property §§ 99:2, 99:22.

McKINNEY'S, CPLR art 78; RPTL 1102 (6) (b); 1106 (1); 1150 (1).

NY JUR 2d Taxation and Assessment §§ 94, 658, 670.

ANNOTATION REFERENCE

See ALR Index under Collections; Constitutional Law; Foreclosure; Municipal Corporations; Sale or Transfer of Property; Tax Liens; Taxes.

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POINTS OF COUNSEL

Hancock Estabrook, LLP, Syracuse (Alan J. Pierce and John L. Murad, Jr. of counsel), and *Stephen D. Button, County Attorney*, Canton, for appellants. I. St. Lawrence County is entitled to a declaratory judgment that Local Law No. 2 (2021) of City of Ogdensburg is not authorized by the RPTL. (*Matter of Radich v Council of City of Lackawanna*, 93 AD2d 559; *Matter of Harvey v Finnick*, 88 AD2d 40; *Matter of Kelley v McGee*, 57 NY2d 522; *Rozler v Franger*, 61 AD2d 46, 46 NY2d 760; *Rose v Eichhorst*, 42 NY2d 92; *Matter of Town of Irondequoit v County of Monroe*, 36 NY3d 177.) II. St. Lawrence County is entitled to a declaratory judgment that Local Law No. 2 (2021) of City of Ogdensburg violates the State Constitution and the Municipal Home Rule Law. (*County of Orange v City of Newburgh*, 68 Misc 2d 998; *Matter of Hamburg v McBarnette*, 195 AD2d 275, 83 NY2d 726; *Matter of Fineway Supermarkets v State Liq. Auth.*, 48 NY2d 464; *Matter of Rodriguez v Perales*, 86 NY2d 361.) III. St. Lawrence County's request for mandamus and prohibition are valid, but unnecessary because of the claim for declaratory judgment.

Coughlin & Gerhart, LLP, Binghamton (Nicholas S. Cortese

of counsel), for City of Ogdensburg and others, respondents. I. The Ogdensburg City Charter amendments do not unconstitutionally impair the exercise of any of St. Lawrence County's powers and do not violate the Municipal Home Rule Law. (*County of Rensselaer v City of Troy*, 102 AD2d 976.) II. The Ogdensburg City Charter amendments are not inconsistent with article 11 of the RPTL. (*Matter of City of Schenectady [Permaul]*, 201 AD3d 1; *Town of Aurora v Village of E. Aurora*, 32 NY3d 366.) III. St. Lawrence County's requests for relief pursuant to CPLR article 78 are both inappropriate and unnecessary. (*Matter of Clark Disposal Serv. v Town of Bethlehem*, 51 AD2d 1080; *Matter of Lakeland Water Dist. v Onondaga County Water Auth.*, 24 NY2d 400; *Matter of Lund v Town Bd. of Town of Philipstown*, 162 AD2d 798; *Matter of Hearst Corp. v Clyne*, 50 NY2d 707.)

Perillo Hill, LLP, Sayville (*John Ciampoli* of counsel), and *New York State Association of Counties*, Albany (*Stephen J. Acquario* and *Patrick Cummings* of counsel), for New York State Association of Counties, amicus curiae. I. The Appellate Division incorrectly resolved the conflicting provisions of the RPTL. (*Morales v Trans World Airlines, Inc.*, 504 US 374; *D. Ginsberg & Sons, Inc. v Popkin*, 285 US 204; *Drelich v Kenlyn Homes*, 86 AD2d 648.) II. The City of Ogdensburg's local law resulted in an unconstitutional impairment of county powers.

OPINION OF THE COURT

CANNATARO, J.

On this appeal, we are asked to determine whether Local Law No. 2 (2021) of City of Ogdensburg (Local Law No. 2), which repealed a prior local law validly opting out of the application of Real Property Tax Law article 11 (*see* RPTL 1104 [2]), is inconsistent with RPTL 1150 or otherwise unconstitutional under the home rule article of the New York State Constitution (*see* NY Const art IX). Because petitioners have not demonstrated that Local Law No. 2 is either inconsistent with section 1150 or unconstitutional, we affirm.

I.

Real Property Tax Law article 11 outlines a process for the enforcement and collection of delinquent real property taxes at the local level (*see* RPTL 1100 *et seq.*). The provisions of RPTL article 11 generally apply to all counties and cities and “supersede any inconsistent general, special or local law”

(RPTL 1104 [1]). However, a city that was enforcing the collection of delinquent taxes pursuant to its charter prior to 1993 could opt out by adoption, no later than July 1, 1994, of a local law “providing that the collection of taxes in such . . . city . . . shall continue to be enforced pursuant to such charter, code or special law, as such charter, code or special law may from time to time be amended” (RPTL 1104 [2]). If a city opted out, RPTL 1106 (1) allows it to opt back in by repealing the local law without referendum. “Upon such a repeal, the provisions of [RPTL article 11] shall be applicable to the enforcement by such . . . city . . . of all taxes which shall have become liens on or after the date on which such repeal shall have become effective” (RPTL 1106 [1]).

Respondent City of Ogdensburg timely opted out of RPTL article 11 (*see* Local Law No. 3 [1994] of City of Ogdensburg), and subsequently collected delinquent taxes on behalf of itself, petitioner St. Lawrence County, and the Ogdensburg City School District. Pursuant to RPTL 1106, the City sought to opt back into article 11 by the enactment of Local Law No. 2, which effectively repealed the 1994 Local Law opting out by amending the City Charter to “relinquish the City’s tax foreclosure responsibility with the intent of all foreclosure responsibility defaulting to” the County. Local Law No. 2 also provided that “the County shall be responsible for the enforcement of delinquent City taxes in accordance with [RPTL article 11]” and that “[t]he County Treasurer shall, if satisfied that” the City’s account of unpaid taxes “is correct, credit the City with the amount of such unpaid delinquent taxes” (Local Law No. 2 §§ 2, 3). The County alleges that the annual amount of the warrant, including delinquent school district taxes, is approximately \$1.6 million.

Shortly after the enactment of Local Law No. 2, the County commenced this combined CPLR article 78 proceeding and declaratory judgment action seeking, among other things, a declaratory judgment that Local Law No. 2 was not in accord with state law and “impairs the rights of the County of St. Lawrence and the County Treasurer.” Although the County did not dispute that the City may relieve itself of the obligation to collect delinquent county taxes, the County alleged that Local Law No. 2 unlawfully shifted the burden of enforcing and collecting delinquent city and school district taxes from the City to the County in a manner that both was inconsistent with RPTL article 11 and impaired the power of the County to

regulate its own property and affairs in violation of article IX (§ 2 [d]) of the New York Constitution and Municipal Home Rule Law § 10 (5). In answering the City’s motion to dismiss for failure to state a cause of action, the County argued that, absent a specific state statute providing for such an arrangement, a tax district may assume the responsibilities of real property tax collection and enforcement for another only through an agreement between the districts under RPTL 1150.¹

Supreme Court denied the petition as against the City and declared Local Law No. 2 §§ 2, 3, 4 and 6 “to be valid and enforceable,” holding that the local law did not impair, but increased the County’s tax enforcement powers with respect to delinquent city taxes (2021 NY Slip Op 33907[U], *6-7 [Sup Ct, St. Lawrence County 2021]). The court further concluded that RPTL 1102 (6) (b) implicitly sanctions a city charter that calls for enforcement of delinquent taxes by a county and, thus, Local Law No. 2 did not conflict with the RPTL. The Appellate Division affirmed, with two Justices dissenting on the grounds that Local Law No. 2 is inconsistent with RPTL 1150 and impairs the powers of the County (208 AD3d 929 [3d Dept 2022]).²

II.

Article IX of the New York Constitution, the home rule article, “‘empower[s] municipalities to legislate in a wide range of matters relating to local concern’” (*Matter of Baldwin Union Free Sch. Dist. v County of Nassau*, 22 NY3d 606, 620 [2014], quoting *Albany Area Bldrs. Assn. v Town of Guilderland*, 74 NY2d 372, 376 [1989]). “‘[S]o long as local legislation is not inconsistent with the State Constitution or any general law,’” article IX authorizes “‘localities [to] adopt local laws both with respect to their property, affairs or government, and with respect to other enumerated subjects, except to the extent that

1. The County did not preserve any claim that, in repealing Local Law No. 3 (1994) of City of Ogdensburg, the City failed to comply with the specific procedures expressly set forth in RPTL 1106—as opposed to RPTL 1150—and we do not address the potential merits of any such claim under section 1106.

2. While the appeal was pending, the City passed a clarifying amendment to the City Charter that expressly affirmed the City’s obligation to enforce delinquent taxes on behalf of the School District, rendering a cross-claim asserted by the School District moot (208 AD3d 929, 930 n [2022]). No issues regarding the collection or enforcement of the School District’s taxes are before us on this appeal.

the legislature shall restrict the adoption of such a local law' ” (*id.*, quoting *Albany Area Bldrs.*, 74 NY2d at 376; *see* NY Const, art IX, § 2 [c] [i]). Notwithstanding that authorization, article IX further mandates that “a local government shall not have power to adopt local laws which impair the powers of any other local government” (NY Const, art IX, § 2 [d]; *see* Municipal Home Rule Law § 10 [5] [“a local government shall not have power to adopt local laws which impair the powers of any other public corporation”]).

Here, upon the repeal of its 1994 opt-out law, the City became subject to RPTL article 11 with respect to its enforcement of “all taxes which shall have become liens on or after the date on which such repeal shall have become effective” (RPTL 1106 [1]). RPTL 1102 (6) (b) provides that a city is a tax district unless it is a city “for which the county enforces delinquent taxes pursuant to the city charter.” Unlike other paragraphs of that provision, RPTL 1102 (6) (b) does not lay out a special procedure by which a city would make a county the responsible tax district (*cf.* RPTL 1102 [6] [c] [incorporating by reference RPTL 1442 for villages])—it simply references the city charter, supporting the inference that there is no special procedure.

In general, a city may revise and amend its charter by local laws that are not inconsistent with the Constitution or general law (*see* Municipal Home Rule Law § 10 [1] [ii] [c] [1]). By repealing Local Law No. 2 and providing for the County to enforce the City’s delinquent taxes in its charter, the City ceased to be a tax district with respect to future liens, absolving itself of the ability and responsibility to appoint an enforcing officer and enforce the tax law (*see* RPTL 1102 [3]; 1160 [1]).³ Instead, under RPTL 1102 (6) (b), the County is responsible—going forward—for tax enforcement and the benefits or burdens attendant thereto.

The County responds that the City’s amendment of its charter via the enactment of Local Law No. 2 circumvented a purported mandate that it negotiate an agreement with the County regarding tax enforcement processes under RPTL 1150

3. The City is correct that, under the plain terms of section 1102 (6) (b), the City was no longer a tax district with respect to enforcement of “taxes which shall have become liens on or after the date on which . . . repeal [of Local Law No. 3 (1994) of City of Ogdensburg] shall have become effective” (RPTL 1106 [1]). However, the City was concededly a “tax district” prior to repeal of its 1994 opt-out law and it has not established that it did not retain that status with respect to preexisting liens (*see* RPTL 1106 [2]).

and, thus, the local law is inconsistent with RPTL article 11. However, because section 1150 does not require that localities reach an agreement or follow a particular procedure, Local Law No. 2 is not inconsistent with that provision. Section 1150 (1) governs “[a]greements with other tax districts” and provides as relevant that “[a]ll tax districts are hereby *authorized* to make agreements with one another with respect to any parcel of real property upon which they respectively own tax liens in regard to the disposition of such liens” (emphasis added). Inasmuch as RPTL 1150 (1) merely permits such agreements and does not require them, section 1150 does not prevent the City from seeking simply to employ the RPTL article 11 procedures, without the benefit of an agreement.

The County further contends that Local Law No. 2 violated the mandates in the New York Constitution and Municipal Home Rule Law that “a local government shall not have power to adopt local laws which impair the powers of” a local government (NY Const, art IX, § 2 [d]) or public corporation (Municipal Home Rule Law § 10 [5]). Specifically, the County argues that the Local Law essentially prevented it from entering into the type of agreements contemplated by RPTL 1150 and impaired its power by burdening it with the financial liability for the City’s delinquent tax obligations. Both the City and County agree that Local Law No. 2 imposes a new obligation on the County for which it must now change the manner in which it allocates county funds. However, as noted, the legislature expressly permitted the City to repeal its local law, resulting in the County becoming responsible for the enforcement of taxes that become liens after the repeal is effective (*see* RPTL 1102 [6] [b]; 1106 [1]).

That the repeal of the opt-out law permitted by RPTL 1106 and charter amendment may impose additional obligations on the County is, as the Appellate Division put it, “neither an expansion nor impairment of the County’s powers but simply a consequence of the statutory structure outlined in [the] RPTL” (208 AD3d at 932). Although the County may have the authority to enter into a RPTL 1150 (1) agreement, the County has not shown that the legislature has given it the power to *demand* that a city enter into such an agreement. Indeed, the supersession provision outlined in RPTL 1104 (1) demonstrates that the legislature delegated power here to the City and superseded any conflicting laws or interests of the County. Inasmuch as the County has no powers with respect to taxation that are not

“unambiguously delegate[d]” to it by the legislature or the Constitution (*Matter of Baldwin Union*, 22 NY3d at 619) and the legislature has chosen to limit a county’s ability to enter into RPTL 1150 (1) agreements by making such agreement permissive rather than mandatory, it cannot be said that the City impaired the County’s power by doing as the legislature permits it to do under RPTL article 11. Therefore, we conclude that Local Law No. 2 does not violate the statutory and constitutional protections at issue, but effectuates a power the legislature granted to cities wishing to revoke their initial opt-out from article 11.

The County’s remaining argument is academic.

Accordingly, the order of the Appellate Division insofar as appealed from should be affirmed, with costs.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS and TROUTMAN concur. Judge HALLIGAN took no part.

Order insofar as appealed from affirmed, with costs.

[215 NE3d 1184, 194 NYS3d 743]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL WORLEY, Appellant.

Argued May 18, 2023; decided June 15, 2023

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered February 16, 2022. The Appellate Division affirmed an order of the Supreme Court, Kings County (Michael J. Brennan, J.), which, after a hearing, had designated defendant a level three sex offender pursuant to Correction Law article 6-C.

People v Worley, 202 AD3d 1008, reversed.

HEADNOTE

Crimes — Sex Offenders — Sex Offender Registration Act — Due Process — District Attorney’s Deviation from Reasons Supporting Board of Examiners of Sex Offenders’ Proposed Risk Level Classification

A hearing conducted to determine defendant’s risk level pursuant to the Sex Offender Registration Act (SORA) (Correction Law art 6-C) failed to comport with due process because defendant was provided no notice or meaningful opportunity to be heard in response to the District Attorney’s request for an upward departure first interposed during the hearing in response to the court’s invitation. Accordingly, defendant was entitled to a new SORA hearing. Although the District Attorney agreed with the Board of Examiners of Sex Offenders that defendant should be classified as a level three risk, the District Attorney reached that conclusion not on the total point assessment contained in the risk assessment instrument but rather on an independent basis that defendant’s disciplinary history was sufficiently egregious to warrant an upward departure. Once the District Attorney announced its deviation from the reasons supporting the Board’s proposed risk level classification, defendant was entitled to a sufficient opportunity to consider and muster evidence in opposition to the request for an upward departure. The record showed that the court decided the issue without an adjournment, without allowing defendant to present rebuttal arguments or collect additional evidence, and without any input from defense counsel.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Mentally Impaired Persons §§ 131, 134, 138, 147–148.
CARMODY-WAIT 2d Appeals in Criminal Cases § 207:156.
McKINNEY’S, Correction Law art 6–C.
NY JUR 2d Penal and Correctional Institutions §§ 382–384, 393–400, 407.

ANNOTATION REFERENCES

Validity, Construction and Application of State Sex Offender Registration Statutes Concerning Level of Classification—General Principles, Evidentiary Matters, and Assistance of Counsel. 64 ALR6th 1.

Validity, Construction, and Application of State Sex Offender Registration Statutes Concerning Level of Classification—Initial Classification Determination. 65 ALR6th 1.

Validity, Construction, and Application of State Sex Offender Registration Statutes Concerning Level of Classification—Claims Challenging Upward Departure. 67 ALR6th 1.

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Query: (“Sex Offender Registration Act” OR “SORA”) &
upward & “due process” & classification & “Board of
Examiners of Sex Offenders” & notice

POINTS OF COUNSEL

Patricia Pazner, Appellate Advocates, New York City (William G. Kastin and Jenna D. Hymowitz of counsel), for appellant. The Sex Offender Registration Act hearing court violated the Correction Law and constitutional due process when, despite repeated defense objections for lack of notice, it sua sponte upwardly departed on a theory never before requested or raised by the Board of Examiners of Sex Offenders or the prosecution. (*People v Ferguson*, 53 AD3d 571; *People v David W.*, 95 NY2d 130; *People v Ford*, 25 NY3d 939; *People v Baxin*, 26 NY3d 6; *Doe v Pataki*, 3 F Supp 2d 456; *People ex rel. Levy v Walters*, 87 AD2d 620; *People v Segura*, 136 AD3d 496; *People v Ritchie*, 203 AD3d 1562; *People v Montufar-Tez*, 195 AD3d 1052; *People v Chrisley*, 172 AD3d 1914.)

Eric Gonzalez, District Attorney, Brooklyn (Michael Bierce and Leonard Joblove of counsel), for respondent. I. The hearing court did not violate defendant’s rights under Correction Law § 168-n (3). (*Matter of DaimlerChrysler Corp. v Spitzer*, 7 NY3d 653; *People v Andujar*, 30 NY3d 160; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *People v Roberts*, 31 NY3d 406; *Matter of Avella v City of New York*, 29 NY3d 425; *Riley v County of Broome*, 95 NY2d 455; *Kuzmich v 50 Murray*

St. Acquisition LLC, 34 NY3d 84; *Bender v Jamaica Hosp.*, 40 NY2d 560; *People v Perez*, 35 NY3d 85; *People v Stevens*, 91 NY2d 270.) II. Defendant's constitutional claim is unpreserved. In any event, the hearing court did not violate defendant's due process rights. (*People v Sincerbeaux*, 27 NY3d 683; *People v Howard*, 27 NY3d 337; *People v Windham*, 10 NY3d 801; *People v Grant*, 7 NY3d 421; *People v Charache*, 9 NY3d 829; *People v Baxin*, 26 NY3d 6; *People v David W.*, 95 NY2d 130; *Doe v Pataki*, 3 F Supp 2d 456; *Mathews v Eldridge*, 424 US 319; *People v Cook*, 29 NY3d 114.) III. Defendant's claim that the hearing court improperly departed upward on the basis of conduct already accounted for by the Sex Offender Registration Act: Risk Assessment Guidelines and Commentary (2006) is unpreserved and meritless. (*People v Johnson*, 11 NY3d 416; *People v Del Rosario*, 36 NY3d 964.)

OPINION OF THE COURT

RIVERA, J.

Persons required to register as sex offenders are entitled to the due process protections of notice and an opportunity to be heard before a court determines their risk level classification under the Sex Offender Registration Act (SORA) (*see Doe v Pataki*, 3 F Supp 2d 456, 471-472 [SD NY 1998]; *People v Baxin*, 26 NY3d 6, 10 [2015]; *People v David W.*, 95 NY2d 130, 138 [2000]; *see also* Correction Law § 168-n [3]). We hold that the SORA court deprived defendant of those basic procedural guarantees when it upwardly departed from the presumptive risk level without affording defendant notice or an opportunity to contest the basis for the departure.

I.

In 2012, then-19-year-old defendant Michael Worley engaged in forcible sexual intercourse with a 12-year-old child. He pleaded guilty to attempted rape in the first degree (*see* Penal Law §§ 110.00, 130.35 [4]) and endangering the welfare of a child (*see id.* § 260.10 [1]) and was sentenced to 3½ years' imprisonment followed by 15 years' postrelease supervision. These convictions required him to register under SORA (*see* Correction Law § 168 *et seq.*).

Prior to defendant's release from prison, the Board of Examiners of Sex Offenders (the Board) prepared a risk assessment instrument (RAI) and case summary scoring defendant 115 points under various risk factors for a presumptive

level three risk classification.¹ As relevant to this appeal, the Board explained that because defendant incurred nine tier III and 10 tier II disciplinary sanctions while incarcerated it assessed him 10 points under risk factor 13 for unsatisfactory conduct while confined. The Board also assessed defendant 15 points under risk factor 12 for refusing or being expelled from sex offender treatment because, according to the case summary, defendant was referred for such treatment but removed for “disciplinary reasons.” The Board did not recommend a departure from the presumptive risk level.

At the SORA hearing, the Assistant District Attorney (ADA) initially requested a risk level three classification based on the 115 points assessed by the Board. However, the ADA acknowledged a “discrepancy” in the case summary regarding risk factor 12, explaining that defendant was never referred for sex offender treatment because his disciplinary history required him to stay in restrictive housing. Defendant objected to the assessment of 15 points under risk factor 12 and sought to bring his total score to 100 points, for a presumptive risk level two classification. Specifically, relying on *People v Ford* (25 NY3d 939 [2015]), defendant argued that his ineligibility for treatment based on his disciplinary history cannot be equated with refusal to participate in treatment for purposes of risk factor 12. The SORA court raised the issue whether *Ford* contemplated an upward departure from the presumptive risk level based on an extensive disciplinary history. Defense counsel protested that the District Attorney never requested a departure and defendant had not received notice.

“[COUNSEL]: . . . By case law he is not—he should not be assessed points on that category.

“THE COURT: I believe—

1. The presumptive risk level is calculated by adding points assessed against the offender under 15 enumerated risk factors set forth in the Board’s Guidelines (see SORA: Risk Assessment Guidelines and Commentary [2006]). If the total score is 70 points or fewer, the offender is presumptively classified as a level one risk to sexually reoffend; if the total score is more than 70 but fewer than 110, the offender is presumptively level two; if the total score is 110 points or more, the offender is presumptively level three (see *id.*; see also Correction Law § 168-l [6] [a]-[c]). An offender may also be subject to an automatic override to a higher risk level than allotted by the point score (see Guidelines at 3-4). Either party to a SORA proceeding may request that the court depart from the presumptive risk level based on aggravating or mitigating factors “of a kind or to a degree not adequately taken into account by the guidelines” (*People v Gillotti*, 23 NY3d 841, 861 [2014]).

“I don’t know if that . . . case suggested that the extensive disciplinary history may be a reason for departure.

“[COUNSEL]: The D.A. didn’t ask for it to be a departure. I have no notice of departure.

“THE COURT: I am not here to do what the D.A. necessarily asks.

“The Court makes the following findings of fa[c]ts and conclusions.

“I find that the People have [established] 100 points. The 15 points not assessed because he does—does not constitute a refusal or expulsion from sex offender treatment. But his disciplinary record prevented him from receiving the sex offender treatment.

“So, based upon the 100 points he would be required to register as a Level Two Sex offender.

“However, I do use the extensive prior disciplinary history established by the record for an upward departure to level three.

“I will sign an order designating him a level three offender. . . .

“Exception to the Defense.”

Defense counsel then asserted that the court could not upwardly depart absent a request from the District Attorney. In response, the court stated that it would hear the ADA as to a request for an upward departure. The ADA obliged and requested an upward departure based on defendant’s “extensive disciplinary history involving nine tier three sanctions” and “numerous tier two sanctions.” Defense counsel again objected and insisted defendant was entitled to 10 days’ notice. The court concluded the hearing by stating “[t]he order is signed. You have an exception for the record.”

The Appellate Division affirmed, holding that the SORA court acted within its discretion to upwardly depart to level three based on defendant’s extensive disciplinary history (*see* 202 AD3d 1008 [2d Dept 2022]). We granted defendant leave to appeal (*see* 38 NY3d 912 [2022]), and we now reverse and remit for a new SORA hearing.

II.

Prior to an offender's discharge, parole or release, the sentencing court must determine whether to designate "an offender . . . a sexual predator, sexually violent offender, or predicate sex offender" as defined in SORA (Correction Law § 168-n [1]; *see id.* § 168-a [7] [a]-[c]) and apply the Board's SORA Guidelines to determine an offender's "level of notification" (*id.* § 168-n [2]; *see id.* § 168-l [6] [a]-[c]). Defendant is entitled to a hearing in accordance with SORA's procedural requirements before the court issues its classification decision.

As relevant here, the Board must provide the sentencing court with its recommendations 60 days prior to a defendant's release (*see id.* § 168-l [6]). Pursuant to section 168-n (3), the court must notify the defendant, their counsel and the District Attorney of the SORA hearing date and furnish the parties a copy of the Board's recommendations and statement of its reasoning.

"If the district attorney seeks a determination that differs from the recommendation submitted by the board, at least ten days prior to the determination proceeding the district attorney shall provide to the court and the sex offender a statement setting forth the determinations sought by the district attorney together with the reasons for seeking such determinations" (*id.*).

The court makes these determinations only after: (1) receiving the Board's recommendation and submissions regarding the offender designation and risk level classification (*see id.* § 168-n [1], [2]); (2) receiving any different determinations—and reasons therefor—proposed by the District Attorney; (3) a hearing where the defendant may object to those recommendations; and (4) consideration of any materials and evidence submitted by the offender and the District Attorney (*see id.* § 168-n [3]).

The statutory notice provision was enacted to address the federal constitutional due process infirmities identified in *Doe v Pataki* (3 F Supp 2d 456 [SD NY 1998]; Mem of NY St Atty Gen Legis Bur Chief, Bill Jacket, L 1999, ch 453 at 6 [explaining that the procedures in section 168-n (3) were recommended in response to *Doe*]).² "It is well established that sex offenders are entitled to certain due process protections at their risk

2. After observing that a risk level classification hearing falls "somewhere between a criminal proceeding in which a defendant is entitled to a full

(n. cont'd)

level classification proceedings” (*Baxin*, 26 NY3d at 10), and the basic hallmarks of due process are notice and an opportunity to be heard (*see David W.*, 95 NY2d at 138). Proper notice is essential to achieve SORA’s goal that an offender arrive at the hearing informed of the bases for the Board’s and the District Attorney’s recommendations and is also afforded an opportunity to challenge the grounds propounded by both. Otherwise, an offender would prepare for the hearing solely relying on the Board’s determinations, factor by factor and point assessment by point assessment, without advance knowledge of the reasoning upon which the District Attorney will rely in support of a different offender designation, risk classification or underlying grounds. That is not due process under law. Indeed, due process requires that a SORA defendant receive sufficient notice and an opportunity to be heard before an upward departure is granted.

III.

Here, the proceeding failed to comport with due process because defendant was provided no notice or meaningful opportunity to be heard in response to the District Attorney’s request for an upward departure first interposed during the SORA hearing in response to the court’s invitation. The Board recommended the court classify defendant as a level three offender based on his risk factor score of 115 points and did not recommend an upward departure or that the court consider defendant’s disciplinary history for purposes aside from a factor 13 point allocation. Although the District Attorney agreed with the Board that defendant should be classified as a level three risk, the District Attorney reached that conclusion not on the total point assessment contained in the RAI but rather on an independent basis that defendant’s disciplinary history was sufficiently egregious to warrant an upward departure. Once the District Attorney announced its deviation from the reasons

panoply of rights, . . . and a simple administrative proceeding, in which participants have traditionally been afforded less process,” the *Doe* court held that due process requires, at a minimum: a hearing; advance notice of the hearing containing a statement of its purpose and the Board’s recommended risk level; an opportunity to obtain counsel or, where the offender is indigent, court appointment of counsel; “pre-hearing discovery of the evidence on which the Board’s risk level recommendation is based”; a requirement that the government prove the facts supporting each relevant risk factor by clear and convincing evidence; and a right to appeal (3 F Supp 2d 456, 470-472 [SD NY 1998] [internal quotation marks omitted]).

supporting the Board's proposed risk level classification, defendant was entitled to a sufficient opportunity to consider and muster evidence in opposition to the request for an upward departure. The record shows that the court decided the issue without an adjournment, without allowing defendant to present rebuttal arguments or collect additional evidence, and without any input from defense counsel. The court erred by proceeding in this manner.

Under these circumstances, the SORA court denied defendant the due process to which he is entitled. The proper remedy for this violation is a new judicial determination of defendant's SORA classification, made after timely notice of the Board and District Attorney's recommendations and reasons in support, and upon consideration of the parties' arguments and the evidence submitted at the scheduled hearing.

IV.

Defendant's remaining contentions are rendered academic. Accordingly, the order of the Appellate Division should be reversed, without costs, and the matter remitted to Supreme Court for further proceedings in accordance with this opinion.

GARCIA, J. (concurring). I believe the order of the Appellate Division should be reversed and the matter remitted for a new hearing.

Defendant pleaded guilty to attempted rape in the first degree (*see* Penal Law §§ 110.00, 130.35 [4]) and endangering the welfare of a child (*see id.* § 260.10 [1]). Defendant's conviction required him to register as a sex offender pursuant to the Sex Offender Registration Act (SORA) (*see* Correction Law § 168 *et seq.*). The Board of Examiners of Sex Offenders prepared a risk assessment instrument and case summary scoring defendant 115 points, which rendered him a presumptive level three offender.

At defendant's SORA hearing, defendant objected to the assessment of 15 points, the elimination of which would have reduced his presumptive risk level to level two. The court agreed and deducted those points from defendant's risk assessment score but indicated that it would nonetheless depart upward and classify defendant a level three offender. When defense counsel attempted to object concerning lack of notice, the court summarily denied the objection and informed counsel he had an "exception" (*see People v Finch*, 23 NY3d 408, 413

[2014]; *People v Lewis*, 23 NY3d 179, 188 [2014]). On this unique record, the SORA court erred in denying defense counsel any opportunity to be heard on the issue of an upward departure (*see People v David W.*, 95 NY2d 130, 136-138 [2000]). Defendant is therefore entitled to a new SORA hearing.

Chief Judge WILSON and Judges TROUTMAN and HALLIGAN concur. Judge GARCIA concurs in an opinion, in which Judges SINGAS and CANNATARO concur.

Order reversed, without costs, and matter remitted to Supreme Court, Kings County, for further proceedings in accordance with the opinion herein.

[217 NE3d 1, 195 NYS3d 429]

DALER SINGH, Doing Business as GILZIAN ENTERPRISE LLC, et al., Appellants, v CITY OF NEW YORK et al., Respondents.

Argued March 14, 2023; decided April 27, 2023

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered December 30, 2020. The Appellate Division (1) affirmed, insofar as appealed from, so much of an order of the Supreme Court, Queens County (Kevin J. Kerrigan, J.), dated September 21, 2017, as had granted that branch of defendants' motion which was to dismiss plaintiffs' first cause of action; (2) reversed, insofar as cross-appealed from, so much of that Supreme Court order as had denied those branches of defendants' motion which were to dismiss plaintiffs' third cause of action and so much of plaintiffs' fifth cause of action as sought rescission of the subject contracts based upon breach of the implied covenant of good faith and fair dealing; and (3) granted those branches of defendants' motion which were to dismiss plaintiffs' third cause of action and so much of plaintiffs' fifth cause of action as sought rescission of the subject contracts based upon breach of the implied covenant of good faith and fair dealing.

Singh v City of New York, 189 AD3d 1697, affirmed.

HEADNOTES

Covenants — Covenant of Good Faith and Fair Dealing — Diminished Value of Taxicab Medallions Purchased at Auction — Terms in Auction Bid Forms

1. Plaintiffs, entities that purchased yellow taxi medallions at a 2013 auction, failed to adequately plead a claim for breach of the implied covenant of good faith and fair dealing based on allegations that defendants City of New York and its Taxi and Limousine Commission (TLC), after auctioning the taxi medallions, authorized smartphone application-based companies not owned as franchises or cooperatives to operate black car base stations in the City in violation of licensing requirements, leading to an influx of illegal black cars competing with plaintiffs' taxicabs and diminishing the value of their medallions. The implied covenant, which embraces a pledge that neither party shall do anything to destroy or injure the right of the other party to receive the fruits of the contract, cannot be used to imply obligations inconsistent with other terms of the contractual relationship and encompasses only promises which a reasonable person in the promisee's position would be justified in understanding were included. Here, plaintiffs acknowledged in the auction bid forms that defendants made no representations or warranties "as to the present or future value of a taxicab medallion," which language is

flatly inconsistent with any suggestion that defendants guaranteed the value of the medallions. The bid forms also included disclaimers incompatible with a promise that TLC would enforce existing black car licensing requirements against app-based companies following the auction to protect the value of plaintiffs' investment. Moreover, a reasonable person in plaintiffs' position would have been aware that the regulation of taxi medallions and black cars had been changing since 1996, and plaintiffs' complaint pleaded that TLC treated certain app-based black car companies consistently before and after the auction. Therefore, plaintiffs could not justifiably have expected that defendants were contractually committing themselves to enforce the rules for plaintiffs' benefit.

Consumer Protection — Deceptive Acts and Practices — New York City Taxi and Limousine Commission — Representation of Yellow Taxi Medallion Value at Auction

2. In an action by plaintiffs, entities that purchased yellow taxi medallions from defendants City of New York and its Taxi and Limousine Commission (TLC) at a 2013 auction, which medallions had subsequently diminished in value allegedly as a result of an influx of competing smartphone application-based companies allowed to operate black car base stations in the City without complying with licensing requirements, the claim that defendants engaged in deceptive business practices under General Business Law § 349 in their promotion of the auction by distributing materials to bidders that misrepresented the value of yellow taxi medallions was properly dismissed. Section 349 is directed at wrongs against the consuming public which have a broad impact on consumers at large and involve modest transactions rather than complex or unique arrangements in which each side was knowledgeable and received expert representation and advice. Here, the deceptive conduct alleged was directed solely at persons interested in obtaining licenses for the operation of taxicabs, not taxi consumers. While business entities can qualify as "consumers" if the products purchased are consumer goods or their equivalent, a taxi medallion is not analogous to a consumer good, but rather is a highly-conditioned government license to operate a taxi business. In promoting and effectuating the multi-hundred-million-dollar auction transaction, TLC acted within its authorized governmental function as a regulator of the for-hire vehicle industry and plaintiffs' principal was a sophisticated party with knowledge of and experience in that industry. Therefore, plaintiffs did not plead the type of conduct covered by section 349.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Carriers § 27; AM JUR 2d Consumer and Borrower Protection §§ 272, 274, 280; AM JUR 2d Contracts § 673.

McKINNEY'S, General Business Law § 349.

NY JUR 2d Carriers § 32; NY JUR 2d Consumer and Borrower Protection §§ 6, 7; NY JUR 2d Contracts § 423.

WILLISTON ON CONTRACTS (4th ed) § 63:22.

ANNOTATION REFERENCE

See ALR Index under Consumer Protection; Fair Dealing; Good Faith; Municipal Corporations; Taxicabs.

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Query: taxi! /4 medallion & covenant /s fair /2 dealing

POINTS OF COUNSEL

Wolf Haldenstein Adler Freeman & Herz LLP, New York City (Mark C. Rifkin and Benjamin Y. Kaufman of counsel), *Friedman Kaplan Seiler & Adelman LLP*, New York City (Robert S. Smith of counsel), and *Law Office of Daniel L. Ackman*, New York City (Daniel L. Ackman of counsel), for appellants. I. On a motion to dismiss pursuant to CPLR 3211, the court's task is to determine whether a plaintiff's pleading states a cause of action. (*Polonetsky v Better Homes Depot*, 97 NY2d 46; *Guggenheimer v Ginzburg*, 43 NY2d 268; *Leon v Martinez*, 84 NY2d 83; *Sokoloff v Harriman Estates Dev. Corp.*, 96 NY2d 409; *Wieder v Skala*, 80 NY2d 628; *EBC I, Inc. v Goldman, Sachs & Co.*, 5 NY3d 11.) II. The Appellate Division erred in dismissing plaintiffs' cause of action for breach of the covenant of good faith and fair dealing. (*Rowe v Great Atl. & Pac. Tea Co.*, 46 NY2d 62; *Moran v Erk*, 11 NY3d 452; *Kirke La Shelle Co. v Armstrong Co.*, 263 NY 79; *Stevens v Publicis S.A.*, 50 AD3d 253; *Wood v Duff-Gordon*, 222 NY 88; *Twinkle Play Corp. v Alimar Props., Ltd.*, 186 AD3d 1447; *Turkat v Lalezarian Devs., Inc.*, 52 AD3d 595; *511 W. 232nd Owners Corp. v Jennifer Realty Co.*, 98 NY2d 144; *Wakefield v Northern Telecom, Inc.*, 769 F2d 109; *Arbeeny v Kennedy Exec. Search, Inc.*, 71 AD3d 177.) III. The Appellate Division erred in holding that a General Business Law § 349 claim is governed by General Municipal Law § 50-e. (*Margerum v City of Buffalo*, 24 NY3d 721; *Gaidon v Guardian Life Ins. Co. of Am.*, 96 NY2d 201; *Clarke-St. John v City of New York*, 164 AD3d 743.)

Sylvia O. Hinds-Radix, Corporation Counsel, New York City (Jesse A. Townsend, Richard Dearing and Devin Slack of counsel), for respondents. I. Richard Chipman's contract claims fail because he cannot wield the implied covenant to overwrite express contractual terms. (*Northwest, Inc. v Ginsberg*, 572 US 273; *Rudman v Cowles Communications*, 30 NY2d 1; *Dalton v Educational Testing Serv.*, 87 NY2d 384; *Murphy v American Home Prods. Corp.*, 58 NY2d 293; *Moran v Erk*, 11 NY3d 452; *IRB-Brasil Resseguros, S.A. v Inepar Invs., S.A.*, 20 NY3d 310; *M/A-COM Sec. Corp. v Galesi*, 904 F2d 134; *Wood v Duff-Gordon*, 222 NY 88; *Roli-Blue, Inc. v 69/70th St. Assoc.*, 119

AD2d 173; *Aozora Bank, Ltd. v J.P. Morgan Sec. LLC*, 144 AD3d 440.) II. Richard Chipman's General Business Law § 349 claim fails for two independent reasons. (*Matter of Nadler v City of New York*, 166 AD3d 618; *Matter of Jin Gak Kim v Dormitory Auth. of the State of N.Y.*, 140 AD3d 1459; *Zahra v New York City Hous. Auth.*, 39 AD3d 351; *Corcoran v New York Power Auth.*, 202 F3d 530; *Melia v City of Buffalo*, 306 AD2d 935; *Monterey v Del Monte Dunes at Monterey, Ltd.*, 526 US 687; *Port Chester Wine & Liq. Shop v Miller Bros. Fruiterers, Inc.*, 281 NY 101; *Condon v Associated Hosp. Serv.*, 287 NY 411; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *People v Page*, 35 NY3d 199.)

New York State Conference of Mayors and Municipal Officials, Albany (Wade Beltramo of counsel), for New York State Conference of Mayors and Municipal Officials, amicus curiae. I. Because article VIII, § 1 of the New York State Constitution prohibits local governments from gifting or loaning their municipal resources, local governments may not guarantee revenue for private entities operating in their private capacity in the private marketplace within the municipal boundaries. (*Landmark West! v City of New York*, 9 Misc 3d 563.) II. Public policy dictates that local governments not be held as guarantors for private individuals or entities simply by virtue of regulating businesses, issuing a permit, granting a franchise, or awarding a taxi medallion to operate or undertake an activity within the municipality, unless the local government clearly and unambiguously agrees to such an arrangement and there is a proper public purpose for doing so, as authorized by the State. (*Matter of Parkview Assoc. v City of New York*, 71 NY2d 274; *Bell v Village of Stamford*, 51 AD3d 1263.)

OPINION OF THE COURT

CANNATARO, J.

Few things are as emblematic of New York City as yellow taxicabs. Featured in countless films and television shows, the renowned yellow cab is as synonymous with New York City as Times Square or bagels. Yet despite the ubiquitous appearance of the cabs on city streets, government licenses to operate taxis (called medallions) have long been difficult and expensive to obtain, in part because of the City's careful regulation of their supply and restrictions on competing forms of for-hire transportation.

Plaintiffs are entities that purchased yellow cab medallions from defendant Taxi and Limousine Commission (TLC) at a

2013 auction. As relevant to this appeal, their complaint alleges that TLC and the City breached the implied covenant of good faith and fair dealing by failing to enforce certain licensing requirements against popular smartphone application-based competitors like Uber Technologies, Inc. (Uber) and Lyft, Inc. (Lyft). Plaintiffs further allege that defendants engaged in deceptive business practices under General Business Law § 349 in their promotion of the auction. For the reasons that follow, we hold that plaintiffs have failed to state a claim, and therefore affirm.

I.

TLC regulates and supervises taxicabs and other for-hire vehicles in the City (*see* NY City Charter § 2303 [a]). TLC's powers include promulgating standards for the licensing of drivers and the operation of their vehicles, and developing policies both to foster innovation in the industry and to promote the comfort and convenience of consumers (*see id.* § 2303 [b]).

Among the vehicles TLC is charged with regulating are yellow taxis and “black cars.” Taxis operate under a transferable license, or medallion, which is a numbered plate issued by TLC that is affixed to the outside of a taxicab (*see* 35 RCNY 51-03; *Greater N.Y. Taxi Assn. v State of New York*, 21 NY3d 289, 296 [2013]). Yellow taxis are the only for-hire vehicles permitted “to accept hails from passengers in the street” throughout the entirety of the City (*see* Administrative Code of City of NY § 19-504 [a] [1]). Prior to 1996, the number of medallions was capped by the City Council at 11,787. Between 1996 and 2008, however, the City Council approved the issuance of 1,450 additional medallions, increasing the total by approximately 12% to 13,237. And in 2012, the Legislature enacted the HAIL Act, which called for TLC to issue 18,000 licenses authorizing a new class of vehicles—so-called green cabs—to accept street hails outside Manhattan’s central business district (*see Greater N.Y. Taxi Assn.*, 21 NY3d at 297-298).

In contrast, black cars are prohibited from accepting street hails. They may accept passengers only on the basis of telephone contracts or other prearrangements (*see* Administrative Code of City of NY §§ 19-502 [u]; 19-507 [a] [4]; 19-516 [a]). Specifically, passengers must contact a “base station,” which then dispatches a black car to the requested location. The owners of black cars generally are required to have a franchise relationship with or ownership interest in the base

station from which their cars accept dispatches (*id.* § 19-502 [u]; 35 RCNY 59B-03 [d] [2]). Prior to 2018, the number of black car licenses was not subject to any legal cap.

It is undisputed that the invention and proliferation of smartphones has caused major market disruption throughout the for-hire vehicle industry. Companies like Uber and Lyft allow passengers in the City and other areas to prearrange for-hire transportation through applications on their smartphones (see *Matter of Glyka Trans, LLC v City of New York*, 161 AD3d 735, 735 [2d Dept 2018] [noting the “rapid growth of for-hire vehicle services provided by companies such as Uber”]). In 2011, TLC determined that the use of smartphone apps to arrange transportation fit within its existing regulatory definition of a prearrangement, making such vehicles black cars for regulatory purposes (see TLC, Industry Notice No. 11-15, *Attention: For-Hire Vehicle drivers receiving dispatches via smartphone apps* [July 1, 2011], <https://perma.cc/V44J-JQLS>; see also *Progressive Credit Union v City of New York*, 889 F3d 40, 46 [2d Cir 2018]). As early as December 2011, TLC granted an Uber-affiliated entity a license to operate a black car base station in the City, and the complaint alleges that TLC authorized additional Uber-affiliated base stations every year between 2012 and 2015. As a result of these and other licenses, the number of cars affiliated with app-based companies has come to exceed the number of yellow cabs in the City. The resulting loss of market share has significantly diminished the value of taxi medallions.

In 2015, Mayor Bill de Blasio sought legislation capping black car growth from companies like Uber, but the legislation faced significant public and political opposition, including from the Governor and Comptroller.¹ Three years later, the City Council enacted Local Law No. 147 (2018) of City of New York, which placed a one-year moratorium on new black car licenses and granted TLC authority to cap such licenses moving forward. New York thus reportedly became the first major city in the country to impose a vehicle cap on companies like Uber.² A cap on black car licenses remains in place today (see 35 RCNY 59A-06 [a] [1]).

1. Matt Flegenheimer, *De Blasio Administration Dropping Plan for Uber Cap, for Now*, NY Times, July 22, 2015.

2. Emma G. Fitzsimmons, *Uber Hit With Cap as New York City Takes Lead in Crackdown*, NY Times, Aug. 8, 2018.

II.

Plaintiffs purchased an aggregate of 14 wheelchair-accessible taxi medallions at a November 2013 auction held by TLC for an average winning bid of \$1.34 million per medallion.³ Four years later, after their medallions had approximately quartered in value, plaintiffs commenced the instant action against TLC and the City. The complaint alleges that, in advance of the auction, TLC distributed materials to bidders that misrepresented the value of yellow taxi medallions. Plaintiffs further aver that, after the auction, TLC authorized app-based companies to operate black car base stations in the City, even though those companies “submitted no documentation that [they were] owned as a franchise or as a cooperative,” leading to an influx of allegedly illegal black cars that competed with plaintiffs’ taxicabs and diminished the value of their medallions. Based on these allegations, the complaint asserts causes of action against defendants for, as relevant here, violation of General Business Law § 349 and breach of the implied covenant of good faith and fair dealing.

Defendants moved pursuant to CPLR 3211 (a) (1) and (7) to dismiss the complaint. Their papers in support of the motion included auction bid forms executed by plaintiffs’ principal which state, among other things:

“I CERTIFY THAT I HAVE NOT RELIED ON ANY STATEMENTS OR REPRESENTATIONS FROM THE CITY OF NEW YORK IN DETERMINING THE AMOUNT OF MY BID. . . .

“I understand and agree that the City of New York has not made any representations or warranties as to the present or future value of a taxicab medallion, the operation of a taxicab as permitted thereby, or as to the present or future application or provisions of the rules of the [TLC] or applicable law, other than a warranty of clear title to such medallion to successful, qualifying bidders therefore, and I acknowledge that no warranties are made, express or implied, by the City of New York, as to any matter other than the warranty of clear title.”

3. Plaintiff Daler Singh, d/b/a Gilzian Enterprise LLC, purchased an additional medallion at a February 2014 auction, but was dismissed from this action after he filed for bankruptcy.

Supreme Court denied defendants' motion insofar as it sought dismissal of plaintiffs' implied covenant claim, finding unresolved issues of fact (2017 NY Slip Op 32215[U] [Sup Ct, Queens County 2017]). However, the court dismissed plaintiffs' General Business Law § 349 claim based on their failure to serve a notice of claim within the 90-day period required by General Municipal Law § 50-e, which applies to claims "founded upon tort" (General Municipal Law § 50-e [1] [a]). In the alternative, the court held that plaintiffs failed to state a section 349 claim because the statute does not apply to municipal defendants and the sale of a taxi medallion is not a consumer-oriented transaction, a threshold element of the claim.

Both parties appealed, and the Appellate Division affirmed in part and reversed in part (189 AD3d 1697 [2d Dept 2020]). Plaintiffs' section 349 claim, the Appellate Division agreed, "was subject to the requirements of General Municipal Law § 50-e, as a cause of action sounding in fraud," and thus had properly been dismissed due to plaintiffs' failure to serve a timely notice of claim (*id.* at 1699). The Court disagreed, however, that issues of fact existed with respect to plaintiffs' implied covenant claim, holding that the claim was based on an alleged contractual promise incompatible with the disclaimers in plaintiffs' bid forms (*id.* at 1700). This Court granted leave to appeal (37 NY3d 912 [2021]). We now affirm, although on a different basis with respect to plaintiffs' section 349 claim.

III.

The first question raised on this appeal is whether plaintiffs have adequately pleaded a claim for breach of the implied covenant of good faith and fair dealing. The complaint alleges that defendants breached the covenant of good faith when, after auctioning the taxi medallions, TLC authorized app-based companies not owned as franchises or cooperatives to operate black car base stations in the City, thereby diminishing the value of plaintiffs' medallions.

[1] It is well settled that "[i]n New York, all contracts imply a covenant of good faith and fair dealing in the course of performance" (511 W. 232nd Owners Corp. v Jennifer Realty Co., 98 NY2d 144, 153 [2002]; *Kirke La Shelle Co. v Armstrong Co.*, 263 NY 79, 87 [1933]). Broadly stated, the implied covenant "embraces a pledge that 'neither party shall do anything which will have the effect of destroying or injuring the right of the

other party to receive the fruits of the contract' ” (511 W. 232nd Owners Corp., 98 NY2d at 153, quoting *Dalton v Educational Testing Serv.*, 87 NY2d 384, 389 [1995]). However, the implied covenant “is not without limits” (*Dalton*, 87 NY2d at 389). Courts will imply an obligation of good faith only “in aid and furtherance of other terms of the agreement of the parties” (*Murphy v American Home Prods. Corp.*, 58 NY2d 293, 304 [1983]; see also *Moran v Erk*, 11 NY3d 452, 456-457 [2008] [recognizing that the “‘fruits’ of the contract” are only those contemplated by the “plain language” thereof]). Thus, the covenant cannot be used to “imply obligations inconsistent with other terms of the contractual relationship,” and encompasses only those “promises which a reasonable person in the position of the promisee would be justified in understanding were included” (511 W. 232nd Owners Corp., 98 NY2d at 153 [internal quotation marks omitted]). As we have explained, “a party who asserts the existence of an implied-in-fact covenant bears a heavy burden” to “prove not merely that it would have been better or more sensible to include such a covenant, but rather that the particular unexpressed promise sought to be enforced is *in fact implicit* in the agreement viewed as a whole” (*Rowe v Great Atl. & Pac. Tea Co.*, 46 NY2d 62, 69 [1978] [emphasis added]).

Applying these principles here, the dispositive question is whether a reasonable person in plaintiffs’ position would have understood the contracts to include a promise that TLC would enforce existing black car licensing requirements against app-based companies following the auction to protect the value of plaintiffs’ investment. As the Appellate Division correctly recognized, the bid forms include disclaimers incompatible with such a promise. First, plaintiffs acknowledged in the bid forms that defendants made no representations or warranties “as to the present or future value of a taxicab medallion.” As plaintiffs concede on this appeal, that language is flatly inconsistent with any suggestion that defendants guaranteed the value of their medallions.

Second, plaintiffs acknowledged in the bid forms that defendants made no representations or warranties “as to the present or future application or provisions of the rules of the [TLC] or applicable law.” The plain language of that disclaimer put plaintiffs on notice that they—not defendants—bore the risk that either TLC’s rules or its “application” thereof might change after the sale of the medallions. TLC’s “application” of its rules

encompasses its enforcement of the black car licensing requirements in place at the time of the auction. Because defendants warned plaintiffs in the bid forms that they were not guaranteeing plaintiffs' investment or making any promises about the future application of TLC's rules, plaintiffs cannot justifiably have expected that defendants were contractually committing themselves to enforce those rules for plaintiffs' benefit. Any such promise would be flatly "inconsistent with other terms of the contractual relationship" (*Murphy*, 58 NY2d at 304; see also *Moran*, 11 NY3d at 457).

Finally, it is worth noting that a reasonable person in plaintiffs' position would have been aware that the regulation of taxi medallions and black cars had been changing since 1996, most significantly in the HAIL Act passed only one year before the auction, which more than doubled the number of taxis permitted to accept hails outside Manhattan's central business district. Moreover, plaintiffs' own complaint pleads that TLC treated Uber-affiliated black cars consistently before and after the November 2013 auction. These facts further support our conclusion that the alleged promise was not reasonably inferable under the circumstances.

IV.

[2] Plaintiffs also appeal the dismissal of their General Business Law § 349 claim. Section 349 prohibits "[d]eceptive acts or practices in the conduct of any business, trade or commerce or in the furnishing of any service in this state" (General Business Law § 349 [a]; see *Himmelstein, McConnell, Gribben, Donoghue & Joseph, LLP v Matthew Bender & Co., Inc.*, 37 NY3d 169, 176 [2021]). We conclude that the government's issuance of a taxicab license is not a consumer-oriented transaction protected by section 349, and thus affirm the dismissal of plaintiffs' claim under the statute.⁴

As we have repeatedly stated, section 349 "is directed at wrongs against the consuming public" (*Oswego Laborers' Local 214 Pension Fund v Marine Midland Bank*, 85 NY2d 20, 24 [1995]). Thus, "parties claiming the benefit of the section must, at the threshold, charge conduct that is consumer oriented" (*New York Univ. v Continental Ins. Co.*, 87 NY2d 308, 320

4. In light of this holding, we do not reach the issues of whether General Business Law § 349 applies to municipal defendants or whether General Municipal Law § 50-e's 90-day notice-of-claim requirement applies to a General Business Law § 349 claim.

[1995]; accord *Carlson v American Intl. Group, Inc.*, 30 NY3d 288, 309 [2017]).⁵ This element is satisfied only when the allegedly deceptive conduct has “a broad impact on consumers at large” (*New York Univ.*, 87 NY2d at 320). Moreover, section 349 is aimed at “modest” transactions rather than complex or unique arrangements in which “each side was knowledgeable and received expert representation and advice” (*id.* at 321 [internal quotation marks omitted]; see *Oswego*, 85 NY2d at 25).

The deceptive conduct alleged in this case was directed solely at persons interested in obtaining licenses for the operation of taxicabs, not taxi consumers. Although we have recognized that professionals and business entities can qualify as “consumers” if the products or services purchased are consumer goods or their equivalent (see e.g. *Oswego* [savings accounts]; *Himmelstein* [legal resource manuals]), that is not the case here. A taxi medallion is not analogous to a consumer good or product—it is a highly-conditioned government license to operate a taxi business. The medallions not only legally authorize plaintiffs’ business operations, they also subject plaintiffs to an expansive regulatory regime aimed at protecting the safety, health, comfort, and convenience of the public. In promoting and effectuating the transaction, TLC did not act as a purveyor of a consumer good; it acted within its authorized governmental function as a regulator of the for-hire vehicle industry (*cf. Kinkopf v Triborough Bridge & Tunnel Auth.*, 6 Misc 3d 73, 74 [App Term, 2d Dept, 2d & 11th Jud Dists 2004] [regulatory agency’s collection of bridge and tunnel tolls was part of its authorized “governmental function” and thus was “not a consumer oriented transaction . . . subject to section 349”]). Finally, this was not by any means a “modest” transaction; it was a multi-hundred-million-dollar auction and plaintiffs’ principal was a sophisticated party with knowledge of and experience in the for-hire vehicle industry. For all of these reasons, we hold that plaintiffs have not pleaded the type of conduct covered by General Business Law § 349, and the claim was properly dismissed.

Accordingly, the order of the Appellate Division should be affirmed, with costs.

Chief Judge WILSON and Judges GARCIA, SINGAS and TROUTMAN concur. Judges RIVERA and HALLIGAN took no part.

5. A plaintiff must also allege deceptive conduct by the defendant and injury resulting from the deception (see *Himmelstein, McConnell, Gribben, Donoghue & Joseph, LLP*, 37 NY3d at 176).

SINGH v CITY OF NEW YORK [40 NY3d 138]

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Opinion by CANNATARO, J.

Order affirmed, with costs.

[217 NE3d 8, 195 NYS3d 436]

THE MOORE CHARITABLE FOUNDATION et al., Appellants, v PJT PARTNERS, INC., et al., Respondents, et al., Defendant.

Argued February 9, 2022; reargued May 17, 2023; decided June 13, 2023

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered December 3, 2019. The Appellate Division order, insofar as appealed from, affirmed an order of the Supreme Court, New York County (O. Peter Sherwood, J.; op 2018 NY Slip Op 31980[U] [2018]), to the extent it had granted the motion of defendants PJT Partners Inc. and Park Hill Group LLC to dismiss the cause of action for negligent supervision and retention.

Moore Charitable Found. v PJT Partners, Inc., 178 AD3d 433, reversed.

HEADNOTES

Negligence — Negligent Supervision — Notice of Employee's Propensity to Commit Fraud

1. In plaintiffs' action alleging that defendant investment bank negligently supervised and retained an employee resulting in him defrauding plaintiffs under the guise of his employment as part of a scheme to cover up his personal losses and embezzlements, the Appellate Division erred in dismissing plaintiffs' negligence claim at the pleading stage where the complaint adequately alleged that defendants had notice of the employee's propensity to commit fraud. A defendant is on notice of an employee's propensity to engage in tortious conduct when it knows or should know of the employee's tendency to engage in such conduct. An employer should know of an employee's dangerous propensity if it has reason to know of the facts or events evidencing that propensity, and may be liable if it nonetheless places the employee in a position to cause foreseeable harm. While the employee's purported drinking and gambling problems were not acts of dishonesty or indicative of a proclivity to mislead or intentionally harm others, plaintiffs also pleaded that defendants should have known of the employee's propensity to commit fraud based on a missing deal fee and his sloppy attempt to cover up his embezzlement of that fee. The complaint also alleged that the employee engaged in at least one other similar diversion-and-cover-up scheme, and that further discovery could reveal more of the same behavior. Under the circumstances, that possibility could not be dismissed as entirely speculative.

Negligence — Negligent Supervision — Scope of Employer's Duty

2. In plaintiffs' action alleging that defendant investment bank negligently supervised and retained an employee resulting in him defrauding plaintiffs under the guise of his employment as part of a scheme to cover up his personal losses and embezzlements, the Appellate Division erred in dismiss-

ing plaintiffs' negligence claim based on their failure to allege that they were customers of defendants, as plaintiffs' allegations supported the existence of a duty on the part of defendants to non-negligently supervise the employee for plaintiffs' benefit. Noncustomers may pursue negligent supervision and retention claims particularly where they allege physical injuries or property damage inflicted by a negligently supervised employee. Thus, a special relationship or privity between a plaintiff and an employer is not a necessary element of a negligent supervision claim. Plaintiffs were not customers of defendants, but they alleged that they were prospective customers who were solicited by the employee to participate in a financing arrangement related to one of defendants' legitimate business deals, supported by defendants' genuine documentation and information, which the employee was given access to by defendants as part of his employment.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Employment Relationship §§ 369, 375.
DOBBS LAW OF TORTS (2d ed) § 423.
NY JUR 2d Employment Relations §§ 391, 393.
NEW YORK LAW OF TORTS § 9:29.

ANNOTATION REFERENCE

See ALR Index under Labor and Employment; Supervision.

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POINTS OF COUNSEL

Susman Godfrey L.L.P., New York City (*Stephen Shackelford Jr.*, *William Christopher Carmody*, *Mark Musico*, *Nicholas C. Carullo*, *Stephanie Nicole Spies* and *Russell Rennie* of counsel), for appellants. I. New York's negligent supervision law should protect prospective customers such as plaintiffs. (*Haddock v City of New York*, 75 NY2d 478; *Hall v Smathers*, 240 NY 486; *Hamilton v Beretta U.S.A. Corp.*, 96 NY2d 222; *Palka v Servicemaster Mgt. Servs. Corp.*, 83 NY2d 579; *Pink v Rome Youth Hockey Assn., Inc.*, 28 NY3d 994; *Basso v Miller*, 40 NY2d 233; *Purdy v Public Adm'r of County of Westchester*, 72 NY2d 1; *Fernandez v Rustic Inn, Inc.*, 60 AD3d 893; *N.X. v Cabrini Med. Ctr.*, 97 NY2d 247; *Passucci v Home Depot, Inc.*, 67 AD3d 1470.) II. Plaintiffs more than adequately pleaded that PJT Partners, Inc. knew or should have known of Andrew W.W. Caspersen's

propensity to commit fraud. (*Naegele v Archdiocese of N.Y.*, 39 AD3d 270; *Goldin v TAG Virgin Is., Inc.*, 149 AD3d 467; *Sanchez v State of New York*, 99 NY2d 247; *Mitchell v New York Hosp.*, 61 NY2d 208; *Cohn v Lionel Corp.*, 21 NY2d 559.)

Paul, Weiss, Rifkind, Wharton & Garrison LLP, New York City (*Aidan Synnott*, *Amy L. Barton* and *Shane D. Avidan* of counsel), for respondents. I. Both lower courts correctly held that plaintiffs failed to allege that Park Hill Group, LLC or PJT Partners, Inc. was on notice of Andrew W.W. Caspersen's purported propensity to commit fraud. (*Hogle v Franklin Mfg. Co.*, 199 NY 388; *Hall v Smathers*, 240 NY 486; *Judith M. v Sisters of Charity Hosp.*, 93 NY2d 932; *Haddock v City of New York*, 75 NY2d 478; *Brandy B. v Eden Cent. School Dist.*, 15 NY3d 297; *Doe v Alsaud*, 12 F Supp 3d 674; *Haybeck v Prodigy Servs. Co.*, 944 F Supp 326; *Kenneth R. v Roman Catholic Diocese of Brooklyn*, 229 AD2d 159; *Quiroz v Zottola*, 96 AD3d 1035; *Naegele v Archdiocese of N.Y.*, 39 AD3d 270.) II. The First Department correctly held that Park Hill Group, LLC and PJT Partners, Inc. owed no duty to plaintiffs. (*Milosevic v O'Donnell*, 89 AD3d 628; *Steinborn v Himmel*, 9 AD3d 531; 532 *Madison Ave. Gourmet Foods v Finlandia Ctr.*, 96 NY2d 280; *Pulka v Edelman*, 40 NY2d 781; *Credit Alliance Corp. v Arthur Andersen & Co.*, 65 NY2d 536; *Ultramares Corp. v Touche*, 255 NY 170; *Waters v New York City Hous. Auth.*, 69 NY2d 225; *D'Amico v Christie*, 71 NY2d 76; *Heffernan v Marine Midland Bank*, 267 AD2d 83; *Gottlieb v Sullivan & Cromwell*, 203 AD2d 241.)

OPINION OF THE COURT

CANNATARO, J.

On this appeal, we assess the sufficiency of a cause of action pleaded against an investment bank for its negligent supervision and retention of an employee. Plaintiffs—a charitable foundation and its affiliate—allege that defendants' negligent supervision of their employee resulted in him defrauding them of \$25 million under the guise of his employment, as part of a scheme to cover up mounting personal trading losses and embezzlements.

We hold that it was error to dismiss plaintiffs' negligence claim at the pleading stage. Contrary to the lower courts' conclusions, the complaint adequately alleged that defendants were on notice of the employee's propensity to commit fraud prior to his interactions with plaintiffs and their resulting

losses. Nor can we agree that defendants' duty of supervision ran only to their "customers." We accordingly reverse the order of the Appellate Division and reinstate plaintiffs' claim.

I.

When reviewing a motion to dismiss for failure to state a claim, a court must give the complaint a liberal construction, accept the allegations as true, and, providing plaintiffs with the benefit of every favorable inference, examine the adequacy of the pleadings (*see Cortlandt St. Recovery Corp. v Bonderman*, 31 NY3d 30, 38 [2018]; *AG Capital Funding Partners, L.P. v State St. Bank & Trust Co.*, 5 NY3d 582, 591 [2005]; *Goshen v Mutual Life Ins. Co. of N.Y.*, 98 NY2d 314, 326 [2002]). "Whether a plaintiff can ultimately establish its allegations is not part of the calculus in determining a motion to dismiss" (*EBC I, Inc. v Goldman, Sachs & Co.*, 5 NY3d 11, 19 [2005]). We therefore accept the following allegations as true for purposes of this appeal.

Defendants PJT Partners, Inc. (PJT) and Park Hill Group, LLC (Park Hill) are, respectively, an investment bank and a division thereof which provides global alternative asset advisory and fundraising services. In 2013, Park Hill hired Andrew Caspersen to manage its "secondaries" business, which involved "facilitating the purchase, sale, or restructuring of ownership interests in certain kinds of investment vehicles, such as private equity or hedge funds" (complaint ¶ 17). Caspersen was hired primarily to start a new business line focusing on "fund recapitalization" work, specifically by "representing private equity fund managers who were interested in offering liquidity to their investors" (*id.* ¶ 18).

In furtherance of that goal, defendants gave Caspersen significant authority. They authorized him to solicit potential clients over telephone and email, to use defendants' brand names and resources to market their services, and to engage with clients throughout the solicitation and negotiation process. Indeed, defendants encouraged Caspersen to act as the primary or sole point of contact for clients on his deals, including with respect to the transmission of invoices. Caspersen was also given access to virtual data rooms in which defendants stored confidential documents related to their deals.

Caspersen was a successful and high-performing employee who brought in a substantial amount of work for defendants. Over time, however, Caspersen began to display signs of

“dangerous and destructive behaviors” (*id.* ¶ 25). For example, he would engage in “excessive high-risk securities trading” from personal accounts during work hours, and “would obsessively monitor his positions, often checking the value of his holdings every few minutes . . . using a variety of devices, including the computer and/or communication devices supplied to him by” defendants (*id.* ¶ 26). Caspersen also allegedly “began drinking to excess during the work day,” meaning that he would frequently “arriv[e] at the office in the morning only after having consumed one or more Bloody Marys,” “typically consume 10 to 15 alcoholic drinks each day, mostly during business hours,” and hold meetings with colleagues while inebriated (*id.* ¶ 27).

Nonetheless, in 2014, Caspersen landed a major deal for defendants involving the recapitalization of a private equity fund managed by Irving Place Capital (Irving Place). Defendants’ role in the transaction was to find a new investor interested in buying out the fund’s existing equity holders. Caspersen pitched the opportunity to Collier Capital, which agreed to serve as the lead buyer in the transaction at a price of \$500 million. The transaction closed in August 2015, at which time Irving Place was to pay defendants a deal fee of \$8.1 million. When the time came, however, Caspersen intercepted and diverted that fee to himself. He did so by sending a fake Park Hill invoice to Irving Place, directing that company to transfer the fee into an account created and controlled solely by Caspersen. Irving Place followed those instructions and paid the fee to Caspersen’s account. Caspersen used the stolen \$8.1 million fee to purchase securities on his personal account, which promptly lost all of their value.

One month after the closing, in September 2015, employees from defendants’ “back office” asked Caspersen about the missing fee. Caspersen falsely responded that the fee would not be paid until a “stub closing” was complete.¹ The complaint pleads that defendants “knew or should have known” that this explanation was false because they were “handling the Irving Place transaction, and knew or should have known that there was no stub closing on the deal” (*id.* ¶ 35). The complaint fur-

1. As explained in the complaint, Caspersen meant that “while most of the interests in the Irving Place fund had already been paid for and transferred in a primary closing, a ‘stub’ portion of the interests had not yet been paid for and transferred but would be in connection with a second, smaller ‘stub’ closing” (complaint ¶ 34).

ther pleads that Caspersen’s explanation was “implausible and transparently false” because “[t]ypically, when there was a stub closing on a deal, which was rare, [defendants] would nevertheless receive [their] fee in connection with the primary closing” and only a “pro rata portion of the fee, attributable to the undisclosed ‘stub’ part of the deal” would be deferred in connection with the stub closing (*id.* ¶¶ 36-37). Nonetheless, defendants did not challenge Caspersen’s explanation or immediately inquire further about the delayed payment.

Caspersen understood that as the end of the year approached, defendants would likely insist on receiving the \$8.1 million fee; accordingly, he devised a scheme to obtain replacement funds from plaintiff The Moore Charitable Foundation (the Foundation) and use them to pay what defendants were owed. In October 2015, Caspersen contacted the Foundation “using a legitimate PJT email address” and offered it “an opportunity to invest in a security with a risk-free 15% rate of return” (complaint ¶ 41). In subsequent communications, Caspersen told the Foundation that the opportunity related to the Irving Place transaction, which he falsely stated had not yet closed. More specifically, Caspersen “claimed that he was syndicating an \$80 million loan that he had agreed to make to Collier Capital in order to help facilitate the closing of the transaction,” and that he was soliciting investors in that financing (*id.*). To support the validity of the transaction, Caspersen used his PJT email account to send the Foundation a real annual financial report for Irving Place, obtained from defendants’ data room, which bore a Park Hill watermark. The Foundation ultimately agreed to contribute \$25 million in financing.

In November 2015, Caspersen used his PJT email account to send wire instructions to the Foundation. The instructions were written on Park Hill letterhead and directed that the funds be sent to a special purpose vehicle (SPV) created and controlled by Caspersen but named to appear like an Irving Place-affiliated entity. Over the next few days, Caspersen again used his PJT email address to send the Foundation a promissory note, security agreement, and letter from the SPV, all bearing the signature of “John Nelson,” a fictitious authorized signatory for Irving Place.

The Foundation transferred the \$25 million to the SPV account through plaintiff Kendall JMAC. The complaint pleads that plaintiffs did so based on their “reasonable reliance on the strong reputation of [defendants] as well as Caspersen’s posi-

tion there” (*id.* ¶ 46). Within days, Caspersen transferred \$8.1 million from the SPV account to defendants, “making it appear” that Irving Place was finally paying the missing deal fee (*id.* ¶ 47). Caspersen transferred the remainder of plaintiffs’ \$25 million financing to his personal account, where he used the funds to engage in speculative securities trading that eventually resulted in losses of approximately \$14.5 million.

Caspersen maintained his ruse for several months by making fake interest payments to the Foundation on the fake promissory note. In March 2016, however, the Foundation discovered the fraud when its representative asked to speak with John Nelson and discovered that no such person existed. Later that year, Caspersen entered a plea of guilty in federal court to securities and mail fraud charges and was sentenced to a four-year term of imprisonment. Although ordered to pay restitution to plaintiffs, Caspersen has not done so.

Plaintiffs eventually commenced this action against defendants to recover their losses, asserting causes of action against defendants for negligent supervision and retention, conversion, and fraud. Defendants moved to dismiss the complaint pursuant to CPLR 3211 (a) (7) and 3016 (b). As relevant here, Supreme Court dismissed plaintiffs’ cause of action for negligent supervision and retention but allowed other claims to proceed. The court explained that it was dismissing the negligence claim based on plaintiffs’ failure to adequately plead that defendants were on notice of Caspersen’s propensity for fraud, and had “not considered” whether defendants’ duty ran only to customers (2018 NY Slip Op 31980[U], *13 [Sup Ct, NY County 2018]).

On the parties’ cross-appeals, the Appellate Division modified Supreme Court to the extent of dismissing plaintiffs’ complaint in its entirety (178 AD3d 433 [1st Dept 2019]). The Court affirmed the dismissal of the negligent supervision and retention claim based on its conclusion that the complaint did “not allege that defendants were aware of the facts that plaintiff[s] contend[] would have put them on notice of the employee’s criminal propensity” (*id.* at 434). “Further,” the Court summarily held, “the complaint also fails to allege that plaintiffs were ever customers of defendants, which is fatal to a claim of negligent supervision” (*id.*). This Court granted plaintiffs’ motion for leave to appeal (35 NY3d 914 [2020]).

II.

It is well-settled that to establish a claim of negligence, a plaintiff must prove: a duty owed to the plaintiff by the defendant, a breach of that duty, and injury proximately resulting therefrom (*Pasternack v Laboratory Corp. of Am. Holdings*, 27 NY3d 817, 825 [2016]; *Solomon v City of New York*, 66 NY2d 1026, 1027 [1985]; *Akins v Glens Falls City School Dist.*, 53 NY2d 325, 333 [1981]). Where the negligence claim relates to an employer's retention and supervision of an employee, the complaint must include allegations that: (1) the employer had actual or constructive knowledge of the employee's propensity for the sort of behavior which caused the injured party's harm; (2) the employer knew or should have known that it had the ability to control the employee and of the necessity and opportunity for exercising such control; and (3) the employee engaged in tortious conduct on the employer's premises or using property or resources available to the employee only through their status as an employee, including intellectual property and confidential information (*see e.g.* Restatement [Second] of Torts § 317, Comment *b*; Restatement [Second] of Agency § 219 [2] [d] [stating an employer is liable for the torts of employees acting outside the scope of their employment if, inter alia, the employee was "aided in accomplishing the tort by the existence of the agency relation"]; *Kenneth R. v Roman Catholic Diocese of Brooklyn*, 229 AD2d 159, 161 [2d Dept 1997] [citing, inter alia, *Hall v Smathers* (240 NY 486 [1925]), *Park v New York Cent. & Hudson Riv. R.R. Co.* (155 NY 215 [1898]), and *Detone v Bullit Courier Serv.* (140 AD2d 278, 279 [1st Dept 1988])]).

Here, plaintiffs' complaint adequately states a claim for negligent supervision and retention. Contrary to the holdings of the courts below, the complaint adequately alleges that defendants had notice of Caspersen's propensity to commit fraud. Further, the Appellate Division erred in holding that a customer relationship is a prerequisite to duty in a negligent supervision claim.

A.

When an employer has notice of its employee's propensity to engage in tortious conduct, yet retains and fails to reasonably supervise such employee, the employer may become liable for injuries thereafter proximately caused by its negligent supervision and retention (*see* 53 NY Jur 2d, Employment Relations

§ 391; *Park*, 155 NY 215). As every Department of the Appellate Division has recognized, a defendant is on notice of an employee's propensity to engage in tortious conduct when it knows or should know of the employee's tendency to engage in such conduct (see e.g. *Belcastro v Roman Catholic Diocese of Brooklyn, N.Y.*, 213 AD3d 800, 801 [2d Dept 2023]; *Druger v Syracuse Univ.*, 207 AD3d 1153, 1154 [4th Dept 2022]; *Pirro v Board of Trustees of the Vil. of Groton*, 203 AD3d 1263, 1271 [3d Dept 2022]; *Gibbs v Léman Manhattan Preparatory Sch.*, 201 AD3d 569, 569 [1st Dept 2022]; 53 NY Jur 2d, Employment Relations § 391).

In this case, defendants argue that the only circumstance in which an employer "should know" of an employee's propensity for tortious conduct is when the employer has *actual* knowledge of multiple past acts by the employee similar to those alleged in the complaint. Because the complaint here does not contain such allegations, defendants argue that dismissal was proper.

We disagree. Certainly, allegations that a defendant had actual knowledge of prior acts by an employee similar to those alleged in the complaint satisfy the notice element (see *Hogle v Franklin Mfg. Co.*, 199 NY 388, 392 [1910] [knowledge of propensity established by evidence that employees threw objects out of factory windows onto plaintiff's property for more than a year "with the knowledge of the defendant"])). However, an employer cannot avoid liability for negligent supervision and retention by shutting its eyes to the tortious practices and propensities of its employees—that is, by being doubly negligent. An employer "should know" of an employee's dangerous propensity if it has *reason* to know of the facts or events evidencing that propensity, and may be liable if it nonetheless "place[s] the employee in a position to cause foreseeable harm" (see *Detone*, 140 AD2d at 279; see e.g. *Hall*, 240 NY at 490 [notice of superintendent's violent tendencies was shown by "repeated complaints" made to defendants by tenants and visitors]; *Park*, 155 NY at 219 [constructive knowledge of railroad employee's propensity for negligence "may be shown by evidence tending to establish that such incompetency was generally known in the community"])).² Put differently, the notice element is satisfied if a reasonably prudent employer, exercising

2. Defendants' argument that actual knowledge of prior bad acts is required to plead notice in this context is similar to an argument we rejected

(n. cont'd)

ordinary care under the circumstances, would have been aware of the employee's propensity to engage in the injury-causing conduct. Where the various facts and circumstances alleged in a complaint permit such an inference, the notice element is adequately pleaded (*see Cortlandt St. Recovery Corp.*, 31 NY3d at 38).

Plaintiffs allege that defendants had notice of Caspersen's propensity to commit fraud because Caspersen engaged in excessive drinking and obsessive personal stock trading during work hours, and because he gave defendants' back-office employees a "transparently false" response when they inquired as to when defendants would receive the \$8.1 million deal fee from Irving Place.

The allegations of Caspersen's purported drinking and gambling problems do not, standing alone, justify an inference that defendants should have known of Caspersen's propensity to commit fraud. For prior conduct to provide notice of an employee's propensity to commit a tort, that conduct must be "similar to the . . . injury-causing act" (*see Brandy B. v Eden Cent. School Dist.*, 15 NY3d 297, 302 [2010] [reaching similar conclusion with respect to a claim against a school district for failing to supervise a troubled student]). As defendants correctly argue, there is a significant disconnect between excessive drinking and obsessive personal stock trading—neither of which are illegal or tortious—and the sophisticated fraud Caspersen ultimately perpetrated against plaintiffs. The former habits may be unprofessional or irresponsible in a financial advisor, and may warrant some degree of oversight or discipline,³ but they are not acts of dishonesty or indicative of a proclivity to mislead or intentionally harm others (*see McBride v City of New York*, 160 AD3d 414, 414 [1st Dept 2018]; *Milosevic v O'Donnell*, 89 AD3d 628, 629 [1st Dept 2011]; *see also*

in *Sanchez v State of New York* (99 NY2d 247, 253-254 [2002]), involving a claim against the State for its alleged negligent supervision of incarcerated persons. Although defendants' actual knowledge requirement would establish "a bright-line test" for the pleading of negligent supervision and retention claims, that line would "redefine[] the traditional standard of reasonableness that has long been the touchstone of the law of negligence" by "cut[ting] off consideration of other factors that have previously been found relevant to foreseeability" (*id.* at 254).

3. However, the type and degree of oversight that might be reasonable when an employee displays signs of alcoholism or gambling addiction likely differ from that appropriate when an employee displays fraudulent tendencies.

Naegele v Archdiocese of N.Y., 39 AD3d 270, 270 [1st Dept 2007], *lv denied* 9 NY3d 803 [2007]).

[1] Here, however, plaintiffs also plead that defendants should have known of Caspersen’s propensity to commit fraud based on the missing \$8.1 million Irving Place deal fee and Caspersen’s purportedly sloppy attempt to cover up his embezzlement of that fee. As discussed, the complaint pleads that one month after the Irving Place transaction closed, employees in defendants’ back office noticed the fee was missing and asked Caspersen when it would be received. Caspersen allegedly responded that it would not be paid until a “stub closing” was complete. Affording plaintiffs the benefit of all favorable inferences at this stage, we must accept that the back-office employees who heard Caspersen’s explanation should have recognized it as either false or questionable based on their familiarity with the Irving Place deal or the “typical” payment structure of stub closings, and that a reasonable employer would have investigated and uncovered the embezzlement prior to the fraud against plaintiffs. The complaint also alleges that Caspersen engaged in at least one other similar diversion-and-cover-up scheme, and that further discovery could reveal more of the same behavior. Under the circumstances, we cannot dismiss that possibility as entirely speculative. At this juncture, evidence of exactly what defendants knew—and when—is primarily within their sole possession and control. Thus, we find the allegations of notice sufficient to survive a motion to dismiss under our liberal pleading standards.

B.

The Appellate Division also dismissed the negligent supervision claim based on plaintiffs’ failure to allege that they “were ever customers of defendants,” which the Court characterized as “fatal” (178 AD3d at 434). We disagree.

“The existence and scope of a tortfeasor’s duty is, of course, a legal question for the courts” (532 *Madison Ave. Gourmet Foods v Finlandia Ctr.*, 96 NY2d 280, 288 [2001]). However, “[a]bsent a duty running directly to the injured person there can be no liability in damages, however careless the conduct or foreseeable the harm” (*id.* at 289). We fix the point of a duty in a particular case “by balancing factors, including the reasonable expectations of parties and society generally, the proliferation of claims, the likelihood of unlimited or insurer-like liability, disproportionate risk and reparation allocation, and public

policies affecting the expansion or limitation of new channels of liability” (532 *Madison*, 96 NY2d at 288, quoting *Hamilton v Beretta U.S.A. Corp.*, 96 NY2d 222, 232 [2001]; *Palka v Servicemaster Mgt. Servs. Corp.*, 83 NY2d 579, 586 [1994]). This policy-driven analysis reflects that, “[a]t its foundation, the common law of torts is a means of apportioning risks and allocating the burden of loss” (532 *Madison*, 96 NY2d at 289). The purpose of a civil action for tort is to “compensate for the damage suffered, at the expense of the wrongdoer” (Prosser & Keeton, *Torts* § 2 at 7 [5th ed 1984]); however, courts first must determine whether defendants owed a duty to plaintiffs. “This restriction is necessary to avoid exposing defendants to unlimited liability to an indeterminate class of persons conceivably injured by any negligence in a defendant’s act,” even if some of those persons’ injuries might be characterized as foreseeable (532 *Madison*, 96 NY2d at 289).

We have never held that a cause of action for negligent supervision and retention is maintainable only by customers of the defendant. Indeed, there is substantial authority in this state that noncustomers may pursue such claims, particularly when they allege physical injuries or property damage inflicted by a negligently supervised employee (*see e.g. Hogle*, 199 NY at 392; *Selmani v City of New York*, 116 AD3d 943, 943 [2d Dept 2014]; *Quiroz v Zottola*, 96 AD3d 1035, 1036 [2d Dept 2012]; *see also* Restatement [Second] of Torts § 317). Thus, to the extent defendants argue that a special relationship or privity between plaintiff and employer is a necessary element of a negligent supervision claim, we expressly reject any such requirement (*see* PJI 2:240; NY PJI 2:240, Comment [advising that an employer “is liable for any harm to other persons resulting from its employee’s” act, and that liability is “not necessarily predicated on any special relationship between the employer and plaintiff”], citing *Haddock v City of New York*, 75 NY2d 478 [1990]).⁴

4. In support of their argument that a special relationship should be required when a plaintiff seeks to recover purely economic losses, defendants cite two cases in which the First and Second Departments dismissed negligent supervision and retention claims based on the absence of a “special duty” or “privity” running between the defendant employers and the plaintiffs (*see Heffernan v Marine Midland Bank*, 267 AD2d 83, 84 [1st Dept 1999]; *Gottlieb v Sullivan & Cromwell*, 203 AD2d 241, 241-242 [2d Dept 1994]). Neither case supports the rule adopted below. In *Gottlieb*, a law firm’s rogue employees stole confidential information and sold it to third parties who used it

(n. cont’d)

Concerns about crushing liability to an indeterminate class of plaintiffs carry less weight in a negligent supervision and retention case because the elements of the tort already protect employers from limitless liability in several ways. First, we have already recognized that the employer-employee relationship gives rise to a duty to properly supervise and oversee the conduct of employees (*see Hamilton*, 96 NY2d at 233). Second, as discussed above, the employer must have had actual or constructive notice of the employee's propensity to engage in a particular type of tortious conduct. Third, a defendant's duty in this context is only to act as a prudent and reasonable employer would under the circumstances. Finally, as in every tort action, the injuries alleged must have been proximately caused by the defendant's negligent supervision and retention. In other words, there must be a nexus between the actions or omissions of the employer and the harm the employee was able to inflict. Ultimately, if the employee's tortious conduct is too attenuated from the employment relationship, the employer will not be liable.

In light of the above requirements, our dissenting colleagues are simply incorrect that without a customer rule, "any employee . . . who goes into the office or uses a telephone to defraud any third party may expose the employer to liability," making New York "unpalatable" to employers and threatening its status as "a leading commercial center" (dissenting op at 166, 171). Rather, our framework ensures that an employer is liable only when it has notice of a particular employee's propensity for tortious conduct but neglects to reasonably supervise and control such employee, enabling the employee to harm third parties aided by the use of the employer's resources. There is no policy or commercial benefit that would justify relieving employers of liability for injuries proximately resulting from

to make illegal trades. The plaintiff was an unaffiliated trader on the American Stock Exchange, who alleged losses because the illegal trades affected the market and, consequently, the value of his holdings. *Gottlieb* correctly refused to extend the duty to persons injured because of an attenuated chain of events eventually allegedly affecting the stock market. Here, unlike in *Gottlieb*, plaintiffs alleged they were directly defrauded by the negligently supervised employee.

Heffernan, in turn, relied exclusively on *Gottlieb* to support its summary determination that plaintiffs in that case failed to allege facts "showing a special duty running from the bank to them" (*Heffernan*, 267 AD2d at 84). Insofar as that case relied on *Gottlieb*, it does not support a rule requiring a customer relationship; insofar as it would require a "special" duty, it is an inaccurate framing of the law.

such negligence based solely upon the absence of a customer relationship between the employer and the injured party.

[2] Here, plaintiffs were not customers of defendants, as that term is typically understood, but plaintiffs alleged that they were prospective customers who were solicited by Caspersen to participate in a financing arrangement related to one of defendants' legitimate business deals, supported by defendants' genuine documentation and information, which he was given access to by defendants as part of his employment. We hold that these allegations support the existence of a duty on the part of defendants to non-negligently supervise Caspersen for plaintiff's benefit (*see 532 Madison*, 96 NY2d at 288 [listing "the reasonable expectations of parties" as one of the critical factors to be balanced in defining the scope of a duty]).

The dissent characterizes this holding as out of step with the laws of other jurisdictions (*see* dissenting op at 169-170), but most of the cases it cites do not in fact involve negligent supervision and retention claims. Two of the cases involved negligent misrepresentation claims (*see Giannacopoulos v Credit Suisse*, 37 F Supp 2d 626 [SD NY 1999]; *Clark v Davenport*, 2019 WL 3230928, 2019 Del Ch LEXIS 264 [July 18, 2019, C.A. No. 2017-0839-JTL]). The majority of the cases involved large-scale industrial accidents, which can pose the risk of liability on a mammoth scale from a single incident (*see Southern Cal. Gas Leak Cases*, 7 Cal 5th 391, 396, 441 P3d 881, 884 [2019]; *Balfour Beatty Infrastructure, Inc. v Rummel Klepper & Kahl, LLP*, 451 Md 600, 155 A3d 445 [2017]; *Lawrence v O & G Indus., Inc.*, 319 Conn 641, 126 A3d 569 [2015]; *In re Chicago Flood Litig.*, 176 Ill 2d 179, 680 NE2d 265 [1997]; *Petitions of Kinsman Transit Co.*, 388 F2d 821 [2d Cir 1968]). Finally, in two of the cases, the plaintiffs argued that the defendant-employers had duties to prevent their former employees from committing torts even after terminating those employees (*see Prymak v Contemporary Fin. Solutions, Inc.*, 2007 WL 4250020, 2007 US Dist LEXIS 87734 [D Colo, Nov. 29, 2007, Civil Action No. 07-cv-00103-EWN-KLM]; *Palmer v Shearson Lehman Hutton, Inc.*, 622 So 2d 1085 [Fla Dist Ct App, 1st Dist 1993]). None of the cases cited by the dissent limit the persons eligible to bring negligent supervision and retention claims to customers or those in privity with the employer.

Thus, plaintiffs have adequately alleged a claim for negligent supervision and retention. The Appellate Division therefore erred in dismissing the claim.

The order of the Appellate Division insofar as appealed from should be reversed, with costs, and so much of defendants' motion as sought dismissal of plaintiffs' negligent supervision claim denied.

SINGAS, J. (dissenting). New York is the financial capital of the country, if not the world. This preeminent status, which has drawn business interests to New York for centuries, is due in large part to the predictability of our law. Commercial and financial sectors depend on our courts for clarity and guidance. Today's majority opinion offers neither. Worse, it exposes law firms, banks, hedge funds, and countless other financial institutions to limitless liability for the criminal actions of rogue employees. Such unprecedented exposure will all but transform employers into insurers, an outcome against which we have repeatedly cautioned. I dissent.

I.

In his capacity as manager, and then partner, at PJT, Andrew Caspersen specialized in representing private fund managers in fund recapitalization deals. In October 2015, having lost millions of dollars due to excessive personal trading, Caspersen used his PJT email address to contact his friend, James McIntyre, at Moore Capital Management. Caspersen offered a fake opportunity to invest in a security—not a recapitalization—that he promised would result in large, risk-free returns. Neither McIntyre nor Moore Capital Management was a client of either Caspersen or PJT. Instead, Caspersen knew McIntyre because they went to college together.

The Moore Charitable Foundation, an entity related to Moore Capital Management, expressed interest in Caspersen's fraudulent proposal after he sent a PJT document from a real, but closed, recapitalization deal. Caspersen also sent the Foundation instructions on PJT letterhead to wire money to a non-PJT entity he had created and used his PJT email account to send a fake promissory note and security agreement in connection with the Foundation's proposed investment. The Foundation then wired Caspersen \$25 million dollars, which Caspersen largely gambled away.

II.

We must now answer the "threshold question in [this] negligence action . . . : does defendant owe a legally recognized duty of care to plaintiff?" (*Hamilton v Beretta U.S.A. Corp.*, 96

NY2d 222, 232 [2001]). Traditionally, courts determine the scope of a duty upon a consideration of multiple factors, including, as most relevant here, “the proliferation of claims [and] the likelihood of unlimited or insurer-like liability” (*Matter of New York City Asbestos Litig.*, 5 NY3d 486, 493 [2005] [internal quotation marks omitted]). As to these factors, the majority recognizes that courts must “‘avoid exposing defendants to unlimited liability to an indeterminate class of persons conceivably injured by any negligence in a defendant’s act,’ even if some of those persons’ injuries might be characterized as foreseeable” (majority op at 161, citing *532 Madison Ave. Gourmet Foods v Finlandia Ctr.*, 96 NY2d 280, 289 [2001]). But despite that significant concern, the majority proceeds to effectively imply that an employer owes a duty to all prospective customers.¹

Permitting all potential customers to sue employers for an employee’s fraud unrelated to the employment but perpetrated via company email or phone would result in unmitigated proliferation of claims and virtually unlimited liability, well beyond the traditional concepts of respondeat superior and apparent authority.² This Court has repeatedly cautioned against subjecting a defendant “to limitless liability to an indeterminate class of persons conceivably injured” (*Hamilton*, 96 NY2d at 232). But the majority now suggests that any time an employee

1. The majority correctly notes that the underlying litigation is at the pleading stage, where we “must give the complaint a liberal construction [and] accept the allegations as true,” without regard to whether plaintiffs “‘can ultimately establish [their] allegations’” (majority op at 153, quoting *EBC I, Inc. v Goldman, Sachs & Co.*, 5 NY3d 11, 19 [2005]). The very fact that the allegations thus are necessarily unestablished renders the majority’s vast expansion of duty jurisprudence especially troubling.

2. The majority references plaintiffs’ allegations that “they were prospective customers who were solicited by Caspersen to participate in a financing arrangement related to one of defendants’ legitimate business deals” (majority op at 163), but plaintiffs have also acknowledged that the deal proposed to them was not legitimate; therefore, it is debatable whether plaintiffs were ever even prospective customers. Regardless, the fraud theories of respondeat superior and apparent authority already protect potential customers interacting with employees, so long as the employee’s conduct is within the scope of his employment and benefits the employer (respondeat superior) or the employer presented the employee to the potential customer as having authority to act on the employer’s behalf, and the potential customer reasonably relied on that presentation (apparent authority) (see *Judith M. v Sisters of Charity Hosp.*, 93 NY2d 932, 933 [1999]; *Hallock v State of New York*, 64 NY2d 224, 231 [1984]). The lower courts dismissed these claims below, correctly recognizing that plaintiffs’ allegations were insufficient to sustain them.

makes use of “the employer’s premises” or of “property or resources available to the employee only through their status as an employee,” the employer may be held liable in negligent supervision (majority op at 157). The majority opines that this standard will limit liability. But by their logic, any employee, regardless of their title, who goes into the office or uses a telephone to defraud any third party may expose the employer to liability. Arguably, employers now could owe a duty to virtually anyone.

The majority also posits that liability would be limited, in part, by the elements of the tort itself (majority op at 162), but none of the elements contemplates, much less imposes a reasonable limit on, the number of potential victims—and therefore prospective plaintiffs—to whom the employer owes a duty. Moreover, though there is a propensity element to negligent supervision, that does not pertain to the existence of a legal duty; “foreseeability bears on the scope of a duty, not whether a duty exists in the first place” (*Matter of New York City Asbestos Litig.*, 5 NY3d at 494; see also *Credit Alliance Corp. v Arthur Andersen & Co.*, 65 NY2d 536, 553 [1985] [eschewing a duty rule “permitting recovery by any foreseeable plaintiff”]).

The majority further disregards our previous emphasis on the public policy necessity of limiting an employer’s liability for an employee’s fraud. “[A]ny extension of the scope of duty must be tailored to reflect accurately the extent that its social benefits outweigh its costs” (*Hamilton*, 96 NY2d at 232). Generally, a defendant is not expected to control the conduct of third parties, “even where as a practical matter defendant can exercise such control” (*D’Amico v Christie*, 71 NY2d 76, 88 [1987]). It is reasonable to envision a duty only “where there is a relationship either between defendant and a third-person tortfeasor that encompasses defendant’s actual control of the third person’s actions, or between defendant and plaintiff that requires defendant to protect plaintiff from the conduct of others” (*Hamilton*, 96 NY2d at 233). “Landowners, for example, have a duty to protect tenants, patrons and invitees from foreseeable harm caused by the criminal conduct of others while they are on the premises, because the special relationship puts them in the best position to protect against the risk” (532 *Madison*, 96 NY2d at 289, citing *Nallan v Helmsley-Spear, Inc.*, 50 NY2d 507, 518-519 [1980]). But that duty “does not extend to members of the general public” (*id.*, citing *Waters v New York*

City Hous. Auth., 69 NY2d 225, 229 [1987]). The policy of limiting liability is fulfilled “because the special relationship defines the class of potential plaintiffs to whom the duty is owed” (*id.*).

Certainly, a special relationship is not required in every negligent supervision case, particularly where employers are deemed responsible for noneconomic injuries inflicted by their employees. “Liability in such cases is imposed not necessarily because of any special relationship between the employer and the injured party” (*Rodriguez v United Transp. Co.*, 246 AD2d 178, 180 [1st Dept 1998], citing *Haddock v City of New York*, 75 NY2d 478 [1990]). Instead, because the employer put the employee in a position to cause that kind of harm (i.e., physical injury), those courts recognized the employer’s legal duty to “take[] reasonable care in making its decision concerning the hiring and retention of the employee” (*Sheila C. v Povich*, 11 AD3d 120, 129 [1st Dept 2004]; see also e.g. *Hogle v Franklin Mfg. Co.*, 199 NY 388, 392 [1910] [plaintiff injured by items thrown by employee from factory window]; Restatement [Third] of Torts: Liability for Economic Harm § 1, Comment c [1] [“Physical forces that cause injury ordinarily spend themselves in predictable ways; their exact courses may be hard to predict, but their lifespan and power to harm are limited”]).

But while “[e]conomic injuries may be no less important than injuries of other kinds[,] . . . courts impose tort liability for economic loss more selectively than liability for other types of harms,” as “[e]conomic losses proliferate more easily than losses of other kinds” (Restatement [Third] of Torts: Liability for Economic Harm § 1, Comment c [1]; see 532 *Madison*, 96 NY2d at 291-292 [where the potential claims of “those who have suffered purely economic losses” are indeterminate, “limiting the scope of defendants’ duty to those who have . . . suffered personal injury or property damage—as historically courts have done—affords a principled basis for reasonably apportioning liability”]). Therefore, this Court has consistently stated that certain negligence actions require a relationship “so close as to approach that of privity” (*Ultramares Corp. v Touche*, 255 NY 170, 182-183 [1931]).

In *Credit Alliance Corp.*, where the plaintiffs alleged fraudulent and negligent preparation of a financial report, the Court considered the “limits” of the defendant accountants’ liability toward non-privy parties (65 NY2d at 541). We held that, “[a]lthough accountants might be held liable *in fraud* to non-privy parties who were intended to rely upon the accountants’

misrepresentations,” it is a “different question . . . whether they *owed a duty*” to these parties (*id.* at 547 [emphasis added]). Because the negligence claim “fail[ed] to set forth either a relationship of contractual privity with [defendants] or a relationship sufficiently intimate to be equated with privity, [it] should be dismissed” (*id.* at 543, 547; *see also* 532 *Madison*, 96 NY2d at 289 [a duty to protect a plaintiff from risk of economic harm inflicted by a third party “may arise from a special relationship” requiring that the defendant provide such protection]). The majority scarcely acknowledges this settled liability principle regarding claims of purely economic loss. Indeed, in relying on the Restatement (Second) of Torts § 317—which, by its plain language, applies to claims of “bodily harm”—to support its creation of a duty under the circumstances here, the majority effectively removes any distinction between economic and physical injury and affirmatively jettisons our precedent regarding the principles underlying that distinction altogether.

The majority further disputes the relevance of two Appellate Division decisions unequivocally requiring a special relationship in similar cases (*see* majority op at 161-162 n 4, citing *Heffernan v Marine Midland Bank*, 267 AD2d 83, 84 [1st Dept 1999] and *Gottlieb v Sullivan & Cromwell*, 203 AD2d 241, 241-242 [2d Dept 1994]). In *Heffernan*, a rogue employee of the defendant bank perpetrated a Ponzi scheme, convincing friends and family to turn over funds for a non-existent investment that the employee represented was guaranteed by the bank. The employee then deposited the funds into his personal account at the bank. The First Department affirmed the trial court’s dismissal of the negligence claims against the bank, holding that “plaintiffs fail[ed] to allege any facts showing a special duty running from the bank to them” (267 AD2d at 84). The First Department cited *Gottlieb*, in which employees at Sullivan & Cromwell shared confidential firm information with third parties, who then engaged in insider trading. The Second Department affirmed the lower court’s grant of summary judgment to the defendant. Rather than relying on “an attenuated chain of events eventually allegedly affecting the stock market” (majority op at 162 n 4), the Court observed that plaintiff, a trader who lost money on the securities in question, “was not a client of the defendant’s, with the result that, in the absence of any privity between the parties, the defendant owed the plaintiff no duty in the hiring and/or supervision of its employees” (203 AD2d at 241-242). Accordingly, both cases are directly on point.

And yet, because the employees in each case used the employers' property or resources, it is difficult to conceive, under the majority's standard, how the employers would not be liable to the plaintiffs.

Additional public policy urges caution here. Unrestricted and unpredictable liability could have disastrous consequences for "New York's status as the preeminent commercial center in the United States, if not the world" (*159 MP Corp. v Redbridge Bedford, LLC*, 33 NY3d 353, 359-360 [2019]). That New York is "a convenient forum which dispassionately administers a known, stable, and commercially sophisticated body of law may be considered as much an attraction to conducting business [here] as its unique financial and communications resources" (*Ehrlich-Bober & Co. v University of Houston*, 49 NY2d 574, 581-583 [1980]). If subjected to open-ended tort liability on the part of plaintiffs indiscernible in both amount and identity, financial institutions undoubtedly would consider conducting their business in foreign jurisdictions with predictable and consistent precedent. The limitless standard espoused by the majority "might engender uncertainties in the free market system in connection with untold numbers of sophisticated business transactions—a not insignificant potentiality in the State that harbors the financial capital of the world" (*Bluebird Partners v First Fid. Bank*, 94 NY2d 726, 739 [2000]).

Indeed, as did New York courts before today, other forums require a customer relationship to give rise to an employer's liability for fraud perpetrated by a rogue employee. In *Prymak v Contemporary Fin. Solutions, Inc.*, the employee of a broker-dealer registered with the SEC sold unregistered securities as part of a Ponzi scheme. The United States District Court of Colorado concluded that the broker-dealer "owed no duty to protect those [p]laintiffs who were *not* clients of [the employee] while he was in [the broker-dealer's] employ" (2007 WL 4250020, *14, 2007 US Dist LEXIS 87734, *39-40 [D Colo, Nov. 29, 2007, Civil Action No. 07-cv-00103-EWN-KLM]). Notably, the court did find a duty to a separate class of plaintiffs who had a client relationship (2007 WL 4250020, *13, 2007 US Dist LEXIS 87734, *36-39). But the District Court deemed it "untenable that every employer has a special relationship, giving rise to tort liability based on harm done by third parties, with every potential customer or client" (2007 WL 4250020, *12, 2007 US Dist LEXIS 87734, *34 [emphasis omitted]; see also e.g. *Giannacopoulos v Credit Suisse*, 37 F Supp 2d 626,

631 [SD NY 1999] [dismissing negligent supervision claims brought by plaintiff who was induced by defendant's employee to invest in failed oil venture; "not all strangers generally qualified to respond to a negligent misrepresentation can sue based on their reliance on the misrepresentation"]; *Clark v Davenport*, 2019 WL 3230928, *15, 2019 Del Ch LEXIS 264, *45 [July 18, 2019, C.A. No. 2017-0839-JTL] ["allegations describ(ing) 'mere personal friendship' . . . would not support a claim for negligent misrepresentation"]; *Palmer v Shearson Lehman Hutton, Inc.*, 622 So 2d 1085 [Fla Dist Ct App, 1st Dist 1993] [no common-law duty via special relationship between defendant employer and plaintiffs because plaintiffs were never customers of defendant and did not deal with defendant at the time fraudulent employee worked for defendant]).

Still other courts have acknowledged the need for something approaching privity to find liability for purely economic harm (see e.g. *Petitions of Kinsman Tr. Co.*, 388 F2d 821, 824 n 6 [2d Cir 1968] ["compensation may be precluded where—as here—the relationship between the negligence and the injury becomes too tenuous"]; see also *Southern Cal. Gas Leak Cases*, 7 Cal 5th 391, 400, 441 P3d 881, 887 [2019] ["The primary exception to the general rule of no-recovery for negligently inflicted purely economic losses is where the plaintiff and the defendant have a 'special relationship'"]; *Balfour Beatty Infrastructure, Inc. v Rummel Klepper & Kahl, LLP*, 451 Md 600, 612, 155 A3d 445, 451 [2017] [no "tort liability (for) negligence that causes purely economic harm in the absence of privity, physical injury, or risk of physical injury"]; *Lawrence v O & G Indus., Inc.*, 319 Conn 641, 655-656, 126 A3d 569, 578 [2015] [reiterating "the long established common law rule in this state" "that in the absence of privity of contract between the plaintiff and the defendant, or of an injury to the plaintiff's person or property, a plaintiff may not recover in negligence for a purely economic loss" (internal quotation marks and brackets omitted)]; *In re Chicago Flood Litig.*, 176 Ill 2d 179, 198, 680 NE2d 265, 274 [1997] ["The economic loss rule avoids the consequences of open-ended tort liability"]).

Our precedent until today, consistent with these foreign cases, makes clear that defendants here owed no duty to plaintiffs for Caspersen's fraud. Plaintiffs had no connection to defendants and were targeted by a criminal actor who convinced them to invest in his scheme—involving a transaction that was not part of his job description—on the basis of his

personal friendship with their employee. That Caspersen was able to perpetrate his fraud via company email did not bring it within the scope of his employment, which is why the lower courts correctly dismissed plaintiffs' respondeat superior claim. In finding an unbounded duty solely because Caspersen was employed by defendants, the majority so broadens the tort of negligent supervision as to essentially swallow claims of respondeat superior and apparent authority. More importantly here, exposing employers to virtually unrestricted liability for fraud committed by rogue employees will unsettle our financial and other commercial institutions, to the point that doing business in a state in which they face undefined, exponential liability might soon prove unpalatable.

"New York has long been a leading commercial center, and our statutes and jurisprudence have, over many years, greatly enhanced New York's leadership as the center of commercial litigation" (*Justinian Capital SPC v WestLB AG, N.Y. Branch*, 28 NY3d 160, 169 [2016]). Today, we head in a different direction.

I dissent.

Chief Judge WILSON and Judges RIVERA, TROUTMAN and SMITH* concur. Judge SINGAS dissents and votes to affirm in an opinion, in which Judge GARCIA concurs. Judge HALLIGAN took no part.

Order insofar as appealed from reversed, with costs, and so much of defendants' motion as sought dismissal of plaintiffs' negligent supervision claim denied.

* Designated pursuant to NY Constitution, article VI, § 2.

[217 NE3d 659, 195 NYS3d 639]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TY-
QUAN JOHNSON, Appellant.

Argued April 18, 2023; decided May 18, 2023

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 10, 2022. The Appellate Division affirmed a judgment of the Supreme Court, Monroe County (Joanne M. Winslow, J.), which had convicted defendant, after a nonjury trial, of criminal possession of a controlled substance in the third degree (two counts) and unlawful possession of marihuana.

People v Johnson, 206 AD3d 1702, reversed.

HEADNOTE

Crimes — Unlawful Search and Seizure — Stop and Frisk — Absence of Reasonable Suspicion

In a prosecution arising from defendant's possession of drugs, the arresting officer's observations that defendant moved from the driver's seat to the passenger seat of his parked car, moved his upper torso back toward the driver's seat, pulled up his pants and attempted to buckle his belt and appeared nervous while being questioned did not provide reasonable suspicion justifying a stop and frisk. Accordingly, the evidence seized as a result of the frisk should have been suppressed. To conduct a stop and frisk under level three of the framework for evaluating the propriety of police-initiated encounters with civilians established in *People v De Bour* (40 NY2d 210 [1976]), the police must at a minimum have reasonable suspicion that the particular person has committed or is about to commit a crime or that the person is armed or dangerous. Defendant's actions constituted nothing other than innocuous behavior, sole reliance on which would impermissibly reduce the foundation for this intrusion to nothing but whim or caprice.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Searches and Seizures §§ 19, 86, 290.

CARMODY-WAIT 2d Search and Seizure §§ 173:259–
173:261.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) § 3.8.

NY JUR 2d Criminal Law: Procedure §§ 458, 460–462.

ANNOTATION REFERENCE

See ALR Index under Search and Seizure; Stop and Frisk.

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constitutional

POINTS OF COUNSEL

Paul B. Watkins, Fairport, for appellant. I. Officer Bradley Pike was not justified in initiating a *De Bour* (*People v De Bour*, 40 NY2d 210 [1976]) level one inquiry. (*People v Moore*, 6 NY3d 496; *People v Hollman*, 79 NY2d 181; *People v Holmes*, 81 NY2d 1056; *People v McIntosh*, 96 NY2d 521; *People v Ocasio*, 85 NY2d 982; *People v Laviscount*, 116 AD3d 976; *People v Rutledge*, 21 AD3d 1125, 6 NY3d 758; *People v Stover*, 181 AD3d 1061; *People v King*, 199 AD3d 1454; *People v Dixon*, 203 AD3d 1726.) II. Officer Bradley Pike was not justified in initiating a *De Bour* (*People v De Bour*, 40 NY2d 210 [1976]) level two inquiry. (*People v Hollman*, 79 NY2d 181; *People v Howard*, 147 AD2d 177, 74 NY2d 943; *People v Riddick*, 70 AD3d 1421; *People v Haynes*, 115 AD3d 676; *People v Sierra*, 83 NY2d 928; *People v Simmons*, 30 NY3d 957; *People v White*, 117 AD3d 425; *People v Carter*, 109 AD3d 1188.) III. Officer Bradley Pike had no basis to stop defendant for a *De Bour* (*People v De Bour*, 40 NY2d 210 [1976]) level three inquiry, and no justification to perform a pat/frisk. (*People v Moore*, 6 NY3d 496; *People v May*, 81 NY2d 725; *People v Williams*, 191 AD3d 1495; *Matter of Jaquan M.*, 97 AD3d 403, 19 NY3d 1041; *People v Powell*, 246 AD2d 366; *People v Burnett*, 126 AD3d 1491; *People v Howard*, 147 AD2d 177, 74 NY2d 943; *People v Chestnut*, 51 NY2d 14; *People v Townes*, 41 NY2d 97.)

Sandra Doorley, District Attorney, Rochester (*Martin P. McCarthy, II* of counsel), for respondent. The Appellate Division’s decision, affirming the lower court’s determination that the police officer’s initial approach and subsequent stop of the defendant was proper under *People v De Bour* (40 NY2d 210 [1976]), was amply supported by the record, and, as a mixed question of law and fact, is beyond further review. (*People v Perez*, 31 NY3d 964; *People v Barksdale*, 26 NY3d 139; *People v Britt*, 34 NY3d 607; *People v Howard*, 22 NY3d 388; *People v Harrison*, 57 NY2d 470; *People v Blandford*, 37 NY3d 1062; *People v Wheeler*, 2 NY3d 370; *People v Williams*, 17 NY3d 834; *People v Chestnut*, 51 NY2d 14; *People v Moore*, 6 NY3d 496.)

OPINION OF THE COURT

Chief Judge WILSON.

In *People v De Bour* (40 NY2d 210, 216 [1976]), we established a four-tiered framework for evaluating the propriety of police-initiated encounters with civilians (see *People v Hollman*, 79 NY2d 181 [1992]). In this case, Tyquan Johnson was stopped and frisked after he exited a parked car and walked down the street. He unsuccessfully moved to suppress the contraband found on him. On appeal, he contends that the police did not have the requisite level of suspicion to justify an intrusion under any level of *De Bour*. We agree that the police lacked reasonable suspicion to believe Mr. Johnson had committed a crime or was in possession of a weapon. Accordingly, we hold that the circumstances did not warrant a level three stop and frisk under *De Bour* and that the evidence seized as a result of the frisk must be suppressed.

I.

On an early evening in April 2015, Officers Bradley Pike and Darrel Schultz were patrolling an area in Rochester that had recently experienced a reported rise in violent crime. Both officers were in uniform and were riding in a marked vehicle.* As they drove up Harvest Street, Officer Pike noticed a parked Ford Explorer about 50 feet ahead. There is no indication that the car was parked improperly or that it was otherwise violating any vehicle or traffic laws. Officer Pike observed the vehicle's only occupant, Mr. Johnson, move from the driver's seat to the passenger seat. As Officer Pike approached the car, he saw Mr. Johnson momentarily move his upper body back toward the driver's seat. Officer Pike stopped his patrol car behind Mr. Johnson's car and turned on the overhead lights (not the emergency lights), so he could better see into Mr. Johnson's vehicle. Nothing in the record suggests that Mr. Johnson was aware of the presence of the police when the police car stopped or when Officer Pike turned on the overhead lights.

Officer Pike and Mr. Johnson exited their respective vehicles and Officer Pike noticed that Mr. Johnson's pants were unbuttoned, his belt undone, and that he was trying to pull his pants up as he walked down the street. Officer Pike asked Mr. Johnson to hold up, but Mr. Johnson continued to walk away.

* The only version of events is from Officer Pike; Officer Schultz did not testify.

When Officer Pike caught up to Mr. Johnson, he asked whether Mr. Johnson was nervous; Mr. Johnson replied that he was not. Officer Pike asked whether Mr. Johnson had any weapons on him, to which Mr. Johnson replied, “Nothing.” Officer Pike then frisked Mr. Johnson—finding no weapon. During the frisk, Officer Pike felt an object in Mr. Johnson’s pocket he thought might be a bag of drugs. He asked Mr. Johnson what was in his pockets and Mr. Johnson replied, “Nothing.” According to Officer Pike, Mr. Johnson began emptying his pockets, throwing two bags of marijuana on the ground. He also noticed that Mr. Johnson was holding a clear bag in his fist containing what appeared to be heroin. Officer Pike placed Mr. Johnson under arrest.

Mr. Johnson moved to suppress the drugs found on his person as the fruits of an illegal search and seizure. At the suppression hearing, Officer Pike testified that he thought it was not “common” for someone to move from the driver to the passenger seat of a car and that Mr. Johnson’s moving his upper torso back toward the driver’s seat meant there was “potential” that Mr. Johnson could be trying to stash or retrieve a weapon. He also considered it suspicious that Mr. Johnson was pulling up his pants and attempting to buckle his belt because suspects commonly hide weapons in their waistband. The court denied the motion to suppress, and the case proceeded to a bench trial. Mr. Johnson was convicted of two counts of criminal possession of a controlled substance in the third degree and was sentenced to five years on each count, to run concurrently. On appeal, Mr. Johnson renewed his arguments that Officer Pike’s initial request to stop violated level one of *De Bour*; that the Officer’s questioning violated level two, and that the stop and frisk violated level three. The Appellate Division affirmed, summarily holding that “the action taken by [Officer Pike] was justified in its inception and at every subsequent stage of the encounter leading to [Mr. Johnson]’s arrest” (206 AD3d 1702, 1702-1703 [4th Dept 2022]). We now reverse.

II.

There is no need for us to consider whether Officer Pike’s initial approach and questioning violated levels one and two of *De Bour* because his frisk of Mr. Johnson clearly runs afoul of level three. To conduct a stop and frisk under *De Bour* level three, the police must at a minimum have “reasonable suspicion that the particular person has committed or is about

to commit a crime” (*People v Benjamin*, 51 NY2d 267, 270 [1980]) or that the person is “armed or dangerous” (*People v Carney*, 58 NY2d 51, 52 [1982]; see *People v Brannon*, 16 NY3d 596, 602 [2011] [reasonable suspicion requires “specific and articulable facts which, along with any logical deductions, reasonably prompted the intrusion” (internal quotation marks and alterations omitted)]).

Here, Mr. Johnson’s actions, as observed by Officer Pike, do not meet the minimum standard required to justify a stop and frisk under *De Bour*. Prior to the frisk, Officer Pike observed Mr. Johnson: (1) move from the driver’s seat to the passenger seat of his parked car; (2) move his upper torso back toward the driver’s seat; (3) pull up his pants and attempt to buckle his belt; and (4) appear nervous while being questioned. These circumstances do not support a reasonable view that Mr. Johnson was armed or that he had committed or was about to commit a crime. These actions “constituted [nothing] other than ‘innocuous behavior,’ sole reliance on which would impermissibly reduce the foundation for [this] intrusion to nothing but ‘whim or caprice’ ” (*People v Carrasquillo*, 54 NY2d 248, 252 [1981], quoting *De Bour*, 40 NY2d at 216-217; see also *People v Sierra*, 83 NY2d 928, 930 [1994] [no reasonable suspicion where defendant “grabbed at his waistband and then fled”]; *People v Milaski*, 62 NY2d 147, 156 [1984] [nervousness in response to questioning does not justify further detention]; *People v Howard*, 50 NY2d 583, 590 [1980] [presence in area of “frequent burglaries” did not support reasonable suspicion and furtive movements were “at best ambiguous”]). Because Officer Pike lacked reasonable suspicion to justify the stop and frisk of Mr. Johnson, the evidence should have been suppressed.

Accordingly, the order of the Appellate Division should be reversed and the indictment dismissed.

RIVERA, J. (concurring). A person’s “right to be left alone is ‘too precious to entrust to the discretion of those whose job is the detection of crime’ ” (*People v De Bour*, 40 NY2d 210, 219 [1976], quoting *McDonald v United States*, 335 US 451, 455 [1948]). And yet, police interactions with the public for criminal investigative purposes are necessary to ensure public safety. This is risky business, as shown by media accounts of police encounters prompted by innocent conduct that quickly escalate to violent altercations. These dangers are not new, but their continued prevalence requires us to reassess whether the legal principles set out in *People v De Bour* nearly half a

century ago can protect individuals today from “subconstitutional abuses” (40 NY2d 210, 220 [1976]).

Police officers protect our neighborhoods and the judiciary is constitutionally tasked with determining the legality of the officers’ interactions with the public. I agree that, in this case, there is no record support for the officer’s stop and frisk. But, unlike the majority, I believe it pertinent to the resolution of this appeal and vital to the sound development of our police-encounters jurisprudence that we also evaluate whether the officer’s initial approach and inquiries were justified and not merely, as the majority opines, cumulative factors in assessing the propriety of defendant’s eventual detention and frisk. After all, these initial observations eventually contributed to his arrest.

Lawfully parking one’s car on the street and moving from the driver’s seat to the front passenger’s seat is not suggestive of criminality. Nor is reaching from the passenger seat back to the driver’s side or exiting through the closest door. Therefore, the officer’s actions were unjustified at their inception and at every subsequent stage of the encounter until defendant’s arrest. Any conclusion to the contrary invites the government to cast a wide net that ensnares the innocent in the hopes that a fishing expedition will uncover incriminating evidence. Apart from the danger to people on the street and the officers who patrol our neighborhoods, these aggressive investigative tactics strain relations with communities, and distract from good policing practices that focus on actual criminal behavior. Such aggressive encounters are inconsistent with the socially-accepted goals of police engagement: public safety and security.

Moreover, although we have reached the right conclusion in this case—but have taken different paths—I conclude that our street-encounters jurisprudence has veered in the wrong direction and that the *De Bour* legal framework in practice does not serve the ends of justice. The way to properly safeguard the right to be left alone and the safety of officers and individuals alike is a rule that requires reasonable suspicion of criminality for all police-initiated encounters.

I.

I first discuss why reversal is required here. Defendant Tyquan Johnson argues that, under *De Bour*’s four-level framework, the police were unjustified in approaching, questioning,

and detaining him before his arrest (40 NY2d at 223). Based on the evidence before the suppression court, defendant is correct that the officer's initial approach and every subsequent intrusion failed to comport with *De Bour*.

A.

Undeniably, *De Bour* is one of our Court's most significant decisions, having set the course for police encounters since it was first decided in 1976. *De Bour* rejected the Federal Constitution's "all or nothing approach" to seizures of persons by "emphasiz[ing] the primacy of the right to be free from aggressive governmental interference" and more broadly defining the term "seizure" to mean "a significant interruption with an individual's liberty of movement" (40 NY2d at 216-217). However, the Court also rejected Mr. De Bour's proposal for a "blanket prohibition of all police-citizen encounters conducted in the absence of probable cause or reasonable suspicion based on concrete observations" (40 NY2d at 216). Instead, the Court concluded that police-initiated street encounters with the public, short of a federal constitutional seizure under *Terry v Ohio* (392 US 1 [1968]) and its progeny, were permissible but nonetheless subject to judicial scrutiny (40 NY2d at 217-218). The Court then drew a distinction between "public service functions, not related to criminal law enforcement," and criminal investigations, concluding that the latter are "viewed and measured by an entirely different standard of reasonableness" (*De Bour*, 40 NY2d at 218-219). Thus, *De Bour*'s legal standards were informed by and responsive to the "multiplicity and complexity of tasks assumed by the police" as public servants (*id.* at 218). Nevertheless, as crime prevention "is highly susceptible to subconstitutional abuses," the Court reasoned, police interactions with the public "will be subject to the greatest scrutiny; for whereas a police[officer's] badge may well be a symbol of the community's trust, it should never be considered a license to oppress" (*id.* at 220). With those principles in mind, the Court adopted its four-level framework, explaining that "[i]n evaluating the police action we must consider whether or not it was justified in its inception and whether or not it was reasonably related in scope to the circumstances which rendered its initiation permissible" (*id.* at 222-223).

As the Court explained years later in *People v Hollman*:

"De Bour represents the culmination of a number

of State common-law cases that provided a framework for the evaluation of police-civilian encounters In *De Bour*, constitutional law and common law both played a part in the articulation of the four-part test. Although we stated that ‘constitutional considerations do not disappear’ when police encounters fall below the level of a seizure (*People v De Bour* . . . at 217), we did not rest our analysis squarely upon the language of either the Federal or State Constitution. Rather, we noted that ‘[t]he basic purpose of the constitutional protections against unlawful searches and seizures is to safeguard the privacy and security of each and every person against all arbitrary intrusions by government. Therefore, any time an intrusion on the security and privacy of the individual is undertaken with intent to harass or is based upon mere whim, caprice or idle curiosity, the spirit of the Constitution has been violated’ (*id.* at 217). To some extent, then, our holding in *De Bour* was not compelled by the specific language of either the State or the Federal Constitution. Rather, it reflected our judgment that encounters that fall short of Fourth Amendment seizures still implicate the privacy interests of all citizens and that the spirit underlying those words required the adoption of a State common-law method to protect the individual from arbitrary or intimidating police conduct” (79 NY2d 181, 195 [1992]).

Under this framework, the first step governs an officer’s least invasive engagement with a private individual, and “[e]ach progressive level” of *De Bour* “authorizes a separate degree of police interference with the liberty of the person approached and consequently requires escalating suspicion on the part of the investigating officer” (*id.* at 185). The justification for each escalation is based on the totality of the circumstances at the moment the escalation occurs, building on the officer’s prior observations and actions of both the officer and the private individual (*see People v Moore*, 6 NY3d 496, 500-501 [2006]).

At the first level, law enforcement may engage in minimally-intrusive questioning to request information “when there is some objective credible reason for that interference not necessarily indicative of criminality” (*De Bour*, 40 NY2d at 223). The second level—the common-law right of inquiry—permits offi-

cers “to gain explanatory information, . . . short of a forcible seizure,” upon a “founded suspicion that criminal activity is afoot” (*id.*). The third level, “a forcible stop and detention,” requires the “officer entertain[] a reasonable suspicion that a particular person has committed, is committing or is about to commit a felony or misdemeanor,” and “[a] corollary of the statutory right to temporarily detain for questioning is the authority to frisk if the officer reasonably suspects that [they are] in danger of physical injury by virtue of the detainee being armed” (*De Bour*, 40 NY2d at 223 [citation omitted]; *see also* CPL 140.50 [1]). “Finally[,] a police officer may arrest and take into custody a person when [the officer] has probable cause to believe that person has committed a crime, or offense in [the officer’s] presence” (40 NY2d at 223 [citation omitted]). This framework applies to police encounters with both pedestrians and individuals in motor vehicles, whether moving (*People v Hinshaw*, 35 NY3d 427, 431 [2020]; *People v Garcia*, 20 NY3d 317, 324 [2012]) or parked (*see People v Harrison*, 57 NY2d 470, 475-476 [1982]).

A full analysis of each *De Bour* level implicated in a defendant’s case is not merely a thought exercise. Rather, addressing each implicated level of the framework is critical to the development of our law in this area and our continuing constitutional obligation “to provide clear guidance for police officers seeking to act lawfully in what may be fast-moving street encounters and a cohesive framework for courts reviewing the propriety of police conduct in these situations” (*Moore*, 6 NY3d at 499). When, as here, the Court avoids discussion of levels one and two and starts its analysis at the higher *De Bour* levels, it implicitly legitimizes the information police gather as a result of those initial, lower-level intrusions, which is then later used to justify greater intrusions (*see e.g. id.* at 497-499 [beginning analysis with the “gunpoint stop” where officers acting on an anonymous tip had arrived at the scene and approached the defendant “who began to walk away”]; *People v Townes*, 41 NY2d 97, 99-101 [1976] [holding that, given the prosecution’s concession, the gunpoint command to “freeze” was not “justified in its inception” when officers had “followed the defendant and his companion for approximately one hour and . . . observed them doing nothing more than walking about and looking at people and stores” (internal quotation marks and alterations omitted)]; *see also People v Perez*, 31 NY3d 964, 966 [2018] [concluding, without specifying the *De Bour* level at issue, that

record evidence “provided the requisite level of support to satisfy the applicable level of intrusion”]; *People v Thorne*, 207 AD3d 73, 75-77 [1st Dept 2022] [officers lacked reasonable suspicion for a level three encounter where officers first stopped defendant on the street and asked if they could speak with him, to which he asked “why they were stopping him”]; *Matter of Darryl C.*, 98 AD3d 69, 71-74 [1st Dept 2012] [invalidating stop and frisk under level three even though officers approached and questioned juvenile based on his being on a street corner during school hours holding a nondescript “object”].¹ I therefore turn to a level-by-level analysis of the police encounter that led to defendant’s arrest.

B.

According to the only police officer who testified at the hearing, he and another officer were in uniform and patrolling a neighborhood that had recently experienced increased violence when the testifying officer saw a Ford Explorer parked on the street 50 feet in front of him. He observed defendant—the sole occupant—move or jump from the driver to the passenger seat and then move his upper body back towards the driver’s seat. Believing there was a “potential” that defendant might have been trying to stash or retrieve a weapon, the officer stopped his vehicle behind the Explorer, turned on his overhead lights to look inside, exited his marked vehicle, and walked towards the Explorer.

None of the officer’s observations justified this initial approach. As we have said, police must have an objective, credible reason for approaching a defendant, equally so when a defendant is seated in a parked car (*see Harrison*, 57 NY2d at 475-476; *De Bour*, 40 NY2d at 216-217). Although the officer’s reason for conducting a level one request for information need not be indicative of criminality, it cannot be based on conduct that is otherwise innocent (*De Bour*, 40 NY2d at 216) and the approach “must be predicated on more than a hunch, whim, caprice or idle curiosity” (*People v Ocasio*, 85 NY2d 982, 985 [1995]; *De Bour* at 217). Here, the officer did not testify that

1. Because challenges to each level of the encounter must be preserved separately, information gathered from perhaps-unconstitutional, lower-level encounters may be exploited to support greater intrusions. Consequently, the initial intrusion escapes judicial review entirely (*see e.g. People v Bora*, 83 NY2d 531, 533-534 [1994] [defendant only preserved level three claim, which the Court rejected]).

defendant's vehicle was illegally parked or that defendant violated a rule of the road. Instead, the officer approached based on having observed defendant changing front seats. Moving from one seat to another in a parked car, however, is not "unusual" and defendant's doing so therefore supplied no "objective credible reason" for the level one approach (*Hollman*, 79 NY2d at 190-191). Nor was it "unusual" when defendant reached back toward the recently-vacated driver's seat (*id.* at 190-191). It was the officer's pure speculation that the defendant's movements evinced a specific attempt to hide or retrieve a weapon. Therefore, because there was no "objective credible reason"—nothing more than a mere "hunch"—to approach defendant's vehicle (*De Bour*, 40 NY2d at 223), the officer's observations at this point did not justify a level one encounter.

Nor did the officer's observations of defendant exiting through the passenger-side door to the street justify either a level one or level two interaction because, as with defendant's seat change and reach toward the driver's seat, this action was also not "unusual" (*Hollman*, 79 NY2d at 191) but was "innocuous behavior" that "alone [did] not generate a founded . . . suspicion" (*De Bour*, 40 NY2d at 216). For example, traffic conditions may have made it dangerous for defendant to exit on the driver's side. Or perhaps the driver's-side door was malfunctioning and could not be opened from the inside. And the fact that the car was parked in a neighborhood with a reported increase in crime does not provide the requisite basis to approach since presence in a high-crime neighborhood does not justify a police encounter with private individuals (*see People v McIntosh*, 96 NY2d 521, 526-527 [2001]). Otherwise, residents of an entire community would be subject to intrusive police encounters merely because of their home addresses.

After defendant exited the Explorer, the officer first observed that defendant's pants and belt were undone, and then saw defendant pull up his pants and buckle his belt while walking away. These observations did not support the officer's stated suspicion that defendant might have been hiding a weapon. Indeed, the officer's conclusion defies common sense, as defendant would have needed to button up and close his belt first in order to be able to hide a weapon.

Since none of these observations supported the officer's initial, level one approach—and because individuals have the right to walk away without responding to such a request (*People v Howard*, 50 NY2d 583, 586 [1980])—these observations also

did not provide justification for the officer to follow defendant, ask him to “hold up,” or walk alongside him. Nor did the officer’s subsequent belief that defendant was nervous based on his chest moving up and down support a founded suspicion of possible criminal activity to permit a level two inquiry about whether defendant had any weapons. As the Court has noted, nervousness does not indicate criminality (*see People v Garcia*, 20 NY3d 317, 323 [2012]), as “[i]t is certainly unsettling to be approached by a police officer” requesting information and “a reasonable person would . . . be taken aback by such a request” (*Hollman*, 79 NY2d at 192).

When defendant answered that he had “nothing,” the officer also had no basis to detain defendant to further question him about whether defendant was nervous (*see Moore*, 6 NY3d at 501; *see also* CPL 140.50 [3]). Nor did the quantum of knowledge the officer possessed up to that point provide a reasonable suspicion that defendant had committed, was committing or was about to commit a felony or misdemeanor to support his subsequent frisk (*Terry*, 392 US at 30; *People v Batista*, 88 NY2d 650, 654 [1996]). For example, the officer did not testify that he saw a bulge or any other physical outline of a weapon before he conducted the frisk (*see De Bour*, 40 NY2d at 221). The officer frisked defendant based on pure supposition—which ultimately proved unfounded since defendant in fact had no weapon.

During this physical intrusion the officer did not feel any weapon but thought he felt drugs in defendant’s pocket. He then asked defendant what was in the pocket and defendant again answered “nothing.” According to the officer, even though defendant responded “nothing” to every question regarding what defendant had on his person, defendant spontaneously emptied his pocket and threw what appeared to be two bags of marijuana and some dollar bills to the ground. The officer also observed a baggie in defendant’s hand which the officer suspected contained heroin. Based on these final observations of the drugs, the officer believed he had probable cause for defendant’s arrest. However, because “[d]efendant’s later conduct cannot validate an encounter that was not justified at its inception,” and the officer’s actions leading to the arrest—at levels one, two and three—exceeded the scope of permissible police interference with defendant, the contraband should have been suppressed (*see Moore*, 6 NY3d at 498).

II.

I have engaged in a straightforward *De Bour* analysis, working through every level and describing why the police interaction here fails under each level of *De Bour*'s framework. However, this atomized analysis and our experience with policing under the shadow of *De Bour* illustrate why police encounters with private individuals should be further cabined. Though driven by a goal of safeguarding the "right to be left alone," *De Bour*, as originally framed, renders it illusory in practice (40 NY2d at 219).

The Court has previously reconsidered *De Bour*. Fifteen years after the Court announced the four-tiered framework, the prosecution in *Hollman* asked the Court to overrule *De Bour* and adopt the federal standard, arguing that *Terry* and its progeny "made it increasingly clear that police-initiated encounters falling short of actual seizures do not implicate the Fourth Amendment" (79 NY2d at 194). That argument was in part historical. The *De Bour* Court acknowledged in 1976 that, at the time, there was "scant appellate authority" on the constitutionality of "an investigative confrontation"—i.e. the authority of police to approach private individuals (40 NY2d at 219). The prosecution in *Hollman* noted that, during the decade and a half since the Court had decided *De Bour*, the United States Supreme Court had concluded that a police approach short of a full-blown seizure does not implicate the Fourth Amendment (*Hollman*, 79 NY2d at 194-195). Under the Federal Constitution, the police have not seized an individual under *Terry* only when "‘a reasonable person would feel free ‘to disregard the police and go about [their] business’” (*id.* at 195, quoting *Florida v Bostick*, 501 US 429, 434 [1991]). In other words, "[i]f the civilian would feel free to go, ‘the encounter is consensual and . . . will not trigger Fourth Amendment scrutiny unless it loses its consensual nature’" (*id.*, quoting *Bostick*, 501 US at 434).

The *Hollman* Court rejected this invitation to discard the *De Bour* framework and clarified that "[t]he continued vitality of *De Bour*" was "not contingent upon the interpretation that the Supreme Court gives the Fourth Amendment, because *De Bour* is largely based upon considerations of reasonableness and sound State policy" (79 NY2d at 195). The Court further explained that police encounters that are not Fourth Amendment seizures should continue to be evaluated under *De Bour* because judicial scrutiny of those encounters best serves "[t]he

aims of predictability and precision in judicial review of search and seizure cases and the protection of the individual rights” of the public (*id.* at 196 [internal quotation marks omitted]).

Thirty years have now passed since *Hollman* reaffirmed *De Bour* and almost 50 years since the Court decided *De Bour*. Given *De Bour*’s analytic premise and our troubling historical experience with police-initiated encounters, we should again reconsider *De Bour*’s “continued vitality” (*Hollman*, 79 NY2d at 195). In *De Bour*, the Court permitted intrusions under levels one and two, in part, based on “the practical necessities of law enforcement and the obvious fact that any person in our society may approach any other person and attempt to strike up a conversation” (40 NY2d at 219). At the same time, the Court purported to create a check by subjecting these sub-*Terry* encounters to judicial scrutiny with the objective of safeguarding the primacy of “the right to be left alone” (*id.*). However, equating intrusions by police officers with those of “any person in our society” ignores the simple reality that everyday people on the street understand: a police officer is not just “any person,” but is an agent of the State, cloaked with governmental authority and specially authorized to use lethal force (*id.*). Thus, while a private individual might not think twice about ignoring a stranger, there is, as the *De Bour* Court described it, “the tendency to submit to the badge” (*id.*).

Empirical evidence confirms the obvious, as “studies over the last several decades on the social psychology of compliance, conformity, social influence, and politeness have all converged on a single conclusion: the extent to which people feel free to refuse to comply is extremely limited under situationally induced pressures” (Janice Nadler, *No Need to Shout: Bus Sweeps and the Psychology of Coercion*, 2002 Sup Ct Rev 153, 155 [2002] [collecting and summarizing studies]). Here in New York, one psychologist who submitted findings in connection with the New York Stop-and-Frisk Joint Remedial Process’s 2018 final report and recommendations found that “[t]he intrusive commanding-presence style of policing embodied in stop and frisk interventions at unexpected and unprovoked times, combined with a history of use of excessive or deadly force by the police, has generated considerable fear” (New York City Joint Remedial Process, Final Report and Recommendations, Appendix A, White Paper of Michael Britton, Ed.D., Dec. 10, 2016 at 7 [2018], available at <https://www.jamsadr.com/files/uploads/documents/articles/belen-new-york-city-joint-remedial-process-may-2018.pdf> [last accessed May 15, 2023]).

A New York Civil Liberties Union survey conducted that same year similarly found pervasive fear among community residents exposed to aggressive policing:

“More than two-thirds (67 percent) of respondents in heavily policed communities feared having a friend or family member killed by police (a surprising 15 percent of respondents in lightly policed communities felt the same way). Slightly fewer (64 percent versus 10 percent) feared that they themselves could be killed by police. And almost half (43 percent) of the respondents in heavily policed neighborhoods feared they could be sexually assaulted by police compared to six percent in lightly policed communities” (New York Civil Liberties Union, *Shattered: The Continuing, Damaging, and Disparate Legacy of Broken Windows Policing in New York City* at 12 [2018], available at https://www.nyclu.org/sites/default/files/field_documents/nyclu_20180919_shattered_web.pdf [last accessed May 15, 2023]).²

In addition, the survey found that 64% of respondents in “heavily policed communities reported that police at times made them feel scared,” 71% “unsafe,” and 74% “nervous” (*id.*). Significantly, police officers’ shouting commands contributed to individuals’ apprehension of the police in more heavily-policed communities:

“Sixty-one percent of survey respondents in heavily policed communities reported at least one negative verbal police encounter in 2016, compared to 15 percent in less policed communities. One in four people in heavily policed communities said they were shouted at by police, (25 percent versus five percent), cursed at (26 percent versus four percent) or threatened with arrest (33 percent versus three percent)” (*id.* at 18).

The fear is not unfounded, because, as I discuss *infra*, for members of certain racial, ethnic and religious communities, ignoring a police officer can carry dire consequences.

2. The report defined “heavily policed neighborhoods” as those with the highest number of stop-and-frisk reports (New York Civil Liberties Union, *Shattered: The Continuing, Damaging, and Disparate Legacy of Broken Windows Policing in New York City* at 12 [2018], available at https://www.nyclu.org/sites/default/files/field_documents/nyclu_20180919_shattered_web.pdf [last accessed May 15, 2023]).

III.

The *De Bour* Court aimed to shield “the right to be free from aggressive governmental interference” and “the right to be left alone” (40 NY2d at 216, 219), but experience has shown that the means it supplied for doing so—the regulation of sub-*Terry* encounters on less than reasonable suspicion—has not only proved inadequate, but, at times, undermined those very rights by promoting heightened forms of governmental intrusion triggered by noncriminal behavior. The resulting escalation of police-initiated encounters jeopardizes the safety of the public and police officers, and frustrates community policing efforts.

One commentator observed in 1991 that the *De Bour* framework’s atomized levels are susceptible to conflation with one another in a manner that spurs the police to initiate and escalate encounters with members of the public (see Emily J. Sack, *Police Approaches and Inquiries on the Streets of New York: The Aftermath of People v. De Bour*, 66 NYU L Rev 512, 520, 548-553 [1991]). *People v Reyes* (83 NY2d 945 [1994]), which the prosecution cites in favor of affirming the denial of suppression here, illustrates the point. In *Reyes*, two officers positioned themselves on both sides of the defendant and “approached him with their hands on their holstered guns” while commanding “‘Hey stop, excuse me’ or ‘Stop, hey, stop, police,’ or words to that effect” after they observed him “clutch” with his hands in his pants pockets and “walk briskly away from a group of men” in a “‘drug-prone’ area” (*id.* at 946). When the defendant complied, a brick-like object fell from his armpit to the ground, which turned out to be a kilogram of cocaine (*id.*). It is difficult to imagine how Mr. Reyes could have regarded the officers’ conduct as “nonthreatening” (*Hollman*, 79 NY2d at 191). Indeed, given the gravity of the intrusion—officers issuing commands with their hands on their firearms—it is difficult to imagine that a person in Mr. Reyes’s position would not have felt “suspected of . . . wrongdoing,” or even free to leave, thus qualifying the encounter as (at least) a level two (*id.* at 185, 191-192; see also *United States v Mendenhall*, 446 US 544, 553 [1980]). Nonetheless, the Appellate Division held that the actions of the police constituted a level one encounter and reasoned that commanding a person to stop in such a manner “is a necessary preliminary to a request for information when a person is ahead of the officer, walking away from him, and—for all that appears—unaware that the officer wished to inquire” (*People v Reyes*, 199 AD2d 153, 155 [1st Dept 1993]).

This Court affirmed, agreeing with the Appellate Division that the encounter amounted to a level one “permissible request for information based on some objective credible reason” (*Reyes*, 83 NY2d at 946).

Reyes is a prime example of how *De Bour*’s legal standard for limiting police power during sub-*Terry* encounters (see 40 NY2d at 219-220) can produce the opposite effect (see Sack, 66 NYU L Rev at 550). On one hand, the Court reiterated in *Hollman* that “[e]ach progressive level” of *De Bour* “authorizes a separate degree of police interference with the liberty of the person approached and consequently requires escalating suspicion on the part of the investigating officer” (79 NY2d at 185; see also *Moore*, 6 NY3d at 500). But *Reyes* inverts this graduated approach. Under its logic, an initial, unjustified intrusion can be transformed into permissible police conduct when it facilitates a justified lower-level intrusion. For example, applying *Reyes*’s rationale to a hypothetical variation of the facts in defendant’s appeal, the officers would have acted lawfully in stopping defendant’s car if it were moving and immediately asking him if he was carrying a weapon on the ground that this level three seizure was a “necessary preliminary” to the level two inquiry (*Reyes*, 199 AD2d at 155, *affd* 83 NY2d 945 [1994]).

Concerns about the Court’s atomization of police action and the potential for reverse engineering a lawful basis for an unjustified, escalating intrusion were identified in a strongly worded dissent by Judge Fuchsberg in *People v Samuels* (50 NY2d 1035 [1980]). In his view, “the mushrooming lexicographical distinctions into which the reasonableness of street stops and seizures are being categorized present a disturbing problem” (*id.* at 1039-1040 [Fuchsberg, J., dissenting]). “Since the circumstances of no two stops are ever precisely the same,” he continued, “the semantics necessarily employed to effect such compartmentalization, however well intended, in the end make it all the easier to substitute labels for liberties” (*id.* at 1040). He welcomed what he regarded as “a trend away from the artificial and ‘unworkable’ hierarchy of police conduct erected in *People v De Bour*” (*id.*, quoting Note, *People v De Bour: The Power of the Police to Stop and Frisk Citizens*, 30 Syracuse L Rev 893 [1979]).³

In *Samuels*, an officer followed the defendant after he saw the defendant purchase a holster from a novelty shop and

3. Judge Fuchsberg was of course referring to a “trend” in federal Fourth Amendment jurisprudence in the wake of *Terry* (*Samuels*, 50 NY2d at 1040

(n. cont’d)

asked the defendant why he had made the purchase (50 NY2d 1035, 1036-1037 [1980]). The defendant did not respond, and instead put his hand in his coat pocket (*id.* at 1037). The officer commanded the defendant to remove his hand from his pocket; defendant did not comply (*id.*). The officer then grabbed the defendant's hand through his coat pocket and discovered a gun (*id.*).⁴ In upholding what was essentially a frisk, the Court acknowledged that the defendant's failure to respond to the officer's question would not have justified further action by the police, but that placing his hand in his pocket and refusing to withdraw it elevated the officer's "interest in his own safety" to a "sufficient basis for his grabbing the [defendant's] hand through the coat" (*id.*). And yet, the arresting officer testified that police indiscriminately confronted patrons who examined holsters (*id.* at 1039 n 1 [Fuchsberg, J., dissenting]).

Of course, one can sympathize with this officer's reaction. After all, who wouldn't feel threatened by somebody refusing to remove their hand from their pocket after just having purchased a holster? But as Judge Fuchsberg explained, the officer's safety would not have been at issue as a result of this rapidly-escalated confrontation had he simply refrained from approaching the defendant (*see id.* at 1039):

"The tone of life and spontaneity of spirit that characterizes a free society could not long survive if the police were allowed to exploit any unusual circumstance, rationalized with 20-20 hindsight as giving rise to suspicion, as a basis for an escalating intrusion into the privacy of anyone who insists on his right to be left alone This factor is crucial here, for without the initial baseless encounter, the officer could not conceivably claim that he was placed in a position where concern for his own safety compelled him to frisk defendant (*see Terry v Ohio*, 392 US 1, 27)" (*id.* at 1039 [citation and footnote omitted]).

Even if the officer's hunch turned out to be correct in *Samuels*, such fails to account for the cases featuring similar

[Fuchsberg, J., dissenting]). As I discuss *infra*, however, that trend has not resulted in the robust protections Judge Fuchsberg deemed necessary to avoid abuses of police power.

4. Judge Fuchsberg cited an affirmed finding that the officer threatened "to break [the defendant's] head" before grabbing his hand through the coat pocket (*Samuels*, 50 NY2d at 1041 [Fuchsberg, J., dissenting]).

encounters where no weapon is recovered and which, consequently, never find their way into our courts (*see Terry*, 392 US at 13-14 [discussing the powerlessness of the exclusionary rule “to deter invasions of constitutionally guaranteed rights where the police either have no interest in prosecuting or are willing to forgo successful prosecution in the interest of serving some other goal”]). We know that there are numerous such cases.

Police intrusions that qualify as level one and two encounters under *De Bour* are quite common (*see* Lynn Langton & Matthew Durose, *Police Behavior during Traffic and Street Stops*, 2011, United States Department of Justice, Office of Justice Programs, Bureau of Justice Statistics at 11-12 [Sept. 2013], available at <https://bjs.ojp.gov/content/pub/pdf/pbtss11.pdf> [last accessed May 15, 2023]) and, as I have discussed, the *De Bour* model catalyzes their rapid spiral toward escalation and violence (*see* Sack, 66 NYU L Rev at 520, 548-553). But as history, social science, and demographic research has shown, the right to walk away is illusory. In *Floyd v City of New York*, the federal district court in the Southern District of New York found, based on expert testimony, that 83% of individuals stopped by the NYPD were black or Latino, even though those two groups made up only 52% of the city’s population (959 F Supp 2d 540, 559-560 [SD NY 2013]; *see also* Dasha Kabakova, *The Lack of Accountability for the New York Police Department’s Investigative Stops*, 10 Cardozo Pub L Poly & Ethics J 539, 562-563 [2012] [observing that, “in precincts in which blacks are less than 10% of the population, blacks remained over two times (2.17) more likely to be ‘stopped’ on suspicion of committing a violent crime than whites . . . (and) these differences are evident after controlling for race- and crime-specific arrest rates (within each precinct)”]).

The *Floyd* court also found that the NYPD had engaged in racial profiling and “the odds of a stop resulting in any further enforcement action were 8% *lower* if the person stopped was black than if the person stopped was white” (959 F Supp 2d at 560). Blacks and Latinos also bore the brunt of violent policing, as “blacks who were stopped were about 14% more likely” and Latinos “9% more likely—than whites to be subjected to the use of force” (*id.*). Hence, in addition to its numerous other deficiencies, *De Bour* has also failed to tackle racial profiling (*see People v Epton*, 19 NY2d 496, 501 [1967] [commenting that “tensions in Harlem” had “heightened over the issue of police brutality”]) and, if anything, has entrenched it (*see Floyd*, 959 F Supp 2d at 560).

As one legal scholar has argued, racial profiling as an investigative tool becomes a self-fulfilling prophecy under which successful police actions against one discrete group results in greater focus upon that group that permits sometimes-more-frequent crime by other groups to go undetected (see Barry Friedman, *Unwarranted: Policing without Permission* 197 [2017]). As he explained:

“Think about it this way. You like to fish, so you ask people what’s a good spot. They say Trout Pond. You go there, and sure enough you catch some fish. Occasionally you go somewhere else, and you catch some fish there, too, but you’ve been told Trout Pond is a surefire bet, and you’ve seen some evidence of that, so you keep coming back to it. Now, if you’d done a careful study, you’d have learned that Trout Pond was no better than any other spot, and in fact might have been less good. There were more fish in other places, like Town Wharf or Towd Point. But having been told of Trout Pond and had your information confirmed, that is where you went” (*id.*).

The choice not to engage with police is no choice in fact for many people of color. Indeed, as *De Bour* itself acknowledged, it is difficult to understand how *any* person is not intimidated or otherwise believes that they cannot leave when approached by, as in this case, a uniformed officer or someone identifying themselves as a law enforcement official who tells them to stop (see *De Bour*, 40 NY2d at 219). And although the Court has said the right to walk away exists—elevating it to almost sacrosanct status—it has simultaneously recognized that turning and walking or running away from an officer may be a factor supporting level two, three, and four intrusions on the ground that “[f]light, combined with other specific circumstances indicating that the suspect may be engaged in criminal activity, could provide the predicate necessary to justify pursuit” (*People v Holmes*, 81 NY2d 1056, 1058 [1993]; see also *People v Sierra*, 83 NY2d 928, 930 [1994] [holding that the defendant’s walking away from officers who, from a police cruiser, requested information under level one in a drug-prone area furnished officers with “reasonable suspicion that he was committing or was about to commit a drug-related crime”]).

Assume that, here, defendant had not merely said that he had nothing on him but also then tried to walk around the offi-

cer or back towards his vehicle. Would the officer have let him walk away? That is unlikely since the officer testified that, before either he or defendant had even exited their vehicles, he believed—despite a glaring lack of evidence—that defendant possessed a weapon. More likely, the officer would have stopped defendant and conducted the frisk anyway. So much for the right to be left alone. I have previously identified this same dilemma, noting that upholding a stop and frisk based on a defendant's refusal to respond to a level one or level two inquiry “suggests that members of the public must affirmatively respond to officers or risk forfeiting their freedom, a proposition we have clearly and unequivocally rejected” (*Perez*, 31 NY3d at 978 [Rivera, J., dissenting]).

New York City acknowledged in *Floyd* that: (1) “[b]etween January 2004 and June 2012, the NYPD conducted over 4.4 million *Terry* stops”; (2) “52% of all stops were followed by a protective frisk for weapons”; and (3) “[a] weapon was found after 1.5% of these frisks,” meaning that, “in 98.5% of the 2.3 million frisks, no weapon was found” (959 F Supp 2d at 558). The City also conceded that only “6% of all stops resulted in an arrest, and 6% resulted in a summons,” while “[t]he remaining 88% of the 4.4 million stops resulted in no further law enforcement action” (*id.* at 558-559). So many resources expended, so much liberty infringed, and so many people endangered, yet so little successful law enforcement outcomes to show for it. The individuals stopped of course bear the brunt of this failed policing strategy.

New York police recognize the deleterious effects this policing approach has on community relations. Former Mayor Michael Bloomberg issued an apology for the City's stop-and-frisk policy which he had championed during his Mayoralty (see Carl Campanile, Craig McCarthy & Aaron Feis, *Police Union, de Blasio Blast Bloomberg Over Stop-and-Frisk Apology*, NY Post, Nov. 17, 2019, available at <https://nypost.com/2019/11/17/police-union-de-blasio-blast-bloomberg-over-stop-and-frisk-apology/> [last accessed May 15, 2023]). In response, the New York City Police Benevolent Association (PBA) President conveyed his apparent long-standing view that stop-and-frisk was a “‘misguided policy’” that “‘inspired an anti-police movement that has made cops the target of hatred and violence, and stripped away many of the tools we had used to keep New Yorkers safe’” (*id.*). He asserted that the PBA had told the Mayor “‘in the early 2000s that the quota-driven emphasis on

street stops was polluting the relationship between cops and our communities’ ” (*id.*).

As is abundantly clear from numerous sources—the stop and frisk litigation in the Southern District of New York (*Ligon v City of New York*, 925 F Supp 2d 478 [SD NY 2013]; *Floyd*, 959 F Supp 2d at 540), national statistics (*e.g.* New York Civil Liberties Union, *Shattered: The Continuing, Damaging, and Disparate Legacy of Broken Windows Policing in New York City* [2018], *supra*), and all too frequent news reports—the risks attendant with escalation from levels one through four of *De Bour* fall heaviest on people of color and the mentally ill, sometimes with tragic consequences (*e.g.* *NYPD Housing Officers Beaten with Baton in Brooklyn, Suspect Shot and Killed*, CBS NY, Nov. 19, 2016, available at <http://newyork.cbslocal.com/2016/11/19/officers-hurt-in-brooklyn-shooting/> [last accessed May 15, 2023] [officers responding to a 9-1-1 call about a “suspicious man” in a public housing complex approached the decedent and asked him for identification, after which a scuffle ensued, the decedent struck one of the officers with the officer’s own baton, and the officers fatally shot the decedent—who had a history of depression and addiction]).

By encouraging more police-initiated interactions with private individuals that risk dangerous, sometimes fatal outcomes for both individuals and officers, *De Bour*’s method of balancing public safety and the individual right to be left alone has proved counterproductive to both (*e.g.* John Dias et al., *NYPD: Devin Spraggins, 22, Arrested in Shooting of Rookie Officer Brett Boller in Queens*, CBS NY, Apr. 7, 2023, available at <https://www.cbsnews.com/newyork/news/devin-spraggins-arrested-in-shooting-of-nypd-officer-brett-boller-in-jamaica-queens/> [last accessed May 15, 2023] [defendant shot police officer who boarded a bus and confronted him in response to a report of an altercation between passengers]; *Suspect Shot and Killed after NYPD Pursuit Ends in Crash, Closes Saw Mill River Parkway*, ABC7: Eyewitness News, Dec. 8, 2015, available at <https://abc7ny.com/westchester-yonkers-crash-nypd/1114221/> [last accessed May 15, 2023] [following chase of an unarmed driver who did not stop when commanded, police shot and killed him]; *NYPD ‘Inadvertently’ Shot Dead Unarmed Man in Brooklyn after Dispute*, Guardian, Oct. 2, 2014, available at <https://www.theguardian.com/us-news/2014/oct/02/nypd-inadvertently-killed-unarmed-man-brooklyn-shooting> [last accessed May 15, 2023] [man who intervened in an intimate-

partner incident involving a man with a knife killed in an ensuing “hail of police gunfire”]; Joseph Goldstein & Marc Santora, *Staten Island Man Died from Chokehold during Arrest, Autopsy Finds*, NY Times, Aug. 1, 2014, available at <https://www.nytimes.com/2014/08/02/nyregion/staten-island-man-died-from-officers-chokehold-autopsy-finds.html> [officers approached decedent and questioned him on suspicion of selling unlicensed cigarettes and, after the man denied the allegations and accused the officers of harassing him, an officer placed him in a chokehold which killed him]). Empirical studies confirm these anecdotes: police-initiated encounters with members of the public increase the risks for everyone involved in them (see Darrel W. Stephens, *Officer Involved Shootings: Officers/Subjects Executive Summary* at 3, National Police Foundation [Oct. 2019], available at https://www.policinginstitute.org/wp-content/uploads/2019/05/2.-OIS_off_sub_8.28.19.pdf [last accessed May 15, 2023] [study finding that, nationwide, officers suffered injuries in 17.4% of police shootings following police-initiated encounters, compared to 12.2% in those initiated by citizens]; National Police Foundation, *Research Summary: Non-Fatal Injuries to Law Enforcement Officers* [Mar. 2018], available at <https://www.policinginstitute.org/wp-content/uploads/2018/07/Non-fatal-Injuries-to-LEOs-Research-Summary-2018.pdf> [last accessed May 15, 2023] [summarizing an academic study showing that, between 2003 and 2014, the frequency of non-fatal injuries to police officers far outpaced that of American workers generally and had steadily increased for over a decade]).

Simply stated, *De Bour*’s framework has proved itself to be “an unworkable” one that “creates more questions than it resolves” (*People v Taylor*, 9 NY3d 129, 149 [2007]), “no longer serves the ends of justice or withstands the cold light of logic and experience” (*Policano v Herbert*, 7 NY3d 588, 604 [2006] [internal quotation marks omitted]), and has simply been undermined by “the ‘lessons of experience and the force of better reasoning’” (*People v Bing*, 76 NY2d 331, 338 [1990], quoting *Burnet v Coronado Oil & Gas Co.*, 285 US 393, 407-408 [1932, Brandeis, J., dissenting]). Although the Court viewed *De Bour*’s approach as sensible when adopting it in 1976, and when reaffirming it in 1992, its application during the many years since has diminished its vitality, to the point that the events of the present now overshadow the good intentions of the past. The *De Bour* framework has calcified into an “archaic

and obsolete doctrine which has lost its touch with reality” (*People v Hobson*, 39 NY2d 479, 487 [1976]). Our experiences with *De Bour* supply a “compelling justification” for adopting an approach to police-initiated encounters that better safeguards the right to be let alone, public safety and officer security (*People v Peque*, 22 NY3d 168, 194 [2013]).

IV.

To better ensure public safety and protect the rights of individuals and diverse communities from abusive and ineffective policing, we should require all police-initiated encounters to be justified on reasonable suspicion and actual signs of criminality—i.e., reasonable suspicion of an ongoing or completed felony or misdemeanor. Absent such cause for a criminal investigation, the law should not permit officers to approach private individuals to request information or engage in what *De Bour* termed a “common-law right to inquire” (40 NY2d at 223).

This wiser approach values autonomy and avoids “substitut[ing] labels for liberties” (*Samuels*, 50 NY2d at 1040 [Fuchsberg, J., dissenting]). It also leaves ample room for police action at times of heightened concern for public safety. For example, if an officer receives a reliable tip from an anonymous source or a confidential informant that a person has committed, is about to commit or planning a felony or misdemeanor, the officer would remain able to approach and inquire (see *Florida v J.L.*, 529 US 266, 270-271 [2000]; *People v Argyris*, 24 NY3d 1138, 1140 [2014]). Or if a person approaches an officer and identifies someone on the street as involved in a crime, the officer may approach and inquire (*People v Moore*, 32 NY2d 67, 69 [1973]). And, of course, if an officer personally observes conduct that supplies reasonable suspicion that crime is afoot—not merely based on an incredulous view of innocent conduct, as was the case here—an officer may approach (*id.*). The Court has found such police interactions to be lawful under levels three and four of *De Bour*.

This is also not to say that such a rule would prohibit an officer from approaching to seek assistance in gaining information unrelated to whether the person approached is engaged in criminality. For example, an officer seeking information about a missing person would still be able to approach individuals to ask if they had seen or heard of the missing individual. That is good policing and in furtherance of public safety goals.

The federal approach is not a viable replacement for *De Bour*. As the Court recognized in *Hollman*, the *Terry* standard would be inconsistent with “our judgment that encounters that fall short of Fourth Amendment seizures still implicate the privacy interests of all citizens and that the spirit underlying those words required the adoption of a State common-law method to protect the individual from arbitrary or intimidating police conduct” (79 NY2d at 195). In other words, the federal approach does not reduce the risks that rapidly-escalating, violent encounters pose for individuals and officers.

Justice Sotomayor has aptly described the flaws in the federal approach. In *Utah v Strieff*, Justice Sotomayor powerfully described how the United States Supreme Court “has allowed an officer to stop you for whatever reason [they] want[]—so long as [they] can point to a pretextual justification after the fact” and reminded us that, under *Terry* and its progeny, although the requisite “justification must provide specific reasons why the officer suspected you were breaking the law, . . . it may factor in your ethnicity, . . . where you live, . . . what you were wearing, . . . and how you behaved” (579 US 232, 252 [2016, Sotomayor, J., dissenting] [citations omitted]). Justice Sotomayor discussed the dreadful consequences that attend this conduct, which the Fourth Amendment tolerates, including intrusive frisks, possible handcuffing and jailing, fingerprinting and DNA collection, and—even if innocent—an arrest record (*id.* at 253). The Justice also observed that “[f]or generations, black and brown parents have given their children ‘the talk’—instructing them never to run down the street; always keep your hands where they can be seen; do not even think of talking back to a stranger—all out of fear of how an officer with a gun will react to them” (*id.* at 254). The Supreme Court’s post-*Terry* reading of the Fourth Amendment, Justice Sotomayor concluded, “implies that you are not a citizen of a democracy but the subject of a carceral state, just waiting to be cataloged” (*id.*)

Legal scholars have vigorously critiqued this evolution in the Supreme Court’s Fourth Amendment jurisprudence. For example, one scholar and former federal prosecutor has colorfully described how the Supreme Court had “greased the wheels of . . . controversial” stop-and-frisk tactics for which *Terry* and its progeny left room (Julian A. Cook, III, *Suspicionless Policing*, 89 Geo Wash L Rev 1568, 1580 [2021]). Another scholar and court reform expert has suggested that, while *Terry* may

“create a clearer standard” and “reflect actual police behavior more realistically” than *De Bour*, *Terry* “skew[s] further the already imperfect balance between law enforcement and individual privacy interests” and that “the history of federal constitutional law demonstrates that this model creates a constant pressure to expand the area of police behavior not subject to constitutional scrutiny” (Sack, 66 NYU L Rev at 553-554).

New Yorkers need not be left vulnerable to subconstitutional abusive police conduct. The way forward is to simply adopt the standard Mr. De Bour proposed decades ago—“reasonable suspicion based on concrete observations”—before initiating encounters with individuals (*De Bour*, 40 NY2d at 216). Time and experience have proved this to be the just and fair approach.

V.

The *De Bour* Court adopted a tiered approach, intending for it to provide some minimal protections against aggressive *Terry* police investigative encounters. The right to privacy and the interest in public security that animated *De Bour*’s analysis are no less significant today than they were almost 50 years ago. However, despite the *De Bour* Court’s best intentions and earnest effort in 1976, the framework it adopted has failed to generate the predictability and precision in judicial review for which it strove. Instead, experience has shown that, because the bar is set so low, courts often treat an officer’s speculation or hunch as “some objective credible reason” for an approach under level one. Similarly, level two is based on a right to inquire that permits targeted questioning without a criminal activity nexus. Whether driven by animus or implicit bias, the results are the erosion of the right to be left alone and increased risks to the safety of officers and private individuals.

So, we come full circle. Drawing on new wisdom in the form of accounts from persons in heavily policed communities and years of research, we should hold that police-initiated encounters with individuals are unconstitutional absent reasonable suspicion of criminality—exactly the approach Mr. De Bour suggested in 1976.

Judges GARCIA, SINGAS, CANNATARO and TROUTMAN concur. Judge RIVERA concurs in result in an opinion. Judge HALLIGAN took no part.

Order reversed and indictment dismissed.

[218 NE3d 684,196 NYS3d 348]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DWIGHT
REID, Appellant.

Argued April 20, 2023; decided May 23, 2023

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 8, 2022. The Appellate Division modified, on the law, a judgment of the Supreme Court, New York County (Ruth Pickholz, J.), which had convicted defendant, after a jury trial, of murder in the second degree and criminal possession of a weapon in the second degree (two counts), and sentenced him, as a persistent violent felony offender, to an aggregate term of 50 years to life. The modification consisted of directing that all sentences be served concurrently. The Appellate Division affirmed the judgment as modified.

People v Reid, 203 AD3d 474, reversed.

HEADNOTES**Crimes — Right to Public Trial — Closure of Courtroom — Insufficient Record to Justify Closure**

1. Defendant's Sixth Amendment right to a public trial was violated when the court ordered the courtroom closed to the public and all interested spectators for the last four days of defendant's eight-day jury trial without creating a sufficient record to establish that the closure was narrowly tailored to protect an overriding interest (*Waller v Georgia*, 467 US 39 [1984]). The record indicated that some unidentified spectators shared photos of the trial on social media, but the People did not argue that the social media postings were intended to affect or influence the trial itself, and the photos admitted by the People depicted only images of defendant accompanied by court officers, not of jurors or witnesses. Moreover, although the trial court indicated that the purpose of the closure was to prevent intimidation of witnesses, court personnel and jurors by means of social media postings, "staring" in the courtroom, and other hostile interactions, the court failed to adequately describe the particular acts and circumstances underlying its conclusion that intimidation was occurring, or to identify the specific individuals who had engaged in such intimidation. The court did not appear to have sufficiently considered whether less drastic measures could have resolved troubling spectator behavior, such as addressing those individuals or requesting that they alter their demeanor in the courtroom. Nor did the court make additional efforts to identify particular offenders and exclude only those individuals from the courtroom.

Crimes — Appeal — Preservation of Issue for Review — Deprivation of Right to Public Trial

2. Where the People moved in the midst of defendant's jury trial to close the courtroom, citing the fact that photographs had been taken in the

courtroom and posted on social media, defendant's objection and proposal to instead bar cellphones in the courtroom was sufficient to trigger the need for the court's inquiry into other alternatives to closure and preserve the issue for appeal. The obligation rests with the court to consider alternatives to closure, even where the parties themselves do not offer any. Nor was defendant required to expressly request a "*Hinton* hearing" (*People v Hinton*, 31 NY2d 71 [1972]), because a hearing is not mandatory in every case. A "*Hinton* hearing" is often required in cases where closure is sought to protect the identity of an undercover police officer, but there are times when careful inquiry directed at counsel, the witness, or even the spectators present in the courtroom might be enough.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Appellate Review §§ 531, 574, 575; AM JUR 2d Criminal Law § 948; AM JUR 2d Trial §§ 137, 138, 143, 144.

CARMODY-WAIT 2d Conduct of Trial, in General §§ 190:78, 190:79, 190:81–190:85, 190:93; CARMODY-WAIT 2d Appeals in Criminal Cases §§ 207:163, 207:184.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 24.1, 27.5.

NY JUR 2d Criminal Law: Procedure §§ 2524, 2526, 2527, 2530, 2533, 3556–3558.

US Const 6th Amend.

ANNOTATION REFERENCE

See ALR Index under Appeal and Error; Intimidation; Trial.

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POINTS OF COUNSEL

Romano & Kuan, PLLC, New York City (*Richard M. Greenberg* and *Julia P. Kuan* of counsel), for appellant. I. Dwight Reid was denied his federal and state constitutional rights to a public trial when the court closed the courtroom to all spectators in the middle of the trial, based on vague allegations of purported spectator misconduct, without conducting a hearing and despite there being less restrictive measures proposed by defense counsel that would have ameliorated any issues.

(*Waller v Georgia*, 467 US 39; *Presley v Georgia*, 558 US 209; *Press-Enterprise Co. v Superior Court of Cal., Riverside Cty.*, 464 US 501; *People v Martin*, 16 NY3d 607; *People v Martinez*, 82 NY2d 436; *People v Moise*, 110 AD3d 49; *People v Jones*, 47 NY2d 409; *People v Hinton*, 31 NY2d 71; *People v Tolentino*, 90 NY2d 867; *People v Nieves*, 90 NY2d 426.) II. Dwight Reid was denied the effective assistance of counsel where the court allowed defense counsel to abdicate his decision-making role and permitted an unqualified juror to remain at Mr. Reid's request, even though counsel stated unequivocally that he wanted to move to discharge the juror and substitute an alternate and the court agreed that it would have granted the application. (*People v Colon*, 90 NY2d 824; *People v Colville*, 20 NY3d 20; *People v Hogan*, 26 NY3d 779; *People v McKenzie*, 142 AD3d 1279; *People v Lee*, 120 AD3d 1137; *People v Minckler*, 149 AD3d 1526.)

Alvin L. Bragg, Jr., District Attorney, New York City (*Rachel Bond* and *Alan Gadlin* of counsel), for respondent. I. The trial judge properly closed the courtroom after defendant's associates engaged in intimidating behavior. (*People v Alvarez*, 20 NY3d 75; *People v Roberts*, 31 NY3d 406; *People v Martin*, 50 NY2d 1029; *People v Johnson*, 116 AD3d 501, 23 NY3d 1021; *People v Doster*, 13 AD3d 114, 4 NY3d 763; *People v Gray*, 86 NY2d 10; *Presley v Georgia*, 558 US 209; *People v Echevarria*, 21 NY3d 1; *People v Ramos*, 90 NY2d 490; *People v Hinton*, 31 NY2d 71.) II. The record does not support defendant's claim that defense counsel rendered ineffective assistance by declining to move to disqualify a sworn juror. (*Strickland v Washington*, 466 US 668; *People v Caban*, 5 NY3d 143; *People v Benevento*, 91 NY2d 708; *People v Stultz*, 2 NY3d 277; *Kimmelman v Morrison*, 477 US 365; *People v Rivera*, 71 NY2d 705; *People v Satterfield*, 66 NY2d 796; *People v Hogan*, 26 NY3d 779; *People v Colville*, 20 NY3d 20; *People v Colon*, 90 NY2d 824.)

New York Civil Liberties Union Foundation, New York City (*Veronica R. Salama*, *Daniel R. Lambright* and *Christopher T. Dunn* of counsel), for New York Civil Liberties Union, amicus curiae. I. The courtroom closure violated the public's First Amendment right of access and thereby violated Mr. Reid's Sixth Amendment right to a public trial. (*Richmond Newspapers, Inc. v Virginia*, 448 US 555; *Press-Enterprise Co. v Superior Court of Cal., Riverside Cty.*, 464 US 501; *Matter of Westchester Rockland Newspapers v Leggett*, 48 NY2d 430; *People v Jelke*, 308 NY 56; *Lee v Brooklyn Union Publ. Co.*, 209

NY 245; *New York Civ. Liberties Union v New York City Tr. Auth.*, 684 F3d 286; *Waller v Georgia*, 467 US 39; *Presley v Georgia*, 558 US 209; *People v Clemons*, 78 NY2d 48; *Courtroom Tel. Network LLC v State of New York*, 5 NY3d 222.) II. The closure raises concerns about racial bias that implicate the recent report about bias in New York’s court system.

OPINION OF THE COURT

CANNATARO, J.

On this appeal, we are asked to consider whether the trial court abused its discretion in ordering the courtroom closed to the public and all interested spectators for the last four days of defendant’s eight-day jury trial. Although the trial court summarized its reasons for the closure, it held no inquiry on the record to determine the necessity and scope of the closure (*see generally People v Jones*, 47 NY2d 409, 414 [1979], *cert denied* 444 US 946 [1979]). Nor was there any showing that the closure was justified under the criteria set forth by the U.S. Supreme Court in *Waller v Georgia* (467 US 39 [1984]). Thus, on the record before us, we conclude that defendant’s Sixth Amendment right to a public trial was violated and he is entitled to a new trial.

Defendant was charged with second-degree murder and two counts of second-degree weapon possession, both related to his alleged role in a fatal shooting. In the midst of defendant’s jury trial, the People moved to close the courtroom, citing the fact that photographs had been taken in the courtroom and posted on Instagram with the caption “Free Dick Wolf”—which the prosecutor asserted was a reference to one of defendant’s street names. After an off-the-record discussion with counsel, the court noted its concern with the photographs, and added that

“[p]eople in the courtroom have been very intimidating. They intimidated a court reporter already. They stare people down. They’re staring up here. I am closing this courtroom based on the fact that now there are pictures that were taken in this courtroom. And I know that pictures can be taken very [surreptitiously] with a cellphone. You can look like you’re looking at your cellphone when you’re really taking pictures. But clearly pictures were taken in this courtroom by someone who had to have been sitting in this courtroom and pictures were taken outside the court. I’m closing the courtroom.”

Defense counsel objected to the closure and proposed barring cellphones in the courtroom as an alternative, stating that it would be unfair to exclude all spectators from the trial based on the misconduct of a particular individual or group of individuals. The court rejected counsel's proposal and, in what it described as an effort to keep the jury from drawing negative inferences from the absence of any particular group of spectators, closed the courtroom entirely, including to the victim's family. The court explained that its decision was based on the "cumulative" effect of various factors that created an atmosphere of intimidation during the trial. Specifically, the court referred to unnamed spectators associated with defendant who were acting, in the court's view, in an "extremely intimidating" manner. According to the court, there were "extremely long hard stares coming from the audience." The court also expanded upon its earlier statement regarding the court reporter, explaining that the reporter had been "very shaken" by her interaction days earlier with a group of unidentified spectators who purportedly asked if the reporter was afraid to ride in an elevator with them. The court stated that the spectators were having "a chilling [e]ffect," and under the circumstances, the court did not "believe there [wa]s a lesser remedy" than closure that could be imposed.

Over the following four days, the court was closed to the public for the testimony of several witnesses, summations, and the jury's verdict. At the conclusion of trial, the jury found defendant guilty as charged. Defendant appealed, and the Appellate Division affirmed, holding that "[t]he court's midtrial closure of the courtroom to all spectators for the remainder of the trial was a provident exercise of discretion under the extraordinary circumstances presented" (203 AD3d 474, 475 [1st Dept 2022]). A Judge of this Court granted defendant's application for leave to appeal (38 NY3d 1152 [2022]).

The constitutional right to a public trial "has long been regarded as a fundamental privilege of the defendant in a criminal prosecution" (*People v Roberts*, 31 NY3d 406, 425 [2018], quoting *People v Martin*, 16 NY3d 607, 611 [2011]). The presumption is that trials will be open to the public, and a trial court's discretion to exclude the public from criminal proceedings "must be exercised only when unusual circumstances necessitate it" (*Martin*, 16 NY3d at 611 [internal quotation marks omitted]).

In *Waller v Georgia*, the Supreme Court of the United States set forth criteria for determining when a courtroom may be

closed over a defendant's objection. Specifically, "the party seeking to close the [proceedings] must advance an overriding interest that is likely to be prejudiced, the closure must be no broader than necessary to protect that interest, the trial court must consider reasonable alternatives to closing the proceeding, and it must make findings adequate to support the closure" (467 US at 48). Subsequently, in *Presley v Georgia*, the Supreme Court emphasized that "the particular interest, and threat to that interest, must 'be articulated along with findings specific enough that a reviewing court can determine whether the closure order was properly entered'" (558 US 209, 215 [2010], quoting *Press-Enterprise Co. v Superior Court of Cal., Riverside Cty.*, 464 US 501, 510 [1984]; see *Hinton*, 31 NY2d 71, 75 [1972] ["special circumstances . . . warranting an exclusion" of the public must be "demonstrated"], *cert denied* 410 US 911 [1973]).

[1] *Waller's* requirements were not met in this case. The record indicates that some unidentified spectators shared photos of the trial on social media, but the People did not argue that the social media postings were intended to affect or influence the trial itself, and it bears noting that the photos admitted by the People depicted only images of defendant accompanied by court officers, not of jurors or witnesses. Moreover, although the trial court indicated that the purpose of the closure was to prevent intimidation of witnesses, court personnel and jurors by means of social media postings, "staring" in the courtroom, and other hostile interactions, the court failed to adequately describe the particular acts and circumstances underlying its conclusion that intimidation was occurring, or to identify the specific individuals who had engaged in such intimidation. The record contains no discussion of the purported offenders, no evidence that any witness was actually intimidated, and only vague descriptions of the purportedly intimidating conduct.

Although the prevention of intimidation by spectators during trial may very well be an "overriding interest" that can support courtroom closure (see *People v Ming Li*, 91 NY2d 913, 917 [1998]), it is incumbent on the trial court to ensure that the record adequately justifies its concerns and demonstrates that the identified interest would be jeopardized absent a closure. Where closure is warranted, it must be tailored to address the overriding interest. Here, the court ordered the broadest possible closure, completely excluding all members of the public for the remainder of trial. On this sparse record the closure was disproportionate in relation to the circumstances described.

[2] Further, “trial courts are required to consider alternatives to closure even when they are not offered by the parties” (*Presley*, 558 US at 214). Although a trial court need not explicitly consider such alternatives on the record (*see People v Echevarria*, 21 NY3d 1, 15 [2013]), here, the court does not appear to have sufficiently considered whether less drastic measures could have resolved troubling spectator behavior, such as addressing those individuals or requesting that they alter their demeanor in the courtroom. Nor did the court make additional efforts to identify particular offenders and exclude only those individuals from the courtroom.*

In short, the record before us does not demonstrate that “unusual circumstances necessitate[d]” closure of the courtroom (*Martin*, 16 NY3d at 611 [internal quotation marks and citation omitted]). Rather, the record demonstrates only a “mere possibility that [an] interest might be compromised by open court testimony[, which] does not justify abridgement of a defendant’s constitutional right to a public trial” (*People v Ramos*, 90 NY2d 490, 498 [1997]).

We emphasize that our decision should not be read as suggesting that a courtroom can never be closed based on the trial court’s observations of intimidation (or other prejudicial behavior) taking place in the courtroom. Trial courts retain “inherent discretionary power . . . to close the courtroom” (*Hinton*, 31 NY2d at 75). However, that discretion must be “sparingly exercised” and invoked “only when unusual circumstances necessitate it” (*id.* at 76; *see Ming Li*, 91 NY2d at 917).

* [2] The Appellate Division incorrectly held that defendant “failed to preserve his arguments that the court should have considered certain other alternatives . . . and conducted a *Hinton* hearing” (203 AD3d at 475). First, as we recognized in *People v Alvarez* (20 NY3d 75 [2012], *certs denied* 569 US 910 [2013], 569 US 947 [2013]), “[t]he obligation rests with the court to consider alternatives, even where the parties themselves do not offer any” (*id.* at 80; *see also Presley*, 558 US at 214). Nor was defendant required to expressly request a “*Hinton* hearing,” because a hearing is not mandatory in every case. A “*Hinton* hearing” is often required in cases where closure is sought to protect the identity of an undercover police officer (*see People v Kin Kan*, 78 NY2d 54, 56 [1991]; *Jones*, 47 NY2d at 414-415; *Hinton*, 31 NY2d at 74-76). However, we have never held that a formal hearing is required for every case in which circumstances might warrant closure (*see Alvarez*, 20 NY3d at 79; *Martin*, 16 NY3d at 611; *Ming Li*, 91 NY2d at 917; *People v Joseph*, 59 NY2d 496, 498 [1983]). To the contrary, we have explained that “there are times when careful inquiry directed at counsel, the witness, or even the spectators present in the courtroom might be enough” (*Jones*, 47 NY2d at 414). Defendant’s objection was sufficient to trigger the need for such an inquiry and preserve the issue for appeal.

When such unusual circumstances occur, it is incumbent on the court to ensure that the record adequately supports excluding members of the public. Here, the court failed to create a sufficient record to justify a complete closure of the courtroom and, as a result, the closure was not narrowly tailored to the interests sought to be protected.

Defendant's remaining argument is academic.

Accordingly, the order of the Appellate Division should be reversed and a new trial ordered.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS and TROUTMAN concur. Judge HALLIGAN took no part.

Order reversed and a new trial ordered.

[218 NE3d 688, 196 NYS3d 352]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHRISTOPHER J. WEBER, Appellant.

Argued May 18, 2023; decided June 15, 2023

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 17, 2021. The Appellate Division affirmed an order of the Monroe County Court (Vincent M. Dinolfo, J.), which had determined that defendant is a level three risk pursuant to the Sex Offender Registration Act. The appeal brings up for review a prior nonfinal order of that Appellate Division, entered October 4, 2019. The Appellate Division had (1) reversed, on the law, an order of that County Court which had determined that defendant is a level three risk pursuant to the Sex Offender Registration Act; and (2) remitted to County Court for further proceedings “to determine whether an upward departure” from defendant’s presumptive level two risk level is warranted.

People v Weber, 195 AD3d 1544, affirmed.

People v Weber, 176 AD3d 1631, affirmed.

HEADNOTE

Crimes — Sex Offenders — Sex Offender Registration Act — Appellate Division’s Authority to Remit for Consideration of Upward Departure

In a Sex Offender Registration Act (SORA) proceeding in which the Appellate Division reversed a County Court order designating defendant a level three sex offender and reduced defendant’s risk assessment instrument (RAI) score so as to render him a presumptive level two offender, the Appellate Division had authority to remit the matter for consideration of whether an upward departure was warranted, notwithstanding that the People made no request at the initial SORA hearing for a departure in the event County Court reduced defendant’s RAI points. County Court adjudicated defendant a level three offender based on an erroneous RAI point assessment, and the Appellate Division awarded defendant relief by reversing that order. Its remittal upon that reversal did not grant greater relief to the People than County Court’s order; it merely provided, at most, an opportunity for the People to maintain the relief they originally requested and obtained before County Court. County Court limited the People on remittal to the record of the initial SORA hearing, and the SORA court made an appropriate designation of defendant’s risk level based on that original record. The Appellate Division did not review an alternative ground for affirmance under CPLR 5501 (a) (1) on defendant’s appeal from County Court’s first order. Rather, the Appellate Division reversed the order of County Court from which de-

fendant's appeal was taken and, upon that reversal, remitted to County Court for further proceedings to determine whether a departure was warranted in the first instance. Curbing the Appellate Division's power to remit for consideration of departure requests when it disagrees with the hearing court's point assessment and changes an offender's presumptive risk level would undermine SORA's objective and unduly constrain the Appellate Division's authority to order appropriate remedial action.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Appellate Review §§ 730, 731; AM JUR 2d
Mentally Impaired Persons § 131.

McKINNEY'S, CPLR 5501 (a) (1).

NY JUR 2d Appellate Review §§ 532, 533, 538; NY JUR 2d
Penal and Correctional Institutions §§ 394, 397, 402.

SIEGEL, NY PRAC (6th ed) § 530.

ANNOTATION REFERENCE

See ALR Index under Appeal and Error; Sex Offender
Registration and Notification.

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POINTS OF COUNSEL

Timothy P. Donaher, Public Defender, Rochester (David R. Juergens of counsel), for appellant. Because at Christopher Weber's Sex Offender Registration Act (Correction Law art 6-C) classification hearing the People never asked the County Court to grant an upward departure, the Appellate Division erred when, on Christopher Weber's original appeal, it granted the People's request for a remittal to the County Court so that they could seek an upward departure for the first time. (*Matter of Hunter*, 4 NY3d 260; *People v Gillotti*, 23 NY3d 841; *People v Current*, 147 AD3d 1235; *People v Hinson*, 170 AD3d 1385; *People v Johnson*, 11 NY3d 416; *People v Bryant*, 187 AD3d 1657; *People v Bajek*, 191 AD3d 1431; *People v Swain*, 46 AD3d 1157; *People v Stewart*, 61 AD3d 1059.)

Sandra Doorley, District Attorney, Rochester (Martin P. McCarthy, II and Nancy Gilligan of counsel), for respondent. Where the hearing court had no reason to consider an upward departure application, the appellate court properly remitted

defendant's case after reducing defendant's classification from the highest sex offender level. (*People v Munafo*, 119 AD3d 1102; *People v Pettigrew*, 14 NY3d 406; *People v Stevens*, 91 NY2d 270; *Matter of North v Board of Examiners of Sex Offenders of State of N.Y.*, 8 NY3d 745; *People v Wroten*, 286 AD2d 189; *People v Payton*, 51 NY2d 169; *People v Malinsky*, 15 NY2d 86; *People v Jones*, 81 AD2d 22; *People v Gillotti*, 23 NY3d 841; *People v Cook*, 29 NY3d 121.)

OPINION OF THE COURT

HALLIGAN, J.

The Appellate Division reversed a County Court order designating defendant Christopher Weber a level three sex offender based on his risk factor point assessment and remitted the matter for consideration of whether an upward departure was warranted (176 AD3d 1631 [4th Dept 2019]). Defendant contends the remittal was impermissible because the People did not request a departure at the initial hearing before County Court. We conclude that the Appellate Division had the authority to remit for consideration of an upward departure on the facts presented here.

In 2014, defendant was charged with committing various crimes against a 10-year-old child and pleaded guilty to sexual abuse in the first degree. Defendant was initially placed on interim probation and promised youthful offender status if he successfully completed one year of probation. Due to defendant's subsequent arrest on other charges stemming from conduct occurring after his plea, defendant's probation was revoked and he was sentenced to a three-year term of imprisonment. In accordance with the Sex Offender Registration Act (Correction Law § 168 *et seq.* [SORA]), prior to defendant's release, the Board of Examiners of Sex Offenders assessed defendant 110 points on the risk assessment instrument (RAI), including 10 points under risk factor 1 for the use of forcible compulsion. Based on this RAI score, the Board deemed defendant a level three sex offender (that is, at a high risk of re-offense) and did not recommend a downward departure.

At his SORA hearing, defendant disputed the points assessed for several risk factors, including those for factor 1 based on forcible compulsion, and requested a downward departure to risk level two. The People concurred in the Board's point assessment and presumptive level three designation and opposed defendant's departure request. The People made no request in

the alternative for an upward departure in the event the court reduced defendant's RAI points. County Court rejected defendant's challenges to the points assessed and adjudicated defendant a level three sexually violent offender. Given the nature of the underlying crime and defendant's record of "serious disciplinary infractions," the court rejected defendant's request for a downward departure from the presumptive level three designation.

Upon defendant's appeal, the Appellate Division reversed and remitted to County Court for further proceedings (176 AD3d at 1631). Noting the People's concession that there was no evidence of forcible compulsion, the Appellate Division reduced defendant's RAI score by 10 points, which rendered him a presumptive risk level two offender (*see id.* at 1632). The Appellate Division concluded that remittal was appropriate because County Court "had no reason to consider" whether clear and convincing evidence supported an upward departure to level three after designating defendant a level three offender based on his RAI score alone (*id.* [internal quotation marks omitted]).

On remittal, defendant moved to preclude the People from seeking an upward departure, arguing that the remittal was improper. County Court permitted the People to pursue a departure and granted defendant's alternative request to limit the proceeding to the record created during the original hearing. At the close of the second hearing, County Court granted an upward departure from level two and again adjudicated defendant a level three sexually violent offender, reasoning that the RAI did not adequately account for defendant's conduct and arrest while he was on interim probation.

The Appellate Division affirmed, noting that "although the People did not request . . . a departure during the original SORA proceeding, there was no reason for them to do so inasmuch as the court had classified defendant as a level three risk based upon the presumptive risk level yielded by the score on his [RAI]" (195 AD3d 1544, 1544-1545 [4th Dept 2021]). The Appellate Division also rejected defendant's argument that County Court had erred by upwardly departing under the circumstances of this case. We granted defendant leave to appeal (37 NY3d 913 [2021]).

SORA was enacted to protect the public from the danger of sexual recidivism posed by individuals who commit certain sex

offenses (*see People v Francis*, 30 NY3d 737, 742 [2018]; L 1995, ch 192, § 1). To that end, “SORA contains a detailed system of registration and community notification, with each sex offender’s registration and notification obligations emanating from [their] designated risk level within a three-tiered classification scheme” (*People v Cook*, 29 NY3d 121, 125 [2017]; *see* Correction Law §§ 168-f; 168-h; 168-l; *People v Mingo*, 12 NY3d 563, 570-571 [2009]).

As relevant here, to determine an offender’s risk level, the Board provides the court with a risk assessment instrument that assigns numerical values to various risk factors in accordance with the SORA Risk Assessment Guidelines and Commentary, resulting in an aggregate score that presumptively places an offender in a particular risk level (*see Francis*, 30 NY3d at 743-744; Correction Law § 168-l; SORA: Risk Assessment Guidelines and Commentary at 3 [2006] [Guidelines]). At a SORA hearing, the offender and the People may each present evidence in support of their positions regarding the RAI point assessment and the offender’s presumptive risk level (*see Francis*, 30 NY3d at 744; Correction Law § 168-n [3]). Each party “may request a departure from the presumptive risk level indicated by the offender’s total score” (*Francis*, 30 NY3d at 744; *see* Guidelines at 4), and the court must then determine “whether or not to order a departure from the presumptive risk level indicated by the offender’s [G]uidelines factor score” using the framework set forth in *People v Gillotti* (23 NY3d 841, 861 [2014]). If the defendant proves by a preponderance of the evidence mitigating circumstances, or the People prove by clear and convincing evidence aggravating circumstances, “of a kind or to a degree not adequately taken into account by the [G]uidelines,” the court must then “determine whether the totality of the circumstances warrants a departure [from the presumptive level] to avoid an over- or under-assessment of the defendant’s dangerousness and risk of sexual recidivism” (*id.* at 861).

Here, the People prevailed before the SORA court on their requested allocation of points under the RAI and risk level. When the Appellate Division reversed on the allocation of points and the risk level dropped accordingly, it remitted to allow the SORA court to consider a departure request for the first time. Defendant and our dissenting colleague object, contending that because this upward departure request was not made during the original SORA proceeding, the SORA court

made no ruling “adverse” to the People, and the Appellate Division therefore could not “review” this “unpreserved” departure question and order remittal upon reversal. But this argument confuses the question of whether remittal was appropriate corrective action with a question of preservation.¹ This is not a case in which a party failed to present an issue to the SORA court and then asked the Appellate Division to nonetheless resolve that same question; the Appellate Division did not rule on the merits of the departure but remitted it for the SORA court to do so in the first instance.²

With respect to whether the remittal was permissible, CPLR 5522 enumerates the various dispositions that the Appellate Division may order: it may “reverse, affirm, or modify, wholly or in part, any judgment, or order before it, as to any party,” and it may “render a final determination or, where necessary or proper, remit to another court for further proceedings” (CPLR 5522 [a]; see *Hecht v City of New York*, 60 NY2d 57, 64 [1983]). It is true that “neither CPLR 5522 nor any other statutory or constitutional authority permits an appellate court to exercise any general discretionary power to grant relief to a nonappealing party” unless necessary to afford full relief to an appealing party (*Hecht*, 60 NY2d at 63). But, contrary to our dissenting colleague’s conclusion, the Appellate Division’s reversal and remittal for consideration of an upward departure did not grant the People affirmative relief from County Court’s order (compare *Bellevue S. Assoc. v HRH Constr. Corp.*, 78 NY2d 282, 299 n 5 [1991] [affirmance of verdict on alternative ground would grant affirmative relief where it would require reversal of trial court’s rulings and a new trial on claims and

1. Thus, we do not we resolve any broad questions about the scope of the preservation doctrine and its application to “issues” versus “arguments” (*cf.* dissenting op at 219 [emphasis omitted]). Nor do we address arguments not raised by the parties. Defendant contends that CPLR 5501 (a) (1) and *Gillotti* precluded the Appellate Division from remitting. The People dispute these arguments and assert that they were not required to request a departure in the alternative where, as here, they succeeded in obtaining a level three designation through the assessment of points. Our decision appropriately explains our basis for rejecting defendant’s arguments and for agreeing with the People.

2. We therefore need not (and do not) address whether the Appellate Division—which, unlike this Court, has interest of justice jurisdiction to review unpreserved issues in the exercise of its discretion (see *Hecker v State of New York*, 20 NY3d 1087, 1087 [2013]; *Elezaj v Carlin Constr. Co.*, 89 NY2d 992, 994-995 [1997]; *Matter of Barbara C.*, 64 NY2d 866, 868 [1985])—could have itself resolved whether a departure was warranted.

theories that had been dismissed by the trial court]; *Tenavision, Inc. v Neuman*, 45 NY2d 145, 151 [1978]), or review any ruling regarding a departure. County Court adjudicated defendant a level three offender based on an erroneous RAI point assessment, and the Appellate Division awarded defendant relief by reversing that order. Its remittal upon that reversal did not “grant greater relief” to the People than County Court’s order (*Tenavision, Inc.*, 45 NY2d at 151); it merely provided, at most, an opportunity for the People to maintain the relief they originally requested and obtained before County Court—i.e., a level three designation (see *People v Moss*, 22 NY3d 1094, 1095 [2014]). The People got no “second bite” at the apple, contrary to what the dissent claims, particularly given that County Court limited the People on remittal to the record of the initial SORA hearing, and the SORA court made an “appropriate designation” of defendant’s risk level (*Mingo*, 12 NY3d at 568 n 2) based on that original record.

For similar reasons, CPLR 5501 (a) (1) does not control the narrow question before us. CPLR 5501 (a) (1) is implicated when the final judgment or order has been properly appealed by the appellant, and the respondent—who was not aggrieved and therefore had no right to bring a cross-appeal—seeks review of a prior determination that was adverse to the respondent and would support a judgment in the respondent’s favor (see *Parochial Bus Sys. v Board of Educ. of City of N.Y.*, 60 NY2d 539, 545-546 [1983]). Here, the Appellate Division did not review an alternative ground for affirmance under CPLR 5501 (a) (1) on defendant’s appeal from County Court’s first order adjudicating him a level three offender. Rather, the Appellate Division reversed the order of County Court from which defendant’s appeal was taken and, upon that reversal, remitted to County Court for further proceedings to determine whether a departure was warranted in the first instance.

Defendant relies on *People v Gillotti* (23 NY3d 841 [2014], *affg sub nom. People v Fazio*, 106 AD3d 1291 [3d Dept 2013]), but that decision does not compel a contrary conclusion. There, the RAI proposed by the Board would have designated defendant Fazio a presumptive level one offender; the People asked the SORA court to assess additional points and designate him a level two offender; and the court agreed with the People and adjudicated him a level two offender. Fazio objected to the point allocation and had both reason and opportunity to request that the SORA court grant a downward departure, but did not

do so. The Appellate Division upheld the RAI score and level two designation. When Fazio belatedly sought the relief of a downward departure from this Court, we declined to address the argument as unpreserved, while resolving a similar claim that the defendant in the companion case had presented to the SORA court (*see Gillotti*, 23 NY3d at 860-861, 861 n 5; *see also People v Johnson*, 11 NY3d 416, 421-422 [2008] [observing that no legal issue was presented for this Court's review where the defendant never requested a departure from the SORA court after it rejected his legal arguments disputing the RAI points]). *Gillotti* and Fazio fared differently because while both had ample reason to request a departure, only one did so.

That same principle applies equally to the People, but the circumstances are different here. Rather than failing to seek a departure after losing on their requested point allocation and risk level before the SORA court, the People prevailed before the SORA court on their requested point assessment and secured their requested level three designation through the RAI score. Moreover, nothing in our *Gillotti* decision or the decisions below in those cases indicated that the defendant sought remittal, and we did not address the Appellate Division's authority to remit for consideration of a departure request when it reverses an order determining the defendant's risk level.³

None of the dissent's strenuous objections persuade us. First, we are skeptical that upholding the Appellate Division's remittal will encourage otherwise avoidable piecemeal litigation or squander judicial resources. When a SORA court assesses sufficient RAI points to assign the risk level sought by the People, the court might go on to adjudicate an academic request for an upward departure (to the same risk level), or it might not.⁴ As the People note in their brief, the Appellate Division Depart-

3. Nor, in concluding that defendant's argument was unpreserved for this Court's review, did we address in *Gillotti* the Appellate Division's authority to review an unpreserved departure request in the interest of justice.

4. The dissent asserts that prosecutors "frequently" seek upward departures in the alternative (dissenting op at 223-224), but nothing before us establishes what the customary practice is for prosecutors or offenders in SORA hearings. Moreover, most of the cases the dissent cites are not directly apposite; they present instances in which the People did not seek an upward departure in the alternative of their own initiative (*see e.g. Cook*, 29 NY3d at 124 [judge specifically inquired prior to the hearing if People would seek departure in light of defendant's arguments]) or are cases in which the People sought—through either a point assessment or, alternatively, an upward

(n. cont'd)

ments have remitted in similar circumstances on numerous occasions, including instances in which a departure request had not been made before the SORA court (*see e.g. People v Perez*, 214 AD3d 682, 683 [2d Dept 2023] [remitting where the record “reflect(ed) that the People would have sought an upward departure had the Supreme Court not designated the defendant a level three sexually violent offender”]; *People v Lewis*, 178 AD3d 971, 972-973 [2d Dept 2019] [remitting where neither party requested a departure before the SORA court but the “erroneous assessment of . . . points . . . may have impacted the People’s decision to refrain from seeking an upward departure”]; *People v Brown*, 148 AD3d 1705, 1707 [4th Dept 2017] [remitting for further proceedings regarding whether to depart upon removal of improperly assessed risk factor points]; *People v Felice*, 100 AD3d 609, 610 [2d Dept 2012] [remitting where the record “indicate(d) that the People would have sought an upward departure”]; *People v Munafo*, 119 AD3d 1102, 1103 [3d Dept 2014] [remitting because SORA court “did not have the opportunity to consider whether an upward modification was warranted” due to its presumptive risk level classification]; *People v Swain*, 46 AD3d 1157, 1159 [3d Dept 2007] [remitting where “the record contains some evidence that an upward departure from the presumptive level may be warranted” and SORA court “had no reason to consider whether” to depart]).⁵

Second, our ruling today does not portend an avulsive change in the rules of civil practice. Needless to say, we do not address the extent of the Appellate Division’s remittal authority in a broad array of contexts not before us in this appeal. SORA is a unique and detailed statutory scheme that delegates to the Board responsibility for “develop[ing] guidelines and procedures to assess the risk of a repeat offense by such sex offender and the threat posed to the public safety” (Correction Law § 168-l [5], [6]). The procedures established by the Board dictate that

departure—a different risk level than that recommended by the Board’s RAI. In such circumstances, the People plainly had reason to request in advance of the hearing an upward departure in the alternative to their requested points, unlike here, where the People sought the same risk level as the Board’s RAI and prevailed on that point assessment at the hearing.

5. To the extent the dissent suggests that parties will struggle to apply our ruling in other circumstances—for example, where a court reserves judgment and later sends out a written order—we underscore the specific posture here: the SORA court agreed to the point allocation and risk level requested by the party who later sought remittal following reversal on appeal.

the court first determine the presumptive risk level based upon the point assessment it deems appropriate under the Guidelines, and the court may then depart from that level “if it concludes that the factors in the RAI do not result in an appropriate designation” (*Mingo*, 12 NY3d at 568 n 2; see Guidelines at 4; *Gillotti*, 23 NY3d at 853; *Johnson*, 11 NY3d at 421; *People v Talluto*, 39 NY3d 306, 315 [2022] [SORA court’s “authority” to depart and “the procedures for assessing the defendant’s presumptive risk level in the first instance, are derived from SORA’s (G)uidelines”]; Correction Law § 168-n [2] [directing the courts to determine offender risk level by “applying the guidelines”]). Given the sequential structure of the departure process—a point we have repeatedly recognized (see *Gillotti*, 23 NY3d at 853; *Johnson*, 11 NY3d at 421)—a SORA court cannot assess a departure request until an offender’s presumptive risk level has been determined.⁶

Third, we are unconvinced that the remittal here was inconsistent with *People v Havelka* (45 NY2d 636 [1978]) and progeny. In *Havelka*, we reaffirmed the well-settled principle that a rehearing should be ordered where an “error of law” by the hearing court resulted in a less than “full opportunity” for the People to address what could otherwise be a dispositive issue at the original hearing (*id.* at 643; see e.g. *People v Crandall*, 69 NY2d 459, 463 [1987] [remittal appropriate where, in reliance on the court’s holding that the search was proper pursuant to a search warrant, the People “had no incentive” to pursue an alternative ground for sustaining the search]). Even if our case law regarding criminal proceedings was apposite here despite resting on different rights and rules of procedure, our holding today is consistent with *Havelka*, in which “there was no erroneous ruling by the [nisi prius] court to lull the People into complacency” (*Crandall*, 69 NY2d at 464; *People v Payton*, 51 NY2d 169, 176-177 [1980] [the People “should not be penal-

6. Despite the dissent’s dubious suggestion that departures can be undertaken by the SORA court without regard to the RAI point assessment (dissenting op at 222-223), both the Guidelines and our jurisprudence make clear that the presumptive risk level is first determined through application of the Guidelines and the RAI—whether through allocation of points or a presumptive override to level three—and is the starting point for the departure analysis (see *People v Wolm*, 209 AD3d 682, 683 [2d Dept 2022] [observing that courts must determine whether to depart “from the presumptive risk level” and that “(r)egardless of whether the presumptive risk level has been determined by the assessment of points or the application of an override,” the departure analysis remains the same], *lv denied* 39 NY3d 909 [2023]).

ized for (their) initial success at the hearing” and their alternative theory could be raised at new hearing because it was not “relevant and necessary to the People’s case” until reversal on appeal)).⁷

In the absence of any applicable statutory or other jurisdictional limitation on the Appellate Division’s authority, we decline defendant’s invitation to restrain the Appellate Division from remitting in these circumstances. “[T]he ultimate and ‘paramount concern’ of the SORA risk-level assessment is ‘an accurate determination of the risk a sex offender poses to the public’ ” (*People v Perez*, 35 NY3d 85, 94 [2020], quoting *Mingo*, 12 NY3d at 574). Both that concern and the substantial consequences that a SORA classification carries for a defendant underscore the importance of ensuring that the courts correctly assess the risk that an offender poses to the community in making a risk level determination (*see* Correction Law §§ 168-d [3]; 168-n [2]; *Johnson*, 11 NY3d at 421). Curbing the Appellate Division’s power to remit for consideration of departure requests when it disagrees with the hearing court’s point assessment and changes an offender’s presumptive risk level would undermine SORA’s objective and unduly constrain the Appellate Division’s authority to order appropriate remedial action.

Accordingly, the Appellate Division order appealed from and the Appellate Division order brought up for review should be affirmed, without costs.

Chief Judge WILSON (dissenting). Our adversarial system is premised on the idea that interested parties will bring all the issues they wish to have a court consider, thus allowing courts to make the most informed decision in each case. Counsel can choose to advance a kitchen sink of arguments, carefully choose a more limited set, or carelessly omit a potentially strong argument. Because our courts rely on the diligence and judgment of counsel in the presentation of issues for decision, the consequences for parties whose counsel fails to advance a meritorious claim are high, regardless of whether the failure arose from a

7. The dissent relies on cases involving post-conviction proceedings (*see e.g. Banister v Davis*, 590 US 504, 507-509 [2020]; *People v Tiger*, 32 NY3d 91, 93 [2018]; *People v Jackson*, 78 NY2d 638, 647 [1991]). But as we have explained in response to prior dissents, “post-conviction motions . . . [and] motions to set aside sentences are subject to different statutory limitations and implicate different interests” than direct appeals (*People v Kaval*, 39 NY3d 1081, 1083-1084 [2022]).

clever strategy or a grotesque bungle. Other than when counsel's negligence is so substantial as to violate the constitutional right of a criminal defendant to effective assistance of counsel, litigants are barred from belatedly advancing claims they had a full and fair opportunity to raise initially. Civil litigants have no such relief under our established precedent (other than by a separate claim for legal malpractice).

In this case, the People sought a level-three determination, based on the cumulation of points under the Sex Offender Registration Act: Risk Assessment Guidelines and Commentary, which in turn depended on their position that "forcible compulsion" could refer to "social, emotional, et cetera kind of forces." They could have sought upward departure in the alternative, but chose not to do so. A quick skim of the three authoritative paragraphs on the subject would have revealed that the People's sole claim was meritless (*see* Sex Offender Registration Act: Risk Assessment Guidelines and Commentary at 8 [2006] [Guidelines]). On appeal the People realized their argument was indefensible and—to their credit—withdrawed it, conceding the entire issue. Having conceded their loss on the only claim they had advanced, the People asked the Appellate Division to grant them a do-over. Although civil litigants in this circumstance never get a do-over, the Appellate Division granted them one, which the majority condones.

The majority and I agree that the People did not ask for an upward departure and that their subsequent upward departure request was unpreserved. We part ways where the majority carves out a new preservation workaround: instead of "rul[ing] on the merits," the court may instead "remit[]" the case for the trial court to address the argument "in the first instance" (majority op at 211), i.e., a do-over. However this idea is dressed up, the fact is that the People did not seek an upward departure when they could have, on appeal lost the issue they had raised below, and were given a chance to go back and raise the omitted argument. Neither civil nor criminal litigants are afforded such an opportunity.

The majority further rests its holding on the proposition that although the rules of procedure do not authorize appellate courts to grant relief to a nonappealing party (here, the People), "the Appellate Division's reversal and remittal for consideration of an upward departure did not grant the People affirmative relief from County Court's order" (majority op at 211). The opportunity for a do-over, to raise an argument you could have

raised but did not, is plainly affirmative relief; it unquestionably benefitted the People here.

But according to the majority, its decision changes nothing about our normal civil procedure. Of course, the statute providing remittal authority, CPLR 5522 (a), applies equally to the Court of Appeals as it does to the Appellate Division. The majority's workaround therefore raises the question of why we have, for decades, dismissed "substantial constitutional question[s]" on the ground that they are unpreserved, instead of remitting those cases so that the court of instance can properly preserve them (*see e.g. Henry v New Jersey Tr. Corp.*, 39 NY3d 361, 374 [2023]; *Matter of Schulz v State of New York*, 81 NY2d 336, 344 [1993]; *Matter of Shannon B.*, 70 NY2d 458, 462 [1987]).

In reality, the majority carves an indeterminately sized hole in our procedural rules. Future civil litigants will assert equal rights to do-overs. A future defendant failing to contend that she did not breach a duty of care may, consistently with the majority's opinion, obtain a do-over to raise that argument, pointing out that until an appellate court rules that she had a duty, the court "cannot assess" a breach claim (*see* majority op at 215). A future plaintiff who fails to plead a cause of action for fraud may likewise claim entitlement to a do-over because, until an appellate court rules that the plaintiff had no contract with the defendant, the necessary prerequisite to his fraud claim (absence of an enforceable contract) was lacking. The majority "do[es] not address the extent of the Appellate Division's remittal authority" (*id.* at 214), leaving the question open for future litigation.

To cabin its holding, the majority first tries to distinguish this case from other civil litigation by saying that the Sex Offender Registration Act (SORA) (Correction Law art 6-C), although admittedly "subject to a civil appeal process" (*People v Buyund*, 37 NY3d 532, 540 [2021]), is not really civil because of the public safety risks and "substantial consequences that a SORA classification carries for a defendant" (majority op at 216). However, in the criminal context—where the public safety risks and due process considerations are often much greater—prosecutors are flatly prevented from getting do-overs to add theories of liability they could have raised in a hearing or added to an indictment. When faced with this unfavorable comparison, the majority correctly disregards criminal precedent in part because it "rest[s] on different . . . rules of procedure" (*id.* at

215). Neither fully civil nor fully criminal, SORA has a foot in both worlds and is therefore, according to the majority, governed by the rules of neither.

Unable to find precedent in civil or criminal practice, the majority instead turns to SORA exceptionalism, saying that “SORA is a unique and detailed statutory scheme” governed by “procedures established by the Board” in the SORA Guidelines (majority op at 214-215). But neither the Guidelines nor our SORA precedents bless the majority’s procedural innovations. When confronted with the myriad ways this case is inconsistent with our SORA precedent and SORA practice by which prosecutors often seek upward departures in the alternative and courts adjudicate the merits of those requests independently the presumptive risk level, the majority either creates new rules justified by no precedent, walks back its argument that parties do not need to plead departures in the alternative (*see* majority op at 214 n 5), or simply denies the existence of the practice altogether (*see* majority op at 215 n 6).

I.

I firmly agree with one proposition on which the majority opinion rests: our preservation doctrine concerns the preservation of *issues*, not arguments.

If the majority restricted itself to arguments preserved by the People, the People would unquestionably lose. Not only did the People fail to request an upward departure in Mr. Weber’s SORA hearing, but neither the People’s briefs nor arguments on remand to County Court, in the Appellate Division, or even on this appeal to our Court contain the arguments on which the majority has decided this appeal. The People never mentioned that *Gillotti* does not control here because Mr. Fazio “had ample reason to request a departure” but failed to do so (majority op at 213), and never claimed that the Appellate Division’s remittal “did not grant the People affirmative relief from County Court’s order” (majority op at 211). The majority explicitly rejects the People’s only proposed source of authority for the Appellate Division’s remittal, CPLR 5522 (a). The People’s only response to Mr. Weber’s argument that the Appellate Division could not grant them affirmative relief because they were a nonappealing party was that CPLR 5501 (a) (1) does not limit the relief authorized by CPLR 5522 (a), an argument the majority squarely rejects (*see* majority op at 211 [“neither CPLR 5522 nor any other statutory or constitutional

authority permits an appellate court to . . . grant relief to a nonappealing party” (internal quotation marks omitted)). Although the majority explicitly disavows that it is engaged in issue preservation (see majority op at 211 n 1), there is no way for it to reach its holding using only arguments preserved and raised by the litigants.¹

II.

The majority has created a procedural jackalope to evade the normal rules of civil practice. Normally, remitting for reargument on a theory of liability not raised below would not be “necessary or proper” (CPLR 5522 [a]). According to the majority, however, the public safety concerns and the “substantial consequences” for defendants (majority op at 216) place a premium on accuracy that exempts SORA from our normal civil procedural rules. But in the criminal context—where even greater public safety and due process concerns apply—we do not allow the Appellate Division to reopen cases so that the People can advance a new theory. Evidently SORA is not criminal either. As envisioned by the majority, SORA is a hybrid of criminal and civil procedure that is ungoverned by either set of procedural rules.

A.

The majority’s decision raises serious questions about what litigants must do to ensure their issues receive appellate review. Its justification that “court cannot assess a departure

1. Sometimes we use the imprecise turn of phrase that “arguments” must be preserved (see e.g. *Henry*, 39 NY3d at 371-372; *Maldovan v County of Erie*, 39 NY3d 166, 171 [2022]; *Batavia Townhouses, Ltd. v Council of Churches Hous. Dev. Fund Co., Inc.*, 38 NY3d 467, 474 n 2 [2022]). However, “appellate judges . . . do not sit as automatons” merely to register their reactions to the arguments which counsel make below (*Misicki v Caradonna*, 12 NY3d 511, 519 [2009] [internal quotation marks omitted]; see also Arthur Karger, Powers of the New York Court of Appeals § 17:1 [3d ed rev, Aug. 2022 update]). Rather, “we are confined to the questions raised or argued at the trial but not to the arguments there presented” (*Persky v Bank of Am. N.A.*, 261 NY 212, 218 [1933], citing *Oneida Bank v Ontario Bank*, 21 NY 490, 504 [1860]). We hamstringing our ability to resolve complicated questions of law when we limit ourselves solely to the exact arguments advanced by the parties (see *People v Epakchi*, 37 NY3d 39, 63-64 [2021, Wilson, J., dissenting]; *Matter of Kosmider v Whitney*, 34 NY3d 48, 80-82 [2019, Wilson, J., dissenting]). Recognizing the limits of argument preservation, we have in the past opted for issue preservation instead (see e.g. *People v Sanders*, 39 NY3d 216, 220 n [2023]; *Matter of Aurora Assoc. LLC v Locatelli*, 38 NY3d 112, 145 [2022, Wilson, J., dissenting]); this case continues that trend.

request until an offender's presumptive risk level has been determined" (majority op at 215) equally applies to a plaintiff's factually and legally inconsistent pleadings, or mutually exclusive remedies. A court cannot, for instance, hold that a contract was fraudulently induced and also that the defendant breached it, nor can the court void the contract while also granting damages for its breach. Yet we permit (*e.g. Cohn v Lionel Corp.*, 21 NY2d 559, 563 [1968]) and even expect plaintiffs to raise all claims and requests in the same pleading, and deem alternatives forfeited when they arise from the same transactions or occurrences. The majority offers no basis from either the statutory scheme or our prior case law for why SORA would be an exception to this rule.

"Increasingly, modern practice [in civil litigation] has placed a premium on the policies . . . of efficiency, finality, and judicial economy" (*Paramount Pictures Corp. v Allianz Risk Transfer AG*, 31 NY3d 64, 75 [2018]). In civil litigation, it is axiomatic that a plaintiff's failure to raise an alternative cause of action arising from the same transaction or occurrence forfeits that claim (*see e.g. People v Wakefield*, 38 NY3d 367, 386 [2022]; *Vista Eng'g Corp. v Everest Indem. Ins. Co.*, 161 AD3d 596, 598 [1st Dept 2018] ["It is well settled that a party may not argue on appeal a theory never presented to the court of original jurisdiction"]; *Lobello v New York Cent. Mut. Fire Ins. Co.*, 112 AD3d 1287, 1287-1288 [4th Dept 2013]; *Pekich v James E. Lawrence, Inc.*, 38 AD3d 632, 633 [2d Dept 2007]; *Howe v Village of Trumansburg*, 199 AD2d 749, 751-752 [3d Dept 1993], *lv denied* 83 NY2d 753 [1994]; *Lucky Brand Dungarees, Inc. v Marcel Fashions Group, Inc.*, 590 US 405, 411-413 [2020]). Litigants are permitted and even expected to seek inconsistent remedies in the same pleading at the risk of forfeiting those claims (*see CPLR 3002; O'Brien v City of Syracuse*, 54 NY2d 353, 357 [1981]; *INS v Doherty*, 502 US 314, 328-329 [1992]). Although that procedure can be harsh and in tension with the truth-seeking function of our judicial system, it vindicates vital interests of finality and judicial economy (*cf. Paramount Pictures Corp.*, 31 NY3d at 73; *Brown v Felsen*, 442 US 127, 131 [1979]).

Even in the criminal context, where the imperatives of public safety and due process are at their zenith, we often prioritize finality over accuracy (*see People v Kevin W.*, 22 NY3d 287, 296 [2013]; *People v Jackson*, 78 NY2d 638, 647 [1991]). As we explained in *People v Havelka* (45 NY2d 636, 643 [1978]), our

legal system “offers a single opportunity for the presentation and resolution of factual questions. If such a practice were not followed, the defendant, having prevailed at the hearing, would be haunted by the specter of renewed proceedings.” More generally, it is well-established that the prosecution may have “one full opportunity” to raise its arguments in support of a position, regardless of interest of justice jurisdiction (*cf. People v Giles*, 73 NY2d 666, 671 [1989]; *People v Crandall*, 69 NY2d 459, 464-465 [1987]; *People v Payton*, 51 NY2d 169, 177 [1980]; *Burks v United States*, 437 US 1, 17 [1978] [the government may not have a “second bite at the apple” where a defendant is entitled to acquittal]; *Matter of Corbin v Hillery*, 74 NY2d 279, 291 [1989]; *People v LaFontaine*, 92 NY2d 470, 474-475 [1998]). Trial courts are no exception from this rule, and may not reopen proceedings to give the People another try at a legal theory they neglected to raise when given the chance (*see Kevin W.*, 22 NY3d at 289). Here, the People were not “lull[ed] . . . into complacency” (*Crandall*, 69 NY2d at 464) by the SORA court’s erroneous ruling because their position was laid out in advance of the hearing.

B.

The majority justifies its departure from settled procedure with three arguments: that the SORA Guidelines prevent a court from adjudicating a departure request until it has calculated a point total; that requiring prosecutors to make such a request would have no efficiency benefits; and that accuracy in the SORA context is too important to sacrifice for judicial economy. Those arguments are inconsistent with the realities of civil practice in general and SORA practice specifically.

Nothing in the Guidelines lays out a “sequential structure of the departure process” that would govern appellate procedure (majority op at 215) nor does the regular practice of SORA courts and litigants suggest that SORA would have different pleading requirements than civil litigation in general. The cited portion of the Guidelines does not say that a court must “*first* determine the presumptive risk level based upon the point assessment . . . and . . . *then*” determine the departure (*see* majority op at 214-215 [emphasis added], citing, *inter alia*, Guidelines at 4). Instead, the relevant section of the Guidelines simply says that a court may not depart from the presumptive risk score “unless it concludes that there exists an aggravating or

mitigating factor . . . that is otherwise not adequately taken into account by the guidelines” (Guidelines at 4). The Guidelines and our jurisprudence allow a court to say that a factor not taken into consideration by the Guidelines warrants a level-three designation regardless of the point total. The determinations are often independent of one another. For instance, in this case, the basis of the People’s upward departure request had nothing to do with their losing point argument for factor 1 (the definition of forcible compulsion) and instead turned on whether some of Mr. Weber’s conduct during confinement was a different kind of conduct than that captured by the point assessments under factor 13. Conceptually speaking, it is no more incoherent to depart from an uncertain point total than it is to automatically override an uncertain point total (*see* Guidelines at 3-4), yet lower courts do so often and the majority explicitly blesses this practice (*see People v Wolm*, 209 AD3d 682, 683 [2d Dept 2022] [“In light of our determination that an override was established, we need not reach the defendant’s challenge to the assessment of points”], *lv denied* 39 NY3d 909 [2023]; majority op at 215 n 6).

But even if one read the Guidelines to require a court to make a point determination first and then consider an upward departure, that requirement would not support remittals to obtain a final point-level determination before any upward departure or alternative risk-level determination could be considered. Instead, such a requirement would support the usual practice of asking the SORA court for any applicable risk-level determination in the alternative. With all the relevant arguments in hand, the court could issue a single opinion that first determined points and then adjudicated departures.

In practice, prosecutors frequently seek upward departures in the alternative (*see e.g. People v Cook*, 29 NY3d 121, 124 [2017]; *People v Manley*, 209 AD3d 445 [1st Dept 2022], *lv denied* 39 NY3d 909 [2023]; *People v Bonds*, 207 AD3d 666 [2d Dept 2022], *lv denied* 39 NY3d 903 [2022]; *People v Edmee*, 205 AD3d 938 [2d Dept 2022], *lv denied* 39 NY3d 901 [2022]; *People v Myles*, 202 AD3d 549 [1st Dept 2022], *lv denied* 38 NY3d 910 [2022]; *People v Correa*, 202 AD3d 413 [1st Dept 2022], *lv denied* 38 NY3d 909 [2022]; *People v Satornino*, 200 AD3d 813 [2d Dept 2021], *lv denied* 38 NY3d 908 [2022]; *People v June*, 195 AD3d 1443 [4th Dept 2021], *lv denied* 37 NY3d 912 [2021]; *People v Green*, 192 AD3d 927 [2d Dept 2021], *lv denied* 37 NY3d 910 [2021]; *People v Garcia*, 192 AD3d 833 [2d Dept

2021], *lv denied* 37 NY3d 910 [2021]; *People v West*, 189 AD3d 1481 [2d Dept 2020], *lv denied* 36 NY3d 913 [2021]; *People v Pierre*, 189 AD3d 1092 [2d Dept 2020], *lv denied* 36 NY3d 912 [2021]; *People v Malena*, 186 AD3d 1175 [1st Dept 2020], *lv denied* 36 NY3d 907 [2021]; *People v Larkin*, 66 AD3d 592 [1st Dept 2009], *lv denied* 14 NY3d 704 [2010]; *People v Ross*, 37 AD3d 1117 [4th Dept 2007], *lv denied* 9 NY3d 802 [2007]).²

Courts regularly adjudicate departure requests independently of the underlying point total. Sometimes, the adjudication takes the form of alternative holdings, which necessarily assess the merits of the departure regardless of how one comes out on the point issue (*People v Havens*, 144 AD3d 1632, 1633 [4th Dept 2016], *lv denied* 29 NY3d 901 [2017]; *People v Montes*, 134 AD3d 1083, 1083-1084 [2d Dept 2015], *lv denied* 27 NY3d 904 [2016]). Other times, courts refuse to adjudicate point totals altogether, recognizing that they do not need to analyze the point and departure issues in any particular order (*see e.g. People v Jones*, 114 AD3d 550, 550 [1st Dept 2014] [“Regardless of whether points should have been assessed under factor 1 for defendant’s use of ‘forcible compulsion’ . . . the record supports the court’s alternate finding that a discretionary upward departure to level three was warranted under the circumstances”], *lv denied* 23 NY3d 903 [2014]; *People v Newman*, 71 AD3d 488, 488 [1st Dept 2010] [“Regardless of whether defendant’s correct point score would make him a presumptive risk level one or two offender, a discretionary upward departure to level three is warranted by aggravating factors”]). Much as a court can determine that there has been no breach of an alleged duty without deciding whether the defendant had a duty to the plaintiff, a SORA court can determine that, for instance, there is a non-points factor warranting a level-three designation regardless of how it comes out on a particular point calculation.

2. The majority explains that most of these cited cases are “not directly apposite” because they present instances in which the People “plainly had reason” to request a departure in the alternative because their assessment differed from the Board’s risk assessment instrument (majority op at 213-214 n 4). That distinction is irrelevant to the question of whether the People must make their backup argument in advance of the trial court’s point determination. If a defendant has challenged a level based on points—whether the People and Board agree on the points—the defendant might prevail. That possibility should require the People to advance any other theory they may have that would justify the risk level they seek.

The majority is “skeptical” that the rules we deploy in civil and criminal cases—on the basis of their efficiency-enhancing functions—would have the same result in SORA cases because trial courts “might not” adjudicate an academic request for an upward departure (majority op at 213). Of course, courts in all other kinds of civil cases may refuse to adjudicate alternative claims as well (*see e.g. Nostrom v A.W. Chesterton Co.*, 15 NY3d 502, 509 [2010]; *Matter of Wittlinger v Wing*, 99 NY2d 425, 433 [2003]; *Restrepo v State of New York*, 179 AD2d 804, 804 [2d Dept 1992]; *Effective Communications W. v Board of Coop. Educ. Servs. of Sole Supervisory Dist. of Cattaraugus, Erie & Wyoming Counties*, 57 AD2d 485, 491 [4th Dept 1977]). On the other hand, civil courts—including SORA courts—often make alternate holdings to avoid inefficient remands (*see e.g. People v Shaw*, 204 AD3d 617, 617 [1st Dept 2022]; *U.S. Bank N.A. v Gordon*, 158 AD3d 832, 837 [2d Dept 2018]; *People v Varin*, 158 AD3d 1311, 1311 [4th Dept 2018], *lv denied* 31 NY3d 905 [2018]; *Havens*, 144 AD3d at 1633). The point of requiring litigants to file all their claims at once is that the alternative grounds will often not be academic and courts can avoid needless proceedings (*see e.g. People v Songster*, 207 AD3d 579, 582 [2d Dept 2022], *lv denied* 39 NY3d 904 [2022]; *People v Cortez-Moreno*, 215 AD3d 698, 699 [2d Dept 2023]).

Nothing about the underlying equities in the SORA context suggests that we should depart from common practice. The majority justifies SORA exceptionalism by stating that the “ultimate and ‘paramount concern’ of the SORA risk-level assessment is ‘an accurate determination of the risk a sex offender poses to the public’” (majority op at 216, quoting *People v Perez*, 35 NY3d 85, 94 [2020]). One could make an even stronger case for the paramount concern of a correct result in murder trials (*see e.g. People v Wilkins*, 65 NY2d 172, 180 [1985]; *People v Knapp*, 57 NY2d 161, 175 [1982]; *People v Travis*, 162 AD2d 807, 810 [3d Dept 1990]) or cases of wrongful imprisonment (*see e.g. People v Tiger*, 32 NY3d 91, 101 [2018] [refusing to allow a defendant to challenge her wrongful conviction in part because of the importance of “conserving judicial resources and providing finality in criminal proceedings”]).³ It is not clear why the People should be forgiven for failing to

3. *People v Kaval* does not “explain[]” anything about how or why we strike the balance we do in these cases (*see* majority op at 216 n 7). It simply asserts that two different type of criminal procedural vehicles for post-conviction relief are subject to different statutory structures and “implicate

(n. cont’d)

request an upward departure, especially when wrongfully confined sex offenders and victims of sexual assault are not afforded the same luxury (see e.g. *Michael M. v Cumiskey*, 178 AD3d 1457, 1458 [4th Dept 2019]; *Howe* 199 AD2d at 751-752 [denying recovery to a victim—after she was sexually assaulted by a village police officer abusing his official authority—because she only asserted negligent hiring and 42 USC § 1983 claims below and not vicarious liability]).

Putting aside the implications of its statement, the majority's characterization of SORA is inconsistent with SORA practice and jurisprudence. To start, we apply the *Havelka* line of cases to future SORA defendants when we criminally prosecute them for the underlying sex offenses that will trigger the SORA inquiry (see e.g. *People v Bouton*, 50 NY2d 130, 136 [1980]); it is not clear why we would care more about accuracy in determining someone's SORA risk level than we would in deciding whether or not the defendant qualifies for SORA at all, let alone whether a defendant qualifies for years of incarceration.

But even in the SORA context, we limit judicial review in the interest of finality and judicial economy, often at the expense of accuracy. In regularly applying our preservation doctrine to requests for downward departures, for instance, we implicitly prioritize efficiency over accuracy in SORA proceedings (see e.g. *Gillotti*, 23 NY3d at 861 n 5; *People v Johnson*, 11 NY3d 416, 418-421 [2008]; see also *People v Jackson*, 29 NY3d 18, 22 [2017] ["the (preservation) requirement is grounded in large part in the need to preserve limited judicial resources and avoid untoward delay in the resolution of . . . proceedings" (internal quotation marks omitted)]). We have refused to allow a defendant to employ the illegal sentence exception in the SORA context because doing so would be "impractical and unworkable" (see *Buyund*, 37 NY3d at 540). In this case, however, we decline to enforce our preservation doctrine because accuracy is too important.

different [unspecified] interests" (*People v Kaval*, 39 NY3d 1081, 1084 [2022]). I agree that the interest calculus for wrongful convictions and murder trials is different than the interest calculus for SORA sentences. The relative importance of accuracy is higher in the former, but persons wrongfully convicted because they failed to raise a potentially meritorious argument are not afforded the free do-over the majority grants here.

III.

The Appellate Division’s remittal also failed to comport with a basic rule of appellate procedure. Although it may have broad authority to act within its scope of review, the Appellate Division may not exceed its jurisdiction. It has jurisdiction to “review questions of law and questions of fact on an appeal from a[n] . . . order of a court of original instance” (CPLR 5501 [c] [emphasis added]). It may remit when “necessary or proper” (CPLR 5522 [a]), for instance to return a factual question to a jury (*Imbrey v Prudential Ins. Co.*, 286 NY 434, 441 [1941]) or supplement a record that is so unclear as to be unreviewable (*Matter of Emray Realty Corp. v Abrams*, 309 NY 888, 889 [1955]). It may not remit a case to allow a nonappealing party to raise an entirely new claim.

“[A]n appellate court’s scope of review with respect to an appellant . . . is generally limited to those parts of the judgment that have been appealed and that aggrieve the appealing party” (*Hecht v City of New York*, 60 NY2d 57, 61 [1983]). “Generally, the party who has successfully obtained a judgment or order in his favor is not aggrieved by it, and, consequently, has no . . . right to appeal” (*Parochial Bus Sys. v Board of Educ. of City of N.Y.*, 60 NY2d 539, 544 [1983]; *see also* CPLR 5511). We regularly refuse even to consider appeals by parties who are not properly aggrieved by the orders from which they appeal (*see e.g. Wu v Sabrina Balsky Interior Designs*, 39 NY3d 960, 961 [2022]; *Matter of Tariq S. v Ashlee B.*, 38 NY3d 1167, 1167 [2022]).

CPLR 5501 (a) (1) explicitly recognizes a limit on this otherwise harsh jurisdictional principle by allowing a fully successful respondent—who would otherwise be barred from appealing and getting relief—to bring up for review certain nonfinal judgments or orders “which w[ere] adverse to the respondent on appeal from the final judgment and which, if reversed, would entitle the respondent to prevail in whole or in part on that appeal.” As we explained in *Parochial Bus Sys.*, “[t]his rule permits a respondent to obtain review of a determination incorrectly rendered below where, otherwise, he might suffer a reversal of the final judgment or order upon some other ground” (60 NY2d at 545-546).

Because CPLR 5501 (a) (1) defines the scope of appellate court review as relevant in this case, it necessarily sets the contours of relief an appellate court may order. We considered

the issue most directly in *Hecht*, when we said that “CPLR 5522 . . . should be read in harmony with the statutory scheme which limits an appellate court’s authority to the grant of relief to those who have appealed” with limited exceptions (60 NY2d at 64). CPLR 5522 does not permit the Appellate Division to exceed the scope of its review. Granting “affirmative relief to a nonappealing party” typically expands the scope of appellate review and is therefore impermissible (see *Hain v Jamison*, 28 NY3d 524, 534 n 3 [2016]; *DiMichel v South Buffalo Ry. Co.*, 80 NY2d 184, 192 [1992]).

In this case, the People had no adverse determination from which to appeal. County Court granted the People all the relief they sought. Thus, neither CPLR 5501 (a) (1) nor CPLR 5522 (a) could help them. Had the People asked the SORA court for an upward departure in the alternative, it might have dismissed the request as academic based on the points determination and the People would have an adverse determination that would have been brought up for review by CPLR 5501 (a) (1) (see e.g. *Larkin*, 66 AD3d at 593). They declined to make any such request and the Appellate Division was therefore without power to grant them the affirmative relief of a new hearing (see *Bellevue S. Assoc. v HRH Constr. Corp.*, 78 NY2d 282, 299 n 5 [1991] [“Plaintiff asks that the verdict . . . be affirmed on an alternative ground . . . (P)laintiff’s present requests, which if meritorious would require reversal of the trial court’s rulings and a new trial, go beyond affirmance of the judgment and cannot be awarded to a nonappealing party”]). The majority’s holding renders a portion of CPLR 5501 (a) (1) superfluous: the rule requires the existence of an erroneously rendered nonfinal judgment to save a respondent from a loss on appeal (see CPLR 5501 [a] [1] [“including any . . . on that appeal”]), whereas the majority dispenses with that requirement entirely.

The majority evades the “fundamental[]” principle of our jurisprudence barring affirmative relief to nonappealing parties in most cases (*Nash v Port Auth. of N.Y. & N.J.*, 22 NY3d 220, 227 [2013, Graffeo, J., dissenting in part]) by explaining the Appellate Division’s remittal was “corrective action” (majority op at 211) that did not grant the People affirmative relief. In the majority’s telling, the Appellate Division’s immaculate correction was begat by neither party, benefitted neither party, and corrected nothing about County Court’s order.

In fact, the remittal’s origins and effect were quite quotidian. The People, not Mr. Weber, asked the Appellate Division for a

remittal, because they conceded that their points-based level-three determination was flawed and they needed a do-over to secure a level-three adjudication (*see* Black’s Law Dictionary 1544 [11th ed 2019] [defining relief as “(t)he redress or benefit . . . that a party asks of a court”]). Because it allowed them to win a new County Court order nullifying the previous one, the remittal affirmatively relieved the People of the burden of the now-reversed County Court decision, from which the People did not and could not appeal. The majority’s holding depends on its conclusion that remittal to permit the People to pursue a legal theory they could have pursued originally, but did not, grants the People no relief. I doubt even the People would subscribe to that proposition (and, indeed, it is not an argument made at any point in this litigation).

IV.

The majority opinion has a difficult job: it must rationalize a departure from universally applied civil procedure rules preventing do-overs on the basis of alternative grounds for relief that could have been asserted in the court of instance while denying that it has done so here. Our legal system derives its legitimacy in large part from its commitment to consistent rules—particularly those that constrain the decision-making of government officials wielding state power over individuals. Mr. Weber might wonder whether our rules have done so here.

Judges RIVERA, GARCIA, SINGAS and CANNATARO concur. Chief Judge WILSON dissents in an opinion. Judge TROUTMAN took no part.

Order appealed from and Appellate Division order brought up for review affirmed, without costs.

[219 NE3d 353, 196 NYS3d 713]

THE PEOPLE OF THE STATE OF NEW YORK ex rel. E.S., Respondent, v SUPERINTENDENT, LIVINGSTON CORRECTIONAL FACILITY, et al., Appellants.

Argued May 17, 2023; decided June 15, 2023

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered February 5, 2021. The Appellate Division order, insofar as appealed from, with two Justices dissenting, (1) reversed, on the law, a judgment of the Supreme Court, Livingston County (Robert B. Wiggins, A.J.), entered in a proceeding pursuant to CPLR article 70, which had denied the petition and dismissed the proceeding; (2) converted the habeas corpus proceeding to a CPLR article 78 proceeding in the nature of mandamus; and (3) granted the petition to the extent of annulling that part of the determination of respondent Board of Parole imposing upon petitioner the school grounds mandatory condition set forth in Executive Law § 259-c (14).

People ex rel. E.S. v Superintendent, Livingston Corr. Facility, 193 AD3d 57, reversed.

HEADNOTES

Appeal — Matters Reviewable — Exception to Mootness Doctrine — Application of Sexual Assault Reform Act's School Grounds Condition to Youthful Offenders

1. A CPLR article 70 proceeding in which petitioner asserted that as a youthful offender he was not subject to the Sexual Assault Reform Act's (SARA) school grounds condition (Executive Law § 259-c [14]) and was being held unlawfully in prison past his parole eligibility date, which had been converted to a CPLR article 78 proceeding by the Appellate Division, was converted to a declaratory judgment action by the Court of Appeals because petitioner had in fact reached the maximum expiration date of his sentence during the pendency of the Appellate Division appeal and was no longer subject to parole supervision. Although petitioner's appeal to the Appellate Division was rendered moot by the time it was decided, the issue whether SARA's school grounds condition applies to youthful offenders was substantial and novel, appeared likely to be repeated, and was capable of evading review given the relatively short indeterminate prison terms applicable to youthful offenders.

Crimes — Sex Offenders — Sexual Assault Reform Act — School Grounds Condition Applicable to Youthful Offenders

2. The Sexual Assault Reform Act's (SARA) mandatory restriction prohibiting a person who is "serving a sentence" for an enumerated offense against a

minor victim and is released on parole from coming within 1,000 feet of school grounds (Executive Law § 259-c [14]) applies to youthful offenders. The plain language of the provision, along with numerous other statutory references to the “sentence” that a youthful offender serves, foreclosed the interpretation that a youthful offender is not “serving a sentence” for purposes of section 259-c (14). Importing the Criminal Procedure Law’s definition of “sentence” to exclude youthful offenders from SARA’s school grounds condition would render incoherent portions of Executive Law § 259-c and the repeated statutory references to the “sentence” imposed on a youthful offender. Critically, if the term “sentence” does not include youthful offenders, there would be no express statutory authorization to release them on parole at all (Executive Law § 259-c [1]). Given the repeated use of the term “sentence” in the youthful offender statutes and the use of that same term in Executive Law § 259-c (1) and (14), it could not be concluded that the legislature thought youthful offenders do not serve a “sentence,” or meant to exclude youthful offenders from the school grounds condition on this basis.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Appellate Review § 558; AM JUR 2d Mentally Impaired Persons § 134.

CARMODY-WAIT 2d Appeals to the Court of Appeals § 71:95; CARMODY-WAIT 2d Juvenile, Adolescent, and Youthful Offenders § 206:55; CARMODY-WAIT 2d Appeals in Criminal Cases § 207:156.

McKINNEY’S, Executive Law § 259-c (1), (14).

NY JUR 2d Appellate Review § 614; NY JUR 2d Criminal Law: Procedure §§ 1846, 1856; NY JUR 2d Penal and Correctional Institutions §§ 323, 340.

ANNOTATION REFERENCE

See ALR Index under Appeal and Error; Juvenile Courts and Delinquent Children; Moot and Abstract Matters; Sex Offender Registration and Notification.

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POINTS OF COUNSEL

Letitia James, Attorney General, Albany (Jonathan D. Hit-sous, Barbara D. Underwood and Andrea Oser of counsel), for appellants. I. This Court should consider the merits of the appeal under the exception to the mootness doctrine. (Matter of Gonzalez v Annucci, 32 NY3d 461; Matter of State of New York

v Robert F., 25 NY3d 448; *People v Murphy*, 94 AD2d 673; *People v Kocik*, 63 AD2d 230; *Matter of State of New York v Dennis K.*, 27 NY3d 718; *People ex rel. Johnson v Superintendent, Adirondack Corr. Facility*, 36 NY3d 187; *People ex rel. McCurdy v Warden, Westchester County Corr. Facility*, 36 NY3d 251; *Matter of Hearst Corp. v Clyne*, 50 NY2d 707; *People v Turner*, 5 NY3d 476.) II. The school-grounds prohibition is a mandatory condition of community supervision for youthful offenders who are serving sentences for enumerated offenses involving underage victims. (*People ex rel. Negron v Superintendent, Woodbourne Corr. Facility*, 36 NY3d 32; *People v Jorge D.*, 109 AD3d 16; *People v Thompson*, 26 NY3d 678; *Sega v State of New York*, 60 NY2d 183; *Matter of Anonymous v Molik*, 32 NY3d 30; *Matter of Town of New Castle v Kaufmann*, 72 NY2d 684; *Uniformed Firefighters Assn., Local 94, IAFF, AFL-CIO v Beekman*, 52 NY2d 463; *Matter of Alvarez v Annucci*, 38 NY3d 974; *Matter of Westinghouse Elec. Corp. v Tully*, 63 NY2d 191; *Ali v Federal Bureau of Prisons*, 552 US 214.)

Twyla Carter, The Legal Aid Society, New York City (*Marquetta Christy* of counsel), for respondent. I. Because E.S. is no longer subject to parole supervision, this Court has no jurisdiction to entertain the New York State Board of Parole's appeal. (*Saratoga County Chamber of Commerce v Pataki*, 100 NY2d 801; *Cuomo v Long Is. Light. Co.*, 71 NY2d 349; *Matter of Johnson v Pataki*, 91 NY2d 214; *New York Pub. Interest Research Group v Carey*, 42 NY2d 527; *Coleman v Daines*, 19 NY3d 1087; *Matter of Anonymous v New York City Health & Hosps. Corp.*, 70 NY2d 972; *Davis v Ayala*, 576 US 257; *Campbell-Ewald Co. v Gomez*, 577 US 153; *City of New York v Maul*, 14 NY3d 499; *Matter of Grand Jury Subpoenas for Locals 17, 135, 257 & 608 of United Bhd. of Carpenters & Joiners of Am., AFL-CIO*, 72 NY2d 307.) II. The Sexual Assault Reform Act's reference to a "sentence" unambiguously excludes youthful offenders from the ambit of that legislation. (*People v Rudolph*, 21 NY3d 497; *People v Floyd J.*, 61 NY2d 895; *People v McEachern*, 145 AD3d 741; *People v Jorge D.*, 109 AD3d 16; *People v Middlebrooks*, 25 NY3d 516; *People v Drayton*, 39 NY2d 580; *People v Tychanski*, 78 NY2d 909; *Cabalceta v Standard Fruit Co.*, 883 F2d 1553; *Kimmel v State of New York*, 29 NY3d 386; *Kuzmich v 50 Murray St. Acquisition LLC*, 34 NY3d 84.) III. The outcome would not change if this Court were instead to find the language of the Sexual Assault Reform Act to be ambiguous. (*Bender v Jamaica Hosp.*, 40 NY2d 560; *Graham County Soil & Water Conservation Dist. v United*

States ex rel. Wilson, 545 US 409; *Frank v Meadowlakes Dev. Corp.*, 6 NY3d 687; *New York State Psychiatric Assn., Inc. v New York State Dept. of Health*, 19 NY3d 17; *Roberts v Sea-Land Services, Inc.*, 566 US 93; *United States v Jefferson Elec. Mfg. Co.*, 291 US 386; *Easley v New York State Thruway Auth.*, 1 NY2d 374; *B & F Bldg. Corp. v Liebig*, 76 NY2d 689; *Wachovia Bank, N. A. v Schmidt*, 546 US 303; *People v Wallace*, 31 NY3d 503.)

OPINION OF THE COURT

HALLIGAN, J.

The Sexual Assault Reform Act (SARA) imposes a mandatory restriction prohibiting a person who is “serving a sentence” for an enumerated offense against a minor victim and is released on parole from coming within 1,000 feet of school grounds (*see* Executive Law § 259-c [14]; L 2000, ch 1). The question presented in this appeal is whether that restriction applies to youthful offenders. We hold that it does.

Petitioner pleaded guilty to the attempted second-degree rape of a 13-year-old victim (*see* Penal Law §§ 130.30 [1]; 110.00). Petitioner was 18 years old at the time of the offense and was adjudicated a youthful offender (*see* CPL 720.20 [3]). He was initially sentenced to a 10-year period of probation, but after violating the terms of his probation, he was resentenced to an indeterminate term of imprisonment. The Board of Parole granted petitioner an open date (that is, the earliest possible release date) of August 2018, subject to numerous conditions of release. As relevant here, petitioner was required to abide by SARA’s school grounds condition and thus would not be released until he identified a SARA-compliant residence. Unable to obtain suitable housing, petitioner remained imprisoned.

In March 2019, petitioner brought this CPLR article 70 habeas corpus proceeding. He asserted that as a youthful offender, he was not subject to SARA’s school grounds condition and thus was unlawfully being held in prison past his parole eligibility date. Supreme Court denied the petition and dismissed the proceeding, holding that section 259-c (14), by its plain language, applied to any individual “serving a sentence” for an enumerated offense, including a youthful offender.

[1] The Appellate Division reversed, with two Justices dissenting (193 AD3d 57 [4th Dept 2021]).* The Court held that while the statutory language at issue appeared to cover youthful offenders, nothing in SARA’s legislative history indicated an intent to impose the school grounds condition on youthful offenders. The dissent noted the majority’s concession that petitioner fell within the literal language of section 259-c (14) and took issue with the view that applying the plain language would defeat the legislative intent underlying the youthful offender scheme (*see* 193 AD3d at 64-65).

Respondents—the Superintendent of the Livingston Correctional Facility and the New York State Board of Parole—appealed as of right pursuant to CPLR 5601 (a), based on the two-Justice dissent. We now reverse.

SARA was enacted in 2000 and includes a mandatory school grounds condition imposed on the parole or conditional release of a particular group of offenders. Specifically, as relevant here, Executive Law § 259-c (14) provides that,

“notwithstanding any other provision of law to the contrary, where a person *serving a sentence* for an [enumerated] offense . . . and the victim of such offense was under the age of eighteen at the time of such offense . . . is released on parole . . . the board shall require, as a mandatory condition of such release, that such sentenced offender shall refrain from knowingly entering into or upon any school grounds, as that term is defined in [Penal Law § 220.00 (14)]” (emphasis added).

This provision, in tandem with the Penal Law definition of “[s]chool grounds,” means that an individual subject to SARA’s

* [1] Upon being informed at oral argument that petitioner had been released from custody to SARA-compliant housing, the Appellate Division converted the habeas proceeding to a CPLR article 78 proceeding “because th[e] appeal concern[ed] a condition of petitioner’s release to parole” (*see* 193 AD3d at 59). In fact, petitioner had reached the maximum expiration date of his sentence during the pendency of the Appellate Division appeal and was no longer subject to conditions of parole supervision, rendering that appeal moot by the time it was decided. However, the issue presented is substantial and novel, appears likely to be repeated, and is capable of evading review given the relatively short indeterminate prison terms applicable to youthful offenders (*see* CPL 720.20 [1] [a]; Penal Law §§ 60.02 [2]; 70.00; *Matter of Hearst Corp. v Clyne*, 50 NY2d 707, 714-715 [1980]). Accordingly, the proceeding should be converted to a declaratory judgment action (*see People ex rel. Johnson v Superintendent, Adirondack Corr. Facility*, 36 NY3d 187, 196 [2020]).

school grounds condition may not knowingly come within 1,000 feet of school property (*see* Penal Law § 220.00 [14]; *People v Diack*, 24 NY3d 674, 682 [2015]).

[2] There is no dispute that petitioner committed an enumerated sex offense against a minor victim. Petitioner argues that as a youthful offender, he is nonetheless exempt from SARA because a youthful offender is not “serving a sentence” for purposes of section 259-c (14). The plain language of this provision, along with numerous other statutory references to the “sentence” that a youthful offender serves, forecloses this interpretation.

“It is fundamental that a court, in interpreting a statute, should attempt to effectuate the intent of the Legislature” (*Patrolmen’s Benevolent Assn. of City of N.Y. v City of New York*, 41 NY2d 205, 208 [1976]). “As the clearest indicator of legislative intent is the statutory text, the starting point in any case of interpretation must always be the language [of the statute] itself, giving effect to the plain meaning thereof” (*Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 583 [1998]). “The ‘literal language of a statute’ is generally controlling unless ‘the plain intent and purpose . . . would otherwise be defeated,’ ” or “ ‘where a literal construction would lead to absurd or unreasonable consequences that are contrary to the purpose of the [statute’s] enactment’ ” (*Matter of Anonymous v Molik*, 32 NY3d 30, 37 [2018] [citation omitted]). Here, we cannot say that the literal construction of section 259-c (14) leads to absurd or unreasonable consequences.

Petitioner’s reading of section 259-c (14) to exclude youthful offenders rests on other provisions in the youthful offender statutes and the Criminal Procedure Law. Petitioner notes that when an eligible youth is adjudicated a youthful offender, the conviction is “deemed vacated and replaced by a youthful offender finding” (CPL 720.20 [3]). That finding, along with the “youthful offender sentence,” comprises the youthful offender adjudication (CPL 720.10 [6]). In line with the legislature’s goal of shielding youthful offenders from many of the consequences of an adult criminal conviction, the youthful offender statute instructs that “[a] youthful offender adjudication is not a judgment of conviction for a crime or any other offense” (CPL 720.35 [1]). Separately, the Criminal Procedure Law defines a “sentence” as “the imposition and entry of sentence upon a conviction” (CPL 1.20 [14]). Drawing from these provisions, petitioner contends that because there is no conviction under

CPL 720.35 (1), there can be no “sentence” under CPL 1.20 (14), and thus a youthful offender is not “serving a sentence” for purposes of section 259-c (14).

Critically, this reading cannot be squared with the plain language of section 259-c. Section 259-c (1) authorizes the Board of Parole to determine when and under what conditions “incarcerated individuals serving an indeterminate . . . sentence of imprisonment may be released on parole.” If the term “sentence” does not include youthful offenders, there would be no express statutory authorization to release them on parole at all—a result that would be unduly harsh and irreconcilable with the goal of facilitating a “fresh start” for youthful offenders (*see generally People v Rudolph*, 21 NY3d 497, 501 [2013]).

Nor can petitioner’s interpretation be reconciled with numerous references to “sentence” in the youthful offender statutes. For example, a “youthful offender adjudication” is deemed “completed by imposition and entry of the youthful offender sentence” (CPL 720.10 [6]; *see also* 720.20 [1] [“at the time of pronouncing sentence the court must determine whether or not the eligible youth is a youthful offender”]). A “[y]outhful offender sentence” is defined as “the sentence imposed upon a youthful offender finding” (CPL 720.10 [5]). When an underlying conviction is “deemed vacated and replaced by a youthful offender finding . . . the court must sentence the defendant pursuant to section 60.02 of the penal law” (CPL 720.20 [3]). Section 60.02, in turn, uses the term “sentence” 11 times in setting forth the parameters of how a person is to be sentenced pursuant to a youthful offender finding (*see* Penal Law § 70.00 [2] [e]; [3] [b]; *see also* § 65.00 [3]). Given the repeated use of the term “sentence” in relation to youthful offenders and the use of that same term in section 259-c (1) and (14), we cannot conclude that the legislature thought youthful offenders do not serve a “sentence,” or meant to exclude youthful offenders from the school grounds condition on this basis.

To be sure, we have on occasion imported a definition from the Criminal Procedure Law to give meaning to terms in other statutes, and petitioner asks us to do that here. “[W]here the same word or group of words is used in . . . different statutes, if the acts are similar in intent and character the same meaning may be attached to them” (*People v Duggins*, 3 NY3d 522, 528 [2004], quoting McKinney’s Cons Laws of NY, Book 1, Statutes § 236 at 401-402 [1971 ed]; *see also People v Montilla*,

10 NY3d 663, 668 [2008] [importing CPL definition of “conviction” to the Penal Law]; *Matter of Gunning v Codd*, 49 NY2d 495, 499-500 [1980] [importing CPL definition of “conviction” to the Public Officers Law]).

Not only are there meaningful differences between the character and purposes of the CPL and those of the Executive Law, but importing the CPL’s definition of “sentence” into section 259-c (14) would render incoherent the portions of section 259-c noted above and the repeated statutory references to the “sentence” imposed on a youthful offender. This is “sound reason” enough to differentiate between the provisions (*see Gunning*, 49 NY2d at 498; McKinney’s Cons Laws of NY, Book 1, Statutes § 236, Comment [any presumption that the same meaning attaches to a word used in different statutes “may be rebutted by the surrounding circumstances and other indications of legislative intent”]).

The legislative history of CPL 1.20 (14) is consistent with our conclusion. It indicates that the term “sentence” was defined in order to clarify the “uncertain meaning” of the term “conviction” and to distinguish between a “conviction,” a “sentence,” and a “judgment” for purposes of appellate and postconviction review (*see* Staff Comment of Temp St Commn on Rev of Penal Law & Crim Code, 1967 Proposed NY CPL 1.20 at 26-27). The legislative history suggests no similar intent to establish a single controlling meaning for the term “sentence” across other statutory provisions (*see id.*).

Petitioner also argues that applying the mandatory school grounds condition to youthful offenders eligible for parole would be inconsistent with the legislature’s decision to exempt from that condition those youthful offenders sentenced to probation or a conditional discharge. But that different treatment arises because section 259-c (14), which imposes the school grounds condition on parole-eligible offenders, and Penal Law § 65.10 (4-a), which does the same for those sentenced to probation or conditional discharge, use different triggering language (*compare* Executive Law § 259-c [14] [applying condition to a person “serving a sentence”], *with* Penal Law § 65.10 [4-a] [applying condition to individuals “convicted of” an enumerated offense]). Given that these provisions were enacted at the same time (L 2000, ch 1) but use different language, we presume the two phrases have different meanings (*see* McKinney’s Cons Laws of NY, Book 1, Statutes § 236, Comment [when “the Legislature uses unlike terms in different parts of a

statute it is reasonable to infer that a dissimilar meaning is intended”]; *Batavia Townhouses, Ltd. v Council of Churches Hous. Dev. Fund Co., Inc.*, 38 NY3d 467, 474 [2022]). Moreover, the legislature reasonably could have elected to relieve youthful offenders subject to probation from the mandatory condition, while not doing so for those subject to imprisonment. Offenders who receive a probationary sentence will presumably pose less risk to the community as compared to those whose offenses warrant incarceration, given the factors a court may consider when imposing sentence (see Penal Law §§ 70.80 [2]; 1.05).

Along similar lines, petitioner argues that SARA’s school grounds condition should be read coextensively with the Sex Offender Registration Act (SORA). SORA applies to “[s]ex offender[s]” who are “convicted of” an enumerated sex offense (Correction Law § 168-a [1]), and a youthful offender has no “conviction” pursuant to CPL 720.20 (3). But the legislature employed different language in section 259-c (14), applying the school grounds condition to all persons “serving a sentence” for an enumerated offense. While SARA’s legislative history does not directly address the reason for imposing a school grounds condition but not registration and notification requirements on youthful offenders, imposing the latter would be incompatible with the goal of shielding youthful offenders from the stigma of a criminal record and affording them an opportunity for a new beginning (see *Rudolph*, 21 NY3d at 501; see also *People v Drayton*, 39 NY2d 580, 584 [1976] [the youthful offender statutes reflect “a legislative desire not to stigmatize youths between the ages of 16 and 19 with criminal records triggered by hasty or thoughtless acts which, although crimes, may not have been the serious deeds of hardened criminals”]).

The Appellate Division acknowledged that section 259-c (14) applies to youthful offenders on its face. That Court nevertheless took the view that giving effect to SARA’s literal terms would not further SARA’s legislative intent and would be inconsistent with the objectives of the youthful offender statutes. On those latter points, we disagree. The purpose of the school grounds condition is to bar offenders who pose the “highest risk to children” from entering school grounds (*People ex rel. Negron v Superintendent, Woodbourne Corr. Facility*, 36 NY3d 32, 38 [2020]). Certainly, someone accorded youthful offender status can fall into this category. While we appreciate that the consequences of imposing the school grounds condition may be

severe, the legislature has authorized the imposition of other long-term consequences, such as a lengthy probationary term, on youthful offenders (*see People v Teri W.*, 31 NY3d 124 [2018]). And once the youthful offender serves their sentence, the school grounds condition is lifted and the youthful offender will receive the “fresh start” provided to them by statute (*id.* at 129).

Accordingly, the order of the Appellate Division, insofar as appealed from, should be reversed, without costs, the proceeding converted to a declaratory judgment action and judgment granted in accordance with this opinion.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO and TROUTMAN concur.

Order insofar as appealed from reversed, without costs, proceeding converted to a declaratory judgment action and judgment granted in accordance with the opinion herein.

[220 NE3d 621, 197 NYS3d 694]

LUKASZ GOTTWALD, Professionally Known as Dr. LUKE, et al.,
Plaintiffs/Counterclaim Defendants-Respondents, v KESHA
ROSE SEBERT, Professionally Known as KESHA, Defendant/
Counterclaim Plaintiff-Appellant, et al., Defendants.

LUKASZ GOTTWALD, Professionally Known as Dr. LUKE, et al.,
Respondents, v KESHA ROSE SEBERT, Professionally Known
as KESHA, Appellant, et al., Defendants.

Argued April 18, 2023; decided June 13, 2023

SUMMARY

APPEAL, in the first above-entitled action, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered March 10, 2022. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, New York County (Jennifer G. Schechter, J.), which had granted defendant's motion for a ruling that Civil Rights Law § 76-a applied to plaintiffs' defamation claims against her and for leave to assert a counterclaim against plaintiffs under Civil Rights Law § 70-a; and (2) denied the motion. The following question was certified by the Appellate Division: "Was the order of this Court, which reversed the order of Supreme Court, properly made?"

APPEAL, in the second above-entitled action, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered April 22, 2021. The Appellate Division affirmed, to the extent appealed from, two orders of the Supreme Court, New York County (Jennifer G. Schechter, J.; op 2020 NY Slip Op 30347[U] [2020]), which, upon the parties' cross-motions for summary judgment, had (1) determined, in connection with plaintiffs' defamation claims, that plaintiff Lukasz Gottwald was not a general or limited public figure and that plaintiffs need not prove by clear and convincing evidence actual malice or "gross irresponsibility" on defendant's part; that defendant's lawyer and press agent acted as her agents for purposes of the action; that none of the alleged defamatory statements constituted hyperbole or nonactionable opinion; and that defendant's text message to Lady Gaga was defamatory per se; and (2) upon a search of the record, dismissed defendant's breach-of-contract affirmative defense based on the implied covenant of good faith and fair dealing. The following question was certified by the

Appellate Division: “Was the order of this Court, which, to the extent appealed from, affirmed the orders of the Supreme Court, New York County, entered on or about February 6, 2020, properly made?”

Gottwald v Sebert, 203 AD3d 488, reversed.

Gottwald v Sebert, 193 AD3d 573, modified.

HEADNOTES

Libel and Slander — Public Figure — Music Producer’s Purposefully Seeking Media Attention to Advance Business Interests

1. In plaintiff music producer’s defamation action based upon statements by defendant recording artist alleging that plaintiff sexually assaulted her shortly after signing a record deal through one of plaintiff’s companies, plaintiff was appropriately considered a limited-purpose public figure such that he was required to prove by clear and convincing evidence that defendant’s allegedly defamatory statements were made with actual malice. A person becomes a limited-purpose public figure through some purposeful activity by which the individual has thrust himself into the public spotlight and sought a continuing public interest in their activities. In that case, an otherwise private individual may properly be considered a public personality. When plaintiff initiated the defamation action, he was an acclaimed music producer who had achieved enormous success in a high-profile career. Plaintiff’s engagement with the media was obviously designed to project his name and personality before a wide audience to establish his reputation in the field. He purposefully sought media attention for himself, his businesses, and for the artists he represented, including defendant, to advance those business interests. He had been featured in various publications, as well as on radio and television, highlighting the nature of his relationships with those artists and his development of their talent and careers.

Libel and Slander — Privilege — Absolute Litigation Privilege

2. In plaintiff music producer’s defamation action based upon statements by defendant recording artist alleging that plaintiff sexually assaulted her shortly after signing a record deal through one of plaintiff’s companies, certain alleged defamatory statements relating to defendant’s New York counterclaims and her California action seeking to void her contract were protected by the absolute litigation privilege. Absolute immunity from liability for defamation exists for oral or written statements made by attorneys in connection with a proceeding before a court when such words and writings are material and pertinent to the questions involved. The statements defendant claimed were covered by the absolute litigation privilege related to the California complaint, the counterclaims in the New York action, and an affidavit in support of her motion for a preliminary injunction. Each of those statements was made during the course of a judicial proceeding and each was material and pertinent to the questions involved in the California and New York actions. Because the statements fell squarely within the purview of the absolute litigation privilege, they could not serve as the basis for the imposition of liability in a defamation action.

Libel and Slander — Privilege — Good-Faith Litigation and Fair Report Privileges

3. In plaintiff music producer’s defamation action based upon statements by defendant recording artist alleging that plaintiff sexually assaulted her

shortly after signing a record deal through one of plaintiff's companies, certain statements relating to defendant's New York counterclaims and her California action seeking to void her contract were not protected by Civil Rights Law § 74 or the good-faith litigation privilege, where issues of fact existed as to whether the counterclaims and California action were brought in good faith. The good-faith litigation privilege is qualified, meaning that it may be lost only where it is proved that the statements were not pertinent to a good-faith anticipated litigation. With respect to a draft version of the California complaint presented during settlement negotiations and a copy sent to a tabloid news organization shortly before its filing, there was an issue of fact for the jury as to whether the California suit was at that stage good-faith anticipated litigation. Moreover, the fair report privilege applies to "the publication of a fair and true report of any judicial proceeding" (Civil Rights Law § 74) where the substance of the statement is substantially accurate. Excluded from the privilege's coverage are statements made by those who maliciously institute a judicial proceeding alleging false and defamatory charges. Here, there was a question of fact as to whether the litigation in California and counterclaims in New York were brought by defendant in good faith or maliciously to defame plaintiff producer and pressure plaintiffs to release her from her contracts.

Statutes — Retroactive Application of Statute — Amendments to Anti-Strategic Lawsuit against Public Participation Statute

4. The amendments to New York's anti-strategic lawsuits against public participation statute (Civil Rights Law §§ 76-a, 70-a) permitting defendants in such actions to maintain counterclaims for damages applied prospectively in plaintiff music producer's pending action alleging that statements made by defendant recording artist accusing plaintiff of sexual assault were defamatory, such that defendant could recover costs, attorney's fees and damages under Civil Rights Law § 70-a based on plaintiff's continuation of the action following the amendment's effective date. The language chosen makes clear that the intended application of Civil Rights Law § 70-a is prospective. There is no retroactive effect when its provisions are applied, according to their terms, to the continuation of the action beyond the effective date of the amendments. To the extent that defendant's statements constituted public petition and participation, and if a factfinder determined that she met the other relevant statutory conditions, plaintiff's continuation of his suit beyond the effective date of the amendments would entitle defendant to recover damages. Because plaintiff's liability attached, if at all, when he chose to continue the defamation suit after the effective date of the statute, any potential calculation of attorney's fees or other damages began at the statute's effective date.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Libel and Slander §§ 70, 74–76, 100–101, 257–261, 280–282, 285–287, 294, 298; AM JUR 2d Pleading § 380.

CARMODY-WAIT 2d Complaints in Particular Actions § 29:257; CARMODY-WAIT 2d The Answer § 30:85.

DOBBS LAW OF TORTS (2d ed) §§ 538–539, 544, 548, 555, 560–561.

McKINNEY's, Civil Rights Law §§ 70-a; 74; 76-a.
NY JUR 2d Defamation and Privacy §§ 100–102, 117, 119,
121, 133, 135–136, 142–143, 150, 155, 159, 204–206; NY
JUR 2d Statutes § 226.
NEW YORK LAW OF TORTS §§ 1:47, 1:50–1:50.1.

ANNOTATION REFERENCE

Relevancy of matter contained in pleading as affecting
privilege within law of libel. 38 ALR3d 272.

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POINTS OF COUNSEL

O'Melveny & Myers LLP, New York City (*Anton Metlitsky* and *Leah Godesky* of counsel) and Los Angeles, California (*Daniel M. Petrocelli*, admitted pro hac vice, of counsel), for appellant/counterclaim plaintiff-appellant in the first above-entitled action. I. The 2020 act was remedial and thus presumptively retroactive. (*Nelson v HSBC Bank USA*, 87 AD3d 995; *Matter of Hynson [American Motors Sales Corp.—Chrysler Corp.]*, 164 AD2d 41; *Landgraf v USI Film Products*, 511 US 244; *People v Dyshawn B.*, 196 AD3d 638; *People v Duggins*, 192 AD3d 191; *Matter of Town of Greece [Uniformed Patrolmen's Assn. of the Greece Police Dept.]*, 147 AD3d 1382.) II. The 2020 act's drafting history, text, and context unmistakably demonstrate the Legislature's intent to apply the act retroactively to pending cases. (*Matter of Grand Jury Subpoena Duces Tecum Served on Museum of Modern Art*, 93 NY2d 729; *People v Korkala*, 99 AD2d 161; *Matter of Duell v Condon*, 84 NY2d 773; *Becker v Huss Co.*, 43 NY2d 527; *Brothers v Florence*, 95 NY2d 290.) III. In all events, the amended Civil Rights Law § 70-a unambiguously applies to this case, which Dr. Luke has “continued” both before and after the 2020 act's effective date. (*Reus v ETC Hous. Corp.*, 203 AD3d 1281.)

Mitchell Silberberg & Knupp LLP, New York City (*Christine Lepera*, *Jeffrey M. Movit* and *Bradley J. Mullins* of counsel), for respondents/counterclaim defendants-respondents in the first above-entitled action. I. This Court's standard for assessing retroactivity is that the presumption against retroactivity can

only be overcome by express prescription or necessary implication. (*Landgraf v USI Film Products*, 511 US 244; *People v Oliver*, 1 NY2d 152; *Brothers v Florence*, 95 NY2d 290.) II. There are no indications, either express or by necessary implication, that the 2020 amendments were intended to operate retroactively. (*People ex rel. Emigrant Indus. Sav. Bank v Sexton*, 284 NY 57; *Becker v Huss Co.*, 43 NY2d 527; *Martino v HV News, LLC*, 114 AD3d 913; *Matter of Miller*, 110 NY 216; *Murphy v Board of Educ. of N. Bellmore Union Free School Dist.*, 104 AD2d 796, 64 NY2d 856; *Aguaiza v Vantage Props., LLC*, 69 AD3d 422; *Weiler v Dry Dock Sav. Inst.*, 258 App Div 581, 284 NY 630; *Dalziel v Rosenfeld*, 265 NY 76; *Matter of Kuryak v Adamczyk*, 265 AD2d 796; *Matter of Duell v Condon*, 84 NY2d 773.) III. The First Department correctly held that the mere colloquial classification of a statute as “remedial” is not determinative. (*Plaut v Spendthrift Farm, Inc.*, 514 US 211; *Rivers v Roadway Express, Inc.*, 511 US 298; *People v Dyshaw B.*, 196 AD3d 638; *People v Duggins*, 192 AD3d 191; *CTS Corp. v Waldburger*, 573 US 1; *Matter of Asman v Ambach*, 64 NY2d 989; *Shielcrawt v Moffett*, 294 NY 180; *Fumarelli v Marsam Dev.*, 92 NY2d 298; *Jacobus v Colgate*, 217 NY 235; *Matter of Deutsch v Catherwood*, 31 NY2d 487.) IV. Retroactive application of the 2020 amendments would violate due process. (*Matter of Chrysler Props. v Morris*, 23 NY2d 515; *James Sq. Assoc. LP v Mullen*, 21 NY3d 233; *Matter of Lacidem Realty Corp. v Graves*, 288 NY 354.) V. Civil Rights Law § 70-a does not apply to this litigation. (*Shielcrawt v Moffett*, 294 NY 180; *Reus v ETC Hous. Corp.*, 72 Misc 3d 479; *Clemente v Impastato*, 290 AD2d 864; *Riley v County of Broome*, 95 NY2d 455; *Waterways at Bay Pointe Homeowners Assn., Inc. v Waterways Dev. Corp.*, 132 AD3d 975; *Matter of Related Props., Inc. v Town Bd. of Town/Vil. of Harrison*, 22 AD3d 587; *Beninati Roofing & Sheet Metal Co. v Gelco Bldrs.*, 279 AD2d 412; *Hartley v Eagle Ins. Co. of London, England*, 222 NY 178.)

Steptoe & Johnson LLP, New York City (Joseph M. Sander-son, Nicholas Peterson and María Esperanza Ortiz of counsel) and San Francisco, California (Stephanie Sheridan, admitted pro hac vice, of counsel), and *Legal Momentum*, New York City (Jennifer M. Becker and Dorea Kyra Batté of counsel), for Legal Momentum and others, amici curiae in the first above-entitled action. I. Abusers are increasingly turning courts into instruments of abuse. (*Sagaille v Carrega*, 194 AD3d 92.) II. The Legislature acted to redress use of the courts as instruments of abuse. (*Nelson v HSBC Bank USA*, 87 AD3d 995; *Matter of*

Gleason [Michael Vee, Ltd.], 96 NY2d 117; *Coleman v Grand*, 523 F Supp 3d 244; *Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal*, 35 NY3d 332; *People v Dyshawn B.*, 196 AD3d 638.) III. Civil Rights Law § 70-a expressly applies to *pending* meritless suits—unambiguously indicating the Legislature’s intent. (*Patrolmen’s Benevolent Assn. of City of N.Y. v City of New York*, 41 NY2d 205.) IV. The motion to dismiss and summary judgment amendments govern procedural matters, and thus apply to pending cases. (*Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577.)

Carter Ledyard & Milburn LLP, New York City (Alan S. Lewis of counsel), for Samuel D. Isaly, amicus curiae in the first above-entitled action. I. The amendments to the anti-SLAPP act cannot be applied to lawsuits pending before their effective date. (*Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal*, 35 NY3d 332; *Matter of State of New York v Parker*, 38 AD2d 542; *Coffman v Coffman*, 60 AD2d 181; *Aguaiza v Vantage Props., LLC*, 69 AD3d 422; *Matter of Gleason [Michael Vee, Ltd.]*, 96 NY2d 117; *Matter of Jaquan L. [Pearl L.]*, 179 AD3d 457; *Matter of Asman v Ambach*, 64 NY2d 989; *Matter of Cady v County of Broome*, 87 AD2d 964; *Nelson v HSBC Bank USA*, 87 AD3d 995.) II. Even if the Court holds that the anti-SLAPP revisions apply to cases pending at the time of their enactment, those revisions cannot be used to invalidate a complaint sufficient under the standards in force at the time it was filed. (*Matter of Berkovitz v Arbib & Houlberg, Inc.*, 230 NY 261; *Phoenix Garden Rest. v Chu*, 245 AD2d 164; *Ruffolo v Garbarini & Scher*, 239 AD2d 8; *Charbonneau v State of New York*, 148 Misc 2d 891; *Wade v Byung Yang Kim*, 250 AD2d 323; *Landgraf v USI Film Products*, 511 US 244.)

Davis Wright Tremaine LLP, New York City (Katherine M. Bolger and Amanda B. Levine of counsel), for Advance Publications, Inc. and others, amici curiae in the first above-entitled action. I. The anti-SLAPP statute protects important interests for media organizations. (*Ernst v Carrigan*, 814 F3d 116; *Karaduman v Newsday, Inc.*, 51 NY2d 531; *600 W. 115th St. Corp. v Von Gutfeld*, 80 NY2d 130; *Freeze Right Refrig. & A.C. Servs. v City of New York*, 101 AD2d 175.) II. Depriving media organizations of the anti-SLAPP statute’s protections—even for only a subset of cases—would impinge on First Amendment rights. (*Elrod v Burns*, 427 US 347; *Uhlfelder v Weinshall*, 10 Misc 3d

151, 47 AD3d 169.) III. Courts in other states have applied anti-SLAPP statutes in the manner requested by appellant. (*Nguyen v County of Clark*, 732 F Supp 2d 1190.)

Baker & Hostetler LLP, New York City (*Katherine L. McKnight* of counsel), and *Bailen Law*, New York City (*Mark I. Bailen* and *A. Mackenna White* of counsel), for *María Kim Grand*, amicus curiae in the first above-entitled action. I. To apply the November 2020 amendments here would not be retroactive. (*Kaiser Aluminum & Chemical Corp. v Bonjorno*, 494 US 827; *Covino v Reopel*, 89 F3d 105; *Combs v Commissioner of Social Sec.*, 459 F3d 640; *Bruner v United States*, 343 US 112; *Hallowell v Commons*, 239 US 506; *Bradley v School Bd. of Richmond*, 416 US 696; *Republic Nat. Bank of Miami v United States*, 506 US 80; *Matter of Boardwalk & Seashore Corp. v Murdock*, 286 NY 494; *Matter of Civil Serv. Bar Assn., Local 237 v City of New York*, 99 AD2d 264, 64 NY2d 188; *Matter of Hodes v Axelrod*, 70 NY2d 364.) II. If necessary, the 2020 amendments should be afforded retroactive effect to effectuate their remedial purpose. (*Matter of Gleason [Michael Vee, Ltd.]*, 96 NY2d 117; *Nelson v HSBC Bank USA*, 87 AD3d 995; *In re MDL-731 Tax Refund Litig. of Organizers & Promoters of Inv. Plans Involving Book Proprs. Leasing*, 989 F2d 1290; *Reeve Aleutian Airways, Inc. v United States*, 982 F2d 594; *Archer v Equitable Life Assur. Socy. of U. S.*, 218 NY 18; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *Matter of OnBank & Trust Co.*, 90 NY2d 725.)

O'Melveny & Myers LLP, New York City (*Anton Metlitsky*, *Leah Godesky* and *Yaira Dubin* of counsel) and Los Angeles, California (*Daniel M. Petrocelli*, admitted pro hac vice, of counsel), for appellant in the second above-entitled action. I. More than two dozen of Kesha's or her attorneys' statements are protected from defamation liability by the common-law litigation privilege and related privileges. (*Rosenberg v MetLife, Inc.*, 8 NY3d 359; *Wiener v Weintraub*, 22 NY2d 330; *Front, Inc. v Khalil*, 24 NY3d 713; *Toker v Pollak*, 44 NY2d 211; *Flomenhaft v Finkelstein*, 127 AD3d 634; *Moore v Manufacturers' Natl. Bank of Troy*, 123 NY 420.) II. Dr. Luke is a public figure. (*Gertz v Robert Welch, Inc.*, 418 US 323; *Time, Inc. v Johnston*, 448 F2d 378; *Wolston v Reader's Digest Assn., Inc.*, 443 US 157; *James v Gannett Co.*, 40 NY2d 415; *Bell v Associated Press*, 584 F Supp 128; *Maule v NYM Corp.*, 54 NY2d 880; *Waldbaum v Fairchild Publs., Inc.*, 627 F2d 1287; *Kipper v NYP Holdings Co., Inc.*, 12 NY3d 348; *Winklevoss v Steinberg*,

170 AD3d 618; *Manzari v Associated Newspapers Ltd.*, 830 F3d 881.)

Mitchell Silberberg & Knupp LLP, New York City (*Christine Lepera, Jeffrey M. Movit and Bradley J. Mullins* of counsel), for respondents in the second above-entitled action. I. The courts below correctly and unanimously found questions of fact precluding application of any litigation-related privilege as a matter of law. (*Bingham v New York City Tr. Auth.*, 99 NY2d 355; *Matter of Salino v Cimino*, 1 NY3d 166; *People v McCullum*, 34 NY3d 1022; *Matter of DeLee v Brunetti*, 158 AD3d 1171; *Brennin v Perales*, 163 AD2d 560; *Halcyon Jets, Inc. v Jet One Group, Inc.*, 69 AD3d 534; *Reszka v Collins*, 136 AD3d 1299; *Hughes Training, Inc., Link Div. v Pegasus Real-Time*, 255 AD2d 729; *Ulrich v Hausfeld*, 269 AD2d 526; *Friedman v Bloomberg L.P.*, 884 F3d 83.) II. The courts below correctly held Lukasz Gottwald was not a public figure. (*People v Rossi*, 24 NY3d 968; *Krauss v Globe Intl.*, 251 AD2d 191; *New York Times Co. v Sullivan*, 376 US 254; *Curtis Publishing Co. v Butts*, 388 US 130; *Rosenbloom v Metromedia, Inc.*, 403 US 29; *Gertz v Robert Welch, Inc.*, 418 US 323; *Waldbaum v Fairchild Publs., Inc.*, 627 F2d 1287; *James v Gannett Co.*, 40 NY2d 415; *O'Neil v Peekskill Faculty Assn.*, 120 AD2d 36.)

Carter Ledyard & Milburn LLP, New York City (*Alan S. Lewis and John J. Walsh* of counsel), for Samuel D. Isaly, amicus curiae in the second above-entitled action. I. Lukasz Gottwald is not an all-purpose public figure. (*Krauss v Globe Intl.*, 251 AD2d 191; *Fairley v Peekskill Star Corp.*, 83 AD2d 294; *Rosenblatt v Baer*, 383 US 75; *Hotchner v Castillo-Puche*, 404 F Supp 1041; *Gertz v Robert Welch, Inc.*, 471 F2d 801; *Waldbaum v Fairchild Publs., Inc.*, 627 F2d 1287; *Horowitz v Mannoia*, 10 Misc 3d 467; *Farrakhan v N.Y.P. Holdings*, 168 Misc 2d 536; *Lerman v Flynt Distrib. Co., Inc.*, 745 F2d 123; *Tavoulareas v Piro*, 817 F2d 762.) II. Lukasz Gottwald is not a limited-purpose public figure. (*Blue Ridge Bank v Veribanc, Inc.*, 866 F2d 681; *Arctic Co., Ltd. v Loudoun Times Mirror*, 624 F2d 518; *Golden Bear Distrib. Sys. of Tex., Inc. v Chase Revel, Inc.*, 708 F2d 944; *Bruno & Stillman, Inc. v Globe Newspaper Co.*, 633 F2d 583; *Computer Aid, Inc. v Hewlett-Packard Co.*, 56 F Supp 2d 526; *Medure v Vindicator Print. Co.*, 273 F Supp 2d 588; *Lawlor v Gallagher Presidents' Report, Inc.*, 394 F Supp 721; *Snead v Redland Aggregates Ltd.*, 998 F2d 1325; *Lundell Mfg. Co., Inc. v American Broadcasting Cos., Inc.*, 98 F3d 351; *Huggins v Moore*, 94 NY2d 296.)

Latham & Watkins LLP, New York City (*Samir Deger-Sen*, *Michael Bosworth*, *Mateo de la Torre* and *Lydia Franzek* of counsel), and *National Women's Law Center*, Washington, D.C. (*Emily Martin*, *Sunu P. Chandy* and *Elizabeth Tang* of counsel), for National Women's Law Center and others, amici curiae in the second above-entitled action. I. Fear of retaliation deters survivors from reporting sexual abuse. II. The "sham" exception will encourage retaliatory lawsuits and deter survivors from using the legal system to hold their abusers accountable. III. The First Department's exception is particularly harmful because of its broad conception of what constitutes "sham" litigation. (*Deborah S. v Diorio*, 153 Misc 2d 708.)

Holwell Shuster & Goldberg LLP, New York City (*Eileen Monaghan DeLucia*, *Brian T. Goldman* and *Prishika Raj* of counsel), and *First Amendment Clinic*, *UCLA School of Law*, Los Angeles, California (*Eugene Volokh*, admitted pro hac vice, of counsel), for The Reporters Committee for Freedom of the Press and others, amici curiae in the second above-entitled action. I. Dr. Luke is a general-purpose public figure under precedents from this Court, the Second Circuit, and the Appellate Division. (*Maule v NYM Corp.*, 54 NY2d 880; *Celle v Filipino Reporter Enters. Inc.*, 209 F3d 163; *Winklevoss v Steinberg*, 170 AD3d 618; *Wilsey v Saratoga Harness Racing*, 140 AD2d 857.) II. Dr. Luke is at least a limited-purpose public figure. (*Alcor Life Extension Found. v Johnson*, 136 AD3d 464; *Daniel Goldreyer, Ltd. v Dow Jones & Co.*, 259 AD2d 353; *Jankovic v International Crisis Group*, 822 F3d 576; *Tavoulareas v Piro*, 817 F2d 762; *Waldbaum v Fairchild Pubs., Inc.*, 627 F2d 1287; *Foretich v Advance Mag. Pubs., Inc.*, 765 F Supp 1099; *Lerman v Flynt Distrib. Co., Inc.*, 745 F2d 123; *Bell v Associated Press*, 584 F Supp 128; *Wells v Liddy*, 186 F3d 505; *Rosanova v Playboy Enters., Inc.*, 580 F2d 859.)

OPINION OF THE COURT

GARCIA, J.

Plaintiff in this defamation suit, *Lukasz Gottwald* (*Gottwald*), is a music producer known as "Dr. Luke." Defendant *Kesha Rose Sebert* (*Sebert*) is a singer and songwriter known as "Kesha." Sebert signed a recording contract with one of Gottwald's companies in 2005 and the arrangement produced several successful albums. However, in 2014, Sebert sought to

void her contractual arrangement with Gottwald by filing an action in California, alleging that Gottwald raped her shortly after she signed the original recording deal. In response, Gottwald brought this action in New York alleging that statements made by Sebert and her agents with respect to the alleged sexual assault were defamatory. We hold that Gottwald is a limited public figure who must prove by clear and convincing evidence that Sebert acted with actual malice; that five of the allegedly defamatory statements are privileged as a matter of law while the issue of privilege as to the remaining 20 statements must be resolved by a jury; and that certain provisions of the 2020 amendments to Civil Rights Law §§ 76-a and 70-a apply to this action.

I.

Gottwald, in addition to being a music producer, also owns several companies, including plaintiffs Kasz Money, Inc. (KMI) and Prescription Songs, LLC. In 2005, Gottwald signed Sebert, an aspiring singer and songwriter, to a record deal through KMI. Sebert alleges that a short time later Gottwald raped her—an allegation he has denied. Through her representatives, Sebert subsequently attempted to gain her release from the KMI agreement based on the alleged sexual assault. Those efforts were unsuccessful. Instead, in 2008, the parties amended the KMI agreement and entered into separate publishing and recording agreements. In 2010, Gottwald and KMI released two commercially successful albums with Sebert, and in 2012, Gottwald and Sebert released a third album through another of Gottwald's record labels.

By 2012, however, Sebert sought to renegotiate the terms of her agreements with Gottwald but attempts to settle the dispute were once more unsuccessful. Sebert then commenced an action against Gottwald and his various companies in California, alleging that Gottwald had raped her in 2005 and seeking damages as well as an injunction voiding her contracts with plaintiffs. Gottwald filed this action in Supreme Court, New York County, that same day. The operative complaint pleads two counts of defamation against Sebert. The first asserts that she acted with malice in making false statements regarding the alleged rape. The second count is based on a

statement made by Sebert alleging Gottwald raped another female recording artist.¹

The California court granted Gottwald's motion for a stay of that action, while Sebert filed counterclaims here based on the same allegations contained in her California complaint. She then moved in Supreme Court for a preliminary injunction asking the court to enjoin Gottwald and his companies from interfering with her attempts to work with others and to prevent them from enforcing any contractual exclusivity and ownership provisions. The court denied the injunction. In 2016, Supreme Court granted Gottwald's motion to dismiss Sebert's counterclaims as, *inter alia*, time-barred and outside Supreme Court's subject matter jurisdiction (2016 NY Slip Op 32815[U] [Sup Ct, NY County 2016]). Sebert appealed the denial of the injunction and dismissal of her counterclaims but later withdrew both appeals and voluntarily dismissed her California action.²

After completing discovery, the parties cross-moved for summary judgment. As relevant here, Sebert argued that Gottwald is a public figure and can recover for defamation only upon proof that the alleged defamatory statements were made with actual malice, and that 25 of those statements cannot serve as the basis for liability in any event because they are privileged. Supreme Court granted partial summary judgment in favor of Gottwald and denied Sebert's motion (2020 NY Slip Op 30347[U], *12-13 [Sup Ct, NY County 2020]). Sebert appealed.

In 2020, while that appeal was pending, the Legislature amended a 1992 statute designed to protect certain individuals who face targeted litigation for their participation in public affairs, *i.e.*, Strategic Lawsuits Against Public Participation (SLAPP suits). The 1992 law—New York's anti-SLAPP statute (L 1992, ch 767)—is codified in Civil Rights Law § 76-a and § 70-a. Sebert moved in Supreme Court for a ruling that the 2020 amendments to the anti-SLAPP statute apply to this action and for leave to assert a counterclaim for attorney's fees, damages for emotional distress, and punitive damages, as permitted by the amended statute. That court agreed, holding that the amendments applied retroactively to pending claims

1. That artist denied any sexual assault by Gottwald and the Appellate Division determined that the statement was defamatory *per se* (*see* 193 AD3d 573, 581 [1st Dept 2021]).

2. None of Sebert's original counterclaims in this action survive.

and granting Sebert leave to file a counterclaim. Gottwald appealed that decision.

The Appellate Division, in two separate opinions, reversed on the application of the anti-SLAPP statute, holding that the amendments were not retroactive and so did not apply to this litigation, and affirmed Supreme Court's holding that Gottwald was not a public figure and that issues of fact precluded the grant of summary judgment on certain defamatory statements (203 AD3d 488 [1st Dept 2022]; 193 AD3d 573 [1st Dept 2021]). The respective panels granted Sebert leave to appeal, certifying in each case the question of whether the orders were properly made. We answer each question in the negative.

II.

We first consider whether Gottwald is a public figure such that he must prove the allegedly defamatory statements were made with "actual malice" (see *Huggins v Moore*, 94 NY2d 296, 301 [1999]). If subject to that standard, Gottwald would be required to prove by clear and convincing evidence that each statement was made "with either knowledge that it was false or reckless disregard for the truth" (*id.*; see also *New York Times Co. v Sullivan*, 376 US 254, 279-280 [1964]). This actual malice standard need not apply to private figures (see *Wolston v Reader's Digest Assn., Inc.*, 443 US 157, 164 [1979]); rather, "the States may define for themselves the appropriate standard of liability" for those individuals (*Gertz v Robert Welch, Inc.*, 418 US 323, 347 [1974]). In New York, the accepted standard for private figures is negligence (see *Krauss v Globe Intl.*, 251 AD2d 191, 194 [1st Dept 1998]; see also *Kesner v Buhl*, 590 F Supp 3d 680, 692 [SD NY 2022]).

[1] "The category of public figures is of necessity quite broad" (*James v Gannett Co.*, 40 NY2d 415, 422 [1976] [internal quotation marks omitted]). At the same time, public figure status "is a matter of degree" (*id.* at 423). Certain individuals may be considered public figures for all purposes while others "may invite publicity only with respect to a narrow area of interest" and may fairly be considered public figures only where the alleged defamation relates to the publicity they sought (*id.*). One becomes such a limited-purpose public figure through some "purposeful activity," by which the individual has "thrust" themselves "into the public spotlight and sought a continuing public interest in [their] activities" (*id.* at 423; see also *Maule v NYM Corp.*, 54 NY2d 880 [1981]). In that case, an otherwise private

individual may properly be considered “a public personality” (*id.*; see *Kipper v NYP Holdings Co., Inc.*, 12 NY3d 348, 353 n 3 [2009]). We agree with the dissent below that Gottwald meets this standard and is a limited-purpose public figure (193 AD3d at 585 [Scarpulla, J., dissenting in part] [Gottwald “purposefully and continuously publicized and promoted his business relationships with young, female music artists, like (Sebert), to continue to attract publicity for himself and new talent for his label”]).

By 2014, when Gottwald initiated this defamation action, he was, by his own account, a celebrity—an acclaimed music producer who had achieved enormous success in a high-profile career. As self-described in the complaint, he “has written the most Number One songs of any songwriter ever” and “was named by Billboard as one of the top ten producers of the decade in 2009.” Gottwald’s engagement with the media was “obviously designed to project his name and personality” before a wide audience to establish his reputation in this field (see *Maule*, 54 NY2d at 882). He purposefully sought media attention for himself, his businesses, and for the artists he represented, including Sebert, to advance those business interests (see *James*, 40 NY2d at 423). He had been featured in various publications, as well as on radio and television, highlighting the nature of his relationships with those artists and his development of their talent and careers. Sebert alleged that, shortly after establishing a professional relationship as her producer, Gottwald sexually assaulted her. Therefore, Gottwald is appropriately considered a limited-purpose public figure, and as a result he must prove that Sebert’s allegedly defamatory statements were made with actual malice.

III.

Sebert identifies 25 allegedly defamatory statements that she contends cannot serve as the basis for liability because they are protected by one or more of three privileges: the litigation privilege, the pre-litigation privilege, and the statutory fair report privilege under Civil Rights Law § 74. Supreme Court denied summary judgment on the privileged statements, reasoning that “sharply disputed questions of fact going to the heart of the case about whether [Sebert’s] California complaint was brought in good faith . . . or whether it was a ‘sham’ intended to defame and pressure plaintiffs” require that the privilege issues be decided by a jury (2020 NY Slip Op

30347[U], *22-23). The Appellate Division agreed with Supreme Court that issues of fact regarding whether the litigation was brought in good faith precluded summary judgment on the application of any privilege. The Court explained that the jury could conclude that Sebert “commenced that action . . . to pressure Gottwald into renegotiating her contracts or to release her from her contracts” and that there was record support for Gottwald’s allegations that Sebert’s action was a sham (193 AD3d at 580). We agree that questions of fact exist as to the application of the pre-litigation and fair report privileges—those issues must go to a jury—but disagree as to application of the absolute litigation privilege.

[2] In general, “[a] privileged communication is one which, but for the occasion on which it is uttered, would be defamatory and actionable” (*Park Knoll Assoc. v Schmidt*, 59 NY2d 205, 208 [1983]). “The privilege may be either absolute or conditional depending on the occasion and the position or status of the speaker” (*id.* at 208-209). This Court has long held that “absolute immunity from liability for defamation exists for oral or written statements made by attorneys in connection with a proceeding before a court ‘when such words and writings are material and pertinent to the questions involved’” (*Front, Inc. v Khalil*, 24 NY3d 713, 718 [2015], quoting *Youmans v Smith*, 153 NY 214, 219 [1897]). The litigation privilege, being absolute, “confers immunity from liability regardless of motive” (*Park Knoll Assoc.*, 59 NY2d at 209).

In its analysis of the applicability of the absolute privilege, the Appellate Division relied upon a line of cases holding that this privilege may be “lost if abused” in certain circumstances (*Halperin v Salvan*, 117 AD2d 544, 548 [1st Dept 1986]), for example, if the underlying action was brought with malice (see *Lacher v Engel*, 33 AD3d 10, 14 [1st Dept 2006]). Accordingly, that Court held that the privilege “will not be conferred where the underlying lawsuit was a sham action brought solely to defame the defendant” (193 AD3d at 580, quoting *Flomenhaft v Finkelstein*, 127 AD3d 634, 638 [1st Dept 2015], citing *Lacher*, 33 AD3d 10). This was error.

A “sham exception” is inconsistent with the absolute privilege recognized by this Court for statements made in connection with judicial proceedings. It is well-established that “[i]n questions falling within the absolute privilege the question of malice has no place” (*Moore v Manufacturers’ Natl. Bank of Troy*, 123 NY 420, 426 [1890]). The five statements Sebert

claims are covered by the absolute litigation privilege relate to the California complaint, the counterclaims in the New York action, and an affidavit in support of her motion for a preliminary injunction. Each of these statements was made during the course of a judicial proceeding and each is “material and pertinent to the questions involved” in the California and New York actions (*Front*, 24 NY3d at 718, citing *Youmans*, 153 NY at 219). Because these five statements fall squarely within the purview of the absolute litigation privilege, they “cannot serve as the basis for the imposition of liability in a defamation action” (*Rosenberg v MetLife, Inc.*, 8 NY3d 359, 365 [2007], quoting *Toker v Pollak*, 44 NY2d 211, 218 [1978]).

Sebert asserts that two of the remaining statements are protected by a separate pre-litigation privilege: a draft version of the California complaint sent by Sebert’s representatives to the general counsel of Sony Music Entertainment (which owned one of Gottwald’s companies that had a contract with Kesha) during settlement negotiations; and an embargoed copy of the California complaint sent by Sebert’s representatives to a tabloid news organization shortly before it was filed.

[3] Generally, statements made in anticipation of good-faith litigation are privileged, given that “[c]ommunication during this pre-litigation phase should be encouraged and not chilled by the possibility of being the basis for a defamation suit” (*Front*, 24 NY3d at 719). In *Front*, however, we “recognize[d] that extending privileged status to communication made prior to anticipated litigation has the potential to be abused” and that “applying an absolute privilege to statements made during a phase prior to litigation would be problematic and unnecessary to advance the goals of encouraging communication prior to the commencement of litigation” (*id.*). The privilege is therefore qualified, meaning that it may be “lost” only “where a defendant proves that the statements were not pertinent to a good faith anticipated litigation” (*id.* at 720). This is the “logical basis to distinguish” (dissenting op at 273-274) between this qualified pre-litigation privilege and the absolute litigation privilege.³ Here, as the courts below held, there is an issue of fact for the jury as to whether the California suit was at this stage “good faith anticipated litigation.”

3. It is the good faith of the anticipated litigation that is determinative, not the audience (dissenting op at 272-274). Nor is it relevant that a statement was made “one day prior” to filing of the action (*id.* at 273-274) or that it contained the “contents” of a future complaint (*id.* at 274 n 9):

(n. cont’d)

Sebert claims that 19 other statements fall under the protection offered by Civil Rights Law § 74, known as the fair report privilege. These statements are that same embargoed complaint as well as 18 additional statements including, among other things, statements made by Sebert and her representatives regarding the rape allegations in a “Press Plan” distributed to numerous media outlets, on a podcast, in television and magazine interviews, in a press release, and on various social media outlets.

The statutory privilege applies to “the publication of a fair and true report of any judicial proceeding” (Civil Rights Law § 74) where “the substance of the [statement is] substantially accurate” (*Holy Spirit Assn. for Unification of World Christianity v New York Times Co.*, 49 NY2d 63, 67 [1979]). This Court has excluded from the privilege’s coverage statements made by those who “maliciously institute a judicial proceeding alleging false and defamatory charges” (*Williams v Williams*, 23 NY2d 592, 599 [1969]).⁴ We disagree with the dissent’s view that *Williams* is limited to “the filing of a false complaint by a principal of a company against a former principal who then sent a letter with a copy of the summons and complaint to ‘interested parties . . . engaged in the same trade’” (dissenting op at 275, quoting *Williams*, 23 NY2d at 606 [Fuld, Ch. J., dissenting in part]). Rather, it is an admittedly narrow qualification to the statutory privilege, applicable in this case, where there is a question of fact as to whether the litigation in California and counterclaims in New York were brought by Sebert in good faith or maliciously to defame Gottwald and pressure plaintiffs to release her from her contracts. Regarding the 19 statements purportedly covered by the statutory privilege, that is a question appropriately left for the jury.

IV.

Finally, we address whether the 2020 amendments to the anti-SLAPP statute apply to this litigation. As enacted in 1992, the anti-SLAPP statute was “designed to protect citizens who

communications made in anticipation of litigation are, by definition, subject to the qualified “pre-litigation” privilege.

4. As we noted in *Williams*, this limitation on the privilege is not “intended to restrict in any manner the reporting of news stories and other reports which are made in the public interest” (23 NY2d at 599). Rather, it applies only to those who are shown to have “maliciously institute[d]” a proceeding (*id.*).

participate in public affairs,” namely those relating to applications requiring government approval, against retaliatory lawsuits (Assembly Mem in Support, Bill Jacket, L 1992, ch 767 at 8). As relevant here, former Civil Rights Law § 76-a (1) (a) provided:

“An ‘action involving public petition and participation’ is an action, claim, cross claim or counterclaim for damages that is brought by a public applicant or permittee, and is materially related to any efforts of the defendant to report on, comment on, rule on, challenge or oppose such application or permission.”

The statute defined an “action involving public petition and participation” narrowly to include only claims “brought by a public applicant or permittee,” further defined as “any person who has applied for or obtained a permit, zoning change, lease, license, certificate or other entitlement for use or permission to act from any government body, or any person with an interest, connection or affiliation with such person that is materially related to such application or permission” (Civil Rights Law former § 76-a [1] [a], [b] [1992]). Claims covered by the statute required proof of actual malice by clear and convincing evidence (Civil Rights Law former § 76-a [2]). Defendants in a SLAPP suit were entitled to a counterclaim and, if successful, could potentially recover costs, attorney’s fees, and damages (Civil Rights Law former § 70-a [1] [a], [b], [c] [1992]).

The legislature enacted the 2020 amendments to “extend the protection” of the 1992 statute to a broader class of individuals (Assembly Mem in Support, Bill Jacket, L 2020, ch 250 at 5). Those amendments substantially expanded the definition of an “action involving public petition and participation” to include

“a claim based upon:

“(1) any communication in a place open to the public or a public forum in connection with an issue of public interest; or

“(2) any other lawful conduct in furtherance of the exercise of the constitutional right of free speech in connection with an issue of public interest, or in furtherance of the exercise of the constitutional right of petition” (Civil Rights Law § 76-a [1] [a] [1], [2] [2020]).

The term “‘[p]ublic interest’ shall be construed broadly, and shall mean any subject other than a purely private matter” (Civil Rights Law § 76-a [1] [d]).

The amendments altered the remedy offered by section 70-a for defendants falling within the purview of the amended section 76-a. That section empowers defendants to “maintain an action, claim, cross claim or counterclaim to recover damages, including costs and attorney’s fees, from any person who commenced or continued such action” (Civil Rights Law § 70-a [1]). The award of costs and attorney’s fees to defendants was made mandatory rather than a matter of discretion (Civil Rights Law § 70-a [1] [a]). Sections providing for the discretionary award of compensatory and punitive damages were not amended but have far broader application given the expanded scope of the relevant definitions (Civil Rights Law § 70-a [1] [b], [c]).

Sebert asserts that the broadened definition of public petition and participation in section 76-a applies to this action and establishes the governing standard for liability. However, because we now hold that Gottwald is a limited public figure who must prove by clear and convincing evidence that the allegedly defamatory statements were made with actual malice, we do not address whether the provision of the amended statute (Civil Rights Law § 76-a [2]) imposing that standard applies to actions pending at the time of its enactment.

Sebert further contends that she may now assert a counterclaim for damages and attorney’s fees under section 70-a. After conducting a retroactivity analysis, Supreme Court agreed and granted Sebert leave to amend her answer to assert a section 70-a counterclaim, holding that the 2020 amendments should “apply to pending cases” because of the legislation’s “important purpose” in amending the statute and that application to pending cases would not violate Gottwald’s due process rights.

The Appellate Division reversed, holding that “there is insufficient evidence supporting the conclusion that the legislature intended” the amendments “to apply retroactively to pending claims” (203 AD3d at 488). The Court determined that “the presumption of prospective application” had not been overcome given that “[t]he legislature did not specify that the new legislation was to be applied retroactively” and that “[t]he legislature acted to broaden the scope of the law almost 30 years after the law was originally enacted, purportedly to advance an underlying remedial purpose that was not adequately addressed in the

original legislative language” (*id.* at 489). Because the court held that the amendments did not apply to actions pending at the time the amendments were enacted, it denied Sebert’s motion for leave to assert a counterclaim pursuant to section 70-a.

“[R]etroactive operation is not favored by courts and statutes will not be given such construction unless the language expressly or by necessary implication requires it” (*Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 584 [1998]). This approach reflects a “deeply rooted presumption against retroactivity . . . based on elementary considerations of fairness” (*Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal*, 35 NY3d 332, 370 [2020] [citation, internal quotation marks, and alterations omitted]). But “[a] statute does not operate ‘retrospectively’ merely because it is applied in a case arising from conduct antedating the statute’s enactment” (*Landgraf v USI Film Products*, 511 US 244, 269 [1994]).

[4] Here, the legislature did not “expressly prescribe[] the statute’s proper reach” and therefore we must apply the “judicial default rules” in assessing retroactivity (*id.* at 280). Pursuant to these rules, we look to the text of the statute to determine whether it was intended to have retroactive effect (*id.*). The language chosen here makes clear that the intended application is prospective. A counterclaim may be maintained against any person who “commenced or continued” an action involving public participation (Civil Rights Law § 70-a [1]; *see* Civil Rights Law § 76-a). Similar language is found in the provision providing for costs and attorney’s fees, where the action was “commenced or continued without a substantial basis in fact and law and could not be supported by a substantial argument for the extension, modification or reversal of existing law” (Civil Rights Law § 70-a [1] [a]). “[O]ther compensatory damages” and punitive damages are recoverable “upon an additional demonstration” that the action was “commenced or continued for the purpose [or, with respect to punitive damages, for the ‘sole purpose’] of harassing, intimidating, punishing or otherwise maliciously inhibiting the free exercise of speech, petition or association rights” (Civil Rights Law § 70-a [1] [b], [c]). There is no retroactive effect when these provisions are applied, according to their terms, to the continuation of the action beyond the effective date of the amendments. To the extent that Sebert’s statements constitute public petition and participation, and should a factfinder determine that she meets

the other relevant statutory conditions, Gottwald's continuation of his suit beyond the effective date of the amendments entitles Sebert to recover damages. Because Gottwald's liability attached, if at all, when he chose to continue the defamation suit after the effective date of the statute, any potential calculation of attorney's fees or other damages begins at the statute's effective date (*see Landgraf*, 511 US at 281-283; *see also id.* at 275 n 29).

Sebert, and our dissenting colleague (*see* dissenting op at 263-270), would find legislative intent to calculate fees and damages from the commencement, rather than the continuation, of the suit. But "it takes a clear expression of the legislative purpose . . . to justify a retroactive application of a statute" (*Regina*, 35 NY3d at 370 [citation, internal quotation marks, and alterations omitted]). Here, we do not find anything approaching the required expression of clear legislative intent. While the statute directs that it "shall take effect immediately" (L 2020, ch 250, § 4), we have previously held that, for purposes of determining retroactive application, "the meaning of [that] phrase is equivocal" and is not "enough to require application to pending litigation" (*Becker v Huss Co.*, 43 NY2d 527, 541 [1978]; *see also Majewski*, 91 NY2d at 583; *Landgraf*, 511 US at 257). Nor is there anything in the amended statute requiring retroactive application "by necessary implication" (*Majewski*, 91 NY2d at 584). As to the dissent's suggestion that the statute is "remedial," a statute imposing damages is not "the sort of 'remedial' change that should presumptively apply in pending cases" (*Landgraf*, 511 US at 285 n 37; *see Regina*, 35 NY3d at 365).

Sebert argues that the fact that express language providing that the statute "shall apply to actions *commenced* on or after" the statute's effective date was removed during the drafting process clearly indicates the legislature's intent that the amendments apply retroactively. This is not the effect of that change. Had that language been included, application to pending litigation—whether retroactive or not—would have been barred by the express terms of the statute. Instead, as enacted, the amendments apply to pending cases insofar as they have been continued after the effective date. The dissent's reliance on this history to support a finding of retroactive intent is misplaced (dissenting op at 266-267). In *Majewski*, evidence that removal in the drafting process of a provision that the statute would apply to "lawsuits that have neither been settled nor

reduced to judgment” could, we noted, be considered “evidence . . . consistent with the strong presumption of prospective application” (91 NY2d at 587 [emphasis and brackets omitted]). It is not evidence sufficient to overcome that strong presumption.

Moreover, this is not a case where the legislative history indicates that “the purpose of new legislation is to clarify what the law was always meant to say and do” (*id.* at 585) or to “correct” an overly “narrow[]” interpretation by the courts (dissenting op at 265). Rather, the legislature intended the amendments to greatly expand the limited coverage offered by the original anti-SLAPP statute (see *Landgraf*, 511 US at 252-253 [amendment “significantly expand(ed) the monetary relief potentially available” under prior law]). Accordingly, the strong presumption against retroactive legislation has not been overcome with respect to the amendments to the anti-SLAPP statute.

Application of the amendments to Gottwald’s post-effective date continuation of the action does not “upset[] reliance interests” or “trigger[] fundamental concerns about fairness” (*Regina*, 35 NY3d at 365). Although the “[r]etroactive imposition of punitive damages” raises constitutional concerns, those concerns become relevant only if the statute “explicitly authorized punitive damages for preenactment conduct” (*Landgraf*, 511 US at 281). Similarly, the imposition of compensatory damages is problematic only if it penalizes conduct predating the statute (*id.* at 281-282). Our interpretation of the application of the fees and damages provisions does not implicate these concerns (see *id.* at 267 n 21 [“In some cases . . . the interest in avoiding the adjudication of constitutional questions will counsel against a retroactive application”]).⁵ As applied here, Sebert may assert a counterclaim under Civil Rights Law § 70-a and, if successful, recover costs, attorney’s fees, and damages based on Gottwald’s continuation of this action following the amendment’s effective date.

Accordingly, in *Gottwald v Sebert I*, the order of the Appellate Division should be reversed, with costs, Sebert’s motion to amend her answer to assert a counterclaim pursuant to Civil Rights Law § 70-a granted, and the certified question answered in the negative. In *Gottwald v Sebert II*, the order of the Appel-

5. It is unclear whether the dissent would authorize such constitutionally suspect punitive damages for pre-enactment conduct (see dissenting op at 269-270, 269 n 6).

late Division should be modified, without costs, in accordance with this opinion, as so modified affirmed, and the certified question answered in the negative.

RIVERA, J. (dissenting in part). The underlying litigation presents two counter-narratives. In one, a popular singer alleges she was raped and then exploited for years by a successful music producer who refused to free her from her lucrative recording and publication contracts. In the other, the music producer claims the singer defamed him and his companies with false claims of sexual abuse and harassment when he did not agree to more favorable business terms. These are familiar counter-narratives reflecting the power dynamic between a powerful mentor and an up-and-coming mentee, but they have taken on a new resonance in an era of increased public awareness of sexual abuse at the workplace. Assuming the parties do not settle, a jury eventually must decide which version to believe and to what extent. Our task here is to decide what legal standards govern the parties' respective claims.

I agree with several of the majority's conclusions but my analysis differs in certain important respects. First, I agree that respondents must establish malice to succeed on their defamation claims. For all but one claim, this is their statutory burden of proof under New York's Civil Rights Law—specifically the amended anti-SLAPP law—and, as the majority correctly holds, malice is also the standard applied to all the claims under established principles of defamation law. I also agree that the anti-SLAPP law's remedies apply to this pending action, but not as temporally limited by the majority. Lastly, I agree the alleged defamatory statements in a previously-filed complaint are privileged, but I cannot agree that there are outstanding factual issues regarding the remaining challenged statements. Based on our precedent and the intended purpose of the privileges asserted, I would hold that the pre-litigation privilege applies to an embargoed draft of the complaint sent to counsel for settlement purposes and to a tabloid the day before filing. Further, the statutory fair report privilege applies to all but two of the allegedly defamatory statements to the media.

I.

Respondents are Lukasz Gottwald, known professionally as "Dr. Luke," and his two affiliated companies. The moniker identifies him as the music producer of several pop hits which

have made him both a well-known and well-fixed personality—and not just within the music industry. For years he has actively promoted his success in the media, having appeared on a major television network and having been the subject of major stories in print and digital publications with extensive readership.¹ By any account, his public relations agents have done a masterful job.

Appellant Kesha Rose Sebert is the singer “Kesha,” who has several number one hits to her credit. Dr. Luke was instrumental to Kesha’s career,² developing an interest in her when she was 18 years old after a colleague gave him a CD recording of Kesha singing. Shortly thereafter, Dr. Luke and Kesha signed a six-album record deal and Kesha relocated to Los Angeles. The two collaborated on Kesha’s first album, which sold over two million copies and catapulted her to worldwide fame. Her follow-up extended play (EP) and second album enjoyed similar commercial success.

Respondents filed a defamation action against Kesha in New York state court based on claims associated with a California lawsuit she filed earlier that day against Dr. Luke, wherein she alleged that he drugged and raped her after a 2005 Hollywood party and verbally and emotionally abused her throughout their working relationship. Kesha sought rescission of her contracts and various damages. In respondents’ defamation action, Kesha asserted counterclaims of sexual assault and battery, sexual harassment, bias-related violence under New York Civil Rights Law § 79-n, gender-motivated violence under Administrative Code of the City of New York § 8-904, and intentional infliction of emotional distress. In support, Kesha contends that respondents’ defamation suit is subject to New York’s current anti-SLAPP law and thus requires that they show her statements were made with malicious intent, and that regardless, the same malice standard applies because Dr. Luke is a public figure. She further claims she may seek compensatory and punitive damages, attorney’s fees and costs as provided under the law should she succeed on her counter-

1. Dr. Luke was profiled in *The New Yorker*, which boasts a paid circulation of over 1.2 million, and *New York Magazine*, which has a readership of over 150,000 (Alliance for Audited Media, *Magazine Media—Snapshot Report* [Dec. 31, 2022], available at <https://abcas3.auditedmedia.com/ecirc/magtitlesearch.asp> [accessed May 8, 2023]).

2. I refer to both parties by the professional names for which they are famously known.

claims. Respondents counter that the law was amended in 2020 during the pendency of this defamation action and may not be applied retroactively to their claims, meaning that they need only show negligence and Kesha’s statutory counterclaims may not proceed.

For the reasons I discuss, the amended anti-SLAPP law applies to this pending action, and for the one claim outside the statute, respondents must establish malice because as a matter of common law Dr. Luke is a public figure for the limited purpose of this litigation.

II.

Generally, a court must apply “the law in effect at the time it renders its decision, unless doing so would result in manifest injustice or there is statutory direction or legislative history to the contrary” (*Bradley v School Bd. of Richmond*, 416 US 696, 711 [1974]; *see also Thorpe v Housing Authority of Durham*, 393 US 268 [1969]). Express language as to the operative effect of a statute is unnecessary absent these identified limiting grounds. Indeed, “[e]ven absent specific legislative authorization, application of new statutes passed after the events in suit is unquestionably proper in many situations” (*Landgraf v USI Film Products*, 511 US 244, 273 [1994]). Prospective application is only mandated where newly enacted statutory language would have the retroactive effect of impairing substantive rights and due process guarantees (*see id.* at 278-280). Here, the Legislature intended the amended anti-SLAPP law to apply to this pending litigation and doing so would not impair respondents’ substantive rights or otherwise be unfair.

A.

New York, like most states, has enacted an anti-SLAPP law—short for anti-Strategic Lawsuits Against Public Participation—to protect defendants against lawsuits based on protected speech.³ New York first enacted its version in 1992 and amended it in 2020. The relevant amendments clarified that the statute covered speech in connection “with an issue of public interest” and required that plaintiffs establish a defendant’s

3. Thirty-two other states have an anti-SLAPP law, approximately 20 of which are comparably broad to New York’s version (*see* Institute for Free Speech, *Updates to the Anti-SLAPP Report Card* [May 18, 2022], available at <https://www.ifs.org/blog/updates-to-the-anti-slapp-report-card/> [accessed June 5, 2023]).

malice in actions involving such speech (Civil Rights Law § 76-a), and recognized a defendant's claim for damages, attorney's fees and costs against a person instituting such action (*id.* § 70-a).

The amendments are remedial, and the Legislature specifically intended them to enhance protections for defendants and thereby minimize litigation that chills free speech (*see Matter of Asman v Ambach*, 64 NY2d 989, 991 [1985] ["amendments are to be viewed as remedial" where they are "designed to correct imperfections in prior law, by giving relief to an aggrieved party" (alterations omitted)]; *see also* Assembly Mem in Support, Bill Jacket, L 2020, ch 250 at 6 [explaining that the amendments will better protect SLAPP-suit defendants from the "threat of personal damages and litigation costs" associated with abusive litigation]). We must assume that the Legislature was aware of the well-established rule that remedial legislation applies to pending litigation "to effectuate its beneficial purpose" (*Matter of Gleason [Michael Vee, Ltd.]*, 96 NY2d 117, 122 [2001]).⁴

4. The majority is correct that a footnote in *Landgraf* acknowledged that the general presumption that remedial statutes should apply to pending cases might not apply to statutes "introducing damages liability" (511 US at 285 n 37; *see* majority op at 259). However, the footnote did not foreclose the application of newly modified remedies to pending cases. The Court quoted *Hastings v Earth Satellite Corp.* (628 F2d 85, 93 [DC Cir 1980]) for the proposition that "[r]etroactive modification of damages remedies may 'normally harbo[r] much less potential for mischief than retroactive changes in the principles of liability,' . . . but that potential is nevertheless still significant" (511 US at 285 n 37). Here, the amendments do not introduce a new remedy for past conduct, but simply modify an existing remedy, and the only question is whether that modification as applied to respondents' pending action works an unfairness and upsets prior expectations. In that vein, the Supreme Court's reference to *Hastings* is particularly apt. *Hastings* recognized the distinction between remedies and principles of liability with respect to the retroactive application of both, noting that, unlike "[r]etroactive creation of legal responsibilities or abolition of legal rights [which] risks unfairness because the retroactive change confounds the expectations upon which persons acted," "[r]etroactive modifications in remedy . . . do not involve the same degree of unfairness. Such modifications do not transform a legal act into an illegal act Modification of remedy merely adjusts the extent, or method of enforcement, of liability in instances in which the possibility of liability previously was known" (628 F2d at 93). That is precisely the effect of section 70-a, which adjusts the extent of liability already known to any plaintiff who files a frivolous lawsuit. Accordingly, the "mischief" referenced in the *Landgraf* footnote is not present here. Inasmuch as the majority suggests that *Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal's* parenthetical citation to that footnote is relevant to

As the legislative history establishes, and contrary to the majority's assertion (*see* majority op at 260), the amendments were intended to correct the prior anti-SLAPP regime which courts had interpreted too narrowly to adequately protect defendants and our state's interest in free public discourse on issues of public concern.

The Assembly Sponsor's Memorandum states:

"Section 76-a of the Civil Rights Law was originally enacted by the Legislature to provide 'the utmost protection for the free exercise [of] speech, petition, and association rights, particularly where such rights are exercised in a public forum with respect to issues of public concern.' L. 1992 Ch. 767. However, as drafted, and as narrowly interpreted by the courts, the application of Section 76-a has failed to accomplish that objective. In practice, the current statute has been strictly limited to cases initiated by persons or business entities that are embroiled in controversies over a public application or permit, usually in a real estate development situation. Meanwhile, many frivolous lawsuits are filed each year that are calculated solely to silence free speech and public participation, which do not specifically arise in the context of the public 'permit' process. By revising the definition of an 'action involving public petition and participation,' this amendment to Section 76-a will better advance the purposes that the Legislature originally identified in enacting New York's anti-SLAPP law. This is done by broadly widening the ambit of the law to include matters of 'public interest', which is to be broadly construed, e.g. anything other than a 'purely private matter'.

"Additionally, the principal remedy currently provided to victims of SLAPP suits in New York is almost never actually imposed. The courts have failed to use their discretionary power to award costs and attorney's fees to a defendant found to

this analysis (35 NY3d 332, 365 [2020]), *Regina* should not be understood to overrule our longstanding presumption applying remedial statutes to pending cases (*see Palin v New York Times Co.*, 510 F Supp 3d 21, 28 [SD NY 2020] ["Nothing in *Regina* suggests that it is overturning the general rule that remedial legislation . . . is presumed to have retroactive effect"]).

have been victimized by a frivolous lawsuit intended only to chill free speech. By an award of costs and fees, the Legislature had originally intended to address ‘threat of personal damages and litigation costs . . . as a means of harassing, intimidating, or punishing individuals, unincorporated associations, not-for-profit corporations and others who have involved themselves in public affairs.’ L. 1992 Ch. 767. This amendment to Section 70-A of the Civil Rights Law makes clear that a court ‘shall’ impose an award of costs and fees, but only if the court [finds] that the case has been initiated or pursued in bad faith. Together, the two amendments will protect citizens against the threat—and financial reality—of abusive litigation, but will not discourage meritorious litigation.

“Further, a mandatory award of attorney’s fees is necessary to discourage SLAPP lawsuits—which attempt to chill free speech by definition—from being instituted” (Assembly Mem in Support, Bill Jacket, L 2020, ch 250 at 5-6).

Likewise, the Assembly Sponsor explained to the Governor that “[i]n recent years, we have seen a growth—in New York and nationwide—in these types of [SLAPP] lawsuits, which are brought with one goal in mind: to stifle the free expression of ideas and/or criticism” (Assembly Sponsor’s Letter to Governor, Bill Jacket, L 2020, ch 250 at 7). She explained that because the prior version of the law “has proven inadequate to stem the rising tide [of such suits],” the new bill “updates and modernizes [the statute] by expanding the breadth of the law and also putting teeth into it” (*id.*). Clearly, the drafters of the amendments recognized that the 1992 statute left individuals exposed to abusive litigation and deprived of financial recourse, and thus considered it important to ensure robust remedies. It would be nonsensical to assert that the Legislature intended to deny current SLAPP-suit victims the benefit of the amended statute simply because they began defending a defamation action before the amendments were enacted. To the contrary, the legislative history reveals the very fact of those existing lawsuits was the impetus for the amendments.

Moreover, the Legislature instructed that the amendments “shall take effect immediately” (L 2020, ch 250, § 4). Although the majority is correct that such language alone does not

require application to pending cases (majority op at 259), there is more. Given the legislative history, and the sense of urgency that animated legislative action against increased SLAPP litigation, the choice not to delay the amendments' effective date further supports the legislative desire that the law apply to all pending matters.

The drafting history confirms this intent. An earlier draft of the amendments included express language stating that the statute "shall apply to actions commenced on or after" the statute's effective date. The Rent Stabilization Association, a trade organization with an interest in the anti-SLAPP law, took note of the removal of the language and wrote to the Governor, requesting that the original prospectivity language be restored. The phrase was not reinserted in the final version of the bill the Governor signed into law, making it apparent that the Legislature and the Executive made a concerted decision—over objections of an interested party—to excise any language limiting the law's application to future cases.

The Court has previously found such action indicative of legislative intent. In *Majewski v Broadalbin-Perth Cent. School Dist.*, the Court examined certain amendments to the Workers' Compensation Law which, in an earlier draft, "expressly provided that it would apply to lawsuits that have neither been settled nor reduced to judgment by the date of its enactment" (91 NY2d 577, 587 [1998] [internal quotation marks, emphasis and brackets omitted]). Like here, that proposed language "d[id] not appear in the enacted version" (*id.*). Reciting the principle that a "court may examine changes made in proposed legislation to determine intent," the Court held that the deletion of the language in *Majewski* was consistent with the intent that the statute apply only prospectively (*id.*). Applying that same principle here, the Legislature's consideration and rejection of the prospective-only language shows that it intended the amended statute to apply to pending claims. Indeed, contrary to the majority's misguided view, removal of prospective-only language that was criticized because it would prohibit the application of the statute to pending litigation is as close to express intent as it gets without the actual words.

B.

Respondents' contention that application of the amendments to this litigation will have a constitutionally impermissible retroactive effect is mistaken. Applying the amended anti-SLAPP

statute to this litigation as of the day of its commencement does not impact respondents' substantive rights and therefore presents no unfairness.⁵ First, the amendments do not foreclose respondents' defamation claims. For example, the amendments did not abolish a pre-existing cause of action for defamation or otherwise eliminate a basis for respondents' recovery against Kesha, but simply modified respondents' burden of proof. Litigants have no "vested interest in any rule of law entitling [them] to have the rule remain unaltered" (*Preston Co. v Funkhouser*, 261 NY 140, 144 [1933]), and certainly there is no constitutionally protected interest in the application of a common evidentiary standard of fault that governs certain defamation actions to respondents' claims. Second, even if the statutory burden of proof did not apply, as the majority holds, respondents' claims are nevertheless subject to the same requirement that they establish malice under general defamation law principles. Respondents have understood all along that they might be subject to that standard. Indeed, they alleged in the initial complaint and in each of the three amended complaints that Kesha acted with malice. Respondents also were well aware when they commenced this litigation that in order to avoid application of the malice standard they would have to argue that despite Dr. Luke's notoriety, he is not a public figure, even for limited purposes. And they did so argue, repeatedly, advocating that point in the Appellate Division and before us. Respondents cannot belatedly claim that it would be unfair to apply a standard which they have argued in the

5. Other New York courts—state and federal—have likewise applied the amendments to lawsuits pending at the time of enactment (*see e.g. Palin*, 510 F Supp 3d at 28 [holding that the amendments are remedial and that defamation plaintiff "was never entitled to recover monetary damages absent a showing of malice"]; *Reus v ETC Hous. Corp.*, 72 Misc 3d 479 [Sup Ct, Clinton County 2021], *affd* 203 AD3d 1281 [3d Dept 2022]; *Coleman v Grand*, 523 F Supp 3d 244 [ED NY 2021]; *Sackler v American Broadcasting Cos., Inc.*, 71 Misc 3d 693 [Sup Ct, NY County 2021]; *Veritas v New York Times Co.*, 2021 NY Slip Op 31908[U] [Sup Ct, Westchester County 2021]; *Kurland & Assoc., P.C. v Glassdoor, Inc.*, 2021 NY Slip Op 33927[U] [Sup Ct, NY County 2021]; *Sweigert v Goodman*, 2021 WL 1578097, 2021 US Dist LEXIS 77704 [SD NY, Apr. 22, 2021, 1:18-cv-08653 (VEC) (SDA)]; *Reilly v Crane Tech Solutions, LLC*, 2021 NY Slip Op 33926[U] [Sup Ct, NY County 2021]; *Cisneros v Cook*, 2021 NY Slip Op 33925[U] [Sup Ct, NY County 2021]; *Griffith v Daily Beast*, 2021 NY Slip Op 33924 [Sup Ct, NY County 2021]; *Goldman v Reddington*, 2021 WL 4099462, 2021 US Dist LEXIS 171340 [ED NY, Sept. 9, 2021, 18-CV-3662 (RPK) (ARL)]; *Great Wall Med. P.C. v Levine*, 74 Misc 3d 1224[A], 2022 NY Slip Op 50219[U] [Sup Ct, NY County 2022]; *Kesner v Buhl*, 590 F Supp 3d 680 [SD NY 2022]).

alternative is both satisfied here and does not apply to them under existing case law. Third, respondents cannot point to any conduct Dr. Luke would have changed based on the amendments if they had been in effect at the time of the alleged abuse. Retroactive effect impacts actions that underlie litigation, not litigation conduct itself.

In the same vein, the financial relief available under section 70-a applies here and should be measured from the moment respondents filed their complaint. As the majority notes, this section applies to actions continued after the effective date of the amended language (majority op at 258).⁶ When respondents chose to continue the litigation, they could not reasonably expect that the amended provision would not apply. As to any additional relief measured from the date of commencement, any party who files a completely baseless action or who files an action solely to harass risks financial penalties. For example, a court may, in its discretion, award any party or attorney the costs and attorney's fees resulting from frivolous litigation, and a court may also impose financial sanctions upon a party engaging in frivolous conduct, including conduct meant to harass (22 NYCRR 130-1.1; see e.g. *Maroulis v 64th St.-Third Ave. Assoc.*, 77 NY2d 831, 833 [1991] ["frivolous and meritless motion practice" amounted to "abuse of the judicial process (which) supports the imposition of (monetary) sanctions"]; see also CPLR 3126 [authorizing a court to impose monetary sanctions for a party's refusal to obey an order for disclosure]). Sanctions are a common and expected consequence for misuses of judicial process which financially injure the opposing party and "divert[] unnecessarily" "the time and attention of [the] Judges of this State" (*Matter of Minister, Elders & Deacons of Refm. Prot. Dutch Church of City of N.Y. v 198 Broadway*, 76 NY2d 411, 415 [1990]; cf. *Engel v CBS, Inc.*, 93

6. The majority's prospective-only construction of the "commenced or continued" language in section 70-a (1) of the amended statute is an overly narrow construction of that phrase. The fact that any action continued at the time of the effective date of the amendments falls within the scope of the statute means just that; it does not necessarily or by implication mean that monetary relief is measured from the effective date. Despite the majority's effort to complicate straightforward language, the meaning and effect of the word "commenced" in the phrase "commenced or continued" tracks to the person who commenced the prohibited legal action. Additionally, the majority's interpretation is "at odds with the remedial nature" of the amendments (*Matter of Marino S.*, 100 NY2d 361, 373 [2003]), which were intended to correct the former statute's overly narrow definition of "public petition" and to better protect victims of SLAPP lawsuits (see discussion of legislative history, *supra* at 264-266).

NY2d 195, 207 [1999] [lawsuits brought for an improper purpose “not only waste precious judicial resources, but are also anathema to the justice system itself”]).

Respondents’ reliance on *Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal* (35 NY3d 332 [2020]) is misplaced. There, the Court restated the rule that “[a] statute has retroactive effect if ‘it would impair rights a party possessed when [they] acted, increase a party’s liability for past conduct, or impose new duties with respect to transactions already completed,’ thus impacting ‘substantive’ rights” (*id.* at 365, citing *Landgraf*, 511 US at 278-280). But, as I discuss, no such rights are impacted here and respondents have no identifiable reliance interests in the pre-amendment law. Thus, application of the amendments to the pending litigation does not produce a retroactive effect.

III.

There is one claim not within the scope of the anti-SLAPP law and therefore respondents’ burden of proof is assessed under established defamation law principles. A plaintiff in a defamation action typically “must show: (1) a false statement that is (2) published to a third party (3) without privilege or authorization, and that (4) causes harm, unless the statement is one of the types of publications actionable regardless of harm” (*Stepanov v Dow Jones & Co., Inc.*, 120 AD3d 28, 34 [1st Dept 2014]). However, a plaintiff who is a public official or public figure “must prove the statement was made with actual malice, i.e., with either knowledge that it was false or reckless disregard for the truth” (*Huggins v Moore*, 94 NY2d 296, 301 [1999] [internal quotation marks omitted]). “In some instances an individual may achieve such pervasive fame or notoriety that [they] become[] a public figure for all purposes and in all contexts” (*Gertz v Robert Welch, Inc.*, 418 US 323, 351 [1974]). By contrast, a “limited purpose” public figure is “an individual [who] voluntarily injects [themselves] or is drawn into a particular public controversy and thereby becomes a public figure for a limited range of issues” (*id.*).

Respondents unpersuasively assert that Dr. Luke is not a public figure. Dr. Luke is at the top of his profession and has cultivated a notorious public persona. He has actively sought and gained media attention, rising above lesser-known figures in the music industry. His bankable success is based primarily

on producing pop hits with young female artists like Kesha. Therefore, I agree with the majority that he is a limited public figure, as we have defined that term (majority op at 251-252).⁷

Although the Court unanimously rejects respondents' contentions, it is important to clarify that respondents' proposed definition for a limited purpose public figure has no place in our law. They assert that if an individual lacks the pervasive fame required to establish that they are a public figure for *all* purposes, then any lesser level of fame is irrelevant. Under that proposed standard, a public figure for limited purposes must comment on the specific topic that is the basis for the alleged defamatory statement—here, the sexual assault of young female artists in the pop industry by those with power to affect their careers. That is too narrow a view of limited-purpose public figures, and it is contrary to our precedent. It also conveniently ignores the nature of Kesha's claims that she was the target of sexual abuse made possible by a power structure wherein artists—particularly women and other marginalized individuals—are treated as prey by those with power to make or break their careers. What person alleged to have sexually assaulted an artist would comment publicly on the value of such conduct? What individual with the power that Kesha alleges Dr. Luke exercises over his female clients would publicly acknowledge the alleged abusive nature of the relationship?

It is only after the #MeToo movement that sexual harassment and abuse became the topic of a global public platform (see *Cole v Cole*, 35 NY3d 1012, 1015 [2020] [Rivera, J., dissenting] ["Recently, in an impressive demonstration of organizing, the Me Too movement has effectively used social media to call for change and engage survivors of sexual violence at unprecedented levels"]). Through the public commons of social media, the movement shone a light on the prevalence of sexual abuse in society generally, but also particularly within the entertainment industry. To adopt the narrow standard advocated by respondents would be to insulate powerful individuals in any given industry who are all but guaranteed never to comment publicly on the abusive power dynamics from which they benefit.

Under our public figure doctrine as correctly applied by the majority, Dr. Luke is a public figure in his professional capacity

7. As a consequence, we need not consider whether Dr. Luke is a general public figure for all purposes.

for the limited purpose of this litigation (majority op at 252).⁸ Accordingly, to succeed on their remaining defamation claim, respondents must prove that Kesha acted with actual malice.

IV.

Turning to the litigation-related privileges asserted by Kesha, I agree that there is no “sham exception” to the absolute privilege for statements made in judicial proceedings (majority op at 253). Therefore, as the majority concludes, the statements relating to Kesha’s California complaint, along with her counterclaims and assertions in the instant action, are absolutely privileged (*id.* at 253-254). However, I disagree with the majority that all of the statements for which Kesha asserted the pre-litigation and fair report privileges must go to a jury to determine whether she brought the underlying claims in good faith. With two exceptions, those statements are privileged as a matter of law.

First, the draft complaint in the California litigation was sent to Sony’s general counsel—at her request—in order to facilitate a settlement. This is common practice and furthers the goal of avoiding litigation by fostering resolution without judicial intervention, which is precisely the purpose we identified in support of the privilege in *Front, Inc. v Khalil* (24 NY3d 713 [2015]). *Front* held that pre-litigation communication “should be encouraged and not chilled by the possibility of

8. The majority below determined that Dr. Luke was not a public figure based on the conclusion that he had not achieved the status of a “household name” (193 AD3d 573, 577 [1st Dept 2021]). That standard has its genesis in a line of First Department cases holding that the class of all-purpose public figures “generally consists of people who have achieved enough prominence in society that their names are tantamount to household words,” as well as “political figures” (*see e.g. Farrakhan v N.Y.P. Holdings*, 168 Misc 2d 536, 539 [Sup Ct, NY County 1995], *affd* 238 AD2d 197 [1st Dept 1997], *lv denied* 91 NY2d 803 [1997]; *Krauss v Globe Intl., Inc.*, 1996 WL 780550, *3 [Sup Ct, NY County 1996], *affd as mod* 251 AD2d 191 [1st Dept 1998]). But the First Department has not addressed the normative basis for determining whether an individual has achieved public figure status. Which and how many households count in making that determination? Perhaps the focus is on households with consumers of pop music and those who work in this industry. That appears to be the approach of the dissent below when it concluded that Dr. Luke “is a household name to those that matter” (193 AD3d at 584). Notwithstanding the divided Appellate Division, we have no occasion here to consider the propriety of that standard as Dr. Luke is a public figure under our established case law.

being the basis for a defamation suit” because parties must be able to speak freely during settlement negotiations in order “to reduce or avoid the need to actually commence litigation” (*id.* at 719). Only where attorneys “are seeking to bully, harass, or intimidate their client’s adversaries by threatening baseless litigation or by asserting wholly unmeritorious claims” is the privilege destroyed (*id.* at 720). In this case, the parties had been engaged in settlement negotiations for several months. Both parties clearly anticipated litigation, as evidenced by their separate filings on the same day. Kesha’s attorney averred that he shared the draft California complaint at opposing counsel’s behest, and that when the attorneys met to review the complaint, Kesha’s lawyer stated that filing was imminent but that they were eager to resolve it and willing to give it another try. Hence, the parties were engaged in routine, good-faith efforts to resolve the case—exactly what the pre-litigation privilege was intended to cover. There is simply no record evidence that either attorney sought to “bully, harass, or intimidate” the other by the mere fact of sharing the draft complaint before filing. The fact that they were ultimately unable to reach an agreement does not make the statements asserted therein any less privileged. Otherwise, there would be nothing left to the privilege as negotiating parties would rightly be unwilling to share drafts of litigation documents. The majority’s interpretation severely limits settlement efforts, in contravention of *Front*.

Moreover, since the majority agrees that the contents of the filed California complaint are absolutely privileged as statements made during the course of a judicial proceeding (majority op at 253-254), it is odd to conclude that Kesha’s allegations as they appeared in the filed complaint are privileged, while her identical allegations as they appeared in the draft complaint are not similarly protected simply because the former was served on counsel and the latter was provided to counsel as a courtesy in anticipation of litigation.

For the same reason, the sending of an embargoed copy of the California complaint to TMZ the day before it was filed is likewise privileged as a matter of law. Again, there is no logical basis to distinguish between the complaint as it was filed and the complaint as it was shared with a media outlet one day

prior with the understanding that it could not be made public until after the actual filing.⁹

As to the remaining 19 allegedly defamatory statements, all but two are covered by the statutory fair report privilege as Kesha alleged. An “action cannot be maintained against any person, firm or corporation, for the publication of a fair and true report of any judicial proceeding, legislative proceeding or other official proceeding, or for any heading of the report which is a fair and true headnote of the statement published” (Civil Rights Law § 74). “For a report to be characterized as fair and true within the meaning of the statute . . . it is enough that the substance of the article be substantially accurate” (*Holy Spirit Assn. for Unification of World Christianity v New York Times Co.*, 49 NY2d 63, 67 [1979] [internal quotation marks omitted]).

In a 2014 cable news interview and during an episode of a legal issues podcast, Kesha’s attorney suggested that Dr. Luke’s conduct was not limited to Kesha. However, Kesha’s complaint did not allege that Dr. Luke sexually assaulted or otherwise abused multiple women. Therefore, a jury could determine that those statements are not “substantially accurate” reports of the litigation and are therefore not statutorily privileged (*Holy Spirit Assn.*, 49 NY2d at 67). On several other occasions, the attorney compared Dr. Luke to Bill Cosby, who at the time was a prominent figure in the news for alleged sexual abuse (see Charlotte Alter, *Everything You Need to Know About the Bill Cosby Scandal*, TIME Magazine [Nov. 24, 2014], available at <https://time.com/3602131/bill-cosby-sexual-assault-allegations-guide/> [accessed May 9, 2023]). To the extent that those statements were intended to compare Cosby’s modus operandi—the use of the date rape drug GHB—to the method in which Dr. Luke allegedly drugged Kesha, those statements are privileged because they reflect specific allegations she has made in the course of the litigation. Each of the other statements for which Kesha asserted the statutory fair report privilege should be

9. Contrary to the majority’s suggestion, I do not maintain that it is the intended audience of the statement that determines whether the privilege applies (majority op at 254 n 3). Neither do I mean to conflate the pre-litigation and absolute litigation privileges (*id.* at 254). The point is that the contents of the complaint as-filed and as-shared were identical, and the majority offers no sound reason to privilege the allegations as they appeared in one but not the other. In any case, the embargoed complaint sent to a media outlet that could not be made public until after filing falls within the fair report privilege.

protected, as they pertain to the allegations made in the litigation and are substantially accurate reports of the proceedings.

The narrow exception to the fair report privilege set out in *Williams v Williams* (23 NY2d 592 [1969]) has no application here. In that case, the defamation defendant had instituted an action against his brother and former business partner alleging that the brother “conspired with others to misappropriate and misuse the company’s trade secrets and assets” (*id.* at 595). He then had copies of the complaint “printed and circulated to members of the trade” (*id.*). Noting the “unusual factual pattern” of the case (*id.* at 596), the majority determined that Civil Rights Law § 74 did not apply because the defendant had maliciously instituted the underlying action solely so that he could “circulate a press release or other communication based thereon and escape liability by invoking the statute” (*id.* at 599).¹⁰

As the Court declared, *Williams* is limited to its unique facts—the filing of a false complaint by a principal of a company against a former principal who then sent a letter with a copy of the summons and complaint to “interested parties . . . engaged in the same trade” (*id.* at 606 [Fuld, Ch. J., dissenting in part]).¹¹ We should not extend it lest we risk eroding the privilege altogether. Chief Judge Fuld (joined by Judge Bergan) argued in dissent that the majority, driven by “an unreasoned and unreasonable fear of abuse,” had reached a “strained and incongruous result” that was “not only . . . at odds with the language and with the legislative history of section 74” but one that was “completely unnecessary to protect against the sort of abuse envisioned by the court” (*id.* at 605). In response, the majority argued that the decision would not limit free access to the courts and expressly cautioned that the holding “in no way infringes upon the right of a person to bring an action or to say or write material pertinent to a suit within the confines of that action” (*id.* at 599).

Apart from the unsound extension of *Williams* here, it is also unnecessary because the concerns that animated the Court’s decision there are not implicated by Kesha’s filings in Califor-

10. On appeal from the denial of the defendant’s motion to dismiss, the Court presumed that the plaintiff’s factual allegations were true (23 NY2d at 595-596, citing CPLR 3211).

11. The majority’s attempt to marginalize this interpretation of *Williams* is belied by the Court’s clear exhortation that the exception is limited to “the unusual factual pattern of [that] case” (23 NY2d at 596).

nia or New York. In *Williams*, the plaintiff fabricated legal claims as a vehicle to disseminate lies to fellow tradespersons for the sole purpose of maligning the defendant. The plaintiff then deployed the privilege to avoid liability for that malicious conduct. By contrast, Kesha filed her California complaint and disseminated it to the media and pressed her counterclaims in the New York litigation *in response* to respondents' lawsuit. The California filing is the exact conduct the *Williams* majority acknowledged was protected, and the responsive filing in the New York action was defensive, not initiated as affirmative abuse of the judicial process of the like presented in *Williams*. Thus, the statutory privilege applies.

V.

I agree that the certified questions in these respective appeals should be answered in the negative, but I disagree that potential relief on Kesha's counterclaims is temporally limited in the manner so held by the majority and that the privilege alleged for all but two of her statements must be presented to a jury. Our precedents do not support the majority's construction of the Civil Rights Law, and its treatment of the relevant privileges as factual questions contravenes *Front* and eviscerates their intended purposes. Lawyers beware!

In *Gottwald v Sebert I*: Order reversed, with costs, defendant Kesha Rose Sebert's motion to amend her answer to assert a counterclaim pursuant to Civil Rights Law § 70-a granted, and certified question answered in the negative.

Opinion by Judge GARCIA. Judges SINGAS, CANNATARO and TROUTMAN concur and Chief Judge WILSON concurs, for the reasons stated in section IV. Judge RIVERA dissents in part in an opinion. Judge HALLIGAN took no part.

In *Gottwald v Sebert II*: Order modified, without costs, in accordance with the opinion herein, as so modified, affirmed, and certified question answered in the negative.

Judges SINGAS, CANNATARO and TROUTMAN concur. Chief Judge WILSON joins section II of the majority opinion herein by Judge GARCIA and dissents in part for the reasons stated in section IV of the dissenting opinion herein by Judge RIVERA. Judge RIVERA dissents in part in an opinion. Judge HALLIGAN took no part.

[220 NE3d 646, 197 NYS3d 719]

IKB INTERNATIONAL, S.A., et al., Respondents, v WELLS FARGO BANK, N.A., as Trustee (and Any Predecessors and Successors Thereto), et al., Appellants, et al., Defendants.

IKB INTERNATIONAL, S.A., et al., Respondents, v U.S. BANK, N.A., as Trustee (and Any Predecessors and Successors Thereto), et al., Appellants, et al., Defendants.

IKB INTERNATIONAL, S.A., et al., Respondents, v DEUTSCHE BANK NATIONAL TRUST COMPANY, as Trustee (and Any Predecessors and Successors Thereto), et al., Appellants, et al., Defendants.

IKB INTERNATIONAL, S.A., et al., Respondents, v THE BANK OF NEW YORK, as Trustee (and Any Predecessors and Successors Thereto), et al., Appellants, et al., Defendants.

Argued May 18, 2023; decided June 15, 2023

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered August 30, 2022. The Appellate Division order, insofar as appealed from, modified, on the law, so much of an order of the Supreme Court, New York County (Marcy S. Friedman, J.; op 2021 NY Slip Op 30265[U] [2021]), as had (1) denied defendants' motions to dismiss the pre-event of default representation and warranty repurchase enforcement breach of contract claims, the post-event of default breach of contract claims, and the breach of conflict of interest and post-event of default breach of fiduciary duty claims; and (2) granted the motions as to the pre-event of default document defect repurchase enforcement claims. The modification consisted of (1) granting the motions as to the post-event of default breach of contract claims insofar as related to the subset of trusts governed by pooling and servicing agreements requiring written notice from an authorized party to constitute an event of default and the post-event of default breach of fiduciary duty claims insofar as based on alleged failures to act as contractually required, and (2) denying the motions as to the pre-event of default document defect repurchase enforcement claims. The following question was certified by the Appellate Division: "Was the order of Supreme Court, which was partially modified and otherwise affirmed by this Court, properly made?"

IKB Intl., S.A. v Wells Fargo Bank, N.A., 208 AD3d 423, modified.

HEADNOTES

Contracts — Breach or Performance of Contract — Residential Mortgage-Backed Securities Trusts — Effect of No-Action Clause

1. The actions by plaintiffs, investors in residential mortgage-backed securities trusts, alleging that defendant trustees breached the governing trust agreements by failing to enforce repurchase obligations were not barred by plaintiffs' failure to comply with the notice and demand requirements of the agreements' no-action clauses. Standard no-action clauses in trust agreements provide that a shareholder must satisfy certain requirements before bringing a lawsuit on behalf of the shareholders, including giving a trustee an opportunity to bring a lawsuit on behalf of the trust. Claims against the trustee cannot be prohibited by a no-action clause. Because a standard no-action clause vests in the trustee all of the securityholders' rights to bring suit, making the trustee the only path to a remedy, courts have been unwilling to enforce such clauses when the trustee's conflicts or irrationality bar that path to relief. A request by plaintiffs that the trustee sue itself would have been futile because the trustee cannot sue itself, and therefore compliance was not required.

Contracts — Breach or Performance of Contract — Residential Mortgage-Backed Securities Trusts — Duty of Trustees to Enforce Repurchase Obligations

2. In breach of contract actions by plaintiffs, investors in residential mortgage-backed securities trusts, the claims that defendant trustees breached certain governing trust agreements by failing to enforce the pre-event of default repurchase obligations were dismissed, where the agreements did not impose on defendants an affirmative enforcement duty. The language providing that defendants agreed to "exercise the rights referred to above," which included the agreements' repurchase protocol, explained that the trustee must act for the benefit of certificateholders when the trustee exercised the rights described in the agreement. A right is not a duty, and the governing agreements specifically provided that "the rights of the Trustee to perform any discretionary act enumerated in this Agreement shall not be construed as a duty." Reading the challenged language to impose an implicit duty would require disregarding the numerous contractual provisions expressly limiting the trustee's duties to "only such duties as are specifically set forth in this Agreement" and prohibiting the imposition of implied duties. Assumption of an affirmative duty to enforce repurchase obligations based on language referencing the "exercise of rights" would be inconsistent with each of those provisions. The provisions in the governing agreements that did impose an express duty on parties, including the trustee, used explicit language and provided details regarding the extent of the parties' obligations. The trusts at issue did not expressly provide for the enforcement of repurchase obligations, and omission of such language was compelling proof of the lack of an affirmative duty to enforce the repurchase protocol.

Contracts — Breach or Performance of Contract — Residential Mortgage-Backed Securities Trusts — Duplicative Tort Claims

3. In actions by plaintiffs, investors in residential mortgage-backed securities trusts, alleging that defendant trustees breached the governing trust

agreements by failing to enforce repurchase obligations, plaintiffs' tort claims based on defendants' alleged breach of conflicts of interest and post-event of default fiduciary duties were dismissed as duplicative of the breach of contract claims. The "economic loss rule" stands for the proposition that an end-purchaser of a product is limited to contract remedies and may not seek damages in tort for economic loss against a manufacturer, and does not have application beyond the products liability context. Accordingly, the rule did not apply to plaintiffs' claims. A simple breach of contract is not to be considered a tort unless a legal duty independent of the contract itself has been violated and, where plaintiff is essentially seeking enforcement of the bargain, the action should proceed under a contract theory. Plaintiffs alleged that defendants breached their contractual duties because of conflicts of interests, and used identical language when describing their contract-based claims as in their conflict of interest claims. Likewise, plaintiffs alleged that defendants breached their fiduciary duties by failing to act as a "prudent person" would have. That same language formed the basis of plaintiffs' breach of contract claims. Moreover, plaintiffs used identical language in alleging the harm resulting from the torts committed by defendants and defendants' breach of the terms of the agreements. There was no injury alleged that a separate tort claim would have included that was not already encompassed in plaintiffs' contract claim. Where the only damages alleged under either theory of recovery are identical for both claims, such damages are within the contemplation of the parties under the contract and the noncontractual claims must be dismissed as duplicative.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Contracts § 702; AM JUR 2d Pleading § 47; AM JUR 2d Trusts § 334.

NY JUR 2d Contracts §§ 265, 268, 434; NY JUR 2d Mortgages §§ 24, 27.

WILLISTON ON CONTRACTS (4th ed) §§ 8:7, 37:26.

ANNOTATION REFERENCE

See ALR Index under Bonds and Securities; Contracts; Notice or Knowledge; Trusts.

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Query: no-action /2 clause /s trustee & breach /4 contract

POINTS OF COUNSEL

Mayer Brown LLP, New York City (*Matthew D. Ingber*, *Christopher J. Houpt*, *Rory K. Schneider* and *Christopher J. Mikes* of counsel), for The Bank of New York and others, *Jones Day*, New York City (*Howard F. Sidman*, *Ryan J. Andreoli* and

Amanda L. Dollinger of counsel), for Wells Fargo Bank, N.A. and another, *Jones Day*, New York City (*David F. Adler* and *Michael T. Marcucci* of counsel) and Cleveland, Ohio (*Louis A. Chaiten*, admitted pro hac vice, and *Amanda R. Parker*, admitted pro hac vice, of counsel), for U.S. Bank, N.A. and another, and *Morgan, Lewis & Bockius, LLP*, New York City (*Michael S. Kraut*, *Kevin J. Biron* and *Bryan P. Goff* of counsel), for Deutsche Bank National Trust Company and another, appellants. I. The First Department erred in interpreting section 2.06 of the pooling and servicing agreements. (*Meckel v Continental Resources Co.*, 758 F2d 811; *Uribe v Merchants Bank of N.Y.*, 91 NY2d 336; *Kolbe v Tibbetts*, 22 NY3d 344; 150 *Broadway N.Y. Assoc., L.P. v Bodner*, 14 AD3d 1; *Phoenix Light SF Ltd. v Deutsche Bank Natl. Trust Co.*, 585 F Supp 3d 540; *Commerzbank AG v U.S. Bank N.A.*, 457 F Supp 3d 233; *Matter of Lipper Holdings v Trident Holdings*, 1 AD3d 170; *U.S. Bank N.A. v GreenPoint Mtge. Funding, Inc.*, 147 AD3d 79; *Walnut Place LLC v Countrywide Home Loans, Inc.*, 96 AD3d 684; *Matter of Part 60 Put-Back Litig.*, 36 NY3d 342.) II. The First Department erroneously excised the pooling and servicing agreements' no-action clauses. (*U.S. Bank N.A. v DLJ Mtge. Capital, Inc.*, 38 NY3d 169; *Akanthos Capital Mgt., LLC v CompuCredit Holdings Corp.*, 677 F3d 1286; *Cruden v Bank of N.Y.*, 957 F2d 961; *Rowe v Great Atl. & Pac. Tea Co.*, 46 NY2d 62; *Oppenheimer & Co. v Oppenheim, Appel, Dixon & Co.*, 86 NY2d 685; *Matter of Wallace v 600 Partners Co.*, 86 NY2d 543; *Ellington Credit Fund, Ltd. v Select Portfolio Servicing, Inc.*, 837 F Supp 2d 162; *Upic & Co. v Kinder-Care Learning Ctrs., Inc.*, 793 F Supp 448; *Waxman v Cliffs Natural Resources Inc.*, 222 F Supp 3d 281; *Blackrock Core Bond Portfolio v U.S. Bank N.A.*, 165 F Supp 3d 80.) III. The First Department erred in allowing plaintiffs to maintain tort claims arising from the same alleged economic harm as their contract claims. (*Dormitory Auth. of the State of N.Y. v Samson Constr. Co.*, 30 NY3d 704; *Board of Mgrs. of the St. Tropez Condominium v JMA Consultants, Inc.*, 191 AD3d 402.)

McFerrin-Clancy LLC, New York City (*John J.D. McFerrin-Clancy* of counsel), and *Schlam Stone & Dolan LLP*, New York City (*Seth D. Allen*, *Richard H. Dolan*, *Erik S. Groothuis* and *David J. Goldsmith* of counsel), for respondents. I. The decisions below correctly held that defendants had a duty to enforce the trusts' right to have the obligors repurchase defective loans. (*LDIR, LLC v DB Structured Prods., Inc.*, 172 AD3d 1; *Western & Southern*, 209 AD3d 6; *Uribe v Merchants Bank of N.Y.*, 91

NY2d 336; *Commerzbank AG v U.S. Bank N.A.*, 457 F Supp 3d 233; *Phoenix Light SF Ltd. v Deutsche Bank Natl. Trust Co.*, 585 F Supp 3d 540; *AG Capital Funding Partners, L.P. v State St. Bank & Trust Co.*, 11 NY3d 146; *Quadrant Structured Prods. Co., Ltd. v Vertin*, 23 NY3d 549; *U.S. Bank N.A. v DLJ Mtge. Capital, Inc.*, 38 NY3d 169; *Cortlandt St. Recovery Corp. v Bonderman*, 31 NY3d 30; *Beal Sav. Bank v Sommer*, 8 NY3d 318.) II. The motion court correctly rejected defendants' arguments on the no-action clauses. (*Blackrock Balanced Capital Portfolio [FI] v U.S. Bank N.A.*, 165 AD3d 526; *MLRN LLC v U.S. Bank N.A.*, 190 AD3d 426; *Phoenix Light SF Ltd. v Deutsche Bank Natl. Trust Co.*, 172 F Supp 3d 700; *Blackrock Core Bond Portfolio v U.S. Bank N.A.*, 165 F Supp 3d 80; *Matter of Brooke S.B. v Elizabeth A.C.C.*, 28 NY3d 1; *Matter of Higby v Mahoney*, 48 NY2d 15; *Cruden v Bank of N.Y.*, 957 F2d 961; *Bansbach v Zinn*, 1 NY3d 1.) III. The motion court correctly denied defendants' motions to dismiss plaintiffs' conflict of interest and post-event of default fiduciary duty claims based on the economic loss doctrine. (*Blackrock Allocation Target Shares: Series S. Portfolio v Wells Fargo Bank, N.A.*, 247 F Supp 3d 377; 37 E. 50th St. Corp. v Restaurant Group Mgt. Servs., L.L.C., 156 AD3d 569; *Dormitory Auth. of the State of N.Y. v Samson Constr. Co.*, 30 NY3d 704; *Blackrock Balanced Capital Portfolio [FI] v U.S. Bank N.A.*, 165 AD3d 526.)

Faegre Drinker Biddle & Reath LLP, New York City (Clay J. Pierce of counsel), for American Bankers Association, amicus curiae. Residential mortgage-backed securities holders should be required to meet contractual preconditions for filing suit, which protect investors' interests as a whole. (*McMahan & Co. v Wherehouse Entertainment, Inc.*, 65 F3d 1044; *Quadrant Structured Prods. Co., Ltd. v Vertin*, 23 NY3d 549; *Walnut Place LLC v Countrywide Home Loans, Inc.*, 96 AD3d 684; *Bank of N.Y. Mellon v Chamoula*, 170 AD3d 788.)

OPINION OF THE COURT

GARCIA, J.

Plaintiffs, commercial banks incorporated in Germany, are investors in residential mortgage-backed securities issued by securitization trusts for which defendants served as trustees. After the securities lost much of their value in the 2008 financial crisis, plaintiffs commenced these actions alleging that defendants breached numerous contractual, fiduciary, and statutory duties, causing plaintiffs' investments to become "es-

entially worthless.” While we agree with the courts below that compliance with the “no-action clause” in the governing agreements was not required prior to suit, we decline to recognize an implied contractual duty on the part of the trustee to enforce the repurchase protocol obligations of other parties. In addition, plaintiffs’ duplicative tort and contract claims must be dismissed. We modify the order of the Appellate Division accordingly.

I.

We have discussed the history and operation of residential mortgage-backed securities (RMBS) and the securitization process at length in prior opinions (*see generally Matter of Part 60 Put-Back Litig.*, 36 NY3d 342 [2020]; *U.S. Bank N.A. v DLJ Mtge. Capital, Inc.*, 33 NY3d 84 [2019]; *Deutsche Bank Natl. Trust Co. v Barclays Bank PLC*, 34 NY3d 327 [2019]; *Ambac Assur. Corp. v Countrywide Home Loans, Inc.*, 31 NY3d 569 [2018]; *Nomura Home Equity Loan, Inc., Series 2006-FM2 v Nomura Credit & Capital, Inc.*, 30 NY3d 572 [2017]; *ACE Sec. Corp., Home Equity Loan Trust, Series 2006-SL2 v DB Structured Prods., Inc.*, 25 NY3d 581 [2015]). To summarize, RMBS are financial instruments, popular in the mid-2000s, backed by individual mortgage loans (*Ambac*, 31 NY3d at 575; *Nomura*, 30 NY3d at 577-578; *ACE*, 25 NY3d at 589-590). The securitization process involves a “sponsor” who acquires a bundle of loans from banking institutions (“originators”) and sells the pooled loans to a “depositor,” who places the loans into a trust (*Deutsche Bank*, 34 NY3d at 331-332; *Nomura*, 30 NY3d at 577-578). The trust issues certificates purchased by investors, who are entitled to a portion of the revenue stream from the borrowers’ payments (*Deutsche Bank*, 34 NY3d at 332; *Nomura*, 30 NY3d at 577-578). The mortgage loans in the trust are serviced by a “servicer,” a party typically affiliated with the sponsor or originator. Each trust has a trustee which acts on behalf of the trust and whose responsibilities are prescribed by the securitization trusts’ governing agreements. While our previous RMBS cases have been brought by RMBS trustees, investors, or their insurers against RMBS sponsors, depositors, servicers, and originators (collectively, obligated parties) to recover for losses on the certificates, here the investors are suing the RMBS trustees.

While the courts below addressed numerous disputed issues in resolving defendants’ motion to dismiss plaintiffs’ complaint,

the parties have narrowed the questions on appeal before us following the Appellate Division’s modification of Supreme Court’s order below (*see* 2021 NY Slip Op 30265[U] [Sup Ct, NY County 2021], *mod* 208 AD3d 423 [1st Dept 2022], *lv granted* 2022 NY Slip Op 74224[U] [1st Dept 2022] [Appellate Division granting leave to appeal and certifying question to this Court]). The following issues remain: whether plaintiffs’ suit is barred for noncompliance with the governing agreements’ “no-action clauses;” whether, for 25 of the trusts, plaintiffs’ claims that defendants breached the governing agreements by failing to enforce the pre-event of default (EOD) repurchase obligations of the obligated parties must be dismissed because those governing agreements do not impose an enforcement duty on the trustee; and whether plaintiffs’ remaining tort claims are duplicative of their breach of contract claims.

II.

Standard no-action clauses in trust agreements provide “that a shareholder must satisfy certain requirements before bringing a lawsuit on behalf of the shareholders, including giving a trustee an opportunity to bring a lawsuit on behalf of the trust” (*SC Note Acquisitions, LLC v Wells Fargo Bank, N.A.*, 934 F Supp 2d 516, 531 [ED NY 2013]). The specific clause at issue is found in section 10.08 of the governing agreements and provides that

“No Certificateholder shall have any right by virtue or by availing itself of any provisions of this Agreement to institute any suit, action or proceeding in equity or at law upon or under or with respect to this Agreement, unless such Holder previously shall have given to the Trustee a written notice of an Event of Default and of the continuance thereof, as herein provided, and unless the Holders of Certificates evidencing not less than 25% of the Voting Rights evidenced by the Certificates shall also have made written request to the Trustee to institute such action, suit or proceeding”¹

Supreme Court rejected defendants’ argument that the action was barred because plaintiffs did not comply with the no-

1. Because the numerous governing agreements and complaints involved in this litigation are materially similar, the parties have referred to one representative governing agreement and complaint. The Court adopts this practice as well.

tice and demand requirements of the no-action clauses, holding that compliance was excused “‘because it would be futile to demand that the trustee commence an action against itself for breaches of the [governing agreements]’ ” and that “‘[o]nce performance of the demand requirement in the no-action clause is excused, performance of the entire provision is excused, including the requirement that demand be made by 25% of the certificate holders’ ” (2021 NY Slip Op 30265[U], *13-14, quoting *Blackrock Balanced Capital Portfolio [FI] v U.S. Bank N.A.*, 165 AD3d 526, 528 [1st Dept 2018]). The Appellate Division affirmed (208 AD3d at 424). We agree that compliance with the no-action clause was unnecessary here.

[1] As we have previously noted, in dicta, “claims against the trustee” “cannot be prohibited by a no-action clause” (*Quadrant Structured Prods. Co., Ltd. v Vertin*, 23 NY3d 549, 566 [2014]). “Because a standard no-action clause vests in the trustee all of the securityholders’ rights to bring suit, making the trustee the only path to a remedy, courts have been unwilling to enforce such clauses when the trustee’s conflicts or irrationality bar that path to relief” (*Akanthos Capital Mgt., LLC v Compu-Credit Holdings Corp.*, 677 F3d 1286, 1294-1295 [11th Cir 2012] [reviewing New York law]). A request by plaintiffs that the trustee sue itself would have been futile, because, as defendants have acknowledged, the trustee cannot not sue itself, and therefore compliance was not required.

Defendants attempt to parse the language of the clause and read the request by holders of at least 25% of the voting rights as a distinct, and enforceable, condition. We reject that contention. The 25% approval requirement is inextricably intertwined with the initial notice requirement, as well as with the trustee’s status as “interested.” Once a certificateholder is absolved of the requirement to provide written notice to the trustee, separately maintaining the requirement that additional certificateholders make an equally futile demand for suit is illogical (see *Blackrock Core Bond Portfolio v U.S. Bank N.A.*, 165 F Supp 3d 80, 96 [SD NY 2016] [“There is no principle of contract interpretation that allows the 25% as used here to be divorced from the act of demand”]). Accordingly, failure to comply with the no-action clause does not bar suit against the trustee.

III.

Defendants moved to dismiss plaintiffs’ claims that they breached the governing agreements by failing to enforce

repurchase obligations, arguing that these agreements do not impose such a duty on trustees. Supreme Court denied this aspect of defendants' motion and the Appellate Division affirmed (208 AD3d at 425-429). We agree with defendants and hold that the governing agreements do not impose on defendants an affirmative duty to enforce repurchase obligations and so those claims should be dismissed.

We have long held that "when parties set down their agreement in a clear, complete document, their writing should as a rule be enforced according to its terms" (*Nomura*, 30 NY3d at 581 [citation and internal quotation marks omitted]). A trustee is required to do only what the governing agreements prescribe. Before an EOD has occurred,² RMBS trustees' "rights and duties [are] defined . . . exclusively by the terms of the agreement" (*AG Capital Funding Partners, L.P. v State St. Bank & Trust Co.*, 11 NY3d 146, 156-157 [2008] [internal quotation marks omitted]). A pre-EOD trustee's role is essentially ministerial; a trustee has only a duty to avoid conflicts of interest and a duty to perform ministerial tasks with due care, in addition to any express duties provided by the governing agreements (*id.*).

The governing agreements here make clear this circumscribed scope of duties. Article VIII of the governing agreements states that the trustee "shall undertake to perform such duties and only such duties as are specifically set forth in this Agreement," that "the duties and obligations of the Trustee shall be determined solely by the express provisions of this Agreement," that "the Trustee shall not be liable except for the performance of such duties and obligations as are specifically set forth in this Agreement," that "no implied covenants or obligations shall be read into this Agreement against the Trustee," and that "the rights of the Trustee to perform any discretionary act enumerated in this Agreement shall not be construed as a duty."

As is common in RMBS agreements, the governing agreements here contain a repurchase protocol that provides that the obligated parties (typically, the sponsor) have a duty to either cure, substitute, or repurchase loans that contain document defects or breaches of representations and warranties (see e.g. *Ambac*, 31 NY3d at 581-582 [holding that repurchase

2. Plaintiffs' claims regarding the trustee's duty to enforce repurchase rights are pre-EOD claims.

protocol is the sole remedy for defective loans]; *Nomura*, 30 NY3d at 584 [same]). Sections 2.02 and 2.03 of the governing agreements provide that, when a document defect or breach of representations and warranties in a loan is discovered, the obligated party must first attempt to cure the defect or breach and, if the defect or breach cannot be cured, the obligated party must then remove the loan and either substitute a complying loan in its place or repurchase the loan. The governing agreements for the 25 trusts at issue here do not specify which party is to enforce this repurchase protocol.

Section 2.06 of the governing agreements, titled “Execution and Delivery of Certificates,” provides in part that “[t]he Trustee agrees to hold the Trust Fund and exercise the rights referred to above for the benefit of all present and future Holders of the Certificates and to perform the duties set forth in this Agreement according to its terms.” Because the repurchase protocol of sections 2.02 and 2.03 is located “above” section 2.06, plaintiffs argue that the language in section 2.06 that “the Trustee agrees to hold the Trust Fund and exercise the rights referred to above for the benefit of” certificateholders incorporates the repurchase protocol and imposes an affirmative duty on the trustee to enforce the protocol, and that by failing to do so the trustee breached the agreements.

Supreme Court credited this argument, holding that section 2.06 obligates the trustee to enforce the repurchase protocol and reasoning that “[i]t is undisputed that repurchase rights are among the rights of the Trusts” and the “silence of the Governing Agreements as to the particular party that is to enforce this specific remedy on behalf of the Trusts does not relieve the Trustees of their obligation to enforce remedies pursuant to the broader charge of the Governing Agreements” (2021 NY Slip Op 30265[U], *28). The Appellate Division majority agreed, holding that Supreme Court correctly found an affirmative duty on the part of the trustee to enforce the repurchase obligations of other parties because the relevant language “imposed an express duty on the trustees to enforce the repurchase protocol for the benefit of the investors” (208 AD3d at 425). The dissenting Justices disagreed with the majority’s holding “creat[ing] an affirmative duty not found in the agreements” and would have held that “the agreements do not state that the trustee is under a . . . (pre-EOD) affirmative duty to enforce the seller’s repurchase obligations” (*id.* at 431, citing *Western & S. Life Ins. Co. v U.S. Bank N.A.*, 209 AD3d 6,

13 [1st Dept 2022] [holding that identical language in a RMBS trust governing agreement “does not clearly assign defendant (trustee) the *duty* to enforce the seller’s obligation to repurchase defective loans”]).

[2] We agree with defendants and the dissent below that the relevant language does not impose an affirmative duty on the part of the trustee to enforce repurchase obligations, but instead explains that the trustee must act for the benefit of certificateholders when the trustee is exercising the rights described in section 2.06 (see e.g. *Phoenix Light SF Ltd. v Deutsche Bank Natl. Trust Co.*, 585 F Supp 3d 540, 591 [SD NY 2022] [“The ‘rights referred to above’ language is properly understood to ‘delineate that the trustee holds the trust fund for the benefit of the investor rather than for the trustee’s own benefit or the benefit of any other party to the (governing agreements),’ rather than to generate any implied duties”], quoting *Western & S. Life Ins. Co. v Bank of N.Y. Mellon*, 2019-Ohio-388, ¶¶ 25-27, 129 NE3d 1085, 1093-1094 [Ct App 2019] [applying New York law]).

First, the relevant provision addresses the larger role of the trustee with respect to certificateholders, and the preceding sentences speak to the trustee’s acknowledgement that it has “executed and delivered . . . the Certificates in authorized denominations evidencing directly or indirectly the entire ownership of the Trust Fund.” That is not where one would expect to find an enforcement mechanism for the repurchase protocol required of third parties that is outlined several sections above.

Moreover, a right is not a duty (see *Western & S.*, 209 AD3d at 13 [noting “the distinct difference between a right and a duty under the” governing agreements and concluding that “the overt language relied on by plaintiffs demonstrates that they are discussing an action that *may* be exercised at a party’s discretion”])). The disputed language does not transform the discretionary nature of the trustee’s ability to exercise rights into a duty to do so. As the governing agreements specifically provide, “the rights of the Trustee to perform any discretionary act enumerated in this Agreement shall not be construed as a duty.”

Reading the challenged language to impose an implicit duty would require us to disregard the numerous contractual provisions expressly limiting the trustee’s duties to “only such duties

as are specifically set forth in this Agreement” and prohibiting the imposition of implied duties. Assumption of an affirmative duty to enforce repurchase obligations based on language referencing the “exercise of rights” is inconsistent with each one of these provisions (*see Phoenix Light*, 585 F Supp 3d at 591 [(I)t would be improper to interpret the vague, general language of the ‘rights referred to above’ clauses to create an implied repurchase duty in direct contravention of the (governing agreements’) other provisions”]; *Phoenix Light SF Ltd. v Wells Fargo Bank, N.A.*, 2022 WL 2702616, *23 n 30, 2022 US Dist LEXIS 123158, *66 n 30 [SD NY, July 12, 2022, No. 14 Civ 10102 (KPF) (SN), 15 Civ 10033 (KPF) (SN)] [the court was “unpersuaded” by the “rights referred to above” argument in support of a repurchase enforcement duty, finding that it “fails to overcome the plain text of the” governing agreements]; *Commerzbank AG v U.S. Bank N.A.*, 457 F Supp 3d 233, 258 [SD NY 2020] [“The (governing agreements) are complicated and intricate agreements that impose numerous obligations” and “(e)ngrafting a generalized good faith obligation that creates additional undefined duties is a bridge too far,” particularly since “the (agreements) expressly limit the duties of the Trustee”]).

Those provisions in the governing agreements that do impose an express duty on parties, including the trustee, use explicit language and provide details regarding the extent of the parties’ obligations. Comparing the “exercise the rights referred to above” language with the mandatory language found throughout the governing agreements further demonstrates that section 2.06 was not intended to transform discretionary rights into affirmative duties (*see* 208 AD3d at 435-436 [Singh, J., dissenting in part] [“It is clear from the agreements that the drafters understood what language to use to impose an affirmative duty on the trustee”]). For example, the repurchase protocol itself advises that the obligated party “shall cure” the breach or repurchase the loan; section 2.01 (b) discusses the steps a trustee “shall” take with respect to the receipt of required documents; and section 3.06 (e) provides that the trustee “shall establish and maintain” the certificate account.

Significantly, the trusts at issue here—that do not expressly provide for the enforcement of repurchase obligations—are in the minority. Of the 86 trusts at issue in the larger litigation, 61 have governing agreements that contain language expressly providing that the trustee “shall enforce the Seller’s obligation

. . . to repurchase” or that another party acting on the trustee’s behalf “shall enforce” the repurchase obligation. Omission of such language in the 25 agreements at issue here is compelling proof of the lack of an affirmative duty to enforce the repurchase protocol. Contrary to the Appellate Division majority’s conclusion that evidence of these different agreements cannot support a conclusion that “the drafters omitted a pre-EOD duty of the trustee” because “the numerous agreements at issue involved different parties, were executed on different days, and effectuate different purposes” (208 AD3d at 427), we have often compared contractual provisions, specifically in RMBS litigation, to “ascertain their meaning” (*id.* at 435; *see U.S. Bank N.A. v DLJ Mtge. Capital, Inc.*, 38 NY3d 169, 180-182 [2022] [comparing similar contractual provisions across recent precedent]; *Deutsche Bank*, 34 NY3d at 340-341 [interpreting contractual provisions consistent with a “(r)evue(of) substantially the same contract terms in other RMBS cases”]; *see also Quadrant Structured Prods.*, 23 NY3d at 562 [comparing contractual language in separate litigation]).

The argument to the contrary, that the inclusion of this language in some agreements but not in others is “‘belt and suspender’ language” that is “the product of being added to a form agreement that was ‘duped out’ as part of the deal documents in some cases but not others” (*Finkelstein v U.S. Bank, N.A.*, 75 Misc 3d 1202[A], 2022 NY Slip Op 50338[U], *2 [Sup Ct, NY County 2022]), would require us to disregard the plain language of the contracts and resort to unsupported speculation about the drafting process. Another court reasoned, in finding a duty to enforce in the language of section 2.05, that the “rights referred to above” language “must incorporate the rights articulated” in the repurchase protocol, and so “[d]efendant has an obligation to ‘exercise [its] rights’ to enforce the substitution and repurchasing remedies” (*see Royal Park Investments SA/NV v Deutsche Bank Natl. Tr. Co.*, 2016 WL 439020, *4, 2016 US Dist LEXIS 12982, *12 [SD NY, Feb. 3, 2016, No. 14-CV-4394 (AJN)]). We do not find this analysis in any way persuasive (*id.*; *see Zitman v Bank of N.Y. Mellon*, 2022 NY Slip Op 31527[U] [Sup Ct, NY County 2022] [relying exclusively on Supreme Court’s analysis here]; *see also Wilson*, Ch. J., dissenting op at 298-300).

Accordingly, we hold that the “rights referred to above” language does not impose an affirmative duty on the trustee to enforce repurchase rights. This result adheres to the language

and structure of the contract and is consistent with the role of the trustee prior to an EOD. Accordingly, plaintiffs' claims arising out of the pre-EOD repurchase enforcement claims for these 25 trusts should be dismissed.

IV.

The Appellate Division held that plaintiffs' tort claims, based on breaches of conflicts of interest and post-EOD fiduciary duties, were maintainable "except insofar as the [fiduciary duty claims are] based on defendants' failure to act as contractually required" (208 AD3d at 430-431). We hold that, to the extent any tort claims remain, they should be dismissed as duplicative of the breach of contract claims.

[3] The courts below here and in similar RMBS litigation, as well as federal courts applying New York law in RMBS litigation, invoke the "economic loss doctrine" when determining whether tort claims are maintainable alongside breach of contract claims (*see* 2021 NY Slip Op 30265[U], *47-48; 208 AD3d at 430-431; *see also National Credit Union Admin. Bd. v Deutsche Bank Natl. Trust Co.*, 410 F Supp 3d 662, 687-689 [SD NY 2019]; *Triaxx Prime CDO 2006-1, Ltd. v Bank of N.Y. Mellon*, 2018 WL 1417850, *6-7, 2018 US Dist LEXIS 42865, *16-21 [SD NY, Mar. 8, 2018, No. 16 Civ 1597 (NRB)]; *Black-Rock Allocation Target Shares: Series S Portfolio v Wells Fargo Bank, N.A.*, 247 F Supp 3d 377, 399 [SD NY 2017]). These courts appear to conflate our "economic loss" rule with the prohibition against duplicative contract and tort claims. However, this Court's "'economic loss' rule . . . stands for the proposition that an end-purchaser of a product is limited to contract remedies and may not seek damages in tort for economic loss against a manufacturer," and does not have application beyond the products liability context (*532 Madison Ave. Gourmet Foods v Finlandia Ctr.*, 96 NY2d 280, 288 n 1 [2001]). We clarify that the rule does not apply here.

We instead evaluate the remaining tort claims to determine whether they are duplicative of the contract claims. "[A] simple breach of contract is not to be considered a tort unless a legal duty independent of the contract itself has been violated" and "'where plaintiff is essentially seeking enforcement of the bargain, the action should proceed under a contract theory'" (*Dormitory Auth. of the State of N.Y. v Samson Constr. Co.*, 30 NY3d 704, 711-713 [2018], quoting *Sommer v Federal Signal Corp.*, 79 NY2d 540, 552 [1992]). In determining whether

claims are duplicative, we “evaluate[] the nature of the injury, how the injury occurred and the harm it caused” (*id.*). Applying that test here, we conclude that any remaining tort claims, alleging conflict of interest and fiduciary duty violations, must be dismissed.

On a CPLR 3211 motion to dismiss, “our task is to determine whether plaintiffs’ pleadings state a cause of action” by assessing “the pleadings’ four corners,” “liberally constru[ing] the complaint,” and “accept[ing] as true the facts alleged in the complaint” (511 W. 232nd Owners Corp. v Jennifer Realty Co., 98 NY2d 144, 151-152 [2002]). With respect to plaintiffs’ conflict of interest claims, the complaint alleges that defendants failed to “enforce representations claims or declar[e] Servicers in default” because they were operating under a conflict of interest. Plaintiffs are, therefore, alleging that defendants breached their contractual duties *because of* conflicts of interest.³ Indeed, plaintiffs use identical language when describing their contract-based claims, alleging that defendants “breached each Governing Agreement” by “failing to enforce the Sellers’ obligation to repurchase, substitute, or cure the defective mortgage loans” and by “fail[ing] to deliver written notices to the Servicers of the defaults or terminate the Servicers.”

Likewise, plaintiffs allege that defendants breached their post-EOD fiduciary duties by failing to act as a “prudent person” would have. Yet this same language forms the basis of plaintiffs’ breach of contract claims, in which they allege that by failing to act as a “prudent person” would have, as required by section 8.01 of the governing agreements, defendants “materially breached the Governing Agreements.” Nor can we agree with the partial dissent that the absence of a definition of any “‘prudent person’ duties” from the governing agreements transforms a duplicative allegation containing that term into an independent tort (*see* Troutman, J., dissenting op at 305). Similarly, plaintiffs simultaneously allege that “Wells Fargo’s failure to investigate and promptly enforce the Servicers’ servicing obligations constituted breaches of Wells Fargo’s fiduciary duty to the Trusts and their investors” and “[b]y failing to [investigate noncompliance with Servicer obligations], Wells Fargo materially breached the Governing Agreements”—identical allegations under the guise of separate claims.

3. Duplicative tort claims do not survive simply because, at the same procedural stage, we have rejected the contractual claims (*see* Troutman, J., dissenting op at 305).

The harm alleged by plaintiffs also demonstrates that the claims are duplicative. For example, the complaint alleges that the torts committed by defendants “diminished the value of the assets owned by the Trusts and have diminished the principal and interest payments generated by those assets.” In identical language, plaintiffs allege that in breaching the terms of the agreements, defendants “diminished the value of the assets owned by the Trusts and have diminished the principal and interest payments generated by those assets.” There is “no injury alleged here that a separate [tort] claim would include that is not already encompassed in [plaintiffs’] contract claim” (*Dormitory Auth.*, 30 NY3d at 713) and the partial dissent does not identify any nonduplicative injury. Where “[t]he only damages alleged under either theory of recovery” are “identical for both claims,” such damages are “within the contemplation of the parties under the contract” and the noncontractual claims must be dismissed as duplicative (*id.* at 712-713). All remaining tort claims at issue on this appeal must therefore be dismissed.

Accordingly, the order of the Appellate Division insofar as appealed from should be modified, without costs, in accordance with this opinion, and as so modified, affirmed, and the certified question should be answered in the negative.

Chief Judge WILSON (dissenting in part). I agree with the majority that the “no-action” clause does not prevent a suit against the trustee (section II of the majority opinion) and that IKB’s tort claims should be dismissed as duplicative of their contractual claims (section IV of the majority opinion). However, I disagree with the majority’s holding in section III. Because the posture of this case is on a motion to dismiss, IKB’s claims should be allowed to proceed, at least until summary judgment, unless the contracts here—the 25 pooling and servicing agreements (PSAs) at issue—clearly provide that the trustee has no duty to enforce the repurchase protocol outlined in the preceding provisions of the PSA. If for no other reason than that numerous lower courts—including the Appellate Division panel in this case—have reached contrary results about the meaning of the relevant provisions, this question should not be resolved on a motion to dismiss but requires discovery as to the intent of the parties, including the negotiation and drafting history of the relevant provisions.

Indeed, the majority’s interpretation of the central contrac-

tual provision, section 2.06, is contrary to its plain language and rests on an unsupportable distinction. According to the majority, when a contract specifies that one party “shall enforce” a contractual right, that obligates the party to do so, but if the contract instead specifies that one party “agrees to enforce” a right, the party is under no obligation to do so. Furthermore, an essential element of the majority’s analysis is to compare the agreements at issue here to other agreements involving different parties. Not only is that an extremely dubious way to determine the meaning of the terms in the contracts at issue, but the reliance on the terms of other agreements is reliance on parol evidence, *which the majority cannot consider unless the at-issue contracts are not clear on their face*. Of course, if they are not clear on their face, the trustee’s motion to dismiss must be denied, to allow for the development of a factual record. For the reasons stated below, I dissent and would affirm the holding of the Appellate Division denying the motion to dismiss with respect to plaintiffs’ claims predicated on a violation of section 2.06.

I.

Although “residential mortgage-backed securities” (RMBS) may sound ominous, having a basic understanding of their purpose and structure is useful in understanding the present dispute. Traditionally, home buyers went to a bank (or savings and loan), convinced the bank that the home buyer had sufficient income and other resources to afford the monthly payments (and associated costs, like taxes and insurance) for the bank to conclude that the home buyer was very likely to be able to make the payments, and obtained a loan that way. The bank secured the loan against the property by way of a mortgage, which, in combination with the proof of loan worthiness supplied by the borrower, gave the bank a good measure of security. Because traditional home lenders usually held the loans through maturity, those lenders tended to be conservative—that is, they required proof of substantial income, properly documented, and would lend an amount substantially less than the appraised value of the home. All of this provided for a relatively tight credit market for homebuyers.

The concept behind RMBS was that, by creating pools of thousands of home mortgages and selling interests in those pools to investors, the credit market could be loosened—first, because the securitization (that is, selling shares in the pool,

called “certificates”) would attract investors from outside the traditional lenders; and second, because the pooling and securitization could provide protection against failures of individual loans. The pooling, though, had another important consequence: lenders other than traditional banks sprung up to issue home loans to borrowers less able to meet the stricter requirements of banks, often referred to as “subprime.” Those mortgages, when pooled, often provided a higher return to the investors in the securities but carried a higher risk of default.

The formation of the collateral pool for an RMBS starts with a sponsor purchasing thousands of mortgages from one or more originating lenders (dubbed originators within the RMBS transaction) (June Rhee, *Getting Residential Mortgage-Backed Securities Right: Why Governance Matters*, 20 Stan JL Bus & Fin 273, 291-292 [2015]). The sponsor then transfers the pool to a depositor, another financial institution, which in turn transfers the pool into the RMBS trust (*id.*). For several reasons, neither the sponsor nor the depositor typically knows about the quality of the underwriting of the pooled loans. First, neither the sponsor nor the depositor originated the loans or was involved in evaluating the creditworthiness of the borrowers or the value of the secured property. Second, the sheer volume made due diligence impracticable (*id.*). Third, as a practical matter, the investors in the certificates would not care about the breach of the representations and warranties unless the loan went into default, so that prospective due diligence was unnecessary if the PSAs included a mechanism to make certificateholders whole when individual loans defaulted, and the representations and warranties had been breached as to that loan. Thus, to ensure that the securities would be marketable and that the price investors are paying for the certificates fairly reflects the value of the pooled collateral, the originator makes a series of representations and warranties to the sponsor and any subsequent recipient that the mortgages are of the quality that the agreement states they are (*id.* at 292). Those representations include the guarantee that the information regarding the creditworthiness of the borrower and the value of property is accurate (*id.*). If any mortgage is in breach of those representations and warranties (e.g., if a borrower’s creditworthiness has been misstated or if required documents are missing from the file), the originator must repurchase or replace the defective mortgage (*id.*; see also Kathleen C. Engel & Patricia A. McCoy, *Turning a Blind Eye: Wall Street Finance of Predatory Lending*, 75 Fordham L Rev 2039, 2061-2062 [2007]).

The certificateholders have the economic interest in the RMBS pool, yet have no direct relationship with the other parties to the transaction (*id.*). The investors rely upon the trustee, their representative in the transaction, to monitor the accuracy of the mortgage information and to act when it discovers that any representation or warranty is breached (*id.*). Thus, it is vital to the marketability of the RMBS that the trustee can, and must, demand a repurchase of any defective mortgage that is in default. The repurchase/replacement right is a key mechanism by which the investor is assured of the soundness of the investment, given the lack of examination into the individual loan files before the loans are pooled.

II.

The complaint alleges that the trustees breached two different duties. First, IKB alleges the trustee has a duty “to review (or cause to be reviewed) each of the mortgage files for the mortgage loans and certify that the documentation for each of the loans was accurate and complete,” and further provides that “[i]f there was a defect with any mortgage file . . . to demand that the [obligor] cure the defect leading to the exception or repurchase or replace the defective loans.” The complaint also alleges that if the obligor does not cure these document defects, the trustee has a duty “to enforce its rights for the benefit of investors to ensure that mortgage loans lacking complete mortgage files were removed from the mortgage pools underlying the securities.”

Section 2.06 of the at-issue PSAs, around which this dispute roils, provides: “The Trustee agrees to hold the Trust Fund and exercise the rights referred to above for the benefit of all present and future Holders of the Certificates and to perform the duties set forth in this Agreement in accordance with its terms.”¹

The “rights referred to above”—that is, in the sections preceding section 2.06—include the right to have defective loans replaced or repurchased (§§ 2.02, 2.05²) and the right to rely on the representations and warranties made by the seller (§ 2.03).

1. As the majority notes, this section appears in nearly identical form in all 25 at-issue PSAs.

2. “[Section 2.05] (b) Upon discovery by the Depositor, the Seller, a Servicer or the Trustee that any Mortgage Loan does not constitute a ‘qualified mortgage’ within the meaning of Section 860G(a)(3) of the Code, the party discovering such fact

(n. cont’d)

Thus, the PSAs clearly state that the trustee “agrees to . . . exercise the rights referred to above for the benefit of all present and future Holders of the Certificates.” The language could not be clearer: the trustee agrees to exercise whatever rights are “above” section 2.06, for the benefit of the certificateholders. No one disputes that replacing or repurchasing defective loans or enforcement of the representations and warranties would benefit the certificateholders.

Even putting aside the clarity of the contractual language, examining the PSA as a whole leads to the same conclusion. The sponsor and depositor are generally not the issuers of the underlying loans and have not done any due diligence to verify the completeness of the loan file or its compliance with the numerous representations and warranties set out in the PSAs. The replacement or repurchase obligation exists to ensure that if a loan is in default and a representation or warranty is breached (e.g., the borrower’s income verification or the property appraisal was not in the file, or the proper loan-to-value ratio was exceeded), the certificateholders would not be harmed by the lack of due diligence when creating the pool. No one disputes that the repurchase/replacement right exists. As a practical matter, the certificateholders cannot enforce that right, because only the trustee holds the loan files, and is obligated to do so. Moreover, the certificateholders are essentially passive investors in the pooled mortgages, charged with no duties with regard to the enforcement of rights contained in the PSAs. The sponsor and depositor no longer hold the loan files and have every interest in not triggering the repurchase/replacement obligation, because one or both would suffer from having to replace the defective nonperforming loan with a good loan or cash. Given the lack of due diligence when pooling the

shall promptly (and in any event within five (5) Business Days of discovery) give written notice thereof to the other parties. *In connection therewith, the Trustee shall require the Seller, at the Seller’s option, to either (i) substitute, if the conditions in Section 2.03(d) with respect to substitutions are satisfied, a Qualified Substitute Mortgage Loan for the affected Mortgage Loan, or (ii) repurchase the affected Mortgage Loan within 90 days of such discovery in the same manner as it would a Mortgage Loan for a breach of representation or warranty made pursuant to Section 2.03.* The Trustee shall reconvey to the Seller the Mortgage Loan to be released pursuant hereto in the same manner, and on the same terms and conditions, as it would a Mortgage Loan repurchased for breach of a representation or warranty contained in Section 2.03” (HEAT 2006-2 PSA [emphasis added]).

loans, the way in which the potential investors could be convinced of the soundness of an investment was through the repurchase/replacement obligation, which only the trustee is in a position to enforce.

III.

To evade the clear language by which the trustee agreed to exercise the rights above, the majority assembles a sequence of points that go nowhere. The majority begins by emphasizing that the PSAs contain “numerous contractual provisions expressly limiting the trustee’s duties to ‘only such duties as are specifically set forth in this Agreement’ ” (majority op at 287-288). I fully agree that the trustee’s duties are those specifically set forth in the PSA, but the PSA specifically says that the trustee agrees to exercise the rights contained above section 2.06. Moreover, even were there any lack of clarity about what rights were “above” section 2.06, that question could not be resolved on a motion to dismiss.

The PSAs expressly limit the trustees’ duties to those specifically set forth in the agreement for a good reason: an ordinary trustee of a corpus held for the benefit of others has a panoply of fiduciary duties not applicable to RMBS trustees. For example, regular trustees have many duties imposed by law, such as the duty to preserve the trust corpus by diversifying investments (*Matter of Steinberg*, 183 AD3d 1067, 1074 [3d Dept 2020]), the duty to make the trust property productive (*Matter of Hubbell*, 302 NY 246, 256 [1951]), and the duty to invade the trust corpus if necessary for the well-being of the beneficiaries (*In re Picard’s Estate*, 125 NYS2d 84, 85-86 [Sur Ct, NY County 1953]), among others (see Restatement [Second] of Trusts §§ 169-185). Those duties would contravene the purpose and structure of RMBS trusts; the language to which the majority points helps emphasize that the duties and obligations of the trustee are those consistent with the securitization and sale of the certificates as set forth in the PSAs, which undercuts the majority’s argument. (Those provisions also demonstrate why I disagree with my colleague, Judge Troutman: the PSAs strip the trustees of any duties not specifically set forth in the PSAs, so that there can be no tort claim by the certificateholders against the trustees arising from the trustees’ role.)

Next, the majority contends that the “rights referred to above” language is merely a reference to the trustee’s obliga-

tion, contained in the preceding part of the sentence, to hold the trust fund for the benefit of all certificateholders. But as the majority itself later explains, a right and a duty are not the same. The trustee has a duty to hold the trust fund for the benefit of the certificateholders, but it would be strange to refer to that as a “right” of the trustee (or the certificateholders). The rights above are the rights to replacement or repurchase of loans that do not comply with the representations and warranties. Moreover, if “rights referred to above” were a mere reiteration of the first part of the sentence, those words would be superfluous, a result contrary to a bedrock principle of contract interpretation that every word and clause in the contract should be given meaning (*Corhill Corp. v S.D. Plants, Inc.*, 9 NY2d 595, 599 [1961]).

The majority next relies on its view of how an ideal RMBS agreement should be structured, pointing out that “[section 2.06] is not where one would expect to find an enforcement mechanism for the repurchase protocol” because the section, generally and by its title, addresses the execution and delivery of the certificates, not anything to do with repurchasing defective loans. There are several problems with the majority’s conclusion. First, there is no record evidence of where one would expect to find enforcement mechanisms in RMBS agreements and the majority’s conclusion sure sounds like a factual finding. Second, the text of the portions of article II that precede section 2.06 contain pages of detail about the repurchase and replacement rights. Although one might have chosen to place the enforcement mechanism at a far distant point in the hundred-page-long PSA, placing it in section 2.06—immediately adjacent to the statement of rights—hardly seems unreasonable.

The next—and key—step in the majority’s analysis is its distinction between a right and a duty. From that distinction, the majority contends that that section 2.06 speaks only in terms of the trustee’s *right* to do something, not its duty, and any obligation imposed by the section is no obligation at all—rather the contract has relegated it to the total discretion of the trustee (majority op at 287). That argument fundamentally misstates the PSAs’ language. In section 2.06, the trustee “agrees to . . . exercise” the rights above, for the benefit of the certificateholders. Agreeing to exercise a right for the benefit of another is a duty to do so. When interpreting contracts, we give words their ordinary meaning. If you have a winning lot-

tery ticket, and I agree to enforce your right to collect the jackpot, I have assumed a duty to do so, for which I can be held liable in breach. Contracts in which an agent agrees to exercise rights on behalf of a principal are common; such agreements impose a duty on the agent to act for the benefit of the principal.

The majority cites three cases interpreting provisions similar to section 2.06 as not imposing a duty to exercise the repurchase/replacement rights (majority op at 287-288). There are more cases, not even counting the Appellate Division decision in this case, holding the opposite. (See 2021 NY Slip Op 30265[U], *27-29 [Sup Ct, NY County, Jan. 27, 2021], *affd in relevant part* 208 AD3d 423, 425 [1st Dept 2022]; *Zittman v Bank of N.Y. Mellon*, 2022 NY Slip Op 31527[U], *10 [Sup Ct, NY County, May 10, 2022]; *Finkelstein v U.S. Bank, N.A.*, 75 Misc 3d 1202 [A], 2022 NY Slip Op 50338[U], *5 [Sup Ct, NY County, May 2, 2022]; *Royal Park Invs. SA/NV v Deutsche Bank Natl. Trust Co.*, 2016 WL 439020, *4, 2016 US Dist LEXIS 12982, *12 [SD NY, Feb. 3, 2016, No. 14-CV-4394 (AJN)] [section 2.05 “creates an obligation to enforce breaches of R&Ws of which (the trustee) has knowledge”].) Of course, our job is not to measure the stacks of lower court cases and pick the larger stack. The relatively equal split in interpretation, however, strongly suggests that the contractual language is not clear on its face, and therefore cannot be resolved on a motion to dismiss.³ In any event, it would be quite difficult to argue that conflicting lower court interpretations provide any sort of persuasive precedent that should influence our decision.

Finally, the cornerstone of the majority’s opinion—that other PSAs involving other parties drafted at other times by unidentified lawyers contain different, allegedly clearer wording

3. It is noteworthy that the New York Supreme Court decisions uniformly holding that section 2.06 obligates the trustee to enforce the repurchase/replacement protocol were decided by three of our experienced Commercial Division Justices. The contrary federal district court cases relied on by the majority, *Commerzbank AG v U.S. Bank N.A.* (457 F Supp 3d 233, 257-258 [SD NY 2020]) and *Phoenix Light SF Ltd. v Deutsche Bank Natl. Trust Co.* (585 F Supp 3d 540, 591 [SD NY 2022]) rely solely on an Ohio state court decision, *Western & S. Life Ins. Co. v Bank of N.Y. Mellon* (2019-Ohio-388, ¶¶ 25-27, 129 NE3d 1085, 1093-1094 [Ct App 2019]), which found—*after a bench trial*—that a comparable section 2.06 in the PSA there did not obligate the trustee to enforce the repurchase/replacement protocol. Both *Phoenix Light* and *Commerzbank*, on which the majority also relies, were decided on summary judgment, not a motion to dismiss, and therefore do not support dismissal here.

of those trustees' obligations, from which we should conclude that the parties to these 25 PSAs meant something different—is more like quicksand than a cornerstone. The majority observes that there is a difference between the language used in the 25 at-issue PSAs and other PSAs consolidated into this same litigation, which use mandatory language when imposing an obligation to repurchase upon the trustee (majority op at 288-289). As an example, one of the other PSAs provides that the trustee “shall enforce the obligations of . . . the Seller . . . and cause the . . . Seller . . . to repurchase” (MSM 2007-3XS PSA § 2.05 [a] [vi]). In essence, the majority's point is that if the drafters of the agreements at issue here wanted to impose a repurchase obligation upon the trustee, they would have used the more mandatory language found in the other agreements.

As a preliminary matter, agreeing to do something is the same as saying you “will” or “shall” do something—when a party agrees to do something, that party will be in breach of its obligation under the contract if it fails to do what was promised (see e.g. *Davies, Hardy, Ives & Lawther v Abbott*, 38 NY2d 216, 219 [1975] [“It is even clearer, in our view, that the use of the verbal phrase, ‘agrees to assume’ can only be understood as manifesting a commitment to some obligation”]; *O'Brien v Home Benefit Socy. of N.Y.*, 117 NY 310, 318 [1889] [“By its certificate and the conditions annexed thereto, and under its by-laws, the defendant *agreed to do something, and that was to make an assessment upon its members for a death claim and to pay the proceeds not exceeding the stipulated amount . . . When the defendant refused to make an assessment it violated its contract, and became liable to the plaintiff for the damages caused by such violation*” (emphases added)]).

But, given the procedural posture of this case, there is a further, insuperable problem with the majority's reliance on different terms of other PSAs. “Parol evidence—evidence outside the four corners of the document—is admissible only if a court finds an ambiguity in the contract” (*Schron v Troutman Sanders LLP*, 20 NY3d 430, 436 [2013]). The majority's reliance on the text of other agreements drafted by unknown persons at unknown times involving different parties necessarily means the majority believes that the terms in dispute here are ambiguous. Because the case comes to us on a motion to dismiss, if we believe the agreement is ambiguous, we should affirm the denial of the motion to dismiss so the parties can

conduct discovery relevant to the resolution of the ambiguity. Under “ordinary contractual principles . . . the fact that an agreement is ambiguous does not result in a grant of summary judgment in either party’s favor” (*Gray v Pashkow*, 79 NY2d 930, 932 [1992]; *see also Aronson v Riley*, 59 NY2d 770, 773 [1983]). Furthermore, trying to determine the intent of parties to an agreement by reference to the terms of a different agreement between different parties executed at a different time is a highly dubious—and unprecedented—proposition. For example, one of the 25 at-issue agreements is a PSA among Credit Suisse (depositor), OCWEN Loan Servicing (servicer), Wells Fargo Bank (servicer), Select Portfolio Servicing, Inc. (servicer and special servicer) and U.S. Bank National Association (trustee). One of the “comparable” agreements with different terms is among Morgan Stanley Capital I, Inc. (depositor), Wells Fargo Bank, National Association (master servicer and securities administrator) and LaSalle Bank National Association (trustee). There is no reason whatsoever to think the terms of the latter agreement would shed light on the intent of the parties to the former. It is of course possible that some of the agreements with different language were drafted close in time by the same lawyers with an exact identity of parties, which might at least arguably provide some relevant evidence as to whether any different enforcement was intended, but: (1) neither the defendants nor the majority has done that work; and (2) because the case arrives on a motion to dismiss, we cannot know whether these different agreements have any relevance in determining the intent of the parties in the 25 at-issue agreements.

IV.

Were I to resort, as the majority has, to examining other RMBS transactions with different language to test the proposition of whether “agrees to . . . exercise the rights . . . above” meant something different from “shall enforce the obligations of . . . the Seller . . . and cause the . . . Seller . . . to repurchase,” I would look not just at the PSAs from unrelated transactions involving different parties, but instead would look at the integrated set of documents concerning the RMBS transactions being compared—most particularly, the offering

prospectus for the securities.⁴ If, as the majority hypothesizes, the trustees in the 25 PSAs at issue here have no obligation to enforce the repurchase/replace right, but in others do, that difference would be highly material, and would have to be disclosed in the prospectuses.

Unquestionably, the difference in RMBS pools where the trustee had an obligation to enforce the repurchase/replace right and those where it had no such obligation would be highly material, as evidenced by the fact that the prospectuses consistently disclose as a material risk the possibility that the replacement or repurchase of a mortgage may reduce the expected interest to be earned by the trust.⁵ A fortiori, a trustee's failure to enforce the replacement/repurchase right would be far more material than the mere difference in interest that might be earned on a replaced or repurchased loan. The prospectuses for the PSAs with the "agrees to . . . exercise" and the "shall enforce" language do not differ in the disclosure of risk in that regard.⁶ No "agrees to enforce" prospectus identifies any additional measure of risk arising from

4. Because the PSA and prospectus for an RMBS transaction are drafted and executed at the same time and cross-reference each other, contract principles dictate they should be read together as an integrated document (*Nau v Vulcan Rail & Constr. Co.*, 286 NY 188 [1941]; see also *Wells Fargo Bank, N.A. v Financial Sec. Assur. Inc.*, 504 F Appx 38, 40 [2d Cir 2012]) ["(W)e reject Assured's argument that the district court erred in considering, in interpreting the PSA, the Prospectus Supplement and other transaction documents related to the PSA. Under New York law, which governs the PSA, the district court properly considered all writings forming part of a single transaction"], citing *This Is Me, Inc. v Taylor*, 157 F3d 139, 143 [2d Cir 1998]).

5. Compare, e.g., "When a mortgage loan is prepaid in full or repurchased, excess interest will generally be reduced because the mortgage loan will no longer be outstanding and generating interest" (prospectus for ABFC 2006-OPT3, a "shall enforce" transaction), with "the responsible party may be required to purchase mortgage loans from the trust . . . which will have the same effect on the holders . . . as a prepayment of those mortgage loans" and if "principal is repaid faster than you anticipate, then your yield may be lower than you expect" (prospectus for FFML 2004-FF6, an "agrees to exercise" transaction)).

6. For the purpose of my examination, I have taken three PSAs with the "agrees to . . . exercise" language (FFML 2004-FF6 § 2.05; MSAC 2004 OP1 § 2.04; MSAC 2005-WMC6 § 2.04) and three with the "shall enforce the obligations" language (CARR 2006 NC5 § 2.03; CARR 2006-RFC1 § 2.03; ABFC 2006-OPT3 § 2.03), and matched them to the corresponding prospectuses (CARR 2006 NC5 prospectus; CARR 2006-RFC1 prospectus; ABFC 2006-OPT3 prospectus; FFML 2004-FF6 prospectus; MSAC 2004 OP1 prospectus; MSAC 2005-WMC6 prospectus) which are official documents filed

(n. cont'd)

the possibility that a trustee may discretionarily decide not to enforce the repurchase/replacement right.

I highlight this to make the following point: if potential diminution of interest earned on repurchased loans was sufficiently material to warrant a disclosure, the alleged contractual difference that would allow the trustee to choose not to require the repurchase or replacement of a defective loan would have been far more material, yet is not disclosed in any prospectus, regardless of the obligatory language in section 2.06 or elsewhere. In other words, if one chooses the majority's route of trying to draw conclusions about the 25 at-issue PSAs by looking at other transactions as to which they know nothing about comparability of drafting, the one thing we do know is that the SEC requires that the prospectuses disclose all material risks, and the prospectuses for the different PSAs contain no different disclosure of risks, and no disclosure of any risk that the trustee might simply choose not to exercise the repurchase/replacement rights above, even though it agreed to do so.

V.

To accept the majority's interpretation of section 2.06, one would have to believe that the parties involved in the 25 at-issue RMBS securitizations engaged in massive and repeated securities fraud by failing to disclose to potential investors that a risk of the agreement was that the trustee could sit idly by, as the sole entity in possession of the documents showing whether contractual representations and warranties had been breached, learned of those breaches, learned that loans were in default, and allow the value of the securities to collapse instead of exercising the repurchase/replacement right held on behalf of the certificateholders. I do not believe that for a second. Instead, what is clear—from the plain language of section 2.06, from the structure and objectives of RMBS pooling arrangements, from the disclosures in the prospectuses, and from common sense—is that no one expected that RMBS trustees could fiddle while Rome burned. But even if one thought that was a possibility, it is not one to be decided on a motion to dismiss.

TROUTMAN, J. (dissenting in part). I agree that plaintiffs were not required to comply with the no-action clause and

with the SEC of which we may take judicial notice (*Caprio v New York State Dept. of Taxation & Fin.*, 25 NY3d 744, 756 [2015]).

that, for the 25 trusts to which the issue pertains, section 2.06 of the governing agreement does not impose a duty upon the trustee to enforce the cure or repurchase protocol against the obligated parties before an event of default. I therefore join sections II and III of the majority writing. I further concur with the majority's observation in section IV that the economic loss rule pertains only to the products liability context and has no application here. I respectfully disagree, however, with that part of section IV which concludes that plaintiffs' remaining tort claims must be dismissed as duplicative of their breach of contract claims.

On a CPLR 3211 motion to dismiss, we are obligated to give the pleading a liberal construction, "accept the facts as alleged in the complaint as true, accord plaintiffs the benefit of every possible favorable inference, and determine only whether the facts as alleged fit within any cognizable legal theory" (*Leon v Martinez*, 84 NY2d 83, 87-88 [1994]). "[T]he criterion is whether the proponent of the pleading has a cause of action, not whether he has stated one" (*id.* at 88 [internal quotation marks omitted]). Applying this liberal standard, I would allow plaintiffs' remaining tort claims to proceed to discovery.

"It is a well-established principle that a simple breach of contract is not to be considered a tort unless a legal duty independent of the contract itself has been violated" (*Dormitory Auth. of the State of N.Y. v Samson Constr. Co.*, 30 NY3d 704, 711 [2018], quoting *Clark-Fitzpatrick, Inc. v Long Is. R.R. Co.*, 70 NY2d 382, 389 [1987]). The Court has identified several factors that are relevant to a determination of whether a tort claim is duplicative of a contract claim, including, but not limited to, the "nature of the injury, how the injury occurred and the harm it caused" (*Dormitory Auth.*, 30 NY3d at 711; see also *New York Univ. v Continental Ins. Co.*, 87 NY2d 308, 316 [1995]). If the plaintiff has identified an independent legal duty, however, and is not simply seeking enforcement of its contractual bargain, the tort claim is not duplicative (see *Dormitory Auth.*, 30 NY3d at 711-712; *Sommer v Federal Signal Corp.*, 79 NY2d 540, 551-552 [1992]).

With respect to plaintiffs' cause of action alleging breach of fiduciary duty, the complaint* alleges that after an event of default (EOD), the trustee owed a fiduciary duty to the trust

* As the majority notes (see majority op at 283 n 1), although there are multiple complaints involved in this litigation, the parties have agreed to treat one complaint as representative.

and its investors. The complaint further alleges that the trustee breached that fiduciary duty by failing to investigate whether there were additional breaches of representations and warranties that required enforcement of the cure and repurchase protocol. Although the pooling and servicing agreement (PSA) obligates the trustee to act as a “prudent person” would in the exercise of its own affairs after an EOD, the PSA does not expressly define those “prudent person” duties. Moreover, plaintiffs’ breach of fiduciary duty claims have been narrowed by the courts below such that only those post-EOD claims that are not based upon the trustee’s failure to act as contractually required remain (*see* 208 AD3d 423, 424, 431 [1st Dept 2022]). Inasmuch as the PSA does not expressly define the trustee’s “prudent person” or fiduciary duties post-EOD, plaintiffs have identified a “legal duty independent of the contract itself” (*Dormitory Auth.*, 30 NY3d at 711), i.e., a duty arising from the trustee’s fiduciary obligations after an EOD.

Plaintiffs’ conflict of interest claims should also survive dismissal. Contrary to the majority’s assertion (*see* majority op at 291), plaintiffs are not alleging that defendants’ conflicts of interest led to their breach only of contractual duties. Plaintiffs also allege that defendants made decisions regarding discretionary actions that they were not contractually obligated to take based on the influence of certain conflicts of interest. For example, the complaint alleges that the trustees’ conflicts of interest led them to “refrain[] from enforcing the Trusts’ rights for breaches of a representation or warranty regarding the mortgage loans.” Yet, for 25 of the trusts at issue in this litigation, the Court is (correctly, in my view) concluding that the trustee had no contractual pre-EOD duty to enforce the cure or repurchase protocol against the obligated parties. In other words, for those 25 trusts, the trustee had no pre-EOD contractual duty to enforce the cure or repurchase protocol, but it did have an obligation to make its discretionary decision as to whether to exercise that enforcement right free from conflicts of interest. The Court now dismisses the pre-EOD breach of contract claims to that extent for those trusts because it concludes that no such contractual duty exists, yet at the same time the Court holds that plaintiffs have not identified any legal duty independent of the contract with respect to their conflict of interest claims. Of course, duplicative tort claims do not survive simply because, at the same procedural stage, we have rejected the contractual claims. The tort claim can survive, however, and is not duplicative when it is not based upon a contractual duty.

The fact that the tort and contract claims both allege diminishment of trust assets does not, standing alone, render those claims duplicative. Although the similarity of the damages is one factor that may be considered to determine whether tort claims are duplicative of contract claims (*see Dormitory Auth.*, 30 NY3d at 712-713), the plaintiff's primary obligation remains to identify "a legal duty independent of the contract itself" that has been violated (*see id.* at 711 [internal quotation marks omitted]). I agree with the Appellate Division that if both contractual breaches and extracontractual breaches of tort duties caused the trusts' assets to diminish, there is no reason that plaintiffs should be prevented from fully recovering their damages (*see* 208 AD3d at 431).

Although plaintiffs may not ultimately succeed after discovery in proving that defendants breached legal duties independent of their contractual duties, the complaint has sufficiently pleaded at this stage of the litigation that those independent legal duties existed.

Order insofar as appealed from modified, without costs, in accordance with the opinion herein, as so modified, affirmed, and certified question answered in the negative.

Judges RIVERA, SINGAS and CANNATARO concur. Chief Judge WILSON dissents in part in an opinion. Judge TROUTMAN dissents in part in a separate opinion. Judge HALLIGAN took no part.

[221 NE3d 1, 198 NYS3d 259]

THE PEOPLE OF THE STATE OF NEW YORK ex rel. DANNY RIVERA,
Appellant, v SUPERINTENDENT, WOODBOURNE CORREC-
TIONAL FACILITY, et al., Respondents.

Argued May 17, 2023; decided June 15, 2023

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered December 16, 2021. The Appellate Division order, insofar as appealed from, (1) reversed, on the law, so much of a judgment (denominated order) of the Supreme Court, Sullivan County (Stephan Schick, J.), entered in a habeas corpus proceeding pursuant to CPLR article 70, as had granted petitioner's application to the extent of (a) directing respondents to release petitioner to parole supervision; and (b) enjoining respondent New York State Department of Corrections and Community Supervision from applying the Sexual Assault Reform Act's mandatory sex offender housing condition to petitioner; (2) converted the petition to a declaratory judgment action; and (3) declared that respondents' implementation of the Sexual Assault Reform Act does not violate the Ex Post Facto Clause of the United States Constitution.

People ex rel. Rivera v Superintendent, Woodbourne Corr. Facility, 200 AD3d 1370, affirmed.

HEADNOTE

Constitutional Law — Ex Post Facto Law — Challenge to Sexual Assault Reform Act's School Grounds Condition

The Sexual Assault Reform Act's (SARA) school grounds condition (Executive Law § 259-c [14]), which prohibits sex offenders from entering, working in, or residing near designated areas where children are regularly expected to be in larger numbers, does not violate the Ex Post Facto Clause of the United States Constitution when applied to sex offenders whose crimes predated the 2005 amendments to SARA. As SARA was not intended to be a punitive statutory scheme, petitioner sex offender was required to demonstrate that the effects of the school grounds condition are so punitive as to negate the legislature's intention to deem SARA a civil statutory scheme. Most significantly, the temporary confinement of sex offenders in correctional facilities, while on a waiting list for SARA-compliant housing, is rationally related to a conceivable, legitimate government purpose of keeping level three sex offenders more than 1,000 feet away from schools. That purpose is nonpunitive because it aims to ensure that those who, as level three sex offenders, pose a high risk of recidivism do not have contact with minors while awaiting confirmation of appropriate residence. The school grounds condition

is carefully tailored so as to burden only two, possibly overlapping, populations of sex offenders that the legislature has assessed as presenting the severest threat to children. In so doing, the legislature has ensured a measure of individualized assessment prior to the condition's imposition. The legislature's careful application of SARA's school grounds condition to the populations of sex offenders who have demonstrated the highest risk to the health and safety of children cannot be deemed excessive. A statutory scheme that serves a regulatory purpose is not necessarily punishment for ex post facto purposes even though it may bear harshly on one affected.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Constitutional Law § 709; AM JUR 2d Mentally Impaired Persons § 140.

McKINNEY'S, Executive Law § 259-c (14).

NY JUR 2d Constitutional Law § 318.

ANNOTATION REFERENCE

Validity of State Sex Offender Registration Laws Under Ex Post Facto Prohibitions. 63 ALR6th 351.

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POINTS OF COUNSEL

Twyla Carter, The Legal Aid Society, New York City (Kerry Elgarten of counsel), for appellant. The cumulative burdens and restraints resulting from the joint application of the Sex Offender Registration Act and the Sexual Assault Reform Act are punitive in effect, and their application to someone who committed an offense before those statutory provisions existed thus violates the Ex Post Facto Clause (US Const, art I, § 10). (*Collins v Youngblood*, 497 US 37; *Kellogg v Travis*, 100 NY2d 407; *Smith v Doe*, 538 US 84; *People v Harnett*, 16 NY3d 200; *People v Pettigrew*, 14 NY3d 406; *People v Gravino*, 14 NY3d 546; *People v Mingo*, 12 NY3d 563; *Matter of North v Board of Examiners of Sex Offenders of State of N.Y.*, 8 NY3d 745; *Doe v Cuomo*, 755 F3d 105; *Doe v Pataki*, 120 F3d 1263.)

Letitia James, Attorney General, Albany (Frank Brady, Barbara D. Underwood and Jeffrey W. Lang of counsel), for respondents. I. This case does not present the question whether

the Sex Offender Registration Act, alone or in tandem with the Sexual Assault Reform Act, violates the Ex Post Facto Clause. (*Doe v Pataki*, 120 F3d 1263; *People v Parilla*, 109 AD3d 20, 21 NY3d 865.) II. The Sexual Assault Reform Act's school grounds condition does not violate the Ex Post Facto Clause because it is a civil, regulatory law that is not so punitive in effect as to negate the State's intent to deem it civil. (*Collins v Youngblood*, 497 US 37; *Kellogg v Travis*, 100 NY2d 407; *Hobbs v County of Westchester*, 397 F3d 133; *De Veau v Braisted*, 363 US 144; *Wallace v State of New York*, 40 F Supp 3d 278; *Kansas v Hendricks*, 521 US 346; *People v Harnett*, 16 NY3d 200; *Matter of North v Board of Examiners of Sex Offenders of State of N.Y.*, 8 NY3d 745; *People ex rel. Negron v Superintendent, Woodbourne Corr. Facility*, 36 NY3d 32.)

OPINION OF THE COURT

SINGAS, J.

At issue in this case is whether the Sexual Assault Reform Act's (SARA) school grounds condition, as codified in Executive Law § 259-c (14), violates the Ex Post Facto Clause of the United States Constitution when applied to offenders whose crimes predated the 2005 amendments to SARA. We hold that petitioner has not met his burden to demonstrate, by the clearest proof, that it does.

I.

In 1986, petitioner was convicted of two counts of murder in the second degree, two counts of attempted murder in the second degree, and one count of rape in the first degree, stemming from an incident where petitioner, acting in concert with four co-offenders, shot four individuals, killing two and wounding two others. Petitioner also raped one victim, a 25-year-old woman whom he later shot three times. Petitioner was sentenced to an aggregate prison term of 20 years to life. In April 2019, petitioner was granted an open parole release date of May 23, 2019. At his Sex Offender Registration Act (SORA) hearing held prior to his anticipated release, petitioner was adjudicated a level three sexually violent offender. The level three SORA designation, and the fact that petitioner is serving a sentence for an offense enumerated in Executive Law § 259-c (14), subjects petitioner to SARA's school grounds condition, which effectively prohibits him from living within 1,000 feet of a school, or "any other facility or institution primarily used for

the care or treatment” of minors (Executive Law § 259-c [14]). Petitioner was unable to locate SARA-compliant housing before his open release date. Because petitioner did not satisfy the mandatory parole condition, he remained in custody until he could locate suitable housing.

In October 2020, petitioner filed a petition for a writ of habeas corpus, seeking immediate release on the grounds that SARA’s residency restriction, enacted after petitioner committed his crimes, violated the Ex Post Facto Clause of the Federal Constitution as applied to him. Supreme Court granted petitioner’s application and held that application of both SORA and SARA to petitioner violated the Ex Post Facto Clause because the effect of the residency restriction in prolonging petitioner’s incarceration past his release date was punitive. The court ordered respondents, Woodbourne Correctional Facility Superintendent and the New York State Department of Corrections and Community Supervision (collectively DOCCS), to release petitioner to parole supervision and enjoined DOCCS from applying the school grounds condition to him. Petitioner remained incarcerated pursuant to stays of Supreme Court’s judgment until March 2021, at which time SARA-compliant housing became available and he was released to parole supervision.

The Appellate Division unanimously reversed the judgment on the law (*see* 200 AD3d 1370 [3d Dept 2021]).¹ The Court held “that DOCCS’s adherence to its statutory obligation of imposing SARA residency restrictions does not constitute a violation of the Ex Post Facto Clause” (*id.* at 1374-1375 [citation omitted]). Applying the Supreme Court’s intent-effects test, the Court “acknowledge[d] that SARA’s residency restriction ‘constitute[s] affirmative restraint[], bear[s] some resemblance to historical criminal punishment, and serve[s] the goal of deterrence’ ” (*id.* at 1373). However, the Court concluded that the condition does not violate the Ex Post Facto Clause because it is both “rationally related to a conceivable, legitimate government purpose of keeping level three sex offenders more than 1,000 feet away from schools” (*id.* at 1374, quoting *People ex rel. Johnson v Superintendent, Adirondack Corr. Facility*, 36 NY3d 187, 203 [2020]) and “‘tailored to impose the greatest restrictions on the riskiest sex offenders’ ”

1. The Court also converted the petition to a declaratory judgment action, as petitioner was no longer in custody.

(*id.*, quoting *Wallace v State of New York*, 40 F Supp 3d 278, 320 [ED NY 2014]).

We granted petitioner’s motion for leave to appeal (*see* 38 NY3d 1029 [2022]).

II.

Originally enacted in 2000 as a provision of SARA, a statutory scheme designed “to better protect the public, and especially children, from sex offenders determined to pose the most risk” (*Matter of Alvarez v Annucci*, 38 NY3d 974, 976 [2022]), Executive Law § 259-c (14) imposed a mandatory condition prohibiting certain sex offenders from entering school grounds or other child-care facilities (*see* L 2000, ch 1, § 8). The condition originally applied only to those sex offenders whose crimes were committed against victims under 18 years old. In 2005, the legislature amended the provision and expanded the reach of this condition in two respects (L 2005, ch 544, § 2). First, the legislature adopted a broader definition of “school grounds,” as set forth in Penal Law § 220.00 (14) (b), to include “any area accessible to the public located within [1,000] feet of” a school or child-care facility. Second, the legislature applied the school grounds condition to a second group of offenders: those designated “level three sex offenders serving a sentence for an enumerated offense” (*People ex rel. Negron v Superintendent, Woodbourne Corr. Facility*, 36 NY3d 32, 34 [2020]). Within these two categories of sex offenders, the condition applies only to those who are on parole, on conditional release, or “subject to a period of postrelease supervision” (*Matter of Alvarez*, 38 NY3d at 976).

Though Executive Law § 259-c (14) is not a residency restriction by its explicit language, the “practical effect” of the condition “is that any sex offender who is subject to [it] is unable to reside within 1,000 feet of a school or facility as defined in Penal Law § 220.00 (14) (b)” (*People v Diack*, 24 NY3d 674, 682 [2015]). In practice, DOCCS requires subject offenders to secure SARA-compliant housing prior to, and as a condition of, their release. In the event these offenders are unable to find compliant housing prior to their expected release date, DOCCS will not release them. Rather, those who are set to begin supervised release are either transferred to residential treatment facilities (RTFs) (*see People ex rel. McCurdy v Warden, Westchester County Corr. Facility*, 36 NY3d 251, 254 [2020]), or remain in prison (*Johnson*, 36 NY3d at 193) depending on the terms of

the individual offender's sentence. DOCCS will only release these offenders when they secure compliant housing.

Petitioner's argument focuses exclusively on the carceral effect of Executive Law § 259-c (14). While petitioner maintains that his claim challenges both SORA and SARA, petitioner does not assert that the effects of SORA, beyond its operation by which petitioner was adjudicated a level three offender subjecting him to SARA's school grounds condition, are punitive. As such, only Executive Law § 259-c (14) is at issue in this case.

III.

The United States Constitution's Ex Post Facto Clause prohibits states from "retroactively alter[ing] the definition of crimes or increas[ing] the punishment for criminal acts" (*Collins v Youngblood*, 497 US 37, 43 [1990]). The ex post facto prohibition "applies only to penal statutes" and "where the challenged statute does not seek to impose a punishment, it does not run afoul of the Ex Post Facto Clause" (*Kellogg v Travis*, 100 NY2d 407, 410 [2003]).

To determine whether a statute violates the Ex Post Facto Clause, courts apply the Supreme Court's intent-effects test (*see Smith v Doe*, 538 US 84, 92 [2003]). This two-pronged inquiry first considers whether the legislature intended the relevant statute to be punitive or civil in nature (*see id.*). If the legislature intended the statute to be punitive, its retroactive application to conduct that predates the statute violates the Ex Post Facto Clause (*see id.*). If not, a court must then consider whether the statute is "so punitive either in purpose or effect as to negate [the] . . . intention to deem it civil" (*id.* [some internal quotation marks omitted], quoting *Kansas v Hendricks*, 521 US 346, 361 [1997]). The parties agree that SARA was not intended to be a punitive statutory scheme; indeed, this Court's precedent, as well as SARA's legislative history, confirms that the legislature enacted Executive Law § 259-c (14) to protect children from sex offenders, not to punish those offenders (*see Matter of Alvarez*, 38 NY3d at 976; *Johnson*, 36 NY3d at 203; Assembly Mem in Support, Bill Jacket, L 2005, ch 544 at 4). Thus, only the "effects" prong of the inquiry is at issue—that is, whether the effects of the school grounds condition are so punitive as to negate the legislature's intent to deem SARA a civil statutory scheme.

"Legislative enactments enjoy a strong presumption of constitutionality" (*LaValle v Hayden*, 98 NY2d 155, 161 [2002]).

“‘[O]nly the clearest proof’ will suffice to override legislative intent and transform what has been denominated a civil remedy into a criminal penalty’” (*Smith*, 538 US at 92 [some internal quotation marks omitted], quoting *Hudson v United States*, 522 US 93, 100 [1997]). The clearest proof requirement is a “heavy burden” on the party challenging the statute (*Hendricks*, 521 US at 361).

Moreover, this Court may not consider an “as-applied” challenge to Executive Law § 259-c (14) (see *Seling v Young*, 531 US 250, 263 [2001]). Because “[t]he civil nature of a [statutory] scheme cannot be altered based merely on vagaries in the implementation of the authorizing statute,” an “as-applied” analysis “would never conclusively resolve whether a particular scheme is punitive and would thereby prevent a final determination of the scheme’s validity under” the Ex Post Facto Clause (*id.*). Instead, we must assess the statute on its face and “consider[] the effects of [Executive Law § 259-c (14)] as they [a]re generally felt by those who [a]re subject to them” (*McGuire v Marshall*, 50 F4th 986, 1004 [11th Cir 2022]; see also *Smith*, 538 US at 99-100).

The United States Supreme Court has set forth several relevant factors that may serve as “useful guideposts” in considering whether the effects of a statute are so punitive as to render its retroactive application unconstitutional (*Hudson*, 522 US at 99). Most relevant to our analysis are five such factors: (1) whether the condition constitutes an affirmative restraint, (2) whether the condition resembles historically criminal punishment, (3) whether the condition promotes the traditional aims of punishment, (4) whether the condition is rationally connected to a nonpunitive purpose, and (5) whether the condition is excessive in relation to that nonpunitive purpose (*Kennedy v Mendoza-Martinez*, 372 US 144, 168-169 [1963]; see also *Smith*, 538 US at 97).

Evaluating Executive Law § 259-c (14) within the intent-effects framework, the first three factors tend to weigh in petitioner’s favor but are not themselves dispositive. First, the school grounds condition is an affirmative restraint to the extent that it prohibits offenders from entering, working in, or residing near designated “areas where children are regularly expected to be in larger numbers” (*Matter of Williams v Department of Corr. & Community Supervision*, 136 AD3d 147, 153 [1st Dept 2016]). For those offenders who, like petitioner, are unable to secure SARA-compliant housing, the condition may

result in “the paradigmatic affirmative disability or restraint”—incarceration (*Smith*, 538 US at 100).

However, this is not an as-applied challenge and Executive Law § 259-c (14)’s carceral effect on the entire group of offenders to whom it applies is unclear from the record. Though this Court has recognized that there is a “dearth of SARA-compliant housing” in New York City (*Matter of Gonzalez v Annucci*, 32 NY3d 461, 470 [2018]), petitioner has failed to establish the extent to which Executive Law § 259-c (14) affects all of the sex offenders to whom it applies. Petitioner has not provided any data on how many offenders have experienced or are experiencing prolonged incarceration due, either entirely or in part, to SARA’s school grounds condition.² Nor does the record contain other relevant information such as how many offenders are successful in locating SARA-compliant housing prior to their anticipated release; the proportion of offenders who are subject to the condition by virtue of committing their crime against a victim under 18 years old, their level three designation, or both; the proportion of adjudicated sex offenders subject to the school grounds condition at all; or maps outlining the restricted geographic areas throughout the state which fall within the definition of “school grounds.”

Judge Rivera’s dissent acknowledges that the intent-effects test requires “focus on the punitive nature of the scheme itself, not on any idiosyncratic application of the law to an individual petitioner” and characterizes the carceral effect of the school grounds condition as a “common reality” (Rivera, J., dissenting op at 328, 333).³ Nevertheless, the dissent inconsistently asserts “that the size of the class subject to the residency restriction is irrelevant to petitioner’s facial Ex Post Facto Clause challenge” (*id.* at 334) and that “[t]he fact that some offenders identify compliant housing in time for their release date, and thus are not kept in prison, does not change the analysis” (*id.* at 331). Whether an effect is idiosyncratic or common necessar-

2. “[A]pproximately 295 prisoners” were on the waitlist for placement in SARA-compliant New York City homeless shelters in 2019, with the average waiting time for placement being two to three years (*People ex rel. Johnson v Superintendent, Adirondack Corr. Facility*, 174 AD3d 992, 996 [3d Dept 2019, Garry, P.J., concurring]). DOCCS asserted at oral argument that those numbers are drastically lower today.

3. This dissent does not cite any statistical evidence supporting this proposition, instead relying on only a handful of cases in which sex offenders experienced the effect (*see id.* at 333).

ily rests on the proportion of the subjected class experiencing the effect; in fact, this is the crux of the ex post facto analysis.

Further, the scope of SARA's impact is limited in that subject offenders are only constrained by the condition while "serving [their] sentence," as the condition applies only to those released on "parole" or "conditional[] release[]" (Executive Law § 259-c [14]), or "subject to a period of postrelease supervision" (*Matter of Alvarez*, 38 NY3d at 976). SARA's school grounds restriction, then, is effectively a parole condition and every parole condition constitutes an affirmative restraint which the Board of Parole has broad statutory authority to impose (*see* Executive Law § 259-c [2]). For some, these conditions serve to reduce one's incarceration by allowing release before the "expiration of a valid sentence," which is not a "constitutional or inherent right of a convicted person" (*Greenholtz v Inmates of Neb. Penal & Correctional Complex*, 442 US 1, 7 [1979]). Both at the time petitioner committed his crimes and at his open release date, the Board of Parole possessed the "power and duty of determining" whether petitioner could be released and under what "conditions" (*see* Executive Law § 259-c [2]; former Executive Law § 259-c [1]). Such conditions include individualized residency restrictions.⁴ An additional condition does not equate to increased punishment where an offender anticipating supervised release expects the imposition of dozens of restrictions that must be satisfied prior to release (*see* Executive Law § 259-c [2]; *see also McCurdy*, 36 NY3d at 260-262).⁵ Section 259-c (14)'s general effect is thus no greater than other parole conditions which undisputedly apply to petitioner.

Second, the school grounds condition bears some resemblance to the historical punishment of banishment. Offenders subject to Executive Law § 259-c (14) must "tailor much of their lives around these [restricted] zones" (*Does #1-5 v Snyder*, 834 F3d 696, 702 [6th Cir 2016]), forced to forgo certain employment and housing opportunities. Some offenders may be alienated from their friends and families who reside near a school or

4. Appellate courts have upheld the outright denial of parole release to incarcerated sex offenders for the failure to obtain a suitable residence (*see e.g. Matter of Lynch v West*, 24 AD3d 1050, 1051 [3d Dept 2005]; *Matter of Billups v New York State Div. of Parole, Chair*, 18 AD3d 1085, 1086 [3d Dept 2005]; *Matter of Wright v Travis*, 297 AD2d 842, 842 [3d Dept 2002]).

5. This fact is particularly pertinent with regard to sex offenders, as "the State's ongoing monitoring, management and treatment of registered sex offenders, which includes the housing of registered sex offenders . . . does not end when the sex offender is released from prison" (*Diack*, 24 NY3d at 685).

child-care facility. For those offenders, like petitioner, experiencing prolonged confinement while awaiting the availability of SARA-compliant housing, the condition temporarily removes them from society. Critically, however, the condition does not preclude sex offenders from living and traveling within their communities and throughout the state. The condition does not even entirely prohibit sex offenders from “ventur[ing] into restricted areas, even if they cannot reside there and/or access such areas during school hours” (*Wallace*, 40 F Supp 3d at 317). Some offenders, perhaps even the overwhelming majority,⁶ find housing or employment opportunities without feeling the effects of the school grounds condition.

Third, we must consider whether the condition promotes the traditional aims of punishment: deterrence, incapacitation, rehabilitation, and retribution (*see People v Notey*, 72 AD2d 279, 282 [2d Dept 1980]; *People v Golden*, 41 AD2d 242, 243-244 [1st Dept 1973]). DOCCS concedes that the condition is intended to promote deterrence. The restriction employs the threat of a parole violation and possible reincarceration to deter sex offenders from entering into areas where children congregate, a kind of specific deterrence (*see Black’s Law Dictionary* 564 [11th ed 2019]). But this factor is of limited value here as civil regulatory schemes may “deter crime without imposing punishment” and “[t]o hold that the mere presence of a deterrent purpose renders such sanctions criminal would severely undermine the Government’s ability to engage in effective regulation” (*Smith*, 538 US at 102 [internal quotation marks and ellipsis omitted]). Application of SARA’s school grounds condition also results here in incapacitation, and generally promotes the aim of incarceration by limiting sex offenders’ opportunities for recidivism (*see Matter of Williams*, 136 AD3d at 159). Similar to deterrence, however, incapacitation “can also rightly be described as civil and regulatory” and does not automatically transform a civil statute into a punitive one (*Snyder*, 834 F3d at 704; *see e.g. Hendricks*, 521 US at 363; *United States v Salerno*, 481 US 739, 746-747 [1987]).

The “[m]ost significant factor” in the ex post facto analysis is the fourth, which requires consideration of whether the statute has a “rational connection to a nonpunitive purpose” (*Smith*, 538 US at 102 [internal quotation marks omitted]) and here,

6. As discussed, we cannot discern from this record what proportion of offenders are able to comply with SARA’s school grounds condition without issue.

weighs heavily against petitioner. This Court recently considered this question in evaluating a substantive due process challenge to Executive Law § 259-c (14) (*see Johnson*, 36 NY3d at 203).⁷ As this Court held in that case, “the temporary confinement of sex offenders in correctional facilities, while on a waiting list for SARA-compliant . . . housing, is rationally related to a conceivable, legitimate government purpose of keeping level three sex offenders more than 1,000 feet away from schools” (*Johnson*, 36 NY3d at 203). That purpose is non-punitive, as discussed, because it aims to “ensure[] that” those “who, as level three sex offenders . . . pose a high risk of recidivism” do not have “contact with minors while awaiting confirmation of appropriate residence” (*id.*).

Petitioner cites scholarship questioning the efficacy of residency restrictions on sex offense recidivism. On this record, the empirical data, while troubling if taken at face value, is hardly conclusive in petitioner’s favor, and we have no record of this scholarship’s methodology or whether it has been subjected to peer review analysis.⁸ DOCCS similarly does not provide information on the efficacy of residency restrictions.

7. Judge Rivera’s dissent attempts to draw an arbitrary distinction between rational basis review and the ex post facto’s relevancy inquiry (*see Rivera*, J., dissenting op at 341-342). It is difficult to understand any meaningful difference between a review which requires consideration of whether a statute is “rationally related to any conceivable legitimate [s]tate purpose” (*Johnson*, 36 NY3d at 202) and a review which considers whether a statute has a “rational connection to a nonpunitive purpose” (*Smith*, 538 US at 102). The only distinction between these inquiries is that the ex post facto analysis requires that the purpose be nonpunitive. Given that *Johnson*’s rationality holding in no way rested on the restriction’s punitive nature, any distinction is simply a legal fiction upon which Judge Rivera’s dissent bases its disregard of *Johnson*’s precedential effect.

8. Judge Rivera’s dissent posits that we are able to evaluate the methodology of one study cited by petitioner (*see Rivera*, J., dissenting op at 337-338 n 8). This study conducted a survey asking a sample of 200 registered sex offenders in Indiana various questions to ascertain their experiences complying with a residency restriction, such as whether an offender “found it difficult to find an affordable place to live” and whether the restriction has made an offender “feel hopeless, angry and/or depressed” (*see Jill S. Levenson & Andrea L. Hern, Sex Offender Residence Restrictions: Unintended Consequences and Community Reentry*, 9 Just Rsch & Poly [Issue 1] 59, 65-67 [2007]). Given that the study relies exclusively on sex offenders’ self-reporting, it is irrelevant to our analysis. In any event, the survey results do not support a conclusion that a school grounds condition does not successfully curb recidivism; 19% of responding offenders agreed or strongly agreed to the statement that “[r]esidence restrictions help me to prevent offending” and 26% agreed or strongly agreed with the statement “I am more able to

(n. cont’d)

This record provides an insufficient basis for reconsideration of our prior determination in *Johnson*. Moreover, that other, perhaps more effective, legislative measures exist to advance SARA's nonpunitive purpose does not negate the rational connection between that purpose and SARA's school grounds condition. Certainly, the choice of which rational policy measure to enact falls squarely within the legislature's discretion; "[t]he wisdom of a particular statute is beyond the scope of judicial review and we should not substitute our judgment for that employed by the [l]egislature in enacting the statute in question" (*A. E. Nettleton Co. v Diamond*, 27 NY2d 182, 194 [1970] [citations omitted]). Indeed, "when a legislative enactment is challenged on constitutional grounds, there is . . . a presumption that the [l]egislature has investigated for and found facts necessary to support the legislation" (*White v Cuomo*, 38 NY3d 209, 217 [2022] [internal quotation marks omitted]). When determining which restrictions should be placed on sex offenders in order to best promote public safety, it is the legislature and not this Court that can, and perhaps should, hold hearings, invite expert testimony, and gather all relevant scholarship.⁹ Petitioner's efficacy argument thus fails, at this juncture, to disprove the rational connection between the school grounds condition and the legislature's nonpunitive purpose in enacting it.

Finally, concerning the statute's proportionality to its nonpunitive purpose of protecting children, the question similarly is not "whether the legislature has made the best choice possible to address the problem it seeks to remedy," but instead, "whether the regulatory means chosen are reasonable in light of the nonpunitive objective" (*Smith*, 538 US at 105). Unlike the broadly and automatically applied residency restrictions of other states (*see e.g. Does v Wasden*, 982 F3d 784, 787 [9th Cir

manage my risk factors because I cannot live near a school, park or playground" (*id.* at 66).

9. We are not suggesting that the legislature be granted blind deference in an ex post facto analysis, and certainly not in the context of evaluating the excessiveness of a statute (*see Halligan, J.*, dissenting op at 346-347). Rather, we are bound to the record before us, which does not contain sufficient empirical evidence to warrant a departure from the legislature's reasoned judgment. A fuller record would have provided us, or may provide in the future, the opportunity to engage in a thorough assessment of the efficacy of SARA's school grounds condition; indeed, both dissents raise valid concerns about such efficacy. But whereas the legislature may revisit the condition and freely consider all scholarship, we cannot engage in fact finding beyond the record supplied by the parties themselves.

2020] [residency restriction applies to all sex offender registrants]; *People v Betts*, 507 Mich 527, 535, 968 NW2d 497, 501 [2021] [school grounds condition applies to “most (sex offender) registrants”]; *Starkey v Oklahoma Dept. of Corr.*, 2013 OK 43, ¶ 60, 305 P3d 1004, 1025 [2013] [residency restriction applies to all sex offender registrants]; *Commonwealth v Baker*, 295 SW3d 437, 441 [Ky 2009] [(“w)hile the original residency restriction statute applied only to those on probation, parole, or other form of supervised release, the current statute applies to all registrants regardless of probation or parole status”)],¹⁰ New York’s school grounds condition is carefully tailored so as to burden only “two, possibly overlapping, populations of sex offenders that the legislature has assessed as presenting the severest threat to children”—offenders who have already abused children and offenders adjudicated level three offenders, convicted of an enumerated offense (*Wallace*, 40 F Supp 3d at 318-320). In limiting the condition’s application to these two categories of offenders, those most likely to reoffend, the legislature has ensured a measure of individualized assessment prior to the condition’s imposition. Offenders who have committed sex offenses against children have shown themselves capable of harming children and those adjudicated level three under SORA have undergone an “individualized” assessment, by a judge, of their “calculated risk to reoffend” and the threat they present to public safety (*People v Perez*, 35 NY3d 85, 88 [2020] [internal quotation marks omitted]). Indeed, it is because of that fact-intensive adjudication that level three offenders serving a sentence for an enumerated offense are subject to this condition at all. Every court, in conducting SORA hearings, considers the unique lived experiences, circumstances, and conduct of each offender, and no hearing results in a level three risk assessment in precisely the same manner. Importantly, these adjudications consider facts beyond a sex offender’s underlying crime and conviction, including their conduct since the commission of their crimes (*People v Kaff*, 149 AD3d 783, 784 [2d Dept 2017]) and whether the offender has a “history of drug or alcohol abuse” (*People v Palmer*,

10. These cases, and the others cited in Judge Halligan’s dissent as examples where courts “invalidat[ed] sex offender residency restrictions,” concern restrictions that generally applied to registrants regardless of parole or probation status (see Halligan, J., dissenting op at 346 n 3). Under the New York scheme, the SARA school grounds condition applies only to those who are on parole, conditional release, or postrelease supervision, a critical distinction.

20 NY3d 373, 376 [2013]). Further, the school grounds condition applies only as long as the offender is on parole, probation, or conditional release; in other words, it applies only while the offender is still serving their sentence (*Matter of Alvarez*, 38 NY3d at 976). For many offenders, the condition is a temporary imposition, and for all, the condition expires when the sentence terminates.

The legislature's careful application of SARA's school grounds condition to the populations of sex offenders who have demonstrated the highest risk to the health and safety of children cannot be deemed excessive. "The Ex Post Facto Clause does not preclude a State from making reasonable categorical judgments that conviction of specified crimes should entail particular regulatory consequences"; rather, a legislature's "determination to legislate with respect to convicted sex offenders as a class . . . does not make the statute a punishment under the Ex Post Facto Clause" (*Smith*, 538 US at 103-104 [emphasis omitted]). Even if the legislature could impose individualized assessment beyond what already occurs, "[t]he legislature is not required to act with perfect precision, and its decision to cast a net wider than what might be absolutely necessary does not transform an otherwise regulatory measure into a punitive sanction" (*Doe v Pataki*, 120 F3d 1263, 1283 [2d Cir 1997]).

Undoubtedly, requiring petitioner to satisfy Executive Law § 259-c (14)'s school grounds condition before he is entitled to release may result in harsh consequences. But "a statutory scheme that serves a regulatory purpose 'is not [necessarily] punishment [for ex post facto purposes] even though it may bear harshly on one affected'" (*id.* at 1279, quoting *Flemming v Nestor*, 363 US 603, 614 [1960]). "[T]he mere fact that a person is detained does not inexorably lead to the conclusion that the government has imposed punishment" (*Salerno*, 481 US at 746) and it does not here. Certainly, there are level three offenders who abide by the school grounds condition and are released from confinement when expected.

While some factors may favor petitioner, the most significant factors decisively militate against finding a constitutional violation. We are unable to conclude from this record that prolonged incarceration is a common result of Executive Law § 259-c (14), rather than an idiosyncratic effect, and the Supreme Court has "expressly disapproved of evaluating the civil nature of [a statute] by reference to the effect that [statute] has on a single individual" (*Seling* at 262). Petitioner has failed to meet the

heavy burden of demonstrating, by the clearest proof, that the effects of Executive Law § 259-c (14) are “so punitive . . . as to negate [the legislature’s] intention to deem it civil” (*Smith*, 538 US at 92 [internal quotation marks omitted]).¹¹ We therefore cannot disturb the legislature’s judgment and conclude that the provision, on its face, violates the Ex Post Facto Clause of the United States Constitution. Accordingly, the order of the Appellate Division insofar as appealed from should be affirmed, without costs.

RIVERA, J. (dissenting).

“No State shall . . . pass any . . . ex post facto Law” (US Const, art I, § 10, cl 1).

“The creation of crimes after the commission of the fact, or, in other words, the subjecting of [persons] to punishment for things which, when they were done, were breaches of no law, and the practice of arbitrary imprisonments, have been, in all ages, the favorite and most formidable instruments of tyranny” (Hamilton, Federalist No. 84).

The Ex Post Facto Clause “restricts governmental power by restraining arbitrary and potentially vindictive legislation” (*Weaver v Graham*, 450 US 24, 29 [1981]). This constitutional prohibition on “after the fact” state legislation means that actions cannot be made criminal retroactively and punishment for prior criminal behavior cannot be increased at a later time (*Beazell v Ohio*, 269 US 167, 170 [1925]). Thus, the Clause prohibits an expressly retroactive penal law as well as a statutory scheme intended to be civil in nature if the scheme’s “purpose or effect” is so punitive that it “negate[s] the State’s intention to deem it civil” (*Smith v Doe*, 538 US 84, 92 [2003] [some brackets and internal quotation marks omitted]).

The latter is the case here where persons, like petitioner,

11. Remittal is inappropriate (*see* Halligan, J., dissenting op at 348). Petitioner has failed to meet his heavy burden of demonstrating that Executive Law § 259-c (14) is unconstitutional—a proposition with which Judge Halligan appears to agree. To the extent Judge Halligan suggests the record should be expanded, petitioner should not now be granted an opportunity to bolster the record and provide the relevant support that he should have, and could have, provided initially. To the extent Judge Halligan suggests the Appellate Division should reconsider their legal analysis, that is a question of law that may be resolved by this Court, thereby obviating the need for remittal. Moreover, neither party has requested remittal for further review.

committed crimes before New York enacted and amended the comprehensive sex offender scheme that today imposes upon them a residential prohibition enforced under the threat of potentially indefinite incarceration of those probationers, parolees, and conditionally-released prisoners who cannot afford housing outside the prohibited community zones. Moreover, empirical studies have undermined prior assumptions about the efficacy of the statutory scheme's residential prohibition to achieve its intended goal of protecting children and suggest that such restrictions may increase the risk of reoffense. The nexus between the legislative purpose and the means adopted is "a most significant factor" in the constitutional analysis, as is the excessiveness of a condition which fails to account for the lack of a positive result and may increase the risk of public harm (*Smith*, 538 US at 102 [brackets and internal quotation marks omitted]). The regulatory scheme's residency prohibition therefore violates the Ex Post Facto Clause.

I.

In 1996, the Legislature enacted the Sex Offender Registration Act (SORA), establishing a notification and sex offender registration scheme, with the stated purpose of addressing "the danger of recidivism posed by sex offenders" by repairing "the lack of information about sex offenders" available to law enforcement and the "failure of the criminal justice system to identify, investigate, apprehend[,] and prosecute sex offenders" (L 1995, ch 192, § 1). The law requires that all persons who commit certain specified sex offenses register with the State Division of Criminal Justice Services, which maintains a publicly-available database of their information known as the Sex Offender Registry (Correction Law §§ 168-a, 168-b, 168-c; *see generally* L 1995, ch 192). The following year, the law survived an ex post facto challenge in federal court. Although acknowledging that "the question is not free from doubt," the Second Circuit reversed the district court and concluded that SORA's registration and notice provisions did not "constitute 'punishment' for purposes of the Ex Post Facto Clause" (*Doe v Pataki*, 120 F3d 1263, 1265 [2d Cir 1997]).

SORA has been amended since 1996 and the Second Circuit's resolution of this close question. Those amendments expanded the types of offenders and crimes covered, made public access easier by mandating internet posting, and extended the duration of notification and registration, including, most notably,

imposing lifetime registration for a larger class of sex offenders (see L 1999, ch 453, §§ 1-5; L 2002, ch 11, §§ 1-5; L 2003, ch 69, § 4; L 2004, ch 146, § 1; L 2006, ch 91, § 1; L 2006, ch 107, § 9; L 2006, ch 320, § 8; L 2007, ch 7, §§ 10, 22; L 2007, ch 74, § 9; L 2008, ch 67, § 3; L 2008, ch 232, § 1; L 2008, ch 303, § 1; L 2008, ch 405, § 2; L 2011, ch 513, § 1; L 2015, ch 368, § 35; L 2018, ch 189, § 7). Thus, with a few keystrokes, any member of the public has access to certain personal information of a registered offender.

SORA applies to all offenders regardless of whether they are discharged, placed on probation, or released on conditional release, parole, or postrelease supervision and varies the level of personal detail the offender must provide for public notice, depending on their judicially-determined risk level (Correction Law §§ 168-e, 168-l, 168-n). The sentencing court classifies an offender's risk level—one, two or three in ascending order of risk—after a SORA hearing, and upon review of the Board and prosecutor's respective recommendations and a judicial finding of clear and convincing evidence supporting the classification (see Correction Law § 168-n [2]-[3]).

In 2000, the Legislature enacted the Sexual Assault Reform Act (SARA) which, as relevant to this appeal, codified a new Executive Law § 259-c (14). SARA bars sex offenders whose victims were minors and who are “released on parole or conditionally released” from knowingly entering “school grounds” or the grounds of a “facility or institution primarily used for the care or treatment of [minors]” as a condition of their release (L 2000, ch 1, § 8).¹ The Legislature amended SARA in 2005, expanding its reach to all SORA level three offenders—even if the victim was an adult—and adopting the definition of “school grounds” contained in Penal Law § 220.00 (14), which includes any publicly-accessible area within 1,000 feet of schools, athletic fields, and playgrounds. Thus, the Legislature in SARA adopted a residency prohibition which bans covered offenders from living within the restricted area (L 2005, ch 544, § 2; see also *People v Diack*, 24 NY3d 674, 681-682 [2015]). A SARA violation subjects the offender to reincarceration, potentially indefinitely (Executive Law § 259-c [14]).

1. In *Matter of Alvarez v Annucci*, the Court held that SARA applies to offenders released to postrelease supervision (38 NY3d 974, 977 [2022]).

II.A.

Petitioner Danny Rivera was 17 years old when he was arrested in 1986 and just 17 years old when he pleaded guilty to murder, attempted murder and rape—horrific acts for which he was sentenced to 20 years to life in prison. Thirty-three years later, in April 2019, the Board of Parole (Board) was persuaded that petitioner could return to society after he explained during his parole hearing that he became involved with certain criminal elements in Puerto Rico at a young age, and could not “justify” his actions which he was ordered to carry out and for which he was “ashamed.” He further explained that, while in prison, he completed a sex offender treatment program during which he came to understand the pain he brought his victims and their families and that, “through 30 something plus years[, he had] learned to be somebody else than who [he] was when [he] was 17.” The Board granted him a May 23, 2019 open parole date.

After a SORA hearing in June 2019, petitioner was classified as a level three offender and, under the 2005 SARA amendment, subject to the school grounds condition and its obligatory residency prohibition. Petitioner did not have a SARA-compliant residence. As a result, he remained incarcerated until March 2021—more than 21 months past his open parole date. It is undisputed that the lack of a SARA-compliant residence was the sole obstacle to his release during that period.

SORA and SARA did not exist when petitioner committed the crimes which now subject him to the sex offender regulatory scheme; and the Legislature did not enact the amendment extending SARA to cover him until almost 20 years after his conviction. Petitioner successfully challenged the statutory scheme on ex post facto grounds in Supreme Court, which concluded that there was no “justification for saying that the SORA laws are not punitive when the [p]etitioner’s being held in prison and incarcerated solely because of those laws.” The Appellate Division reversed but, by then, petitioner had secured SARA-compliant housing and was released to parole. However, petitioner is serving a life sentence and, unless we hold otherwise, will therefore be subject to SARA’s school grounds prohibition and residency requirement every day for the rest of his life (*see* Executive Law § 259-c [14]).

B.

On appeal to this Court, petitioner argues—as he did before Supreme Court—that the “combined effect” of SORA and SARA violates the Ex Post Facto Clause of the Federal Constitution because the 2005 amendments to SARA brought offenders like him “into the ambit of SARA and the residency restrictions that have served to prolong [his] incarceration” even when they committed their offenses against non-minors before 2005.

The majority rejects this framing because, in its view, “petitioner does not assert that the effects of SORA, beyond its operation by which [he] was adjudicated a level three offender subjecting him to SARA’s school grounds condition, are punitive” (majority op at 312). Therefore, the majority posits, “only [the school grounds condition] is at issue in this case” (*id.*) This is misdirection because, as the majority acknowledges, petitioner is only subject to the SARA residency prohibition *because* of his SORA classification, and thus the punitive effects are a direct result of the interplay between SORA and SARA (*id.* at 311-312). In other words, SARA references SORA to identify offenders who cannot live within 1,000 feet of school grounds.

Contrary to the majority’s suggestion, SORA is more than a mere definitional reference for SARA in that the SORA risk classification imposes its own set of notification and registration requirements, including public access to his address. As intended by the Legislature, SORA and SARA are two critical, interlocking components of the State’s unitary sex offender regulatory scheme for the “ongoing monitoring, management and treatment of registered sex offenders” (*see People v Diack*, 24 NY3d 674, 685 [2015]). That scheme applies to a specific class of convicted individuals—sex offenders. Its purported goal is to protect the public: SORA sets forth the registration and notification requirements for sex offenders and SARA imposes the residency prohibition on specific categories of sex offenders. SORA is a vital component of the government’s enforcement of SARA and the regulatory scheme establishes a seamless, integrated application of these statutes. Since SORA and SARA work in tandem to monitor and control sex offender behavior, the issue on appeal is whether this integrated scheme, on its face, violates the Ex Post Facto Clause.² However, even limiting our review to SARA yields the same result: the residency prohibition is facially unconstitutional.

2. Consequently, a holding to this effect would impact only offenders whose criminal actions predated the enactment of SORA and SARA.

III.

The Ex Post Facto Clause was intended as a “constitutional bulwark in favor of personal security and private rights” whose addition to the original Constitution was driven by an awareness of “sudden changes and legislative inferences, in cases affecting personal rights” (Madison, Federalist No. 44). Even before its seminal decision in *Marbury v Madison* (1 Cranch [5 US] 137 [1803]), the United States Supreme Court held in *Calder v Bull*, that under the Clause, “[t]he Legislature may enjoin, permit, forbid, and punish; they may declare new crimes; and establish rules of conduct for all its citizens in future cases; they may command what is right, and prohibit what is wrong; *but they cannot change innocence into guilt; or punish innocence as a crime*” (3 Dallas [3 US] 386, 388 [1798, Chase, J.] [some emphases added and some omitted]). The Court explained that the Clause does not prohibit all retroactive legislation, but only those statutes that: (1) make an action which was completed before the passing of the law criminal and punish it accordingly; (2) aggravate a crime to make it more serious than when the defendant was alleged to have committed it; (3) increase the punishment for an alleged crime committed when the punishment was less or different at the time of the crime’s commission; or (4) “change the rules of evidence, for the purpose of conviction” (*see Calder*, 3 Dallas [3 US] at 390-391 [emphasis omitted]).

As a general matter, “the prohibition extends to criminal, not to civil, cases” (3 Dallas [3 US] at 399 [Iredell, J., concurring]) and this Court has noted that it generally “applies only to penal statutes” (*Kellogg v Travis*, 100 NY2d 407, 410 [2003], citing *Collins v Youngblood*, 497 US 37, 41 n 2 [1990]).³ However, the Court has also recognized that because the Ex Post Facto Clause prohibits “after the fact” punishment, even a statute intended to be civil in nature may violate the Clause if, in operation, the law is sufficiently punitive to overcome the legislative intent for civil regulation (*id.* at 410 [noting that “where the challenged statute does not seek to impose a *punish-*

3. Justice Thomas has openly questioned *Calder*’s civil/criminal distinction and, in a case involving a retrospective imposition of liability on a property owner, signaled a willingness to reconsider it (*see Eastern Enterprises v Apfel*, 524 US 498, 539 [1998, Thomas, J., concurring] [“I would be willing to reconsider *Calder* and its progeny to determine whether a retroactive civil law that passes muster under our current Takings Clause jurisprudence is nonetheless unconstitutional under the *Ex Post Facto* Clause”]).

ment, it does not run afoul of the Ex Post Facto Clause”)). Punishment is the sine qua non of an ex post facto violation.

As the Supreme Court has observed, for ex post facto purposes, “the punishment of imprisonment . . . is the paradigmatic affirmative disability or restraint” (*Smith*, 538 US at 100); see also *Flemming v Nestor*, 363 US 603, 617 [1960] [referring to “the infamous punishment of imprisonment” in an ex post facto case (internal quotation marks omitted)]). To show that his imprisonment was punishment, petitioner had the burden of showing “the clearest proof that the statutory scheme is so punitive either in purpose or effect as to negate the State’s intention to deem it civil” (*Kansas v Hendricks*, 521 US 346, 361 [1997] [internal quotation marks and brackets omitted]). Petitioner concedes that the Legislature did not pass SORA or SARA with punitive intent, a view supported by Supreme Court precedent (see *Hendricks*, 521 US at 361; *United States v Ward*, 448 US 242, 248 [1980]). The question then is “whether the legislative aim” in enacting the sex offender regulatory scheme’s residency prohibition “was to punish” individuals like petitioner “for past activity, or whether the restriction” is based on “a relevant incident to a regulation of a present situation” given the “unpleasant consequences” that attend the scheme (*De Veau v Braisted*, 363 US 144, 160 [1960]).

The Supreme Court applied this “intent-effects test”—originally devised to evaluate federal penal and regulatory laws—in *Smith v Doe*, to uphold Alaska’s registration-and-notification statute—which did not include SARA-like restrictions—against an ex post facto challenge (538 US at 105-106).⁴ At the first step, if the Court determines that the Legislature intended to impose punishment the inquiry ends and the law must be stricken (*id.* at 92-93). If the statute has a nonpunitive intent then the Court applies factors previously “designed to apply in various constitutional contexts” (*id.* at 97). The most relevant in an ex post facto analysis as “whether, in its necessary operation, the regulatory scheme: has been regarded in our history and traditions as a punishment; imposes an affir-

4. Five years after the Court’s decision in *Smith*, the Alaska Supreme Court invalidated retroactive application of the statute under the Ex Post Facto Clause of the Alaska State Constitution, applying an intent-effects test modeled on Supreme Court precedent, and holding that the law “imposes burdens that have the effect of adding punishment beyond what could be imposed when the crime was committed” (*Doe v State*, 189 P3d 999, 1000, 1007-1019 [Alaska 2008]).

mative disability or restraint; promotes the traditional aims of punishment; has a rational connection to a nonpunitive purpose; or is excessive with respect to this purpose” (*id.*, citing *Kennedy v Mendoza-Martinez*, 372 US 144, 168-169 [1963]). Applying those factors to Alaska’s registration-and-notification scheme, the Court concluded that it was “nonpunitive” and that “its retroactive application [did] not violate the Ex Post Facto Clause” (*id.* at 105-106 [emphasis omitted]).

The intent-effects test and its multiple factors focus on the punitive nature of the scheme itself, not on any idiosyncratic application of the law to an individual petitioner (*see Seling v Young*, 531 US 250, 262-263 [2001] [“The civil nature of a confinement scheme cannot be altered based merely on vagaries in the implementation of the authorizing statute”]). Thus, in *Seling*, the Supreme Court rejected double jeopardy and ex post facto challenges to the conditions of confinement brought by sex offenders involuntarily committed under Washington state law because of the variability of the conditions imposed on individual offenders in Washington (*id.* at 263). *Seling* sought release based on his claim that his conditions of confinement effectively rendered the scheme punitive as applied to him because those conditions were more restrictive than those imposed on “true civil commitment detainees, and even state prisoners” (*id.* at 259-260). The Court concluded that *Seling*’s claim was a true “as-applied” challenge because “the Act is silent with respect to the confinement conditions required [where *Seling* was confined], and that is the source of many of [his] complaints” (*id.* at 264). In other words, since *Seling*’s conditions were not statutorily set, neither was the nature of the confinement “fixed” (*id.* at 263).

The Supreme Court then reasoned that *Seling*’s “as-applied” challenge was “unworkable” because it “would never conclusively resolve whether a particular scheme is punitive and would thereby prevent a final determination of the scheme’s validity under the . . . Ex Post Facto Clause[]” (*id.* [emphasis omitted]). As the Supreme Court explained, because the “conditions . . . are subject to change” during confinement, they “affect how a confinement scheme is evaluated to determine whether it is civil rather than punitive, but it remains no less true that the query must be answered definitively” (*id.*).

The majority posits that “the proportion of the subjected class experiencing the effect . . . is the crux of the ex post facto analysis” (majority op at 314-315). My dissenting col-

league Judge Halligan suggests that *Seling* does not “allow[] us to focus our analysis exclusively on that group of offenders” who are subject to incarceration solely because they are SORA level 3 offenders who are unable to locate SARA-compliant housing because “we do not know how many individuals have been, or likely will be, subject to prolonged incarceration due to SARA’s residency restriction” (Halligan, J., dissenting op at 343). Both “criticisms” buckle under scrutiny on their own terms. Neither opinion even attempts to set a minimum threshold number of persons previously or currently incarcerated as a result of the statutory scheme before an individual may challenge it under the Ex Post Facto Clause, although both are quick to conclude that petitioner has failed to meet their unknown numerical floor. Whatever number they have in mind—if any—both the majority and Judge Halligan fail to explain why we should disregard numerous court decisions that confirm that there are many such individuals (see *People ex rel. Johnson v Superintendent, Adirondack Corr. Facility*, 174 AD3d 992, 996-997 [3d Dept 2019, Garry, P.J., concurring]).

In addition to these internal deficiencies, both views completely misunderstand the fundamental difference between an as-applied and a facial challenge. The number of injured parties is not dispositive of—nor even relevant to—this analytic distinction. What matters are the substantive nature of the claim and the remedy sought. The premise of a facial challenge is “that a law is unconstitutional in all of its applications” and thus the court considers “only applications of the statute in which it actually authorizes or prohibits conduct” (*Los Angeles v Patel*, 576 US 409, 418 [2015] [internal quotation marks omitted]). In contrast, as *Seling* makes clear, an as-applied ex post facto challenge is one that turns on the individual’s unique circumstances rather than the commands of the statute (see 531 US at 263).

The Supreme Court’s analysis in *Smith* confirms this elemental distinction. In rejecting the Alaska petitioner’s claim, the Court observed that the record in that case did not show that Alaska’s registration and notification scheme “ha[d] led to substantial occupational or housing disadvantages for former sex offenders that would not have otherwise occurred through the use of routine background checks by employers and landlords” and that “[a]lthough the public availability of the information may have [had] a lasting and painful impact on the convicted sex offender, these consequences flow[ed] not from

the [scheme's] registration and dissemination provisions, but from the fact of conviction" (*Smith*, 538 US at 100-101). In other words, the Alaska law might have violated the Ex Post Facto Clause had its "disadvantages" been traceable directly to the law itself (*id.* at 100).

That is the case here, where petitioner challenges the statutory scheme that imposes a residency prohibition on a defined classes of sex offenders into which he falls, and whose scope is tethered to a Penal Law definition.⁵ Unlike the civil confinement conditions challenged in *Seling*—which would have required the Supreme Court to review conditions based on factors external to the Washington law at issue there—the residency prohibition here is "fixed" on the face of the law (*Seling*, 531 US at 263). And, unlike some other parole conditions the Board imposes based on an individualized assessment of the prisoner's circumstances, reentry needs, and potential risk to reoffend (*see* Executive Law § 259-c [2]), the Board has no discretion to disregard the residency prohibition (*see id.* § 259-c [14] [providing that "the board *shall* require, as a mandatory condition," compliance with the school grounds condition (emphasis added)]). Moreover, the Department of Corrections and Community Supervision (DOCCS) cannot release an offender to a noncompliant residence.⁶ Either deviation from the statutory mandate would defeat the intended purpose of the residency prohibition.

We would have a true as-applied challenge before us under the analysis in *Seling* if, for example, petitioner claimed that he was incarcerated beyond his open parole date based on the Board's misreading of the circumstances of his conviction or classification (*e.g.* *Matter of Champion v Dennison*, 40 AD3d 1181, 1182 [3d Dept 2007] [challenge to denial of parole based partly on the Board's miscalculation of parole guideline range]).

5. The majority also ignores that the appeal comes to us from the Appellate Division in the procedural posture of a declaratory judgment action as to whether the scheme violates the Ex Post Facto Clause (*see* 200 AD3d at 1370).

6. In *Johnson*, the Court rejected a substantive due process challenge to DOCCS' practice of refusing to release an offender to parole who seeks to live in New York City, and in the companion case, *People ex rel. Ortiz v Breslin*, the Court also rejected an Eighth Amendment claim based on deliberate indifference; both constitutional challenges were grounded in the offenders' rights to placement at a homeless shelter outside banned school grounds (36 NY3d at 196-202, 203-205). The Court upheld the extension of incarceration for those offenders willing to live in a SARA-compliant shelter.

The same would also be true if, for example, petitioner argued that the Board erroneously denied approval of housing that it approved as compliant for others. Resolving those challenges would require us to consider the idiosyncrasies of the petitioner's circumstances and "vagaries in the implementation of the authorizing statute," not whether the scheme causing extended incarceration is itself definitively facially punitive in violation of the Ex Post Facto Clause (*Seling*, 531 US at 263).

The fact that some offenders identify compliant housing in time for their release date, and thus are not kept in prison, does not change the analysis or lead to a different conclusion (majority op at 314-315). First, the Court has previously recognized that the housing prohibition results in incarceration and has a disproportionate impact on offenders seeking housing in New York City (see *Johnson*, 36 NY3d at 206 [observing that "New York City's SARA-compliant shelters have a vacancy rate of 0.4%, indicative of the high demand for shelter housing in New York City generally, as well as the considerable number of SARA-subject sex offenders seeking such housing"]; *Matter of Gonzalez v Annucci*, 32 NY3d 461, 472 [2018] [acknowledging "the intractable problems presented by inmates convicted of sex offenses who must obtain SARA-compliant housing and must do so in a very limited market without financial resources"]⁷ United States Supreme Court Justice Sotomayor has observed the same in comments regarding our Court's ruling in *Ortiz* (*Johnson*'s companion case) (see *Ortiz v Breslin*, 595 US —, — 142 S Ct 914, 915 [2022] [Sotomayor, J., statement regarding denial of certiorari] ["In effect, New York's policy requires indefinite incarceration for some indigent people judged to be sex offenders"]). Second, the legally relevant question is not whether some individuals can avoid the immediate effects of the school grounds condition, but whether this ban on residency—which applies for the entire duration of the offender's sentence and which is enforced by incarceration—is punishment for ex post facto purposes.

7. Indeed, New York City's housing shortage has increased so dramatically as has the demand for shelter that the City's Mayor recently filed an application in Supreme Court to modify the consent decree in *Callahan v Carey* (Sup Ct, NY County, Aug. 1981, index No. 42582/79), which over 40 years ago established New York City's right to shelter (see Jonathan Pines, Esq., Letter Application for Modification of Final Judgment [May 23, 2023], available at <https://www.nyc.gov/assets/home/downloads/pdf/press-releases/2023/city-application-to-justice-kaplan-callahan-v-carey-5-23-23.pdf> [last accessed June 7, 2023]).

Properly understood in this light, the residency prohibition violates the Ex Post Facto Clause simply because failure to comply with it—both before and after release—results in the “paradigmatic” punishment: incarceration (*Smith*, 538 US at 100).

IV.

The majority relegates to the periphery the residency prohibition’s effect of incarcerating offenders beyond their release date and after release, the condition hangs over offenders like a sword of Damocles, with its ever-present risk of reincarceration should an offender lose compliant housing. Even ignoring that this is punishment, application of the effects factors still compels the conclusion that the residency prohibition is so punitive that it cannot be deemed civil in effect (*see id.* at 105-106).

Taking the factors in the order followed by the majority, by its terms the residency prohibition imposes an affirmative disability or restraint, as it prohibits offenders from entering

“(a) in or on or within any building, structure, athletic playing field, playground or land contained within the real property boundary line of a public or private elementary, parochial, intermediate, junior high, vocational, or high school, or (b) any area accessible to the public located within one thousand feet of the real property boundary line comprising any such school or any parked automobile or other parked vehicle located within one thousand feet of the real property boundary line comprising any such school” (Penal Law § 220.00 [14]).

The majority agrees that this is an “affirmative restraint” but compares it to every other “affirmative restraint which the Board of Parole has broad statutory authority to impose,” in an attempt to diminish how this factor favors petitioner (majority op at 313-315). However, the premise of the majority’s position is unfounded since, as discussed *supra*, the residency prohibition is a “mandatory condition” that the Board is statutorily obligated to impose on all offenders subject to SARA (Executive Law § 259-c [14]). Moreover, this is a legislatively chosen condition, not one that the Board has determined to be necessary in every case. Certainly, it would be hard to argue as much with respect to offenders like petitioner, who was a teenager when

he committed the crimes for which he remained incarcerated and which he committed against an adult, not a child. Apart from the regulatory framework that leaves no room for Board discretion, there is the simple fact that any condition of parole that limits where an offender may live is subject to constitutional scrutiny (e.g. *United States v Myers*, 426 F3d 117, 123-126 [2d Cir 2005] [reviewing constitutionality of a supervised release condition requiring sex offender to obtain governmental permission before seeing his child unsupervised], citing *Troxel v Granville*, 530 US 57, 65-66 [2000] [plurality]; *Arciniega v Freeman*, 404 US 4, 4 [1971] [parole condition restricting association “with other ex-convicts” could not include “incidental contacts between ex-convicts in the course of work on a legitimate job for a common employer”]).

The majority’s assertion that the “carceral effect on the entire group of offenders to whom it applies is unclear from the record” is another—albeit no more persuasive—version of its argument in support of a conclusion that not every offender is incarcerated for lack of compliant housing (majority op at 314). The majority ignores numerous public reports and court decisions confirming that, for offenders subject to the residency prohibition, incarceration beyond the release date is a common reality which the majority acknowledges, is “‘the paradigmatic affirmative disability or restraint’” (majority op at 313-314, quoting *Smith*, 538 US at 100; see New York City Bar Association, *The Impact and Legality of Sex Offender Residency Restrictions Created by New York’s Sexual Assault Reform Act* [Oct. 2016] [City Bar Report] at 9-10; *People ex rel. Johnson v Superintendent, Adirondack Corr. Facility*, 36 NY3d 187, 206 [2020]; *Gonzalez*, 32 NY3d at 472).

For similar reasons, the residency prohibition resembles what has historically and traditionally been considered criminal punishment (see *Smith*, 538 US at 97). The sole mechanism for enforcing the prohibition when an offender does not have compliant housing is incarceration. Before release, an offender will remain incarcerated if they are unable to locate SARA-compliant housing. Post-release, they live under the fear of being returned to prison if they lose their compliant housing. That fear is well-founded, as there is no civil cure and no excuse for a violation, even if the cause of the violation is completely beyond the offender’s control—for example, if a local government later declares the compliant residence uninhabitable. The majority’s further assertion that the residency prohibition

has limited impact because it applies only during the period of an offender's sentence and only applies to those on parole, conditional release, or postrelease supervision (*see* majority op at 315) overlooks the many offenders like petitioner who are subject to lengthy sentences—including, as here, life. More fundamentally, this assertion also elides that the size of the class subject to the residency restriction is irrelevant to petitioner's facial Ex Post Facto Clause challenge.

In addition, the residency prohibition is a modern-day form of banishment, long recognized as a grave form of punishment, biblical in standing (*see e.g.* Exodus 31:14 ["Therefore you are to observe the sabbath, for it is holy to you . . . (W)hoever does any work on it, that person shall be cut off from among (their) people"]; Jeremiah 23:39 ["Therefore, behold, I will surely forget you and cast you away from My presence, along with the city which I gave you and your fathers"]). As the *Smith* Court observed, "[s]ome colonial punishments indeed were meant to inflict public disgrace" and "[t]he most serious offenders were banished, after which they could neither return to their original community nor, reputation tarnished, be admitted easily into a new one" (538 US at 97-98). The Court concluded that the Alaska statute did no such thing, as it was a first-generation registration-only requirement (*see id.*). The Alaska statute did not restrict where offenders lived, worked, or traveled (*see Smith*, 538 US at 101)—activities among the hallmarks of membership in a free, democratic society (*see also* Tobias Kuehne, *Immigration and Employment Federalism: State Courts and Workers' Compensation for Unauthorized Workers*, 43 Berkeley J Emp & Lab L 415, 434 [2022] [focusing on "the role of work" as an element "that goes to the heart of what it means to have full membership in a community"]; James W. Fox, Jr., *Liberalism, Democratic Citizenship, and Welfare Reform: The Troubling Case of Workfare*, 74 Wash ULQ 103, 142 [1996] ["The ability to live and to live in such a way that one can minimally participate in democratic activity validates one's membership in a community of human dignity. It also validates the community as dignified"]; Linda S. Bosniak, *Membership, Equality, and the Difference That Alienage Makes*, 69 NYU L Rev 1047, 1075 [1994] [tying one's place of residence and labor to "the fundamental moral commitments of democratic community life"]). Government-imposed banishment is anathema to a free society and New York's comprehensive sex offender scheme imposes it by banishing all level three

offenders like petitioner from many locations within our state, including most of New York City.

The majority acknowledges that “the school grounds condition bears some resemblance to the historical punishment of banishment” but asserts that this banishment is of a lesser grade because the condition “does not preclude sex offenders from living and travelling within their communities and throughout the state” (*see* majority op at 315-316). Offenders can also live and travel outside New York State’s borders, but “freedom” to do so does not make it any less true that they are banished from designated areas of the state, including in some cases where their support networks are located. Historically, intrastate banishment has existed as a form of punishment (*see* Adam J. Hirsch, *From Pillory to Penitentiary: The Rise of Criminal Incarceration in Early Massachusetts*, 80 Mich L Rev 1179, 1234, 1238 [1982] [describing banishment in colonial Massachusetts as “a one-way ticket out of town” and observing that, in the early decades of the 1800s, population growth and increased ease of travel contributed to the increased popularity of imprisonment as an alternative to “banishment by way of escort to the town limits”]). Plainly, the regulatory scheme precludes offenders from freely living and travelling within their communities, as they cannot live or even enter within 1,000 feet of the defined zones. Under the combined effects of SORA’s notification and registration requirements and SARA’s residency prohibition, covered offenders “suffer ‘permanent stigmas, which in effect cast [them] out of the community’ . . . after which they c[an] neither return to their original community nor, reputation tarnished, be admitted easily into a new one” (*Smith*, 538 US at 98, quoting Toni M. Massaro, *Shame, Culture, and American Criminal Law*, 89 Mich L Rev 1880, 1913 [1991]).

Like SORA’s notification and registration requirements, the ban aims to deter criminal behavior and reduce recidivism (*see Doe*, 120 F3d at 1283), which are “traditional aims of punishment” (*Mendoza-Martinez*, 372 US at 168). The Legislature clearly believed that prohibiting offenders from entering and remaining on school grounds would protect children and thus deter sexual recidivism against this vulnerable population (*see* Assembly Mem in Support, Bill Jacket, L 2005, ch 544 at 4 [observing that the 2005 amendment was in response to the “need to prohibit those sex offenders who are determined to pose the most risk to children from entering upon school

grounds or other areas where children are cared for”)). A worthy goal but one achieved, in part, through punishment imposed on those who committed their crimes before enactment of the statutory regulatory scheme, further supporting the conclusion that retroactive application violates the Ex Post Facto Clause.

The remaining factors—whether the residency prohibition is rationally connected to a nonpunitive purpose and is excessive in relation to that nonpunitive purpose—are properly considered together, given their overlapping subject matter. The majority is correct that the regulatory scheme’s “rational connection to a nonpunitive purpose is a ‘[m]ost significant’ factor in [the] determination” of whether “the . . . effects are . . . punitive” (*Smith*, 538 US at 102, quoting *United States v Ursery*, 518 US 267, 290 [1996]). But so is the excessiveness inquiry. Even a law rationally connected to a nonpunitive purpose may be so disproportionately burdensome compared to its intended societal benefit that it has an overall, outsized punitive effect. Here, for this principal reason, the residency prohibition is not rationally connected to a nonpunitive purpose and is excessive.

The legislators passed SARA and its 2005 amendments with the express aim of deterring recidivism and protecting children from convicted sex offenders (see Mem from Kathy A. Bennett, Bill Jacket, L 2000, ch 1 at 5; Letter from Harvey Weisenberg, Bill Jacket, L 2005, ch 544 at 3; *Diack*, 24 NY3d at 686 [observing SARA’s “focus on those sex offenders who have been designated as exhibiting a moderate to high risk of recidivism”]). However, strong evidence has since emerged that school-ground buffer zones are an ineffective means for accomplishing those ends and thus attenuate any rational connection with their supposedly nonpunitive objective (see Jill S. Levenson & Andrea L. Hern, *Sex Offender Residence Restrictions: Unintended Consequences and Community Reentry*, 9 Just Rsch & Poly [Issue 1] 59, 61 [2007] [study in Minnesota tracking recidivism rates for high-risk sex offenders finding that, of the 4% who committed new sex crimes “(n)one of the new crimes occurred on the grounds of a school or was seemingly related to a sex offender’s living within close proximity to a school” and concluding that “residential proximity to schools and parks appeared to be unrelated to sex offense recidivism” and that “blanket policies restricting where sex offenders can live are unlikely to benefit community safety”]).

Most troubling and significant for our constitutional analysis is other evidence suggesting that SARA-like restrictions actu-

ally *increase* the risk of recidivism and put more children in harm's way (see e.g. Christopher Lobanov-Rostovsky, *Chapter 8: Sex Offender Management Strategies*, in U.S. Department of Justice, Office of Justice Programs, Office of Sex Offender Sentencing, Monitoring, Apprehending, Registering, and Tracking, Sex Offender Management Assessment and Planning Initiative at 205 [NCJ 247059, Mar. 2017], *available at* https://smart.ojp.gov/sites/g/files/xyckuh231/files/media/document/somapi_full_report.pdf [last accessed May 30, 2023]; U.S. Department of Justice, Office of Justice Programs, Bureau of Justice Statistics, *Sexual Assault of Young Children as Reported to Law Enforcement: Victim, Incident, and Offender Characteristics* at 10 [NCJ 182990, July 2000] [assessing that, in 93% of sex crimes involving children, the offender was not a stranger, but somebody the child knew]).⁸

8. The majority's concerns about references to reliable empirical data have not troubled other courts, which have cited empirical data to conclude that sex offender residency laws fail to achieve their intended goals (e.g. *Does #1-5 v Snyder*, 834 F3d 696, 704-705 [6th Cir 2016]; *People v Betts*, 507 Mich 527, 559-562, 968 NW2d 497, 513-515 [2021]). In any case, the majority's concerns here are misplaced. Specifically, the majority dismisses these sources as "hardly conclusive" and complains that "we have no record of this scholarship's methodology or whether it has been subjected to peer review analysis," yet also acknowledges the Levinson & Hern study's summary of its methodology and raw data (majority op at 317; *id.* at 317-318 n 8; see Levenson & Hern, *supra*, 9 Just Rsch & Poly [Issue 1] at 64-67). In addition, the journal which published the study subjects submissions to a "peer review procedure" before accepting them (Sage Journals, Submission Guidelines, *available at* <https://journals.sagepub.com/author-instructions/jrx> [last accessed May 30, 2023]). The majority correctly points out that the study was based on self-reporting by sex offenders (see majority op at 317 n 8). The study's authors acknowledge this feature, but also note that other similar surveys had yielded similar results, "suggesting that sex offenders in various regions of the nation have similar experiences and perceptions" (Levenson & Hern, *supra*, 9 Just Rsch & Poly [Issue 1] at 69).

Regarding the specifics of the study, the majority accurately observes that 19% of responding offenders agreed or strongly agreed to the statement that "[r]esidence restrictions help me to prevent offending" and 26% agreed or strongly agreed with the statement "I am more able to manage my risk factors because I cannot live near a school, park or playground" (Levenson & Hern, *supra*, 9 Just Rsch & Poly [Issue 1] at 66). The majority disregards several other responses displayed in that same table, including: the 45% of respondents who agreed or strongly agreed that "[h]ousing restrictions make me feel hopeless, angry, and/or depressed"; another 45% who agreed or strongly agreed that "[b]ecause of housing restrictions, I live farther away from supportive family or friends"; 64% who agreed or strongly agreed with the statement "I worry that if I have to move, I will be unable to find a place to live"; and perhaps most significantly, 74% who agreed or strongly agreed

(n. cont'd)

Notably, respondents have not countered petitioner's argument that residency requirements do not achieve their intended goals. If they tried, they would have had a steep mountain to climb, given the profession's growing recognition that these requirements, though perhaps well intended, are not furthering public safety and, in fact, may be placing us at greater risk.

A 2016 joint report of the New York City Bar's Criminal Courts, Criminal Law, Criminal Justice Operations, and Corrections and Community Reentry Committees similarly highlighted that "the existing research casts doubt on the efficacy of these restrictions" (City Bar Report at 4). As the report explains, "laws preventing offenders from living near places where children congregate target only a small subsection of sex offenses" (*id.*). Furthermore, "[t]he vast majority of sexually motivated crimes are committed by a family member or someone else known to the victim" (*id.*, citing United States Department of Justice: Bureau of Justice Statistics, *Sexual Assault of Young Children as Reported to Law Enforcement: Victim, Incident and Offender* [2000], available at <http://www.bjs.gov/content/pub/pdf/saycrle.pdf> [last accessed June 2, 2023]). The report continues, "persons who offend against family members or known victims rarely 'cross-over' and offend against strangers" (*id.*, citing, inter alia, Eric Beauregard, Benoit Leclerc & Patrick Lussier, *Decision Making in the Crime Commission Process: Comparing Rapists, Child Molesters, and Victim-Crossover Sex Offenders*, 39 *Crim Just & Behav*, 1275-1295 [2012], and Philip Firestone et al., *A Comparison of Incest Offenders Based on Victim Age*, 33 *J Am Acad Psychiatry & L*, 223-232 [2005]).

Perhaps most disturbing is that the residency requirements may be having the opposite effect of what the Legislature intended. According to the report, "studies suggest that residency restrictions do not reduce recidivism" even among of-

with the statement "[i]f I really wanted to reoffend, I would be able to do so despite my residence restrictions" (*id.*).

These responses support the authors' overall conclusions, including that "[h]ousing restrictions appear to disrupt the stability of sex offenders by forcing them to relocate, sometimes multiple times, creating transience, financial hardship, and emotional volatility," and that "sex offenders indicate that such regulations offer little value in preventing recidivism" (Levenson & Hern, *supra*, 9 *Just Rsch & Poly* [Issue 1] at 67-68). Thus, the study confirms what others have observed: that residency restrictions may fail to achieve their goals and may increase recidivism (*see id.*).

fenders whose victims were strangers (*id.*, citing, inter alia, Beth M. Huebner et al., *An Evaluation of Sex Offender Residency Restrictions in Michigan and Missouri* [2013], available at <https://www.ojp.gov/pdffiles1/nij/grants/242952.pdf> [last accessed June 2, 2023]). And “[a]part from the questionable empirical basis for residency restrictions, there is widespread concern among experts that residency restrictions eliminate so many housing options that they actually compromise public safety” (*id.* at 5, citing Mike Mosedale, *Janus: No experts Support Residency Restrictions for Sex Offenders*, Minnesota Lawyer [Mar. 31, 2016], available at <http://minnlawyer.com/2016/03/31/janus-no-experts-support-residency-restrictions-for-sex-offenders/> [last accessed June 2, 2023]). SARA’s residency prohibitions erect “hurdles for successful reintegration into society and could even increase recidivism” (*id.*, citing Jill S. Levenson & Leo P. Cotter, *The Impact of Sex Offender Residence Restrictions: 1,000 Feet from Danger or One Step from Absurd*, 49 Int J Offender Ther & Comp Criminology 168, 169 [2005]). Based on these data and findings, the report concludes that “[i]deally, legislation around sexually motivated offenses should serve both to promote public safety and rehabilitate offenders” and that “[l]aws that fail to meet these goals, or that tend to undermine them, should be reconsidered” (*id.* at 6).⁹

Justice Sotomayor, drawing on this growing body of literature, case law relying on empirical data to strike down residency requirements as patently ineffective, and enforcement agencies’ recognition of residency restrictions’ counterproductivity, has observed the following regarding our State’s sex offender scheme:

“No one doubts that New York’s goal of preventing sexual violence toward children is legitimate and compelling, but New York nonetheless must advance that objective through rational means. Courts, law enforcement agencies, and scholars all have acknowledged that residency restrictions do not reduce recidivism and may actually increase the risk of reoffending. For example, in striking down retroactive application of Michigan’s resi-

9. Specifically, the report recommends: (1) restoring SARA’s original definition of “school grounds” which was limited to the real property line of schools; (2) eliminating SARA’s mandatory nature; and (3) placing the burden on the prosecution to prove the necessity of imposing SARA’s restrictions on each offender (*see* City Bar Report at 10-11).

dency restriction, the Sixth Circuit found no evidence that ‘residential restrictions have any beneficial effect on recidivism rates.’ *Does #1 5 v. Snyder*, 834 F. 3d 696, 705 (2016). The Superior Court of New Jersey, Appellate Division, struck down local ordinances establishing residential restrictions, concluding that they were pre-empted by state law. See *G. H. v. Galloway*, 401 N. J. Super. 392, 951 A. 2d 221 (2008), *aff’d*, 199 N. J. 135, 971 A. 2d 401 (2009). The court explained that the local ordinances ‘make it difficult for a [convicted sex offender] to find stable housing, which can cause loss of employment and financial distress, factors which inadvertently increase the chance of reoffense.’ 401 N. J. Super., at 417, 951 A. 2d, at 236.

“Law enforcement agencies also recognize that residency restrictions are often counterproductive. The Department of Justice acknowledges that there is ‘no empirical support for the effectiveness of residence restrictions’ such as New York’s. Office of Justice Programs, Sex Offender Management Assessment and Planning Initiative 205 (2017). In fact, the Department notes, residency restrictions may cause ‘a number of negative unintended consequences’ that ‘aggravate rather than mitigate offender risk.’ *Ibid.* An empirical study of recidivism conducted by the Minnesota Department of Corrections confirmed that ‘none of the 224 sex offenses would likely ha[ve] been deterred by a residency restriction law.’ G. Duwe, Residency Restrictions and Sex Offender Recidivism: Implications for Public Safety, 2 *Geography & Pub. Safety* 6, 7 (May 2009). Like the Department of Justice, the Minnesota Department of Corrections concluded that ‘[b]y making it more difficult for sex offenders to find suitable housing and successfully reintegrate into the community, residency restrictions may actually compromise public safety by fostering conditions that increase offenders’ risk of reoffending.’ *Id.*, at 8.

“A large body of scholarship also cautions against residency restrictions as a means of reducing recidivism. Criminologists considering data from Mis-

souri and Michigan concluded that residency restrictions have little or no effect on recidivism. B. Huebner et al., *The Effect and Implications of Sex Offender Residence Restrictions: Evidence From a Two-State Evaluation*, 13 C. & Pub. Pol'y 139, 156 (2016). A similar study of recidivism rates in Florida reached the same conclusion. P. Zandbergen, J. Levenson, & T. Hart, *Residential Proximity to Schools and Daycares: An Empirical Analysis of Sex Offense Recidivism*, 37 Crim. Justice & Behavior 482, 498 (2010) ("The results of this study indicate no empirical association between where a sex offender lives and whether he reoffends sexually against a minor"). Other scholars have explained that by banishing returning individuals to the margins of society, residency restrictions may lead to homelessness, unemployment, isolation, and other conditions associated with an increased risk of recidivism. See generally A. Frankel, *Pushed Out and Locked In: The Catch-22 for New York's Disabled, Homeless Sex-Offender Registrants*, 129 Yale L. J. Forum 279 (2019)" (*Ortiz*, 595 US at —, 142 S Ct at 915-916 [Sotomayor, J., statement regarding denial of certiorari]).

The majority, nonetheless, ignores the data and exhortations from the bench and bar regarding the apparent failure of residency requirements to achieve their intended goals.¹⁰ Worse yet, the majority seeks to avoid the issue altogether by reasoning that, because the Court previously rejected a substantive due process challenge to the law in *People ex rel. Johnson v Superintendent, Adirondack Corr. Facility* (36 NY3d 187, 203 [2020]), it follows that the residency prohibition is rationally connected to public safety for ex post facto purposes (majority op at 316-317). This distressing syllogism exposes the majority's fundamental misunderstanding of a bedrock doctrine of federal constitutional law by wrongly equating rational-basis

10. The majority and Judge Halligan candidly acknowledge these "troubling" findings (majority op at 317; Halligan, J., dissenting op at 347-348). Other courts have done the same. Contrary to Judge Halligan's suggestion that my views rest on "the absence of any counter to [the data] sufficient to resolve the question of whether SARA is excessive" (Halligan, J., dissenting op at 348), I conclude that this empirical evidence on its own undermines any rational connection between the statutory regulatory scheme and any nonpunitive purpose it was intended to serve.

scrutiny in substantive due process cases like *Johnson* with the rational connection to a specific, non-punitive purpose the government must show for this law to survive petitioner's ex post facto challenge (see *Mendoza-Martinez*, 372 US at 169). As the *Johnson* Court itself noted, the former is "the most relaxed and tolerant form of judicial scrutiny" (36 NY3d at 202, quoting *Myers v Schneiderman*, 30 NY3d 1, 15 [2017], quoting *Dallas v Stanglin*, 490 US 19, 26 [1989]). Under rational-basis review, government action "is entitled to a strong presumption of validity" and will be upheld if "it would serve legitimate state interests" (*Dobbs v Jackson Womens Health Organization*, 597 US 215, 221 [2022] [internal quotation marks omitted]). An Ex Post Facto Clause analysis, by contrast, is much less deferential in that it focuses on whether the retroactively-applied law bears a "rational connection to a nonpunitive purpose" (*Smith*, 538 US at 102). The two are not the same—if they were the Supreme Court in *Smith* would have selected the same well-worn language from its substantive due process jurisprudence (*Hardware Dealers Mut. Fire Ins. Co v Glidden Co.*, 284 US 151, 158-159 [1931] [to uphold a law against a substantive due process challenge, "it is enough that, when the statute is read in the light of circumstances generally known . . . , the possibility of a rational basis for the legislative judgment is not excluded"]).

In the ex post facto context, the law need not feature "a close or perfect fit with the nonpunitive aims it seeks to advance" and "[t]he excessiveness inquiry . . . is not an exercise in determining whether the legislature has made the best choice possible to address the problem it seeks to remedy" (*Smith*, 538 US at 103, 105). But tolerance of some imprecision is not the functional equivalent of the deference courts afford the government under the lenient rational basis test. More importantly, for ex post facto purposes, the ultimate "question is whether the regulatory means chosen are reasonable in light of the non-punitive objective" (*id.* at 105). The fact that, under New York's scheme, any level three offender is subject to the residency prohibition—even someone, like petitioner, whose crime was against an adult and who has no history of harming or sexually obsessing over children—displays the clear lack of a rational connection between the legislative stated intent of protecting children animating the residency prohibition and its actual, excessive effects.

Thus, even though this residency prohibition survived rational-basis review in *Johnson* (36 NY3d at 202-203), given

its failure to achieve its regulatory goals, any rational connection between those goals and the effects on persons convicted before its enactment is, at best, tenuous and the scheme's effects on level three offenders like petitioner are excessive.

V.

“Despite the empirical evidence, legislatures and agencies are often not receptive to the plight of people convicted of sex offenses and their struggles in returning to their communities. Nevertheless, the Constitution protects all people, and it prohibits the deprivation of liberty based solely on speculation and fear.

“When the political branches fall short in protecting these guarantees, the courts must step in” (*Ortiz*, 595 US at —, 142 S Ct at 916-917 [Sotomayor, J., statement regarding denial of certiorari]).

The State's application of the regulatory scheme to those who committed their crimes before enactment of SORA and SARA results in additional incarceration and is otherwise so punitive in effect that it cannot be considered civil in nature. It is punishment, full stop. Given that courts alone can declare that a law violates the Ex Post Facto Clause, the majority has failed in its constitutional duty to step in and right this wrong.

I dissent.

HALLIGAN, J. (dissenting). There can be no question that continued incarceration which results from applying the Sexual Assault Reform Act's (SARA) mandatory school residency restriction (Executive Law § 259-c [14]) to offenders who cannot identify SARA-compliant housing is the “paradigmatic affirmative disability or restraint” (*Smith v Doe*, 538 US 84, 100 [2003]). While that impact should surely be taken into account in determining whether SARA is punitive for purposes of the Ex Post Facto Clause, I am not persuaded that the United States Supreme Court's decision in *Seling v Young* (531 US 250 [2001]) allows us to focus our analysis exclusively on that group of offenders. As the majority points out, we do not know how many individuals have been, or likely will be, subject to prolonged incarceration due to SARA's residency restriction.¹ If

1. At oral argument, counsel from the Attorney General's office noted that, “[a]s of May 1st, there were approximately forty-six people either in

(n. cont'd)

that group were exceedingly small in number as compared with the total number of offenders subject to SARA, this case might closely resemble *Seling*, which barred an Ex Post Facto challenge to the actual conditions of confinement imposed on a single individual.

I nonetheless dissent because I do not believe the majority sufficiently grapples with whether mounting evidence that SARA-type restrictions have no beneficial impact on public safety (or worse yet, may be deleterious) renders SARA's retroactive application excessive and thus violative of the Ex Post Facto Clause. As the majority explains, even if the legislature intended SARA to be civil in nature, sufficiently punitive purpose or effect can negate the legislature's intent for Ex Post Facto purposes. Analyzing whether a statute is punitive in effect requires consideration of "the statute's proportionality to its nonpunitive purpose" (majority op at 318; see *Hudson v United States*, 522 US 93, 101 [1997] [characterizing excessiveness factor of intent-effects test as proportionality inquiry]).

Critically, the Appellate Division appeared to believe its analysis of this question was "constrained" by our decision in *People ex rel. Johnson v Superintendent, Adirondack Corr. Facility* (36 NY3d 187 [2020]) (see 200 AD3d 1370, 1374 [3d Dept 2021]). In *Johnson*, we held that confinement in correctional facilities of those awaiting SARA-compliant housing did not violate the federal substantive due process rights of the individual petitioners or impose cruel and unusual punishment in violation of the Eighth Amendment. But the Ex Post Facto Clause asks whether the challenged statute imposes punishment at all, not whether a legislative measure is rationally related to a conceivably legitimate state interest or inflicts cruel and unusual punishment.

I agree with the majority that *Johnson* effectively resolves the question of whether there is a rational connection between the school residency restriction and the purpose of protecting children. But *Johnson* does not answer the distinct question of the statute's excessiveness (or as the majority puts it, its

a RTF or at DOCCS waiting for New York City SARA-compliant housing" (tr of oral argument at 21, lines 7-9). Counsel for the Department of Corrections and Community Supervision (DOCCS) previously stated that there were 295 people awaiting SARA-compliant housing and that the average waiting time for placement in a SARA-compliant shelter was approximately two to three years (see *People ex rel. Johnson v Superintendent, Adirondack Corr. Facility*, 174 AD3d 992, 996-997 [3d Dept 2019, Garry, P.J., concurring]).

proportionality) in light of that purpose (*see* majority op at 318). Given the significant potential implications of the question presented here for both offenders subject to SARA and for public safety, I would remit to the Appellate Division so that it could fully consider this question in the first instance (*see People v Johnson*, 39 NY3d 92, 98 [2022] [reversing and remitting to the Appellate Division to conduct factual and legal review under the proper framework]).²

SARA's purpose of protecting children is certainly essential. SARA also imposes significant burdens, both on those who manage to secure SARA-compliant housing and especially on those who cannot. That leaves the question of how effectively SARA furthers its goal. No matter how crucial a statute's purpose, the legislative means chosen can be deemed unreasonable or disproportionate if they do little or nothing to advance the legislature's objective.

Petitioner asserts, albeit only glancingly, that there is no empirical evidence demonstrating that SARA's restrictions in fact work to protect children from high-risk sex offenders, and that credible evidence indicates the restrictions may even exacerbate the risk of sexual recidivism against children. Petitioner points us to a Justice Department report concluding that "there is no empirical support for the effectiveness of residence restrictions," and that "a number of negative unintended consequences have been empirically identified" (United States Department of Justice, Office of Justice Programs, *Sex Offender Management Assessment and Planning Initiative* at 205 [2017]); an article reaching the same conclusion (Ira M. Ellman, *When Animus Matters and Sex Crime Underreporting Does Not: The Problematic Sex Offender Registry*, 7 U Pa J L & Pub Affs 1 [2021]); a federal appellate decision that acknowledged the absence of evidence that "residential restrictions have any beneficial effect on recidivism rates" in finding Mich-

2. I also note that in assessing whether SARA imposes an affirmative restraint, the majority discounts SARA's impact because the restriction applies only during parole, conditional release, or postrelease supervision (*see* majority op at 315). While an individual's liberty interest may indeed be diminished during those periods, that point weighs more significantly in a substantive due process inquiry than an Ex Post Facto challenge (*see Weaver v Graham*, 450 US 24, 29-30 [1981] ["Evaluating whether a right has vested is important for claims under the . . . Due Process Clause(), which solely protect(s) pre-existing entitlements. The presence or absence of an affirmative, enforceable right is not relevant, however, to the ex post facto prohibition" (citations and emphasis omitted)]).

igan’s sex offender statute excessive (*Does #1-5 v Snyder*, 834 F3d 696, 705 [6th Cir 2016]); a state high court decision concluding that the efficacy of the same statutory scheme was, at a minimum, unclear (*see People v Betts*, 507 Mich 527, 561, 968 NW2d 497, 514 [2021]);³ and Justice Sotomayor’s similar observations in a statement regarding denial of certiorari from this Court’s decision in *Johnson* (*see Ortiz v Breslin*, 595 US — 142 S Ct 914 [2022] [Sotomayor, J., statement]). Additionally, the dissent references an empirical study of sex offender recidivism cited in petitioner’s habeas petition (*see* Jill S. Levenson & Andrea L. Hern, *Sex Offender Residence Restrictions: Unintended Consequences and Community Reentry*, 9 Just Rsch & Poly [Issue 1] 59, 61 [2007]) and a New York City Bar report highlighting empirical doubt about SARA’s efficacy (*see* New York City Bar Association, *The Impact and Legality of Sex Offender Residency Restrictions Created by New York’s Sexual Assault Reform Act* [Oct. 2016]). Similar concerns are raised by an Advisory Committee on Criminal Law and Procedure convened by New York’s Chief Administrative Judge (*see Residency Restrictions for Certain Sex Offenders*, 2017 Rep of Advisory Comm on Crim Law & Pro to Chief Admin Judge of Cts of St of NY at 29-30).

With respect to the empirical question of whether SARA’s restriction furthers its intended purpose, the majority fairly asks whether the record here is sufficiently robust to assess its efficacy. (To the extent the majority suggests that we must simply defer to the legislature on this question, I disagree. Both cases the majority cites, *A. E. Nettleton Co. v Diamond* [27 NY2d 182

3. Petitioner cites a number of other cases invalidating sex offender residency restrictions as, among other reasons, excessive (*see Starkey v Oklahoma Dept. of Corr.*, 2013 OK 43, 305 P3d 1004 [2013] [invalidating Oklahoma residency restriction]; *Commonwealth v Baker*, 295 SW3d 437 [Ky 2009] [invalidating Kentucky residency restriction]; *State v Pollard*, 908 NE2d 1145 [Ind 2009] [invalidating Indiana residency restriction as ex post facto punishment on state constitutional grounds]; *see also Evenstad v City of W. St. Paul*, 306 F Supp 3d 1086 [D Minn 2018] [granting preliminary injunction barring enforcement of Minnesota residency restriction]; *Does v Wasden*, 982 F3d 784 [9th Cir 2020] [holding challengers of Idaho residency restriction had plausibly alleged ex post facto violation]; *Doe v Miami-Dade County, Fla.*, 846 F3d 1180 [11th Cir 2017] [same for Florida residency restriction]; *but see McGuire v Marshall*, 50 F4th 986, 1009 [11th Cir 2022] [upholding Alabama residency restriction]; *Hope v Commr. of Indiana Dept. of Corr.*, 9 F4th 513 [7th Cir 2021] [upholding Indiana residency restriction]; *Vasquez v Foux*, 895 F3d 515 [7th Cir 2018] [upholding Illinois residency restriction]; *Doe v Miller*, 405 F3d 700 [8th Cir 2005] [upholding Iowa residency restriction]).

(1970)] and *White v Cuomo* [38 NY3d 209 (2022)], involve other constitutional provisions. The purpose of the Ex Post Facto Clause is to guard against arbitrary or vindictive legislation that may be directed against a disfavored group [see *Miller v Florida*, 482 US 423, 429 (1987)], making total deference to the legislature inappropriate.) But it is striking that the Attorney General offers no response to the empirical assertion—now accepted by several other courts—that a school residency restriction does not in fact reduce sexual recidivism against children and may actually have a harmful effect in deterring these serious crimes.

The majority brushes aside the decisions invalidating similar residency restrictions on the ground that the statutes in those other jurisdictions are different. It is true that the residency restrictions at issue in those cases were tied to the offender's underlying conviction, without regard to whether the victim was a minor or any individualized risk assessment, and appear to apply beyond the end of an offender's sentence (see *Does #1-5*, 834 F3d 696; *Betts*, 507 Mich 527, 968 NW2d 497; *Starkey v Oklahoma Dept. of Corr.*, 2013 OK 43, 305 P3d 1004 [2013]; *Commonwealth v Baker*, 295 SW3d 437 [Ky 2009]). In that respect, SARA can be described as more carefully tailored to the goal of identifying those who pose the greatest risk to children. But those statutes appear to be less burdensome than SARA in that they do not appear to require that an offender secure compliant housing before being released, and for that reason, those courts did not consider the potential prolonged incarceration that results under New York's law.

Beyond the question of how closely SARA resembles other residency restrictions that have been found to violate the Ex Post Facto Clause, the two cases relied on by petitioner raise serious questions about whether school restrictions actually reduce sexual recidivism against children. The Sixth Circuit's ruling invalidating Michigan's school restriction (as well as that state's registration and notification requirements) rested on a voluminous record that included expert testimony, data regarding the total number of offenders by each risk level, and a map showing which property parcels in a particular city were off-limits to registrants (see *Does #1-5 v Snyder*, 101 F Supp 3d 672 [ED Mich 2015], ECF 90-95). The Michigan Supreme Court had before it an amicus brief that presented numerous empirical studies indicating that there are relatively low recidivism rates among sex offenders—including as reported by New

York's Department of Corrections and Community Supervision (*see* friend of the court brief submitted in support of defendant-appellant in *People v Betts*, 507 Mich 527, 968 NW2d 497 [2021], available at 2020 WL 4261609, *10); that residency restrictions do not reduce sex offender recidivism (*see id.* at *29); and that the collateral consequences of sex offender residency restrictions for former offenders, their families, and the community undermine public safety (*see id.* at *34-42).

Like my dissenting colleagues, I find this evidence deeply troubling. One might find the absence of any counter to it sufficient to resolve the question of whether SARA is excessive, as Judge Rivera's dissent does: any measure that does nothing to promote a desired goal while imposing significant burdens is arguably excessive and out of proportion by definition. But these issues were not well-aired before this Court, and given the importance of the question, I am not prepared at this juncture to hold that SARA has punitive effect and thus violates the Ex Post Facto Clause. Instead, I would clarify that this question is not controlled by our decision in *People ex rel. Johnson* and remit so that the Appellate Division may fully consider whether SARA's school residency restriction is excessive in relation to its nonpunitive purpose (*see People v Johnson*, 39 NY3d 92, 98 [2022] [reversing and remitting to the Appellate Division, absent request from either party, to conduct factual and legal review under the proper framework]). I respectfully dissent.

Judges GARCIA, CANNATARO and TROUTMAN concur. Judge RIVERA dissents in an opinion, in which Chief Judge WILSON concurs. Judge HALLIGAN dissents in a separate opinion.

Order insofar as appealed from affirmed, without costs.

[222 NE3d 27, 198 NYS3d 661]

ANDREW NITKEWICZ, as Trustee of the JOAN C. LUPE FAMILY TRUST and On Behalf of Himself and All Others Similarly Situated, Appellant, v LINCOLN LIFE & ANNUITY COMPANY OF NEW YORK, Respondent.

Argued September 12, 2023; decided October 19, 2023

SUMMARY

PROCEEDING, pursuant to NY Constitution, article VI, § 3 (b) (9) and Rules of the Court of Appeals (22 NYCRR) § 500.27, to review a question certified to the New York State Court of Appeals by the United States Court of Appeals for the Second Circuit. The following question was certified by the United States Court of Appeals and accepted by the New York State Court of Appeals: “Whether a planned payment into an interest-bearing policy account, as part of a universal life insurance policy, constitutes a ‘premium actually paid for any period’ under the refund provision of New York Insurance Law Section 3203(a)(2).”

HEADNOTE

Insurance — Life Insurance — Refund of Premium Portion Already Paid at Time of Insured’s Death — Discretionary Planned Premiums Paid into Universal Life Insurance Policy

Insurance Law § 3203 (a) (2), which requires insurers to refund a portion of a life insurance premium “if the death of the insured occurs during a period for which the premium has been paid,” does not apply to planned payments into an interest-bearing policy account as part of a universal life insurance policy. Accordingly, the statute did not apply to the planned premiums paid annually by a trust into the universal life insurance policy issued by defendant, such that the trust would be entitled to a refund of a prorated portion of the premium paid during the year of the insured’s death. Section 3203 (a) (2) states that the refund rule only applies to “premium[s] actually paid.” A premium is the amount paid at designated intervals for insurance, or the consideration paid for a contract of insurance. Plaintiff trustee paid the planned premiums at designated intervals, but these payments were not for insurance. Pursuant to the terms of the policy, a planned premium was an amount that the trust had elected to add to the policy value at a frequency of its choosing; it was defendant’s monthly deductions that actually “paid” for the insurance because those deductions kept the policy in force for another month. For similar reasons, a planned premium was also not the consideration paid for the insurance contract. Thus, the plain meaning of “premium” as used in section 3203 (a) (2) does not include planned payments into a policy account at the policyholder’s discretion, irrespective of whether the contracting parties used the word “premium” to describe those payments.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Insurance §§ 909, 912, 924.
COUCH ON INSURANCE (3d ed) §§ 79:1, 79:3, 79:6–79:8,
79:11, 79:52.
McKINNEY'S, Insurance Law § 3203 (a) (2).
NY JUR 2d Insurance §§ 1149–1150, 1153.

ANNOTATION REFERENCE

See ALR Index under Consideration; Insurance; Life Insurance; Refunds and Repayment; Trusts.

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POINTS OF COUNSEL

Susman Godfrey L.L.P., New York City (*Seth Ard* and *Alexander P. Frawley* of counsel), for appellant. I. The premium was "actually paid." II. The premium was actually paid "for any period." (*Cragg v Allstate Indem. Corp.*, 17 NY3d 118; *Matter of Walsh v New York State Comptroller*, 34 NY3d 520; *Leader v Maroney, Ponzini & Spencer*, 97 NY2d 95; *Westview Assoc. v Guaranty Natl. Ins. Co.*, 95 NY2d 334.) III. Lincoln Life & Annuity Company of New York's argument falsely implies that there is a universal life exemption in the statute. (*Weingarten v Board of Trustees of N.Y. City Teachers' Retirement Sys.*, 98 NY2d 575.) IV. At a minimum, the facts of this case require an affirmative answer to the certified question. (*Messner Vetere Berger McNamee Schmetterer Euro RSCG v Aegis Group*, 93 NY2d 229.)

Boies Schiller Flexner LLP, New York City (*John F. LaSalle* and *Alan B. Vickery* of counsel), for respondent. I. The "planned premium" is not a statutory premium because it is not "actually paid" for any "period" of insurance coverage. (*Matter of New York State Assn. of Life Underwriters v New York State Banking Dept.*, 83 NY2d 353; *Matter of Lemma v Nassau County Police Officer Indem. Bd.*, 31 NY3d 523; *Matter of Kamhi v Planning Bd. of Town of Yorktown*, 59 NY2d 385; *Matter of Westmoreland Coal Co. v Entech, Inc.*, 100 NY2d 352; *Sil-*

Turn Co., Inc. v London Guar. & Acc. Co., Ltd., 153 Misc 805, 242 App Div 829; *Fleetwood Acres v Federal Hous. Admin.*, 171 F2d 440; *Jones v St. Paul Fire & Mar. Ins. Co.*, 118 F2d 237; *Friedman v Connecticut Gen. Life Ins. Co.*, 9 NY3d 105; *People v Iverson*, 37 NY3d 98; *Matter of Peyton v New York City Bd. of Stds. & Appeals*, 36 NY3d 271.) II. Nothing about this case requires a categorical “exemption.” (*Arbegast v Board of Educ. of S. New Berlin Cent. School*, 65 NY2d 161; *Matter of Walsh v New York State Comptroller*, 34 NY3d 520.) III. The coverage guarantee protection rider does not support a “fact”-specific answer favoring Andrew Nitkewicz. (*Messner Vetere Berger McNamee Schmetterer Euro RSCG v Aegis Group*, 93 NY2d 229; *Cream of Wheat Co. v Crist Co.*, 222 NY 487; *Madawick Contr. Co. v Travelers Ins. Co.*, 307 NY 111.)

Alston & Bird LLP, New York City (*Reade W. Seligmann* of counsel), for American Council of Life Insurers, amicus curiae. I. New York statutes and regulations acknowledge that the cost of insurance is paid on a monthly basis from the cash value of a universal life policy, not through planned premium payments. (*De La Cruz v Caddell Dry Dock & Repair Co., Inc.*, 21 NY3d 530.) II. Appellant’s position ignores the importance of the policy value to policyholders. III. Appellant’s position would result in universal life policies becoming more expensive for most policyholders, thereby reducing cash values and available benefits. IV. Granting appellant’s request for a fact-specific answer to the Second Circuit’s question will create uncertainty and discourage insurers from offering benefits.

OPINION OF THE COURT

SINGAS, J.

The United States Court of Appeals for the Second Circuit has asked us to determine whether Insurance Law § 3203 (a) (2), which requires insurers to refund a portion of a life insurance premium “if the death of the insured occurs during a period for which the premium has been paid,” applies to “planned payment[s] into an interest-bearing policy account, as part of a universal life insurance policy” (49 F4th 721, 730 [2d Cir 2022]). Because the plain language of section 3203 (a) (2) does not apply to such discretionary payments, we answer the certified question in the negative.

I.

Universal life insurance is distinct from term and whole life insurance. To maintain coverage under a term or whole life

policy, the policyholder must pay fixed, periodic premiums. A universal life insurance policy does not have a fixed premium—instead, the policyholder can make a payment in any amount, at any time, subject to certain conditions specified in the policy. These payments are deposited in a “cash value account,” also known as a “policy account,” an interest-earning account administered by the insurer. The insurer deducts from the policy account the cost of insurance (COI), which varies from month to month based on variables including the insurer’s total exposure, any administrative fees, and other required payments from the policy account. The remaining funds in the policy account can grow tax-free over time based on an interest rate set by the insurer and can fund future deductions. Universal life insurance policyholders can typically add funds to the policy account at any time and in any amount. Policyholders often choose—but are not required—to pay a “planned premium,” which is a periodic payment often designed, but not guaranteed, to keep the policy in force. A failure to pay a planned premium does not result in termination or lapse of the policy so long as the funds in the policy account are sufficient to cover the deductions. Depending on the terms of the specific policy, the policyholder may also be able to withdraw funds or take loans against the policy value as long as sufficient funds remain to cover the deductions.

II.

The Joan C. Lupe Family Trust (Trust) entered into a contract (Policy) under which defendant Lincoln Life & Annuity Company of New York agreed to provide universal life insurance coverage with Joan C. Lupe as the insured. The Policy offered a choice between a level and an increasing death benefit. With a level death benefit (Option I), defendant would pay a specified amount to the Trust upon Lupe’s death (minus any debt), and defendant would retain any remaining “Policy Value.” The Policy’s COI was calculated, in part, based on the net risk, computed by subtracting the Policy Value—less certain administrative charges—from the death benefit. Thus, under Option I, payments into the policy account could reduce the net risk and result in a lower monthly COI. Under Option II, defendant would also be required pay out the remaining policy value upon Lupe’s death. Under that option, a higher Policy Value therefore would not result in a lower COI, because it would result in an equivalent increase in the death benefit.

The Trust chose Option I, the level death benefit, with a specified payout amount of \$1.5 million.¹

The Policy listed a “Planned Premium” of \$53,877.72 annually but explained that the Trust could “pay premiums by any method agreeable with [defendant], at any time prior to [Lupe’s] Attained Age 121 and in any amount” subject to certain minor limitations. It also defined “Planned Premium” as “the amount of premium [that the Trust] intend[ed] to pay” and “Premium Frequency” as “how often [the Trust] intend[ed] to pay the Planned Premium,” but specified that “[p]ayment of the Planned Premium [was the Trust’s] option.” The Policy further explained that the Planned Premium “may need to be increased to keep [the] [P]olicy and the coverage in force; payment of the [P]lanned [P]remium may not prevent [the] [P]olicy from terminating.” Defendant agreed to send “Planned Premium payment reminder notices,” and permitted changes to Planned Premium frequency or amount by written notification.

When the Trust made a Planned Premium payment, which it did annually for the life of the Policy, the payment was credited to the Policy Value,² where the funds earned interest and increased the “Cash Surrender Value.”³ On the first day of each month, defendant made a deduction from the Policy Value comprising the COI, the cost of other benefits, and administrative charges, which guaranteed insurance coverage for that month. If there was not sufficient Cash Surrender Value to cover the monthly deduction, the Policy provided that it would enter a grace period, and eventually lapse if no payment was made. The Trust purchased a “Coverage Protection Guarantee Rider” (CPGR) for additional protections in the event the Cash Surrender Value was insufficient to cover the monthly deduction.

The Trust paid its last annual Planned Premium on May 7, 2018. On October 6, 2018, Lupe died. Defendant paid out the \$1.5 million death benefit but declined to refund any portion of the Planned Premium from earlier that year. Plaintiff Andrew Nitkewicz, as trustee of the Trust, subsequently filed this puta-

1. The Policy permitted the Trust to switch the death benefit option “[a]ny time after the first policy year and prior to [Lupe’s] Attained Age 121.”

2. Per the Policy’s terms, 85% of any payment was to be deposited in the Policy Value, while defendant retained the remaining 15%.

3. The Cash Surrender Value is the Policy Value less surrender charges and any debt on the Policy.

tive class action suit against defendant for breach of contract, alleging that its refusal to refund a prorated portion of the final year's Planned Premium violated Insurance Law § 3203 (a) (2). Defendant moved to dismiss the complaint for failure to state a claim (*see* Fed Rules Civ Pro rule 12 [b] [6]). The United States District Court for the Southern District of New York granted defendant's motion to dismiss, concluding that section 3203 (a) (2) did not require such a refund because the Planned Premium was not a "premium *actually paid*," nor was the Planned Premium a premium "*for any period* beyond the end of the policy month in which [Lupe's] death occurred" (*see* 2021 WL 2784551, *6-9, 2021 US Dist LEXIS 124389, *17-27 [SD NY, July 2, 2021, 20 Civ 6805 (JPC)] [*emphasis added*]). Plaintiff appealed.

Concluding that no New York state cases resolved the issue, the Second Circuit certified the following question to this Court: "Whether a planned payment into an interest-bearing policy account, as part of a universal life insurance policy, constitutes a 'premium actually paid for any period' under the refund provision of [Insurance Law § 3203 (a) (2)]" (49 F4th at 730). We accepted the certified question (39 NY3d 927 [2022]).

III.

Our analysis begins with the statute's plain text—"the clearest indicator of legislative intent" (*Lubonty v U.S. Bank N.A.*, 34 NY3d 250, 255 [2019], quoting *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 583 [1998]; *see People ex rel. Negron v Superintendent, Woodbourne Corr. Facility*, 36 NY3d 32, 36 [2020] ["Where the language of a statute is clear and unambiguous, courts must give effect to its plain meaning" (internal quotation marks and brackets omitted)]).

Insurance Law § 3203 (a) requires that "[a]ll life insurance policies, except as otherwise stated herein . . . contain in substance [certain] provisions, or provisions which the superintendent deems to be more favorable to policyholders." Subdivision (a) (2) contains one such provision which states, in relevant part:

"[I]f the death of the insured occurs during a period for which the premium has been paid, the insurer shall add to the policy proceeds a refund of any premium *actually paid for any period beyond the end of the policy month* in which such death oc-

curred, provided such premium was not waived under any policy provision for waiver of premiums benefit. This paragraph shall not apply to single premium or paid-up policies” (Insurance Law § 3203 [a] [2] [emphasis added]).

Other than the District Court opinion in this case, there are no state or federal cases interpreting section 3203 (a) (2).

The first relevant portion of the statute states that the refund rule only applies to “premium[s] actually paid” (*id.*). A premium is “[t]he amount paid at designated intervals for insurance; esp., the periodic payment required to keep an insurance policy in effect” (Black’s Law Dictionary [11th ed 2019], premium) or the “the consideration paid for a contract of insurance” (Merriam-Webster.com Dictionary, premium [<https://www.merriam-webster.com/dictionary/premium>]). In this case, plaintiff paid the Planned Premiums “at designated intervals”—a “periodic payment” of once a year, as selected by the Trust. But these payments were not “for insurance.” Pursuant to the terms of the Policy, a Planned Premium was simply an amount that the Trust had elected to add to the Policy Value at a frequency of its choosing—it was defendant’s monthly deductions that actually “paid” for the insurance because those deductions kept the policy in force for another month. Illustrating this point, a year’s worth of deductions could have been more or less than an annual Planned Premium depending on (1) how much the Trust chose to pay, and (2) the total COI for that period. Because of this, the Policy made clear that payment of the Planned Premium was entirely the Trust’s choice and was not required “to keep [the] insurance policy in effect.” It correspondingly explained that such payments would not necessarily keep the Policy from terminating and might “need to be increased to keep [the] [P]olicy and the coverage in force.” For similar reasons, a Planned Premium is not the “consideration” paid for the insurance contract. Thus, the plain meaning of “premium” as used in section 3203 (a) (2) does not include planned payments into a policy account at the policyholder’s discretion, like the Planned Premiums in this case, irrespective of whether the contracting parties used the word “premium” to describe those payments.

Relatedly, a Planned Premium under the Policy was not paid “for any period beyond the end of the policy month in which” Lupe’s death occurred. Though under the terms of subdivision (a) (2), the payment need not have been paid for any *specific*

period, under the terms of the Policy, the amount of any given Planned Premium may or may not have been used to cover the monthly deductions. Pursuant to the clear terms of the Policy, the Policy Value remaining after each monthly deduction might have gone to fund future monthly deductions or might have remained in the Policy Value, accruing interest, and ultimately, would be retained by defendant pursuant to the parties' explicit agreement, given the Trust's selection of the Option I death benefit. Moreover, because the Trust's payments went into a pool (the Policy Value), it is impossible to parse which part, if any, of a given Planned Premium was used to cover the monthly deductions.⁴

Our conclusion also recognizes that plaintiff received certain benefits for choosing to remit Planned Premiums that allowed the Policy Value to grow. First, the Policy Value collected tax-free interest, which could be used to fund future monthly deductions. Additionally, any accumulated Policy Value lowered the monthly deductions because it decreased the monthly COI by reducing defendant's exposure. If the Trust had not wished to avail itself of these benefits, it could have remitted payments that hewed more closely to the actual monthly deductions during any given period. The Trust would have earned less interest and had a higher monthly COI, but defendant would not have retained as much Policy Value when Lupe died. Alternatively, the insurer offered an option under which the Trust could have selected an increasing death benefit. Although the monthly deductions would have been higher under this option, the Trust would have kept the entire Policy Value, including the disputed portion of the final Planned Premium payment. This is simply the nature of the bargain that the parties struck, and a Planned Premium cannot be said to be "paid for any period beyond the end of the policy month in which [Lupe's] death occurred."

Plaintiff argues that the Court should find significance in the legislature's specific exclusion of "single premium"⁵ and

4. Plaintiff's argument that its receipt of annual Planned Premium reminders means that each Planned Premium payment constitutes a premium is divorced from the Policy's terms. These reminders were sent purely based on the Trust's own selection of the amount and frequency of the Planned Premium.

5. A single premium policy provides insurance for a certain period with only one initial premium payment.

“paid-up policies”⁶ from this rule, but not universal life insurance. Plaintiff contends that a conclusion that planned premiums are not subject to the refund requirement of Insurance Law § 3203 (a) (2) would effectively rewrite the statute to exclude policies that the legislature did not intend to exclude. We disagree. While planned premiums may not fall within the scope of section 3203 (a) (2)’s refund requirement, that does not mean the statute is wholly inapplicable to universal life insurance policies. If, for example, an insurer deducted the cost of insurance on a quarterly or annual basis, a pro rata refund of such deductions would be required after the insured’s death pursuant to section 3203 (a) (2). Alternatively, if an insurer did not receive timely notice of the insured’s death and continued deducting the monthly cost of insurance from a policy account, a refund of any deductions beyond the month of death would be compelled by the statute. In any event, plaintiff’s argument begs the question of whether the plain language of section 3203 (a) (2) would apply to planned premiums in the first place. Because it does not, there was no reason for the legislature to add a specific exclusion for such payments. By contrast, the types of policies exempted in the statute would trigger its plain language because they both involve the payment of premiums for coverage far into the future, thus rendering a specific exclusion necessary to exempt those policies from the refund provision.

Finally, plaintiff’s proposed interpretation is simply unworkable and internally inconsistent. Plaintiff has focused on the final Planned Premium and argued that a pro rata portion of that final payment should be refunded. But, as previously discussed, it was solely the Trust’s decision when to make payments and in what amount, and the Planned Premium is untethered to how much is deducted annually to pay for the COI and administrative fees. Further, since an insured is not required to pay an *entire* planned premium in or for any given period—or could pay *in excess* of the planned premium—plaintiff’s proposed interpretation would raise questions that the language of section 3203 (a) (2) simply does not answer regarding how to allocate such payments to any “period” for purposes of the insurer’s refund obligation. Ultimately, plaintiff’s reading of the statute is both inconsistent with its

6. A paid-up policy provides insurance for a certain period with premium payments that fund the entire policy before that period is over.

plain language and lacks any connection to how universal life insurance works in practice.⁷

In sum, Insurance Law § 3203 (a) (2) does not apply to discretionary payments like those at issue here. Accordingly, the certified question should be answered in the negative.

Following certification of a question by the United States Court of Appeals for the Second Circuit and acceptance of the question by this Court pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), and after hearing argument by counsel for the parties and consideration of the briefs and record submitted, certified question answered in the negative.

Chief Judge WILSON and Judges RIVERA, GARCIA, CANNATARO, TROUTMAN and HALLIGAN concur.

7. The impact, if any, of the CPGR on this analysis is not before the Court on this certified question (*see* 49 F4th at 727 n 4, 730).

[222 NE3d 519, 199 NYS3d 3]

In the Matter of ROBERT J. PUTORTI, a Justice of the Whitehall Town Court and the Whitehall Village Court, Washington County, Petitioner. NEW YORK STATE COMMISSION ON JUDICIAL CONDUCT, Respondent.

Argued September 12, 2023; decided October 19, 2023

SUMMARY

PROCEEDING, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44, to review a determination of respondent State Commission on Judicial Conduct, dated September 9, 2022. The Commission determined that petitioner should be removed from the offices of Justice of the Whitehall Town Court and Whitehall Village Court, Washington County.

HEADNOTES

Judges — Commission on Judicial Conduct — Investigation Procedurally Proper

1. Respondent State Commission on Judicial Conduct’s investigation of an incident in which petitioner Town and Village Justice brandished a loaded firearm at a litigant, which led to the Commission’s investigation of petitioner’s improper fundraising, was procedurally proper. The Commission may on its own motion initiate an investigation of a judge (*see* Judiciary Law § 44 [2]; 22 NYCRR 7000.2) and, if in the course of an investigation the Commission’s staff becomes aware of unrelated acts that may constitute misconduct, the Commission may then authorize an investigation of that conduct in a separate complaint. There was no dispute that the investigation into the firearm incident was properly authorized in this manner. Petitioner had repeatedly recounted his story of the firearm incident to others, including several instances in which he mentioned the litigant’s race. The Commission’s staff appropriately searched petitioner’s public social media account to investigate whether he had made any additional remarks about that incident, and there was no dispute that the investigation into the improper fundraising was properly authorized in the same manner thereafter.

Judges — Disciplinary Proceedings — Finding of Racial Bias Upheld

2. In a proceeding to review a determination by respondent State Commission on Judicial Conduct that petitioner Town and Village Justice should be removed from office for stipulated acts of misconduct, there was no basis to set aside the Commission’s finding of racial bias. Petitioner brandished a loaded firearm at a litigant who was waiting for his case to be called and repeatedly mentioned the litigant’s race in his retellings of the incident. The agreed-upon facts included an admission by petitioner that he failed to perform his judicial duties “without manifesting in words or conduct bias or prejudice based upon race, in violation of [s]ection 100.3(B)(4) of the Rules [Governing Judicial Conduct (22 NYCRR)].” Moreover, judges have a continuing obligation to avoid even the appearance of impropriety, and petitioner

acknowledged that his conduct “may have created the appearance of racial bias.” Petitioner’s repeated reference to the litigant as a “‘big Black man’” was not a mere physical description of the litigant. By repeatedly referring to the litigant in the manner that he did, petitioner exploited a classic and common racist trope that Black men are inherently threatening or dangerous, exhibiting bias or, at least, implicit bias.

Judges — Removal from Office — Appropriateness of Sanction

3. A determination of respondent State Commission on Judicial Conduct that petitioner Town and Village Justice should be removed from office for stipulated acts of misconduct was accepted. The misconduct was so inexcusable that no amount of mitigation could be sufficient to restore the public’s trust in petitioner’s ability to discharge the responsibilities of judicial office in a fair and just manner. While presiding over his courtroom, petitioner brandished a loaded firearm at a litigant who presented no threat to anyone. Rather than show remorse, he described his conduct in a press interview and boasted about it to his colleagues, while repeatedly, and gratuitously, referring to the litigant’s race. Also troubling was petitioner’s denial of facts to which he previously stipulated. Petitioner’s unfitness for office was further demonstrated by his improper use of social media to solicit donations. Although the improper fundraising would not by itself warrant removal, its timing and the circumstances under which it occurred—while petitioner was under investigation on the charge arising from the firearm incident—evinced an unwillingness or inability to abide by the Rules Governing Judicial Conduct.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Judges §§ 16–17, 19–20.
 CARMODY-WAIT 2d Courts and Their Jurisdiction § 2:57;
 CARMODY-WAIT 2d Officers of Court §§ 3:120, 3:122–
 3:123, 3:145, 3:148, 3:150.
 MCKINNEY’S, Judiciary Law § 44 (2).
 22 NYCRR 100.3 (B) (4); 7000.2.
 NY JUR 2d Courts and Judges §§ 40, 437, 442, 445, 452.

ANNOTATION REFERENCE

Disciplinary action against judge on ground of abusive or intemperate language or conduct toward attorneys, court personnel, or parties to or witnesses in actions, and the like. 89 ALR4th 278.

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 conduct or act! or facts or misconduct)

POINTS OF COUNSEL

Cerio Law Offices, PLLC, Syracuse (*Nathaniel V. Riley* of counsel), for petitioner. I. Brandishing his pistol, and accurately

retelling the event in a publication and to other members of the judiciary as regaining control of his courtroom from a “Black man” facing serious violent felony offenses that rushed the bench past the “stop line,” did not warrant removal of Justice Robert J. Putorti for discourteous conduct or racial bias. (*Matter of Kiley*, 74 NY2d 364; *Matter of Steinberg*, 51 NY2d 74; *Matter of Skinner*, 91 NY2d 142; *Matter of Cunningham*, 57 NY2d 270; *Matter of Ayres* [New York State Commn. on Jud. Conduct], 30 NY3d 59; *Matter of Restaino* [State Commn. on Jud. Conduct], 10 NY3d 577; *Matter of Miller* [New York State Commn. on Jud. Conduct], 35 NY3d 484; *Matter of Sims* [State Commn. on Jud. Conduct], 61 NY2d 349; *McDonald v Chicago*, 561 US 742; *Matter of Agresta*, 64 NY2d 327.) II. Fundraisers created by third parties that either “tagged” Justice Robert J. Putorti’s Facebook profile, or were shared by him, did not warrant his removal from the bench, and the New York State Commission on Judicial Conduct’s failure to consider several mitigating factors further militate that no more than censure was appropriate in this circumstance where the public has not lost faith in Justice Putorti’s ability to fulfill the trust placed in him by his community. (*Matter of Harris*, 72 NY2d 335; *Matter of Edwards*, 67 NY2d 153; *Matter of Kelso*, 61 NY2d 82; *Matter of Raab*, 100 NY2d 305; *Matter of Senzer*, 35 NY3d 216.)

State Commission on Judicial Conduct, Albany (Robert H. Tembeckjian, David P. Stromes, Edward Lindner, Denise Buckley, Cathleen S. Cenci and S. Peter Pedrotty of counsel), for respondent. Petitioner should be removed from office for unjustifiably brandishing a loaded gun at an unarmed defendant in court, repeatedly boasting about the incident and describing it in racial terms, and engaging in other misconduct while he knew he was under investigation. (*Matter of Kuehnel v State Commn. on Jud. Conduct*, 49 NY2d 465; *People v Perry*, 19 NY3d 70; *People v Brown*, 33 NY3d 316; *Matter of Blackburne* [State Commn. on Jud. Conduct], 7 NY3d 213; *Matter of Duckman*, 92 NY2d 141; *Matter of Sardino v State Commn. on Jud. Conduct*, 58 NY2d 286; *Matter of Watson*, 100 NY2d 290; *Matter of Schiff*, 83 NY2d 689; *Matter of Jacqueline F.*, 47 NY2d 215; *Matter of Sims* [State Commn. on Jud. Conduct], 61 NY2d 349.)

OPINION OF THE COURT

Per Curiam.

Petitioner, a Justice of the Whitehall Town Court and Whitehall Village Court, Washington County, seeks review of a

determination of the State Commission on Judicial Conduct that he committed certain acts of misconduct and should be removed from office (*see* NY Const, art VI, § 22; Judiciary Law § 44). Upon our independent review of the record, we conclude that the charges are sustained by the evidence, and that the sanction of removal is appropriate.

Petitioner has been a Justice of the Whitehall Town Court since 2014. He took office as a Justice of the Whitehall Village Court in 2018, having served in that office in an acting capacity since 2014. One day in late 2015, while presiding over Whitehall Village Court, petitioner brandished a loaded firearm at a litigant who was waiting for his case to be called. In 2020, the Commission served petitioner with a formal written complaint containing a single charge arising from that incident (charge I). In 2021, the Commission served petitioner with a second formal written complaint containing an additional charge, which alleged that he had engaged in improper fundraising (charge II). In lieu of a hearing, petitioner entered into an agreed statement of facts (*see* Judiciary Law § 44 [5]).

I.

Agreed-upon Facts as to Charge I

Petitioner has been licensed to carry a firearm since 2003 and had been advised at a 2013 judicial training course that he could legally carry a concealed firearm at the bench. Petitioner's practice was to keep the firearm attached to the underside of the bench using a magnet while he was presiding over his courtroom. The courtroom had no assigned security personnel, though the courtroom was adjacent to the Whitehall Village Police Department. There was an entrance to the police station several feet from the bench, and a police officer was occasionally present in the courtroom. Indeed, petitioner identified a police officer who he claimed had been present at the time he brandished his firearm at the litigant.

The litigant, a six-foot, 165-pound Black man, had been in Whitehall Village Court earlier in the year on a felony charge based on allegations that he brandished a knife at his wife and another man while they sat in a parked car. The felony charge was dismissed on consent of the prosecution, and the litigant pleaded guilty to a misdemeanor charge in exchange for a one-

year conditional discharge and fines and surcharges totaling \$555. The litigant was later jailed for failing to pay the fine; however, his wife told petitioner that the litigant could not afford to pay the fine. In response, petitioner went to the courthouse on his lunch hour from his other employment, reduced the fine to community service, and released the litigant. It was at a later appearance that petitioner brandished the firearm. Although petitioner claims that he “subjectively feared for his safety,” he admits that he had “no reasonable basis” to believe that the litigant “was about to use imminent deadly force,” and that he was “not justified” in brandishing the firearm.

Petitioner repeatedly recounted his story of the incident to others, at least once in an apparently boastful manner. In fall 2015, he recounted the incident to his cousin, a Hofstra University journalism student, for an article that was eventually published in a Long Island news source. During the interview, he described his practice of carrying a firearm on the bench and said that he once brandished his firearm at “‘someone’ who came running up to him at the bench and to whom he said, ‘w[hoa], w[hoa], w[hoa], slow down.’” As petitioner stipulated, however, neither the police officer nor an assistant district attorney who petitioner claimed had been present at the time would have corroborated this version of events if called to testify at a hearing.

In early 2016, petitioner showed the article to another judge, telling her about a time he drew his firearm on an “‘agitated’ ‘big Black man’” when the man approached the bench too quickly. From petitioner’s “manner and tone,” the judge had the “impression” that petitioner “was bragging about his actions and that he was expressing pride about being featured in the article.” The judge also overheard petitioner tell other judges about the article and incident at a 2016 Washington County Magistrates Association meeting.

At another Association meeting in 2018, while seeking advice about courtroom security, petitioner told the judges in attendance, including his supervising judge, that he once pointed his firearm at a “‘large [B]lack man’” who had passed the stop line and came within “a couple” feet of the bench while a police officer was standing at the bench. Petitioner recounted that the litigant stated that he “just wanted to talk,” and he added that the officer made a joke about how quickly petitioner had been able to draw the gun.

One of the judges in attendance expressed concern to petitioner's supervising judge, who then had a phone conversation with petitioner. Petitioner explained to his supervising judge that the incident occurred when he called the litigant's case, and the litigant "ran quickly to the bench, past a line where defendants are supposed to stand." Petitioner added that the officer, who was serving as "'security,'" allowed the litigant to approach "within two feet" of the bench. Petitioner described the litigant to his supervising judge as "a 'large [B]lack man,' about 6'9" tall and 'built like a football player,'" saying nothing about the litigant's criminal charges. Petitioner told his supervising judge that he drew his firearm and "'pointed it at'" the litigant. He explained that, although a bullet was not in the chamber, it takes "'a split second'" to load. Petitioner further told his supervising judge that the litigant said he "'just wanted to talk'" to petitioner, who said that he would talk once the litigant moved back behind the line, at which point the litigant stepped back behind the line, and petitioner put his gun away. After this phone conversation, petitioner signed a counseling memorandum agreeing never to display a firearm in court unless confronted with deadly physical force. Indeed, he also claims that, after the phone conversation, he stopped carrying a firearm in the courtroom.

Petitioner stipulated that his conduct violated sections 100.1, 100.2 (A), 100.3 (B) (3) and (4), and 100.4 (A) (1) and (2) of the Rules Governing Judicial Conduct (22 NYCRR). With respect to section 100.3 (B) (4), petitioner agreed that he "failed to perform judicial duties without bias or prejudice against or in favor of any person and without manifesting in words or conduct bias or prejudice based upon race." In addition, although he maintained that he mentioned the litigant's race "merely to describe him," he acknowledged that in doing so he "may have created the appearance of racial bias."

Agreed-upon Facts as to Charge II

Petitioner engaged with eight Facebook posts promoting non-profit fundraising events during the period October 2019 through November 2020—after he had become aware that the Commission was investigating the misconduct that resulted in charge I. During that period, petitioner's page was viewable by the public, and he had over 1,300 "friends," many of whom knew he was a judge. These included the Washington County District Attorney, other attorneys, and police officers.

In October 2019, petitioner was “tagged” in a post promoting a spaghetti dinner to raise money for the purpose of covering medical expenses that petitioner had incurred in a motorcycle accident. Rather than delete the post from his page to avoid any appearance of impropriety, petitioner wrote, “I hope to see as many people as I can.” Over 500 people attended, raising \$9,400. Some of petitioner’s “friends” saw the post, but none of them felt pressure to attend due to his status as a judge. One police investigator, who was also associated with petitioner through the Elks Lodge, attended the event and bought raffle tickets, but he did not remember if he saw the Facebook post.

Petitioner also shared and commented on Facebook posts promoting seven fundraising events to benefit the Elks Lodge, in which he held office. These fundraisers included two barbecues, each of which was attended by over 200 members of the general public. The barbecues raised nearly \$3,500 in total. The other five events were restricted to Lodge members and raised under \$1,000 in total.

Petitioner stipulated that his conduct violated sections 100.1, 100.2 (A) and (C), and 100.4 (C) (3) (b) (i) of the Rules.

Commission’s Determination

The Commission, with one Commissioner dissenting, determined that removal was appropriate for petitioner’s “extreme breach of judicial decorum” in brandishing a loaded firearm at a litigant in court, for creating the appearance of racial bias by repeatedly mentioning the litigant’s race in his retellings of the incident, for his apparent pride in and lack of remorse for his misconduct, and his lack of attention to his ethical responsibilities. Contrary to the dissent, the Commission found that there was evidence of racial bias, including petitioner’s own admission that he may have created the appearance of racial bias when he repeatedly referred to the litigant’s race.

II.

[1] Contrary to petitioner’s contention, the investigation was procedurally proper. The Commission may on its own motion initiate an investigation of a judge (*see* Judiciary Law § 44 [2]; 22 NYCRR 7000.2) and, if in the course of an investigation the Commission’s staff becomes aware of unrelated acts that may constitute misconduct, the Commission may then authorize an investigation of that conduct in a separate complaint (*see* New York State Commission on Judicial Conduct Policy Manual

§ 2.6 [A] at 7 [May 2022]). There is no dispute that the investigation into the firearm incident was properly authorized in this manner. The Commission's staff appropriately searched petitioner's public social media account to investigate whether he had made any additional remarks about that incident, and there is no dispute that the investigation into the improper fundraising was properly authorized in the same manner thereafter.

III.

[2] Petitioner challenges the Commission's finding of racial bias. While we have the authority to review findings of fact as well as the determined sanction (*see* NY Const, art VI, § 22 [d]; *Matter of Marshall*, 8 NY3d 741, 743 [2007]), we note that the Commission was bound to make its determination upon the agreed statement of facts (*see* Judiciary Law § 44 [5]). The agreed-upon facts included an admission by petitioner that he failed to perform his judicial duties "without manifesting in words or conduct bias or prejudice based upon race, in violation of [s]ection 100.3(B)(4) of the Rules." Moreover, judges have a "continuing obligation to avoid even the appearance of impropriety" (*Matter of George [State Commn. on Jud. Conduct]*, 22 NY3d 323, 331 [2013]) and, here, petitioner acknowledged that his conduct "may have created the appearance of racial bias." We stress that the "appearance of such impropriety is no less to be condemned than is the impropriety itself" (*Matter of Spector v State Commn. on Jud. Conduct*, 47 NY2d 462, 466 [1979]; *see Matter of Duckman*, 92 NY2d 141, 152-153 [1998]).

Despite these conclusive admissions, petitioner now argues that he was *not* acting with racial bias and that his repeated reference to the litigant as a "big Black man" was meant merely to describe him. But this is not a mere physical description of the litigant. By repeatedly referring to the litigant in the manner that he did, petitioner exploited a classic and common racist trope that Black men are inherently threatening or dangerous, exhibiting bias or, at least, implicit bias* (*see* Mikah K. Thompson, *Bias on Trial: Toward an Open Discussion*

* New York's judicial system recognizes the pernicious effect that implicit bias often has on the fair and equal administration of justice (*see* CJI2d[NY] Implicit Bias, https://www.nycourts.gov/judges/cji/1-General/CJI2d.Implicit_Bias.pdf [last accessed Oct. 13, 2023]; Pamela M. Casey et al., *Addressing Implicit Bias in the Courts*, 49 Ct Rev 64, 64-70 [2013] [Journal of

(n. cont'd)

of *Racial Stereotypes in the Courtroom*, 2018 Mich St L Rev 1243, 1249-1250 [2018]). For these reasons, we see no basis to set aside the finding of racial bias.

IV.

[3] We also uphold the sanction of removal. Judges must observe higher standards of conduct than members of the general public, so that the integrity of the judiciary will be preserved (see 22 NYCRR 100.1; *Matter of Kuehnel v State Commn. on Jud. Conduct*, 49 NY2d 465, 469 [1980]). Judges must “act at all times in a manner that promotes public confidence in the integrity and impartiality of the judiciary” (22 NYCRR 100.2 [A]). Judges must “be patient, dignified and courteous” to all persons with whom they deal in a judicial capacity (22 NYCRR 100.3 [B] [3]). Judges must perform their judicial duties “without bias or prejudice against or in favor of any person” and, in the performance thereof, must not, “by words or conduct, manifest bias or prejudice” based upon race, color, or any other protected characteristic (22 NYCRR 100.3 [B] [4]). While the extreme sanction of removal is warranted only in the event of “‘truly egregious circumstances’ that extend beyond the limits of ‘even extremely poor judgment’ ” (*Matter of Restaino [State Commn. on Jud. Conduct]*, 10 NY3d 577, 589 [2008]), we measure this “truly egregious” standard “with due regard to the fact that Judges must be held to a higher standard of conduct than the public at large” (*Matter of Collazo [State Commn. on Jud. Conduct]*, 91 NY2d 251, 255 [1998]; see *Restaino*, 10 NY3d at 589-590).

What constitutes “truly egregious” circumstances is a fact-specific inquiry (see *Matter of Ayres [New York State Commn. on Jud. Conduct]*, 30 NY3d 59, 64 [2017]). We consider both the gravity of the wrongdoing and the “effect of petitioner’s conduct upon public confidence in his character and judicial temperament” (*Matter of Going*, 97 NY2d 121, 127 [2001]). While removal is often reserved for a judge who engages in a pattern of misconduct (see *Matter of Jung [State Commn. on Jud. Conduct]*, 11 NY3d 365, 374 [2008]), there are rare cases where the misconduct is so inexcusable that no amount of mitigation can be “sufficient to restore the public’s trust” in the

the American Judges Association], available at https://ww2.nycourts.gov/sites/default/files/document/files/2018-11/ARTICLE_ADDRESSING%20IMPLICIT%20BIAS%20IN%20THE%20COURTS.pdf [last accessed Oct. 13, 2023]).

judge's ability to discharge the responsibilities of judicial office "in a fair and just manner" (*Restaino*, 10 NY3d at 590).

This is such a case. While presiding over his courtroom, petitioner brandished a loaded firearm at a litigant who presented no threat to anyone. Rather than show remorse, he described his conduct in a press interview and boasted about it to his colleagues, while repeatedly, and gratuitously, referring to the litigant's race. Also troubling is petitioner's denial in this Court of facts to which he previously stipulated. Petitioner's unfitness for office is further demonstrated by his improper use of social media to solicit donations. Although the improper fundraising would not by itself warrant removal, its timing and the circumstances under which it occurred—while petitioner was under investigation on charge I—evinced an unwillingness or inability to abide by the Rules Governing Judicial Conduct.

For these reasons, "the record amply supports the conclusion that petitioner's misconduct 'transcends poor judgment' and warrants removal" (*Going*, 97 NY2d at 127). Accordingly, the determined sanction should be accepted, without costs, and Honorable Robert J. Putorti removed from the offices of Justice of the Whitehall Town Court and Whitehall Village Court, Washington County.

Chief Judge WILSON and Judges GARCIA, CANNATARO, TROUTMAN and HALLIGAN concur in per curiam opinion. Judges RIVERA and SINGAS took no part.

Determined sanction accepted, without costs, and Honorable Robert J. Putorti removed from the offices of Justice of the Whitehall Town Court and Whitehall Village Court, Washington County.

[223 NE3d 308, 199 NYS3d 887]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SERGIO
CERDA, Appellant.

Argued May 19, 2022; reargued September 14, 2023; decided October 19, 2023

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered March 24, 2021. The Appellate Division affirmed a judgment of the Supreme Court, Nassau County (Robert A. Schwartz, J.), which had convicted defendant, upon a jury verdict, of sexual abuse in the first degree.

People v Cerda, 192 AD3d 1041, reversed.

HEADNOTE

Crimes — Evidence — Rape Shield Law — Forensic Evidence Admissible in Interests of Justice

In a sexual abuse prosecution, the trial court's exclusion of forensic evidence containing findings that offered plausible alternative explanations for complainant's injuries deprived defendant of a meaningful opportunity to present a complete defense and constituted an abuse of discretion as a matter of law under CPL 60.42 (5). Under this subdivision of the Rape Shield Law, evidence of a victim's sexual conduct may be admitted in evidence during a sex crime prosecution when it "is determined by the [trial] court after an offer of proof by the accused . . . to be relevant and admissible in the interests of justice" (CPL 60.42 [5]). In his motion in limine, defense counsel delineated the findings contained in the forensic reports and explained how they constituted evidence of something other than defendant having engaged in inappropriate and unlawful sexual activity with complainant, which was a sufficient offer of proof. Moreover, "in the interests of justice," evidence of a complainant's sexual conduct may be admissible in a sex crime prosecution if it is relevant to a defense. The prosecution attributed complainant's injuries to defendant and had an expert testify that such injuries were consistent with the criminal conduct of which he was accused. Defendant's entire defense was premised upon demonstrating that complainant's allegations against him were untrue in that the petechial bruising was caused by her own actions or a third party. The forensic evidence, juxtaposed against the expert testimony, spoke to an alternative, innocent explanation for the cause of the identified injuries and bore on the issue of guilt or innocence. Thus, the inferences to be drawn from the findings presented an issue of weight for the jury to assess, not admissibility.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Evidence §§ 497, 500, 502, 505.

CARMODY-WAIT 2d Particular Types of Evidence §§ 194:39, 194:41–194:42.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) § 24.4.

McKINNEY'S, CPL 60.42 (5).

NY JUR 2d Criminal Law: Procedure § 2087; NY JUR 2d Criminal Law: Substantive Principles and Offenses §§ 685, 689, 690.

ANNOTATION REFERENCE

Constitutionality of “rape shield” statute restricting use of evidence of victim’s sexual experiences. 1 ALR4th 283.

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Query: “rape shield” /p (interest! /3 justice) or exception

POINTS OF COUNSEL

Barket Epstein Kearon Aldea & LoTurco, LLP, Garden City (*Donna Aldea* of counsel), for appellant. The trial court’s evidentiary rulings, exploited by the prosecutor on summation, cumulatively crippled the defense, providing the jury with an inaccurate and unfair view of complainant’s credibility, and depriving Sergio Cerda of his constitutional rights to present a defense, to confront witnesses, and to a fair trial. (*People v Wright*, 25 NY3d 769; *People v Mattocks*, 100 AD3d 930; *People v Andre*, 185 AD2d 276; *People v Sepulveda*, 105 AD2d 854; *People v Jovanovic*, 263 AD2d 182; *Taylor v Illinois*, 484 US 400; *People v Hudy*, 73 NY2d 40; *People v Fisher*, 104 AD3d 868; *People v Loja*, 305 AD2d 189; *People v Garrow*, 171 AD3d 1542.)

Anne T. Donnelly, District Attorney, Mineola (*Donald Berk*, *Andrew Fukuda*, *Tammy J. Smiley* and *Yael V. Levy* of counsel), for respondent. I. Given the inconclusiveness of the forensic report findings and their tendency to embarrass the victim and confuse the jury, the trial court exercised sound discretion in precluding defendant from eliciting findings of: unidentifiable saliva stains on the victim’s underwear, the victim’s own saliva on a vulvar swab, and prostate specific antigen on a vaginal swab. Defendant failed to preserve and partially waived his argument that the disputed evidence could have been admitted through CPL 60.42 (3) and (4). (*People v Branch*, 83 NY2d 663; *People v Jovanovic*, 263 AD2d 182; *People v Almonor*, 93 NY2d

571; *People v Williams*, 81 NY2d 303; *People v Scott*, 16 NY3d 589; *Michigan v Lucas*, 500 US 145; *People v Halter*, 19 NY3d 1046; *People v Youngs*, 175 AD3d 1604; *People v Animshaun*, 186 AD3d 497; *People v Wieners*, 33 AD3d 637.) II. The trial court exercised sound discretion when it precluded irrelevant, speculative, and prejudicial evidence. In any event, even absent these rulings, the jury would have convicted based on the overwhelming evidence of guilt. (*Crane v Kentucky*, 476 US 683; *Delaware v Van Arsdall*, 475 US 673; *People v Corby*, 6 NY3d 231; *People v Gonzalez*, 99 NY2d 76; *People v Robinson*, 89 NY2d 648; *People v Aska*, 91 NY2d 979; *People v Nieves*, 67 NY2d 125; *People v Primo*, 96 NY2d 351; *People v Feldman*, 299 NY 153; *People v Alvino*, 71 NY2d 233.) III. This Court is prevented from reviewing defendant's prosecutorial misconduct claims because defendant never alerted the court to his current claim that his constitutional right to a fair trial was violated, made only a general objection to the prosecutor's summation that was sustained and followed by a curative instruction, and did not request further relief. Moreover, as the Appellate Division held, there was no misconduct, and any error was harmless in light of the overwhelming evidence of guilt. (*People v Balls*, 69 NY2d 641; *People v Williams*, 8 NY3d 854; *People v Rivera*, 73 NY2d 941; *People v Iannelli*, 69 NY2d 684; *People v Ashwal*, 39 NY2d 105; *Williams v Brooklyn El. R.R. Co.*, 126 NY 96; *People v Santiago*, 22 NY3d 740; *People v Marks*, 6 NY2d 67; *People v Thomas*, 51 NY2d 466; *People v Anthony*, 24 NY2d 696.)

OPINION OF THE COURT

LYNCH, J.*

On this appeal, the Court is tasked with determining whether the trial court erred in applying New York's Rape Shield Law (*see* CPL 60.42) to exclude forensic evidence proffered by defendant to demonstrate that someone else caused the complainant's injuries. We answer that question in the affirmative and conclude that, under the facts of this case, the trial court's erroneous application of the Rape Shield Law deprived defendant of his constitutional right to present a defense. Accordingly, we reverse and order a new trial.

* Designated pursuant to NY Constitution, article VI, § 2.

I.

Defendant was charged with two counts of first degree sexual abuse arising from allegations that he digitally penetrated his minor relative's vagina and touched her breasts. The prosecution's theory was that defendant, then over 60 years old, committed the crime when he was babysitting the complainant and two other younger relatives.

According to the evidence at trial, one evening when these children were under his care, defendant was sitting next to the complainant on a couch where they were watching television with blankets draped over their laps. The complainant testified that defendant got under the blanket she was using, raised her right leg to her chest, rolled the bottom part of her pants leg up to her thigh, slid his hand underneath the rolled-up portion, and placed a finger into her vagina, forcefully moving it in and out. The complainant also alleged that defendant fondled her breasts. Thereafter, the complainant went to the bathroom, locked the door, and texted her mother to come home, revealing that defendant had touched her inappropriately.

Defendant took the stand at trial and denied the allegations, recounting that the complainant was angry at him for speaking ill of her father. Defendant testified that, after realizing that the complainant had remained in the bathroom, he went to check on her and she complained of a stomachache. The complainant's relative was asked whether she saw "anything at all unusual happen while [she] w[as] sitting on the couch," and she answered in the negative, adding that defendant's hands were over the blanket. She was specifically asked whether she saw defendant touch the complainant and stated, "[t]o joke around with her, yes." A picture of the underwear complainant was wearing that evening was entered into evidence and showed a large, dark colored, stain in the crotch area.

The complainant underwent a sexual assault examination in the hours after the alleged crime. The prosecution introduced the medical records from this examination into evidence, which revealed at least two small petechiae—i.e., "burst blood vessel[s]"—on the complainant's hymen, as well as a deep hymenal notch. Swabs of the complainant's vulva and vagina were also taken. A forensic examination of the evidence performed by the Nassau County Office of the Medical Examiner confirmed the presence of the complainant's saliva on the vulvar swab. An analysis of a saliva mixture taken from a stain on the

complainant's underwear revealed three contributors: the complainant and two unidentified males. The vaginal swab revealed prostate specific antigen, which is an element of semen but can also be found in a number of bodily fluids. No spermatozoa were present in the vaginal swab and, thus, the presence of semen was not confirmed.

At the start of the trial, defendant moved in limine for a ruling on the admissibility of the forensic reports. Defense counsel argued that the forensic reports were not the type of evidence barred by CPL 60.42 because the forensic findings offered plausible alternative explanations for the petechiae the prosecution was seeking to attribute to him, indicating that they were consistent with masturbation or sexual contact with a third party. Defendant maintained that "to exclude [the forensic reports] would curtail [his] ability to offer a sufficient and adequate defense." The prosecution opposed defendant's motion, arguing that the reports were inadmissible because the forensic findings implied that the complainant "had sex or oral sex with somebody . . . earlier" and, thus, that she was "promiscuous." The trial court denied defendant's motion and excluded the evidence under CPL 60.42, concluding that the theories advanced by defense counsel were "very speculative" and the forensic findings risked "confus[ing] the jurors."

At trial, the prosecution presented the testimony of a pediatrician specializing in evaluating victims of sex abuse to establish that the petechiae on the complainant's hymen were consistent with digital penetration. In that respect, the expert confirmed that petechiae result from "pressure or force," and that their presence on the hymen is an abnormal finding indicative of an "injury." Although the expert had "never seen petechiae during a normal genital exam," explaining that they were unlikely to result from masturbation or accidental injury, he conceded on cross-examination that intense vaginal rubbing or scratching with a lot of pressure could, in theory, cause petechiae to form. When asked whether petechiae "can be visualized inside the vagina and not have anything to do with sexual abuse," the expert clarified that he had "only seen it in the context of penetration . . . , be that sexual abuse or sex." As for the deep hymenal notch, the expert noted that it was "highly concerning" for a penetration injury; however, because he could not determine that the notch went to the base of the hymen, he could not rule out that the notch was a normal part of the complainant's anatomy.

In his opening statement, defense counsel commented that the jury would hear medical evidence from the complainant's sexual assault examination, but that such evidence was "scant" and "suggestive of a number of other types of activity or behavior that are completely innocent [and] that have nothing to do with [defendant] or the allegations that were made that night." Defense counsel reiterated this theme on summation, suggesting that the petechiae resulted from self-inflicted forcible "rubbing or scratching" due to irritation relating to fecal matter on the complainant's underwear. In her summation, the prosecutor stated that there was "nothing in the medical record to support" the contention that the complainant injured herself, emphasizing that such evidence "doesn't exist" and that "it didn't happen." The jury convicted defendant of the sexual abuse charge related to the alleged digital penetration of the complainant's vagina, but acquitted defendant of the other count. The court sentenced defendant to three years of imprisonment followed by five years of postrelease supervision.

On appeal, the Appellate Division affirmed the judgment, rejecting defendant's argument that the trial court improperly excluded the forensic evidence under CPL 60.42 and concluding that defendant "was given ample opportunity to develop evidence at trial to support his defenses" (192 AD3d 1041, 1042 [2d Dept 2021]). The Appellate Division held that defendant's additional contentions were without merit. A Judge of this Court granted defendant leave to appeal (37 NY3d 971 [2021]).¹

II.

Under CPL 60.42, "[e]vidence of a victim's sexual conduct" is inadmissible in a prosecution for a sex offense defined in Penal Law article 130 unless one of five enumerated exceptions applies (see *People v Halter*, 19 NY3d 1046, 1049 [2012]; *People v Scott*, 16 NY3d 589, 593, 594 [2011]; *People v Williams*, 81 NY2d 303, 311 [1993]; *People v Mandel*, 48 NY2d 952, 953 [1979], *appeal dismissed & cert denied* 446 US 949 [1980]). In enacting CPL 60.42, the legislature was concerned that "testimony about the sexual past of the victims of sex crimes often serves solely to harass the victim and confuse the jurors" (*Williams*, 81 NY2d at 312 [citations omitted]). Accordingly, CPL 60.42 "put to rest the now-discredited rationale that a

1. The Court heard oral argument on the appeal on May 19, 2022, and later ordered reargument (38 NY3d 1029 [2022]), which was held on September 14, 2023.

victim's past 'unchastity' is probative of present consent and recognized that such evidence is typically of little or no relevance and may seriously prejudice the prosecution of sex crimes" (*id.* [citations omitted]).²

At the same time, "the Constitution guarantees criminal defendants a meaningful opportunity to present a complete defense" (*Crane v Kentucky*, 476 US 683, 690 [1986] [internal quotation marks and citations omitted]; see *Chambers v Mississippi*, 410 US 284, 294 [1973] ["The right of an accused in a criminal trial to due process is, in essence, the right to a fair opportunity to defend against the State's accusations"]; *People v Deverow*, 38 NY3d 157, 164 [2022]; *People v Boyd*, 31 NY3d 953, 955 [2018]; *People v Spencer*, 20 NY3d 954, 956 [2012]). This right "does not give criminal defendants carte blanche to circumvent the rules of evidence" (*Deverow*, 38 NY3d at 164 [internal quotation marks and citation omitted]; see *People v Jin Cheng Lin*, 26 NY3d 701, 727 [2016]). Nevertheless, "a trial court must not apply [evidentiary] rules mechanistically to defeat the ends of justice" (*Deverow*, 38 NY3d at 164 [internal quotation marks omitted], citing *Chambers*, 410 US at 302). Consequently, "[a] blanket exclusion [under CPL 60.42] which covered clearly *relevant* sexual conduct evidence would unduly circumscribe a defendant's" constitutional right in this regard (*People v Jovanovic*, 263 AD2d 182, 195 [1st Dept 1999], *appeal dismissed* 95 NY2d 846 [2000]).

Recognizing as much, the legislature enumerated five exceptions to CPL 60.42's evidentiary proscriptions. The first four exceptions "allow evidence of a complainant's prior sexual conduct in narrowly defined factual circumstances," whereas the fifth "is a broader 'interest of justice' provision vesting discretion in the trial court" (*Williams*, 81 NY2d at 311). "The exceptions . . . recognize that any law circumscribing the ability of the accused to defend against criminal charges remains subject to limitation by constitutional guarantees of due process and the right to confront the prosecution's witnesses" (*id.* at 312 [citations omitted]).

III.

Defendant argues that the forensic evidence was admissible under several of the exceptions set forth in CPL 60.42. We

2. Although consent is not at issue in this case since the complainant was below the age of consent, the issue of witness credibility is directly implicated.

need not address every basis raised because we conclude that the trial court erred in denying admission of the evidence under CPL 60.42 (5). Under this subdivision, evidence of a victim's sexual conduct may be admitted in evidence during a sex crime prosecution when it "is determined by the [trial] court after an offer of proof by the accused . . . to be relevant and admissible in the interests of justice" (CPL 60.42 [5]). "Offer of proof is not a term of art but its generally accepted meaning . . . is to summarize the substance or content of the evidence" (*Williams*, 81 NY2d at 314 [internal quotation marks and citation omitted]). In his motion in limine, defense counsel delineated the findings contained in the forensic reports and explained how they constituted "evidence of something other than . . . defendant having engaged in inappropriate and unlawful sexual activity with [the complainant]." This was a sufficient offer of proof under *Williams* (81 NY2d at 314).

As for the relevance of the forensic findings, evidence is relevant "if it tends to prove the existence or non-existence of a material fact, i.e., a fact directly at issue in the case" (*People v Primo*, 96 NY2d 351, 355 [2001]; see *People v Frumusa*, 29 NY3d 364, 371 [2017], *rearg denied* 29 NY3d 1110 [2017]). "We recognize that, 'in the interests of justice,' evidence of a complainant's sexual conduct may be admissible [in a sex crime prosecution] if it is relevant to a defense" (*Scott*, 16 NY3d at 594, citing *Jovanovic*, 263 AD2d at 198). In *People v Scott*, this Court considered whether, in a prosecution for both forcible and statutory rape, evidence of a complainant's sexual conduct with another individual at the same party at which the defendant was alleged to have raped the complainant should have been admitted under CPL 60.42 (5). The Court answered that question in the negative, but agreed with the trial court that "the complainant's sexual conduct [on the evening in question] *would be relevant* to [defendant's] defense if the People introduced evidence of her bruising caused by sexual contact and attributed such evidence to [the defendant]," ultimately noting that the People did not offer any such evidence of bruising in that case (*Scott*, 16 NY3d at 594 [emphasis added]). Here, by comparison, the prosecution attributed the complainant's petechial injuries to defendant and had an expert testify that such injuries were consistent with the criminal conduct of which he was accused. Thus, the forensic reports, which contained findings that offered plausible alternative explanations for the petechial injuries, were relevant to defending

against that theory (*see Scott*, 16 NY3d at 594; Mem of Assemblyman Fink, 1975 NY Legis Ann at 48 [under CPL 60.42, “(r)ebuttal of the (P)eople’s evidence that . . . the accused was the cause of pregnancy, injury, or disease of the victim” is allowed]). Although trial courts may, of course, “exclude relevant evidence if its probative value is outweighed by the prospect of . . . undue prejudice to the opposing party, confusing the issues or misleading the jury” (*Primo*, 96 NY2d at 355), the evidence here—consisting of forensic findings—should have been admitted because it directly responded to the prosecutor’s theory that defendant alone caused the complainant’s injuries.

The constitutional right to present a defense encompasses “the right to put before a jury evidence that might influence the determination of guilt” (*Taylor v Illinois*, 484 US 400, 408 [1988] [internal quotation marks and citation omitted]; *accord Jovanovic*, 263 AD2d at 184). Defendant’s entire defense was premised upon demonstrating that the complainant’s allegations against him were untrue in that the petechial bruising was caused by her own actions or a third party. The forensic evidence confirming the presence of the complainant’s saliva in the vicinity of her internal injuries, juxtaposed against the expert testimony that such injuries were consistent with digital penetration, speaks to an alternative, innocent explanation for the cause of the identified injuries and bears on the issue of guilt or innocence. The same may be said, albeit to a lesser extent, as to the detection of the male DNA in the mixed saliva sample and prostate specific antigen in the vicinity of the complainant’s injuries. We are mindful that the laboratory reports did not exclude defendant as a contributor to the male DNA detected from the complainant’s underwear and that no further comparisons could be made from the mixed saliva sample. At the same time, the reports did identify two male contributors. Although the prosecution maintains that the forensic findings are inconclusive and far from exculpatory, and create more questions than they answer, the inferences to be drawn from the findings present an issue of weight for the jury to assess, not admissibility (*see People v Wesley*, 83 NY2d 417, 427 [1994]; *People v Dackowski*, 50 NY2d 962, 963 [1980]; *People v White*, 40 NY2d 797, 799-800 [1976]). The dissent also deems defendant’s offer of proof to be inconclusive, but it is neither the role of the trial court nor this Court to make that assessment. There is a difference between determining whether evidence is relevant for purposes of applying the CPL 60.42 (5)

exception, and whether that same evidence is decisive or not. Relevance is for the court to determine, decisiveness for the jury. As difficult and traumatic as child sex abuse cases are, the operative point is that the proffered evidence is medical documentation in support of defendant's alternative theory for complainant's injuries. By pursuing this defense, defendant did not seek to use the forensic evidence in violation of the statute, to impugn complainant's character by presenting her as a promiscuous female who could not be believed—a tactical attack based on now-rejected views of female sexuality.

As for the Appellate Division's conclusion that defendant "was given ample opportunity to develop evidence at trial to support his defenses" (192 AD3d at 1042), it is true that the trial court did allow defendant to introduce the photograph of complainant's underwear and argue that she injured herself by rubbing her vaginal area in response to irritation related to the stain depicted therein. However, such evidence is no substitute for an argument premised on the forensic analysis performed. By permitting defense counsel to suggest to the jury that there were alternative innocent explanations for the petechiae, yet excluding the most viable evidence to support that premise, the trial court's ruling deflated the strength of the defense (*see People v Diaz*, 20 NY3d 569, 576 [2013]; *People v Labenski*, 134 AD2d 907, 908 [4th Dept 1987]; *see also People v Wright*, 25 NY3d 769, 783 [2015]; *People v Becoats*, 17 NY3d 643, 655-656 [2011], *cert denied* 566 US 964 [2012]). The prejudice to defendant was compounded when the prosecutor emphasized to the jury on summation that evidence of such alternative theories "doesn't exist," despite knowing full well the findings in the precluded forensic reports.

We conclude that the trial court's exclusion of the forensic evidence "deprived defendant of a meaningful opportunity to present a complete defense" (*Deverow*, 38 NY3d at 168 [internal quotation marks omitted], citing *Crane*, 476 US at 690) and constituted an abuse of discretion as a matter of law under CPL 60.42 (5). Because the error cannot be considered harmless under the facts presented (*see Deverow*, 38 NY3d at 168; *People v DiPippo*, 27 NY3d 127, 141 [2016]), a new trial is warranted. Far from being a "degradation of the protections afforded by the Rape Shield Law" as the dissent unfortunately asserts (*see dissenting op* at 379), our decision to apply the statutory exception is compelled by the nature of the evidence presented and the fair trial tenets of the Constitution. Our determination renders academic defendant's remaining contentions.

Accordingly, the order of the Appellate Division should be reversed and a new trial ordered.

CANNATARO, J. (dissenting). The child victim in this case alleged that she was sexually abused by defendant, an older relative. She immediately reported the incident to her mother, who took her to the hospital where she underwent a number of invasive medical examinations. At trial, defendant sought to introduce into evidence inconclusive DNA and serology reports from these examinations, arguing that the interests-of-justice exception to the Rape Shield Law applied (CPL 60.42 [5]). The trial judge denied the application and excluded the evidence.

Because these reports provided only the slightest basis for defendant to suggest that the child had engaged in sexual activity—either with another individual or herself—the trial court saw fit to exclude this evidence under the Rape Shield Law. Indeed, the Rape Shield Law was designed to protect victims from this very type of evidence. Yet today, the majority misapplies an exception to the Rape Shield Law and orders a new trial, where the victim will be faced with the defense’s suggestion that, sometime before this incident that occurred when she was 11 years old, she must have either engaged in sexual contact with an unidentifiable man or injured herself through vigorous masturbation. This degradation of the protections afforded by the Rape Shield Law, not to mention the trauma inflicted on this victim, is completely unwarranted. I dissent.

Forcing a child to testify at trial to the details of sexual abuse by a trusted individual in their life invariably risks retraumatizing them. And given the unique challenges in bringing these cases to trial, it should come as no surprise that, in some offices, prosecutors decline to prosecute roughly half of all reported cases of child sexual abuse (*see* Theodore P. Cross et al., *Prosecution of Child Abuse: A Meta-Analysis of Rates of Criminal Justice Decisions*, Trauma, Violence & Abuse, vol 4 (4), 323-340 [Oct. 2003]; *see also* Linda M. Williams, Ph.D., et al., *Prosecution of Child Sexual Abuse: Challenges in Achieving Justice*, Wellesley, MA: Wellesley Centers for Women [Apr. 2022], <https://www.wcwonline.org/images/pdf/2022-williams-block-pcsa-white-paper.pdf> [last accessed Oct. 12, 2023]). Historically, less than 10% of reported allegations of child sex abuse have gone to trial (*see* Ellen Gray, *Unequal Justice: The Prosecution of Child Sexual Abuse* [Free Press 1993]).

The Rape Shield Law provides some protection for these victims. Under that statute, CPL 60.42, evidence of a victim’s

sexual conduct is generally inadmissible in a prosecution for a sex offense. The law was enacted in response to concerns that “the manner in which rape trials [were then] conducted serves to discourage prosecutions, demean complainants, and lead to acquittals of guilty defendants” (Letter from Stanley Fink, Assembly Codes Committee Chairman, June 5, 1975, Bill Jacket, L 1975, ch 230), and was designed to achieve “two desirable objectives: [i]t removes from the trial of an alleged rapist the mini-trial of his alleged victim; and equally if not more important, it should encourage rape victims to cooperate wholeheartedly in the search for and prosecution of their attackers” (Mem of Morton H. Grusky, NY St Div of Crim Just Servs, Bill Jacket, L 1975, ch 230). We have previously explained that the statute acknowledges that evidence of a victim’s past sexual conduct is typically irrelevant to issues of consent or credibility and, instead, “often serves solely to harass the victim and confuse the jurors” (*People v Williams*, 81 NY2d 303, 312 [1993]).

The statute expressly contemplates that there are “instances where evidence of a complainant’s sexual history might be relevant and admissible” (*id.*) and has set forth specific exceptions. The statute allows a trial court to admit such evidence where it “is determined by the court after an offer of proof by the accused outside the hearing of the jury, or such hearing as the court may require, and a statement by the court of its findings of fact essential to its determination, to be relevant and admissible in the interests of justice” (CPL 60.42 [5]). Importantly, although the constitution requires that criminal defendants must have “‘a meaningful opportunity to present a complete defense’” (*Holmes v South Carolina*, 547 US 319, 324 [2006], quoting *Crane v Kentucky*, 476 US 683, 690 [1986]), that right is not absolute. Rather, “well-established rules of evidence permit trial judges to exclude evidence if its probative value is outweighed by certain other factors such as unfair prejudice, confusion of the issues, or potential to mislead the jury” (*Holmes*, 547 US at 326; see also *Montana v Egelhoff*, 518 US 37, 42 [1996]; *Michigan v Lucas*, 500 US 145, 149 [1991]). Stated otherwise, “[e]vidence ‘of merely slight, remote or conjectural significance’ will ordinarily be insufficiently probative to outweigh the[] countervailing risks” (*People v Primo*, 96 NY2d 351, 355-356 [2001] [citations omitted]).

While DNA evidence and other forensic scientific testing techniques offer the possibility of greater objectivity and certainty in these difficult cases, there are times when the results of the analysis of such evidence are so inconclusive as to have little or no probative value. This is such a case.

The laboratory report that defendant sought to introduce explained that the Nassau County Office of the Medical Examiner conducted autosomal STR DNA typing on a saliva stain from the victim's underwear and found a mixture of DNA from three contributors, including the victim. The laboratory then performed Y-STR DNA typing (to isolate male DNA) on the saliva stain and issued a follow-up laboratory report indicating two male contributors to the DNA mixture. The report explained that "[b]ased on the mixture ratio, no comparisons can be made." As further explained in the report, where "a statistical qualification [can]not be made due to the mixture ratio . . . the results are considered not suitable for comparisons and no comparisons (inclusions or exclusions) can be made."

At the start of the trial, defense counsel sought a ruling permitting admission of the DNA and serology reports into evidence. After acknowledging that the Medical Examiner's Office represented that no further testing could be done to determine the identity of the unknown male contributors, defense counsel noted that defendant had offered to provide a sample of his DNA for comparison. Counsel then stated their intention "to use an expert, presumably the[People's] witness, to testify about . . . those findings within the underwear as well as the meaning or potential meaning of those findings within the underwear." Defendant argued that the Rape Shield Law was inapplicable to this evidence but that, in any event, the evidence was admissible under the statutory interests-of-justice exception, as it was exculpatory. The People opposed the application, noting that they would not be introducing any DNA evidence on their case-in-chief, that the inconclusive DNA results would be confusing to the jury and that the reports should be precluded under the Rape Shield Law.

The court applied the Rape Shield Law and excluded the DNA and serology reports, observing that, although male DNA was present in the saliva sample, "the relevance of that is very

speculative.”* The court found that the proffered evidence was “going to confuse the jurors” as they might conclude that “the victim in this case did have sexual contact or conduct with another individual . . . [which is] exactly what the rape shield law is designed to prevent.”

It was well within the trial court’s discretion to determine that the laboratory reports should be excluded under CPL 60.42 (5) because they would have caused juror confusion and speculation, particularly as to possible sexual activity by the child victim about which there was no record evidence. “Under the abuse of discretion standard, [w]e are not free to substitute our judgment for that of the . . . court [of first instance] when conflicting facts and inferences reasonably support a decision for or against a certain result.’ Instead, the question is whether ‘the case presented shows no room for the exercise of . . . reasonable discretion’ ” (*People v Cook*, 34 NY3d 412, 423 [2019], quoting *People v Branch*, 83 NY2d 663, 667 [1994]). As noted above, defendant’s initial application to the trial court was that he wanted an unidentified expert witness to testify to “the meaning or potential meaning of” the laboratory test results on the basis that they were potentially exculpatory. His “offer of proof” was the test results themselves—evidence that is properly characterized as inconclusive. Moreover, defendant did not employ an expert who could attach significance to the laboratory’s findings by explaining or interpreting the significance of the results of the forensic testing that would have provided the jury with a nonspeculative basis upon which to rest an alternative explanation for the victim’s injury. Instead, the defense contemplated using the People’s witness to explain the DNA results—despite the fact that the People had no intention of either introducing the test results or calling any witness from the Medical Examiner’s Office to testify at trial. In light of the above, the unexplained forensic report did not offer “plausible alternative explanations” for the victim’s injuries (see majority op at 376-377).

Although *People v Scott* contemplates that evidence of other sexual conduct would be “relevant” to counter evidence of injury introduced by the People and attributed to defendant (16 NY3d

* The court also characterized the presumptive presence of semen based on the detection of prostate specific antigen on the victim’s vaginal swabs as “far from conclusive.”

589, 594 [2011]), that is not the case here because the laboratory reports do not establish that other sexual conduct occurred. Moreover, the laboratory reports did not exclude defendant as a contributor of the male DNA and, therefore, the reports neither exculpate defendant nor inculcate any other individual. As to the presence of the victim's own saliva, defendant's contention that she caused her own injuries is conjectural at best, and defendant was permitted to argue this theory to the jury. Lastly, the language in *Scott* relied on by the majority went only to relevancy—the evidence of other sexual activity would have been relevant if the People introduced evidence of bruising—not whether the trial court would have abused its discretion if it nevertheless declined to admit that proof (*see* 16 NY3d at 594).

Under these circumstances, admission of the reports would not tend to establish a defense to the crime. Moreover, whatever limited relevancy the reports might have had, I cannot conclude that it was an abuse of discretion as a matter of law for the trial court to exclude this evidence under the Rape Shield Law.

While the majority insists that defendant has not sought to “impugn complainant’s character” (majority op at 378), the record and defendant’s litigation strategy throughout this case demonstrates the opposite. Indeed, the thrust of the litigation strategy, continued in the briefing to this Court, was that the People’s depiction of the victim as innocent and naïve was false and misleading—in fact, appellate counsel described the theory of the defense as asserting that the victim “was a sexually experienced young girl” (tr of oral argument at 24, line 24 [May 19, 2022]). Nonetheless, the majority now holds that the Rape Shield Law does not apply, that defendant was deprived of the right to present a full defense, and that introduction of an inconclusive, confusing, and speculative forensic report was required. Because admission of the forensic report would have inflicted the precise harm that the Rape Shield Law was designed to prevent—it would have served “solely to harass the victim and confuse the jurors” (*Williams*, 81 NY2d at 312)—I would find that the trial court’s preclusion of the reports was an appropriate exercise of discretion under well-established evidentiary rules.

Chief Judge WILSON and Judges RIVERA, TROUTMAN and HAL-
LIGAN concur. Judge CANNATARO dissents and votes to affirm in
an opinion, in which Judge GARCIA concurs. Judge SINGAS took
no part.

Order reversed and a new trial ordered.

[223 NE3d 757, 200 NYS3d 309]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RA-
KEEM DOUGLAS, Appellant.

Argued September 14, 2022; reargued September 14, 2023; decided October 24, 2023

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 27, 2021. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Juan M. Merchan, J.), which had convicted defendant, upon his plea of guilty, of criminal possession of a weapon in the second degree.

People v Douglas, 193 AD3d 622, affirmed.

HEADNOTE

Crimes — Unlawful Search and Seizure — Validity of Police Inventory Search Protocol

In defendant's prosecution for criminally possessing a firearm recovered from the trunk of his car during an inventory search of the vehicle following his arrest, the People sustained their initial burden of demonstrating that the police department's standardized, written inventory search protocol was constitutional on its face. An inventory search procedure must be designed to meet the specific objectives of protecting the property of the defendant, the police against any claim of lost property, and police personnel and others from any dangerous instruments. It is the People's burden to establish the validity of the protocol itself, specifically, that the procedure meets those three objectives and sufficiently limits the discretion of searching officers.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Searches and Seizures §§ 175, 176.

CARMODY-WAIT 2d Search and Seizure §§ 173:356,
173:357.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) § 3.7.

NY JUR 2d Criminal Law: Procedure § 501.

ANNOTATION REFERENCE

Lawfulness of "inventory search" of motor vehicle impounded by police. 48 ALR3d 537.

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Query: "inventory search" /s vehicle /p protocol

POINTS OF COUNSEL

Caprice R. Jenerson, Office of the Appellate Defender, New York City (Stephen R. Strother and David Bernstein of counsel), for appellant. Rakeem Douglas's conviction must be reversed because the gun was recovered during an inventory search conducted pursuant to a procedure that failed to limit the discretion of the officers and undermined the purposes of an inventory search. (People v Gomez, 13 NY3d 6; People v Galak, 80 NY2d 715; Florida v Wells, 495 US 1; South Dakota v Opperman, 428 US 364; People v Johnson, 1 NY3d 252; Colorado v Bertine, 479 US 367; Illinois v Lafayette, 462 US 640; United States v Brignoni-Ponce, 422 US 873; People v Gonzalez, 62 NY2d 386; People v Echevarria, 173 AD3d 638.)

Alvin L. Bragg, Jr., District Attorney, New York City (Stephen J. Kress and Beth Fisch Cohen of counsel), for respondent. I. Because defendant failed to preserve both his facial challenge to the New York City Police Department's inventory search protocol as well as his argument that the search here was unlawful because his property was allegedly left unsecured, there is an insufficient factual record to review his claims. (People v Bailey, 32 NY3d 70; U.S. Bank N.A. v DLJ Mtge. Capital, Inc., 33 NY3d 84; People v Hawkins, 11 NY3d 484; People v Turriago, 90 NY2d 77; People v Kinchen, 60 NY2d 772; People v Maher, 89 NY2d 318; People v Bartolomeo, 53 NY2d 225; People v Bing, 76 NY2d 331; People v McLean, 15 NY3d 117.) II. To the extent the Court can review defendant's claims, they fail on the merits, as the search in this case was conducted pursuant to an established procedure that is designed to meet the objectives of an inventory search and that limits officer discretion. (People v Padilla, 21 NY3d 268; People v Johnson, 1 NY3d 252; Illinois v Lafayette, 462 US 640; People v Lee, 29 NY3d 1119; Colorado v Bertine, 479 US 367; People v Gomez, 13 NY3d 6; People v Pugach, 15 NY2d 65.)

OPINION OF THE COURT

SINGAS, J.

During an inventory search of defendant's vehicle, conducted pursuant to the New York City Police Department's (NYPD) standardized, written inventory search protocol, the police recovered a firearm. Defendant contends that this protocol, on

its face, violates both the Federal and State Constitutions. We hold that defendant's arguments fail to overcome the People's proof establishing a valid inventory search protocol.

I.

In October 2015, two NYPD officers observed defendant Ra-keem Douglas commit multiple traffic infractions while driving. The officers stopped defendant, discovered a gravity knife in his pocket (which was illegal at the time), and subsequently arrested him. Defendant and his vehicle were transported to the precinct, where the officers conducted an inventory search of the vehicle, during which they recovered a firearm from the trunk. The police vouchered the firearm, the other items located in the vehicle, and the vehicle itself.

Defendant moved to suppress the firearm, arguing that the NYPD's inventory search protocol was unconstitutional because it gives officers too much discretion in conducting inventory searches and that the searching officers failed to create a meaningful inventory of defendant's items. At the suppression hearing, the People introduced the NYPD's written inventory search protocol as set forth in procedure No. 218-13 of the NYPD Patrol Guide. The protocol instructs officers to first "[s]earch the interior of the vehicle thoroughly," "includ[ing] any area that may contain valuables." The protocol lists 10 areas within the car that must be searched, such as the glove compartment and trunk, but does not limit the searching officers to those spaces. Second, procedure No. 218-13 directs officers to force open the "trunk, glove compartment, etc. only if it can be done with minimal damage" except in particular situations including where officers "[r]easonably suspect that the item contains weapons, explosives, hazardous materials or contraband." Lastly, the protocol requires officers to remove the valuables from the vehicle and invoice, or "voucher," the property on a specifically referenced invoice form. Procedure No. 218-13 instructs officers to list property of little value inside the vehicle, "within reason," in their activity log and cross-reference the property "to the invoice number covering any valuables removed." Both officers testified that the purpose of an inventory search is, in part, to secure a defendant's items. The arresting officer further testified that it is an officer's duty to safeguard a defendant's recovered items prior to vouchering the items.

Supreme Court denied defendant's motion to suppress, concluding that the NYPD's inventory search protocol was

constitutionally sufficient, and the officers acted in accordance with the protocol in executing the inventory search. Defendant subsequently pleaded guilty to criminal possession of a weapon in the second degree and was sentenced, as a second felony offender, to a determinate prison term of six years followed by five years of postrelease supervision. The Appellate Division affirmed the judgment, agreeing with Supreme Court that “the officers followed a valid procedure for an inventory search of defendant’s car” (193 AD3d 622, 622 [1st Dept 2021]). Here, defendant concedes that the officers complied with the challenged protocol and has otherwise abandoned any as-applied challenge.*

II.

“Following a lawful arrest of a driver of a vehicle that is required to be impounded, the police may conduct an inventory search of the vehicle” (*People v Padilla*, 21 NY3d 268, 272 [2013]). An inventory search is “a search designed to properly catalogue the contents of the item searched” (*People v Johnson*, 1 NY3d 252, 256 [2003]). Because a warrant based on probable cause is not required to execute an inventory search, any inventory search must “be conducted according to a familiar routine procedure” (*Galak*, 80 NY2d at 719, citing *Colorado v Bertine*, 479 US 367, 375 [1987]). An inventory search procedure must be designed to meet three specific objectives: “to protect the property of the defendant, to protect the police against any claim of lost property, and to protect police personnel and others from any dangerous instruments” (*Johnson*, 1 NY3d at 256; see also *Lafayette*, 462 US at 646). The protocol must “limit the discretion of the officer in the field” (*Galak*, 80 NY2d at 719). There is no requirement that an inventory search protocol be written (see *id.* at 721), and courts will not “micromanage the procedures used to search properly impounded cars” (*People v*

* Because defendant poses a facial challenge to the constitutionality of the NYPD protocol, we do not address the particular circumstances of the search in this case, including the span of 11 hours between the discovery of the gun and the completion of the vouchering process or whether the property recovered here was adequately secured or itemized. Although these issues may establish the basis for an as-applied challenge (see *People v Galak*, 80 NY2d 715, 720-721 [1993]; *Illinois v Lafayette*, 462 US 640, 646 [1983] [indicating a standardized procedure for inventorying items “as soon as reasonable after reaching the station house . . . inhibits theft or careless handling” of the relevant property]), no such challenge is advanced here. The dissent’s discussion of the specific facts of this search (see dissenting op at 390, 394) is not pertinent to the resolution of the case.

Walker, 20 NY3d 122, 127 [2012]). “[R]easonable police regulations relating to inventory procedures administered in good faith satisfy the Fourth Amendment, even though courts might as a matter of hindsight be able to devise equally reasonable rules requiring a different procedure” (*Bertine*, 479 US at 374).

It is the People’s burden to establish the validity of the protocol itself—specifically, that the procedure meets those three objectives and sufficiently limits the discretion of searching officers (see *Johnson*, 1 NY3d at 256). The People must also demonstrate that these “particular officer[s] conducted this search properly and in compliance with established procedures” (*id.*).

Here, the People sustained their initial burden of demonstrating that the protocol meets “the constitutional minimum” (*Walker*, 20 NY3d at 127; see *People v Padilla*, 21 NY3d 268, 272 [2013]).

Accordingly, the order of the Appellate Division should be affirmed.

RIVERA, J. (dissenting). Several officers from the New York City Police Department (NYPD) arrested defendant, impounded the vehicle he was driving, and took the vehicle to a precinct. There, in addition to searching defendant, the officers searched the vehicle in the parking lot and placed the property they found inside a plastic bag for 11 hours before preparing vouchers listing the items recovered from the car and defendant’s person. The officers conducted the search pursuant to the NYPD’s Patrol Guide (Guide), which directs an officer to search the interior, and, if done with minimal damage, force the trunk and glove compartment open and remove all valuables and invoice them on separate forms. Whatever may be the virtues of the Guide as adequately directing the physical search of a vehicle, the Guide is wholly inadequate at cabining an officer’s discretion regarding the handling of recovered property because it does not instruct the officer on how much time may pass between the search and the invoicing, or instruct them on how and where to safeguard the property. Without such instruction the Guide cannot facilitate the narrow permissible purposes of inventory searches—protecting property, ensuring against theft claims, and protecting officers and others against dangerous items. Therefore, the Guide is unconstitutional on its face.

I dissent.

I.

Defendant was charged with two weapons counts—based on a firearm recovered from the car and a gravity knife officers observed on his person during the stop—and one count of unlawfully possessing marihuana, which he admitted to at the precinct. As relevant to this appeal, defendant moved to suppress the gun, claiming that the officers recovered it in violation of his constitutional rights.

At the suppression hearing, the only written protocol the prosecution entered into evidence was procedure No. 218-13 of the Guide, titled “Inventory Searches of Automobiles and Other Property.” This procedure describes the purpose of the search as threefold: “To protect property, ensure against unwarranted claims of theft, and protect uniformed members of the service and others against dangerous instrumentalities.” The procedure further instructs officers that “[w]hensoever any property comes into the custody of [the NYPD] an inventory search will be conducted” in three steps. First, procedure No. 218-13 instructs officers to “[s]earch the interior of the vehicle thoroughly,” and provides a nonexhaustive list of interior areas (e.g., glove compartment, console, trunk, air vents, ashtrays). Second, it directs officers to force open the trunk and glove compartment “only if it can be done with minimal damage,” unless certain conditions exist not applicable here. Third, officers must “[r]emove all valuables from the vehicle and invoice on a separate PROPERTY CLERK INVOICE.”

Both officers who conducted the underlying search in the precinct’s parking lot testified that the Guide requires a search to follow these three steps. One of the officers admitted on cross-examination that the Guide does not require officers to contemporaneously list the items recovered. Both officers testified that they did not compile a contemporaneous list. Instead, they placed the items they removed from the vehicle in a plastic bag along with property recovered from defendant’s person and brought the bag into the precinct. Once inside, they placed the bag on the floor. Neither officer testified that they secured the bag during the 11 hours before one of them finally vouchered the items.

Defendant argues on appeal that the Guide submitted into evidence and described by the officers during the hearing is facially unconstitutional because it furnishes officers with unfettered discretion regarding the recovery and vouchering of

property, thereby defeating the purposes of inventory searches.¹ Defendant is correct.

II.

The Fourth Amendment to the United States Constitution and article I, § 12 of the New York Constitution prohibit “unreasonable searches and seizures” (US Const Amend IV; NY Const, art I, § 12). “Where a search is undertaken by law enforcement officials to discover evidence of criminal wrongdoing, . . . reasonableness generally requires the obtaining of a judicial warrant” (*Vernonia School Dist. 47J v Acton*, 515 US 646, 653 [1995]). The warrant ensures that any supporting inferences are “drawn by a neutral and detached magistrate instead of being judged by the officer engaged in the often competitive enterprise of ferreting out crime” (*Johnson v United States*, 333 US 10, 14 [1948]). Thus, “[i]n the absence of a warrant, a search is reasonable only if it falls within a specific exception to the warrant requirement” (*Riley v California*, 573 US 373, 382 [2014]).

An “inventory search” of persons and automobiles “at a police station” is “now a well-defined exception to the warrant requirement” (*Colorado v Bertine*, 479 US 367, 370-371 [1987]). “[L]aw enforcement officers may conduct an inventory search of an impounded automobile without a warrant, provided the search is conducted according to a ‘single familiar standard’ or procedure established by the police agency” (*People v Galak*, 80 NY2d 715, 716 [1993] [some internal quotation marks omitted], quoting *Bertine*, 479 US at 375; accord *Illinois v Lafayette*, 462 US 640, 648 [1983]; *People v Gonzalez*, 62 NY2d 386, 390 [1984]). “An inventory search is exactly what its name suggests, a search designed to properly catalogue the contents of the item searched” (*People v Johnson*, 1 NY3d 252, 256 [2003]).

“Three specific objectives are advanced by inventory searches: protecting an owner’s property while it is in the custody of the

1. Defendant has abandoned his as-applied constitutional challenge and I therefore do not consider whether, regardless of the Guide’s directives, the officers failed to conduct the inventory search in a constitutional manner. Of course, to succeed on a facial challenge, defendant “must establish that no set of circumstances exists under which the [Guide] would be valid” (*Matter of Owner Operator Ind. Drivers Assn., Inc. v New York State Dept. of Transp.*, 40 NY3d 55, 61 [2023] [internal quotation marks omitted]).

police; insuring police against claims of lost, stolen, or vandalized property; and guarding police and others from dangerous instrumentalities that would otherwise go undetected” (*Galak*, 80 NY2d at 718, citing *Bertine*, 479 US at 372, and *Lafayette*, 462 US at 646; see *Florida v Wells*, 495 US 1, 4 [1990]; *South Dakota v Opperman*, 428 US 364, 369 [1976]). Thus, “the hallmark of an inventory search” is “a meaningful inventory list” (*Johnson*, 1 NY3d at 256).

“[A]n inventory search [must] be conducted according to a familiar routine procedure and . . . the procedure [must] meet two standards of reasonableness” (*Galak*, 80 NY2d at 719 [citation omitted], citing *Bertine*, 479 US at 375). “First, the procedure must be rationally designed to meet the objectives that justify the search in the first place,” and “[s]econd, the procedure must limit the discretion of the officer in the field” (*id.* [(T)wo elements must be examined: first, the relationship between the search procedure adopted and the governmental objectives that justify the intrusion and, second, the adequacy of the controls on the officer’s discretion”]; see also *Wells*, 495 US at 4). “[I]t is an established procedure clearly limiting the conduct of individual officers that assures that the searches are carried out consistently and reasonably and do not become little more than an excuse for general rummaging to discover incriminating evidence” (*Galak*, 80 NY2d at 719). Moreover, any discretion must be cabined by “standard criteria and [exercised] on the basis of something other than suspicion of evidence of criminal activity” (*Bertine*, 479 US at 375).

Although parties mounting facial challenges typically bear “the extraordinary burden of proving beyond a reasonable doubt that the challenged provision suffers wholesale constitutional impairment” (*Owner Operator Ind. Drivers Assn., Inc.*, 40 NY3d at 61 [internal quotation marks and ellipsis omitted]), in the suppression context, the prosecution always has “the burden of demonstrating the validity of the inventory search” (*People v Padilla*, 21 NY3d 268, 272 [2013], citing *People v Gomez*, 13 NY3d 6, 11 [2009]). “All warrantless searches presumptively are unreasonable per se, and, thus, where a warrant has not been obtained,” the prosecution has “the burden of overcoming this presumption of unreasonableness” (*People v Jimenez*, 22 NY3d 717, 721 [2014] [internal quotation marks and alterations omitted]).

III.

The prosecution failed to show that the Guide it entered into evidence is facially constitutional. Procedure No. 218-13 informs officers of the purposes of inventory searches, and establishes steps for examining the vehicle's interior and invoicing the recovered items using a specific voucher form. During the hearing, the officers confirmed that the Guide requires each of these steps.

The Guide does not instruct officers on how much time they may take to voucher property after they recover it. In other words, the Guide contains neither an outer limit nor guidance as to what would be a reasonable amount of time within which to complete the inventory. Crucially, the Guide is also silent as to how and where to safeguard the property once removed and prior to vouchering. The Guide thus leaves it wholly to the discretion of the officers to determine how and when to comply with the Guide's three-step process in furtherance of the inventory search purposes.

Contrary to the District Attorney's argument, the burden was on the prosecutor, not defendant, to show that every step of the protocol complies with federal and state mandates given that this was a warrantless search (*see Jimenez*, 22 NY3d at 721). The District Attorney's claim that one of the officers testified that they were under a duty to safeguard the evidence does not save the protocol. The officer's general statement failed to explain *how* an officer would comply with that safeguarding duty under the commands of the protocol. The officer could never establish that connection here because the Guide under which he operated makes no mention of a duty to safeguard. In fact, it never even mentions safeguarding the property at all or how to accomplish this protective task. And the prosecutor failed to provide any other source for this supposed safeguarding duty or a source with uniform standards and adequate directives to cabin an officer's discretion in this regard.

For example, there is no guidance on whether an officer must keep the property in a sealed container and, if so, how to seal it, and whether to keep the container close to them at all times until the vouchering is completed. There is no information on what areas in a precinct are appropriate for storage should the officer be delayed in completing the search and property vouchers. And there is no directive as to what constitutes an officially-recognized, adequate reason to delay completion of

this warrantless search.² In sum, the Guide does not cabin the discretion an officer may exercise once they have searched the vehicle and recovered property. Thus, the prosecution failed to meet its burden of showing how the Guide “clearly limit[ed] the conduct of individual officers” (*Galak*, 80 NY2d at 719) according to “standard criteria” (*Bertine*, 479 US at 375).

The NYPD’s facially unconstitutional protocol here permitted a search and vouchering that took 11 hours to complete in two separate locations.³ During several of those hours, the officers left the recovered property in a plastic bag somewhere on the floor of the precinct. The officers failed to prepare a contemporaneous list of the property removed from the vehicle and the list they eventually produced fails to distinguish between the property removed from the vehicle and items recovered from defendant’s person. At the hearing, the officer relied on his recollection of where each item was recovered. As a consequence, the property was vulnerable to destruction, theft and tampering—undermining the purpose of the inventory and creating the opportunity for the type of mishandling that the Guide is designed to avoid.

Defendant contends that the Appellate Division tolerates significant delays in completion of vehicular inventory searches. As an example, he cites *People v Echevarria*, where the Appellate Division concluded, without analysis, that “a delay in completing the inventory procedure was satisfactorily explained” (173 AD3d 638, 639 [1st Dept 2019]). The case does not obviously illustrate defendant’s point, but even so, it is not clear from this one decision that a pattern has developed in our intermediate appellate and trial courts of setting the bar below the constitutional floor. While our courts should not micromanage the NYPD, ensuring compliance with the law is not micromanagement; it is judicial oversight, a distinction the majority elides by approving this protocol.

2. Regardless of whether routine police matters are a basis to stop an unfinished inventory search, no policy was submitted at the suppression hearing instructing an officer on how to determine which nonemergency matters justify interruption of the search and vouchering.

3. The majority misunderstands my purpose in making these observations (see majority op at 388 n). Although the “specific facts of this search” of course have no bearing on this purely facial challenge (*id.*), the prosecution’s reliance on the Guide to defend this unsupervised and temporally limitless search reinforces the Guide’s facial unconstitutionality.

IV.

The law permits warrantless inventory vehicle searches of impounded vehicles for limited purposes of protecting property, ensuring against theft claims, and protecting officers and others against dangerous items. The prosecution here failed to establish that the Guide, on its face, adopts a constitutional method for accomplishing these limited objectives.

Chief Judge WILSON and Judges GARCIA, CANNATARO, TROUTMAN and HALLIGAN concur. Judge RIVERA dissents in an opinion.
Order affirmed.

[223 NE3d 773, 200 NYS3d 325]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DONNA
JORDAN, Appellant.

Argued October 17, 2023; decided November 20, 2023

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered January 26, 2022. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (Stephanie L. Zaro, J.), which had convicted defendant, upon a jury verdict, of robbery in the second degree and petit larceny.

People v Jordan, 201 AD3d 946, reversed.

HEADNOTES

Crimes — Right of Confrontation — Testifying Analyst’s Requisite Involvement with DNA Profiles — Insufficient Record

1. The record in defendant’s criminal prosecution was insufficient to establish that the analyst who testified that defendant’s DNA profile matched the DNA profile developed from the crime scene swab had the requisite involvement with either of the DNA profiles to avoid a Confrontation Clause error. The testifying analyst must have either participated in or directly supervised the final step that generated the DNA profile, or must have conducted an independent analysis of the data used to do so in a manner that enabled replication of the determinations made at that stage in order to verify the profile. Testimony that, for one profile, the analyst received reports and reviewed them, and that, for the other, he “received” the raw data and went through it, but that someone else “ran” the raw data and provided it to him, did not demonstrate that he was the proper witness. The analyst’s imprecise and conclusory statements failed to establish adequately that he used his independent analysis on the raw data and was not merely functioning as a conduit for the conclusions of others.

Crimes — Harmless and Prejudicial Error — Confrontation Clause Violation

2. The trial court’s Confrontation Clause error in admitting witness testimony and the underlying exhibits without a clear record of the stages of the DNA testing in which the testifying analyst was involved, or what manner of independent analysis the testifying analyst performed, was not harmless and defendant was entitled to a new trial. The constitutional harmless error standard applied, requiring a showing that the evidence was overwhelming and that there was no reasonable possibility that the error might have contributed to defendant’s conviction. The People produced only one witness who identified defendant; that witness’s initial physical descriptions of the perpetrator did not match defendant’s age or height; and defendant presented medical evidence that suggested she was physically incapable of committing the robbery.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Criminal Law §§ 1045–1048, 1056–1057, 1063–1064, 1071–1072; AM JUR 2d Larceny §§ 11, 37; AM JUR 2d Robbery §§ 6, 12.
CARMODY-WAIT 2d Particular Types of Evidence §§ 194:79, 194:89–194:90, 194:192, 194:197; CARMODY-WAIT 2d Appeals in Criminal Cases § 207:127.
LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) § 24.4.
NY JUR 2d Criminal Law: Procedure §§ 2225, 2295, 2297, 2133, 2355, 2363; NY JUR 2d Criminal Law: Substantive Principles and Offenses §§ 894, 939, 942, 965–966.

ANNOTATION REFERENCE

Application of *Crawford* Confrontation Clause Rule to DNA Analysis and Related Documents. 17 ALR7th Art. 3.

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POINTS OF COUNSEL

Patricia Pazner, Appellate Advocates, New York City (Sarah B. Cohen and Brandon Kronstat of counsel), for appellant. I. Appellant was deprived of her constitutional right to confront witnesses when, over objection, the court admitted DNA evidence through a New York City Office of Chief Medical Examiner criminalist who did not perform, witness, supervise, or independently analyze the DNA testing. (*Bullcoming v New Mexico*, 564 US 647; *Melendez-Diaz v Massachusetts*, 557 US 305; *Crawford v Washington*, 541 US 36; *People v Tsintzelis*, 35 NY3d 925; *People v Austin*, 30 NY3d 98; *People v John*, 27 NY3d 294; *Davis v Washington*, 547 US 813; *People v Velez*, 164 AD3d 622; *Chapman v California*, 386 US 18; *People v Crimmins*, 36 NY2d 230.) II. Appellant was deprived of her rights to present a complete defense and to a fair trial by (1) the court’s rulings precluding her recorded interrogation and certified New York City Police Department documents that corroborated her account of who the true perpetrator was, and (2) the prosecutor’s misleading and inflammatory summation, wherein, taking improper advantage of those court rulings, he

knowingly advanced the false position that appellant “created” this person and tailored her testimony to the People’s case. (*Chambers v Mississippi*, 410 US 284; *Berger v United States*, 295 US 78; *People v Carroll*, 95 NY2d 375; *People v Ashwal*, 39 NY2d 105; *Crane v Kentucky*, 476 US 683; *People v Deverow*, 38 NY3d 157; *People v Reid*, 19 NY3d 382; *People v Massie*, 2 NY3d 179; *People v Ochoa*, 14 NY3d 180; *People v Hudy*, 73 NY2d 40.)

Melinda Katz, District Attorney, Kew Gardens (*William H. Branigan* and *John M. Castellano* of counsel), for respondent. I. Defendant’s confrontation claim is partially unpreserved and otherwise meritless. (*People v John*, 27 NY3d 294; *Crawford v Washington*, 541 US 36; *Melendez-Diaz v Massachusetts*, 557 US 305; *Bullcoming v New Mexico*, 564 US 647; *Williams v Illinois*, 567 US 50; *Michigan v Bryant*, 562 US 344; *People v Brown*, 13 NY3d 332; *People v Rawlins*, 10 NY3d 136; *People v Austin*, 30 NY3d 98; *Ohio v Clark*, 576 US 237.) II. The court’s preclusion of defendant’s statements to the police and the pedigree information on the mugshot photo of a person defendant claimed was the perpetrator did not deny defendant her right to present a defense. (*People v Carroll*, 95 NY2d 375; *People v Hayes*, 17 NY3d 46; *People v Nieves*, 67 NY2d 125; *People v Diaz*, 20 NY3d 569; *People v Loomis*, 178 NY 400; *People v Jenkins*, 98 NY2d 280; *People v Maisonave*, 140 AD2d 545; *People v Scarola*, 71 NY2d 769; *People v DiPippo*, 27 NY3d 127; *United States v Aboumoussallem*, 726 F2d 906.) III. Defendant failed to preserve most of her misconduct claims for this Court’s review. In any event, the prosecutor’s argument on summation was fair comment on the evidence and responsive to defendant’s summation.

The Legal Aid Society, New York City (*David Loftis*, *Jenny S. Cheung*, *Jessica Goldthwaite* and *J. David Pollock* of counsel), amicus curiae. Accurately reviewing and editing the raw data is a critical step in producing a reliable DNA analysis.

OPINION OF THE COURT

GARCIA, J.

Courts, including the U.S. Supreme Court (*see Williams v Illinois*, 567 US 50 [2012]), have struggled to identify the point at which forensic DNA science and the rights provided by the Sixth Amendment’s Confrontation Clause intersect—that is, when the mechanical processing of data becomes testimony.

Recently this Court, in *People v John*, *People v Austin*, and *People v Tsintzelis*, identified as testimonial the editing stage at which “the generated DNA profile” is created by the analyst exercising independent judgment (27 NY3d 294, 310 [2016]; 30 NY3d 98 [2017]; 35 NY3d 925 [2020]). This case requires us to apply this approach and, in so doing, decide whether the record here established that the proper witness testified about the creation of the DNA profiles. Because the record was insufficient, we now reverse.

A store in Queens was robbed, and an employee found a cellphone on the floor that had been left behind when the robbers fled. Police officers swabbed the phone for DNA, and analysts from the Office of Chief Medical Examiner (OCME) created a DNA profile from the swab and ran the profile through the Combined DNA Index System (CODIS). After CODIS identified defendant as the source of the DNA based on a preexisting DNA profile stored in the data bank, she was arrested and charged with second-degree robbery and petit larceny. OCME analysts created a DNA profile from a post-arrest buccal swab sample from defendant and confirmed the match.

At trial, the People called an OCME level 4 criminalist to testify that defendant’s DNA profile matched the profile developed from the crime scene swab. Three relevant exhibits were entered into evidence: a forensic biology file containing all paperwork developed by OCME, including a DNA profile generated from the DNA swabbed from the cellphone; a similar forensic biology file that contained a DNA profile generated from the confirmatory swab taken from defendant; and a demonstrative chart used to explain the matches to the jury. Defense counsel objected, arguing that because the witness did not perform any of the DNA testing himself, defendant’s right to confrontation would be violated by his testimony regarding the DNA profiles. The People responded that the witness had performed an independent analysis of the profiles and so was the proper witness. The court allowed the testimony and admitted all three exhibits. The witness testified about the process for developing DNA profiles and, as discussed in more detail below, described his work on the profiles in this case. With the use of the comparison chart, he testified that “the mixture found on the swab of the entire phone was approximately 25.7 quadrillion [times] more probable if it originated from Donna Jordan and from one unknown person rather than two un-

known persons.” Defendant testified and denied involvement in the robbery.

Following the prosecutor’s summation, defense counsel twice moved for a mistrial on the grounds that the prosecutor’s statements amounted to misconduct. While acknowledging that some of the prosecutor’s statements on summation were inappropriate, the trial court held that the prosecutor’s comments did not rise to the level of prosecutorial misconduct. The jury found defendant guilty on both counts.

The Appellate Division affirmed, holding that defendant’s right to confrontation was not violated because the criminalist “performed his own analysis of the DNA profiles” and that, “[t]o the extent that some of the prosecutor’s remarks were improper, those remarks were not so flagrant or pervasive as to have deprived the defendant of a fair trial” (201 AD3d 946, 948 [2d Dept 2022]). A Judge of this Court granted leave (38 NY3d 1134 [2022]), and we now reverse based on the violation of defendant’s rights under the Confrontation Clause.

It is well settled that “if an out-of-court statement is testimonial in nature, it may not be introduced against the accused at trial unless the witness who made the statement is unavailable and the accused has had a prior opportunity to confront that witness” (*Bullcoming v New Mexico*, 564 US 647, 657 [2011]).¹ In *People v John*, absent controlling U.S. Supreme Court precedent addressing the interplay of the introduction of DNA forensic evidence and the restraints posed by the Confrontation Clause, this Court sought to identify the point at which the processes involved in DNA testing turn from ministerial to testimonial.

We first made clear that the testifying criminalist need not have been involved in each step of the procedures required to generate the DNA profiles (27 NY3d at 312-313). This rule is consistent with the view of other courts that the preliminary steps involved in the creation of DNA samples are “essentially ministerial tasks” (see *United States v Robinson*, 2023 WL 6066691, *4, 2023 US Dist LEXIS 165537, *13-14 [WD Wash, Sept. 18, 2023, No. 2:22-cr-00212-TL, Lin, J.]; see also *Williams*, 567 US at 100-101 [Breyer, J., concurring] [categorizing preliminary stages of DNA testing as “highly automated” and

1. The People’s contention on appeal that the DNA profile from the cellphone swab was not testimonial because no suspect had been identified is unpreserved.

“mostly automated”]). These preliminary stages are processes that simply prepare the DNA samples for testing, during which “the analyst’s role is to facilitate the operation of a machine” (*State v Lui*, 179 Wash 2d 457, 487, 315 P3d 493, 507 [2014 en banc]; see also *John*, 27 NY3d at 300 [describing these procedures as “extraction (to release the DNA from any cells), quantitation (to determine how much DNA was present), (and) amplification (to make millions of copies of the specific locations . . . to be tested”])). Errors made at this stage “may often be detected from the profile itself,” which provides “a further safeguard” (*Williams*, 567 US at 85).

Instead of imposing a rule that required production of every person who comes into contact with the evidence at these preliminary stages of testing, we held instead that the relevant witness is one directly involved in the critical final stage of testing, when an analyst must exercise judgment to cull the data and generate the DNA profile. It is at this later stage of the testing, only after the “output[of] an electropherogram, or a plot of the peaks and valleys in the DNA[, that] any element of human decision-making enter[s] the process; an expert must translate the peaks and valleys of the electropherogram into a DNA profile” (*Lui*, 179 Wash 2d at 487-488, 315 P3d at 507 [emphasis omitted]; see *John*, 27 NY3d at 298 [“Experienced analysts convert these numeric identifiers into a DNA profile using . . . the analyst’s independent manual examination (of the data) which involves an editing process”])). We have held that “a single analyst” may testify so long as it is “an analyst who witnessed, performed or supervised the generation of defendant’s DNA profile, or who used his or her independent analysis on the raw data, as opposed to a testifying analyst functioning as a conduit for the conclusions of others” (*John*, 27 NY3d at 312, 314-315). Accordingly, testimony from an analyst is sufficient where the witness has engaged in “‘the final-level DNA analysis, reviewed the results of the preliminary evidence processing conducted by colleagues, produced the relevant DNA profiles, and expressed her expert opinion’” as to the DNA match (see *Robinson*, 2023 WL 6066691, *4, 2023 US Dist LEXIS 165537, *14; *United States v Peshlakai*, 2023 WL 4235671, *11-12, 2023 US Dist LEXIS 111275, *27-32 [D NM, June 28, 2023, No. 21-cr-01501-JCH, Herrera, J.] [reviewing the stages of DNA testing and holding that no Confrontation Clause violation occurred because the testifying examiner “performed the final analysis, reviewed the final lab-

oratory notes and data, and drew the relevant conclusions”]; *State v Lopez*, 45 A3d 1, 13 [RI 2012] [testifying examiner’s testimony sufficient where, “(a)fter the first three stages of the DNA testing were completed (by others), he then reviewed the entire case file and confirmed that all protocols were followed properly by examining the other analysts’ notes, their affirmations that protocols were followed, as well as their conclusions” and “personally reviewed and independently analyzed” the data]).

[1] In sum, the testifying analyst must have either participated in or directly supervised this “final” step that generates the DNA profile, or must conduct an “independent analysis” of the data used to do so in a manner that enables replication of the determinations made at that stage in order to verify the profile (see *Tsintzelis*, 35 NY3d at 926; *Austin*, 30 NY3d at 105). The record here fails to establish that the testifying analyst had the requisite involvement with either of the DNA profiles.²

First, the criminalist testified about procedures at the laboratory generally, explaining that “the results and conclusions are entered into a computer by a reporting analyst and then only the technical reviewer comes into their own conclusions if those conclusions agree,” while a “reporting analyst is the first person to go through the completed data and draw their own independent conclusions as to the results,” after which they “draft [an] electronic report that summarizes their conclusions and findings, and they assemble the paper case file that accompanies that report.” He later explained that “[t]here is an analyst who will go through that data using a piece of software . . . [that] removes noise along the graph that we know empirically not to be true data,” and any determination that “a piece of information is likely noise . . . is documented within the data and case file as well,” and “after that is complete, that visual determination and recordkeeping, that’s when the interpreting analyst gets the final data for their interpretation, and the technical reviewer then looks at that same data and makes their interpretation.” He did not explain who performed these tasks for the relevant profiles.

The witness next testified that, for the profile from the cellphone swab, he was the technical reviewer, that he did not

2. Defense counsel’s detailed objection to the entirety of the criminalist’s testimony on confrontation grounds sufficiently preserved a challenge to the admission of all relevant DNA evidence.

prepare the reports and was not present when the reports were made, and that he “review[ed] the data and reports” and conducted his “independent interpretation of the testing data contained in” the paper file he received. He testified that he was the reporting analyst for the post-arrest confirmatory swab and, when asked if he “actually ran the raw data and remanded it to the final data,” he explained that a different analyst performed that task and that, “[a]s the reporting analyst, I receive that data and went through the data[,] . . . received the raw data and I go through it to make sure . . . interpretations are being drawn, and then I draw my own interpretations based on that data.” He responded affirmatively when asked if “someone else ran the raw data, and did the work on it and provided it to you and you reviewed it.”

This record was insufficient. We cannot discern from these statements the witness’s level of involvement in the generation of the DNA profiles at the crucial final stage of testing. Testimony that, for one profile, he received reports and reviewed them, and that, for the other, he “received” the raw data and went through it, but that someone else “ran” the raw data and provided it to him, did not demonstrate that he was the proper witness. The witness did not recount any involvement in the stages of testing that require the exercise of judgment and the opportunity to identify error. This witness’s imprecise and conclusory statements failed to establish adequately that he “used his . . . independent analysis on the raw data” and was not merely “functioning as a conduit for the conclusions of others” (*John*, 27 NY3d at 315).

Without adequate testimony, the People could not establish whether the witness participated in or supervised this final step, or performed an independent analysis of the data through which he would have been able to replicate the determinations, identify any errors committed in the earlier stages of testing, and draw his own conclusions. The People should make a clear record of the stages of the DNA testing in which the testifying analyst was involved, or what manner of independent analysis the testifying analyst performed, ensuring that a witness’s testimony establishes his or her involvement at the necessary stage to avoid a Confrontation Clause error. Courts must be able to confirm that the testifying analyst participated in the critical portion of the testing process or reviewed the data in a meaningful way that enabled independent verification of the accuracy of the DNA profile. Here no such record was made,

and accordingly, admission of the criminalist's testimony and the underlying exhibits was error.

[2] This error was not harmless. The constitutional harmless error standard applies here, requiring a showing that the evidence was overwhelming and that there is no reasonable possibility that the error might have contributed to defendant's conviction (*People v Clyde*, 18 NY3d 145, 153-154 [2011]). The People produced only one witness who identified defendant; that witness's initial physical descriptions of the perpetrator did not match defendant's age or height; and defendant presented medical evidence that suggested she was physically incapable of committing the robbery. Accordingly, defendant is entitled to a new trial. As a result, we do not reach defendant's remaining arguments.

We note that our holding today is made absent clear guidance from the U.S. Supreme Court (*see e.g. State v Watson*, 170 NH 720, 733, 185 A3d 845, 855-856 [2018] ["Because each of the opinions in *Williams* embraces a different approach to determining whether the use of forensic evidence violates the Confrontation Clause, and there is no narrow rule that would have the support of a majority of the Supreme Court, we agree with other jurisdictions that have concluded that its force, as precedent, is at best unclear" (internal quotation marks, brackets and citation omitted)] [citing cases]; *see also Garlick v Lee*, 1 F4th 122, 133 [2d Cir 2021]). The Supreme Court may revisit the issues in *Williams* in a manner that affects today's holding. Technology may also develop in a way that affects confrontation rights and our holding is limited to the process for forensic DNA analysis as currently conducted.

The order of the Appellate Division should be reversed and a new trial ordered.

Chief Judge WILSON and Judges RIVERA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order reversed and a new trial ordered.

[224 NE3d 513, 201 NYS3d 323]

In the Matter of JOSEPH NEMETH et al., Appellants, v K-TOOLING
et al., Respondents.

Argued September 14, 2023; decided October 24, 2023

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered May 5, 2022. The Appellate Division affirmed a judgment (denominated decision and order) of the Supreme Court, Delaware County (John F. Lambert, J.), which had (1) granted respondents' cross-motions to dismiss the amended petition to annul a zoning board determination granting a use variance; and (2) dismissed the amended petition.

Matter of Nemeth v K-Tooling, 205 AD3d 1093, reversed.

HEADNOTES

Limitation of Actions — Claim in Amended Pleading — Necessary Party Mistakenly Omitted from Initial Filing — Relation Back Doctrine

1. In a CPLR article 78 proceeding challenging a zoning board determination in which respondent landowner was mistakenly omitted from petitioners' initial filing and later added after expiration of the statute of limitations, the relation back doctrine applied to petitioners' claims against respondent such that they could be treated as timely interposed under CPLR 203 (c), where petitioners established that their omission was not a deliberate, informed litigation strategy to gain tactical advantage. The relation back doctrine is not limited to mistakes regarding the identity or status of a proper party. Rather, the doctrine applies when the party knew or should have known that, but for the mistake, be it a simple oversight or a mistake of law, the non-amending party would have been named initially. Respondent was named in a prior article 78 proceeding challenging an earlier variance, which was at the heart of the controversy between petitioners and respondents. When a second request, which respondent signed, for a variance was granted, petitioners again sought to have the variance annulled. Under the circumstances, as the owner of the land benefitted by the variance and as a signatory of the variance application on behalf of a company whose use of the property depended on the variance, respondent could not have understood her omission to be anything other than an oversight. Moreover, the record confirmed that petitioners' omission of respondent was a mistake. Petitioners had every reason to name respondent within their statutory limitations period but did not do so. Thus, the only logical conclusion was that her omission from the second petition was a mere oversight.

Limitation of Actions — Claim in Amended Pleading — Relation Back Doctrine — Unity of Interest

2. In a CPLR article 78 proceeding challenging a zoning board determination granting a land use variance, the relation back doctrine applied to

petitioners' claims against respondent landowner, who also owned one of the respondent businesses operating on the property and was mistakenly omitted from petitioners' initial filing, where respondent landowner was united in interest with the business such that she could be charged with notice of commencement of the proceeding and would not be prejudiced in her defense. Whether parties share a unity of interest depends on whether the parties' interest in the subject matter is such that they stand or fall together and that judgment against one will similarly affect the other. Petitioners alleged that respondent owned the property affected by the variance and owned one of the two businesses operating a nonconforming use on the land. The other business was owned by her son. As its owner, respondent signed the use variance on the business's behalf in order to obtain approval for both businesses to use the property for manufacturing purposes. Throughout the litigation, the same attorney had represented respondent and the two businesses against petitioners' challenge to the zoning board determination and there had been no contention that different defenses were available to respondent than the other respondents. The issuance of the variance and its successful defense in the proceeding was a significant concern to a family enterprise dependent on an otherwise impermissible use of the land. Under the circumstances, respondent's interests were aligned with the manufacturing respondents and a judgment vacating the use variance would have had similar effect on all respondents.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Limitation of Actions §§ 241, 244; AM JUR 2d Pleading §§ 733–734; AM JUR 2d Zoning and Planning § 706.
CARMODY-WAIT 2d Limitation of Actions §§ 13:412–13:414, 13:417, 13:439–13:441; CARMODY-WAIT 2d Proceeding Against a Body or Officer §§ 145:1445, 145:1447.
MCKINNEY'S, CPLR art 78; 203 (c).
NY JUR 2d Buildings, Zoning, and Land Controls §§ 378, 532–533; NY JUR 2d Limitations and Laches §§ 296–297, 300–304.
NEW YORK LAW OF TORTS § 19:12.
NEW YORK ZONING LAW AND PRACTICE (4th ed) §§ 29:1, 33:01–33:02, 33:04, 33:06–33:07, 33:13, 33:26.
SIEGEL, NY PRAC (6th ed) §§ 49, 65, 231A, 566.

ANNOTATION REFERENCE

Change in party after statute of limitations has run. 8 ALR2d 6.

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POINTS OF COUNSEL

Sussman and Associates, Goshen (Jonathan R. Goldman of counsel), for appellants. A litigant's inadvertent omission of a legally necessary party united in interest with an original party constitutes a legal error that satisfies the relation back test under CPLR 203 (c). (*Mondello v New York Blood Ctr.—Greater N.Y. Blood Program*, 80 NY2d 219; *Soto v Brooklyn Correctional Facility*, 80 F3d 34; *Krupski v Costa Crociere S. p. A.*, 560 US 538; *OneWest Bank N.A. v Muller*, 189 AD3d 853; *NYAHS Servs., Inc., Self-Ins. Trust v People Care Inc.*, 167 AD3d 1305; *Headley v City of New York*, 115 AD3d 804; *Thomsen v Suffolk County Police Dept.*, 50 AD3d 1015; *DeLuca v Baybridge at Bayside Condominium I*, 5 AD3d 533.)

Coughlin & Gerhart, LLP, Binghamton (Alan J. Pope of counsel), for respondents. I. Petitioners-appellants' request to change prong three of New York's relation back doctrine should be denied. (*Buran v Coupal*, 87 NY2d 173; *State of New York v Gruzen Partnership*, 239 AD2d 735; *Matter of Gilbert v Perine*, 52 AD3d 240; *Windy Ridge Farm v Assessor of Town of Shandaken*, 45 AD3d 1099, 11 NY3d 725; *Matter of Sullivan v Planning Bd. of the Town of Mamakating*, 151 AD3d 1518; *Doe v HMO-CNY*, 14 AD3d 102; *Krupski v Costa Crociere S. p. A.*, 560 US 538; *Crawford v City of New York*, 129 AD3d 554.) II. Petitioners-appellants fail to meet prong two of New York's relation back doctrine. (*Zehnick v Meadowbrook II Assoc.*, 20 AD3d 793; *Quine v Burkhard Bros.*, 167 AD2d 683; *Fasce v Smithem*, 188 AD3d 1542; *Stepanian v Bed, Bath, & Beyond, Inc.*, 207 AD3d 1182; *Matter of Ayuda Re Funding, LLC v Town of Liberty*, 121 AD3d 1474; *Belair Care Ctr., Inc. v Cool Insuring Agency, Inc.*, 161 AD3d 1263.)

OPINION OF THE COURT

RIVERA, J.

On this appeal we must determine whether, under CPLR 203 (c) and the relation back doctrine, claims against a party mistakenly omitted from the initial filing and then added after the expiration of the limitations period may be treated as interposed when the action was timely commenced against the originally named respondents. The relation back doctrine applies when (1) the claims arise out of the same conduct, transaction or occurrence; (2) the new party is "united in interest" with an original defendant and thus can be charged with such

notice of the commencement of the action such that a court concludes that the party will not be prejudiced in defending against the action; and (3) the new party knew or should have known that, but for a mistaken omission, they would have been named in the initial pleading (*see Buran v Coupal*, 87 NY2d 173, 178 [1995]).

The doctrine focuses on the notice and prejudice to the added party. However, the doctrine does not apply when a plaintiff “intentionally decides not to assert a claim against a party known to be potentially liable” or when the new party was omitted “to obtain a tactical advantage in the litigation” (*id.* at 181). These exceptions minimize gamesmanship and manipulation of the CPLR (*see id.*).

Here, petitioners established that they satisfied the *Buran* test and that their omission of a necessary party was not a deliberate, informed litigation strategy to gain tactical advantage. The relation back doctrine applies, and petitioners’ claims against the newly added party were timely interposed under CPLR 203 (c). Therefore, respondents’ motion to dismiss the amended petition should not have been granted. We reverse.

I.

According to the facts alleged in the petition,¹ petitioners Donna and Joseph Nemeth, petitioner Valerie Garcia, and respondent Rosa Kuehn are adjacent residential property owners in the Village of Hancock. Respondent Kuehn Manufacturing Co. and respondent K-Tooling are family businesses run by Rosa’s son, Perry. Both are manufacturing businesses that the Kuehns operate as nonconforming uses on Rosa’s property.

For over a decade the parties have been embroiled in a neighborhood dispute over respondents’ attempt to expand this use. In 2012, petitioners secured an injunction, barring respondents from using part of the property for nonresidential purposes. Thereafter, respondents Kuehn Manufacturing and K-Tooling sought a variance from respondent the Village of Hancock Zoning Board of Appeals (ZBA) which was granted in 2013 after a hearing attended by the parties. Petitioners then commenced a prior CPLR article 78 proceeding seeking annulment of the ZBA’s determination, naming as respondents Rosa,

1. On an appeal from a motion to dismiss, we accept all of the allegations in the petitions as true and accord petitioners the benefit of every possible favorable inference (*see Leon v Martinez*, 84 NY2d 83, 87-88 [1994]; *Matter of Burke v Sugarman*, 35 NY2d 39, 42 [1974]).

Perry, Kuehn Manufacturing, K-Tooling, and the ZBA. The Appellate Division reversed Supreme Court's dismissal of the petition, thereby annulling the use variance (127 AD3d 1360 [3d Dept 2015]).

Undaunted, respondents sought a variance in February 2016, which the ZBA granted. Petitioners then commenced the instant CPLR article 78 proceeding, seeking annulment of the ZBA's decision. This time, petitioners named only Kuehn Manufacturing, K-Tooling, and the ZBA as respondents, omitting Rosa and Perry. The Kuehn respondents moved to dismiss the petition under CPLR 1001 (a) and 7802 for failing to name the variance's applicants—property owner Rosa and Perry—as “necessary parties.” Supreme Court granted the motion and dismissed the petition. The Appellate Division reversed and remitted to Supreme Court “to order [that] Rosa Kuehn . . . be joined as a necessary party” and “allow [her] and the Kuehn respondents to raise any defenses that they might have” (163 AD3d 1143, 1145 [3d Dept 2018]).

On remittal, petitioners filed an amended CPLR article 78 petition adding Rosa as a respondent. Petitioners also moved for judgment. Respondents cross-moved to dismiss the petition, arguing that the petition was time-barred against Rosa because the relation back doctrine did not apply and, as a result, the claims against the other respondents must be dismissed for lack of a necessary party. Supreme Court granted the motions and dismissed the petition as untimely.

The Appellate Division affirmed with one Justice dissenting (205 AD3d 1093 [3d Dept 2022]). Relying on departmental precedent, the majority concluded that the relation back doctrine is unavailable to save an untimely filing where “there is no ‘mistake’ within the meaning of relation back if the ‘[petitioners] knew of the existence of the proper parties at the time of their initial filing’ ” and, here, petitioners could not claim “that they were unaware of Rosa Kuehn's identity as the owner of the subject property or that there was a question of or misunderstanding regarding her status” (*id.* at 1096, quoting *Buran*, 87 NY2d at 180).

The dissenting Justice acknowledged that “[t]he majority faithfully applie[d] Third Department precedent, which distinguishes a mistake of law as not meeting the requirements of the third prong” (*id.* at 1097, Garry, P.J., dissenting), but asserted that this precedent was inconsistent with *Buran* and

the federal counterpart, rule 15 (c) of the Federal Rules of Civil Procedure (*see id.* at 1097-1099). The dissenter further concluded that, because Rosa had appeared as its owner throughout the litigation and was represented by the same attorney, Rosa was united in interest with named respondent Kuehn Manufacturing. Therefore, the dissent concluded that the amendment relates back to the initial timely commencement of the petition (*id.* at 1100). We granted petitioners leave to appeal (38 NY3d 913 [2022]).

II.

Petitioners principally argue that, for purposes of the third prong of the relation back analysis, the addition of a mistakenly-omitted necessary party relates back whether one views the omission as a mistake of “law” or simply an oversight in identifying the proper party unless the omission was a deliberate choice or motivated by gamesmanship. Respondents counter that the relation back doctrine is unavailable to petitioners because they were aware of the omitted necessary party’s existence but failed to include her in the action. We now hold that the relation back doctrine is not limited to cases where the amending party’s omission results from doubts regarding the omitted party’s identity or status.

A.

Section 203 of the CPLR codifies the relation back doctrine and provides that “a claim asserted in the complaint [commenced by filing] is interposed against the defendant or a co-defendant united in interest with such defendant when the action is commenced” (CPLR 203 [c]). Our State’s relation back doctrine is modeled on the federal analog in Federal Rule of Civil Procedure rule 15 (c) (*Mondello v New York Blood Ctr.—Greater N.Y. Blood Program*, 80 NY2d 219, 226 [1992]).² In *Mondello*, the Court adopted the three-part test prevalent at

2. Rule 15 (c) of the Federal Rules of Civil Procedure provides, in relevant part, that

“[a]n amendment to a pleading relates back to the date of the original pleading when . . . the amendment asserts a claim or defense that arose out of the conduct, transaction, or occurrence set out—or attempted to be set out—in the original pleading; or . . . the amendment changes the party or the naming of the party against whom a claim is asserted, if [the claim or defense arose from the same conduct, transaction, or occurrence] and if, within the period . . . for serving the summons and complaint,

(n. cont’d)

the time in federal and state courts and articulated by the Appellate Division in *Brock v Bua* (83 AD2d 61 [2d Dept 1981]). Under this test, the claims against the later-added party relate back to the date of commencement, if

“ ‘(1) both claims arose out of [the] same conduct, transaction or occurrence[;] (2) the new party is ‘united in interest’ with the original defendant, and by reason of that relationship can be charged with such notice of the institution of the action that [they] will not be prejudiced in maintaining [their] defense on the merits[;] and (3) the new party knew or should have known that, but for an excusable mistake by [the] plaintiff as to the identity of the proper parties, the action would have been brought against [them] as well” (*Buran*, 87 NY2d at 178, quoting *Brock*, 83 AD2d at 69).

Although *Mondello* had no occasion to consider the scope of the third prong of this test, the Court took up the question soon thereafter in *Buran* (*id.* at 178, citing *Mondello*, 80 NY2d at 230). As the *Buran* Court explained, *Brock*’s articulation of the third prong differed from its federal counterpart by requiring that the “omission of the party in the original pleading be excusable” (87 NY2d at 179). That requirement is wholly absent from rule 15 (c), which “does not qualify the nature of the mistake” (*id.*).

Buran concluded that the “excusability” requirement “improperly deemphasize[d] what the United States Supreme Court has called the ‘linchpin’ of the relation back doctrine—notice to the defendant within the applicable limitations period” (*id.* at 180, quoting *Schiavone v Fortune*, 477 US 21, 31 [1986]). More to the point, the excusable mistake requirement shifted the focus away from “whether the new party had actual notice of the claim” and “from what *Brock* assumed to be the primary consideration” of the doctrine, namely, “whether the *defendant* could have reasonably concluded that the failure to sue within the limitations period meant that there was no intent to sue that person at all and that the matter has been

the party to be brought in by amendment . . . (i) received such notice of the action that it will not be prejudiced in defending on the merits; and (ii) knew or should have known that the action would have been brought against it, but for a mistake concerning the proper party’s identity” (Fed Rules Civ Pro rule 15 [c] [1] [B]-[C] [previously Fed Rules Civ Pro rule 15 (c) (2)-(3)]).

laid to rest as far as [they are] concerned” (*id.* at 180-181 [internal quotation marks omitted]; *see also Krupski v Costa Crociere S. p. A.*, 560 US 538, 548 [2010] [observing that the federal relation back rule “asks what the prospective *defendant* knew or should have known during the (relevant) period, not what the *plaintiff* knew or should have known at the time of filing (their) original complaint”]).

The *Buran* Court further observed that the excusability requirement had essentially “render[ed] the relation back doctrine meaningless in all but rare circumstances,” a result that was not in line with notice pleading and our customary liberal construction of the CPLR (*Buran*, 87 NY2d at 181). To better reflect the primary focus of the doctrine while minimizing opportunities for manipulation of the CPLR’s saving provision, the Court discarded the excusability requirement, but reminded courts that they could decline to apply the doctrine in “cases where the plaintiff omitted a defendant in order to obtain a tactical advantage in the litigation” or where application of the doctrine would result in prejudice to the new party in defending on the merits (*id.*). In short, *Buran* retained a modified third prong of the relation back test which is more forgiving of errors of omission than its *Brock* predecessor and which requires only that the omission of a party be the result of a mistake and not necessarily an “excusable” mistake.

B.

[1] The Appellate Division decision below is the latest in a line of cases interpreting *Buran* as limiting the relation back doctrine to mistakes regarding the identity or status of a proper party (*see* 205 AD3d at 1094-1095, citing, *inter alia*, *Matter of Sullivan v Planning Bd. of the Town of Mamakating*, 151 AD3d 1518, 1520 [3d Dept 2017]; *Branch v Community Coll. of the County of Sullivan*, 148 AD3d 1410, 1411-1412 [3d Dept 2017]; *Matter of Ayuda Re Funding, LLC v Town of Liberty*, 121 AD3d 1474, 1476 [3d Dept 2014]). However, as we now make clear, the relation back doctrine is not so limited. Rather, the doctrine applies when the party knew or should have known that, but for the mistake—be it a simple oversight or a mistake of law (i.e., that the amending party failed to recognize the other party as a legally necessary party)—the non-amending party would have been named initially (*see Buran*, 87 NY2d at 180-181).

Indeed, in *Buran* itself, there was no mistake regarding identity. *Buran* involved husband-and-wife plaintiffs with prop-

erty on Lake Champlain—the Burans—who sued their husband-and-wife neighbors—the Coupals—for trespass after the Coupals erected a seawall across a portion of the Burans’ property (*id.* at 176). The Court noted that “John and Janet Coupal obtained [the] property” and that, while the initial suit against the husband (John) was pending, “the Coupals transferred ownership of their lot” (*id.*). Hence, when the Burans first sued the Coupals, the Burans had reason to know the Coupals were tenants by the entirety and, thus, both necessary parties—as the Coupals later acknowledged in an amended answer (*see id.*). Despite this, the Court did not inquire into whether the mistake in omitting Janet was one of fact or law or otherwise suggest that the Burans’ knowledge of Janet’s identity was dispositive of the doctrine’s applicability. Rather, the Court still held that the Burans’ delayed addition of Janet Coupal related back to the original date of filing because Janet was united in interest with John, she undisputedly had notice of the action, there was no delay or prejudice, and “whether the Burans’ mistake in failing to name her initially was ‘excusable’ was immaterial” so long as the Coupals should have realized that her omission was, in fact, a mistake (*id.* at 182).

III.

Applying the correct standard here, we conclude that the petitioners established that the relation back doctrine applies to their claims against newly added respondent, Rosa Kuehn. As the Appellate Division recognized, there is no dispute that the newly-added claims “arose out of [the] same conduct, transaction or occurrence” (*Buran*, 87 NY2d at 178, quoting *Brock*, 83 AD2d at 69). The controversy lies as to whether Rosa was on notice and thus will not be prejudiced by her addition to the proceeding, and that she is united in interest with another respondent.

A.

Turning to the issue that divided the Appellate Division, we conclude that petitioners established the third prong—that Rosa knew or should have known that, but for a mistake, she would have been named as a respondent in the underlying article 78 proceeding. She was named in the first article 78 proceeding challenging the earlier variance, which of course is at the heart of the controversy between petitioners and respondents.

Then, when the ZBA granted a second request for a variance—a request Rosa signed on behalf of Kuehn Manufacturing—petitioners again sought to have the variance annulled. Under these circumstances, as the owner of the land benefitted by the variance and as a signatory of the variance application on behalf of a company whose use of the property depends on the variance, Rosa could not have understood her omission to be anything other than an oversight. Indeed, respondents effectively concede Rosa’s omission from the proceeding here was a mistake.

Nor is this a case where application of the doctrine rewards the amending party’s strategic delay in naming an opposing party—a machination the Court has expressly disapproved (*Buran*, 87 NY2d at 181). Nothing in the record before us even suggests that petitioners initially omitted Rosa “in order to obtain a tactical advantage in the litigation” (*id.*). Although omission of a necessary party does not automatically establish a mistake, here there is no evidence of an attempt to game the system.

Rather, the record confirms that petitioners’ omission of Rosa was a mistake. Petitioners named Rosa in their first article 78 petition, which successfully challenged the first variance. Then, when the ZBA granted a second request for a variance—a request Rosa signed on behalf of Kuehn Manufacturing—petitioners had every reason to name her as respondent within the statutory limitations period but did not do so. Thus, the only logical conclusion is that her omission from the second petition was a mere oversight. That error does not foreclose application of the relation back doctrine. Indeed, that is the type of party conduct that the *Buran* Court had in mind when it eliminated the excusability requirement (*see id.* at 180).

Thus, the Appellate Division erroneously concluded that petitioners’ knowledge of Rosa’s identity prevented application of the relation back doctrine and rendered their claims against her time-barred.

B.

The Appellate Division did not decide but rather assumed for purposes of the analysis that Rosa shared a unity of interest with a respondent. This dispute has wound its way through the courts for 13 years and the parties understandably request that we make this determination rather than remit to the Appellate Division. Under the circumstances, we agree that the

better course is to resolve the issue now (*see e.g. Matter of Eadie v Town Bd. of Town of N. Greenbush*, 7 NY3d 306, 318 [2006]).

[2] To determine whether this second prong of the relation back test is met, it is not necessary for the parties to be joint contractors or have a joint interest; we look to whether the parties' interest "in the subject-matter is such that they stand or fall together and that judgment against one will similarly affect the other" (*Prudential Ins. Co. v Stone*, 270 NY 154, 159 [1936]). Here, as previously stated, petitioners allege that Rosa owns the property affected by the variance and owns Kuehn Manufacturing, one of the two businesses operating a nonconforming use on the land (*see* 163 AD3d 1143). The other business is owned by her son. As its owner, Rosa signed the use variance on Kuehn Manufacturing's behalf in order to obtain approval for both businesses to use the property for manufacturing purposes. Throughout this litigation, the same attorney has represented Rosa, Kuehn Manufacturing, and K-Tooling against petitioners' challenge to ZBA's determination and there has been no contention that different defenses are available to Rosa than the other respondents. The issuance of the variance and its successful defense in this proceeding is a significant concern to a family enterprise dependent on an otherwise impermissible use of the land. Under the circumstances presented, Rosa's interests are aligned with the manufacturing respondents and a judgment vacating the use variance will have similar effect on all respondents (*compare Matter of Red Hook/Gowanus Chamber of Commerce v New York City Bd. of Stds. & Appeals*, 5 NY3d 452, 457 [2005]).

Respondents argue that Rosa could only be united in interest if she could be held vicariously liable for the acts, omissions, and liabilities of K-Tooling and Kuehn Manufacturing, which simple ownership of the property subject to the variance would not necessarily establish. Simply because vicarious liability may serve as a basis for finding unity of interest does not make it a prerequisite to application of the relation back doctrine. Were that so, the doctrine would be limited to joint tortfeasors. We have never described the doctrine in such narrow terms, and adopting respondents' position would undermine the salutary purposes of the doctrine (*see Prudential Ins. Co. v Stone*, 270 NY at 159).

Rosa is united in interest with respondent Kuehn Manufacturing and, as such, petitioners satisfy *Buran's* three-pronged

test. Thus, Supreme Court erred in declining to apply the relation back doctrine and, in turn, improperly dismissed the amended petition as untimely.

IV.

All three prongs of the *Buran* test are satisfied and therefore the relation back doctrine applies. Petitioners' claim against Rosa may be treated as interposed when the proceeding was timely commenced against the originally named respondents.

Accordingly the order of the Appellate Division should be reversed, with costs, and the motions to dismiss the amended petition should be denied.

Order reversed, with costs, and motions to dismiss the amended petition denied.

Chief Judge WILSON and Judges GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

[224 NE3d 522, 201 NYS3d 332]

POLICE BENEVOLENT ASSOCIATION OF THE CITY OF NEW YORK,
INC., et al., Appellants, v CITY OF NEW YORK, Respondent.

Argued October 19, 2023; decided November 20, 2023

SUMMARY

APPEAL, on constitutional grounds, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 19, 2022. The Appellate Division (1) reversed, on the law, so much of an order of the Supreme Court, New York County (Laurence L. Love, J.; op 2021 NY Slip Op 34014[U] [2021]), insofar as appealed from as limited by the briefs, as had (a) denied, in part, defendant's motion for summary judgment seeking dismissal of the complaint; and (b) granted plaintiffs' cross-motion for summary judgment to the extent of adjudging that the words "in a manner that compresses the diaphragm" renders Administrative Code of the City of New York § 10-181 unconstitutionally vague, declaring that the section is void in its entirety, and permanently enjoining enforcement thereof; (2) granted defendant's motion; (3) denied plaintiffs' cross-motion; (4) dismissed the complaint; and (5) declared that Administrative Code of the City of New York § 10-181 as challenged is unconstitutional.

Police Benevolent Assn. of the City of N.Y., Inc. v City of New York, 205 AD3d 552, affirmed.

HEADNOTES

Local Laws — Preemption by State — Unlawful Methods of Police Restraint

1. Administrative Code of the City of New York § 10-181, which makes criminal the use of certain restraints that restrict air flow by police officers during an arrest, does not conflict with state law or regulate in a field in which the state has expressly or impliedly precluded local legislation, and is therefore a permissible exercise of local lawmaking authority. Administrative Code § 10-181 does not regulate criminal procedure, but rather defines a substantive criminal offense and, to the extent the CPL arguably preempts the field of criminal procedure, section 10-181 only incidentally touches upon a matter of criminal procedure. Although there is some overlap between Penal Law § 121.13-a and Administrative Code § 10-181, municipalities may enact laws that supplement criminal offenses established by the state. The enactment of section 121.13-a suggests only that the state determined that a departmental approach to eliminating the use of choke holds had proved insufficient. It does not establish intent to deprive the City Council of its legislative authority to enact consistent local laws regulating criminal offenses that may occur during arrest. The legislature has not preempted the

field and therefore Administrative Code § 10-181 is not rendered inconsistent with state law just because it is broader in scope than Penal Law § 121.13-a. Further, section 10-181 does not conflict with those provisions of state law that permit the necessary use of physical force, since a justification defense under Penal Law § 35.30 remains available in prosecutions for violations of the local law.

Constitutional Law — Validity of Statute — Local Law Prohibiting Methods of Police Restraint which Compress Diaphragm — Vagueness

2. Administrative Code of the City of New York § 10-181, which makes criminal police restraint of a person by sitting, kneeling, or standing on a person's chest or back specifically "in a manner that compresses the diaphragm" (§ 10-181 [a]), is not void for vagueness, as the language provides fair notice of the conduct prohibited and is sufficiently definite to avoid arbitrary or discriminatory enforcement. A person of ordinary intelligence would understand the term "compress" to have its common meaning of "to press or squeeze" or "to reduce in size, quantity, or volume." Further, the role of the diaphragm in respiration is generally understood. Reading the challenged clause in context, an ordinary person would understand that section 10-181 prohibits the application of pressure to an arrestee's chest or back through the specified actions of sitting, kneeling, or standing in a manner that impedes the person's ability to breathe by causing interference with the regular movement of the diaphragm. Criminal liability under section 10-181 does not turn on subjective or undefinable terms; rather, the text provides objective notice of the specific conduct that may trigger criminal repercussions. Moreover, Administrative Code § 10-181 sufficiently defines the conduct prohibited and therefore provides officials with clear guidelines for enforcement. Any determination of whether a violation has occurred is not left to the whim of an enforcer's own personal, subjective idea of right and wrong. Because section 10-181 does not delegate basic policy matters to law enforcement officials, judges and juries for resolution on an ad hoc, subjective basis, there is little risk of arbitrary or discriminatory enforcement.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Constitutional Law § 962; AM JUR 2d Municipal Corporations, Counties, and Other Political Subdivisions §§ 305, 306; AM JUR 2d Statutes § 226.

McKINNEY'S, Penal Law §§ 35.30, 121.13-a.

NY JUR 2d Constitutional Law §§ 429-431; NY JUR 2d Counties, Towns, and Municipal Corporations § 122; NY JUR 2d Criminal Law: Substantive Principles and Offenses §§ 156, 376; NY JUR 2d Statutes § 220.

ANNOTATION REFERENCE

See ALR Index under Certainty and Definiteness; Due Process; Municipal Corporations; Preemption.

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POINTS OF COUNSEL

DLA Piper LLP (US), New York City (*Anthony P. Coles, Michael R. Hepworth* and *Aaron J. Shaddy* of counsel), for Sergeants Benevolent Association of the City of New York and others, appellants. I. Administrative Code of the City of New York § 10-181 is unconstitutionally vague. (*People v Bright*, 71 NY2d 376; *United States v Harriss*, 347 US 612; *Hornstein v Paramount Pictures, Inc.*, 292 NY 468; *Smith v Goguen*, 415 US 566; *Connally v General Constr. Co.*, 269 US 385; *People v Cruz*, 48 NY2d 419; *Railway Conductors v Swan*, 329 US 520; *People v Berck*, 32 NY2d 567; *Christensen v Harris County*, 529 US 576; *Sexauer & Lemke v Burke & Sons Co.*, 228 NY 341.) II. Administrative Code of the City of New York § 10-181 is preempted by state law. (*Consolidated Edison Co. of N.Y. v Town of Red Hook*, 60 NY2d 99; *Matter of Chwick v Mulvey*, 81 AD3d 161; *People v Diack*, 24 NY3d 674; *New York City Health & Hosps. Corp. v Council of City of N.Y.*, 303 AD2d 69; *Sunrise Check Cashing & Payroll Servs., Inc. v Town of Hempstead*, 91 AD3d 126.)

Dechert LLP, New York City (*Steven A. Engel, Lincoln Davis Wilson* and *Eric D. Hageman* of counsel), and *Michael T. Murray*, *Police Benevolent Association of the City of New York, Inc.*, New York City (*Guarav I. Shah* and *David W. Morris* of counsel), for Police Benevolent Association of the City of New York, Inc., appellant. I. The diaphragm-compression ban violates due process. (*Johnson v United States*, 576 US 591; *People v Stuart*, 100 NY2d 412; *People v Stephens*, 28 NY3d 307; *People v Cruz*, 48 NY2d 419; *Colautti v Franklin*, 439 US 379; *People v New York Trap Rock Corp.*, 57 NY2d 371; *People v Golb*, 23 NY3d 455; *People v Dupont*, 107 AD2d 247; *People v Kleber*, 168 Misc 2d 824; *People v Berck*, 32 NY2d 567.) II. Administrative Code of the City of New York § 10-181 is preempted by state law. (*Matter of Chwick v Mulvey*, 81 AD3d 161; *People v Diack*, 24 NY3d 674; *Albany Area Bldrs. Assn. v Town of Guilderland*, 74 NY2d 372; *Consolidated Edison Co. of N.Y. v Town of Red Hook*, 60 NY2d 99; *Patrolmen's Benevolent Assn. of the City of N.Y., Inc. v City of New York*, 142 AD3d 53; *Sunrise Check Cashing & Payroll Servs., Inc. v Town of Hempstead*, 91 AD3d 126; *Mutual Pharmaceutical Co. v Bartlett*, 570 US 472; *McDonald v New York City Campaign Fin. Bd.*, 117 AD3d 540.)

Sylvia O. Hinds-Radix, Corporation Counsel, New York City

(*Richard Dearing*, *Amy McCamphill* and *Claude S. Platton* of counsel), for respondent. I. The local law's diaphragm-compression ban is not unconstitutionally vague. (*People v Bright*, 71 NY2d 376; *Hoffman Estates v Flipside, Hoffman Estates, Inc.*, 455 US 489; *Grayned v City of Rockford*, 408 US 104; *Town of Delaware v Leifer*, 34 NY3d 234; *United States v Farhane*, 634 F3d 127; *People v Ocasio*, 28 NY3d 178; *Friedman v State of New York*, 24 NY2d 528; *People v Roberts*, 31 NY3d 406; *People v Golb*, 23 NY3d 455; *People v Kozlow*, 8 NY3d 554.) II. Vagueness in the diaphragm-compression ban would not justify striking down the separate choke hold ban. (*People v Viviani*, 36 NY3d 564; *People ex rel. Alpha Portland Cement Co. v Knapp*, 230 NY 48; *People v On Sight Mobile Opticians*, 24 NY3d 1107; *Telaro v Telaro*, 25 NY2d 433.) III. The local law is not preempted by state law. (*Jancyn Mfg. Corp. v County of Suffolk*, 71 NY2d 91; *People v Cook*, 34 NY2d 100; *Garcia v New York City Dept. of Health & Mental Hygiene*, 31 NY3d 601; *Zakrzewska v New School*, 14 NY3d 469; *New York City Health & Hosps. Corp. v Council of City of N.Y.*, 303 AD2d 69; *Sunrise Check Cashing & Payroll Servs., Inc. v Town of Hempstead*, 91 AD3d 126; *New York State Club Assn. v City of New York*, 69 NY2d 211; *DJL Rest. Corp. v City of New York*, 96 NY2d 91; *People v Diack*, 24 NY3d 674; *International Franchise Assn. v City of New York*, 193 AD3d 545.)

OPINION OF THE COURT

GARCIA, J.

We are asked to determine whether section 10-181 of the Administrative Code of the City of New York, which makes criminal the use of certain restraints by police officers during an arrest, violates the New York Constitution on either preemption or due process grounds. Because section 10-181 does not conflict with state law or regulate in a field in which the state has expressly or impliedly precluded local legislation, it is a permissible exercise of local lawmaking authority. The language of the section also provides fair notice of the conduct prohibited and is sufficiently definite to avoid arbitrary or discriminatory enforcement and is therefore not void for vagueness.

I.

In July 2020, Administrative Code of the City of New York § 10-181 became law, making it a misdemeanor offense for any “person” to

“restrain an individual in a manner that restricts the flow of air or blood by compressing the windpipe

or the carotid arteries on each side of the neck, or sitting, kneeling, or standing on the chest or back in a manner that compresses the diaphragm, in the course of effecting or attempting to effect an arrest” (Administrative Code of City of NY § 10-181 [a], [b]).

Although similar legislation had been considered in prior years, the enactment of section 10-181 was spurred, in large part, by the widely publicized deaths of Eric Garner and George Floyd following the use of force by police officers during their arrests (*see* NY City Council, Transcript of the Minutes of the Stated Meeting, June 18, 2020, Local Law Bill Jacket, Local Law No. 66 [2020] of City of NY).

Soon after Administrative Code § 10-181 took effect, plaintiff Police Benevolent Association of the City of New York and 16 other law enforcement unions commenced this action against the City seeking a declaration that section 10-181 is unconstitutional. Plaintiffs alleged that section 10-181 is field and conflict preempted by a combination of state laws governing the arrest authority of police officers (*see e.g.* CPL 140.10 [3]), establishing the defense of justification (*see e.g.* Penal Law § 35.30), and criminalizing strangulation-related offenses—including then-newly enacted Penal Law § 121.13-a, which made it a felony for police and peace officers to cause serious physical injury or death through the use of certain types of restraints, including choke holds (*see* L 2020, ch 94). Plaintiffs also asserted that Administrative Code § 10-181 violates the State Constitution’s due process clause and is void for vagueness because the portion of the law relating to compression of an arrestee’s diaphragm fails to give adequate notice of the conduct prohibited. To support their vagueness challenge, plaintiffs submitted affidavits by two former New York City Police Department officials who averred that police officers would not understand what it means to “compress” an arrestee’s “diaphragm” and would not be able to discern, at any given point during an arrest, whether they are in fact “compressing” the diaphragm. Plaintiffs also proffered affidavits from two medical experts, both of whom opined that Administrative Code § 10-181 was “vague and confusing.” Plaintiffs ultimately sought to permanently enjoin the local law’s enforcement.

In response, the City argued that Administrative Code § 10-181 constituted a proper exercise of its constitutional home

rule authority that neither regulated in a preempted field nor conflicted with state law. As to plaintiffs' vagueness claim, the City proffered NYPD training materials illustrating that officers are instructed regarding the movement and function of the diaphragm, and that officers are trained not to use choke holds or to sit, kneel, or stand on the chests or backs of arrestees.

Supreme Court granted plaintiffs summary judgment and enjoined enforcement of Administrative Code § 10-181, declaring that the local law's diaphragm compression language was "unconstitutionally vague" and rendered it "void in its entirety" (2021 NY Slip Op 34014[U], *17 [Sup Ct, NY County 2021]). The court first rejected plaintiffs' preemption claims, holding that plaintiffs had failed to demonstrate either that the state legislature preempted the field of arrest restraints or that section 10-181 is conflict preempted. However, the court concluded that section 10-181 is void for vagueness because it failed to provide sufficient "guidance on the meaning" of the phrase "compresses the diaphragm," as evidenced by the NYPD training materials' lack of guidance on the meaning of the phrase and broad instruction to avoid sitting, kneeling, or standing on an arrestee's torso (2021 NY Slip Op 34014[U], *14 [Sup Ct, NY County 2021]).

The Appellate Division reversed, granted the City's motion for summary judgment dismissing the complaint in its entirety, denied plaintiffs' cross-motion, and declared that Administrative Code § 10-181, as challenged, is constitutional (205 AD3d 552, 552 [1st Dept 2022]). The Appellate Division agreed with Supreme Court that section 10-181 is not preempted but held that the lower court "should not have found the diaphragm compression ban to be unconstitutionally vague" (205 AD3d at 553). Acknowledging that the diaphragm compression language may be imprecise, the Appellate Division nonetheless concluded that section 10-181 is "sufficiently definite to give notice of the prohibited conduct and does not lack objective standards or create the potential for arbitrary or discriminatory enforcement" (205 AD3d at 553). The Appellate Division rejected plaintiffs' claim that it might be impossible to assess whether a person's diaphragm was being "compressed," stating that "[a] trained police officer will be able to tell when the pressure [they are] exerting on a person's chest or back, in the vicinity of the diaphragm, is making it hard for the person to breathe" (*id.* at 553-554).

Plaintiffs appealed to this Court as of right on constitutional grounds (*see* CPLR 5601 [b] [1]), and we now affirm.

II.

The constitutional home rule provision authorizes municipalities to adopt local laws pertaining to the “government, protection, order, conduct, safety, health and well-being” of their citizens, so long as such local laws are “not inconsistent” with the constitution or general state laws (NY Const, art IX, § 2 [c] [10]). The doctrine of preemption acts as a significant restriction on the home rule powers of municipalities. Local laws may be inconsistent with and preempted by state law either because the legislature has occupied the relevant field of regulation or because the local law conflicts with state law (*see Albany Area Bldrs. Assn. v Town of Guilderland*, 74 NY2d 372, 377 [1989]).

Field preemption “prohibits a local government from legislating in a field or area of the law where the ‘[l]egislature has assumed full regulatory responsibility’ ” (*People v Torres*, 37 NY3d 256, 265 [2021], quoting *DJL Rest. Corp. v City of New York*, 96 NY2d 91, 95 [2001]). When the State has assumed that responsibility and preempted the entire field, “a local law regulating the same subject matter is deemed inconsistent” with state law for purposes of the home rule provision if it either “prohibits conduct which the [s]tate law, although perhaps not expressly speaking to, considers acceptable or at least does not proscribe or . . . imposes additional restrictions on rights granted by [s]tate law” (*Jancyn Mfg. Corp. v County of Suffolk*, 71 NY2d 91, 97 [1987] [citations omitted]; *see New York State Club Assn. v City of New York*, 69 NY2d 211, 221-222 [1987], *affd* 487 US 1 [1988]; *Monroe-Livingston Sanitary Landfill v Town of Caledonia*, 51 NY2d 679, 683 [1980]). Permitting such laws “to operate in a field preempted” by the State “would tend to inhibit the operation of the State’s general law and thereby thwart the operation of the State’s overriding policy concerns” (*Jancyn Mfg. Corp.*, 71 NY2d at 97; *see Incorporated Vil. of Nyack v Daytop Vil.*, 78 NY2d 500, 505 [1991]).

The state legislature’s intent to preempt local legislation need not be expressly stated. Intent to occupy a field to the exclusion of local legislation can be implied from a declaration of state policy, the State’s enactment of a “comprehensive and detailed regulatory scheme in a particular area,” or “from the nature of the subject matter being regulated and the purpose and scope of the [s]tate legislative scheme, including the need

for [s]tate-wide uniformity in a given area” (*People v Diack*, 24 NY3d 674, 679 [2015] [internal quotation marks and citations omitted]; see *Albany Area Bldrs. Assn.*, 74 NY2d at 377; *Consolidated Edison Co. of N.Y. v Town of Red Hook*, 60 NY2d 99, 105 [1983]). Plaintiffs argue that the State has occupied the field of physical restraints used during arrest and that Administrative Code § 10-181 is preempted by a combination of state criminal procedure laws regulating arrest procedures (see CPL arts 120, 140), criminal statutes establishing statewide strangulation offenses (see Penal Law art 121), and the Penal Law provisions governing the justification defense (see Penal Law art 35). We are not persuaded.

[1] While plaintiffs are correct that the legislature has established an “integrated and comprehensive system of laws” administering criminal procedure statewide (*People v Douglass*, 60 NY2d 194, 205 [1983]), in our view, Administrative Code § 10-181 is not fairly characterized as regulating criminal procedure. Rather, the local law defines a substantive criminal offense and to the extent the CPL arguably preempts the field of criminal procedure, we conclude section 10-181 “only incidentally” touches upon a matter of criminal procedure (*DJL Rest. Corp.*, 96 NY2d at 97).

As to the relevant substantive criminal offenses defined in state law, article 121 of the Penal Law codifies various strangulation and obstruction of breathing crimes, and there is undisputedly some overlap between section 121.13-a and Administrative Code § 10-181. Plaintiffs highlight the chronology: the state legislature enacted the Eric Garner Anti-Chokehold Act (Penal Law § 121.13-a) shortly before the City Council passed Administrative Code § 10-181. Penal Law § 121.13-a makes it a felony for police or peace officers to cause serious physical injury or death during an arrest by criminally obstructing breathing or using choke holds to intentionally impede breathing. Administrative Code § 10-181 likewise criminalizes the use of choke holds. But the local law also prohibits certain conduct that restricts air flow by sitting, kneeling, or standing on a person’s chest or back in a manner that compresses the diaphragm, and a violation of section 10-181 requires neither a specific intent to impede breathing nor the infliction of serious physical injury or death.

We have long recognized that municipalities may enact laws that supplement criminal offenses established by the State (see e.g. *People v New York Trap Rock Corp.*, 57 NY2d 371, 377-378

[1982]; *People v Judiz*, 38 NY2d 529, 531-532 [1976]; *People v Lewis*, 295 NY 42, 50 [1945]; *see also Torres*, 37 NY3d at 267). Moreover, “[t]he mere fact that a local law may deal with some of the same matters touched upon by [s]tate law does not render the local law invalid” (*Judiz*, 38 NY2d at 531-532 [internal quotation marks and citation omitted]; *see Jancyn Mfg. Corp.*, 71 NY2d at 99; *New York Trap Rock Corp.*, 57 NY2d at 378). Nothing in article 121 of the Penal Law, including the enactment of section 121.13-a, evinces a general preemptive intent. While the state legislature believed section 121.13-a was necessary in part due to the apparent ineffectiveness of the NYPD’s *departmental* ban on the use of choke holds (*see* Assembly Mem in Support, Bill Jacket, L 2020, ch 94 at 6-7), this suggests only that the State determined that a departmental approach to eliminating the use of choke holds had proved insufficient. It does not establish intent to deprive the City Council of its legislative authority to enact consistent local laws regulating criminal offenses that may occur during arrest (*see Vatore v Commissioner of Consumer Affairs of City of N.Y.*, 83 NY2d 645, 650 [1994]; *Jancyn Mfg. Corp.*, 71 NY2d at 98-99; *Judiz*, 38 NY2d at 531-532; *compare Diack*, 24 NY3d at 683-684).

Plaintiffs argue that the justification defenses set forth in Penal Law article 35 support their claim, but these statutes in fact weigh against a determination of field preemption. It is undisputed that the Penal Law provisions defining the justifiable use of force are available to defendants in prosecutions arising under Administrative Code § 10-181. The justification defense is available in “any prosecution for an offense” (Penal Law § 35.00) which, by definition, includes violations of local laws or ordinances that carry sentences of imprisonment or fines (*see* Penal Law § 10.00 [1]). Penal Law § 35.30 specifically addresses the justification defense as applicable to the “use of physical force in making an arrest.” By providing section 35.30 as a defense to “any prosecution for an offense,” including local offenses related to use of force in making an arrest (Penal Law § 35.00), the legislature has left room for local governments to designate substantive offenses related to such conduct by police officers. We therefore reject plaintiffs’ contention that Administrative Code § 10-181 encroaches upon a preempted field.

Nor does Administrative Code § 10-181 directly or expressly conflict with state law. Plaintiffs’ conflict preemption argu-

ments distill to a claim that section 10-181 prohibits conduct that is not prohibited by Penal Law § 121.13-a. However, as we have explained, if the measure of conflict preemption was merely whether local laws prohibit conduct not proscribed by state law, “‘the power of local governments to regulate would be illusory’” (*New York State Club Assn.*, 69 NY2d at 221, quoting *People v Cook*, 34 NY2d 100, 109 [1974]). Local laws will often “prohibit something permitted elsewhere in the [s]tate. That is the essence of home rule” (*Cook*, 34 NY2d at 109). A local law is invalid because it prohibits that which state law allows “only where the [l]egislature has shown its intent to preempt the field” (*Vatore*, 83 NY2d at 651). Although this aspect of field preemption has sometimes been confused with inconsistency for purposes of conflict preemption (see e.g. *Zakrzewska v New School*, 14 NY3d 469, 480 [2010]; *Consolidated Edison Co. of N.Y.*, 60 NY2d at 107-108; *Engelman v Rofe*, 194 AD3d 26, 30 [1st Dept 2021]), a local law is conflict preempted only if it directly or expressly conflicts with state law (see *DJL Rest. Corp.*, 96 NY2d at 95; *New York State Club Assn.*, 69 NY2d at 222 [conflict exists where the state “specifically permits the conduct prohibited at the local level”]).

As we have now clarified, the legislature has not preempted the field and therefore Administrative Code § 10-181 is not rendered inconsistent with state law just because it is broader in scope than Penal Law § 121.13-a (see *Jancyn Mfg. Corp.*, 71 NY2d at 100). There can be no serious contention that the State specifically permits the conduct prohibited by section 10-181 (see *New York State Club Assn.*, 69 NY2d at 221-222). Further, section 10-181 does not conflict with those provisions of state law that permit the necessary use of physical force (see Penal Law § 35.30), since a justification defense remains available in prosecutions for violations of the local law. Therefore, Administrative Code § 10-181 is a valid exercise of the City’s municipal lawmaking authority.

III.

Plaintiffs also assert that the local law’s prohibition on restricting air flow by sitting, kneeling, or standing on a person’s chest or back specifically “in a manner that compresses the diaphragm” (Administrative Code § 10-181 [a]) is incapable of definition or common understanding and therefore violates due process. We disagree.

“It is a fundamental requirement of due process that a criminal statute must be stated in terms which are reasonably def-

inite” (*People v Cruz*, 48 NY2d 419, 423-424 [1979]). However, local laws—like state statutes—enjoy an “‘exceedingly strong presumption of constitutionality’” (*People v Stephens*, 28 NY3d 307, 312 [2016], quoting *Lighthouse Shores v Town of Islip*, 41 NY2d 7, 11 [1976]), and a facial attack on vagueness grounds requires the challenger to “carry the heavy burden of showing that the [law] is impermissibly vague in *all* of its applications” (*People v Stuart*, 100 NY2d 412, 421 [2003] [internal quotation marks and citations omitted]). Furthermore, we have recognized that facial unconstitutionality is demonstrated only “when vagueness permeates a [law] to the point where ‘no standard of conduct is specified at all’ or where the vagueness in the [law] is so great that it permits [those enforcing it] to exercise unfettered discretion in every single case” (*Stuart*, 100 NY2d at 421 [citations omitted], quoting *Coates v Cincinnati*, 402 US 611, 614 [1971]; see *People v Bright*, 71 NY2d 376, 383 [1988]).

The vagueness test is a two-step inquiry. First, the Court must determine “whether the statute in question is ‘sufficiently definite “to give a person of ordinary intelligence fair notice that [their] contemplated conduct is forbidden”’” (*Stuart*, 100 NY2d at 420, quoting *People v Nelson*, 69 NY2d 302, 307 [1987]; see *Torres*, 37 NY3d at 264). If the statute provides fair notice, the Court must then assess “‘whether the enactment provides officials with clear standards for enforcement’ so as to avoid ‘resolution on an ad hoc and subjective basis, with the attendant dangers of arbitrary and discriminatory application’” (*Stephens*, 28 NY3d at 312, quoting *Stuart*, 100 NY2d at 420-421). Although bifurcated, the questions are closely related; a local law too vague to put potential offenders on notice of the conduct prohibited likewise lacks “objective standards to guide those enforcing the laws” and permits enforcement based upon “personal, subjective idea[s] of right and wrong” (*Bright*, 71 NY2d at 383). “The use of precise language will ensure that both requirements are met” (*Stuart*, 100 NY2d at 421).

[2] Plaintiffs’ vagueness challenge targets the diaphragm compression language in Administrative Code § 10-181. Initially, the failure of a legislature to define the terms of an enactment does not itself render a law void for vagueness (see generally *People v Garson*, 6 NY3d 604, 617 n 7 [2006]). Here, a person of ordinary intelligence would understand the term “compress” to have its common meaning: “to press or squeeze” or “to reduce in size, quantity, or volume” (Merriam-

Webster.com Dictionary, compress [<https://www.merriam-webster.com/dictionary/compress>]). Further, as evidenced by plaintiffs' expert affidavits, the role of the diaphragm in respiration is generally understood. Contraction of the diaphragm enlarges space in the chest cavity, allowing the lungs to expand and fill with air upon inhalation. Conversely, when the diaphragm relaxes, the lungs deflate and expel air. Movement of the diaphragm in this manner is known to be an integral component of respiration. Significantly, Administrative Code § 10-181's reference to compression of the diaphragm "cannot be viewed in isolation, for it is but one element of a statute that gives greater definition to the proscribed conduct" (*People v Shack*, 86 NY2d 529, 539 [1995]). Reading the challenged clause in context, an ordinary person would understand that section 10-181 prohibits the application of pressure to an arrestee's chest or back through specified actions—sitting, kneeling, or standing—in a manner that impedes the person's ability to breathe by causing interference with the regular movement of the diaphragm.

Many of plaintiffs' objections to the statutory language raise proof issues for any prosecution, but difficulty in proving prohibited conduct does not render a statute void for vagueness; rather, "indeterminacy" as to what precisely is prohibited is the fatal flaw (*United States v Williams*, 553 US 285, 306 [2008]; see *People v Pagnotta*, 25 NY2d 333, 339 [1969]). In *People v Bright*, for example, we struck down a law prohibiting loitering without a "satisfactory explanation" because police officers were afforded complete discretion to determine whether a given explanation met the test and the law therefore provided ordinary citizens no notice of what conduct was prohibited (71 NY2d at 385). Similarly, in *People v New York Trap Rock Corp.*, we held unconstitutional a noise ordinance that "impermissibly would support a conviction on any sound which annoys another person"—a purely subjective standard that amounted to "no standard at all" (57 NY2d at 380). By contrast, criminal liability under Administrative Code § 10-181 does not turn on subjective or undefinable terms. The text of section 10-181 provides objective notice of the specific conduct that may trigger criminal repercussions—namely, the application of pressure through sitting, kneeling, or standing on a person's back or chest in a manner that "compresses the diaphragm" so as to "restrict[] the flow of air" (Administrative Code § 10-181 [a]).

At its core, plaintiffs' vagueness challenge rests on their contention that it is difficult for a potential offender to discern

exactly when sitting, kneeling, or standing on a person's chest or back results in compression of an arrestee's diaphragm. Even accepting the position expressed in plaintiffs' affidavits that the language of Administrative Code § 10-181 may be imprecise from a technical or medical standpoint, that would not render the law fatally vague if it nonetheless "conveys sufficiently definite warning as to the proscribed conduct when measured by common understanding and practices" (*Shack*, 86 NY2d at 538, quoting *United States v Petrillo*, 332 US 1, 8 [1947]; see *People v Illardo*, 48 NY2d 408, 414 [1979]). Both private citizens and law enforcement officers have long been required to gauge the impact of physical force used against others to ensure their employment of force is consistent with statutorily delineated parameters (see Penal Law art 35). As the Appellate Division stated, that the term compression "may not be the most accurate word, from a medical standpoint, to describe what happens to the diaphragm when someone sits, kneels, or stands on it does not mean that it is incapable of being understood" (205 AD3d at 553). Courts have long recognized that, "[c]ondemned to the use of words, we can never expect mathematical certainty from our language" (*Illardo*, 48 NY2d at 414, quoting *Grayned v City of Rockford*, 408 US 104, 110 [1972]).

Inasmuch as we measure vagueness by the face of the local law (see *People v Firth*, 3 NY2d 472, 474 [1957]), the NYPD's decision to broadly caution officers against putting any pressure on an arrestee's torso neither injects uncertainty into section 10-181 nor suggests that its prohibition is incapable of being understood. Nor is the local law rendered vague by the absence of a requirement that the offender specifically intend to restrict breathing or cause injury beyond the restriction of air flow. Section 10-181 permissibly "prohibits a certain intentional course of conduct regardless of the wrongdoer's underlying purpose or motive" (*Nelson*, 69 NY2d at 307-308; see *Stuart*, 100 NY2d at 426).

We recognize that police officers are called upon to respond to dangerous and volatile situations requiring real-time assessment of the level of force necessary to safeguard the public and ensure officer safety. However, for criminal liability to attach under the challenged portion of Administrative Code § 10-181, a particular type of pressure must be voluntarily—not accidentally—applied to an arrestee's chest or back (see Penal Law § 15.10), and such conduct must fall outside the parameters of justifiable use of physical force (see Penal Law art 35).

Turning to the second prong of the vagueness analysis, Administrative Code § 10-181 sufficiently defines the conduct prohibited—that is, specific physical contact with particular areas of the body in a manner that produces a certain result—and therefore provides officials with clear guidelines for enforcement. Any determination of whether a violation has occurred is not left to the whim of an enforcer’s “own personal, subjective idea of right and wrong” (*Bright*, 71 NY2d at 383). Because section 10-181 does not “delegate[] basic policy matters to law enforcement officials, Judges and juries for resolution on an ad hoc, subjective basis” (*People v Foley*, 94 NY2d 668, 681 [2000]), we discern little risk of arbitrary or discriminatory enforcement.

Plaintiffs have failed to meet their burden of demonstrating that Administrative Code § 10-181 is either preempted or void for vagueness on its face. Accordingly, the order of the Appellate Division should be affirmed, with costs.

Order affirmed, with costs.

Chief Judge WILSON and Judges RIVERA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

[225 NE3d 859, 202 NYS3d 740]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY DEBELLIS, Appellant.

Argued March 16, 2023; reargued October 19, 2023; decided November 21, 2023

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 19, 2022. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (David L. Lewis, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the second degree, criminal possession of a weapon in the third degree, and criminal possession of a firearm.

People v Debellis, 205 AD3d 555, reversed.

HEADNOTE

Crimes — Right to Counsel — Effective Representation — Requesting Meritless Jury Instruction Rather than Instruction on Defense Supported by Evidence

Defendant was deprived of the effective assistance of counsel in his prosecution for criminally possessing a gun which he testified he had possessed unlawfully for over a year before placing it in his vehicle for the purpose of voluntarily surrendering it to the police department in exchange for money, where defense counsel unsuccessfully requested a meritless jury instruction on the temporary and lawful possession defense, rather than an instruction on the defense of voluntary surrender. A failure to present a crucial defense supported by the evidence constitutes ineffective assistance. Counsel knew that his client's explanation was that he was traveling to turn the gun in to a gun buyback program. However, after announcing that line of defense in his opening statement and supporting it through defendant's trial testimony, counsel failed to request the only jury instruction that would give it any legal weight—a defense of voluntary surrender under Penal Law § 265.20 (a) (1) (f). Counsel premised his case instead on the common-law defense of temporary and lawful possession, which was inapplicable given the length of time defendant had possessed the weapon in contravention of a preexisting court order. Moreover, forfeiting the instruction that would have provided a legal basis for the exact defense supported by trial testimony and counsel's own argument to the jury could not reflect a reasonable and legitimate strategy under the circumstances and evidence presented.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Criminal Law §§ 1111–1114, 1116.
CARMODY-WAIT 2d Right to Counsel § 184:271.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 11.7, 11.10.

McKINNEY'S, Penal Law § 265.20 (a) (1) (f).

NY JUR 2d Criminal Law: Procedure § 943; NY JUR 2d Criminal Law: Substantive Principles and Offenses § 1885.

ANNOTATION REFERENCE

See ALR Index under Attorneys; Instructions to Jury.

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Query: effective /6 counsel & request! /4 charge & voluntary /2 surrender

POINTS OF COUNSEL

Mark Zeno, Center for Appellate Litigation, New York City (Matthew Bova of counsel), for appellant. I. Counsel's unreasonable failure to request the voluntary-surrender instruction constituted ineffective assistance of counsel. (*Martinez v Ryan*, 566 US 1; *Hinton v Alabama*, 571 US 263; *People v Turner*, 5 NY3d 476; *Strickland v Washington*, 466 US 668; *People v Droz*, 39 NY2d 457; *People v Nesbitt*, 20 NY3d 1080; *People v Bennett*, 29 NY2d 462; *Nix v Whiteside*, 475 US 157; *People v Caban*, 5 NY3d 143; *People v Benevento*, 91 NY2d 708.) II. Counsel was also ineffective at sentencing on conflict-of-interest grounds as he took an adverse position to Anthony Debellis' motion to set aside the verdict. (*People v Mitchell*, 21 NY3d 964; *People v Ortiz*, 76 NY2d 652; *People v Carncross*, 14 NY3d 319; *Wheat v United States*, 486 US 153; *People v Washington*, 25 NY3d 1091; *People v Nelson*, 7 NY3d 883; *People v Phillip*, 200 AD3d 1108; *People v Lee*, 188 AD3d 1685; *People v Caputo*, 163 AD3d 983; *People v Solomon*, 20 NY3d 91.)

Darcel D. Clark, District Attorney, Bronx (R. Grace Phillips and Yael V. Levy of counsel), for respondent. I. Defense counsel provided effective assistance when he pursued two reasonable strategies, attacked the people's witnesses and evidence, and would have obtained a jury instruction on the defense of temporary and innocent possession but for defendant's decision to testify against his advice. (*Strickland v Washington*, 466 US 668; *People v Benevento*, 91 NY2d 708; *People v Baldi*, 54 NY2d 137; *People v Caban*, 5 NY3d 143; *People v Williams*, 124 AD2d

993; *People v Mendoza*, 33 NY3d 414; *People v Taylor*, 1 NY3d 174; *People v White*, 73 NY2d 468; *People v Maffei*, 35 NY3d 264; *People v Zona*, 14 NY3d 488.) II. Counsel's decision not to adopt defendant's unfiled, unserved, and unsubstantiated papers and terse statement that he believed he was effective in response to defendant's attack on his representation did not create a conflict of interest. (*People v Ventura*, 66 NY2d 693; *Broughton v State of New York*, 37 NY2d 451; *People v Brown*, 45 NY2d 852; *People v Medina*, 44 NY2d 199; *People v Mitchell*, 21 NY3d 964; *People v Washington*, 25 NY3d 1091; *People v Quintana*, 15 AD3d 299; *People v Porto*, 16 NY3d 93.)

OPINION OF THE COURT

Chief Judge WILSON.

The right to the effective assistance of counsel is guaranteed by both the Federal and State Constitutions and constitutes an "essential ingredient in our system of criminal jurisprudence, rooted deeply in our concept of a fair trial within the adversarial context" (*People v Benevento*, 91 NY2d 708, 711 [1998], quoting *People v Felder*, 47 NY2d 287, 295 [1979]). Here, counsel failed to request a charge on the only defense supported by the trial testimony, instead seeking (and failing to obtain) a charge foreclosed by the trial testimony. Therefore, Mr. Debellis's conviction must be reversed and a new trial ordered.

Anthony Debellis was stopped while driving a friend's car with an expired registration on the Bronx River Parkway. When the officer asked Mr. Debellis for his license and registration, Mr. Debellis provided neither. Instead he pulled his hand out of his jacket pocket, revealing a magazine clip, at which point the officer had Mr. Debellis exit the car. The officer's frisk of Mr. Debellis produced nothing; when the officer asked Mr. Debellis if there were weapons in the car, Mr. Debellis said there were not. The officer searched the car, found a bag with more ammunition and a holster, and asked Mr. Debellis what he was doing with that. Mr. Debellis said he had a fight with his wife and left in a hurry with the bag. On further questioning, Mr. Debellis said he had a permit that had been revoked. Mr. Debellis also provided his brother's name to the police officer rather than his own.

A lieutenant arrived and questioned Mr. Debellis; the lieutenant also searched the car, finding nothing additional. Because Mr. Debellis was unable to get in touch with the registered

owner of the vehicle, the police decided the car would be towed. While waiting for the tow truck, Mr. Debellis asked if he could retrieve his phone charger from the car. The officer allowed him to do so, and observed him fiddling under the front seat, though the charger was visible on the passenger seat. The officer then returned to the car to examine the area that Mr. Debellis had been reaching into and recovered a gun from the area under the front seat. Mr. Debellis was then placed under arrest. In total, the stop took about two hours. The officer testified that Mr. Debellis was not in any way threatening during this time; the entire two-hour encounter appears on the dash-cam video, which is part of the record.

Mr. Debellis was charged with criminal possession of a weapon (Penal Law § 265.03 [3]), among other offenses. During opening statements at trial, defense counsel set out the facts that he intended to prove to establish Mr. Debellis's defense: Mr. Debellis's wife threw him out of the house because he was broke and not earning any money, so, "in a fit of desperation," Mr. Debellis took the gun and ammunition for

"a perfectly legitimate reason. . . . He was taking that gun and . . . everything else to bring to a local police department . . . to turn it in because he was broke and because he was desperate and because he had an argument with his wife and he was going to turn it in . . . [t]o get a gift card for turning in weapons."

At trial, both Mr. Debellis and defense counsel admitted that Mr. Debellis had possessed the weapon without a valid license. Mr. Debellis was arrested in November 2016 for misdemeanor violation of the terms of his firearm license, and pleaded guilty in March 2017, 18 months before his arrest in this case. In addition, Mr. Debellis was subject to an order of protection, dated 14 months before his arrest in this case, that required him to turn in all firearms. Mr. Debellis admitted that he did not do so, instead leaving the weapon in a safe in the home where his wife and children lived.

However, Mr. Debellis's testimony supported his attorney's opening statement as to his defense—that he was taking the gun to surrender it voluntarily pursuant to a gun buyback program. Mr. Debellis testified that he had been a longtime maintenance worker for the court system, but became addicted to opioids when prescribed them after a car accident which

crushed his hand and fingers. As a result of the financial, legal, and marital problems caused by his addiction, at the time of his arrest he was living in the Bronx with his mother. Mr. Debellis testified that on the day of his arrest, he went to the home in Carmel where his wife and two children lived to help plan his son's birthday. Mr. Debellis admitted he was barred from the home by an order of protection, although he clarified that the order did not concern violence against his children or family. According to Mr. Debellis, while he was at the home he and his wife got into an argument about finances, so he took the gun with the intent of bringing it to the Bronx to turn it over to the police through a gun buyback program. Mr. Debellis testified that he had researched gun buyback programs and believed the NYPD program would let him turn in the gun for cash or a gift card. He stated that he was desperate due to his marital and financial issues and that this was the only way he could think of to get money.

Defense counsel asked for a jury charge of temporary and lawful possession. The court refused to give that charge to the jury because Mr. Debellis's possession was not temporary. Mr. Debellis had admitted that he had the gun for over a year after his license was revoked, and temporary and lawful possession requires that the defendant possess the gun "only long enough to dispose of it safely" (CJI2d[NY] Possession—Temporary and Lawful Possession; see *People v Williams*, 36 NY3d 156, 160-161 [2020]). Defense counsel did not request a charge for voluntary surrender under Penal Law § 265.20 (a) (1) (f), which immunizes from prosecution for criminal possession of a weapon persons turning in a weapon "in accordance with such terms and conditions as may be established by [a] . . . police force or department." Instead, after the trial court refused to charge the jury on temporary and lawful possession, defense counsel apparently aimed his closing argument at jury nullification.

The jury, having been presented with uncontested evidence that Mr. Debellis possessed a weapon without a license and no instruction on any defense, convicted him of second-degree criminal possession of a weapon, third-degree criminal possession of a weapon, and criminal possession of a firearm.

On appeal, Mr. Debellis argued that his counsel erred by requesting an instruction on temporary and lawful possession rather than the statutory defense of voluntary surrender (Penal Law § 265.20 [a] [1] [f]), and that this deprived him of the ef-

fective assistance of counsel. The Appellate Division affirmed (205 AD3d 555 [1st Dept 2022]).

In New York, the standard for effective assistance is “meaningful representation” by counsel (*Benevento*, 91 NY2d at 712). Our standard is more protective than the federal standard because “even in the absence of a reasonable probability of a different outcome, inadequacy of counsel will still warrant reversal whenever a defendant is deprived of a fair trial” (*People v Caban*, 5 NY3d 143, 156 [2005]). To establish ineffective assistance, a defendant must “demonstrate the absence of strategic or other legitimate explanations” for counsel’s allegedly deficient conduct (*People v Rivera*, 71 NY2d 705, 709 [1988]).

Even under the more demanding federal standard, “[a]n attorney’s ignorance of a point of law that is fundamental to his case combined with his failure to perform basic research on that point is a quintessential example of unreasonable performance” (*Hinton v Alabama*, 571 US 263, 274 [2014]). We have previously held that a failure to present a crucial defense supported by the evidence constitutes ineffective assistance. In *People v Nesbitt* (20 NY3d 1080 [2013]), the defendant was accused of assault in the first degree. Counsel informed the court on the record that he believed his client had no defense to the charge of first-degree assault, did not request the submission of second-degree assault as a lesser included offense, and essentially conceded to the jury his client’s guilt on the first-degree charge (*id.* at 1081). However, the record afforded a “good-faith basis” for finding that the victim’s injuries amounted only to second-degree assault (*id.* at 1082). We held that “counsel’s error in overlooking that issue rendered his assistance to defendant ineffective” (*id.*).

Here, counsel knew that his client’s explanation was that he was traveling to turn the gun in to the NYPD gun buyback program. Indeed, in his opening statement, counsel admitted to the elements of the crime of criminal possession of a weapon and offered a defense, explaining that Mr. Debellis, in desperate need of money, was transporting the gun to a police buyback program in the Bronx.

However, after announcing that line of defense and supporting it through Mr. Debellis’s trial testimony, counsel failed to request the only jury instruction that would give it any legal weight—a defense of voluntary surrender under Penal Law § 265.20 (a) (1) (f). Counsel premised his case instead on the

common-law defense of temporary and lawful possession, which was completely inapplicable given the length of time Mr. Debellis had possessed the weapon in contravention of a preexisting court order that he had to divest himself of all firearms.¹ Even after the court explicitly told counsel that it would not instruct the jury on temporary and lawful possession because it did not fit the evidence, counsel failed to request an instruction on the statutory defense that fit his client's testimony and counsel's own argument to the jury.

Voluntary surrender under Penal Law § 265.20 (a) (1) (f) applies to a person voluntarily surrendering a weapon to the police commissioner or designee of the city, town, or village in which the person resides in accordance with the terms and conditions established by the commissioner or designee. The purpose of this defense is to encourage persons with illegal firearms to turn them in—regardless of how long the person has had them—so as to enhance public safety by reducing the number of illegal weapons in circulation. Unlike the temporary and lawful possession defense, the voluntary surrender defense contains no time limit on possession of the illegal firearm. That difference was crucial to Mr. Debellis, who testified that he possessed the weapon unlawfully for over a year before deciding to surrender it voluntarily.

Thus, Mr. Debellis's testimony precluded the defense of temporary and lawful possession. However, he would have been entitled to a jury charge on the statutory defense of voluntary surrender if requested by counsel. Mr. Debellis testified that he had researched the NYPD gun buyback program and was on his way to surrender his gun to police in the Bronx, the borough in which he then resided. There is no indication that this would have failed to comply with the terms and conditions of the NYPD gun return program.² Although Mr. Debellis falsely told the officer that no weapon was located in the car, that false-

1. Under our precedent, even a few hours of possession is often not sufficiently temporary. In *People v Snyder* (73 NY2d 900 [1989]), we held that where the defendant kept a gun overnight after acquiring it in a bar fight instead of turning it over immediately, the defense was not applicable. Similarly, in *People v Banks* (76 NY2d 799, 801 [1990]), we held that the defendant's decision after coming into possession of the firearm to transport it on the subway to a different borough, where he stated that he intended to dispose of it by throwing it down the sewer, was "utterly at odds with any claim of innocent possession."

2. We note that the statutory defense is available to Mr. Debellis as long as he intended to voluntarily surrender the gun in accordance with the

(n. cont'd)

hood does not deprive him of his right to have the trier of fact consider whether he was, in fact, on his way to trade the gun for money or a gift card at a buyback program, and did not disclose it to the officer because he was afraid or believed he would not receive any compensation.

The jury, of course, would have had every right not to credit Mr. Debellis's testimony. But even if the trial court believed that Mr. Debellis's testimony was far-fetched, that cannot justify his lawyer's request for a meritless jury instruction instead of an instruction that fit the very theory of the case he announced in his opening statement when Mr. Debellis's testimony supported that—and only that—defense. Where evidence exists upon which the jury could reasonably find that a particular defense applies, questions as to the credibility of the defendant's testimony or inconsistencies in the evidence presented do not disentitle the defendant to an instruction on the defense; those questions of fact are to be resolved by the jury (see *People v Zona*, 14 NY3d 488, 494-495 [2010]). Here, the dissent's identification of facts that could lead one to believe that Mr. Debellis's testimony was not credible makes out a good closing argument for the prosecution to make to the jury—which is exactly the point: the jury was deprived of the opportunity to determine which account was true because counsel failed to seek an instruction that would have made that determination legally relevant. Because the evidence, “viewed in the light most favorable to the accused, sufficiently support[ed] [the] claimed defense,” Mr. Debellis would have been entitled to a jury instruction on voluntary surrender (*People v Watts*, 57 NY2d 299, 301 [1982]). That instruction would have allowed the jury to decide the case with proper consideration of the sole defense Mr. Debellis had advanced throughout the trial to justify his actions.

To the extent that there was other trial evidence that contradicted Mr. Debellis's story, this also implicates the important distinction between the federal standard and our own. If the voluntary surrender defense was unlikely to succeed, Mr. Debellis could have difficulty showing prejudice under the federal standard. But when attorney error deprives a defendant of a jury charge on the only defense supported by the evidence, it cannot be said that the defendant received a fair

statutory requirements. If Mr. Debellis were mistaken as to the terms and conditions of the gun return program, that might affect his credibility but not his eligibility for the defense.

trial. We do not require effective counsel merely to shield the seemingly innocent, but to protect the “integrity of the judicial process” by affording the “[t]he worst criminal, the most culpable individual” the same chance to be heard as “the most blameless member of society” (*People v Donovan*, 13 NY2d 148, 153-154 [1963]). Because counsel failed to provide meaningful assistance, it does not matter whether Mr. Debellis can now show a reasonable probability of a different outcome (*Caban*, 5 NY3d at 156). Under New York’s standard, Mr. Debellis was deprived of the effective assistance of counsel.

Moreover, this is not a case of a defendant suggesting we confuse “true ineffectiveness with mere losing tactics and accord[] undue significance to retrospective analysis” (*Benevento*, 91 NY2d at 712, quoting *People v Baldi*, 54 NY2d 137, 146 [1981]). No reasonable strategy could have supported counsel’s failure to request a jury charge on the statutory voluntary surrender defense while at the same time pursuing a meritless temporary and lawful possession defense. Voluntary surrender was the only defense applicable to Mr. Debellis’s testimony and the very defense counsel alluded to in presenting the case. Instead of requesting this charge, after conceding all elements of the crime, counsel advanced no defense. Although counsel may have implicitly hoped for jury nullification, forfeiting the instruction that would have provided a legal basis for the exact defense supported by trial testimony and counsel’s own argument to the jury cannot “reflect[] a reasonable and legitimate strategy under the circumstances and evidence presented” (*Benevento*, 91 NY2d at 713). As our dissenting colleagues recognize, counsel “convincingly portrayed defendant as a sympathetic individual attempting to comply with the law” (dissenting op at 446)—yet failed to request the instruction that would have identified the law with which Mr. Debellis was attempting to comply, leaving him bereft of a path to acquittal.

Finally, we reject the suggestion that our standard of meaningful representation “viewed in totality” allows us to justify ineffective performance on a core issue at trial via effective performance on ancillary pretrial issues (*Benevento*, 91 NY2d at 712, quoting *Baldi*, 54 NY2d at 147). The fact that counsel presented a “beneficial” plea deal to Mr. Debellis before trial (dissenting op at 445) does not absolve counsel of the responsibility to provide meaningful representation at trial or

to pursue the defense supported by Mr. Debellis's trial testimony.³

Because Mr. Debellis is entitled to a new trial due to ineffective assistance, we do not address Mr. Debellis's conflict-of-interest argument.

The order of the Appellate Division should be reversed and a new trial ordered.

CANNATARO, J. (dissenting). A police officer stopped defendant's car in the Bronx for an expired registration. When asked for identification, defendant failed to provide any, and instead gave a false name. When the officer observed a shiny object that appeared to be a firearm magazine in defendant's pocket, defendant admitted it was a magazine with eight bullets in it. When asked point blank if he was carrying a gun, defendant said "no." When asked whether there was a gun in the vehicle, defendant responded, "they took it away from me." In truth, however, defendant had concealed a loaded gun under the floor-mat on the driver's side of the car. The police did not find the gun during their initial search of the vehicle but did discover a duffel bag filled with 43 rounds of ammunition, a firearm holster, and another firearm magazine. At no time during the stop did defendant mention the loaded weapon under the floor-mat. Instead, based on his representations to police, he was allowed to return to the car and enter from the driver's side to retrieve a phone charger, placing him perilously close to his concealed weapon.¹ Searching the car once more, police discovered the gun and defendant was arrested. The entire interaction was recorded.

Today the majority holds that defense counsel was ineffective for not requesting a jury charge that would have allowed the jury to find that defendant's possession of the unlicensed gun was lawful because, at trial, defendant claimed for the

3. The dissent's observation that Mr. Debellis "was uncooperative and took the stand against counsel's advice" (dissenting op at 446) hardly serves to demonstrate counsel's effectiveness. Only Mr. Debellis could provide any evidence that might have entitled him to an acquittal, and it is incumbent on counsel to inform a defendant that the decision about whether to testify belongs to the defendant, not counsel (see *Brown v Artuz*, 124 F3d 73, 79 [2d Cir 1997]; Rules of Prof Conduct [22 NYCRR 1200.0] rule 1.2 [a]).

1. I do not share the majority's view of what constitutes a "threat" to officer safety (see majority op at 434), which apparently does not include a person who lies to police during a roadside stop about having a loaded gun under the floormat and then reaches for it while in the vehicle.

first time that he was on his way to a police agency to surrender the gun. Because no reasonable view of the undisputed facts supports such a charge, defendant was not entitled to it. Nor was counsel's overall performance deficient. Nevertheless, defendant, who denied having a weapon when asked by the police and who was allowed access to the area where he had hidden a loaded gun based on that false statement, thereby endangering the life of the officer who stopped him and numerous nearby civilians, now has his unlawful possession of a weapon conviction reversed by this Court. Because that result ignores the facts, lacks common sense, and is dangerous as a matter of policy, I dissent.

I.

Defendant testified at trial that he knew that an order of protection in favor of his children had been issued against him on August 29, 2018, approximately three weeks before he was stopped by police. The order of protection excluded defendant from the home he previously shared with his wife and children in the town of Carmel in Putnam County. The order also directed defendant to turn in any firearms that he possessed. Defendant further admitted that he did not have a valid firearm permit on the date in question. Nevertheless, that day, defendant went to the house in Carmel and, after arguing with his wife about finances, went to his safe and removed a loaded, 9 millimeter semi-automatic pistol, a magazine with eight 9 millimeter rounds, a bag containing an additional 43 rounds of ammunition, a holster and another firearm magazine because, as he explained, he was "upset." Defendant then brought the gun and ammunition to the Croton Falls train station, where he boarded a train and traveled approximately 30 miles to White Plains, Westchester County. Although defendant did not have a valid driver's license, he nevertheless retrieved a friend's 2016 BMW and proceeded to drive it into Bronx County, where he was stopped by police who noted that the vehicle's registration was suspended. When asked for identification, defendant gave police his brother's name, address and date of birth.

During the stop, police observed a magazine clip in defendant's pocket and, after asking defendant to exit the vehicle, found the bag of ammunition. Defendant explained that he had left his house with the bag after fighting with his wife but repeatedly denied having a gun in the car because, as he testi-

fied, “it wasn’t gonna do any good telling [the police] I had a gun in the car.” But when police allowed defendant to go back into the car to retrieve a phone charger, he did not take the charger from its visible location on the passenger seat but instead spent “some time” rummaging into various areas of the vehicle. Having observed defendant’s suspicious behavior, the police searched the car more thoroughly, discovered the loaded firearm under the floormat of the driver’s seat, and placed defendant under arrest.

At trial, defendant testified that he was bringing the gun to a police-sponsored gun buyback program and hoped to receive a \$200 gift card because he was desperate for money as a result of his addiction to prescription pain medication. He claimed that he was driving directly to a precinct in the Bronx to surrender the gun in compliance with the order of protection that had been issued three weeks earlier. Two prior orders of protection had been issued against defendant in July 2017 and August 2017, but defendant claimed that he never read them and was unaware that they also directed him to turn in his guns.² Defendant acknowledged that he had transported the gun approximately 50 miles and across three counties by the time he was stopped but explained that he was unaware of any gun buyback programs closer to his home.

After hearing this testimony, the trial court denied defendant’s earlier request for a temporary and lawful possession charge, noting that defendant admitted that he illegally possessed the weapon in his safe for over a year after he was directed to turn it in, took the loaded gun onto a public train, then secreted the weapon under the BMW’s floormat and lied to police about having a gun when directly asked. A jury convicted defendant of second-degree criminal possession of a weapon and related charges, but acquitted him of the charge of criminal possession of a controlled substance in the seventh

2. The majority implies that defendant’s gun license was revoked when he was ordered to surrender all firearms in November 2016, upon his arrest for violation of the terms of his firearm license (majority op at 434). Although defense counsel and the People appear to have agreed on that fact—and the trial court concluded that the license was revoked on July 23, 2017, when defendant was arrested for accidentally shooting a cab driver—defendant did not testify to it. Rather, consistent with the trial court’s conclusion, defendant testified that orders of protection issued against him in 2017 required him to surrender all firearms, but he claimed that he did not read those orders and was attempting to surrender the firearm three weeks after he learned that he was directed to do so in the August 2018 order of protection.

degree. Defendant now argues, and the majority agrees, that his trial counsel was ineffective for requesting an instruction on temporary and lawful possession—which the majority rejects as “completely inapplicable” (majority op at 436-437)—rather than seeking an instruction for the so-called statutory defense of voluntary surrender (*see* Penal Law § 265.20 [a] [1] [f]).³

II.

“On an ineffective assistance of counsel claim under the Sixth Amendment to the United States Constitution, a defendant must demonstrate that (1) his or her attorney committed errors so egregious that he or she did not function as counsel within the meaning of the United States Constitution, and (2) that counsel’s deficient performance actually prejudiced the defendant” (*People v Gross*, 26 NY3d 689, 693 [2016]).

In contrast, “‘New York’s constitutional requirement of effective assistance of counsel is met when ‘the evidence, the law, and the circumstances of a particular case, *viewed in totality and as of the time of the representation*, reveal that the attorney provided meaningful representation’” (*id.*, quoting *People v Benevento*, 91 NY2d 708, 712 [1998] [emphasis added]). As this Court has explained, “our state standard . . . offers greater protection than the federal test” because, “under our State Constitution, even in the absence of a reasonable probability of a different outcome, inadequacy of counsel will still warrant reversal whenever a defendant is deprived of a fair trial” (*People v Caban*, 5 NY3d 143, 155-156 [2005]). Nevertheless, this Court has “remain[ed] ‘skeptical’ of ineffective

3. Penal Law § 265.20 (a) (1) (f) provides that an individual is exempt from prosecution for the crime of criminal possession of a weapon if the “person [is] voluntarily surrendering such weapon, . . . provided that such surrender shall be made to the superintendent of the division of state police or a member thereof designated by such superintendent, or to the sheriff of the county in which such person resides, or . . . if such person resides in a city, town other than [in the county of Nassau or the towns of Babylon, Brookhaven, Huntington, Islip and Smithtown], or village to the police commissioner or head of the police force or department thereof or to a member of the force or department designated by such commissioner or head; and provided, further, that the same shall be surrendered by such person in accordance with such terms and conditions as may be established by such superintendent, sheriff, police force or department.”

assistance of counsel claims where the defendant is unable to demonstrate any prejudice at all” (*People v Alvarez*, 33 NY3d 286, 290 [2019], quoting *People v Stultz*, 2 NY3d 277, 284 [2004]). Moreover, under both the state and federal standards, “‘the defendant must overcome *the presumption* that, under the circumstances, the challenged action *might* be considered sound trial strategy’” (*People v Honghirun*, 29 NY3d 284, 289 [2017] [emphasis added], quoting *Strickland v Washington*, 466 US 668, 689 [1984]). That is, a defendant bears the burden of “‘demonstrat[ing] the absence of strategic or other legitimate explanations’ for alleged shortcomings” (*People v Mendoza*, 33 NY3d 414, 418 [2019], quoting *People v Rivera*, 71 NY2d 705, 709 [1988]).

Defendant has not met his burden here. Indeed, counsel committed no error in the first instance because defendant was not entitled to a voluntary surrender instruction.

Courts are “required to instruct the jury on ‘fundamental legal principles applicable to criminal cases in general’ and those ‘material legal principles applicable to the particular case’” (*People v Watts*, 57 NY2d 299, 301 [1982], quoting CPL 300.10 [1], [2]). In determining whether a jury instruction on a claimed defense is required, “the court must view the evidence adduced at trial in the light most favorable to the defendant, and must provide the requested charge if it is supported by a reasonable view of the evidence” (*People v Williams*, 36 NY3d 156, 160 [2020] [citations and internal quotation marks omitted]). “The critical question . . . [is] not whether the claimed defense was consistent with the defendant’s testimony or with other defenses raised, but whether that defense, viewed separately, was supported by the trial evidence” (*People v Butts*, 72 NY2d 746, 750 [1988]). “The rule is that the jury must be instructed on all claimed defenses which are supported by a *reasonable view* of the evidence—not by any view of the evidence, however artificial or irrational’” (*Williams*, 36 NY3d at 160, quoting *Butts*, 72 NY2d at 750). Accordingly, “when no reasonable view of the evidence would support a finding of the tendered defense, the court is under no obligation to submit the question to the jury” (*Watts*, 57 NY2d at 301).

The undisputed evidence of the encounter introduced at trial established that, when police found the significant quantity of ammunition in defendant’s stopped vehicle and directly asked whether he had a weapon on his person or in the vehicle, defendant said no. After denying that he had a weapon and

evidently to explain the presence of ammunition, defendant claimed that his firearm had been taken away from him after he lost his permit. Over the course of the stop, defendant never mentioned to police that there was a loaded firearm hidden in the car. In the face of these facts, defendant proffers the explanation that he hid the gun and kept it hidden from police—even though he intended to turn it into the police—because he wanted a “gift card” in return for doing so.⁴ Under the circumstances, there is “no reasonable view of the evidence” to support a voluntary surrender charge, even assuming that such a charge is separate from that for temporary and lawful possession (*id.*).⁵ Inasmuch as “[a] defendant is not denied effective assistance of trial counsel merely because counsel does not make a motion or argument that has little or no chance of success” (*Stultz*, 2 NY3d at 287), counsel was not ineffective for failing to request the charge.

III.

Evaluating the record as a whole—which the majority fails to do—counsel’s overall performance cannot otherwise be deemed deficient. Counsel secured a beneficial plea offer that would have resulted in a sentence of 1 to 3 years in satisfaction of this indictment as well as two others charging defendant with felonies. When defendant rejected that plea deal despite the overwhelming evidence against him, counsel zealously advocated for suppression of the evidence at a pretrial hearing and sought preclusion of defendant’s earlier convictions involving guns and making false statements to police pursuant to *People v Sandoval* (34 NY2d 371 [1974]). At trial, counsel pursued a cogent, multipronged strategy, beginning with opening statements and continuing with thorough cross-

4. The majority quips that my recitation of facts is the equivalent of a closing argument (majority op at 438), but we needn’t debate the facts here: the entire stop was captured on video and shows the defendant repeatedly lying about having a gun, as well as his reaching for it and thereby recklessly threatening the safety of the officers and members of the public.

5. In fact, in declining to give the temporary unlawful possession charge, the trial judge commented that

“while defendant testified that he wished to turn [the gun] over to the police, when faced standing [sic] next to an officer, instead of giving the officer the weapon he stated he didn’t have one [a]nd while it might have cost him a [\$]450 gift card, to be candid, it would have gone a long way to getting the charge in this case.” The reasoning would apply with even more force to the voluntary surrender instruction.

examinations of the People's witnesses, a direct examination of defendant that avoided introduction of the other felony cases pending against him, a motion to dismiss the charges at the close of the People's case, an application for a jury instruction on temporary and lawful possession—which the trial court was initially inclined to give, despite harboring reservations—and summations in which counsel convincingly portrayed defendant as a sympathetic individual attempting to comply with the law. Counsel consistently argued that, first, defendant possessed the weapon only temporarily, and then, only because he intended to turn it over to police for compensation. In addition, counsel painted defendant as a man broken by addiction in the hope of securing jury nullification. That strategy led the jury to acquit defendant on the controlled substance possession charge. Under the circumstances, the record supports the conclusion of the Appellate Division that counsel provided effective assistance to defendant, who was uncooperative and took the stand against counsel's advice (*see Mendoza*, 33 NY3d at 419).

Yet the majority holds that the record before us “affords a good-faith basis for an argument that” a voluntary surrender defense applied and that “counsel’s [purported] error in overlooking that issue rendered his assistance to defendant ineffective” (*People v Nesbitt*, 20 NY3d 1080, 1082 [2013]). *Nesbitt* is inapplicable where, as here, defense counsel has not “explained his [erroneous] thinking in plain language on the record” (*id.*), because the mere existence of even a good-faith basis for an argument does not otherwise establish the absence of legitimate strategic objections for the choice not to advance it. In any event, this Court has not previously examined the voluntary surrender defense, but the Appellate Division has recognized, under Penal Law § 265.20 (a) (1) (f), a “defense of temporary lawful possession of [a] handgun pursuant to the exemption from criminal liability for a person engaged in the voluntary surrender of a weapon to the authorities” (*People v Watson*, 163 AD3d 855, 861-862 [2d Dept 2018]). The majority accepts defendant’s argument that counsel was ineffective for pursuing a “common-law” temporary and lawful possession defense, as opposed to the statutory voluntary surrender defense, which the majority characterizes as a completely separate defense. However, there is no separate pattern criminal jury instruction for a voluntary surrender defense and *Watson* expressly describes the statutory defense as a type of “temporary lawful possession” claim (*id.*; accord *People v E.C.*, 195

Misc 2d 680, 683 [Sup Ct, Queens County 2003] [“While the foundation for (a temporary and lawful possession) defense is common law, it is somewhat codified in Penal Law § 265.20 (a) (1) (f) which allows for people to possess weapons upon voluntarily surrendering them to the proper law enforcement authorities”]; *Watson v Superintendent of Green Corr. Facility*, 2023 WL 6119709, *3 n 10, 2023 US Dist LEXIS 165364, *5 n 10 [ED NY, Sept. 18, 2023, 19-CV-5098 (PKC)] [“it is unclear . . . what the distinction is between a defense based on returning a gun to a Gun Buyback Program and a defense of temporary and lawful possession”)].

Moreover, defense counsel’s argument at trial tracked the language of *Watson*: counsel argued that defendant should be deemed to have temporarily and lawfully possessed the weapon during the time that he was allegedly attempting to voluntarily surrender it. Counsel’s arguments, when read in the context of the language of *Watson*—the primary case on which defendant relies, but which the majority conspicuously avoids citing—offer scant support for the majority’s unwarranted and inappropriate factual finding that counsel was “ignorant of a point of law that is fundamental to [the] case” and “fail[ed] to perform basic research on that point” (*Hinton v Alabama*, 571 US 263, 274 [2014]).⁶ Rather, in the absence of any evidence that would support giving the statutory charge as the majority characterizes it, counsel appears to have advanced the same version of this defense that the Second Department endorsed in *Watson*.

Watson notwithstanding, Penal Law § 265.20 (a) (1) (f) requires that the surrender of a firearm be made “in accordance with such terms and conditions as may be established by . . . [the] police.” The majority states that there is no indication that defendant’s turning the gun in to a precinct in the Bronx, where he resided, would have failed to comply with the

6. *Hinton* is distinguishable because that appeal followed an evidentiary hearing at which Hinton’s trial attorney effectively conceded ignorance of the law (see 571 US at 268). Although “defendant is not precluded from commencing a [CPL 440.10] proceeding based on matters outside the [current] record and beyond review on this appeal” (*Mendoza*, 33 NY3d at 419 n [internal quotation marks and citation omitted]), this case is before us on direct appeal. Unlike defense counsel in *Nesbitt*, counsel did not explain his thinking on the record (cf. 20 NY3d at 1082). The majority thus has no basis for its inappropriate factual finding that counsel did not request a voluntary surrender instruction simply because he was ignorant of the law—a finding that is both beyond this Court’s power to make and belied by the record given that counsel’s argument tracked the language of defendant’s primary cited authority.

terms and conditions of the New York City Police Department's gun return program (majority op at 437). However, it is undisputed that the 49th Precinct in the Bronx—where defendant claims he was going when he was stopped—did not offer payment in exchange for guns. Even if the statute could be deemed applicable, invoking it would have highlighted the evidence that defendant was not, in fact, travelling towards a precinct that would have supplied him with the cash that was his asserted motivation for transporting the handgun across 50 miles and lying to police about the presence of the gun in the car. Under these circumstances, counsel could have reasonably concluded, as a matter of strategy, that it would be more effective to pursue a temporary and lawful possession defense based on voluntary surrender as described in *Watson*, along with the alternative strategy of seeking jury nullification in the face of overwhelming evidence (see *Mendoza*, 33 NY3d at 417-419).

The majority acknowledges that “a reviewing court must avoid confusing ‘true ineffectiveness with mere losing tactics and according undue significance to retrospective analysis’” (*Benevento*, 91 NY2d at 712, quoting *People v Baldi*, 54 NY2d 137, 146 [1981]). However, in presuming that counsel had *no* strategy here and was completely ignorant of the law, despite counsel's argument at trial that tracked the language of the very precedent that defendant deems most relevant—and without the benefit of a CPL 440.10 motion which could have supplied outside-the-record evidence from which a court might have concluded that counsel truly was acting out of ignorance of the law—the majority demonstrates the very confusion it counsels to avoid.

Finally, the public policy implications of the majority's holding cannot be ignored. The majority insists that “the statutory voluntary surrender defense” was applicable here and implies that defendant should have been acquitted if the jury believed his testimony (majority op at 437-439). The majority's interpretation of Penal Law § 265.20 (a) (1) (f) as permitting a heavily armed defendant to transport an illegal, loaded gun for 50 miles—including on public transit—has no logical end point. Indeed, it would apply equally to an individual arrested for firearms possession in Buffalo who claimed to be en route to a gun buyback program in Queens, regardless of the frivolous nature of the person's explanation for transporting the weapon, or to a defendant who stopped off to rob a bank on the way to a precinct buyback program as long as the defendant ultimately

intended to turn in the gun. This interpretation of the statute, with its endorsement of reckless handling of firearms and the attendant danger to public safety, cuts against the ultimate statutory purpose of “limit[ing] ready access to weapons used in the commission of crimes with injurious and lethal consequences” (Assembly Mem in Support, Bill Jacket, L 1995, ch 376 at 6).

Therefore, I dissent.

Judges RIVERA, TROUTMAN and HALLIGAN concur. Judge CANNATARO dissents in an opinion, in which Judges GARCIA and SINGAS concur.

Order reversed and a new trial ordered.

[226 NE3d 885, 203 NYS3d 518]

HERMAN BRETTTLER, Trustee of the ZUPNICK FAMILY TRUST 2008
A, Appellant, v ALLIANZ LIFE INSURANCE COMPANY OF
NORTH AMERICA, Respondent.

Argued October 18, 2023; decided November 20, 2023

SUMMARY

PROCEEDING, pursuant to NY Constitution, article VI, § 3 (b) (9) and Rules of the Court of Appeals (22 NYCRR) § 500.27, to review a question certified to the New York State Court of Appeals by the United States Court of Appeals for the Second Circuit. The following question was certified by the United States Court of Appeals and accepted by the New York State Court of Appeals: “Where a life insurance policy provides that ‘assignment will be effective upon Notice’ in writing to the insurer, does the failure to provide such written notice void the assignment so that the purported assignee does not have contractual standing to bring a claim under the Policy?” The certified question was reformulated by the New York State Court of Appeals, as authorized by the United States Court of Appeals, to read: “Where a life insurance policy provides that ‘assignment will be effective upon Notice’ in writing to the insurer, does the failure to provide such written notice deprive the purported assignee of contractual standing to bring a claim under the Policy against the insurer?”

HEADNOTE

Insurance — Life Insurance — Provision That Assignment Effective upon Written Notice to Insurer — Failure to Provide Written Notice Deprives Purported Assignee of Contractual Standing to Sue Insurer

Where a life insurance policy provides that “assignment will be effective upon Notice” in writing to the insurer, the failure to provide such written notice deprives the purported assignee of contractual standing to bring a claim under the policy against the insurer. Given that the notice provision imposes a requirement that the policy owner can satisfy unilaterally, it is simply a condition that must be met before an assignment binds the insurer, not an anti-assignment provision. The most natural reading of the notice provision is that the policy owner cannot transfer any rights as against the insurer—which the owner holds solely by virtue of their contract with the insurer—without notice but may do so unilaterally with notice. Absent notice, the insurer is not bound by the owner’s assignment to the purported assignee, and therefore the purported assignee cannot enforce any of the contractual rights of the policyholder against the insurer. Reading the notice provision to permit the purported assignee to enforce any of the substantive rights under the policy against the insurer in the absence of notice would transform a pro-

vision intended to protect the insurer into a backdoor that effectively confers third-party standing to sue the insurer. However, it does not follow from this analysis that the assignment is void, or that the assignee has no rights as against the assignor.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Insurance §§ 735, 738, 753.

COUCH ON INSURANCE (3d ed) §§ 36:39, 36:40.

NY JUR 2d Insurance § 1198.

ANNOTATION REFERENCE

See ALR Index under Life Insurance.

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POINTS OF COUNSEL

Lipsius-Benhaim Law, LLP, Kew Gardens (*David Benhaim* of counsel), for appellant. I. Plaintiff has contractual standing to bring this declaratory judgment action. (*Sprint Communications Co. v APCC Services, Inc.*, 554 US 269; *Grigsby v Russell*, 222 US 149; *Carton v B & B Equities Group, LLC*, 827 F Supp 2d 1235; *Pro Cardiac Pronto Socorro Cardiologica S.A. v Trussell*, 863 F Supp 135.) II. The insurance policy does not clearly make the contract nonassignable. (*Allhusen v Caristo Constr. Corp.*, 303 NY 446.)

Faegre Drinker Biddle & Reath LLP, Minneapolis, Minnesota (*Aaron D. Van Oort*, admitted pro hac vice, of counsel), Philadelphia, Pennsylvania (*Katherine L. Villanueva* of counsel), and Washington, D.C. (*Dawn B. Williams*, admitted pro hac vice, of counsel), for respondent. I. Because Allianz Life Insurance Company of North America was not notified of the purported change of ownership per the policy's terms, the Zupnick Family Trust 2008 A lacks contractual standing to sue. II. The policy assignment provision is enforceable. III. The Zupnick Family Trust 2008 A's authorities are inapposite because they address prohibitions on assignment. (*Grigsby v Russell*, 222 US 149; *Carton v B & B Equities Group, LLC*, 827 F Supp 2d 1235; *Allhusen v Caristo Constr. Corp.*, 303 NY 446; *Pro Cardiac Pronto Socorro Cardiologica S.A. v Trussell*, 863 F Supp 135.)

Sidley Austin LLP, New York City (*Andrew R. Holland* of counsel), and Chicago, Illinois (*Eric S. Mattson*, admitted pro hac vice, of counsel), for Life Insurance Council of New York, Inc. and another, amici curiae. I. A policyowner's failure to provide notice of an assignment as required by the policy voids the purported assignment. (*Interboro Ins. Co. v Tahir*, 129 AD3d 1687; *Rushing v Commercial Cas. Ins. Co.*, 251 NY 302; *Pike v New York Life Ins. Co.*, 72 AD3d 1043.) II. Plaintiff's view is legally incorrect and would harm the life insurance system. (*Reliable Loan & Inv. Co. v Delgus Co., Inc.*, 223 App Div 94; *ADB Net Corp. v Columbian Mut. Life Ins. Co.*, 137 AD3d 445; *Allhusen v Caristo Constr. Corp.*, 303 NY 446.)

OPINION OF THE COURT

HALLIGAN, J.

The United States Court of Appeals for the Second Circuit has asked us to determine whether, where a life insurance policy provides that “assignment will be effective upon Notice” in writing to the insurer, the failure to provide such written notice voids the assignment so that the purported assignee does not have contractual standing to bring a claim under the Policy (57 F4th 57, 65-66 [2d Cir 2022]). To the extent the question could be understood to present only two mutually exclusive answers—that the assignment is void in its entirety, including as between the assignee and assignor, or else the assignment is valid as between the assignee and assignor and the assignee has authority under the contract to sue the insurer—we reformulate the question as follows:

Where a life insurance policy provides that “assignment will be effective upon Notice” in writing to the insurer, does the failure to provide such written notice deprive the purported assignee of contractual standing to bring a claim under the Policy against the insurer?

We answer the reformulated question in the affirmative.

I.

In 2008, Allianz issued an \$8,000,000 life insurance policy (Zupnick Policy) on the life of Dora Zupnick to the Zupnick Family Trust (Trust). Under the policy, the owner is “solely entitled to exercise all rights of this policy until the death of the Insured.” The policy also contains a provision (notice provision) specifying that an owner may assign the policy, subject to one condition:

“You may assign or transfer all or specific owner-

ship rights of this policy. *An assignment will be effective upon Notice.* We will record your assignment. We will not be responsible for its validity or effect, nor will we be liable for actions taken on payments made before we receive and record the assignment” (emphasis added).

The contract defines “Notice” as “[o]ur receipt of a satisfactory written request.”

In 2012, the Trust sold the Zupnick Policy to Miryam Muschel and notified Allianz in writing of the assignment. In 2013, Allianz put the Zupnick Policy in lapse for nonpayment; the Trust had attempted to pay but was unsuccessful due to bank error, which the bank acknowledged to both the Trust and Allianz. Three years later, Muschel transferred the Zupnick Policy back to the Trust, as memorialized in an agreement between Muschel and the Trust (purchase agreement). Neither Muschel nor the Trust notified Allianz of the Zupnick Policy’s second assignment. Brettler, as trustee, then sued Allianz seeking a declaratory judgment that the Zupnick Policy remained “in full force and effect.” The complaint alleged that there were no premium payments outstanding when Allianz declared the Zupnick Policy lapsed, that Allianz had failed in its obligation to “give notice to the Trust when the Policy was in danger of lapsing” and to do so in a timely manner, and that Allianz’s final pre-lapse notification demanded a miscalculated premium and identified an incorrect due date. Accordingly, the Trust contended, Allianz had not met its obligations under the Zupnick Policy or applicable law, and therefore the lapse notice was void and the Zupnick Policy remained in effect. The complaint identified the Trust as the owner of the policy and did not mention Muschel, who is not a party to this case.¹

The district court granted Allianz’s motion to dismiss on the grounds that the Trust lacked contractual standing to sue because Allianz did not receive notice of Muschel’s assignment of the Zupnick Policy back to the Trust. On appeal, the Second Circuit remanded the case back to the district court. After the district court rejected Allianz’s alternative arguments for dismissal, the Second Circuit certified the following question to this Court:

1. The Trust’s counsel stated at argument that Muschel could have given notice prior to the Trust’s commencement of the suit, or herself sued to enforce the terms of the policy in the event of any breach by Allianz. Alternatively, the Trust could have dismissed the case and refiled the action after notice of the transfer was provided to Allianz.

“Where a life insurance policy provides that ‘assignment will be effective upon Notice’ in writing to the insurer, does the failure to provide such written notice void the assignment so that the purported assignee does not have contractual standing to bring a claim under the Policy?” (57 F4th at 65-66.)

II.

We must first determine whether the notice provision is an anti-assignment clause. Under New York law, such clauses are subject to a special interpretative rule: If an anti-assignment clause includes “clear language” and the “plainest words” stating that an assignment made in contravention of the original contract is void, then the clause operates to destroy any purported assignments (*Allhusen v Caristo Constr. Corp.*, 303 NY 446, 452 [1952], citing *State Bank v Central Mercantile Bank*, 248 NY 428, 435 [1928]). If an anti-assignment clause does not include such language, the assignment is valid, and the clause is read instead as a personal covenant not to assign that “justifies only an award of damages” against the assignor for breach (*Citibank, N.A. v Tele/Resources, Inc.*, 724 F2d 266, 268 [2d Cir 1983]; see also *Allhusen*, 303 NY at 450).

We conclude that the notice provision is not an anti-assignment clause but rather a notice requirement. As noted by the Second Circuit, the notice provision does not restrict the policy owner’s power to assign, Allianz does not take any position on the validity of assignments between third parties, and Allianz does not retain any discretion to impede or refuse assignments (see 57 F4th at 63). The assignment process is unilateral: The owner of the Zupnick Policy may single-handedly bind Allianz to an assignment by providing notice at any time.

In contrast, an anti-assignment clause prohibits unilateral assignments either by voiding the assignment entirely or by encumbering it by requiring the non-assigning party to approve or consent to any assignment of the contract (see *Allhusen*, 303 NY at 449 [contract providing assignments “without the written consent of the first party . . . shall be void” could void assignments]; *Sillman v Twentieth Century-Fox Film Corp.*, 3 NY2d 395, 400 [1957] [contract requiring prior written consent before assignment and stating that the paying party “shall not be required to recognize any assignments” could void assignments]; *Citibank*, 724 F2d at 268 [assignment valid but gave rise to damages where contract “could

not be waived or altered without the written consent of the bank”]; *Belge v Aetna Cas. & Sur. Co.*, 39 AD2d 295, 296, 297-298 [4th Dept 1972] [same where contract required “written consent of the Seller” for assignments]; *University Mews Assoc. v Jeanmarie*, 122 Misc 2d 434, 436-437 [Sup Ct, NY County 1983] [same where assignment dependent on lessor “approval”]; *see also* 29 Williston on Contracts § 74:22 [4th ed, May 2023 update] [“Effect of contract provision prohibiting assignment”] [surveying anti-assignment cases]).

The Trust points to *Reliable Loan & Inv. Co. v Delgus Co., Inc.* (223 App Div 94 [1st Dept 1928]), but there are several key differences between this case and *Reliable Loan*: The notice requirement there covered only the first assignment of the contract, not the subsequent assignment at issue in the litigation, and the Court held that the buyer had waived its right to complain of unnoticed assignments by acquiescing to two prior unnoticed assignments. Moreover, *Reliable Loan* appears to assume the plaintiff had authority under the terms of the contract to bring a lawsuit without directly addressing the point.

Given that the notice provision imposes a requirement that the policy owner can satisfy unilaterally, we conclude it is simply a condition that must be met before an assignment binds Allianz, not an anti-assignment provision (*accord Jakobovits v Allianz Life Ins. Co. of N. Am.*, 2017 WL 3049538, *4, 2017 US Dist LEXIS 111471, *12 [SD NY, July 18, 2017, No. 15 Civ 9977] [hereinafter *Jakobovits I*] [considering an identical clause and concluding that it is “not an anti-assignment provision at all”]).² That result is consistent with the policy rationale behind New York’s anti-assignment canon. Clauses that require consent for assignment give one party to a contract significant control over whether the other party may dispose of any rights under the contract and therefore implicate concerns regarding alienation of property (*see Allhusen*, 303 NY at 451-

2. *Jakobovits v PHL Variable Ins. Co.* (2018 WL 2291311, *4, 2018 US Dist LEXIS 83946, *9-11 [ED NY, May 18, 2018, No. 17-cv-3527-ARR-RER]), analyzed the same clause and concluded it *was* an anti-assignment clause, explicitly disagreeing with the Southern District in *Jakobovits I*. In our view, that decision conflated contractual standing with article III standing in concluding that if the assignment was not void, the assignee’s “ownership interest” nonetheless conferred standing (2018 WL 2291311, *4, 2018 US Dist LEXIS 83946, *11). Even if the assignment was valid, it could still be insufficient to give rise to a cause of action under the contract as against Allianz (*see Fortunato v Patten*, 147 NY 277, 281 [1895]).

452 [anti-assignment rules balance the freedom of contract with prevention of the inadvertent alienation of property rights]; *State Bank*, 248 NY at 435). But Allianz retains no control over whether or to whom the Zupnick Policy is assigned by the owner; nor does the owner of the trust require any action from Allianz to effectuate an assignment that binds Allianz.

Turning to the meaning of the notice provision, the most natural reading is that Muschel cannot transfer any rights as against Allianz—which she holds solely by virtue of her contract with Allianz—without notice but may do so unilaterally with notice. An examination of the provision’s language explains why (see *J.P. Morgan Sec. Inc. v Vigilant Ins. Co.*, 37 NY3d 552, 561 [2021], *rearg denied* 37 NY3d 1228 [2022] [insurance contracts are “subject to the general rules of contract interpretation” and “enforced as written” absent a public policy violation]). First, the provision states that the owner “may assign or transfer all or specific ownership rights of this policy,” which renders ownership rights freely assignable in whole or in part. Second, it provides that “[a]n assignment will be effective upon Notice,” which makes notice a prerequisite to transfer of ownership rights as against Allianz and shields Allianz from owing contractual obligations to a party of which it is unaware. Third, the provision states that “[w]e will record your assignment,” which confirms Allianz has no discretion to refuse an assignment. Fourth, the provision notes that “[w]e will not be responsible for its validity or effect,” which indicates Allianz takes no position on the legal effect of any agreement between the policy owner and a third-party assignee. Finally, the provision states “nor will we be liable for actions taken on payments made before we receive and record the assignment,” which confirms Allianz will not be bound by unnoticed assignments or liable for actions inconsistent with third-party agreements of which Allianz is unaware, such as payment to the record owner even after they assigned the policy. Thus, absent notice, Allianz is not bound by Muschel’s assignment to the Trust, and therefore the Trust cannot enforce any of the contractual rights of the policyholder against Allianz (see *Fortunato v Patten*, 147 NY 277, 281, 283 [1895] [with respect to assignment of rights under a contract with New York City that required consent for assignments to bind the city, noting that while unconsented assignments were not void, an assignee could not assert a claim against the city without obtaining the city’s consent]).

The Trust's complaint illustrates the practical import of this clause: It sued Allianz for alleged breaches in Allianz's purported obligation to send the Trust notice of a potential lapse that was timely, included an accurate calculation of the premium due, and correctly identified the due date for payment. Under the policy's terms, these rights relevant to a policy's lapse are held by the policy owner, and the notice provision stipulates that all ownership rights may be transferred only upon notice. It would make little sense to read the notice provision as nonetheless permitting the Trust to enforce any of the substantive rights under the policy against Allianz. Indeed, reading the provision as the Trust proposes would transform a provision intended to protect the insurer into a backdoor that effectively confers third-party standing to sue the insurer. The Second Circuit noted that this case presents no issue of third-party standing (*see* 57 F4th at 62), and neither party has suggested otherwise.

Finally, we note that it does not follow from this analysis that the purchase agreement between Muschel and the Trust is void, or that the Trust has no rights against Muschel (*see Fortunato*, 147 NY at 281, 283-284 [unnoticed assignment itself not void, but assignee without enforcement rights against original contracting party]). Although our reformulation of the certified question focuses on whether the notice provision deprives the Trust of contractual standing to sue Allianz, the notice provision does not affect the validity of the purchase agreement between Muschel and the Trust.

Accordingly, we conclude that the Trust lacks authority under the contract to sue Allianz in this case. The certified question, as reformulated, should be answered in the affirmative.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO and TROUTMAN concur.

Following certification of a question by the United States Court of Appeals for the Second Circuit and acceptance of the question by this Court pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), and after hearing argument by counsel for the parties and consideration of the briefs and record submitted, certified question, as reformulated, answered in the affirmative.

[226 NE3d 890, 203 NYS3d 523]

In the Matter of the Claim of THOMAS LAZALEE, Respondent, v
WEGMAN'S FOOD MARKETS, INC., Appellant. WORKERS' COM-
PENSATION BOARD, Respondent.

Argued November 14, 2023; decided December 12, 2023

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered January 6, 2022. The Appellate Division affirmed a decision of the Workers' Compensation Board which had affirmed a decision of a Workers' Compensation Law Judge awarding claimant benefits for additional post-surgery weeks of temporary total disability.

Matter of Lazalee v Wegman's Food Mkts., Inc., 201 AD3d 1110, reversed.

HEADNOTE

Workers' Compensation — Workers' Compensation Board — Employer's Request to Cross-Examine Claimant's Physician Prior to Decision on Merits — No Discretion to Deny Adjournment

The plain language of 12 NYCRR 300.10 (c) does not afford a workers' compensation law judge (WCLJ) discretion to deny an employer's request for cross-examination of the claimant's physician made at a hearing, before the WCLJ has rendered a decision on the merits. Upon such a request, the WCLJ must adjourn the hearing and afford the employer the opportunity to produce the claimant's physician for cross-examination. The rule provides that, if "the employer or its carrier or special fund desires to produce for cross-examination an attending physician whose report is on file, the referee *shall* grant an adjournment for such purpose" (12 NYCRR 300.10 [c] [emphasis added]). The mandatory nature of this language contrasts with the language used in the Workers' Compensation Board's other rules governing adjournment of hearings, which afford referees discretion and create exceptions to otherwise mandatory rules.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Workers' Compensation §§ 545, 547.

12 NYCRR 300.10 (c).

NY JUR 2d Workers' Compensation § 641.

ANNOTATION REFERENCE

See ALR Index under Continuances and Adjournment;
Workers' Compensation.

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POINTS OF COUNSEL

The Law Offices of Melissa A. Day, PLLC, Amherst (*Melissa A. Day* of counsel), for appellant. In light of the compelling public policy concerns of conservation of judicial resources and compensating employees who are injured at work, an employer's request to cross-examine an attending physician is timely when made at the first hearing under the mandatory language of 12 NYCRR 300.10 (c). (*Matter of Kiriloff v A. G. W. Wet Wash Laundry, Inc.*, 293 NY 222; *Matter of Kigin v State of N.Y. Workers' Compensation Bd.*, 24 NY3d 459; *Matter of Frick v Bahou*, 56 NY2d 777; *Matter of Vukel v New York Water & Sewer Mains*, 94 NY2d 494; *Matter of Ferguson v Eallonardo Constr., Inc.*, 173 AD3d 1592.)

Connors and Ferris, LLP, Rochester (*Gregory R. Connors* of counsel), for Thomas Lazalee, respondent. The most compelling public policy this Court should further is the logical and commonsense responsibilities for employers and carriers to raise their issues contemporaneous to receiving the medical evidence and paying temporary total disability benefits when the issue becomes ripe, so injured workers are not precluded and denied their rights and options because of the afterthought, personal opinion and retroactive request by counsel at a hearing that may occur months later thereby forfeiting and eliminating Thomas Lazalee's rights and options flowing from the employer/carrier's untimely request. (*Matter of Ferguson v Eallonardo Constr., Inc.*, 173 AD3d 1592.)

Letitia James, Attorney General, Albany (*Sean P. Mix, Barbara D. Underwood, Andrew Oser and Victor Paladino* of counsel), for New York State Workers' Compensation Board, respondent. The Workers' Compensation Board acted within its discretion when it denied Wegman's Food Markets, Inc.'s request for cross-examination as untimely. (*Matter of Ferguson v Eallonardo Constr., Inc.*, 173 AD3d 1592; *Matter of Floyd v Millard Fillmore Hosp.*, 299 AD2d 610; *Matter of Brown v Clifton Recycling*, 1 AD3d 735; *Matter of Rusyniak v Syracuse Flying School*, 37 NY2d 384; *Matter of Abdur-Raheem v Mann*,

85 NY2d 113; *Gilbert Frank Corp. v Federal Ins. Co.*, 70 NY2d 966; *Henry v New Jersey Tr. Corp.*, 39 NY3d 361; *Boles v Dormer Giant, Inc.*, 4 NY3d 235; *Matter of Roselli v Middletown School Dist.*, 144 AD2d 223; *Matter of Bacci v Staten Is. Univ. Hosp.*, 32 AD3d 582.)

OPINION OF THE COURT

TROUTMAN, J.

Under the rules of the Workers' Compensation Board (Board), if an employer "desires to produce for cross-examination an attending physician whose report is on file, the referee shall grant an adjournment for such purpose" (12 NYCRR 300.10 [c]). At issue here is whether a workers' compensation law judge (WCLJ) has the discretion to deny a request for cross-examination made at a hearing, before the WCLJ has rendered a decision on the merits. Because 12 NYCRR 300.10 (c) affords no such discretion, we reverse the order of the Appellate Division.

Claimant filed a claim for benefits in 2018 while out of work with a right thumb injury and carpal tunnel syndrome, for which he underwent surgery. The employer did not controvert any aspect of the claim and paid claimant at the temporary total disability rate. The Board later awarded claimant 36.4 weeks' compensation for an established right thumb injury. After claimant returned to work in 2019, his physician diagnosed him with similar injuries to his left hand. Claimant filed for benefits and, again, the employer paid him at the temporary total disability rate. Claimant returned to work from the left-hand injuries in January 2020 and requested a hearing to amend the prior award by including the additional injuries. The employer accepted liability at the April 2020 hearing but sought to cross-examine the physician as to the degree of impairment during claimant's most recent period out of work. A WCLJ denied the request on the ground that claimant's 11.2-week absence was not "excessive" and awarded claimant compensation over that period at the temporary total disability rate.

The Board affirmed, finding the request to cross-examine claimant's physician was untimely because that request was made after the employer paid claimant at the total disability rate until his return to work, waited three months after that to raise the issue and seek to "retroactively argue that the claimant was not totally disabled," and made that argument

based only on counsel's interpretation of the reports "without any contrary credible medical evidence." The Appellate Division affirmed, holding there was no basis to disturb the Board's conclusion that the employer's "belated" request to cross-examine the physician was "'disingenuous'" because claimant "required the use of his hands to perform his job" and the physician's "uncontroverted medical reports" supported the finding of total temporary disability (201 AD3d 1110, 1112 [3d Dept 2022]). We granted the employer leave to appeal (*see* 39 NY3d 905 [2022]).

The Board has the power to "adopt reasonable rules consistent with and supplemental to the provisions of" the Workers' Compensation Law (Workers' Compensation Law § 117 [1]; *see Matter of Kigin v State of N.Y. Workers' Compensation Bd.*, 24 NY3d 459, 467 [2014]). Rules duly promulgated pursuant to Workers' Compensation Law § 117 are binding upon the Board (*see Matter of Vukel v New York Water & Sewer Mains*, 94 NY2d 494, 497 [2000]; *Matter of Frick v Bahou*, 56 NY2d 777, 778 [1982]).

The rule at issue here provides that, if "the employer or its carrier or special fund desires to produce for cross-examination an attending physician whose report is on file, the referee *shall* grant an adjournment for such purpose" (12 NYCRR 300.10 [c] [emphasis added]). The mandatory nature of this language contrasts with the language used in the Board's other rules governing adjournment of hearings, which afford referees discretion and create exceptions to otherwise mandatory rules. For example, if the employer fails to present evidence as directed by the Board, the referee "*may* adjourn the hearing" and, if the employer fails to present evidence on the adjourned date, the referee "shall proceed to make a decision *unless*" the referee finds "extraordinary circumstances" warranting "a further adjournment" (12 NYCRR 300.10 [b] [emphasis added]). Under the plain language of the rule, the employer properly exercised its rights by making its request at a hearing on the claim prior to the WCLJ's ruling on the merits (*cf. Matter of Ferguson v Eallonardo Constr., Inc.*, 173 AD3d 1592, 1595 [3d Dept 2019]; *Employer: DeLeon Constr., Inc.*, 2017 WL 2981609, *2, 2017 NY Wrk Comp LEXIS 8923, *5 [WCB No. G166 0081, June 29, 2017]).

Cases relied upon by the Board involving belated section 300.10 (c) requests are inapposite. Those cases hold that such a request is "waive[d]" if made for the first time before the

Board or the Appellate Division (*Matter of Brown v Clifton Recycling*, 1 AD3d 735, 736 [3d Dept 2003]; *Matter of Floyd v Millard Fillmore Hosp.*, 299 AD2d 610, 611 [3d Dept 2002]) and are consistent with our holding here concerning a request made before the WCLJ at a hearing. Upon such a request, the WCLJ must adjourn the hearing and afford the employer the opportunity to produce the claimant's physician for cross-examination (*see* 12 NYCRR 300.10 [c]). If the Board concludes that the WCLJ should have discretion under those circumstances, it is within the Board's power to amend its rules as it sees fit (*see* Workers' Compensation Law § 117 [2]).

Accordingly, the order of the Appellate Division should be reversed, with costs, and the matter remitted to the Appellate Division with directions to remand to the New York State Workers' Compensation Board for further proceedings in accordance with this opinion.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO and HALLIGAN concur.

Order reversed, with costs, and matter remitted to the Appellate Division, Third Department, with directions to remand to the New York State Workers' Compensation Board for further proceedings in accordance with the opinion herein.

[227 NE3d 302, 203 NYS3d 868]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v YOSELYN ORTEGA, Appellant.

Argued October 17, 2023; decided November 20, 2023

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered February 8, 2022. The Appellate Division modified, on the law, a judgment of the Supreme Court, New York County (Gregory Carro, J.), which had convicted defendant, upon a jury verdict, of murder in the first degree (two counts) and murder in the second degree (two counts). The modification consisted of dismissing the second-degree murder counts. The Appellate Division affirmed the judgment as modified.

People v Ortega, 202 AD3d 489, affirmed.

HEADNOTES

Crimes — Right of Confrontation — Testimonial Statements

1. *People v Freycinet* (11 NY3d 38 [2008]), which sets forth a four-part framework for determining the testimonial nature of evidence, should no longer be followed because it is inconsistent with the demands of the Confrontation Clause as articulated more recently by the United States Supreme Court.

Crimes — Right of Confrontation — Testimonial Statements — Autopsy Reports

2. In defendant's murder prosecution, the autopsy reports for the two children defendant stabbed to death were testimonial in nature, and because defendant was not given the opportunity to cross-examine the performing medical examiner the admission of those reports through an expert witness who had not performed the autopsies and did not create the reports violated defendant's Sixth Amendment right to confrontation. The reports were solemn declarations or affirmations made for the purpose of establishing or proving some fact, namely the homicidal nature of these victims' deaths. Further, the reports contained indicia of formality that rendered them solemn declarations or affirmations. The reports were also created under circumstances which would lead an objective witness reasonably to believe that the statements would be available for use at a later trial. The tragic condition of the bodies alone was indication enough to the performing examiner that the autopsy reports would have been available one day for use in a criminal prosecution. Additionally, the autopsy reports did not merely state the location and size of wounds; instead, they repeatedly mentioned that the children were killed and that they were killed by defendant. Both reports acknowledged an open investigation and noted the name of the assigned detective. Moreover, the New York City Office of Chief Medical Examiner was required by law to deliver "all records relating to" the victims' deaths to the District

Attorney because there was an “indication of criminality” (NY City Charter § 557 [g]).

Crimes — Right of Confrontation — Testimonial Autopsy Reports — Testimony by Expert Medical Examiner

3. The Confrontation Clause does not entirely preclude the use of information contained in testimonial autopsy reports, and an expert medical examiner may offer conclusions as to the cause and manner of death, and surrounding circumstances, where that testifying expert performed, supervised, or observed the autopsy or used their independent analysis on the primary data. Autopsy photographs and video recordings of a conducted autopsy may properly be relied upon by a testifying witness reaching their own independent conclusions. Further, standard anatomical measurements devoid of the subjective skill and judgment of the performing examiner constitute primary data upon which an expert may rely. Agreement between the testifying expert and the performing examiner is not itself impermissible, but it is the People’s obligation to establish that their testifying experts, who did not perform or observe the relevant autopsy, reached their conclusions themselves based upon a review of the proper materials rather than the conclusions of the performing examiner. In defendant’s murder prosecution here the People offered the testimony of an expert witness who did not perform the autopsies of defendant’s victims without eliciting any evidence that any of the witness’s conclusions were based on her independent review of primary data. Accordingly, all of the witness’s testimony was improper under the Sixth Amendment.

Crimes — Harmless and Prejudicial Error — Right of Confrontation Violation — Admission of Autopsy Reports and Testimony of Expert Witness Who Did Not Perform Autopsies

4. In defendant’s murder prosecution, the trial court’s error in admitting two autopsy reports through an expert witness who did not perform the autopsies, as well as that witness’s testimony, in violation of defendant’s Sixth Amendment right to confrontation was harmless beyond a reasonable doubt. The evidence of defendant’s guilt was overwhelming, and she did not dispute that she caused the stabbing death of the two children but instead raised a defense of not guilty by reason of insanity. The testimony regarding one victim’s self-defense did not likely impact the jury’s view of the insanity defense. The children’s reactions to defendant’s attack and whether they defended themselves were entirely unrelated to whether defendant lacked substantial capacity to know or appreciate the nature and consequences of her actions.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

- AM JUR 2d Criminal Law §§ 1045, 1056, 1062–1064, 1072.
CARMODY-WAIT 2d Particular Types of Evidence §§ 194:90,
194:99; CARMODY-WAIT 2d Appeals in Criminal Cases
§ 207:127.
LAFAYE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 24.3,
24.4.
MCKINNEY’S, Penal Law § 40.15 (1).
NY JUR 2d Criminal Law: Procedure §§ 2056, 2176, 2297,
3672, 3673, 3676, 3677.

ANNOTATION REFERENCE

See ALR Index under Autopsies; Confrontation of Witnesses; Harmless and Prejudicial Error.

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POINTS OF COUNSEL

Jenay Nurse Guilford, Center for Appellate Litigation, New York City (*Abigail Everett* of counsel), for appellant. I. Introduction of the non-testifying doctor's autopsy reports, as well as in-court expert testimony that relied on those reports, violated defendant's constitutional right to confrontation. (US Const Amends VI, XIV; NY Const, art I, § 6.) (*Bullcoming v New Mexico*, 564 US 647; *Michigan v Bryant*, 562 US 344; *Crawford v Washington*, 541 US 36; *Melendez-Diaz v Massachusetts*, 557 US 305; *People v Goldstein*, 6 NY3d 119; *Davis v Washington*, 547 US 813; *People v John*, 27 NY3d 294; *People v Freycinet*, 11 NY3d 38; *People v Garlick*, 144 AD3d 605; *People v Acevedo*, 112 AD3d 454.) II. Evidence that a court had previously "rejected" the defense expert's incompetency opinion by finding defendant competent was irrelevant and, at a minimum, more prejudicial than probative to evaluating the doctor's opinion in support of defendant's insanity defense. (*People v Tortorici*, 92 NY2d 757; *People v Mendez*, 1 NY3d 15; *People v Esmail*, 260 AD2d 396; *People v Demagall*, 114 AD3d 189; *Blue Cross & Blue Shield of N.J., Inc. v Philip Morris, Inc.*, 141 F Supp 2d 320; *Junger v Singh*, 514 F Supp 3d 579; *United States Football League v National Football League*, 842 F2d 1335; *People v Garrow*, 171 AD3d 1542; *People v Wood*, 66 NY2d 374.) III. The court erred in insisting on charging, over defense objection, an additional theory of New York's statutory insanity defense which defense experts had explicitly declined to support during their testimony, in violation of defendant's due process right to a fair trial. (US Const Amend XIV; NY Const, art I, § 6.) (*People v DeGina*, 72 NY2d 768; *People v Bradley*, 88 NY2d 901; *People v Clark*, 129 AD3d 1, 28 NY3d 556; *People v Kelly*, 302 NY 512.) IV. The court violated its duty to respond meaningfully to the jury's note requesting an explanation of how "the word conscious . . . differs from understanding." (US Const Amends VI,

XIV; NY Const, art I, § 2.) (*People v Ahmed*, 66 NY2d 307; *People v Ciaccio*, 47 NY2d 431; *People v Almodovar*, 62 NY2d 126; *People v Malloy*, 55 NY2d 296; *People v Adams*, 26 NY2d 129.) V. The court erred in finding no functional interrogation, and consequently, no need for *Miranda* warnings when the officer, over the course of two hours, repeatedly asked defendant what she wanted to tell him. (US Const Amends V, IV; NY Const, art I, § 6.) (*Miranda v Arizona*, 384 US 436; *People v Ferro*, 63 NY2d 316; *People v Lynes*, 49 NY2d 286; *People v Maerling*, 46 NY2d 289; *People v Stoesser*, 53 NY2d 648; *People v Grimaldi*, 52 NY2d 611; *People v Rivers*, 56 NY2d 476; *People v Kaye*, 25 NY2d 139; *People v Crimmins*, 36 NY2d 230; *Chapman v California*, 386 US 18.)

Alvin L. Bragg, Jr., District Attorney, New York City (*Dana Poole*, *Steven C. Wu* and *Alan Gadlin* of counsel), for respondent. I. The Confrontation Clause did not preclude admission of the forensic pathologist's independent expert analysis or the underlying autopsy data. (*People v Freycinet*, 11 NY3d 38; *People v John*, 27 NY3d 294; *Crawford v Washington*, 541 US 36; *Melendez-Diaz v Massachusetts*, 557 US 305; *Bullcoming v New Mexico*, 564 US 647; *Williams v Illinois*, 567 US 50; *People v Austin*, 30 NY3d 98; *People v Goldstein*, 6 NY3d 119; *People v Sugden*, 35 NY2d 453; *Matter of State of New York v Floyd Y.*, 22 NY3d 95.) II. The People properly challenged a proposed defense witness's expert qualifications by noting that a court had rejected her expert opinion at defendant's competency hearing. (*People v Cronin*, 60 NY2d 430; *People v Diaz*, 51 NY2d 841; *Meiselman v Crown Hgts. Hosp.*, 285 NY 389; *Porter v Saar*, 260 AD2d 165; *People v Brown*, 67 NY2d 555; *People v Wood*, 12 NY2d 69; *People v Swan*, 158 AD2d 158; *People v Smith*, 27 NY3d 652; *People v Demagall*, 114 AD3d 189; *Blue Cross & Blue Shield of N.J., Inc. v Philip Morris, Inc.*, 141 F Supp 2d 320.) III. The court properly charged the jury on the not guilty by reason of insanity defense. (*People v J.L.*, 36 NY3d 112; *People v Lewie*, 17 NY3d 348; *People v Rodney*, 193 AD3d 657; *People v Cubino*, 88 NY2d 998; *People v Perkins*, 27 AD3d 890; *People v Johnson*, 245 AD2d 570; *People v Andujas*, 79 NY2d 113; *People v Curran*, 139 AD3d 1087; *People v King*, 85 AD3d 412; *People v DeGina*, 72 NY2d 768.) IV. Justice Carro responded meaningfully to the jury's second note. (*People v Clark*, 28 NY3d 556; *People v Almodovar*, 62 NY2d 126; *People v Steinberg*, 79 NY2d 673; *People v Drake*, 7 NY3d 28; *People v Lourido*, 70 NY2d 428; *People v Agosto*, 73 NY2d 963; *People v Sandgren*, 302 NY 331; *People v Duggins*, 3 NY3d 522.) V. The

record fully supports the lower courts' rulings that defendant's statements to police were spontaneous. (*People v Krom*, 61 NY2d 187; *People v Bryant*, 59 NY2d 786; *People v Rivers*, 56 NY2d 476; *People v Harrell*, 59 NY2d 620; *Miranda v Arizona*, 384 US 436; *Rhode Island v Innis*, 446 US 291; *People v Paulman*, 5 NY3d 122; *People v Maerling*, 46 NY2d 289; *People v Grimaldi*, 52 NY2d 611; *People v Stoesser*, 53 NY2d 648.)

Weil, Gotshal & Manges LLP, New York City (*Konrad Cailteux* of counsel), and *Innocence Project, Inc.*, New York City (*M. Chris Fabricant* of counsel), for The Innocence Project, amicus curiae. I. Both the United States and New York State Constitutions provide defendants with a right to confront the witnesses against them. (*Crawford v Washington*, 541 US 36; *Melendez-Diaz v Massachusetts*, 557 US 305; *Benn v Stinson*, 917 F Supp 202.) II. The U.S. Supreme Court has provided significant guidance on how the Confrontation Clause should be applied to forensic reports, much of it after the Court of Appeals *People v Freycinet* (11 NY3d 38 [2008]) decision. (*Davis v Washington*, 547 US 813.) III. The nature and purpose of autopsies makes them testimonial under the Supreme Court's precedent and requires the application of the Confrontation Clause to autopsy reports used as evidence. (*Williams v Illinois*, 567 US 50.) IV. Applying the Supreme Court's Confrontation Clause guidance, the Second Circuit recently determined that autopsy reports are testimonial and that surrogate testimony about the autopsy report will not suffice. V. Given the recent case law on the meaning of the Confrontation Clause, a reexamination of *People v Freycinet* (11 NY3d 38 [2008]) will show that it should no longer be considered good law. (*Allen v Ives*, 976 F3d 863.)

John J. Flynn, District Attorneys Association of the State of New York, Albany (*David M. Cohn* and *Darcel D. Clark* of counsel), for the District Attorneys Association of the State of New York, amicus curiae. As the Court of Appeals has long held, autopsy reports that consist of a contemporaneous, objective account of observable facts are non-testimonial. (*People v Brown*, 13 NY3d 332; *People v Washington*, 86 NY2d 189; *Crawford v Washington*, 541 US 36; *Ohio v Clark*, 576 US 237; *Michigan v Bryant*, 562 US 344; *Davis v Washington*, 547 US 813; *Williams v Illinois*, 567 US 50; *Bullcoming v New Mexico*, 564 US 647; *Melendez-Diaz v Massachusetts*, 557 US 305; *People v Rawlins*, 10 NY3d 136.)

OPINION OF THE COURT

SINGAS, J.

At issue in this case is whether the admission of two autopsy reports through an expert witness who did not perform the autopsies, as well as that witness's testimony, violated defendant's Sixth Amendment right to confrontation where defendant had not been given a prior opportunity to cross-examine the performing medical examiner. We hold that the admission of those reports and the expert witness's testimony violated defendant's constitutional right to confrontation, but conclude that the error was nevertheless harmless.

I.

In October 2012, defendant Yoselyn Ortega was employed as a nanny by a family living in Manhattan and entrusted with the care of three young children. On October 25, 2012, defendant brought two of those children, aged two and six, into a bathroom of their Upper West Side home where she repeatedly stabbed them, thereby killing them. Defendant was charged with two counts of murder in the first degree and two counts of murder in the second degree. During defendant's 2018 trial, she conceded that she had killed the two children but asserted a defense of not guilty by reason of insanity (*see* Penal Law § 40.15).

The autopsy reports of the two victims were admitted into evidence at trial through the People's witness, Dr. Susan Ely of the New York City Office of Chief Medical Examiner (OCME). Dr. Ely did not perform either autopsy, nor was she present when the autopsies were conducted. Still, after a review of the autopsy reports, dictation tapes, and autopsy photographs, Dr. Ely testified to the number, type, and pattern of the victims' wounds, as well as to the cause and manner of death of each child. The autopsies were performed, and the reports created, by Dr. John A. Hayes of OCME. It is undisputed that defendant lacked the prior opportunity to cross-examine Dr. Hayes regarding these reports.

Though the entirety of each report was available to the jury, the jury only viewed seven diagrams of the decedents' bodies. These diagrams were displayed during Dr. Ely's testimony. Three of the diagrams depicted the outline of a generic human body, with indications of where the victims sustained stab wounds. The other diagrams narrowed in on the victims' necks and the six-year-old victim's hands. On each diagram, Dr.

Hayes had drawn the location of the victims' wounds and annotated these markings with descriptions of the size, location, and type of the respective wound. During jury deliberations, the jury requested to inspect the diagrams of the six-year-old victim's body; the jury did not request to view any other material from the autopsy reports.

Defendant objected to the admission of each autopsy report and Dr. Ely's testimony on the ground that they violated her constitutional right to confront the individual that conducted the autopsies. Supreme Court overruled defendant's objections. The jury ultimately found defendant guilty of two counts of murder in the first degree and two counts of murder in the second degree. The Appellate Division dismissed the two counts of murder in the second degree as "inclusory concurrent counts of the first-degree murder counts" and otherwise affirmed the judgment (202 AD3d 489, 492 [1st Dept 2022]). The Court agreed with Supreme Court that the admission of the autopsy reports through Dr. Ely did not violate defendant's right to confrontation, concluding that the reports were not testimonial because they "[did] not link the commission of the crime to a particular person" (*id.* at 491, quoting *People v John*, 27 NY3d 294, 315 [2016], and citing *People v Freycinet*, 11 NY3d 38, 42 [2008]). Regardless, the Court determined that "any error was harmless under the standards for constitutional error" (*id.* at 492, citing *People v Crimmins*, 36 NY2d 230 [1975]). A Judge of this Court granted defendant leave to appeal (38 NY3d 1073 [2022]).

II.

A.

The Sixth Amendment of the Federal Constitution provides that "[i]n all criminal prosecutions, the accused shall enjoy the right . . . to be confronted with the witnesses against [them]" (US Const Amend VI). Pursuant to this Confrontation Clause, a witness's out-of-court "testimonial" statement may only be admitted for its truth where the witness appears at trial or, if the witness is unavailable for trial, where the defendant has had a prior opportunity to cross-examine that witness (*Crawford v Washington*, 541 US 36, 68 [2004]). In *Crawford*, the United States Supreme Court defined "testimony" as "[a] solemn declaration or affirmation made for the purpose of establishing or proving some fact" (*id.* at 51 [internal quotation

marks omitted]). The Court provided several examples of the “core class of ‘testimonial’ statements” but acknowledged that “[v]arious formulations . . . exist” (*id.*). These formulations include, as relevant here, “statements that were made under circumstances which would lead an objective witness reasonably to believe that the statement would be available for use at a later trial” (*id.* at 51-52 [internal quotation marks omitted]).

This Court had occasion to consider the impact of *Crawford* and its progeny on the admission of autopsy reports in *Freycinet*, where it held that a redacted autopsy report was not testimonial for purposes of the Confrontation Clause (11 NY3d at 39). In reaching this conclusion, the Court evaluated four purported “indicia of testimoniality”: (1) “the extent to which the entity conducting the procedure is an arm of law enforcement”; (2) “whether the contents of the report are a contemporaneous record of objective facts”; (3) “whether a pro-law-enforcement bias is likely to influence the contents of the report”; and (4) “whether the report’s contents are directly accusatory in the sense that they explicitly link the defendant to the crime” (*id.* at 41 [internal quotation marks and citations omitted]). All four factors, the Court concluded, weighed in the People’s favor and thus, the autopsy report at issue was not testimonial (*id.* at 42).

Though the United States Supreme Court has never considered the testimonial nature of autopsy reports, the Court did address the testimonial nature of forensic reports in a trilogy of cases that inform our analysis here. Shortly after *Freycinet*, the Supreme Court decided *Melendez-Diaz v Massachusetts*, in which the Court brought forensic reports directly within the ambit of the Confrontation Clause (557 US 305 [2009]). In that case, the Court considered whether sworn “certificates of analysis” were testimonial where the certificates concluded that a substance recovered from the petitioner was cocaine and further established the weight of that substance (*id.* at 308-309). The Court held that the certificates were testimonial because they were affidavits—“a solemn declaration or affirmation made for the purpose of establishing or proving some fact”—and the affidavits were “made under circumstances which would lead an objective witness reasonably to believe that the statement would be available for use at a later trial” (*id.* at 310-311, quoting *Crawford*, 541 US at 51, 52 [internal quotation marks omitted]). In fact, the Court stated, “under Massachusetts law the sole purpose of the affidavits was to provide

prima facie evidence of the composition, quality, and the net weight of the analyzed substance” (*id.* at 311 [emphasis and internal quotation marks omitted]). Further, the certificates were “functionally identical to live, in-court testimony, doing ‘precisely what a witness does on direct examination’” (*id.* at 310-311, quoting *Davis v Washington*, 547 US 813, 830 [2006]). As such, the “affidavits were testimonial statements, and the analysts were ‘witnesses’” within the meaning of the Confrontation Clause (*id.* at 311). “Absent a showing that the analysts were unavailable to testify at trial *and* that petitioner had a prior opportunity to cross-examine them, petitioner was entitled to ‘be confronted with’ the analysts at trial” (*id.*, quoting *Crawford*, 541 US at 54 [some internal quotation marks omitted]).

The Supreme Court emphasized that forensic evidence “is not uniquely immune from the risk of manipulation,” particularly by law enforcement, nor is it insulated from the possibility of incompetence (*id.* at 318-319). The Court observed that “there is wide variability across forensic science disciplines with regard to techniques, methodologies, reliability, types and numbers of potential errors, research, general acceptability, and published material” (*id.* at 320-321 [internal quotation marks omitted]). These issues “might be explored on cross-examination” and “there is little reason to believe that confrontation will be useless in testing analysts’ honesty, proficiency, and methodology” (*id.*).

Two years later in *Bullcoming v New Mexico*, the Supreme Court held that an unsworn forensic laboratory report certifying that a sample of the defendant’s blood had an alcohol concentration above the legal limit was testimonial (564 US 647 [2011]). The report was materially similar to that in *Melendez-Diaz*—law enforcement had provided the sample “to a state laboratory required by law to assist in police investigations” and the report was sufficiently “formalized” (*id.* at 664-665 [internal quotation marks omitted]). Thus, as in *Melendez-Diaz*, the “certificate” concerning the testing results was “made for the purpose of establishing or proving some fact in a criminal proceeding” (*id.* at 663-664 [internal quotation marks omitted]).

The report was introduced into evidence through an analyst who did not perform or observe the gas chromatograph test on the defendant’s blood sample. This “surrogate testimony,” the Court concluded, did “not meet the constitutional requirement”

(*id.* at 652). The Court rejected the characterization of the performing analyst as a “mere scrivener” of results “generated by the gas chromatograph machine” because the analyst’s statements in the report “relat[ed] to past events and human actions not revealed in raw, machine-produced data” (*id.* at 659-660 [internal quotation marks omitted]). The testifying witness could not convey what “particular test and testing process” was employed, nor “expose any lapses or lies” on the testing analyst’s part (*id.* at 661-662). Additionally, the testifying witness did not offer “any independent opinion concerning” the defendant’s blood alcohol concentration (*id.* at 662 [internal quotation marks omitted]).

In a fractured opinion one year after *Bullcoming*, the Supreme Court held that an expert witness’s testimony regarding a DNA profile developed from semen found on a rape victim’s vaginal swabs did not violate the Confrontation Clause even though the witness did not perform the DNA testing or construct the DNA profile (*Williams v Illinois*, 567 US 50 [2012]). The plurality offered two bases for its holding. First, the plurality asserted that the DNA profile was not offered for the truth of the matter asserted and thus, was not a testimonial statement (*id.* at 57-58). Alternatively, the plurality determined that the DNA report was not testimonial because the report was created before a suspect was identified, the report’s primary purpose was not to “obtain[] evidence to be used against petitioner” but to assist in “finding a rapist who was on the loose,” and the DNA profile itself was not “inherently inculpatory” (*id.* at 58). Justice Thomas, in a concurrence, disagreed with both rationales of the plurality but would have held that the DNA report was not testimonial because it lacked “the solemnity of an affidavit or deposition” (*id.* at 111 [Thomas, J., concurring]). Therefore, while five Justices agreed that the DNA report was not testimonial, no rationale garnered a majority vote and *Williams* accordingly offers little guidance to our analysis (see *Marks v United States*, 430 US 188, 193 [1977]).

Other federal courts have considered the testimonial nature of autopsy reports (see e.g. *United States v Ignasiak*, 667 F3d 1217 [11th Cir 2012]; *Nardi v Pepe*, 662 F3d 107 [1st Cir 2011]; *United States v Williams*, 740 F Supp 2d 4 [DC Cir 2010]). Of particular relevance here is the Second Circuit’s opinion in *Garlick v Lee* (1 F4th 122 [2d Cir 2021]). On a petition for writ of habeas corpus, the court rejected a First Department deci-

sion that deemed an autopsy report non-testimonial in reliance on *Freycinet* and determined that the autopsy report was testimonial (*id.* at 134). In that case, “[t]he autopsy was performed in aid of an active police investigation” and “[t]he circumstances under which the autopsy report was created would lead any objective witness to ‘believe that the [report] would be available for use at a later trial’ ” (*id.*, quoting *Crawford*, 541 US at 52). Further, the court deemed the report “ ‘[a] solemn declaration or affirmation made for the purposes of establishing or proving some fact’ ” (*id.*, quoting *Crawford*, 541 US at 51). Applying “clearly established Supreme Court precedent,” the Second Circuit rejected this Court’s rationale in *Freycinet* (*id.* at 136).

We agree that *Freycinet*’s four-part framework for determining the testimonial nature of evidence does not survive *Melendez-Diaz* and *Bullcoming*. First, the Supreme Court in *Melendez-Diaz* made explicit that a statement need not be inherently inculpatory or “directly accuse” a defendant of wrongdoing to be considered testimonial (*Melendez-Diaz*, 557 US at 313). To the extent that the *Williams* plurality sought to establish such a litmus test for out-of-court statements, five Justices expressly rejected that approach (*see Williams*, 567 US at 114-117 [Thomas, J., concurring], 135-136 [Kagan, J., dissenting]). *Freycinet*’s consideration of “whether the contents of the report are a contemporaneous record of objective facts” also fails under Supreme Court scrutiny (11 NY3d at 41). That a forensic report records “near-contemporaneous observations” of the test or procedure does not shield it from the Confrontation Clause’s protections (*Melendez-Diaz*, 557 US at 315).

Finally, the two factors of *Freycinet* that consider the witness’s independence from law enforcement and their susceptibility to a “pro-law-enforcement bias” must similarly fall (*see Freycinet*, 11 NY3d at 41). The *Melendez-Diaz* Court specifically rejected the argument that statements “prone to distortion or manipulation” and those that are the “resul[t] of neutral, scientific testing” should be treated any differently for purposes of the Sixth Amendment (557 US at 317-318). The reliability of an out-of-court statement has no effect on the testimonial nature of that statement, for the Confrontation Clause “ ‘commands, not that evidence be reliable, but that reliability be assessed in a particular manner: by testing in the crucible of cross-examination’ ” (*id.* at 317, quoting *Crawford*, 541 US at 61). The Supreme Court again rejected this argu-

ment in *Bullcoming* where the respondent asserted that the analyst's statements "were simply observations of an independent scientis[t] made according to a non-adversarial public duty" (*Bullcoming*, 564 US at 664 [internal quotation marks omitted] ["That argument fares no better here than it did in *Melendez-Diaz*"]). The performing analyst "must be made available for confrontation even if they possess 'the scientific acumen of Mme. Curie and the veracity of Mother Teresa'" (*id.* at 661, quoting *Melendez-Diaz*, 557 US at 319-320 n 6).

[1] We now hold that *Freycinet* should no longer be followed because it is inconsistent with the demands of the Confrontation Clause as articulated more recently by the Supreme Court.

B.

[2] Turning now to the autopsy reports at issue here, we hold that the reports are testimonial under established Supreme Court precedent. The reports are "solemn declaration[s] or affirmation[s] made for the purpose of establishing or proving some fact" (*Crawford*, 541 US at 51), namely the homicidal nature of these victims' deaths. Further, the reports contain indicia of formality that render them "solemn declaration[s] or affirmation[s]" (*Crawford*, 541 US at 51). Both reports, labeled with the formal title of "REPORT OF AUTOPSY," bear the official OCME seal. Both reports include a signed and dated certification that Dr. Hayes performed the autopsies. Specifically, the certification, as it pertains to the autopsy performed on the six-year-old victim, reads:

"I hereby certify that I, John A. Hayes, M.D., City Medical Examiner - II, have performed an autopsy on the body of [the six-year-old victim] on the 26th day of October, 2012, commencing at 8:30 a.m., in the Manhattan Mortuary of the Office of Chief Medical Examiner of the City of New York. This autopsy was performed in the presence of Drs. Graham, Stahl-Herz and Vincent."

The certification for the two-year-old victim's autopsy is functionally identical. Finally, the results of each autopsy were formalized on an introductory page bearing the name of the performing examiner, the date on which the autopsies were conducted, and the "M.E. Case" number.

The reports were also created "under circumstances which would lead an objective witness reasonably to believe that the statement[s] would be available for use at a later trial" (*id.* at

52). The tragic condition of the bodies alone was indication enough to Dr. Hayes that these autopsy reports would have been available one day for use in a criminal prosecution. Additionally, the autopsy reports do not merely state the location and size of wounds; instead, they repeatedly mention that the children were killed and that they were killed by defendant. The autopsy report of the six-year-old victim contained a “SUPPLEMENTAL CASE INFORMATION” page which provided that the deceased died “as a result of injuries caused by multiple stab wounds inflicted . . . by the nanny of the children.” The autopsy report for the two-year-old victim also contained a “SUPPLEMENTAL CASE INFORMATION” page which stated that the victim died “as a result of injuries caused by three stab wounds inflicted to the neck of the decedent by the nanny of the children.” Both reports acknowledged an open investigation and noted the name of the assigned New York Police Department detective. The reports further stated that, according to the assigned detective, “the exact circumstances of how or why the decedents were stabbed by the live-in nanny [were] unclear” at the time of the autopsies.

Moreover, OCME was required by law to deliver “all records relating to” these deaths to the New York County District Attorney’s Office because there was an “indication of criminality” (NY City Charter § 557 [g]). Dr. Hayes, aware of his legal obligation to report his findings to the District Attorney, should have reasonably believed that these reports that he created could be used in a criminal prosecution. Because these autopsy reports are testimonial and defendant was not given the opportunity to cross-examine the performing medical examiner, the admission of the reports through an examiner who had not performed the autopsies and did not create these reports violated defendant’s Sixth Amendment right of confrontation. While some autopsies conducted under different circumstances may produce reports that do not rise to the level of testimoniality, that is simply not the case here.

C.

It is clear that “we may not disregard [the Confrontation Clause] at our convenience” (*Melendez-Diaz*, 557 US at 325), even where it has “the effect of allowing the guilty to go free” (*Davis v Washington*, 547 US 813, 833 [2006]). It is also the case, however, that the Confrontation Clause does not entirely preclude the use of information contained in testimonial

autopsy reports. The Supreme Court suggested an “independent analysis” standard in *Bullcoming* (see 564 US at 662 [“Nor did the State assert that (the testifying analyst) had any ‘independent opinion’ concerning Bullcoming’s BAC”]).

More recently, this Court in *People v John*, holding that a DNA report was testimonial, explicitly delineated the circumstances in which expert analysts could testify: “an analyst who witnessed, performed or supervised the generation of [a] defendant’s DNA profile, or who used his or her independent analysis on the raw data” could testify in satisfaction of the Confrontation Clause (27 NY3d at 315). Of course, autopsies and DNA testing are hardly neat forensic parallels. DNA testing relies on computer-generated information whereas autopsies involve, almost exclusively, “the skill, methodology, and judgment of . . . highly trained examiners” without the aid of computer software (*Ignasiak*, 667 F3d at 1232). DNA testing may be repeated until the sample has been expended. Autopsies necessarily carry a certitude of finality. Once a body has undergone an invasive examination and been returned to loved ones, there is rarely an opportunity to do any confirmatory examination.

[3] Though there are these critical differences between DNA testing and autopsies, we find it appropriate to look to *John* to inform the standard here. Importing that approach, we hold that an expert medical examiner may offer conclusions as to the cause and manner of death, and surrounding circumstances, where that testifying expert performed, supervised, or observed the autopsy or used their independent analysis on the primary data (see *State v Navarette*, 2013-NMSC-003, 294 P3d 435, 443 [2013]).

Under New York’s evidentiary rules, a testifying expert may rely on inadmissible hearsay material “if it is of a kind accepted in the profession as reliable in forming a professional opinion” (*People v Goldstein*, 6 NY3d 119, 124 [2005], quoting *People v Sugden*, 35 NY2d 453, 460 [1974]), so long as there is “evidence establishing the reliability of the out-of-court material” (*Hambach v New York City Tr. Auth.*, 63 NY2d 723, 726 [1984]). While our evidentiary rules would permit an expansive foundation for expert testimony from medical examiners, the more difficult question is which of these materials a testifying expert may rely upon to meet the demands of the Confrontation Clause. Autopsy files contain a variety of materials, such as autopsy reports, diagrams, photographs, dictation tapes,

microscopic slides, crime scene evidence, and more, which are materials frequently relied upon by testifying medical examiners (see *Commonwealth v Reavis*, 465 Mass 875, 883, 992 NE2d 304, 311-312 [2013]; see also *Mahdavi v State*, 2020 OK CR 12, 478 P3d 449 [2020]; *Commonwealth v Brown*, 646 Pa 396, 185 A3d 316 [2018]; *State v Bass*, 224 NJ 285, 132 A3d 1207 [2016]; *State v Joseph*, 230 Ariz 296, 283 P3d 27 [2012]; *State v Kennedy*, 229 W Va 756, 735 SE2d 905 [2012]). Autopsy photographs and video recordings of a conducted autopsy may properly be relied upon by a testifying witness reaching their own independent conclusions. Further, standard anatomical measurements devoid of the subjective skill and judgment of the performing examiner constitute primary data upon which an expert may rely.

Here, we cannot be certain that any of Dr. Ely's conclusions were based on her independent review of primary data because such evidence was not elicited by the People. At times during her testimony, Dr. Ely appeared to be reading from the displayed diagrams or the autopsy reports themselves. Indeed, Dr. Ely provided details and language that was entirely identical to that in Dr. Hayes's reports.

At other times, however, Dr. Ely offered what appeared to be independent conclusions. Specifically, two pieces of Dr. Ely's testimony do not appear in the autopsy reports and thus, at first glance, seem to be her conclusions alone: that the six-year-old victim struggled against the attacker and that there was a reasonable possibility that the perpetrator stood behind the two-year-old victim when the major neck wound was inflicted. But the People failed to elicit testimony which would allow us to definitively say on which materials within the autopsy files Dr. Ely based these conclusions. Dr. Ely testified that the pattern of the wounds, the number of wounds, the placement of the wounds on the six-year-old victim's hands, and the "gaping" nature of certain wounds on the victim's torso led her to conclude that the victim was conscious and fighting against the attacker during the incident. We are unable to discern whether Dr. Ely based this conclusion on Dr. Hayes's various conclusions, such as his characterizations of some stab wounds as "gaping" and the grouping and orientation of the varying wounds, or on an independent analysis of permissible primary data, such as the photographs' objective depiction of the wounds and their patterning. As to the second conclusion, Dr. Ely based her finding on the fact that the two-year-old's

neck wound was deeper on one side than the other. Again, it is unclear from the record whether she impermissibly based this testimony on Dr. Hayes's conclusion that the stab wounds on the right side of the neck were superficial while the wound on the left side of the neck was "gaping" and "deeper" than the right side or on the primary data.

Nearly all of Dr. Ely's testimony was the type of "surrogate testimony" rejected by the Supreme Court in *Bullcoming* (see 564 US at 661) in that Dr. Ely simply "parrot[ed]" the autopsy reports (see *John*, 27 NY3d at 309). We do not suggest that agreement between the testifying expert and the performing examiner is itself impermissible. Rather, it is the People's obligation to establish that their testifying experts, who did not perform or observe the relevant autopsy, reached their conclusions themselves based upon a review of the proper materials rather than the conclusions of the performing examiner. Where the People fail to do so, we cannot be sure that a defendant's Sixth Amendment right has been safeguarded. As for the rest of Dr. Ely's testimony, we simply cannot tell whether it reflected her own deliberate, interpretative work product based on the primary data. We thus conclude that all of Dr. Ely's testimony was improper under the Sixth Amendment.

III.

[4] Though defendant's constitutional right to confrontation was violated by the admission of the autopsy reports and Dr. Ely's testimony, that error was harmless beyond a reasonable doubt and does not mandate reversal (see *Crimmins*, 36 NY2d at 237). Under the harmless error standard, this Court must first consider whether the evidence of a defendant's guilt is overwhelming (see *People v Mairena*, 34 NY3d 473, 484 [2019]). If the proof was overwhelming, we must then consider whether "there is [a] reasonable possibility that the error might have contributed to defendant's conviction" (*id.* at 485, quoting *Crimmins*, 36 NY2d at 237). Because defendant did not dispute that she caused the death of the victims but raised a defense of not guilty by reason of insanity, the harmless error analysis must be conducted accordingly (see *e.g. Goldstein*, 6 NY3d at 130; *People v Maher*, 89 NY2d 456, 462 [1997]; see also 202 AD3d at 492 ["Nothing in the autopsy report had any bearing on defendant's defenses of insanity and lack of intent"]). Here, we agree with the Appellate Division that the evidence of de-

fendant's guilt was overwhelming and the error in admitting the autopsy reports and allowing Dr. Ely's improper testimony did not contribute to defendant's conviction. Defendant argues that the testimony regarding the six-year-old victim's self-defense likely impacted the jury's view of the insanity defense. We disagree. The children's reactions to defendant's attack and whether they defended themselves are entirely unrelated to whether defendant "lacked substantial capacity to know or appreciate . . . [t]he nature and consequences" of her actions (*see* Penal Law § 40.15 [1]). In sum, the autopsy reports and Dr. Ely's testimony had little to no bearing on defendant's insanity defense.

We have reviewed defendant's remaining contentions and conclude that they do not provide grounds for reversal.

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge WILSON and Judges RIVERA, GARCIA, CANNATARO, TROUTMAN and DUFFY* concur. Judge HALLIGAN took no part.

Order affirmed.

* Designated pursuant to NY Constitution, article VI, § 2.

[227 NE3d 312, 203 NYS3d 878]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TRAMEL CUENCAS, Appellant.

Argued September 14, 2022; reargued October 19, 2023; decided November 21, 2023

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered December 30, 2020. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (Danny K. Chun, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree (two counts) and robbery in the second degree. The appeal to the Appellate Division brought up for review the denial, after a hearing, of those branches of defendant's omnibus motion which were to suppress physical evidence and statements he made to law enforcement officials.

People v Cuencas, 192 AD3d 109, reversed.

HEADNOTES**Crimes — Unlawful Search and Seizure — Apparent Authority to Consent to Warrantless Search — Facts Known to Police at Time of Entry**

1. In a criminal prosecution in which defendant sought to suppress physical evidence recovered during a search of his apartment, the suppression court erred in denying defendant's motion based on facts not known to police at the time they initially entered defendant's apartment building without a warrant. At the suppression hearing, the person who opened the building's exterior door testified that he had keys to the apartment, that his mother owned the building, and that he was free to come and go into the downstairs apartment. Those facts were irrelevant to the issue of apparent authority to consent to a warrantless search of defendant's apartment, which turned solely on what the detectives knew or should have known at the time they entered.

Crimes — Unlawful Search and Seizure — Consent to Enter Apartment — Apparent Authority

2. In a criminal prosecution, the warrantless entry into defendant's home after a third party, without responding verbally to a detective's request to "come in and talk to you," opened the exterior door of a two-family house wide enough to allow police to step into a vestibule and observe defendant inside the first-floor apartment through its open door violated defendant's constitutional rights, where the detectives' belief that the third party had apparent authority to consent to a search of defendant's apartment was not reasonable. When the prosecution seeks to justify a warrantless search by proof of voluntary consent, it may show that permission to search was obtained from a third party who possessed common authority over or other

sufficient relationship to the premises or effects sought to be inspected. The officers never sought consent to enter defendant's apartment, only to enter the common vestibule to speak with the person who answered the exterior door. Even if the detective's question could have been interpreted as a request to search both, or either, of the apartments, the circumstances did not support a view that the person who answered the door appeared to have the authority to consent. All the detective knew was that the third party answered the repeated knocking by the police at 5:30 a.m. by looking through a window and then opening the front door; the third party was neither of the suspects the detectives were looking for, nor was he someone known to the detectives; and the vestibule had two doors within it, one of which was at the base of a staircase and both of which bore exterior-type locks. Even if the detectives knew that the third party had been in the first-floor apartment shortly before answering the door, something more would be required to establish a reasonable belief of apparent authority.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Evidence §§ 595, 648; AM JUR 2d Searches and Seizures §§ 277, 278, 280, 282.

CARMODY-WAIT 2d Search and Seizure §§ 173:285, 173:286, 173:288, 173:291.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 3.6, 3.10.

NY JUR 2d Criminal Law: Procedure §§ 438, 442, 445, 525.

ANNOTATION REFERENCE

Admissibility of evidence discovered in warrantless search of rental property authorized by lessor of such property—state cases. 61 ALR5th 1.

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POINTS OF COUNSEL

Patricia Pazner, Appellate Advocates, New York City (Yvonne Shivers of counsel), for appellant. I. The police violated appellant's rights to counsel and to be free from unreasonable searches and seizures by going to appellant's residence with the intention of making a warrantless arrest so that his state right to counsel would not attach. (*People v Molnar*, 98 NY2d 328; *Johnson v United States*, 333 US 10; *People v Harris*, 77 NY2d 434; *People v Samuels*, 49 NY2d 218; *People v Xochimiltl*,

32 NY3d 1026; *People v Garvin*, 30 NY3d 174; *United States v Reed*, 572 F2d 412; *People v Johnson*, 64 NY2d 617; *People v Parris*, 83 NY2d 342; *People v McBride*, 14 NY3d 440.) II. The lower court erred in finding that another resident in a multifamily dwelling gave the police consent to enter appellant's apartment by allowing the police to enter the commonly shared vestibule area of the building, and the police violated appellant's right to be free from unreasonable searches and seizures when they crossed the threshold of his apartment and arrested him without a warrant. (*Payton v New York*, 445 US 573; *People v Garvin*, 30 NY3d 174; *People v Levan*, 62 NY2d 139; *Schneckloth v Bustamonte*, 412 US 218; *Bumper v North Carolina*, 391 US 543; *People v Gonzalez*, 39 NY2d 122; *People v Whitehurst*, 25 NY2d 389; *United States v Matlock*, 415 US 164; *People v Adams*, 53 NY2d 1; *Florida v Jimeno*, 500 US 248.) III. The evidence failed to establish that appellant's actions were a reasonably foreseeable cause of the decedent's death and was, therefore, legally insufficient to convict appellant of felony murder. (*Jackson v Virginia*, 443 US 307; *People v Hernandez*, 82 NY2d 309; *People v Kibbe*, 35 NY2d 407; *People v Matos*, 83 NY2d 509; *People v Steinberg*, 79 NY2d 673; *Patterson v New York*, 432 US 197; *In re Winship*, 397 US 358.) IV. Appellant was deprived of a fair trial by the admission of the title of a Jaguar and photographs of appellant posing with it, which were circumstantially probative only based on speculation, and unduly prejudicial. (*People v Scarola*, 71 NY2d 769; *People v Weiss*, 290 NY 160; *People v Crimmins*, 36 NY2d 230; *Darden v Wainwright*, 477 US 168; *United States v Agurs*, 427 US 97; *Chapman v California*, 386 US 18; *Collins v Scully*, 755 F2d 16.)

Eric Gonzalez, District Attorney, Brooklyn (*Sholom J. Twersky*, *Leonard Joblove* and *Denise Pavlides* of counsel), for respondent. I. Defendant has failed to preserve for appellate review his claim that, because his arrest in his home was allegedly made for the purpose of preventing his right to counsel from attaching, the arrest violated the constitutional prohibition against unreasonable searches and seizures. In any event, that claim is meritless. In addition, the arrest did not violate defendant's state constitutional right to counsel. (*People v Garvin*, 30 NY3d 174; *Payton v New York*, 445 US 573; *People v Xochimitl*, 32 NY3d 1026; *People v Martin*, 50 NY2d 1029; *People v Gordon*, 36 NY3d 420; *People v Harris*, 77 NY2d 434; *People v McBride*, 14 NY3d 440; *People v Molnar*, 98 NY2d 328; *People v Simmon*, 171 AD3d 557.) II. The record supports

the hearing court's finding that a person with apparent authority tacitly consented to the police entry into codefendant's apartment and that, consequently, the arrest of defendant in that apartment was lawful. (*People v Xochimitl*, 32 NY3d 1026; *People v Adams*, 53 NY2d 1; *People v Cosme*, 48 NY2d 286; *People v John*, 27 NY3d 294; *Illinois v Rodriguez*, 497 US 177; *United States v Sabo*, 724 F3d 891; *People v Whitehurst*, 25 NY2d 389; *People v Crimmins*, 36 NY2d 230.) III. Defendant has failed to preserve his claim that the evidence was legally insufficient to support the convictions of felony murder. In any event, the evidence was legally sufficient to support those convictions. (*People v Hawkins*, 11 NY3d 484; *People v Becoats*, 17 NY3d 643; *People v Davis*, 28 NY3d 294; *People v Matos*, 83 NY2d 509; *People v Hernandez*, 82 NY2d 309; *Matter of Anthony M.*, 63 NY2d 270; *Matter of Suarez v Byrne*, 10 NY3d 523.) IV. The car title and photographs were properly admitted into evidence. (*People v Frumusa*, 29 NY3d 364; *People v Patterson*, 128 AD3d 424, 28 NY3d 544; *People v Wood*, 79 NY2d 958; *People v Poblner*, 32 NY2d 356; *People v Crimmins*, 36 NY2d 230.)

The Legal Aid Society, New York City (Corey Stoughton, Philip Desgranges and Paula Garcia-Salazar of counsel), for The Legal Aid Society, amicus curiae. I. The heightened expectation of privacy inside the home requires special protection from warrantless arrests. (*Payton v New York*, 445 US 573; *United States v Watson*, 423 US 411; *Kyllo v United States*, 533 US 27; *Silverman v United States*, 365 US 505; *People v Xochimitl*, 32 NY3d 1026; *United States v United States Dist. Court for Eastern Dist. of Mich.*, 407 US 297; *People v Garvin*, 30 NY3d 174; *Gregory v Chicago*, 394 US 111; *People v Reynoso*, 309 AD2d 769, 2 NY3d 820; *People v Spencer*, 29 NY3d 302.) II. Protecting the indelible right to counsel requires heightened protection from warrantless arrests in the home. (*Kirby v Illinois*, 406 US 682; *People v Samuels*, 49 NY2d 218; *People v Harris*, 77 NY2d 434; *People v Blake*, 35 NY2d 331; *People v Hobson*, 39 NY2d 479; *People v Settles*, 46 NY2d 154; *People v Cunningham*, 49 NY2d 203; *People v Witencki*, 15 NY2d 392; *People v Ferro*, 63 NY2d 316; *People v Lopez*, 16 NY3d 375.) III. Under the circumstances presented by this case, consent to enter a home does not render this warrantless arrest reasonable. (*People v Gonzalez*, 88 NY2d 289; *People v Davis*, 75 NY2d 517; *Schneckloth v Bustamonte*, 412 US 218; *People v Lane*, 10 NY2d 347; *People v Whitehurst*, 25 NY2d 389; *Davis v United States*, 328 US 582; *Zap v United States*, 328 US 624; *People v*

Levan, 62 NY2d 139; *People v Burr*, 70 NY2d 354; *People v McBride*, 14 NY3d 440.)

OPINION OF THE COURT

Chief Judge WILSON.

Well before daybreak, four armed officers knocked repeatedly on the exterior door and window of a two-family residence. Someone responded by coming to the exterior door and opening it. The officers identified themselves as police, the person moved aside, and the officers entered the vestibule. Through the doorway of the downstairs apartment, they saw the person they wished to arrest, entered that apartment, and arrested him. The question before us is whether the suppression court should have granted Mr. Cuencas's motion to suppress for lack of consent for police to enter the apartment. We hold that it was error to deny the motion and now reverse.

I.

Testimony adduced at the suppression hearing and trial established the following. On November 14, 2012, codefendants Tramel Cuencas and Irving Gavin abducted Thomas Dudley at gunpoint from his Brooklyn apartment, in the presence of Mr. Dudley's sisters, Monique and Brianna, and his cousin, Travis. They bound Mr. Dudley's hands with zip ties. He was found dead in a Queens park the next morning, with his throat and wrists cut. Some zip ties were next to his body.

On November 17, Monique and Travis reported Mr. Dudley's abduction to Queens detectives, showing a detective photos of the two abductors, stored on Monique's phone. A detective emailed the photos to detectives in the Brooklyn precinct; officers there recognized the men as Mr. Cuencas and Mr. Gavin. From a photo array, Monique subsequently identified them as the perpetrators. Detectives then issued "perp positive" I-cards¹ for the two men.

However, the police did not apply for a warrant to arrest Mr. Cuencas or Mr. Gavin. Instead, at 5:30 a.m. on November 19, a

1. "I-card" refers to "Investigation Card," a computerized notification used by the New York City Police Department to alert patrol officers that an individual is wanted by the police. The I-card indicates the wanted individual as belonging to one of three categories: (1) "Perpetrator - Probable Cause to Arrest"; (2) "Suspect Only - No Probable Cause to Arrest"; (3) "Witness" (New York City Police Department Patrol Guide Procedure No. 208-23). Officers are instructed to detain, but not necessarily arrest, individuals named on I-cards who are designated "Perpetrator - Probable Cause to Arrest" (*id.*).

“warrant team” arrived at the residence where the police believed they could be found, a two-story, two-family house. The team was composed of four armed detectives, led by Detective Fogelman.

The detectives approached the front door of the building and knocked several times without response. An officer then knocked on a first-floor window. A man whom officers did not recognize looked out of the window and then, after some time, the same man, Kwamel Jeter, came to the front exterior door and opened it.² Detective Fogelman testified that when Mr. Jeter opened the door, he asked, “How ya doing, sir? Mind if we come in and talk to you?” In response, Mr. Jeter opened the door wider, which Detective Fogelman took to mean that Mr. Jeter was consenting to the detectives coming in. None of the detectives asked Mr. Jeter who he was, what his name was, whether he lived in the building or what he was doing there. Mr. Jeter never made any verbal response to Detective Fogelman’s request to enter to speak with him.

The front door of the house opened to a small vestibule with two interior doors, each visibly bearing a lock—one leading into a first-floor apartment and the other leading to a set of stairs leading up to a separate apartment. Both doors were open. Although officers did not know whether Mr. Cuencas and Mr. Gavin lived on the first or second floor, Detective Fogelman saw Mr. Cuencas through the open door between the vestibule and the first-floor apartment. The detectives left the vestibule, entered into the first-floor apartment and then arrested Mr. Cuencas in the living room and Mr. Gavin in a bedroom, which was towards the rear of the apartment.

Officers transported Mr. Cuencas and Mr. Gavin to a Queens precinct and placed them in separate interrogation rooms. At some point, another officer recovered Cuencas’s cell phone from him. At approximately 11:15 a.m., a detective entered the room and gave Mr. Cuencas his *Miranda* warnings. Mr. Cuencas said that he waived his rights and would speak to the detective.

After several hours of questioning, Mr. Cuencas confessed that he and Mr. Gavin had abducted Mr. Dudley. He said that

2. From this point on, the testimony of Mr. Jeter and of Detective Fogelman diverge sharply as to the conduct of the police. The suppression court credited Detective Fogelman’s testimony and the Appellate Division did not disturb that finding. We are therefore bound by it.

he needed money and that Mr. Cruz, a drug dealer, offered to pay him for abducting Mr. Dudley, who was also a drug dealer. Mr. Cruz told Mr. Cuencas that he wanted to abduct Mr. Dudley so that Mr. Dudley's partner, Ali, would release Mr. Cruz's boss, Rob, whom Ali had abducted previously. Mr. Cruz assured Mr. Dudley and Mr. Gavin that their only role would be abducting Mr. Dudley, and that Mr. Dudley would not be hurt. Mr. Cuencas further told the police that he and Mr. Gavin led Mr. Dudley from his apartment to a waiting van. They remained with Mr. Dudley in the back as the van drove away but exited it a few minutes later. At the time they left, Mr. Dudley was alive.

The next day, while executing a search warrant on the apartment, police found the title for a Jaguar in the name of Victor Cruz in a safe located in one of the apartment's bedrooms. On a windowsill, police also found the keys to the car itself, which was parked across the street from the apartment.

Mr. Cuencas and Mr. Gavin were indicted on several charges including kidnapping, robbery, and felony murder. The People theorized that Mr. Cruz had given Mr. Gavin the Jaguar as compensation for participation in the abduction—the extravagance of the gift was evidence that Mr. Gavin and Mr. Cuencas knew that Mr. Dudley would be killed.

Contending that the warrantless, nonconsensual entry into his home was unlawful, Mr. Cuencas moved to suppress the Jaguar title in Cruz's name and the cell phone, which contained pictures of Mr. Cuencas posing with the Jaguar. Following a *Payton* hearing, although the suppression court rejected the People's argument that Mr. Cuencas did not have a reasonable expectation of privacy in the first-floor apartment, which it determined was Mr. Gavin's residence,³ the court nonetheless denied Mr. Cuencas's motion. The court based its decision on Detective Fogelman's testimony as to the circumstances under which the detectives gained permission to enter the vestibule and also on Mr. Jeter's testimony that his mother owned the entire building, that he had a key to the first-floor apartment, and that he could come and go as he pleased—information unknown to the detectives at the time they arrested Mr. Cuencas.

3. The Appellate Division noted that it was bound by the suppression court's finding that Mr. Cuencas had an expectation of privacy in Mr. Gavin's residence (192 AD3d 109, 112 [2d Dept 2020], citing *People v LaFontaine*, 92 NY2d 470 [1998]), and the People do not press that argument on appeal. For readability reasons, we refer to the apartment as Mr. Cuencas's.

After a jury trial, Mr. Cuencas was convicted of two counts of murder in the second degree (Penal Law § 125.25 [3]) and one count of robbery in the second degree (Penal Law § 160.10 [2] [b]). Mr. Cuencas was sentenced as a second felony offender to two concurrent prison terms of 25 years to life for the murder convictions and 15 years, with five years of postrelease supervision, for the robbery conviction. The Appellate Division affirmed his conviction and upheld the denial of his suppression motion. The Court determined that the detectives had gone to Mr. Cuencas's home for the specific purpose of arresting him and that Mr. Cuencas specifically raised the question of whether a warrantless home arrest conducted to delay the attachment of counsel violated the New York Constitution, but “decline[d] to find” that the intent of the police to conduct a warrantless arrest of Mr. Cuencas in his home created a “new category of *Payton* violations” because it saw “no viable path to resolving [the] question in [Mr. Cuencas’s] favor within the current framework of New York law” (192 AD3d 109, 113-114 [2d Dept 2020]). A Justice of the Appellate Division granted leave to appeal (37 NY3d 962 [2021]).

We now reverse. The warrantless entry into Mr. Cuencas's home was not based on consent under the New York and United States Constitutions.

II.

Mr. Cuencas challenges the suppression court's determination that Mr. Jeter had apparent authority to consent to the police entry of the downstairs apartment based on Detective Fogelman's testimony that there may have been two apartments inside the building and he did not know who Mr. Jeter was, and because Mr. Jeter only consented to police entry into the vestibule, not the apartment. The prosecution responds that Mr. Jeter had apparent authority because he looked out the window of the first-floor apartment and opened the door to the building early in the morning, and because his testimony before the suppression court established that he had actual authority over the apartment.

Under article I, § 12 of the New York Constitution and the Fourth Amendment of the United States Constitution, searches and seizures inside a home without a warrant are presumptively unreasonable (*People v Knapp*, 52 NY2d 689, 694 [1981]; *Payton v New York*, 445 US 573, 590 [1980] [explaining that with respect to the home, the Fourth Amendment draws a “firm

line at the entrance to the house”)). Absent one of two narrow circumstances, exigent circumstances or voluntary consent, the police may not enter a private dwelling to arrest its occupant without an arrest warrant (*People v Levan*, 62 NY2d 139, 144 [1984]; *Payton*, 445 US at 587-588). Whether an individual voluntarily consented to a home’s search is a question of fact, but the minimum factual showing necessary to constitute consent is a question of law (*People v McRay*, 51 NY2d 594, 601 [1980]).⁴ Here, the testimony before the suppression court does not establish that the police had consent to enter Mr. Cuencas’s home.

[1] As a threshold matter, we clarify that the suppression court erred when it relied on facts not known to the police at the time they entered, such as Mr. Jeter’s statement that he had keys to the apartment, that his mother owned the building, and that he was free to come and go into the downstairs apartment. Those facts are irrelevant to the issue of apparent authority, which turns solely on what the detectives knew or should have known at the time they entered (*see People v Adams*, 53 NY2d 1, 9 [1981] [whether an officer reasonably believed that an individual has apparent authority to consent to a warrantless home search is “based upon an objective view of the circumstances present” at the time of the search]). After all, guests sometimes answer a knock at their host’s doors.

The United States Supreme Court first outlined third-party consent as an exception to the warrant requirement in *Coolidge v New Hampshire* (403 US 443 [1971]), *Schneckloth v Bustamonte* (412 US 218 [1973]), and *United States v Matlock* (415 US 164 [1974]). Together, those cases stand for the proposition that when “the prosecution seeks to justify a warrantless search by proof of voluntary consent,” it “may show that permission to search was obtained from a third party who possessed common authority over or other sufficient relationship to the premises or effects sought to be inspected” (*Matlock*, 415 US at 170-171). Common authority cannot be implied by the mere interest the third party has in the property (*Chapman v*

4. Our dissenting colleagues characterize the central issue in this case as a factual dispute, but acknowledge that whether the evidence here as to the reasonableness of the officers’ belief that Mr. Jeter had the authority to consent to entry into the first-floor apartment and had given his consent to do so raises an issue as to the minimum showing necessary to establish third-party consent, which is a question of law (*cf. People v McRay*, 51 NY2d 594, 601 [1980]).

United States, 365 US 610 [1961] [landlord could not validly consent to the search of a house he had rented to another]; *Stoner v California*, 376 US 483 [1964] [night hotel clerk could not validly consent to search of customer's room]).

In *Adams*, we held that under the Fourth Amendment of the United States Constitution, if “the searching officers rely in good faith on the apparent capability of an individual to consent to a search and the circumstances reasonably indicate that that individual does, in fact, have the authority to consent, evidence obtained as the result of such a search should not be suppressed” (53 NY2d at 9-10). The standard set out in *Adams* is an objective one—whether a reasonable person could conclude that consent was given by someone with authority to do so. Subsequent United States Supreme Court law has analyzed the Fourth Amendment similarly (*see Illinois v Rodriguez*, 497 US 177, 188-189 [1990]).

[2] Here, the circumstances do not reasonably indicate that Mr. Jeter had apparent authority to consent to the detectives' entry into Mr. Cuencas's apartment. The People contend that because the detectives knocked on the exterior door and window for several minutes, then saw a man peering out of the window near the front exterior door and the first-floor apartment door was open, it was reasonable, in view of the early hour, to conclude that the man opening the door had come from the first-floor apartment and no further inquiry was necessary.

The fundamental problem with the People's argument is that the officers never sought consent to enter Mr. Cuencas's apartment—only to enter the common vestibule to speak with the person who answered the exterior door. The record shows that there were separate doors inside the vestibule, one for each of the two apartments in the building, each bearing a lock, and that each door was open. When the People asked Detective Fogelman to describe how he perceived the building upon his arrival at 5:30 a.m., he testified that “It may have had two apartments, an upstairs and a downstairs.” Detective Fogelman asked for consent to enter through the exterior door into the vestibule, not into either of the two apartments, and it is not disputed that Mr. Cuencas's apartment had a door separating it from the vestibule.

Even if the detective's question could be interpreted as a request to search both, or either, of the apartments, the circumstances would not support a view that Mr. Jeter appeared to have the authority to consent. The People's reliance on *Adams* and *Rodriguez* is misplaced, as those cases show that a reasonable belief of apparent authority requires some claim of authority by the person granting consent. In both cases, the third party verbally communicated information to law enforcement that would lead a reasonable person to believe the third party had authority. In *Adams*, the person giving consent told the police about the weapons in the apartment, escorted the police to the apartment, and "gave them access by opening the door with a key she was carrying" (53 NY2d at 5-6). Likewise, in *Rodriguez*, the person granting consent "several times referred to the apartment . . . as 'our' apartment" and "unlock[ed] the door with her key so that the officers could enter and arrest [the defendant]" (497 US at 179-180).

People v John (27 NY3d 294 [2016]) is also inapposite. There, a resident of a multifamily brownstone directed officers to the common basement of the building where she had seen the defendant enter with a gun—a basement that "did not have any areas designated for particular tenants" (*id.* at 297-298). *John* cited our decision in *People v Leach* (21 NY3d 969 [2013]), a case in which we held that the defendant had no reasonable expectation of privacy in a bedroom that was not his, but was used by his grandmother to house visitors (*cf. People v Wood*, 31 NY2d 975, 976 [1973] [homeowner could lawfully consent to search of a boarder's bedroom in her house only because that room was not set aside for the boarder's exclusive possession and use when the boarder shared it with the homeowner's 10-year-old son, over whom she had dominion]).

Here, the suppression court found that Mr. Cuencas had an expectation of privacy in the apartment. Thus, the very case law relied on by the People shows that the minimum threshold for apparent authority under the New York and United States Constitutions requires some communication or conduct by the person giving consent to support a claim of authority. It would be a radical departure to say that so long as an unidentified person within a multifamily apartment building opens the building's exterior door at the request of the police, that person will be deemed to have had apparent author-

ity to authorize a police search of the entire premises.⁵ Here, all Detective Fogelman knew was that Mr. Jeter answered the repeated knocking by the police at 5:30 a.m. by looking through a window and then opening the front door; Mr. Jeter was nei-

5. The Appellate Division cases relied on by the dissent demonstrate two things. First, there is no contrary decision from our Court.

Second, those cases cited by the dissent involving questions of third-party consent are fully consistent with our holding because every one of them involved instances in which police sought entry into a specified apartment unit within which they believed or knew the defendant to reside (*see People v Brown*, 234 AD2d 211, 213 [1st Dept 1996], *affd* 91 NY2d 854 [1997] [third-party consent by gesture when police knocked on the door to an apartment unit which had been explicitly identified by the victim as his assailant's residence]; *People v Washington*, 209 AD2d 817, 818 [3d Dept 1994] [third-party consent to enter an apartment unit when police, "long-time friends of defendant's mother (who were) aware that defendant resided with her," knocked on apartment unit door requesting to enter and the defendant's mother opened the door and stepped aside, giving no indication that they did not have permission to stay]); or when police knocked at a door leading directly into a residence, where it would be more reasonable (though not necessarily reasonable) to assume that someone inside the residence had authority to grant permission to search inside (*see People v Vazquez*, 206 AD3d 1621, 1623 [4th Dept 2022] [third-party consent when a person inside the defendant's single-family residence opened the door, stood aside and "gestured (to police) to indicate that defendant was inside" the home]).

Finally, none of the other cases cited by the dissent involved third-party consent (*see People v Putnam*, 50 AD3d 1514, 1514 [4th Dept 2008] ["The evidence at the suppression hearing established that *defendant* left the door open and did not object to the officer's presence in *his* home" (emphasis added and citations omitted)]; *People v Gonzalez*, 222 AD2d 453 [2d Dept 1995] [defendant consented by conduct to entry into *her* home]; *People v Taylor*, 111 AD2d 520, 520-521 [3d Dept 1985] [defendant consented to entry when officers, acting on identifying information from a police informant and a motel front-desk clerk, knocked on the defendant's motel room door, defendant answered, stepped back from the door, and then officers walked in], *lv denied* 66 NY2d 618 [1985]; *United States v Grant*, 375 Fed Appx 79 [2d Cir 2010] [defendant whose identity and address were known to police consented by conduct to entry into his apartment unit when he admitted police into the apartment building vestibule and did not object to officers following him into his apartment]); *United States v Sabo*, 724 F3d 891, 893-894 [7th Cir 2013] [defendant whose identity and address were known to police implicitly consented to an officer's entry into his trailer home when he answered the officer's knock at the trailer door, then stepped back and aside, letting the door open, in direct response to the officer's request to enter]).

None of those cases involve a situation in which a third party unknown to the police was deemed to have granted consent to enter an interior apartment unit merely by opening an exterior door to the common area of a multi-apartment building and standing aside as the police entered. Unlike here, none of these cases involve an inference of consent to enter an apartment unit from an unknown third party's consent to enter an apartment building common area.

ther of the suspects; Mr. Jeter was not someone known to the detectives; and that the vestibule had two doors within it, one of which was at the base of a staircase and both of which bore exterior-type locks. The fact Mr. Jeter answered the door at 5:30 a.m. and the first-floor apartment door was open, when Detective Fogelman could see there was a second door, cannot form the basis of a reasonable belief that Mr. Jeter appeared to have authority to authorize the police to enter the apartment. Even if the detectives knew that Mr. Jeter had been in the first-floor apartment shortly before answering the door, something more would be required to establish a reasonable belief of apparent authority, such as Mr. Jeter identifying himself as the building's landlord, displaying keys to the first-floor apartment, or unlocking and entering the apartment.

In contrast to the circumstances in which third parties have been determined to have sufficient apparent authority to consent to the search of a home, the People admit that Mr. Jeter did not say a single word to the detectives and the detectives did not ask any question of Mr. Jeter other than whether they could enter the vestibule to speak with him. The belief that Mr. Jeter came from the first-floor apartment of a multifamily building to answer the door is insufficient to establish his apparent authority absent some affirmative statement claiming authority or concrete demonstration of authority (*see e.g. People v Petrie*, 89 AD2d 910, 911 [2d Dept 1982] ["Nor may the police proceed without making some inquiry into the actual state of authority when they are faced with a situation which would cause a reasonable person to question the consenting party's power or control over the premises or property to be inspected"]; *People v Ponto*, 103 AD2d 573 [2d Dept 1984] [resident of a home lacked apparent authority to consent to search of the bedroom she did not occupy]).

Based on the facts known to them at the time and the reasonable inferences to be drawn therefrom, the detectives' belief that Mr. Jeter had apparent authority was not reasonable. The warrantless entry into the first-floor apartment therefore violated Mr. Cuencas's rights under the New York and Federal Constitutions.

III.

Finally, we agree with Mr. Cuencas's contention that the case must be remitted to Supreme Court to determine whether any evidence obtained as a result of the illegal search is suf-

ficiently attenuated from the illegal arrest.⁶ Mr. Cuencas’s remaining contentions do not compel a different result on this appeal. Accordingly, the order of the Appellate Division should be reversed, and case remitted to Supreme Court for further proceedings in accordance with this opinion.

CANNATARO, J. (dissenting). It is well settled that “[t]he determination as to whether police received voluntary consent to enter [a dwelling] is a mixed question of law and fact” (*People v Xochimitl*, 32 NY3d 1026, 1027 [2018]). Such mixed questions are “beyond our review if there is record support for the . . . conclusion” of the courts below (*People v Parker*, 32 NY3d 49, 55 [2018]). The majority correctly acknowledges that whether an individual voluntarily consented to a police search generally presents a mixed question of law and fact (*see People v Valerio*, 95 NY2d 924, 925 [2000]) but concludes that “the undisputed facts do not meet the threshold requirement for” a determination that consent to search was present as a matter of law (*People v McRay*, 51 NY2d 594, 601 [1980]). I disagree. Because reasonable minds could draw different inferences from the established facts and “it simply cannot be said that *no* record support exists for” the suppression court’s determination (*People v Howard*, 22 NY3d 388, 403 [2013] [emphasis added]), this Court is precluded from disturbing it. Therefore, I respectfully dissent.

At the suppression hearing, the arresting officer testified that, after receiving no response to their early-morning knocks on the front door of the two-family apartment building where defendant Tramel Cuencas lived, police knocked on the front window of the building’s ground floor apartment. They saw an individual, later determined to be Kwamel Jeter, peer out at them through the apartment window. A few moments later, Jeter opened the front door. When the police asked if they could come in to talk to him, Jeter “stepped aside” and opened the door wider, revealing a small vestibule with two doors, one leading to a staircase and one leading into the apartment from which police had just seen Jeter through the window. As the police entered the vestibule and proceeded towards the open apartment door, Jeter did not give any indication that they were not permitted to continue into the apartment or that he wanted them to remain in the vestibule. The officers interpreted

6. The People represent to this Court that they do not contend that the recovery of Mr. Cuencas’s cell phone was attenuated from the illegal arrest.

Jeter's actions as consent to enter not only the vestibule but also the apartment, where they found defendant sitting on a couch and arrested him.*

Although the scope of Jeter's consent is certainly open to dispute, there is evidence in the record supporting the inference that his actions conveyed tacit consent for the four police officers to enter the open apartment that he had just come from and was not limited to the small vestibule. Because either view is supportable on this record, this Court has no power to disturb the lower court's finding (*see Parker*, 32 NY3d at 55). But rather than assessing whether there was any support in the record for the hearing court's determination, the majority substitutes its own view of the evidence and, in doing so, ignores the well-settled standard for mixed questions.

The majority begins by discussing the finding of the courts below that Jeter had ostensible control over the apartment in which police discovered defendant. It notes that certain pieces of evidence relied on by the hearing court, such as Jeter's possession of keys to the apartment, or the fact that his mother owned the entire building, were not known to the police at the time of the arrest and thus cannot be relevant to determining whether valid consent was given. But this evidence, which was not mentioned at all in the Appellate Division's affirmance, is not the only evidence supporting the lower court's determination. Rather, as explained above, the testimony from the arresting officer as to his interactions with Jeter immediately prior to entering the apartment supports a finding that Jeter tacitly consented to their entry. Thus, the fact that the hearing court may have improperly relied on certain pieces of evidence is irrelevant to the question of record support.

More problematic is the majority's assertion that Jeter's actions, as a matter of law, could not have been interpreted as providing the police with consent to enter. In so asserting, the majority ignores case law establishing the possibility that consent can be gleaned from a person's conduct and explicit verbal communication is not required (*see e.g. People v Vazquez*, 206 AD3d 1621, 1623 [4th Dept 2022] [finding that consent to enter home was given through a gesture], *lv denied* 39 NY3d 965 [2022, Wilson, J.]; *People v Putnam*, 50 AD3d 1514, 1514

* Although the majority refers to locks on both doors, the record contains no indication that Detective Fogelman was aware of any lock on the open ground-floor apartment door.

[4th Dept 2008] [finding that consent to enter was given where an individual left his door open and did not object to the police entry], *lv denied* 10 NY3d 963 [2008]; *People v Brown*, 234 AD2d 211, 213 [1st Dept 1996] [finding consent where, in response to a request from police to enter an apartment, an individual walked away from the door, leaving it open], *affd* 91 NY2d 854 [1997]; *People v Gonzalez*, 222 AD2d 453, 453 [2d Dept 1995] [“by the defendant’s conduct, she effectively consented, if not explicitly, then tacitly, to the police officers’ entry and presence in her home by failing to ask them to leave or in any other manner indicating that they did not have her permission to remain”], *lv denied* 88 NY2d 848 [1996]; *People v Washington*, 209 AD2d 817, 818-819 [3d Dept 1994] [finding that consent to enter a home was given when the person opening the door stepped aside to allow police to enter], *lv denied* 85 NY2d 944 [1995]; *People v Taylor*, 111 AD2d 520, 521 [3d Dept 1985] [the “defendant’s conduct in stepping back from the open door amounted to consent for the officers to enter”], *lv denied* 66 NY2d 618 [1985]; *see also United States v Sabo*, 724 F3d 891, 893-894 [7th Cir 2013] [the defendant consented to entry when, in response to a request to enter, he stepped back and to the side]; *United States v Grant*, 375 Fed Appx 79, 80 [2d Cir 2010] [the defendant consented to entry when he opened the door to his apartment building and, in response to officers asking to speak to him, turned and walked into his apartment]).

The few Appellate Division cases cited in support of the majority’s holding are clearly distinguishable. In both *People v Petrie* (89 AD2d 910 [2d Dept 1982]) and *People v Ponto* (103 AD2d 573 [2d Dept 1984]), police were granted entry to a home by a third-party resident, but required additional consent to search a specific bedroom, which that third party did not have the authority to give. The relevant question here is whether Jeter had apparent authority to give consent for the police to enter the apartment, not whether he had the authority to consent to a search of a specific room within that apartment. While, as the majority states, guests may sometimes answer a knock at their host’s door, it was not unreasonable under the circumstances presented in this particular case for police to believe that Jeter had the authority to consent to entry, given that he had apparently just emerged from that apartment (*see People v Adams*, 53 NY2d 1, 9 [1981] [search proper where “the circumstances reasonably indicate that (an) individual . . . (had) the authority to consent”]).

Relatedly, although the majority suggests otherwise (majority op at 490-491), this is not a situation in which the police claimed consent to search an entire building based merely on someone opening the exterior door of a multifamily residence. To be sure, consent to enter the common areas of a multifamily building does not give police the authority to enter every apartment in that building (see *People v Gordon*, 36 NY3d 420, 426-427 [2021]). However, the question here is limited to whether there was sufficient evidence in the record before the suppression court to support a finding that Jeter consented to police both entering the small common vestibule and continuing through the open door into the apartment that he had just come from.

Any number of perfectly reasonable hearing court judges might have determined based on this record that there was only consent to enter the vestibule and not the apartment, or even that there was no consent at all. Our role at this Court, however, is not to substitute our judgment for that of the hearing court but rather to decide whether there was any record support for the determination reached below (see *People v Morales*, 42 NY2d 129, 138 [1977] [explaining that even if the issue of whether consent was given is “open to dispute, our power to review . . . is limited”], *cert denied* 434 US 1018 [1978]). Here, because the testimony of the arresting officer regarding his interaction with Jeter supports the determination that Jeter consented to police entry into the apartment, our analysis must end there. I would therefore affirm the Appellate Division order.

Judges RIVERA, TROUTMAN and HALLIGAN concur. Judge CANNATARO dissents in an opinion, in which Judges GARCIA and SINGAS concur.

Order reversed and case remitted to Supreme Court, Kings County, for further proceedings in accordance with the opinion herein.

[227 NE3d 323, 203 NYS3d 889]

In the Matter of JUN WANG, Appellant, v LETITIA JAMES, Attorney General of the State of New York, Respondent.

Argued November 14, 2023; decided December 14, 2023

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered July 8, 2022. The Appellate Division affirmed a judgment (denominated decision and order) of the Supreme Court, Onondaga County (Donald A. Greenwood, J.; op 2021 NY Slip Op 34053[U] [2021]), entered in a proceeding pursuant to CPLR article 78, which had denied the petition to challenge respondent's determination declining petitioner's request for representation and indemnification in a medical malpractice action.

Matter of Jun Wang v James, 207 AD3d 1176, affirmed.

HEADNOTES

Statutes — Construction — Judicial Deference to Administrative Interpretation

1. In a CPLR article 78 proceeding challenging respondent Attorney General's determination declining petitioner physician's request for representation and indemnification in a medical malpractice action, whether petitioner performed pathology services on a biopsy specimen taken from an incarcerated individual "at the request of" the Department of Corrections and Community Supervision (DOCCS) within the meaning of Correction Law § 24-a was a question of pure statutory reading and analysis and thus deference to the interpretation of the Attorney General was not required. Courts defer to the administrative agency where the issue involves knowledge and understanding of underlying operational practices or entails an evaluation of factual data and inferences to be drawn therefrom. However, where the question is one of pure statutory reading and analysis, dependent only on accurate apprehension of legislative intent, there is little basis to rely on any special competence or expertise of the administrative agency and the judiciary need not accord any deference to the agency's determination. The answer to whether a service was performed "at the request of" DOCCS did not involve any specialized knowledge or expertise by the Attorney General.

Public Officers — Duty to Defend or Indemnify Public Employee — Professional Services Performed at Request of Department of Corrections and Community Supervision

2. Petitioner, a physician who examined a biopsy specimen taken from an incarcerated individual pursuant to a contract between petitioner's private pathology group and the hospital where the biopsy was performed, was not "acting at the request of" the Department of Corrections and Community Supervision (DOCCS) within the meaning of Correction Law § 24-a such that

he was entitled to defense and indemnification from the State in an ensuing medical malpractice action. Correction Law § 24-a contemplates an express request for professional services by DOCCS. Petitioner performed pathology services on the biopsy sample as a result of his contract with the hospital, not because he was acting at DOCCS' request or executing any public responsibility associated with the care or treatment of incarcerated individuals. Interpreting the statute broadly to encompass ancillary professional services rendered as a necessary component of a medical procedure performed at DOCCS' request would read the operative language—"at the request of the department"—out of the provision. Requiring the State to defend and indemnify all medical services rendered to incarcerated persons would also expose the State to an undeterminable expansion of financial responsibility for independent professional contractors, as it would require coverage of healthcare professionals with whom the State has no connection and without the opportunity for the State to assess the level of risk presented by these providers. It is unlikely that the legislature intended that the State would be a substitute for a physician's private malpractice insurance in the circumstances presented.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Administrative Law §§ 74, 468–470; AM JUR 2d Municipal Corporations, Counties, and Other Political Subdivisions § 184; AM JUR 2d Public Officers and Employees § 392; AM JUR 2d Statutes § 73.

CARMODY-WAIT 2d Courts and Their Jurisdiction § 2:345; CARMODY-WAIT 2d Actions By and Against Public Bodies and Public Officers § 144:16; CARMODY-WAIT 2d Proceeding Against a Body or Officer §§ 145:23–145:24, 145:415.

McKINNEY'S, CPLR art 78; Correction Law § 24-a.

NY JUR 2d Administrative Law §§ 110–114; NY JUR 2d Article 78 and Related Proceedings §§ 16, 28; NY JUR 2d Civil Servants and Other Public Officers and Employees §§ 211, 214; NY JUR 2d Courts and Judges § 217; NY JUR 2d Government Tort Liability § 54; NY JUR 2d Physicians, Surgeons, and Other Healers § 3; NY JUR 2d Statutes §§ 159, 162–163.

NEW YORK LAW OF TORTS § 17:78.

ANNOTATION REFERENCES

Liability for medical or surgical services rendered inmates of public institutions. 44 ALR 1280.

Validity and construction of statute authorizing or requiring governmental unit to indemnify public officer or employee for liability arising out of performance of public duties. 71 ALR3d 90.

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POINTS OF COUNSEL

Gale Gale & Hunt, LLC, Fayetteville (*Andrew R. Borelli* of counsel), for appellant. Jun Wang is statutorily entitled to be defended and indemnified by the State of New York pursuant to Correction Law § 24-a because his professional service was a necessary and indivisible component of the biopsy surgery approved by the Department of Corrections and Community Supervision; the State’s determination to the contrary is not entitled to deference and is otherwise unreasonable, arbitrary, and capricious. (*Frontier Ins. Co. v State of New York*, 87 NY2d 864; *Matter of Peckham v Calogero*, 12 NY3d 424; *Matter of Ward v City of Long Beach*, 20 NY3d 1042; *Matter of Wooley v New York State Dept. of Correctional Servs.*, 15 NY3d 275; *Matter of O’Brien v Spitzer*, 7 NY3d 239; *Kurcsics v Merchants Mut. Ins. Co.*, 49 NY2d 451; *Matter of Gruber [New York City Dept. of Personnel—Sweeney]*, 89 NY2d 225; *Matter of Leggio v Devine*, 34 NY3d 448; *Matter of KSLM-Columbus Apts., Inc. v New York State Div. of Hous. & Community Renewal*, 5 NY3d 303; *Jones v Bill*, 10 NY3d 550.)

Letitia James, Attorney General, Albany (*Kevin C. Hu, Barbara D. Underwood, Andrea Oser* and *Victor Paladino* of counsel), for respondent. Petitioner is not entitled to defense and indemnification at state expense under Correction Law § 24-a. (*Matter of O’Brien v Spitzer*, 7 NY3d 239; *Matter of American Tel. & Tel. Co. v State Tax Commn.*, 61 NY2d 393; *People ex rel. Negron v Superintendent, Woodbourne Corr. Facility*, 36 NY3d 32; *Patrolmen’s Benevolent Assn. of City of N.Y. v City of New York*, 41 NY2d 205; *Matter of New York County Lawyers’ Assn. v Bloomberg*, 19 NY3d 712; *People v Talluto*, 39 NY3d 306; *Matter of Tall Trees Constr. Corp. v Zoning Bd. of Appeals of Town of Huntington*, 97 NY2d 86; *Matter of Walsh v New York State Comptroller*, 34 NY3d 520; *Yaniveth R. v LTD Realty Co.*, 27 NY3d 186; *Common Cause Ind. v Lawson*, 937 F3d 944.)

OPINION OF THE COURT

CANNATARO, J.

The issue presented on this appeal is whether petitioner, a physician who rendered professional services to a person incarcerated by the State, was “acting at the request of” the

Department of Corrections and Community Supervision (DOCCS) within the meaning of Correction Law § 24-a such that he is entitled to defense and indemnification from the State in an ensuing medical malpractice action. Because the statutory language contemplates an express request for professional services by DOCCS, the State has no obligation to defend and indemnify petitioner.

While incarcerated at the Auburn Correctional Facility, an individual (the patient) developed a mass in his right armpit and was referred to Dr. R. Wayne Cotie, a surgeon who provided professional services to incarcerated individuals pursuant to a contract with DOCCS. Dr. Cotie recommended a biopsy of the mass and DOCCS approved the procedure. The biopsy was performed at the Cortland Regional Medical Center (CRMC), where Dr. Cotie had surgical privileges. Dr. Cotie sent the biopsy specimen to CRMC's pathology department for examination. The hospital had a contractual arrangement with Cortland Pathology, a private pathology group that had sole and exclusive rights to perform clinical pathology services for CRMC. Petitioner, Dr. Jun Wang, the Medical Director of CRMC's pathology department and a member of Cortland Pathology, examined the specimen and concluded that the mass was benign. Approximately one year later, the patient was diagnosed with Hodgkin's lymphoma.

In February 2015, the patient commenced a medical malpractice action against, among others, CRMC, alleging that they misdiagnosed his condition as benign and failed to timely diagnose or refer him for treatment of Hodgkin's lymphoma. CRMC thereafter filed a third-party complaint against petitioner and Cortland Pathology, seeking contribution and indemnification. Petitioner then sought defense and indemnification from the State, asserting that he was entitled to coverage under Public Officers Law § 17 and Correction Law § 24-a because the alleged acts or omissions giving rise to the malpractice action arose from the treatment of an incarcerated person at the request of DOCCS. The Attorney General declined to defend and indemnify petitioner, opining that petitioner treated the incarcerated individual pursuant to his employment arrangement with CRMC and that, in the absence of any contract or agreement directly between the State and petitioner to treat incarcerated persons, the State had no statutory obligation to provide defense or indemnification.

After the Attorney General denied petitioner's request for reconsideration, petitioner commenced this CPLR article 78

proceeding to annul the determination, asserting that the conclusion that he was not entitled to defense and indemnification was irrational, arbitrary and capricious, and an abuse of discretion. Supreme Court denied the petition (2021 NY Slip Op 34053[U] [Sup Ct, Onondaga County 2021]). Concluding that the Attorney General's determination was entitled to deference because the statutory interpretation question involved the specific application of a broad statutory term, the court held that the determination was properly made.

The Appellate Division affirmed, agreeing that the Attorney General's determination was entitled to deference (207 AD3d 1176 [4th Dept 2022]). The Court observed that there was no record evidence to support the conclusion that DOCCS expressly requested petitioner's services and rejected petitioner's contrary argument that Correction Law § 24-a applied to an implied request for professional healthcare services (*see* 207 AD3d at 1178). This Court granted petitioner's motion for leave to appeal (39 NY3d 906 [2023]) and we now affirm.

Under Public Officers Law § 17, the State has the obligation to defend and indemnify its employees in actions arising out of the scope of their public employment (*see* Public Officers Law § 17 [1] [a]; [2] [a]; [3] [a]). An "employee" is defined as "any person holding a position by election, appointment or employment in the service of the state, . . . whether or not compensated" (Public Officers Law § 17 [1] [a]). The statute expressly excludes independent contractors from coverage (*see* Public Officers Law § 17 [1] [a]).

Under Correction Law § 24-a, the provisions of Public Officers Law § 17 are made applicable to "any person holding a license to practice a profession . . . who is rendering or has rendered professional services authorized under such license while *acting at the request of the department* or a facility of the department in providing health care and treatment or professional consultation to incarcerated individuals of state correctional facilities" (emphasis added). The Attorney General has interpreted this language to mean that the State's obligation to defend and indemnify applies only where there has been an express request by DOCCS for the services of a particular provider—i.e., a formal arrangement or understanding made in advance between DOCCS and the healthcare professional.

A threshold question arises as to whether the Attorney General's interpretation of the statute is entitled to deference. Def-

erence is accorded to an agency's interpretation of a statute when the interpretation involves the specialized competence or expertise the agency has developed in administering the statute (see *Matter of Rosen v Public Empl. Relations Bd.*, 72 NY2d 42, 47 [1988]; *Kurcsics v Merchants Mut. Ins. Co.*, 49 NY2d 451, 459 [1980]). More particularly, courts defer to the administrative agency where the issue "involves knowledge and understanding of underlying operational practices or entails an evaluation of factual data and inferences to be drawn therefrom" (*Kurcsics*, 49 NY2d at 459; see *International Union of Painters & Allied Trades, Dist. Council No. 4 v New York State Dept. of Labor*, 32 NY3d 198, 209 [2018]; *Matter of Albano v Board of Trustees of N.Y. City Fire Dept., Art. II Pension Fund*, 98 NY2d 548, 553 [2002]).¹ However, "where the question is one of pure statutory reading and analysis, dependent only on accurate apprehension of legislative intent, there is little basis to rely on any special competence or expertise of the administrative agency . . . [and] the judiciary need not accord any deference to the agency's determination" (*Matter of Belmonte v Snashall*, 2 NY3d 560, 566 [2004] [internal quotation marks omitted]).

[1] The answer to whether a service was performed "at the request of" DOCCS does not involve any specialized knowledge or expertise by the Attorney General. Instead, whether a professional service was performed "at the request of" DOCCS is a question of pure statutory reading and analysis and thus deference to the Attorney General is not required.

Turning to the statutory language at hand, "[i]t is fundamental that a court, in interpreting a statute, should attempt to effectuate the intent of the [l]egislature. As the clearest indicator of legislative intent is the statutory text, the starting point in

1. Although we have also recognized that deference to an agency's interpretation of statutory language "is appropriate 'where the question is one of specific application of a broad statutory term'" (*Matter of O'Brien v Spitzer*, 7 NY3d 239, 242 [2006] [citations omitted]; see *NLRB v Hearst Publications, Inc.*, 322 US 111 [1944], overruled as stated in *Nationwide Mut. Ins. Co. v Darden*, 503 US 318 [1992]; cf. *Matter of Peyton v New York City Bd. of Stds. & Appeals*, 36 NY3d 271, 280-281 [2020]), we have rarely done so since we decided *Kurcsics*. Aside from *O'Brien*, we have deferred on that basis only in a case involving the construction of tax statutes (see *Matter of American Tel. & Tel. Co. v State Tax Commn.*, 61 NY2d 393, 400 [1984]), where the Department of Taxation and Finance "necessarily must apply expertise to the detailed labor of fitting tax filings and other accounting artifacts into the language of the Tax Law" (*Lorillard Tobacco Co. v Roth*, 99 NY2d 316, 323 [2003]).

any case of interpretation must always be the language [of the statute] itself, giving effect to the plain meaning thereof” (*People ex rel. E.S. v Superintendent, Livingston Corr. Facility*, 40 NY3d 230, 235 [2023] [internal quotation marks and citations omitted]). “‘[A]ll parts of a statute are intended to be given effect’ and ‘a statutory construction which renders one part meaningless should be avoided’” (*Matter of Anonymous v Molik*, 32 NY3d 30, 37 [2018], quoting *Rocovich v Consolidated Edison Co.*, 78 NY2d 509, 515 [1991]). Additionally, given that the statute at issue here is in derogation of common law, it should be narrowly construed (*see Morris v Snappy Car Rental*, 84 NY2d 21, 28 [1994]; *see also* McKinney’s Cons Laws of NY, Book 1, Statutes § 301).

[2] Petitioner performed pathology services on the biopsy sample as a result of his contract with the hospital, not because he was acting at DOCCS’ request or executing any public responsibility associated with the care or treatment of incarcerated individuals. Nonetheless, petitioner asserts that the statutory language should be read broadly to encompass ancillary professional services rendered as a necessary component of a medical procedure performed at DOCCS’ request, such as the pathology services provided here. However, to interpret the statute as petitioner suggests would read the operative language—“at the request of the department”—out of the provision, in contravention of our established rules of statutory construction. If the legislature intended to require the State to defend and indemnify all medical services rendered to incarcerated persons in the manner now suggested by petitioner, it could have so provided. In light of the above, the Attorney General’s determination that petitioner was not entitled to defense and indemnification under the statute was not irrational, arbitrary and capricious, or an abuse of discretion (*see Matter of Lemma v Nassau County Police Officer Indem. Bd.*, 31 NY3d 523, 528 [2018]).

The interpretation urged by petitioner would also expose the State to an undeterminable expansion of financial responsibility for independent professional contractors, as it would require coverage of healthcare professionals with whom the State has no connection and without the opportunity for the State to assess the level of risk presented by these providers. Our interpretation is further supported by language in Public Officers Law § 17 (7)—incorporated by reference in Correction Law § 24-a—providing that the State’s duty to defend and indemnify

“shall not be construed to impair, alter, limit or modify the rights and obligations of any insurer under any policy of insurance.” As we have previously recognized, public policy supports construing the State’s duty in this respect narrowly, as “[t]he purpose of Public Officers Law § 17 is, in essence, to provide insurance against litigation” (*see O’Brien*, 7 NY3d at 243). It is unlikely that the legislature intended that the State would be a substitute for a physician’s private malpractice insurance in the circumstances presented (*see id.*).²

Accordingly, the order of the Appellate Division should be affirmed, with costs.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, TROUTMAN and HALLIGAN concur.

Order affirmed, with costs.

2. Indeed, the legislative history suggests that the purpose of Correction Law § 24-a is to encourage medical professionals to offer services to the State’s incarcerated population by providing insurance against litigation (*see* Letter from Off of Mental Health & Off of Mental Retardation & Dev Disabilities, June 29, 1978 at 2, Bill Jacket, L 1978, ch 466; *accord* 1980 Ops Atty Gen 40, 1980 WL 107179, 1980 NY AG LEXIS 90). Providing insurance to a person in petitioner’s position would not further this policy.

[227 NE3d 1064, 204 NYS3d 439]

In the Matter of **TERRENCE STEVENS et al., Respondents, v NEW YORK STATE DIVISION OF CRIMINAL JUSTICE SERVICES et al., Appellants.**

Argued September 14, 2023; decided October 24, 2023

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 5, 2022. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, a judgment (denominated decision and order) of the Supreme Court, New York County (Shlomo S. Hager, J.), entered in a CPLR article 78 proceeding, which had (a) denied the petition to, among other things, annul the familial DNA search regulations codified at 9 NYCRR 6192.1 and 6192.3; and (b) dismissed the proceeding; (2) granted the petition; (3) vacated the regulations; and (4) dismissed the appeal from an order of that Supreme Court (op 2020 NY Slip Op 30861[U] [202]) as subsumed in the appeal from the judgment.

Matter of Stevens v New York State Div. of Criminal Justice Servs., 206 AD3d 88, reversed.

HEADNOTES

Parties — Standing — Relatives of Individuals with Genetic Information Stored in New York State DNA Databank — Challenge to Regulations Authorizing Familial DNA Searches

1. Petitioners, both of whom had never been convicted of a crime but who each had a brother whose genetic information had been collected and stored in the New York State DNA Identification Index (DNA Databank) as the result of a felony conviction, had standing to challenge the authority of respondent executive agencies to promulgate the Familial DNA Search (FDS) Regulations (9 NYCRR 6192.1, 6192.3) permitting familial DNA searches in connection with law enforcement criminal investigations. A petitioner challenging government agency action pursuant to a CPLR article 78 petition has the burden of demonstrating an injury in fact and that the alleged injury falls within the zone of interests or concerns sought to be promoted or protected by the statutory provision under which the government has acted in order to have standing to challenge that action. Because each petitioner had a brother whose DNA was stored in the Databank, he had a unique risk of being identified through the Databank and targeted for police scrutiny because of his familial relationship and shared genetic material. Under these particular circumstances, that risk was not founded on impermissible layers of speculation. Similarly, petitioners demonstrated that their injury fell within the concerns the legislature sought to advance or protect by the statute. By limiting the number of individuals whose DNA could be maintained in the Databank, the legislature demonstrated an intent to concomitantly

limit the number of individuals whose information could be obtained from the Databank. Therefore, petitioners identified a genuine injury.

Administrative Law — Rulemaking — New York State DNA Databank — Regulations Authorizing Familial DNA Searches

2. The legislature's grant of rulemaking authority to respondent New York State Commission on Forensic Science as part of the DNA Databank Act (Executive Law § 995 *et seq.* [Databank Act]) was sufficient to authorize respondent's promulgation of the Familial DNA Search (FDS) Regulations (9 NYCRR 6192.1, 6192.3) permitting familial DNA searches in connection with law enforcement criminal investigations. The legislative history of the Databank Act confirms that the legislature intended to delegate to respondent Commission the power to regulate access to and use of information in the Databank, and carefully considered the decision to task respondent with the duty of safeguarding the sensitive genetic information therein. Given the clarity and specificity of the guidelines provided in the Databank Act, respondents acted within their delegated authority. The FDS Regulations are a result of administrative rulemaking, not legislative policy-making. The legislature made the policy determination that New York State should have well-developed DNA testing programs to assist law enforcement, that the use of the information should be limited, and the data and results secure. To achieve those ends, it directed respondent to promulgate rules and administer that program in accordance with the legislature's defined policy ends, including the protection of privacy interests. The Databank Act charges respondent with determining what constitutes a "match" and authorizes respondent to promulgate regulations that balance the legislative purpose of aiding law enforcement through the use of the Databank with concerns about misuse and security of the Databank and results produced from it.

Administrative Law — Rulemaking — Regulations Authorizing Familial DNA Searches Using New York State DNA Databank — Abuse of Discretion

3. Respondent New York State Commission on Forensic Science's promulgation of the Familial DNA Search (FDS) Regulations (9 NYCRR 6192.1, 6192.3) permitting familial DNA searches using the New York State DNA Identification Index in connection with law enforcement criminal was not arbitrary and capricious. In CPLR article 78 proceedings, a court may not disturb an administrative action unless it finds no rational basis for the agency's action, or that the challenged action was arbitrary and capricious. The record demonstrated that respondents promulgated the FDS Regulations only after soliciting and receiving public comment and considering relevant issues, in accordance with their statutory obligations. Moreover, the regulations had, in practice, resulted in an extremely small number of familial search results provided to law enforcement agencies, which evidenced the restrictiveness with which the FDS Regulations were drawn to protect privacy interests. No abuse of discretion appeared on the record.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Administrative Law §§ 183, 215, 218, 222, 404, 408, 463.

CARMODY-WAIT 2d Proceeding Against a Body or Officer §§ 145:224, 145:225, 145:473.

McKINNEY'S, Executive Law § 995 *et seq.*
9 NYCRR 6192.1, 6192.3.
NY JUR 2d Administrative Law §§ 33, 37, 41, 50, 321–323;
NY JUR 2d Article 78 and Related Proceedings §§ 53–55,
233, 237.

ANNOTATION REFERENCE

See ALR Index under Administrative Law; DNA; Rules
and Regulations.

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POINTS OF COUNSEL

Letitia James, Attorney General, New York City (Matthew W. Grieco, Barbara D. Underwood and Judith N. Vale of counsel), for appellants. I. Petitioners lack standing to challenge the familial search rule. (*Matter of Mental Hygiene Legal Serv. v Daniels*, 33 NY3d 44; *Roulan v County of Onondaga*, 21 NY3d 902; *Society of Plastics Indus. v County of Suffolk*, 77 NY2d 761; *New York State Assn. of Nurse Anesthetists v Novello*, 2 NY3d 207; *Church of St. Paul & St. Andrew v Barwick*, 67 NY2d 510; *Bravo v State of New York*, 129 AD3d 488; *Pacific Capital Bank, N.A. v Connecticut*, 542 F3d 341; *Matter of Transactive Corp. v New York State Dept. of Social Servs.*, 92 NY2d 579; *Rudder v Pataki*, 93 NY2d 273; *People v Bright*, 71 NY2d 376.) II. The familial search rule is a proper exercise of the DNA Databank Act's specific delegation of authority to the Commission on Forensic Science. (*Matter of Peyton v New York City Bd. of Stds. & Appeals*, 36 NY3d 271; *Town of Aurora v Village of E. Aurora*, 32 NY3d 366; *Garcia v New York City Dept. of Health & Mental Hygiene*, 31 NY3d 601; *Matter of Acevedo v New York State Dept. of Motor Vehs.*, 29 NY3d 202; *Matter of LeadingAge N.Y., Inc. v Shah*, 32 NY3d 249; *Greater N.Y. Taxi Assn. v New York City Taxi & Limousine Commn.*, 25 NY3d 600; *Matter of NYC C.L.A.S.H., Inc. v New York State Off. of Parks, Recreation & Historic Preserv.*, 27 NY3d 174.)

Gibson, Dunn & Crutcher LLP, New York City (Doran J. Satanove and Joseph Evall of counsel), and The Legal Aid Society, New York City (Jenny S. Cheung, J. David Pollock and Alison Durkin of counsel), for respondents. I. Petitioners have

CPLR article 78 standing to challenge the familial DNA search amendment. (*Matter of Graziano v County of Albany*, 3 NY3d 475; *Matter of Association for a Better Long Is., Inc. v New York State Dept. of Envtl. Conservation*, 23 NY3d 1; *Matter of Dairylea Coop. v Walkley*, 38 NY2d 6; *Matter of Gernatt Asphalt Prods. v Town of Sardinia*, 87 NY2d 668; *Matter of Har Enters. v Town of Brookhaven*, 74 NY2d 524; *Matter of City of New York v City Civ. Serv. Commn.*, 60 NY2d 436; *Matter of Cooke Ctr. for Learning & Dev. v Mills*, 19 AD3d 834; *Matter of Morgenthau v Cooke*, 56 NY2d 24; *Grygas v New York State Ethics Commn.*, 147 Misc 2d 312.) II. Respondents lacked the power to promulgate the familial DNA search amendment. (*Garcia v New York City Dept. of Health & Mental Hygiene*, 31 NY3d 601; *Matter of Acevedo v New York State Dept. of Motor Vehs.*, 29 NY3d 202; *Matter of LeadingAge N.Y., Inc. v Shah*, 32 NY3d 249; *Matter of NYC C.L.A.S.H., Inc. v New York State Off. of Parks, Recreation & Historic Preserv.*, 27 NY3d 174; *Matter of New York Statewide Coalition of Hispanic Chambers of Commerce v New York City Dept. of Health & Mental Hygiene*, 23 NY3d 681; *Utah v Strieff*, 579 US 232; *United States v Curry*, 965 F3d 313; *Matter of Tze Chun Liao v New York State Banking Dept.*, 74 NY2d 505; *Greater N.Y. Taxi Assn. v New York City Taxi & Limousine Commn.*, 25 NY3d 600.)

J. Anthony Jordan, District Attorneys Association of the State of New York, Inc. (Paul J. Williams, III and Jerry Marti of counsel), for District Attorneys Association of the State of New York, Inc., amicus curiae. I. Standing is not established by a disproportionate impact claim. (*Lujan v Defenders of Wildlife*, 504 US 555; *Matter of Mental Hygiene Legal Serv. v Daniels*, 33 NY3d 44; *Society of Plastics Indus. v County of Suffolk*, 77 NY2d 761; 532 Madison Ave. *Gourmet Foods v Finlandia Ctr.*, 96 NY2d 280; *Rice v Van Vranken*, 225 App Div 179; *Matter of Dairylea Coop. v Walkley*, 38 NY2d 6; *Matter of Sierra Club v Village of Painted Post*, 26 NY3d 301; *Nicholas v Goord*, 430 F3d 652; *Independent Inv. Protective League v Securities & Exch. Commn.*, 495 F2d 311; *United States v Students Challenging Regulatory Agency Procedures [SCRAP]*, 412 US 669.) II. Fourth Amendment considerations do not trigger standing. (*Saratoga County Chamber of Commerce v Pataki*, 100 NY2d 801; *Nicholas v Goord*, 430 F3d 652; *Steagald v United States*, 451 US 204; *Johnson v Quander*, 440 F3d 489; *Arizona v Hicks*, 480 US 321; *People v Mendez*, 73 Misc 3d 715; *People v Goldman*, 35 NY3d 582; *Maryland v King*, 569 US 435; *United States v Agapito*, 620 F2d 324; *Katz v United States*, 389 US 347.)

Alexander F. Roehrkas, amicus curiae pro se. I. The prevalence of criminal legal system involvement among U.S. residents is racially disparate. II. Racial disparities in criminal legal system involvement reflect racial bias in law enforcement and criminal legal process. III. Among people without prior criminal legal system involvement, Black U.S. residents are more likely than white residents to have genetic links to people with prior system involvement. IV. Implementing familial search therefore has a very high likelihood of disproportionately increasing Black New York residents' risk of police encounters and resulting harms.

Law Offices of Robert S. Smith, New York City (*Robert S. Smith* of counsel), for Parents of Murdered Children, Inc., amicus curiae. Petitioners lack standing to challenge the familial search rule. (*Matter of Powers v De Groodt*, 43 AD3d 509; *Tilcon N.Y., Inc. v Town of New Windsor*, 172 AD3d 942; *Matter of Vasser v City of New Rochelle*, 180 AD3d 691; *Matter of West-side Grocery & Deli, LLC v City of Syracuse*, 211 AD3d 1551; *Matter of Piagentini v New York State Bd. of Parole*, 176 AD3d 138.)

New York Civil Liberties Union Foundation, New York City (*Beth Haroules*, *Terry Ding* and *Christopher Dunn* of counsel), for New York Civil Liberties Union, amicus curiae. I. The legislative history of New York's DNA database scheme shows the legislature guards its prerogative to weigh all policy determinations implicating DNA testing and databanking. II. The authorization of familial DNA searches implicates weighty policy considerations. (*People v Schneider*, 37 NY3d 187; *People v Goldman*, 35 NY3d 582.)

Brendan Parent, New York City, amicus curiae pro se. I. Familial searching is not merely an incremental change in methodology from the existing partial match program. (*Nicholas v Goord*, 430 F3d 652.) II. We have privacy rights to our genetic information, and allowing familial searching encourages the violation of these rights. (*Maryland v King*, 569 US 435.) III. The allure of genetics as seemingly "objective" evidence can impede actually objective investigation, and familial searching would further entrench the false notion of genetic objectivity. IV. Implicating a person in a crime through familial genetic evidence is morally distinct from implicating a person through other kinds of indirect or family evidence. V. The line has been drawn short of familial searching, and must remain there if we believe in equality under the eyes of the law.

Erin E. Murphy, New York City, amicus curiae pro se. I. The history of the formation of the Commission and Subcommittee affirms that they were created to perform a technical oversight and quality control role, not to answer complex questions of public policy such as whether to engage in familial searches. (*People v Castro*, 144 Misc 2d 956.) II. The statutory powers and composition of the DNA Subcommittee and Commission, as well as their routine and regular work, affirm that they was established to address scientific and technical questions about quality control, not to make policy choices about the scope and use of DNA testing for law enforcement purposes. III. Allowing the DNA Subcommittee to bind the Commission on difficult issues of public policy as regards forensic DNA testing, under the guise of its power to assess “methodologies,” is both unworkable and ill-advised.

OPINION OF THE COURT

Chief Judge WILSON.

The issue before us is whether the legislature’s grant of rule-making authority to the Commission on Forensic Science was sufficient to authorize the Commission’s promulgation of the Familial DNA Search Regulations, codified at 9 NYCRR 6192.1 and 6192.3. We hold that it was.

I.

In 1994, cognizant of the promises and perils of the emerging use of DNA technology in law enforcement, the legislature took a measured but significant step by enacting the DNA Databank Act (L 1994, ch 737 [codified at Executive Law § 995 *et seq.*] [Databank Act]).

The Databank Act served a dual purpose; it authorized the creation of the New York State Commission on Forensic Science (Commission) (Executive Law § 995-a [1]) and the DNA Subcommittee (§ 995-b [13]), as well as the establishment of the DNA Identification Index (DNA Databank or Databank) (§ 995 [6]). The DNA Databank is a statewide “DNA identification record system” (*id.*), containing DNA collected from “designated offenders,” individuals who are required to provide DNA samples after being convicted of certain statutorily enumerated crimes (subd [7]).

The Commission and DNA Subcommittee are independent oversight agencies with different functions. The DNA Subcommittee, composed solely of scientists, is granted certain respon-

sibilities, among them: the “sole authority to grant, deny, review or modify a DNA forensic laboratory accreditation” (§ 995-b [2-a]). The Commission, composed mostly of nonscientists, is charged with “promulgat[ing] a policy for the establishment and operation of a DNA identification index consistent with the operational requirements and capabilities of the division of criminal justice services [DCJS]” (subd [9]), including the methodologies used in compiling the index; safeguards for accuracy and security; the promulgation of written agreements specifying the terms of access and use and prohibitions against redisclosure of any information obtained from the Databank; the designation of one or more approved methodologies for the performance of DNA testing; and the promulgation of standards for determination of a match between DNA records in the Databank and DNA records submitted for comparison therewith (*see* § 995-b).

The Databank Act provides strict guidelines on the approved uses of Databank information (*see* § 995-c [6] [enumerating exhaustive purposes for which genetic and identifying information may be released]), and authorizes the Commission to develop and promulgate regulations concerning the release of genetic and identifying information stored in the Databank in compliance with those guidelines (§ 995-b [9] [directing the Commission to develop and promulgate policy concerning the release and disclosure of Databank information]), including when to release the identity of a “match” (§ 995-c [6] [a] [authorizing the release of Databank information to law enforcement agencies and district attorneys’ offices “for law enforcement identification purposes upon submission of a DNA record in connection with the investigation of the commission of one or more crimes”]).

After the Databank Act was adopted, the Commission created an implementation plan and promulgated a set of regulations governing the use of the Databank (9 NYCRR 6192.2), including the definition of a genetic match (§ 6192.1), policies limiting the disclosure of genetic and identifying information contained in the Databank (§§ 6192.5-6192.9), and policies authorizing the release of identifying information to law enforcement (§ 6192.3 [b]-[c], [f]-[g]).

The Commission’s initial regulations permitted the New York State Division of Criminal Justice Services (DCJS) to release information contained within the Databank to law enforcement when a databank search yielded a “direct match,” i.e., when

the alleles in the core loci of a DNA sample recovered from a crime scene are the same as those in a DNA sample contained in the Databank (*see* Partial Match Policy for the DNA Databank, NY St Reg, July 21, 2010 at 3, 5 [Partial Match Policy] [“Currently, when a crime scene DNA sample is submitted to a New York State forensic laboratory, laboratory officials report only if the sample matches a *particular individual* in the state’s DNA databank” (emphasis added)]); direct matches strongly indicate that the two samples are likely from the same individual (*see id.*; Federal Bureau of Investigation, *Frequently Asked Questions on CODIS and NDIS* ¶ 2, available at <https://www.fbi.gov/how-we-can-help-you/dna-fingerprint-act-of-2005-expungement-policy/codis-and-ndis-fact-sheet> [last accessed Sept. 22, 2023]).

“Partial matches,” on the other hand, are “near hit[s]” (Partial Match Policy at 5): matches in which alleles at the core loci in two DNA samples (one retrieved from the Databank, and one retrieved from a crime scene) are not the same but share a high number of matching alleles. Such “near hit[s] [may] greatly limit the pool of potential suspects” (*id.*), though they can indicate many things. A near hit might suggest that the person in the Databank is a “close blood relative” of the person whose DNA sample was found at the crime scene (*id.*), but it might also indicate that the sample found at the crime scene was partially degraded or contained a mixture of multiple people’s DNA (*see* brief for petitioners-respondents at 12, citing 9 NYCRR 6192.3 [c] [enumerating “sufficient scientific reasons” to allow for partial match searches, including “the apparent presence of mixtures, sample degradation or limited sample availability”]).

After four years of deliberation, in 2010 the Commission promulgated a partial match rule which, subject to certain restrictions, authorized the release of partial match information to law enforcement (Partial Match Policy at 5). The 2010 partial match regulations did not permit familial DNA searches (*see id.* [“The new regulations will not permit what is often called ‘familial searching,’ or singling out particular families and actively searching their DNA profiles”]). A familial DNA search is essentially an intentional search for partial matches, as opposed to the unintentional partial match system previously created (*see* NY St Div of Crim Just Servs Mem from Gina L. Bianchi, Deputy Commissioner & Counsel, to Members of the Commn on Forensic Science, dated Jan. 2, 2008 at 1-2).

To conduct a familial search, the DCJS and the State Combined DNA Index System (CODIS) laboratory use the Denver Familial Search Software, a specialized computer program, to look for a close partial match between sampled DNA gathered from a crime scene, and DNA profiles in the Databank (respondents-appellants' brief at 17). The search "generates a list of candidates based on kinship statistics to indicate potential biologically related individuals" (Familial Search Policy, NY St Reg, July 26, 2017 at 8, 9 [FDS Policy]). The Commission determined an "established kinship threshold value(s)" for familial searches, meaning how closely related the individuals must be to return a family match to report to law enforcement (*see* 9 NYCRR 6192.3 [j] [2]).

In 2017, the DNA Subcommittee submitted to the Commission a recommendation to authorize familial DNA searches (FDS Policy at 9). The recommendation authorized familial DNA searches, subject to stringent restrictions regarding when such searches were to be permitted and practices on how law enforcement may request them. The Commission adopted the DNA Subcommittee's recommendation (*id.*). After a period of notice and comment, on October 18, 2017, the DCJS formally adopted the recommendation as part of formal Familial DNA Search (FDS) Regulations (codified at 9 NYCRR 6192.1, 6192.3).¹

Under the FDS Regulations, law enforcement officers wishing to conduct a familial search must first determine that, for a DNA sample collected at a crime scene, "there is not a match or a partial match to a[n] [existing] sample in the DNA databank" (§ 6192.3 [h]). Law enforcement may not request a familial search unless the crime under investigation is one of a statutorily enumerated list of crimes or presents "a significant public safety threat" (subd [h] [1] [iv]). The agency must also

1. The 12 states that explicitly allow familial DNA searching account for 49.2% of the population of the United States (*see* Rec on App at 427; <https://www.census.gov/data/tables/time-series/demo/popest/2020s-state-total.html>). One report found that, as of 2017, 11 states—including the three most populous (California, Texas, and Florida)—used familial DNA searching (*see* Michael B. Field & Sara Debus-Sherill, *Study of Familial DNA Searching Policies and Practices: National Survey of CODIS Laboratories Brief* [June 2017]). Other states besides New York have since used or authorized FDS (*see e.g.* Mont Code Ann § 44-6-104 [2] [2021 legislation allowing FDS if a court issues a search warrant based on probable cause]; *State v Mitcham*, 535 P3d 948, 951 [Ariz Ct App 2023] [noting FDS use by Arizona law enforcement]). Only Maryland and the District of Columbia expressly ban its use (Md Code Ann, Pub Safety § 2-506 [d]; DC Code Ann § 22-4151 [b]).

demonstrate that before requesting a familial DNA search, they have conducted “reasonable investigative efforts,” or else that exigent circumstances exist (para [2] [i]-[ii]). Before the results of a search are released, the requesting agency must comply with several conditions, including confirming in writing that the information is sought “for investigatory law enforcement purposes only” and will be “treated only as an investigative lead” and completing mandatory training regarding the limitations of familial search, “guidance on how to best evaluate leads,” and the confidentiality requirements (*id.* § 6192.3 [k]).

There is no provision in the FDS Regulations for an identified relative to be notified and/or challenge the search before law enforcement officials may proceed with an investigation based on a familial match from the Databank. Petitioners Terrence Stevens and Benjamin Joseph are two Black men living New York who have never been convicted of a crime. Each has a brother whose genetic information has been collected and stored in the DNA Databank as the result of a felony conviction, in accordance with Databank Act requirements. Mr. Stephens and Mr. Joseph brought this CLPR article 78 proceeding against respondents the DCJS, the Commission, DCJS Executive Deputy Commissioner and Commission Chairman Michael C. Green, and the DNA Subcommittee alleging, among other claims, that respondents lacked statutory authority to promulgate the FDS Regulations and therefore violated the separation of powers doctrine under the New York Constitution. Respondents denied petitioners’ allegations and asserted that petitioners lacked standing to challenge the FDS Regulations.

Supreme Court held that petitioners had standing to bring their article 78 petition, but denied the petition on the merits, determining that it was a proper exercise of the Commission’s statutory authority to promulgate the FDS Regulations (*see* 2020 NY Slip Op 30861[U], *1 [Sup Ct, NY County 2020]). The Appellate Division, with two Justices dissenting on standing, reversed Supreme Court’s judgment, granted the petition, and annulled the FDS Regulations (206 AD3d 88 [1st Dept 2022]).

Respondents appealed as of right (*see* CPLR 5601 [a]), and we now reverse the Appellate Division’s order and hold that the Commission had the statutory authority to promulgate the FDS Regulations.

II.

[1] A petitioner challenging government agency action pursuant to an article 78 petition has the burden of demonstrating an “injury in fact” and that the alleged injury falls within the “zone of interests or concerns sought to be promoted or protected by the statutory provision under which the [government] has acted” in order to have standing to challenge that action (*Matter of Mental Hygiene Legal Serv. v Daniels*, 33 NY3d 44, 50 [2019], quoting *New York State Assn. of Nurse Anesthetists v Novello*, 2 NY3d 207, 211 [2004]; see also *Matter of Dairylea Coop. v Walkley*, 38 NY2d 6, 9 [1975]). “The injury-in-fact requirement necessitates a showing that the party has an actual legal stake in the matter being adjudicated and has suffered a cognizable harm that is not tenuous, ephemeral, or conjectural but is sufficiently concrete and particularized to warrant judicial intervention” (*Daniels*, 33 NY3d at 50 [internal quotation marks and citation omitted]; see also *Matter of Association for a Better Long Is., Inc. v New York State Dept. of Envtl. Conservation*, 23 NY3d 1, 7 [2014]). While “[t]he requirement of injury in fact for standing purposes is closely aligned with our policy not to render advisory opinions” (*Society of Plastics Indus. v County of Suffolk*, 77 NY2d 761, 773 [1991]), we have also cautioned that standing rules should not be applied “in an overly restrictive manner where the result would be to completely shield a particular action from judicial review” (*Matter of Sierra Club v Village of Painted Post*, 26 NY3d 301, 311 [2015], quoting *Matter of Association for a Better Long Is., Inc.*, 23 NY3d at 6).

Although the injury in fact here is unusual, it is cognizable. Because each petitioner has a brother whose DNA is stored in the Databank, he has a unique risk of being identified through the Databank and targeted for police scrutiny because of his familial relationship and shared genetic material (*Society of Plastics Indus.*, 77 NY2d at 774). Under these particular circumstances, that risk is not “founded on [impermissible] layers of speculation” (*Novello*, 2 NY3d at 213).

Similarly, petitioners have demonstrated that their injury falls “within the concerns the Legislature sought to advance or protect by the statute” (*Society of Plastics Indus.*, 77 NY2d at 774 [zone of interests requirement “assures that groups whose interests are only marginally related to, or even inconsistent with, the purposes of the statute cannot use the courts to further their own purposes at the expense of the statutory

purposes”]). By limiting the number of individuals whose DNA could be maintained in the Databank, the legislature demonstrated an intent to concomitantly limit the number of individuals whose information could be obtained from the Databank.² Our standing rules “help courts separate the tangible from the abstract or speculative injury, and the genuinely aggrieved from the judicial dilettante or amorphous claimant” (*Saratoga County Chamber of Commerce v Pataki*, 100 NY2d 801, 812 [2003]). Here, petitioners have identified a genuine injury.

III.

On the merits, this appeal presents two straightforward questions: (A) does the legislature have the power to delegate rulemaking authority over familial DNA searches to the Commission; and (B) did the legislature do so? The Court unanimously agrees that the legislature has that power; the disagreement is whether the Databank Act granted the Commission the authority to promulgate the FDS Regulations. We hold that it did so. Although the Appellate Division examined the factors laid out in *Boreali v Axelrod* (71 NY2d 1 [1987]), that case has no application here.³ Interpretation of the Databank Act to determine whether the regulations fall within the scope of the statute’s grant of regulatory authority is a pure question of statutory interpretation.

A.

New York Constitution, article V, § 3 expressly provides that “the legislature may from time to time assign by law new powers and functions to . . . commissions.” Although “the Legisla-

2. Here, the Databank Act seeks to protect the privacy interests implicated by use of the information in the Databank (*see* Executive Law §§ 995-b [9] [b] [ii]-[vi], [viii]-[ix] [enumerating Committee’s duties to implement safeguards protecting the confidentiality of genetic information stored in the Databank]; 995-d [detailing confidentiality requirements to protect Databank information], 995-f [providing criminal penalties for unauthorized use or disclosure of information stored in the Databank]).

3. *Boreali* concerned the exceedingly broad and nonspecific grant contained in section 225 (5) (a) of the Public Health Law, which authorized the Public Health Committee to “deal with any matters affecting . . . the public health.” The Court’s concern was that such a “facially broad . . . legislative grant of authority must be construed, whenever possible, so that it is no broader than that which the separation of powers doctrine permits” (71 NY2d at 9). No exceedingly broad grant of authority is present here. The question before us is solely one of statutory interpretation: whether the DNA Databank Act authorizes the FDS Regulations. Because it does, *Boreali* is inapplicable.

ture cannot pass on its law-making functions to other bodies” (*Matter of Levine v Whalen*, 39 NY2d 510, 515 [1976]), “there is a large field in which the legislature . . . may certainly delegate to others powers which the legislature may rightfully exercise itself” (*Matter of Trustees of Vil. of Saratoga Springs v Saratoga Gas, Elec. Light & Power Co.*, 191 NY 123, 138 [1908] [internal quotation marks omitted]). “The Legislature may constitutionally confer discretion upon an administrative agency [or a commission] . . . if it limits the field in which that discretion is to operate and provides standards to govern its exercise” (*Matter of Levine*, 39 NY2d at 515). So long as the legislature stays within those confines, it enjoys great flexibility in delegating rulemaking powers to administrative agencies in order to meet its policymaking ends. In fact, this flexibility is necessary to the law-making process.

Duly enacted statutes, including those pertaining to administrative action, enjoy a presumption of constitutionality (see *Matter of County of Chemung v Shah*, 28 NY3d 244, 262 [2016]). We note that the Commission has promulgated regulations governing both full and partial DNA matches and has done so without challenge to the legislature’s power to delegate rulemaking authority concerning access to, operation of, and restrictions on dissemination of information derived from the Databank. The Commission’s original regulations defined “matches” as direct matches, where the sample matched a record in the Databank with an extremely high degree of certainty (see Partial Match Policy at 5). Because the Databank Act delegated to the Commission the authority to determine what constituted a match, a claim that the legislature lacked the power to delegate rulemaking authority in this area to the Commission cannot turn on the particular definition of “match” chosen by the Commission.

B.

The only real question on this appeal is whether the legislative grant of authority in the Databank Act delegated to the Commission the power to issue regulations concerning access to and use of the information stored in the Databank.

The legislature’s policy determinations and limiting guidelines are evident from the plain text of the Databank Act and its structure. Although the petitioners characterize the statutory authorization to promulgate forensic DNA policy as granted to or shared with the DNA Subcommittee, a small

group of mostly out-of-state scientists, and complain that the legislature could not have intended to delegate to such people the promulgation of rules as to the purposes for which the Databank could be accessed, the statutory scheme is not as petitioners describe it.

The DNA Subcommittee has a narrowly prescribed mandate: to provide the Commission with specialized expertise on the science of DNA forensics. The DNA Subcommittee's authority to promulgate "binding" recommendations to the Commission is limited to specifically enumerated, highly technical areas pertaining to testing standards and accreditation. Our dissenting colleagues point to Subcommittee (not Commission) minutes that describe its recommendation to adopt the FDS Regulations as "binding" (dissenting op at 531). But the Attorney General at oral argument stated that those recommendations were not treated by the Commission as binding and, in any event, petitioners have not challenged the adoption of the regulations based on that alleged procedural error. Regardless, the Databank Act expressly confines the Subcommittee's authority to promulgate a "binding recommendation" to narrowly delineated topics.⁴

In contrast, the Databank Act authorizes the *Commission* to "promulgate a policy for the establishment and operation of a DNA identification index consistent with the operational requirements and capabilities of the [DCJS]" (Executive Law § 995-b [9]). Unlike the DNA Subcommittee, the Commission is composed of a diverse array of 14 criminal justice stakeholders (§ 995-a [1]-[2]) including the Commissioner of the DCJS (subd [1] [a]), the Commissioner of the Department of Health (or her designee) (*id.*), and 12 additional members appointed by the governor, almost all of whom either are determined *ex officio* or

4. Compare Executive Law § 995-b (2-a) (granting DNA Subcommittee sole authority to grant, deny, review or modify a DNA forensic laboratory's accreditation), and (13) (b) ("The DNA subcommittee shall make binding recommendations for adoption by the commission addressing minimum scientific standards to be utilized in conducting forensic DNA analysis including, but not limited to, . . . population studies and methods employed to determine probabilities and interpret test results"), *with id.* ("The DNA subcommittee shall assess and evaluate all DNA methodologies proposed to be used for forensic analysis, and make reports and recommendations to the commission as it deems necessary"); (9) (requiring the Commission to *consult* with the DNA Subcommittee to promulgate a policy for the establishment and operation of the DNA Databank), and (13) (d) (authorizing the DNA Subcommittee to advise the Commission on "any other matters referred to it by the commission").

must first be nominated by others (subds [1] [b]; [2]). Of the 12 appointed members:

“(a) one member shall be the chair of the New York state crime laboratory advisory committee;

“(b) one member shall be the director of a forensic laboratory located in New York state;

“(c) one member shall be the director of the office of forensic services within the [DCJS];

“(d) two members shall be a scientist having experience in the areas of laboratory standards or quality assurance regulation and monitoring and shall be appointed upon the recommendation of the commissioner of health;

“(e) one member shall be a representative of a law enforcement agency and shall be appointed upon the recommendation of the commissioner of criminal justice services;

“(f) one member shall be a representative of prosecution services who shall be appointed upon the recommendation of the commissioner of criminal justice services;

“(g) one member shall be a representative of the public criminal defense bar who shall be appointed upon the recommendation of an organization representing public defense services;

“(h) one member shall be a representative of the private criminal defense bar who shall be appointed upon the recommendation of an organization of such bar;

“(i) two members shall be members-at-large, one of whom shall be appointed upon the recommendation of the temporary president of the senate, and one of whom shall be appointed upon the recommendation of the speaker of the assembly; and

“(j) one member, who shall be an attorney or judge with a background in privacy issues and biomedical ethics, shall be appointed upon the recommendation of the chief judge of the court of appeals” (subd [2]).

The composition of the Commission shows that the legislature carefully delineated between the DNA Subcommittee, which was composed of experts to provide scientific standards, and the Commission, which was entrusted with the promulgation of nonscientific regulations concerning when and by whom requests for matches could be made, what information could be released, what measures would be required to ensure data security, and how to balance the need for legitimate uses of the information with privacy interests. Consistent with the distinction between the Commission and the DNA Subcommittee, the Commission is also charged with “designat[ing] one or more approved methodologies for the performance of forensic DNA testing” (§ 995-b [11]). The Executive Law defines “DNA testing methodology” to include not only “methods and procedures used to extract and analyze DNA material” but also “the methods, procedures, assumptions, and studies used to draw statistical inferences from the test results” (§ 995 [3]).⁵

Most importantly, the Act gives the Commission—not the DNA Subcommittee—the authority to “[p]romulgate standards for a determination of a match between the DNA records contained in the state DNA identification index and a DNA record of a person submitted for comparison therewith” (§ 995-b [12]).⁶ The statute clearly provides that the definition of “match” is to be determined by the Commission. If questions

5. As part of its analysis, the dissent describes the Commission’s mandate as “develop[ing] minimum standards and a program of accreditation for all forensic laboratories in in New York” (dissenting op at 543, quoting Executive Law § 995-b [1]). However, when earlier describing the Commission’s mandate, the dissent correctly acknowledges that the Commission is also charged with “promulgat[ing] a policy for the establishment and operation of a DNA identification index” (dissenting op at 528, quoting Executive Law § 995-b [9]). Although the dissent agrees that the legislature empowered the Commission to promulgate policies for the establishment and operation of a DNA identification index (dissenting op at 541), it nakedly asserts that “familial search is not part of the DNA identification index” (*id.*) and the “mere[] . . . authority to approve new testing methodologies” does not encompass familial searches (*id.* at 540). But a “methodology” is “a particular procedure or set of procedures” (Merriam-Webster.com Dictionary, methodology [<https://www.merriam-webster.com/dictionary/methodology>]), which the familial search rules are. The Databank Act does not say that the index is limited to direct matches, partial matches, familial matches or any other type of match. Instead, it charges the Commission with determining what a “match” is (*see* Executive Law § 995-b [12]) and authorizes use of the Databank for “law enforcement identification purposes” (§ 995-c [6] [a]).

6. The dissent observes that because the Databank Act does not define the term “match,” we must interpret it “according to its ordinary and

(n. cont’d)

related to ethics, privacy, and the practical needs of prosecutors and criminal defense lawyers were not to figure into the determination of a “match,” but matches were to be constrained to a scientific determination only, the statute would have been constructed in a completely different way.⁷

Crucially, in Executive Law section 995-c (6), the legislature defined the limited purpose for which information in the Databank could be used:

“DNA records contained in the state DNA identification index shall be released only for the following purposes:

“(a) to a federal law enforcement agency, or to a state or local law enforcement agency or district attorney’s office for law enforcement identification purposes upon submission of a DNA record in connection with the investigation of the commission of one or more crimes or to assist in the recovery or identification of specified human remains, including identification of missing persons, provided that there exists between the division and such agency a written agreement governing the use and dissemination of such DNA records in accordance with the provisions of this article.”

As the dissent observes, the legislature did not “intend[] for the Databank to be used for any purpose deemed appropriate by the Commission” (dissenting op at 542-543). But it did intend exactly what it stated in section 995-c (6): the Databank is to be used for “law enforcement identification purposes.” The

accepted meaning as it was understood at the time” (dissenting op at 545, quoting *Gevorkyan v Judelson*, 29 NY3d 452, 459 [2017]). That conclusion fails because the Databank Act expressly charged the Commission with defining the term “match” (see Executive Law § 995-b [12] [directing the Commission to “(p)romulgate standards for a determination of a match between the DNA records contained in the state DNA identification index and a DNA record of a person submitted for comparison therewith”). That legislative choice necessarily means that the legislature did not expect that “match” would be used in its dictionary sense, but instead empowered the Commission to develop a specialized definition to be used in the context of DNA searches.

7. When a request for a direct match produces a partial match, it may provide exactly the same information as a familial search, although some familial searches would not be reported as partial matches. Whether familial search requests may use different software or base matches on a reduced set of alleles is not relevant to the statutory interpretation question, however, because the legislature directed the Commission to determine what constitutes a match.

dissent never claims that familial matching falls outside of that statutory authorization. Far from a standardless or overly amorphous grant of lawmaking authority of the sort at issue in *Boreali*, the legislature expressly defined the limited sphere in which the Commission was authorized to promulgate regulations concerning access to and use of information from the Databank.⁸ The legislature restricted access to specified law enforcement offices (§ 995-c [6] [a]); only when such offices had a written agreement with the DCJS, consistent with the provisions of the Databank Act (*id.*); only when such offices submitted a DNA sample for comparison; and only for specified purposes, including the investigation of a crime (*id.*). The challenged regulations implement and fully comply with the statutory mandate, including that information is released from the Databank only when the request is in connection with the investigation of a crime (or the other two statutory purposes not at issue here).

Indeed, as would be expected from the text of the Databank Act evidencing a legislative concern for the security and privacy of such information, the challenged FDS Regulations sharply limit the universe of data that might be disclosed. In the absence of those regulations—left purely to the statutory language—nothing would restrict requests for familial searches to, for example, instances where a law enforcement agency had attempted other means to identify the perpetrator.

[2] The legislative history of the Databank Act further confirms that the legislature intended to delegate to the Commission the power to regulate access to and use of information in the Databank (Governor’s Approval Mem, Bill Jacket, L 1994, ch 737 at 5 [“the bill’s unprecedented creation of the

8. We are very reluctant to consider subsequent failed legislation to interpret the meaning of a statute (*see Matter of Oswald N.*, 87 NY2d 98, 103 n 1 [1995] [“(l)egislative inaction, because of its inherent ambiguity, affords the most dubious foundation for drawing positive inferences”], quoting *Clark v Cuomo*, 66 NY2d 185, 190-191 [1985]). The various proposed but unsuccessful legislative efforts concerning familial searches do not bear on the interpretation of the Databank Act, and the failures could just as easily indicate the satisfaction of subsequent legislatures with the Commission’s familial search regulations. The FDS Regulations are quite stringent in practice: according to counsel for the Commission, since the Regulations were adopted in October 2017, there have been only 53 requests for familial searches (43 unique applications and 10 reapplications), of which 16 were rejected and only 30 produced matches reported back to the requesting law enforcement agency. In any event, the legislature remains free to expand, constrict, or alter the scope of the regulations, or to expressly remove the Commission’s authority to issue those regulations.

Commission on Forensic Science, coupled with its specific proscriptions governing the State DNA identification index and use of DNA records, ensures a reasoned approach to the implementation of forensic DNA technology in New York”), and carefully considered the decision to task the Commission with the duty of safeguarding the sensitive genetic information therein (*see* Budget Report on Bills, Bill Jacket, L 1994, ch 737 at 8 [the Databank Act “prescribes limited circumstances under which records contained in the DNA identification index can be released . . . and provides confidentiality rules, and penalties for inappropriate disclosure of such confidential DNA records”]). The legislature contemplated that the Commission would be authorized to promulgate DNA collection and analysis policies and directed the Commission to regulate access to the Databank (Mem of Atty Gen, L 1994, ch 737 at 12 [the Databank Act will “ensure that DNA samples are collected and analyzed so as to enhance law enforcement investigations while not trampling on the rights of innocent individuals”]).

Given the clarity and specificity of the guidelines provided in the Databank Act, respondents acted within their delegated authority. The FDS Regulations are a result of “administrative rule-making,” not “legislative policy-making” (*Matter of Independent Ins. Agents & Brokers of N.Y., Inc. v New York State Dept. of Fin. Servs.*, 39 NY3d 56, 69 [2022]). Here, the legislature made the policy determination that New York State should have well-developed DNA testing programs to assist law enforcement, that the use of the information should be limited, and the data and results secure. To achieve those ends, it directed the Commission to promulgate rules and administer that program in accordance with the legislature’s defined policy ends, including the protection of privacy interests (*cf. Delgado v State of New York*, 39 NY3d 242, 263-264 [2022]). That the statute does not expressly mention familial searches is not pertinent; the statutory provisions cited above grant the Commission the power to determine what constitutes a “match” and to establish rules regarding use, dissemination, and confidentiality of information based on matches of DNA samples submitted by law enforcement (*see e.g. Garcia v New York City Dept. of Health & Mental Hygiene*, 31 NY3d 601 [2018] [holding that the Board of Health may require influenza vaccines even though influenza was not expressly listed among the vaccines required by statute]; *Matter of Levine*, 39 NY2d at 515 [statutory “standards or guides need only be prescribed in so detailed a fashion as is reasonably practicable in . . . light

of the complexities of the particular area to be regulated”]; *Matter of Sullivan County Harness Racing Assn. v Glasser*, 30 NY2d 269, 276 [1972] [holding that the statutory authority granted to the Racing Commission to issue licenses only in “the public interest, convenience or necessity” and the “best interests of racing generally” properly allowed the Commission to condition a racetrack’s license on the prohibition of televising races)].⁹

Regulatory agencies are “clothed with those powers expressly conferred by [their] authorizing statute[s], as well as those required by necessary implication” (*Matter of Acevedo v New York State Dept. of Motor Vehs.*, 29 NY3d 202, 221 [2017]). In general, agencies “can adopt regulations that go beyond the text of [enabling] legislation, provided they are not inconsistent with the statutory language or its underlying purposes” (*Matter of General Elec. Capital Corp. v New York State Div. of Tax Appeals, Tax Appeals Trib.*, 2 NY3d 249, 254 [2004]).

9. The decisions cited by our dissenting colleagues are inapposite—they involved the question of whether regulations promulgated under a facially broad grant of authority usurped the legislative function. In *Matter of New York Statewide Coalition of Hispanic Chambers of Commerce v New York City Dept. of Health & Mental Hygiene* (23 NY3d 681 [2014]), we held that the authority of the New York City Department of Health (DOH) was not so broad as to permit it to limit the size of soda containers, though would have been broad enough to require labels to show caloric content. Considerations of “economic consequences . . . tax implications for small business owners . . . and personal autonomy” (*id.* at 698) as to what beverages people consume strayed far from the DOH’s legislative authorization. Likewise inapposite is the dissent’s observation that considerations of privacy were beyond the mandate of the DOH in *Matter of New York Statewide Coalition*: there, the DOH’s statutory grant of authority did not mention the protection of privacy interests, whereas the Databank Act contains numerous provisions requiring the Commission to promulgate regulations that protect the privacy interests of individuals (see Executive Law §§ 995-b [2] [d]; [9] [b] [ii], [iii], [iv], [v], [vi], [viii]; 995-c [6]; 995-d).

By contrast, in *Matter of NYC C.L.A.S.H., Inc. v New York State Off. of Parks, Recreation & Historic Preserv.* (27 NY3d 174 [2016]), the Public Health Law demonstrated that the legislature had made the policy decision to limit secondhand smoke in certain areas of the state, “and left it to state agencies to act within the confines of that determination” (*id.* at 183). The Databank Act’s grant of regulatory authority is, in contrast, narrow and specific: it directed the Commission to weigh multiple specified interests, with technical guidance from the DNA Subcommittee, and promulgate rules that achieve the defined legislative goals. The Commission exists to promulgate standards, develop a program of accreditation, and protect privacy. In choosing to allow, subject to strict restrictions, the use of familial DNA searches, it has defined matches and taken steps to protect privacy exactly as it was authorized to do.

Because the Databank Act charges the Commission with determining what constitutes a “match” and authorizes the Commission to promulgate regulations that balance the legislative purpose of aiding law enforcement through the use of the Databank with concerns about misuse and security of the Databank and results produced from it, we reject petitioners’ challenge to the regulations governing familial searches.

IV.

[3] Petitioners advance an alternative argument that the FDS Regulations are arbitrary and capricious and request that we remand this case to the Appellate Division for consideration of that issue. Petitioners argue that respondents promulgated the FDS Regulations without appropriate consideration of the potentially disproportionate impact of familial searches on Black and Hispanic New Yorkers, and whether the investigatory benefit of using familial searches outweighs that potential disproportionate impact. In article 78 proceedings, a court may not disturb an administrative action unless it finds no rational basis for the agency’s action, or that the challenged action was arbitrary and capricious (*see Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222, 230 [1974]). Here, the record demonstrates that respondents promulgated the FDS Regulations only after soliciting and receiving public comment and considering relevant issues, in accordance with their statutory obligations. Moreover, the regulations have, in practice, resulted in an extremely small number of familial search results provided to law enforcement agencies—about five per year—which evidences the restrictiveness with which the FDS Regulations were drawn to protect privacy interests. No abuse of discretion appears on this record.

Accordingly, the order of the Appellate Division should be reversed, with costs, and the petition dismissed.

LINDLEY, J.* (dissenting). The decision to permit familial searching of the DNA Databank in New York was made by the Commission on Forensic Science (Commission) based upon the “binding recommendation” of its DNA Subcommittee pursuant to Executive Law § 995-b (13) (b). In my view, the legislature did not authorize either the Commission or the DNA Subcommittee to make important policy-laden decisions of this nature,

* Designated pursuant to NY Constitution, article VI, § 2.

and respondent agencies, in adopting the familial search regulations, “crossed the hazy ‘line between administrative rule-making and legislative policy-making’” (*Greater N.Y. Taxi Assn. v New York City Taxi & Limousine Commn.*, 25 NY3d 600, 610 [2015]). I therefore respectfully dissent.

I.

To understand the purposes behind the relevant authorizing legislation (i.e., the DNA Databank Act [Executive Law § 995 *et seq.*, L 1994, ch 737]), it may be helpful to review the events that led to its passage. The first successful use of DNA evidence by a prosecutor in the United States came in 1987 during a Florida rape trial, where the defendant was tied to DNA left at the crime scene. The intermediate appellate court upheld the conviction, finding that the DNA evidence in that case was sufficiently reliable to be admitted into evidence (*see Andrews v State*, 533 So 2d 841, 849-851 [Fla Dist Ct App 1988]). Prosecutors in New York and other states soon began using DNA evidence as well, with mixed results, at least initially.

In 1989, following a three-month *Frye* hearing, the trial judge in *People v Castro* (144 Misc 2d 956, 979 [Sup Ct, Bronx County 1989]) ruled that, although “DNA forensic identification techniques and experiments are generally accepted in the scientific community and can produce reliable results,” certain DNA evidence in that case was inadmissible because the “testing laboratory failed in several major respects to use the generally accepted scientific techniques and experiments for obtaining reliable results, within a reasonable degree of scientific certainty” (*id.* at 980). The *Castro* case, and others like it, demonstrated the need in New York for an oversight body to ensure the scientific accuracy of DNA testing. In the years that followed, the so-called “DNA Wars” were fought in courtrooms across the country over the accuracy and reliability of DNA testing methods and results (*see* Jay D. Aronson, *Genetic Witness: Science, Law, and Controversy in the Making of DNA Profiling* at 120-145 [2007]).

In March 1994, this Court determined that DNA evidence (specifically, the “restriction fragment length polymorphism” [RFLP] methodology) was generally accepted as reliable in the scientific community (*People v Wesley*, 83 NY2d 417, 426 [1994]). The determination in *Wesley* established that the RFLP methodology satisfied the *Frye* standard of admissibility, thus

opening the door to widespread use of such evidence in criminal cases, provided, of course, that the laboratory procedures were adequate “to assure the accuracy and reliability of its testing results” (*id.*).

Several months later, “[i]n direct response to this Court’s green light in *People v Wesley* . . . for the introduction of DNA profile evidence” (*People v Williams*, 35 NY3d 24, 49 n 1 [2020, DiFiore, Ch. J., concurring]), the legislature enacted the DNA Databank Act, which created the Commission on Forensic Science and “a subcommittee on forensic DNA laboratories and forensic DNA testing,” i.e., the DNA Subcommittee (Executive Law § 995-b [13] [a]). The Act also authorized the establishment of the DNA Databank for the collection and storage of DNA from people convicted of certain enumerated felonies (“designated offenders”).

Pursuant to Executive Law § 995-a, the Commissioner of the Department of Criminal Justice Services (DCJS) sits as Chair of the Commission, which has oversight over all forensic evidence, and the Governor appoints 12 of its 14 members.¹ The Chair of the Commission then appoints the Chair of the DNA Subcommittee, who, based on recommendations from the Commissioner of Health and the DCJS Commissioner, selects the DNA Subcommittee’s other six members, all of whom must have expertise in either molecular biology, population genetics, forensic science, or “laboratory standards and quality assurance regulation and monitoring” (§ 995-b [13] [a]).

II.

Executive Law § 995-b (1) directs the Commission to “develop minimum standards and a program of accreditation for all forensic laboratories in New York state, including establishing minimum qualifications for forensic laboratory directors and such other personnel as the [C]ommission may determine to be necessary and appropriate, and approval of forensic laboratories for the performance of specific forensic methodologies.” The objectives of the Commission in developing minimum standards and a program of accreditation are to:

“(a) increase and maintain the effectiveness, effi-

1. In addition to the Commissioner and the 12 members appointed by the Governor, the Commission is further comprised of “the commissioner of the department of health or his or her designee,” who serves as an “ex-officio member of the [C]ommission” (Executive Law § 995-a [1]).

ciency, reliability, and accuracy of forensic laboratories, including forensic DNA laboratories;

“(b) ensure that forensic analyses, including forensic DNA testing, are performed in accordance with the highest scientific standards practicable;

“(c) promote increased cooperation and coordination among forensic laboratories and other agencies in the criminal justice system;

“(d) ensure compatibility, to the extent consistent with the provisions of this article and any other applicable provision of law pertaining to privacy or restricting disclosure or redisclosure of information, with other state and federal forensic laboratories to the extent necessary to share and exchange information, data and results of forensic analyses and tests; and

“(e) set forth minimum requirements for the quality and maintenance of equipment” (§ 995-b [2]).

The statute further provides that the Commission, “in consultation with the DNA [S]ubcommittee, shall promulgate a policy for the establishment and operation of a DNA identification index consistent with the operational requirements and capabilities of the division of criminal justice services” (Executive Law § 995-b [9]). The “index” is another term for the Databank, which has been expanded over the years by the legislature to include DNA from people convicted of all felonies and Penal Law misdemeanors (*see e.g.* L 2004, ch 138; L 1999, ch 560).

The DNA Subcommittee, for its part, is authorized to “assess and evaluate all DNA methodologies proposed to be used for forensic analysis, and make reports and recommendations to the [C]ommission as it deems necessary” (Executive Law § 995-b [13] [b]). Pertinent to this appeal, the Subcommittee shall also “make binding recommendations for adoption by the [C]ommission addressing minimum scientific standards to be utilized in conducting forensic DNA analysis including, but not limited to, examination of specimens, population studies and methods employed to determine probabilities and interpret test results” (*id.*).

As can be surmised from its provisions, the DNA Databank Act was designed by the legislature to address “[o]ne of the

major criticisms of the use of DNA evidence in prosecutions” at the time, which was “the lack of minimum standards for laboratories that did DNA testing” (George H. Barber & Mira Gur-Arie, New York’s DNA Data Bank and Commission on Forensic Science at 5 [1994]). The legislative history shows that the idea behind the establishment of the DNA Databank was that convicted felons were likely to reoffend, and having their DNA in the Databank might help solve future crimes (*see* NY St Law Enforcement Council, Letter of Support, Bill Jacket, L 1994, ch 737 at 29; St of NY, Dept of Law, Mem of Support, Bill Jacket, L 1994, ch 737 at 11; District Attorney, Queens, NY, Letter of Support, Bill Jacket, L 1994, ch 737 at 36). Although the DNA Databank Act infringed upon the designated offenders’ genetic privacy rights, the designated offenders were deemed to have a diminished expectation of privacy due to their prior criminal conduct (*see Nicholas v Goord*, 430 F3d 652, 669 [2d Cir 2005]).

For the first two decades or so of its existence, the DNA Databank was used for its intended purpose, i.e., to compare DNA recovered from crime scenes with the genetic profiles of designated offenders in the Databank to look for matches, which, if found, would lead the police directly to the perpetrator. In October 2017, however, DCJS permitted a new use of the Databank when it promulgated the familial search regulations at issue herein.

III.

Familial searching generally refers to the “deliberate search of a DNA database conducted for the intended purpose of potentially identifying close biological relatives to the unknown forensic profile obtained from crime scene evidence” (Allison Murray et al., *Familial DNA Testing: Current Practices and Recommendations for Implementation*, 9 Investigative Scis J 1, 2 [2017]). Instead of targeting convicted criminals whose DNA is already stored in the database, all of whom have been eliminated as suspects following an unsuccessful search for direct genetic matches, familial searching targets their siblings, parents and children, many of whom has never committed a crime. And familial searching can identify multiple people in the Databank who may be related to the perpetrator. “[F]amilial searches generate only leads, which in turn point only to a list of possible suspects, all but one of whom definitely did not leave the evidence” (Erin Murphy, *Relative Doubt: Familial*

Searches of DNA Databases, 109 Mich L Rev 291, 313 [2010] [emphasis omitted]). Thus, almost by definition, most suspects investigated by the police as a result of a familial DNA search are innocent.²

The use of familial searching as an investigatory tool was developed in the United Kingdom in the early 2000s, leading to the arrest and conviction of several violent criminals (Henry T. Greely et al., *Family Ties: The Use of DNA Offender Databases to Catch Offenders' Kin*, 34 J L Med & Ethics 248 [2006]). In 2008, California became the first state to expressly permit familial searching of its DNA database, followed by Colorado the next year. By 2014, after several other states had adopted familial search policies, the legislature in New York began to consider its use here. Bills to amend the DNA Databank Act to permit familial searching were proposed and submitted in the Assembly in 2014, 2015, 2016, 2017 and 2018, but none made it out of committee (see e.g. 2014 NY Assembly Bill A9247, 2015 NY Assembly Bill A1515). In the Senate, a bill to authorize the use of familial searching was introduced in December 2016 and then again in early 2017. The Senate approved the bill in February 2017 by a vote of 49-11 (2017 NY Senate Bill S2956A), but the bill, after delivery to the Assembly, died in committee (2017 NY Assembly Bill A683).

Meanwhile, over in the executive branch, the Acting Commissioner of DCJS (the Commissioner) received a letter in December 2016 from the Queens County District Attorney requesting that the Commission authorize the use of familial searching of the DNA Databank. The District Attorney referenced the unsolved murder of a Howard Beach woman who was found to have male DNA under her fingernails, on her neck and on her cell phone. The genetic profile extracted from that DNA did not match any profiles in the state Databank, and the District Attorney wanted to know whether the perpetrator might instead be related to someone in the Databank.³

The DCJS Commissioner referred the request to the DNA Subcommittee, which held a joint public meeting with the Commission on February 10, 2017, to consider the use of familial searching of the Databank. Following that joint meeting,

2. As respondents acknowledge, so far only two people investigated by the police as a result of familial searching in New York have been arrested.

3. The crime was later solved without the use of familial searching.

members of the Subcommittee met in small groups (less than a quorum so as not to run afoul of the Open Meetings Law) and drafted proposed regulations permitting familial searching as well as an implementation plan. The Subcommittee approved the regulations and plan on March 27, 2017, and forwarded them to the Commission.

On April 12, 2017, the Commission reviewed the proposed regulations and, after discussing various provisions at length, voted to send the regulations back to the Subcommittee with several proposed amendments. The Commission requested that the Subcommittee consider the suggested changes and make a “binding recommendation with regard to the issue of Familial Search; specifically the policy, regulations and implementation plan” (Commission Minutes, Apr. 12, 2017).

During a public meeting held on May 19, 2017, the DNA Subcommittee voted unanimously to “make a binding recommendation to the Commission on Forensic Science that New York State adopt the familial searching policy as it was amended, as well as the regulations and implementation plan that have been similarly revised to reflect the changes in the policy” (Subcommittee Minutes, May 19, 2017). The Subcommittee also made a binding recommendation to the Commission as to the level of kinship threshold that should be established when conducting a familial search. At that time, only one of the seven Subcommittee members resided in New York State.

On June 16, 2017, the Commission approved the Subcommittee’s binding recommendations by a vote of 9-2.⁴ Notice of the proposed familial search regulations (FDS regulations), as drafted by the DNA Subcommittee, was published in the State Register, thus commencing the statutory 45-day public comment period. According to the State Register, the “[s]tatutory authority” for the proposed regulations was Executive Law §§ 837 (13) and 995-b (9) and (13) (NY St Reg, July 26, 2017 at 8). Following receipt of comments from supporters and opponents of familial searching, the FDS regulations became effective on October 18, 2017. The notice of adoption set forth in

4. The Commission Chair stated that, due to the binding nature of the Subcommittee’s recommendation, the Commission had to either accept the proposed regulations in their entirety or send them back to the Subcommittee. The oxymoronic term “binding recommendation” is not defined in Executive Law article 49-B, so it is unclear whether the Commission had authority to reject the Subcommittee’s binding recommendation.

the State Register reflected, once again, that the FDS regulations were promulgated by DCJS pursuant to sections 837 (13) and 995-b (9) and (13) of the Executive Law (NY St Reg, Oct. 18, 2017 at 3).

I note that, although all states have had DNA databases since 1998, the vast majority do not allow familial searching. The legislatures in several states declined to approve bills to authorize familial searching, while Maryland and the District of Columbia have laws expressly forbidding its use (Md Code Ann, Pub Safety § 2-506 [d] [2010]; DC Code § 22-4151 [b] [2012]). Only 12 states, including New York (until the Appellate Division's ruling), allow familial searching. The FBI does not use familial searching of its Combined DNA Index System, taking the position that it would need authorization from Congress to do so (*see* Ellen Nakashima, *From DNA of Family, a Tool to Make Arrests*, Washington Post, Apr. 21, 2008). Such authorization has not been forthcoming.

IV.

In this proceeding pursuant to CPLR article 78, petitioners sought an order annulling the familial search regulations, among other forms of relief. The petition alleged that respondents, in promulgating the regulations, usurped the legislature's power to enact laws affecting the rights of New York's citizens and exceeded the powers delegated to them by the DNA Databank Act. The petition further alleged that the familial search policy is arbitrary and capricious, primarily because it subjects innocent people, a disproportionate number of whom are African-American, to the risk of police investigation with little corresponding benefit to law enforcement.⁵

In their joint answer, respondents asserted as an objection in point of law that petitioners lacked standing to challenge the FDS regulations because they have not suffered an injury-in-fact and are outside the zone of interests sought to be promoted or protected by the DNA Databank Act (*see generally Matter of Mental Hygiene Legal Serv. v Daniels*, 33 NY3d 44, 52 [2019]). According to respondents, petitioners failed to establish an injury-in-fact because they have not been investigated by the police or otherwise suffered any *actual* harm because of the fa-

5. The petition asserted other causes of action that have since been abandoned on appeal (*see generally Webb-Weber v Community Action for Human Servs., Inc.*, 23 NY3d 448, 451 n 2 [2014]).

mial search policy, and the risk that they will be harmed in the future is far too remote and speculative to confer standing.

V.

Although Supreme Court determined that petitioners have standing to sue, it dismissed the petition on the merits, finding that “the adoption of the Regulations [was] within the broad and ‘large scale’ delegation of authority from the Legislature to the Division in its enabling statute” (2020 NY Slip Op 30861[U], *12 [Sup Ct, NY County 2020]). Using the *Boreali* factors as a guide (*see Boreali v Axelrod*, 71 NY2d 1, 11-15 [1987]), the court further determined that respondents, in promulgating the FDS regulations, did not overstep their permissible rule-making authority and cross over into the legislature’s policy-making domain. Finally, the court determined that the regulations have a rational basis and are not arbitrary and capricious.

In a 3-2 decision, the Appellate Division reversed and granted the petition (206 AD3d 88 [1st Dept 2022]). The majority agreed with Supreme Court that petitioners have standing but concluded that respondents lacked authority to adopt the familial search policy. Having so concluded, the majority did not address whether the regulations were arbitrary or capricious. The dissenters would have dismissed the petition on standing grounds alone, noting that “[t]he regulations will not affect petitioners unless many rare conditions are all independently satisfied” (*id.* at 108 [Singh, J., dissenting]).

This appeal ensued.

VI.

As a threshold matter, I agree with the majority that petitioners have standing to commence this proceeding. I add only that respondents’ argument with respect to standing—that the risk of petitioners being investigated by the police as a result of the familial search regulations is too remote and speculative to allow them access to the courts—would, if accepted, mean that the only people who could possibly have had standing to sue were those who were actually investigated by the police before the four-month statute of limitations period expired, which would be no one. That would be contrary to this Court’s admonition that common-law standing rules should not be applied “‘in an overly restrictive manner where the result would be to completely shield a particular action from judicial

review’ ” (*Matter of Sierra Club v Village of Painted Post*, 26 NY3d 301, 311 [2015], quoting *Matter of Association for a Better Long Is., Inc. v New York State Dept. of Envtl. Conservation*, 23 NY3d 1, 6 [2014]).

Respondents do not dispute that their position on standing would effectively close the courthouse doors to everyone who seeks to challenge the familial search regulations in an article 78 proceeding, thereby erecting “an impenetrable barrier to any judicial scrutiny” of the FDS regulations in that context (*Matter of Colella v Board of Assessors of County of Nassau*, 95 NY2d 401, 410 [2000] [internal quotation marks omitted]; see *Saratoga County Chamber of Commerce v Pataki*, 100 NY2d 801, 814 [2003] [“our duty is to open rather than close the door to the courthouse”], *cert denied* 540 US 1017 [2003]). Nor do respondents dispute that petitioners have a heightened risk of being investigated by the police as compared to the general public.⁶ Instead, respondents suggest that the legality of their regulatory actions will not entirely evade judicial review because a person charged criminally as a result of familial searching could challenge the regulations in a suppression motion.

But respondents assume that criminal defendants have standing to seek suppression of evidence obtained following disclosure to the police that they are related to someone in the Databank whose DNA is a partial match with forensic DNA, a position rejected by the Appellate Division (206 AD3d at 100-101). The only criminal court in New York to consider the legality of familial searching in the context of a suppression motion concluded that the defendant—who relied on the Appellate Division’s determination in this case that the FDS regulations were unlawfully promulgated—lacked “standing to invoke the exclusionary rule to suppress the statements and the DNA evidence obtained because of the investigative efforts taken after the familial DNA search” (*People v Williams*, 77 Misc 3d 782, 785 [Sup Ct, Monroe County 2022]). Regardless, it would be incongruous if, as respondents assert, the only people who may challenge the legality of the familial search policy are those who have been charged with committing a heinous crime, while law-abiding citizens like petitioners have no such right.

6. Indeed, it would seem that no one would have a higher risk than petitioners, except perhaps someone who has two first-degree relatives in the Databank.

VII.

To the extent that we may address petitioners' third cause of action, alleging that the FDS regulations are arbitrary and capricious, I readily agree with the majority that it lacks merit.⁷ As can be seen from recordings of the various public meetings that are incorporated by reference into the record, members of the Commission and the DNA Subcommittee carefully balanced competing policy considerations to formulate rational regulations allowing familial searching under limited circumstances subject to the approval of the DCJS Commissioner. Inasmuch as I agree with the majority on standing and the arbitrary and capricious cause of action, this appeal turns on petitioners' cause of action alleging that respondents, in allowing familial searching, exceeded the scope of powers delegated to them by the legislature under the DNA Databank Act.⁸

It is well settled that “[a] governmental agency exceeds the scope of its delegated authority in promulgating a regulation when it engages in impermissible ‘legislative policy-making,’ as opposed to permissible ‘administrative rule-making’ ” (*Matter of Independent Ins. Agents & Brokers of N.Y., Inc. v New York State Dept. of Fin. Servs.*, 39 NY3d 56, 69 [2022], quoting *Boreali*, 71 NY2d at 11). Because the line between policy-making and rulemaking actions is often difficult to discern, this Court, for the past 35 years, has consistently used the *Boreali* factors as a guide to resolve challenges to administrative action (see e.g. *Garcia v New York City Dept. of Health & Mental Hygiene*, 31 NY3d 601, 609 [2018]; *Matter of Acevedo v New York State Dept. of Motor Vehs.*, 29 NY3d 202, 222 [2017]; *Matter of NYC C.L.A.S.H., Inc. v New York State Off. of Parks, Recreation & Historic Preserv.*, 27 NY3d 174, 179 [2016]).

The factors to consider under *Boreali* are

“whether (1) the agency did more than balanc[e] costs and benefits according to preexisting guidelines, but instead made value judgments entail[ing]

7. The Appellate Division did not reach this issue. Petitioners therefore ask that, if we disagree with the Appellate Division on the first cause of action, we remit the matter for resolution of their arbitrary and capricious claim (brief for respondents at 62).

8. Given the dormant status of the nondelegation doctrine (the US Supreme Court has not invalidated a statute on that ground since 1935), I agree with the majority that the legislature could have delegated to respondents the authority to make important policy decisions on the level of allowing familial searching if it had wanted to do so.

difficult and complex choices between broad policy goals to resolve social problems; (2) the agency merely filled in details of a broad policy or if it wrote on a clean slate, creating its own comprehensive set of rules without benefit of legislative guidance; (3) the legislature has unsuccessfully tried to reach agreement on the issue, which would indicate that the matter is a policy consideration for the elected body to resolve; and (4) the agency used special expertise or competence in the field to develop the challenged regulation[]” (NYC C.L.A.S.H., 27 NY3d at 179-180 [internal quotation marks and citations omitted]; see *Boreali*, 71 NY2d at 12-14).

“Any *Boreali* analysis should center on the theme that ‘it is the province of the people’s elected representatives, rather than appointed administrators, to resolve difficult social problems by making choices among competing ends’” (*Matter of New York Statewide Coalition of Hispanic Chambers of Commerce v New York City Dept. of Health & Mental Hygiene*, 23 NY3d 681, 697 [2014], quoting *Boreali*, 71 NY2d at 13).

Here, Supreme Court found that the *Boreali* factors weighed in respondents’ favor and concluded that the Commission did not engage in impermissible policy-making when adopting the FDS regulations. The Appellate Division disagreed, concluding that the *Boreali* factors overwhelmingly favored petitioners and that respondents exceeded their rule-making authority in allowing familial searching. Respondents contend that the Appellate Division erred in applying the *Boreali* factors as a guide to determining whether they had authority to promulgate the regulations. This is so, respondents reason, because the DNA Databank Act clearly grants them such authority, which should end the analysis. As petitioners point out, however, respondents failed to make that argument to the trial court. Indeed, respondents addressed the *Boreali* factors and argued that all four of them weighed in their favor.

The majority agrees with respondents that the *Boreali* factors do not inform our analysis, and it would “exile *Boreali*” (*Matter of LeadingAge N.Y., Inc. v Shah*, 32 NY3d 249, 282 [2018, Wilson, J., dissenting]) to an island of cases involving “exceedingly broad and nonspecific” grants of legislative authority (majority op at 516, n 3). The majority instead focuses its analysis exclusively on whether the legislature’s grant of

authority to the Commission in the DNA Databank Act is broad enough to include the power to permit familial searching. The Appellate Division addressed that same issue at length during its consideration of the first *Boreali* factor, ultimately concluding that the regulations “were made in excess of respondents’ authority” (206 AD3d at 105), so to an extent the two analyses overlap. Under the circumstances, I see no compelling reason to ignore the remaining three *Boreali* factors, with the understanding that all four factors are mere guidelines. While *Boreali* involved a broad grant of statutory authority, far different from the specific provisions of the Databank Act, the bottom line remains the same: “the scope of the [agency’s] authority under its enabling statute must be deemed limited by its role as an administrative, rather than a legislative, body” (*Boreali*, 71 NY2d at 6). In any event, I submit that petitioners should prevail with or without guidance from the *Boreali* factors.

With respect to the first *Boreali* factor, it is clear that members of the Commission and DNA Subcommittee, in adopting the FDS regulations, made value judgments on a wide spectrum of public policy issues. The decision to allow familial searching necessitated a balancing of many factors, including society’s interest in solving serious crimes against the civil liberty interests of citizens to be free from unreasonable governmental intrusions. Of course, there is also a racial component to consider because the DNA Databank comprises a disproportionate number of African-Americans, meaning that a disproportionate number of African-Americans will likely be investigated by the police as a result of familial searching.

Moreover, although DNA of suspects investigated by the police will never enter the state’s Databank unless they are ultimately convicted of a crime (*see* Executive Law § 995-c [9] [b]), any “eliminating” DNA samples obtained from them by the police during the investigation (either by consent or surreptitious collection of abandoned DNA) could well end up in a local DNA Databank (*see* Elizabeth E. Joh, *Reclaiming “Abandoned” DNA: The Fourth Amendment and Genetic Privacy*, 100 Northwestern Univ L Rev 857 [2006]). There are 20 local DNA databanks operating in New York, the largest of which, in New York City, contains more than 31,000 profiles, including those of people who were merely arrested or questioned by the police and not ultimately convicted of anything. The question of what will happen to the DNA of innocent

persons from whom samples are obtained by the police is yet another policy issue arising from the use of familial searching. On the other side of the ledger, there is the potential of familial searching to reduce the incidence of wrongful conviction and exonerate those who have already been wrongfully convicted, as well as the assistance it may provide in cases where human remains are unidentified.

The seminal point here is that the Commission, in deciding whether to approve the DNA Subcommittee's binding recommendation to adopt the FDS regulations, necessarily had to make value judgments with respect to the many and varied public policy considerations. The first factor thus militates heavily in favor of petitioners.

The second *Boreali* factor also favors petitioners inasmuch as the legislature, when it passed the DNA Databank Act, provided no guidance regarding how the Databank should be used except to search for suspects among designated offenders. Indeed, familial searching did not exist then and, more importantly, was not even on the horizon as an investigative tool. Thus, the only conceivable use of the Databank at the time it was created was to search for direct matches. It therefore cannot be said that the legislature provided general guidance on familial searching and left it to respondents to determine how and under what circumstances it should be used. Instead, members of the DNA Subcommittee wrote the FDS regulations on a clean slate, using as guides the familial search regulations from California and Colorado, among other states.

The third factor—whether the “legislature has unsuccessfully tried to reach agreement on the issue”—is, at best for respondents, a push considering that we are reluctant to draw inferences one way or the other from legislative inaction due to its “‘inherent ambiguity’” (*Matter of Oswald N.*, 87 NY2d 98, 103 n 1 [1995]; see *Acevedo*, 29 NY3d at 225). But the fact that the legislature considered bills to allow familial searching annually from 2014 through 2019 and failed to enact any of them into law certainly does not support respondents' position, as they contend. With respect to the third factor, the *Boreali* Court stated: “[T]he repeated failures by the Legislature to arrive at such an agreement do not automatically entitle an administrative agency to take it upon itself to fill the vacuum and impose a solution of its own” (71 NY2d at 13). That general principle is as valid today as it was back then, and is apropos here.

The remaining factor also supports petitioners inasmuch as the Commission, unlike the DNA Subcommittee, does not have any “special expertise or competence in the field” of familial searching or even DNA evidence in general (*Greater N.Y. Taxi Assn.*, 25 NY3d at 612; see Executive Law § 995-b [13] [b]). That is why the legislature created the DNA Subcommittee and gave it authority to make binding recommendations on technical matters to the Commission, which oversees all forensic evidence, not just DNA. In any event, the decision to allow familial searching of the Databank does not require special expertise in DNA evidence; instead, it requires the balancing of myriad policy considerations, a task that legislators are far better equipped to handle than unelected members of the Commission and DNA Subcommittee, many of whom, although very accomplished in their respective fields, do not even reside in New York.

In sum, while acknowledging that the *Boreali* factors should not be “rigidly applied in every case” and overlap to some degree (*Matter of New York Statewide Coalition of Hispanic Chambers of Commerce v New York City Dept. of Health & Mental Hygiene*, 23 NY3d 681, 696 [2014]), I conclude that they amply support the Appellate Division’s finding that respondents did not engage in mere regulatory rulemaking when promulgating the FDS regulations and instead made significant policy decisions reserved for the legislature.

VIII.

The majority does not seem to dispute that respondents engaged in policy-making by permitting familial searching of the DNA Databank. In the majority’s view, however, the legislature delegated to the Commission the authority to do so, and the FDS regulations were therefore lawfully promulgated. To reach that conclusion, the majority focuses on the role of the Commission in approving the regulations and relies on various provisions of Executive Law article 49-B as providing the requisite legislative authority for doing so. Specifically, the majority cites to language in Executive Law §§ 995-b (9), (11) and (12) and 995-c (6), only one of which (§ 995-b [9]) was cited in the State Register as statutory authority for DCJS’s promulgation of the regulations. As noted, the State Register identified sections 837 (13) and 995-b (13) as the other authorizing statutes, and respondents should not now be heard to argue that they acted pursuant to statutory authority that they did not actually rely on to adopt the regulations.

For the reasons that follow, I do not think that any of the statutes relied upon by respondents or the majority authorized the DNA Subcommittee to draft the FDS regulations and make a binding recommendation to the Commission that they be approved, nor did they authorize the Commission to approve the binding recommendation or DCJS to ultimately promulgate them.

I will first address the statutes cited in the State Register as authorizing promulgation of the regulations. Executive Law § 837 (13) merely provides DCJS with the power to “[a]dopt, amend or rescind such rules and regulations as may be necessary or convenient to the performance of the functions, powers and duties of the division.” This ability to promulgate regulations presumes, of course, that the substantive content of the regulations is within the ambit of DCJS’s authorized powers. If it were otherwise there would be no limit on the agency’s regulatory authority. Perhaps for that reason respondents do not even mention section 837 (13) on appeal.

Respondents’ brief does mention section 995-b (13), which was also cited in the State Register as statutory authority for the regulations. Indeed, given the prominent role played by the DNA Subcommittee in the process, it appears that the Commission, in approving the regulations, relied primarily on authority set forth in section 995-b (13) (b), which authorizes the DNA Subcommittee to make recommendations to the Commission with respect to “DNA methodologies proposed to be used for forensic analysis” and “make binding recommendations for adoption by the [C]ommission addressing minimum scientific standards to be utilized in conducting forensic DNA analysis” (§ 995-b [13] [b]).

But the legislative authorization required to permit the Commission, after a binding recommendation by the Subcommittee, to allow familial searching is a significantly broader authorization than that actually granted by the legislature, which was merely the authority to approve new testing methodologies. In establishing the Subcommittee, the legislature clearly intended to create a technical advisory committee, not a policy-making committee. The Subcommittee, however knowledgeable and experienced its members may be in matters relating to the science of DNA, is not the type of body that the legislature would entrust with authority to make significant policy decisions. For that reason, I conclude that section 995-b (13) (b) did not authorize the DNA Subcommittee to make a binding recommendation on the use of familial searching.

With respect to the Commission's authority to approve the regulations, the majority cites to the Commission's ability to promulgate policies "for the establishment and operation of a DNA identification index," which includes "the forensic DNA methodology or methodologies to be utilized in compiling the index" (Executive Law § 995-b [9] [a]). Although that power was certainly delegated to the Commission, a familial search is not part of the DNA identification index. As the Appellate Division succinctly observed, "[t]he overarching public policy consideration in deciding whether to permit familial DNA testing in the first instance necessarily involves balancing the civil liberty interests of citizens to be free from unreasonable governmental interference against the societal interest of law enforcement in investigating crimes" (206 AD3d at 104). As noted above, the balancing of these competing interests presents a significant social policy question. As defined, a familial search seeks "to indicate potential biologically related individuals to one or more sources of evidence" (9 NYCRR 6192.1 [ab]).

With that precept in mind, I agree with the Appellate Division that the decision of whether or not to allow a familial search does not fall within the Commission's grant of regulatory authority and remains with the legislature.

The majority, however, states that "[t]he Commission exists to promulgate standards, develop a program of accreditation, and protect privacy" (majority op at 524, n 9). In so stating, the majority appears to take the position that, because the legislature tasked the Commission with protecting privacy in certain regards, the legislature authorized the Commission to expand the purpose of the Databank so that it could be used to intentionally target people who are outside the Databank and who have never been convicted of a crime. And as far as the protection of privacy is concerned, the DNA Databank Act addresses it in only two instances. The first is where the statute requires the Commission to include "one member, who shall be an attorney or judge with a background in privacy issues and biomedical ethics" (Executive Law § 995-a [2] [j]). But requiring a single member of a 14-member Commission to have a background in privacy issues and biomedical ethics is an insufficient basis to determine that the legislature meant for the Commission to expand the scope of DNA searching to look for suspects outside of the Databank.

The other situation in which the DNA statute discusses issues of privacy is in the context of the Commission's duty to

“develop minimum standards and a program of accreditation for all forensic laboratories in New York state” (Executive Law § 995-b [1]). It is in that context that the legislature required that one of the objectives “[t]he minimum standards and program of accreditation shall be designed to accomplish” is to

“ensure compatibility, to the extent consistent with the provisions of this article and any other applicable provision of law pertaining to privacy or restricting disclosure or redisclosure of information, with other state and federal forensic laboratories to the extent necessary to share and exchange information, data and results of forensic analyses and tests” (§ 995-b [2] [d]).

But that is it. There are no other provisions of the DNA Databank Act where the legislature delegated to the Commission authority to make policy determinations about privacy. And although the majority focuses on cases cited in this dissent where the Court found that a regulation requiring balancing considerations of “‘economic consequences . . . tax implications for small business owners . . . and personal autonomy’” was beyond the policy considerations authorized by the legislature (majority op at 524 n 9, quoting *Matter of New York Statewide Coalition of Hispanic Chambers of Commerce v New York City Dept. of Health & Mental Hygiene*, 23 NY3d 681 [2014]), *Boreali* itself points to privacy considerations as also being the type of policy considerations that are beyond the scope of regulatory authority unless they are specifically delegated to the regulatory body at issue: “Striking the proper balance among health concerns, cost and privacy interests, however, is a uniquely legislative function” (*Boreali*, 71 NY2d at 12). The same holds true in this case, inasmuch as the legislature never authorized the Commission to strike the balance between privacy interests and law enforcement concerns by sanctioning the Commission to expand the purposes for which the Databank is used.

The other provision that respondents and the majority rely on as demonstrating the Commission’s authority to approve the FDS regulations is Executive Law § 995-b (9), which provides that “the [C]ommission, in consultation with the DNA [S]ubcommittee, shall promulgate a policy for the establishment and operation of a DNA identification index consistent with the operational requirements and capabilities of the division of criminal justice services.” The fact that the legislature

authorized the Commission to establish and operate the Databank does not mean that the legislature intended for the Databank to be used for any purpose deemed appropriate by the Commission.

Nor is authorization for the FDS regulations found in the Commission's mandate to "develop minimum standards and a program of accreditation for all forensic laboratories in New York state" (§ 995-b [1]). Familial searching has nothing to do with developing minimum testing and accreditation standards. In my view, there are no provisions of Executive Law § 995-b that authorize the Commission to approve an entirely new use of the Databank for investigatory purposes.

This leads to respondents' contention that familial searching is not, in fact, a new use of the Databank and that it is not substantially different from partial matching, which was authorized by the Commission in 2010 (*see* 9 NYCRR 6192.3 [gl]) and has gone unchallenged since. According to respondents, the Commission's approval of both familial searching and partial matching is authorized by Executive Law § 995-b (12), which allows the Commission to "[p]romulgate standards for a determination of a match between DNA records contained in the state DNA identification index and a DNA record of a person submitted for comparison therewith." As noted, however, the State Register makes clear that respondents did not act pursuant to section 995-b (12) when approving and promulgating the FDS regulations. Regardless, the statute does not authorize respondents to allow familial searching of the Databank.

The fact that no one has challenged the partial matching regulations does not mean that they were lawfully promulgated. But even assuming, for the sake of argument, that partial matching is authorized under the DNA Databank Act, it does not necessarily follow that the same is true for familial searching given the fundamental differences between the two types of searches. A partial match is found when, during an unsuccessful search for a direct match between DNA in the Databank and forensic DNA, the searching apparatus inadvertently identifies a designated offender whose DNA closely resembles crime scene DNA, thereby suggesting that the designated offender is closely related to the perpetrator of the crime. Partial matches often arise because the DNA collected from a crime scene is partially degraded or contains mixtures, making it difficult to identify direct matches.

In such cases, the Commission allows laboratories to conduct additional testing with lower stringency standards to determine whether a “near miss” shown by the initial test is in fact a direct match obscured due to the poor quality of the forensic DNA or, instead, whether it shows that the designated offender in question is closely related to the person who left DNA at the crime scene (i.e., a partial match). Until the regulations were amended in 2010, information regarding partial matches was not shared with law enforcement. With partial matching the Databank is used for its intended purpose (searching for suspects within the indices), and the partial match regulations are essentially just a disclosure policy.

With familial searching, in contrast, the Databank is intentionally searched for non-matches (i.e., people who are not designated offenders). In fact, FDS regulations permit familial searching only after the search for a direct or partial match fails (*see* 9 NYCRR 6192.3 [h]), and there is no intent with familial searching to find a direct match. Instead of targeting designated offenders (as is the case with searches for direct and partial matches), familial searching targets relatives of designated offenders. Additionally, familial searching uses fewer genetic markers to compare DNA profiles than do searches for direct and partial matches. The lower stringency search widens the net of designated offenders whose DNA is deemed similar enough to the forensic DNA to make suspects out of their relatives, leading to more false positives than partial matching.

Although section 995-b (12) authorizes the Commission to “[p]romulgate standards for a determination of a match,” the FDS regulations allow familial searching only when there is no match or partial match between the forensic DNA and the Databanked DNA. If there is no meaningful distinction between partial matches and “matches” resulting from familial searching, as respondents suggest, then familial searching would never be authorized under the regulations, because there would always be a partial match.

The significant differences between familial searches and partial match searches are discussed in the following history of familial searching:

“In a May 2006 *Science* article entitled ‘Finding criminals through DNA of their relatives,’ the authors propose that if a crime stain does not

match anyone in the offender database that there is a chance that a relative might be in the database. Since relatives will have similar DNA to one another, loosening the search stringency to permit partial matches rather than full high-stringency matches (where every allele in an STR profile must match) may return a list of results that could include a brother or other close relative. This list of potential relatives could be narrowed through further testing with Y-chromosome markers, which would require all of the potential relatives plus the crime scene sample to be examined with the additional genetic markers. In theory with this approach, the database is effectively enlarged to include close relatives of criminals whose profiles are already on the DNA database.

“The United Kingdom pioneered this partial matching technique, better known as ‘familial searching,’ and has used it to solve a number of cases—but not without controversy. It is worth noting that during routine searches of a DNA database, partial matches can result from samples that have common STR alleles—particularly with moderate or low stringency searches. Generally speaking, a familial search is a second deliberate search looking for relatives” (John M. Butler, *Fundamentals of Forensic DNA Typing* at 282 [2010]).

Inasmuch as a familial search means that a DNA database “is effectively enlarged to include close relatives of criminals whose profiles are already [in] the DNA database” (*id.*), even if only temporarily, we should expect that the legislature would have to authorize that temporary expansion of the database at issue here—i.e., the Databank—just as they have felt it necessary to authorize permanent expansions of the Databank in the past. But that is not what was done.

Finally, I note that the term “match” is not defined in article 49-B, so we must construe it “according to its ordinary and accepted meaning as it was understood at the time” (*Gevorkyan v Judelson*, 29 NY3d 452, 459 [2017] [internal quotation marks omitted]; see *People v Eulo*, 63 NY2d 341, 354 [1984]). A “match” in this context is generally understood as something “that is exactly like another” (The American Heritage Dictionary of the English Language 1079 [4th ed 2000]), and its mean-

ing has not likely changed since 1994 when Executive Law § 995-b (12) was enacted. Two things either match or they do not match. If they closely resemble each other, there is no match. When the legislature authorized the Commission to promulgate standards for “a match” with respect to the DNA Databank, it was referring to setting standards for how many genetic markers two DNA profiles have in common such that it may be concluded that the DNA came from the same person. The legislature did not enact section 995-b (12) with the intent that the Commission be allowed to determine in the future how the Databank could be used for as yet unknown investigatory purposes.

I thus conclude that the Appellate Division properly granted the petition and annulled the FDS regulations as being promulgated “in violation of lawful procedure” (CPLR 7803 [3]). The legislature’s grant of authority to respondents is not so broad as to permit them to adopt a familial search policy, and whether to permit familial searching of the DNA Databank in New York is a decision that should therefore be made by the people through their elected representatives, not unelected officials in executive agencies.

Judges GARCIA, SINGAS and CANNATARO concur. Judge LINDLEY* dissents in an opinion, in which Judges TROUTMAN and LYNCH* concur. Judges RIVERA and HALLIGAN took no part.

Order reversed, with costs, and petition dismissed.

* Designated pursuant to NY Constitution, article VI, § 2.

[228 NE3d 588, 204 NYS3d 775]

In the Matter of APPELLATE ADVOCATES, Appellant, v NEW YORK
STATE DEPARTMENT OF CORRECTIONS AND COMMUNITY SUPERVISION, Respondent.

Argued November 15, 2023; decided December 19, 2023

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered March 3, 2022, in a proceeding pursuant to CPLR article 78. The Appellate Division, with two Justices dissenting, affirmed a judgment of the Supreme Court, Albany County (Christina L. Ryba, J.; op 2020 NY Slip Op 35578[U] [2020]), which had dismissed petitioner's application to review a determination of respondent partially denying petitioner's Freedom of Information Law request.

Matter of Appellate Advocates v New York State Dept. of Corr. & Community Supervision, 203 AD3d 1244, affirmed.

HEADNOTE

Records — Freedom of Information Law — Attorney-Client Privilege Exemption — Documents Prepared by Counsel for Board of Parole

Respondent Department of Corrections and Community Supervision properly withheld 11 documents prepared by counsel for the Board of Parole for the purpose of training and advising its commissioners on how to comply with their legal duties and obligations when it responded to petitioner's Freedom of Information Law (FOIL) request, as those documents were privileged communications exempt from FOIL disclosure pursuant to Public Officers Law § 87 (2) (a). In determining when the attorney-client privilege, which is codified at CPLR 4503 (a) (1), attaches, the critical inquiry is whether, viewing the lawyer's communication in its full content and context, it was made in order to render legal advice or services to the client. It was clear from the documents' content and the context in which they were prepared and presented—i.e. for training and advising commissioners on how to dispatch their duties and obligations in deciding parole applications—that the documents were privileged communications from counsel to client. The privilege does not protect only those communications made in anticipation of litigation or an exchange of confidential information during a pending action. Nor is the privilege limited to communications by counsel triggered by a client's disclosure of confidential information or a direct request for advice.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Freedom of Information Acts §§ 205, 206.

CARMODY-WAIT 2d Proceeding Against a Body or Officer
§§ 145:594, 145:602.

McKINNEY'S, CPLR 4503 (a) (1); Public Officers Law §§ 84,
87 (2) (a).

NY JUR 2d Records and Recording §§ 41, 42.

ANNOTATION REFERENCE

See ALR Index under Attorney-Client Privilege; Freedom
of Information Acts.

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POINTS OF COUNSEL

Lincoln Square Legal Services, Inc., New York City (Ron Lazebnik of counsel), and *Latham & Watkins LLP*, New York City (Samir Deger-Sen, Mateo de la Torre, Jessica Bullock, admitted pro hac vice, Molly Babad, Nicolas Luongo and Frances M.M. Chapman of counsel) and Washington, D.C. (*Cherish Drain*, admitted pro hac vice, of counsel), for appellant. I. The materials were not properly withheld under the attorney-client privilege. (*Rossi v Blue Cross & Blue Shield of Greater N.Y.*, 73 NY2d 588; *Matter of Nassau County Grand Jury Subpoena Duces Tecum Dated June 24, 2003*, 4 NY3d 665; *Manufacturers & Traders Trust Co. v Servotronics, Inc.*, 132 AD2d 392; *Coastal States Gas Corp. v Department of Energy*, 617 F2d 854; *Matter of Charles v Abrams*, 199 AD2d 652; *Matter of Gilbert v Office of the Governor of the State of N.Y.*, 170 AD3d 1404; *Matter of Shooters Comm. on Political Educ., Inc. v Cuomo*, 147 AD3d 1244; *Matter of Abdur-Rashid v New York City Police Dept.*, 31 NY3d 217; *Tax Analysts v Internal Revenue Serv.*, 117 F3d 607; *American Immigration Council v U.S. Dept. of Homeland Sec.*, 905 F Supp 2d 206.) II. The intra-agency exemption does not apply here. (*Matter of Russo v Nassau County Community Coll.*, 81 NY2d 690; *Matter of Kheel v Ravitch*, 62 NY2d 1; *Matter of Miracle Mile Assoc. v Yudelson*, 68 AD2d 176; *Renegotiation Bd. v Grumman Aircraft Engineering Corp.*, 421 US 168; *NLRB v Sears, Roebuck & Co.*, 421 US 132; *Matter of New York 1 News v Office of President of Borough of Staten Is.*, 231 AD2d 524; *Matter of Bray v Mar*, 106 AD2d 311; *National Council of La Raza v Department of Justice*, 411 F3d 350; *Matter of Tuck-It-Away Assoc., L.P. v Empire State Dev. Corp.*, 54 AD3d 154;

Matter of Stein v New York State Dept. of Transp., 25 AD3d 846.) III. The Court of Appeals should resolve two remaining issues to clarify the scope of this case on remand. (*Matter of Madeiros v New York State Educ. Dept.*, 30 NY3d 67; *Matter of Kelly v Safir*, 96 NY2d 32; *U.S. Bank N.A. v DLJ Mtge. Capital, Inc.*, 33 NY3d 84.)

Letitia James, Attorney General, Albany (Frank Brady, Barbara D. Underwood and Jeffrey W. Lang of counsel), for respondent. I. The 11 documents Board of Parole counsel provided to the commissioners are protected by the attorney-client privilege as confidential communications providing legal advice and services. (*Matter of Fappiano v New York City Police Dept.*, 95 NY2d 738; *Matter of Shooters Comm. on Political Educ., Inc. v Cuomo*, 147 AD3d 1244; *Matter of Washington Post Co. v New York State Ins. Dept.*, 61 NY2d 557; *Matter of Abdur-Rashid v New York City Police Dept.*, 31 NY3d 217; *Matter of Hanig v State of N.Y. Dept. of Motor Vehs.*, 79 NY2d 106; *Roswell Park Cancer Inst. Corp. v Sodexo Am., LLC*, 68 AD3d 1720; *Matter of Jacqueline F.*, 47 NY2d 215; *Ambac Assur. Corp. v Countrywide Home Loans, Inc.*, 27 NY3d 616; *Matter of Gould v New York City Police Dept.*, 89 NY2d 267; *Matter of Miller v New York State Dept. of Transp.*, 58 AD3d 981.) II. Alternatively, the documents at issue are exempt from disclosure as intra-agency materials consisting of predecisional recommendations prepared to assist the commissioners in discharging their statutory duties. (*Matter of Russo v Nassau County Community Coll.*, 81 NY2d 690; *Matter of Bass Pro, Inc. v Megna*, 69 AD3d 1040; *Matter of Stein v New York State Dept. of Transp.*, 25 AD3d 846; *Matter of New York Times Co. v City of N.Y. Fire Dept.*, 4 NY3d 477; *Matter of Sea Crest Constr. Corp. v Stubing*, 82 AD2d 546; *Matter of Tuck-It-Away Assoc., L.P. v Empire State Dev. Corp.*, 54 AD3d 154.)

Civil Rights and Transparency Clinic, University at Buffalo Law School of Law, Buffalo (Erin Goldberg of counsel), for New York Coalition for Open Government, amicus curiae. I. The purposes of the Freedom of Information Law would be thwarted if the requested documents are deemed exempt from disclosure. (*Matter of Fink v Lefkowitz*, 47 NY2d 567; *Matter of Capital Newspapers, Div. of Hearst Corp. v Whalen*, 69 NY2d 246; *Matter of Weston v Sloan*, 84 NY2d 462; *Matter of Abdur-Rashid v New York City Police Dept.*, 31 NY3d 217.) II. Attorney-client privilege should not be used to exempt government agencies from making their records available to the pub-

lic. (*Hurlburt v Hurlburt*, 128 NY 420; *Matter of Jacqueline F.*, 47 NY2d 215; *Matter of Priest v Hennessy*, 51 NY2d 62; *Saran v Chelsea GCA Realty Partnership, L.P.*, 174 AD3d 759; *Rossi v Blue Cross & Blue Shield of Greater N.Y.*, 73 NY2d 588; *Radiant Burners, Inc. v American Gas Assn.*, 320 F2d 314; *In re Grand Jury Investigation*, 399 F3d 527; *In re Grand Jury Subpoena Duces Tecum*, 112 F3d 910; *In re Lindsey*, 148 F3d 1100; *Matter of Miracle Mile Assoc. v Yudelsohn*, 68 AD2d 176.) III. The intra-agency exemption does not apply to the Board of Parole's training materials. (*Matter of Metropolitan Life Ins. Co. v New York State Labor Relations Bd.*, 280 NY 194; *Matter of Ramahlo v Bruno*, 273 AD2d 521; *Coastal States Gas Corp. v Department of Energy*, 617 F2d 854; *NLRB v Sears, Roebuck & Co.*, 421 US 132; *Matter of Chinese Staff & Workers' Assn. v Burden*, 88 AD3d 425; *Matter of Nicholas v Kahn*, 47 NY2d 24.)

Michelle Lewin, Parole Preparation Project, New York City, and *Caprice R. Jenerson, Office of the Appellate Defender*, New York City, for Parole Preparation Project and another, amici curiae. The nondisclosure of the Board of Parole's training materials and decision-making processes restricts applicants' ability to prepare for a parole interview, understand parole decisions, or appeal parole denials. (*Matter of Vigliotti v State of N.Y. Exec. Div. of Parole*, 98 AD3d 789; *Matter of King v New York State Div. of Parole*, 190 AD2d 423; *Matter of Johnson v New York State Div. of Parole*, 65 AD3d 838; *Matter of Hamilton v New York State Div. of Parole*, 119 AD3d 1268; *Matter of Comfort v New York State Div. of Parole*, 68 AD3d 1295; *Matter of Peralta v New York State Bd. of Parole*, 157 AD3d 1151; *Matter of Perfetto v Evans*, 112 AD3d 640; *Matter of Rossakis v New York State Bd. of Parole*, 146 AD3d 22; *Lewis v Casey*, 518 US 343; *Matter of Letizia v Fitzpatrick*, 192 AD3d 1283.)

OPINION OF THE COURT

RIVERA, J.

On this appeal we must determine whether the Department of Corrections and Community Supervision (DOCCS) properly withheld 11 documents prepared by counsel for the Board of Parole as privileged communications exempt from Freedom of Information Law (FOIL) disclosure. Counsel prepared the documents to train and advise Board of Parole commissioners on how to comply with their legal duties and obligations. The documents reflect counsel's legal analysis of statutory, regula-

tory and decisional law and they therefore constitute attorney-client communications that were prepared “for the purpose of facilitating the rendition of legal advice or services, in the course of a professional relationship,” specifically, to provide guidance on matters relevant to the commissioners’ exercise of their discretionary authority (*Rossi v Blue Cross & Blue Shield of Greater N.Y.*, 73 NY2d 588, 593 [1989]). Accordingly, DOCCS properly invoked the statutory FOIL exemption for privileged matters (*see* Public Officers Law § 87 [2] [a]; CPLR 4503 [a]).

Petitioner Appellate Advocates filed a FOIL request with respondent DOCCS for various materials related to the Board of Parole’s decision-making process. DOCCS disclosed thousands of pages of material but withheld several documents, asserting, as relevant to this appeal, that they are privileged attorney-client communications. The determination was confirmed on administrative appeal. Appellate Advocates then commenced this CPLR article 78 proceeding to obtain the withheld documents. During the pendency of this action, the parties entered a settlement pursuant to which DOCCS disclosed approximately 400 additional documents, leaving the 11 documents at issue in this appeal.

After an in camera review, Supreme Court affirmed DOCCS’ denial of disclosure and dismissed the petition (2020 NY Slip Op 35578[U] [Sup Ct, Albany County 2020]). The Appellate Division affirmed in a 3-2 decision, concluding that the documents were protected by the attorney-client privilege (203 AD3d 1244, 1246 [3d Dept 2022]). The appeal is before us based on the two-Justice dissent (CPLR 5601 [a]). We now affirm.

Under New York State’s FOIL, documents shall be disclosed, unless they fall within an enumerated statutory exemption (*see* Public Officers Law § 87 [2] [a]; *Matter of Town of Waterford v New York State Dept. of Env’tl. Conservation*, 18 NY3d 652, 657 [2012]). As the Court has explained, FOIL is “liberally construed and its exemptions narrowly interpreted” to achieve its legislative purpose of maximizing public access to government records (*Matter of Town of Waterford*, 18 NY3d at 657, quoting *Matter of Capital Newspapers, Div. of Hearst Corp. v Whalen*, 69 NY2d 246, 252 [1987]; *see also Matter of Friedman v Rice*, 30 NY3d 461, 475 [2017]). We give an exemption its “natural and obvious meaning where such interpretation is consistent with the legislative intent and with the general purpose and manifest policy underlying FOIL” (*Matter of Abdur-Rashid v New York City Police Dept.*, 31 NY3d 217, 225

[2018] [internal quotation marks and citation omitted]). The government bears the burden of establishing an exemption (*Matter of Town of Waterford*, 18 NY3d at 657).

DOCCS invoked section 87 (2) (a), which provides that an agency “may deny access to records or portions thereof that . . . are specifically exempted from disclosure by state or federal statute” (Public Officers Law § 87 [2] [a]). In turn, CPLR 4503 (a) (1) codifies the common-law attorney-client privilege and exempts from disclosure confidential attorney-client communications. “In order for the privilege to apply, the communication from attorney to client must be made ‘for the purpose of facilitating the rendition of legal advice or services, in the course of a professional relationship’ ” and “[t]he communication itself must be primarily or predominantly of a legal character” (*Spectrum Sys. Intl. Corp. v Chemical Bank*, 78 NY2d 371, 377-378 [1991], quoting *Rossi*, 73 NY2d at 593-594).

The privilege “fosters the open dialogue between lawyer and client that is deemed essential to effective representation” and extends to both communications from client to lawyer and, as here, lawyer to client (*id.* at 377). “Because the privilege shields from disclosure pertinent information and therefore ‘constitutes an “obstacle” to the truth-finding process,’ it must be narrowly construed” (*Ambac Assur. Corp. v Countrywide Home Loans, Inc.*, 27 NY3d 616, 624 [2016], quoting *Matter of Jacqueline F.*, 47 NY2d 215, 219 [1979], citing *Spectrum*, 78 NY2d at 377). However, the fact “[t]hat nonprivileged information is included in an otherwise privileged lawyer’s communication to its client . . . does not destroy the immunity” (*Spectrum*, 78 NY2d at 378). In determining whether the privilege attaches, “[t]he critical inquiry is whether, viewing the lawyer’s communication in its full content and context, it was made in order to render legal advice or services to the client” (*id.* at 379).

DOCCS submitted an affirmation in support of its invocation of the privilege from counsel to the Board who asserted that counsel prepared the documents as legal advice. It is clear from the documents’ content and the context in which they were prepared and presented—i.e. for training and advising commissioners on how to dispatch their duties and obligations in deciding parole applications—that these documents are privileged communications from counsel to client. The documents contain counsel’s advice regarding compliance with legal requirements concerning parole interviews and parole determi-

nations, including as applied to persons designated as minor offenders. The documents summarize recent court decisions and advise on how to apply statutes, regulations, and case law to parole determinations. The documents also include guidance on drafting parole decisions that accord with the law. In sum, the documents reflect counsel's legal analysis of statutory, regulatory and decisional law, and provide guidance for the commissioners on how to exercise their discretionary authority (*Rossi*, 73 NY2d at 593). Therefore, the documents are privileged and fall squarely within the exemption under section 87 (2) (a).

We are unpersuaded by Appellate Advocates' myriad arguments that disclosure is required under FOIL. Appellate Advocates contends that the privilege applies only to communications responding to an existing "real world factual situation." However, this view of attorney-client privilege undermines its purpose of fostering candid communication between lawyer and client (*see Spectrum*, 78 NY2d at 378-379; *Rossi*, 73 NY2d at 591-592). We have never endorsed petitioner's position that the privilege protects only those communications made in anticipation of litigation or an exchange of confidential information during a pending action. The reason is obvious given the advisory role served by an attorney. Counsel often provides legal advice to assist the client in deciding how best to order their affairs in compliance with legal mandates, including what action, if any, to take in order to avoid litigation. Encouraging proactive compliance with the law has patent benefits.

Nor is Appellate Advocates correct that the privilege is limited to communications by counsel triggered by a client's disclosure of confidential information or a direct request for advice. The privilege attaches so long as the communication is "made for the purpose of facilitating the rendition of legal advice or services, in the course of a professional relationship" (*Rossi*, 73 NY2d at 593). It is in furtherance of that professional relationship that counsel may bring to the client's attention legal matters concerning statutory, regulatory and decisional law, without the client initiating contact or posing a specific question. In so doing, counsel relies on their professional judgment, experience, skill, and knowledge of the law to assess the client's potential needs and possible risk exposure. This is the type of legal assistance and evaluation that a client may consider when ordering their affairs.

To the extent Appellate Advocates claims that documents identified by DOCCS as commissioner training materials are categorically not exempt from disclosure, its position is similarly based on a misunderstanding of the privilege and its purpose, and we reject this proposed per se rule. Indeed, federal courts have held that training materials are privileged when the materials convey confidential legal advice (*see Valassis Communications, Inc. v News Corp.*, 2018 WL 4489285, *3-4, 2018 US Dist LEXIS 160234, *8-11 [SD NY, Sept. 19, 2018, No. 17-CV-7378]; *In re Currency Conversion Antitrust Litig.*, 2010 WL 4365548, *6, 2010 US Dist LEXIS 117008, *23-24 [SD NY, Nov. 3, 2010, No. 05 Civ 7116 (WHP)(THK)]; *Friedman v Bloomberg LP*, 2019 WL 9089585, *1-2, 2019 US Dist LEXIS 231805, *3-4 [D Conn, Jan. 14, 2019, No. 3:15cv00443 (AWT)]; *McKnight v Honeywell Safety Prods., USA*, 2019 WL 452741, *2, 2019 US Dist LEXIS 18076, *4-5 [D RI, Feb. 5, 2019, CA No. 16-132WES]). Counsel is free to determine the best method to communicate legal advice to the client. Here, the documents were prepared for and used during Board of Parole training and so are privileged as they provide commissioners with counsel's legal analysis and advice on the statutory, regulatory, and decisional law that commissioners should consider during their decision-making process. Counsel must first interpret a statutory provision, regulation or judicial decision and then determine what if any legal application it has to the client. The lawyer's communication of that analysis and advice is privileged regardless of whether counsel communicates its view to the client in a slide show, as opposed to in a letter or memorandum. Nor does it matter that this analysis and advice is communicated during a training session. What matters is that the information is advice on the law pertaining to the commissioners' decisions on whether to grant parole.*

Lastly, Appellate Advocates' argument that the public policy in favor of transparency in parole board determinations trumps

* Contrary to Appellate Advocates' assertion, the documents are not a formal pronouncement of agency policy. Supreme Court did not make any factual finding that these documents constituted DOCCS' binding policy, and the record does not establish that the documents are anything other than legal advice that could be accepted or rejected by the commissioners (*cf. Matter of Charles v Abrams*, 199 AD2d 652, 653 [3d Dept 1993] [attorney-drafted internal agency policy not protected by attorney-client privilege because, in part, "the documents contain the agency's final policy, which is to be applied to all litigation in general"])). Therefore, even assuming there is a final policy exception, it would not apply here.

attorney-client privilege misses the mark. FOIL reflects the state's policy in favor of government transparency and public access to government records (*see* Public Officers Law § 84). But the attorney-client privilege exemption also reflects the state's policy to protect attorney-client communications to foster candid discussion between lawyer and client. This policy is important in the public setting, where society at large benefits immensely from the free and candid communication between government lawyers and government actors. The public is well served when counsel advises government clients on how to lawfully fulfill their public duties.

In sum, DOCCS properly withheld the 11 remaining documents as privileged communications because they are exempted from FOIL disclosure pursuant to section 87 (2) (a). Accordingly, the order of the Appellate Division should be affirmed, with costs.

Chief Judge WILSON and Judges GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order affirmed, with costs.

[Next page is 901.]

